



American Restoration and Resilience Project

*A Roadmap for Repairing Institutional Damage, Restoring Trustworthy Government, and Preventing
Future Personalist Capture*

Public Proposal Draft

Generated from canonical Markdown sources.

About the Project

The American Restoration and Resilience Project is an independent, author-directed policy-reform research and drafting project. Its public proposal pages present the institutional analysis and proposed remedies; its GitHub repository preserves the underlying technical framework, source records, audit histories, development materials, and change history.

Reader Notice

This project is not legal advice. Proposed legislation, constitutional amendments, model acts, rules, and administrative text are illustrative working drafts and have not yet been reviewed or approved by legislative counsel, an attorney, a public official, or an affected institution. A candidate or deferred issue is a subject under investigation, not an affirmative recommendation. **Review Ready** means that a proposal is developed enough for knowledgeable external critique; it does not mean that it is final, legally validated, or ready for introduction.

Purpose and Approach

ARRP examines institutional weaknesses that permit public authority to be converted into personal, partisan, or anti-democratic control, or that leave serious institutional damage difficult to detect, correct, or prevent. It uses concrete events to test structural safeguards and proposes prospective remedies intended to apply evenhandedly across parties, officeholders, and political circumstances. It distinguishes remediable institutional defects from disagreements that are fundamentally political and properly left to elections, legislation, and ordinary democratic debate.

Authorship

The American Restoration and Resilience Project is authored and directed by Benjamin Smith.

The author set the research agenda, selected and organized the project areas and issues, made the editorial judgments, and remains responsible for the project's structure, claims, omissions, and errors.

Large language model tools, including ChatGPT, have been used extensively for research organization, drafting assistance, revision, comparison, and issue spotting. The project was not generated from scratch by an LLM.

Outside contributions, comments, suggestions, or proposed edits may be incorporated in the future, but such contributions do not transfer authorship of the project as a whole unless expressly stated in writing.

Stakeholder Input

The project would welcome and appreciate input from additional stakeholders, including attorneys, legislative counsel, public-law scholars, government practitioners, civil-society organizations, affected communities, journalists, technologists, former public officials, and other readers with relevant expertise or lived experience. Comments may address factual accuracy, source quality, legal fit, implementation risk, institutional design, drafting clarity, missing issues, or unintended consequences.

To offer feedback, propose a correction, identify a source, or discuss a possible contribution, use the private contact-the-author form.

Technical Records and Development History

Readers who want more detail than appears in the public proposal or a compiled edition may use the ARRP GitHub repository. It provides access to the complete Framework and Methodology, issue audit histories, source catalogs, supporting research, proposed legislative text, repository change history, and internal publication or workflow documentation that is deliberately omitted from print.

The public website is the most accessible reading edition. GitHub is the more complete technical record and should be consulted when a reader needs audit provenance, development context, machine-readable inventories, or the current version of a file omitted from a compiled edition.

For citation metadata, see CITATION.cff. For rights and reuse terms, see LICENSE.md.

Using This Edition

This compiled edition is a reading copy of a living project. The canonical Markdown and structured project records remain online, and later revisions may differ from this edition. Each generated edition should identify its compilation date, repository commit, and edition name on the title or publication-information page.

Finding a Proposal

ARRP proposals use stable identifiers such as **REG-001** or **JUD-011**. Printed cross-references use those identifiers so a reader can find the destination even when page layout changes. During final assembly, the marker below is replaced with a compact table listing every included issue identifier, its title, and the page on which the issue begins.

Final page locators are inserted during the documented two-pass pagination step.

The complete Subject and Institution Index offers a more detailed lookup by agency, organization, topic, acronym, and common public term. Digital editions also preserve clickable internal links.

Technical Information Available Online

A compiled edition intentionally omits much of the project’s working and technical record. The public website provides the current reader-facing edition. The ARRP GitHub repository provides the full Framework and Methodology, issue audit histories, source catalogs, supporting research, proposed legislative files, repository change history, and internal workflow or publication documentation.

Omission from print does not mean that a record is secret, unimportant, or unavailable. It generally means that the record is operational, developmental, machine-readable, unusually detailed, or better maintained online than in a fixed linear publication.

Status of the Drafts

Issue status and quality scores describe development and review readiness, not enactment, legal approval, or endorsement. Proposed legislative language remains illustrative working text unless a page expressly states otherwise. Readers should use the current online version when accuracy depends on recent litigation, official action, source monitoring, or project revision.

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Subject and Institution Index

American Restoration and Resilience Project (ARRP)

A Roadmap for Repairing Institutional Damage, Restoring Trustworthy Government, and Preventing Future Personalist Capture

Foundational Premise

The American system of government suffered serious failures because its safeguards did not adequately constrain conduct by President Trump and MAGA-aligned actors that placed personal loyalty above constitutional duty, institutional independence, factual adjudication, and the peaceful transfer of power. The damage must be repaired, the weaknesses that enabled it must be corrected, and stronger safeguards must be established against future personalist capture.

This project was not devised as a partisan response to partisan policy preferences, nor as a counter-platform to Project 2025. It analyzes outcomes associated with President Trump's administration, MAGA-aligned efforts, Project 2025, and other partisan or ideological projects only where they reveal, exploit, accelerate, or manifest institutional damage. The project's concern is the legal, structural, administrative, and institutional vulnerability, not the partisan identity of the actor or the ordinary policy preference at issue.

The project treats democratic resilience as more than emergency resistance to a single officeholder. A resilient system should not depend so heavily on officeholders honoring informal traditions, adhering to voluntary norms, or declining to exploit legal ambiguity. Where such traditions proved load-bearing, the project asks whether they should be clarified, hardened, made reviewable, or paired with credible correction mechanisms.

The project is designed primarily for readers who accept, or are willing to seriously consider, its underlying premise and foundational diagnosis. It does not attempt to repeatedly persuade readers who categorically reject the project's factual and institutional premises. It does seek to make its analysis accessible to independents, former supporters of President Trump or MAGA-aligned political efforts, politically cross-pressured conservatives, and other readers who remain open to evidence and institutional arguments. Its purpose is to determine how the failure occurred, what damage followed, which weaknesses allowed it, what must be repaired, and what reforms can prevent recurrence.

Mission

The project will:

1. identify the principal institutional damage caused, accelerated, revealed, or exploited by conduct associated with President Trump's administration, MAGA-aligned actors, Project 2025, or comparable efforts;
2. identify the legal, structural, administrative, and policy weaknesses that made that damage possible;
3. distinguish repair of existing damage from prevention of recurrence; and
4. develop a durable roadmap for restoring lawful and trustworthy government and strengthening institutional resilience against future abuse.

Scope

The project concerns systems, structures, institutions, laws, and policies. It does not attempt a comprehensive sociological account of voter psychology, cultural identity, or partisan affiliation except where those matters directly illuminate an institutional vulnerability or remedy.

The scope is not limited to President Trump, Project 2025, or any single political period. Those examples may reveal urgent vulnerabilities, but the project may also address long-running structural defects whose democratic-resilience consequences are independent of any one administration. A long-running condition is not within scope merely because it is unjust, harmful, democratically consequential, or unresolved. The project must identify a distinct legal, structural, administrative, remedial, or institutional defect rather than only a failure by voters or lawmakers to choose and enact a preferred lawful policy.

ARRP therefore excludes **strictly political failures**: failures of persuasion, coalition formation, electoral choice, legislative priority, compromise, or ordinary lawmaking when the constitutional decision process remains available and no separate institutional defect prevents it from functioning.

Preventive resilience is within scope when a topic identifies a concrete legal, structural, administrative, or institutional vulnerability that could enable future abuse, even if the proposed reform is more forward-looking than reparative.

Issue listings are provisional unless the issue has been developed and formally retained through project review. An undeveloped or candidate issue identifies a subject for investigation, not an affirmative project recommendation. As research and review proceed, an issue may be narrowed, merged into another proposal, deferred, retired, or excluded from scope.

Governing Principles

Institutional Focus

President Trump is the principal case study, but the institutional weakness is the subject of analysis. Each issue must identify the legal, structural, administrative, institutional, or policy vulnerability that enabled, permitted, or failed to constrain the abuse. The project should not conclude merely that "President Trump is the problem."

Neutral Application

The project is not neutral about abuse, but it is neutral about who may commit it. Evidence may involve presidents or administrations of either party where supported by reliable evidence, and safeguards must apply equally regardless of political affiliation.

The project rejects false equivalence, partisan exemptions, unsupported accusations, and rules that apply differently depending on who holds power.

Truth and Reconciliation

The project seeks truth, legal coherence, factual accountability, and reconciliation grounded in an honest record. Where evidence establishes responsibility, the project should state it directly. Where uncertainty remains, it should identify the uncertainty rather than manufacture balance.

Restoration and Reform

The objective is not automatic return to the pre-2017 institutional status quo. Where prior arrangements enabled abuse, restoration must include redesign and legal hardening.

Democratic Resilience

The project uses resilience to mean the legal and institutional capacity to withstand abuse, correct failure, and preserve democratic legitimacy without relying primarily on voluntary restraint. Political traditions, professional norms, and interbranch comity remain valuable, but they are not sufficient when a determined actor can lawfully or practically evade them. Where the project identifies a norm as load-bearing, it should consider whether that norm needs a statutory hook, procedural trigger, transparency requirement, review mechanism, enforcement path, or constitutional clarification.

Functional Administrative Independence

Elected officials should control lawful policy direction. Factual determination, scientific assessment, adjudication, auditing, personnel administration, and individual enforcement decisions should receive protection from personal or partisan coercion.

Unitary Executive Consolidation

The project is not opposed to a strong executive as such. A constitutional republic needs an executive capable of lawful administration, crisis response, foreign-policy execution, national defense, and faithful implementation of statutes. The project objects to theories and practices that convert executive strength into power enhancement, accumulation, institutional corrosion, or evasion of the democratic checks and balances built into the constitutional design.

Unitary-executive jurisprudence becomes corrosive when it treats presidential control as a reason to disregard congressional intent, weaken independent adjudication or factual administration, evade appropriations limits, defeat statutory accountability, or place executive action substantially beyond timely judicial review. The project therefore distinguishes lawful energetic execution from legal theories that make executive power self-insulating, self-expanding, or resistant to ordinary democratic correction.

Project 2025-style unitary executive theory is Federalist in pedigree but Anti-Federalist in consequence: it takes Hamilton's argument for executive unity and pushes it toward the monarchy-like concentration of power that Anti-Federalists feared. If presidential action cannot be meaningfully constrained by the other branches of government, then separation of powers and checks and balances become functionally meaningless. The powers delegated to the judicial and legislative branches are hollowed out if the President can reconstruct, absorb, evade, or nullify those functions within the executive branch.

Many issues produced by unitary executive theory may share a common constitutional source and therefore may be curable, if at all, through a single carefully drafted constitutional amendment rather than a separate amendment for each affected proposal. Where a proposal's core obstacle is Article II doctrine rather than ordinary statutory ambiguity, the project should evaluate whether the issue belongs within a broader executive-power amendment package.

Ordinary legislation may still provide useful staging, transparency, process, reporting, funding, records, and continuity safeguards. But the project should not mistake those mitigation tools for a durable cure when the asserted defect is constitutional doctrine limiting Congress's power to insulate, supervise, or structure executive-branch functions.

Institutional Corrigibility

Not every institutional abuse can be prevented without impairing legitimate governmental authority, eliminating necessary discretion, or creating an equally serious countervailing danger. Where complete prevention is impracticable, the project should establish the least-complex adequate means by which abuse can be detected, documented, reviewed, exposed, remedied, deterred, and prevented from becoming entrenched.

A remedy may therefore be adequate even when it cannot prevent the first violation, provided it creates a credible and durable avenue for institutional self-correction. The analysis should distinguish prevention, detection, correction, deterrence, and containment rather than treating them as interchangeable.

Institutional corrigibility is not an excuse for weak reform. Preventive safeguards remain preferable where they are lawful, workable, and proportionate. Corrigibility becomes central where stronger front-end control would destroy necessary discretion, create unconstitutional supervision, or impose a cure more damaging than the underlying risk.

About This Project

The author is an independent researcher. This project is a policy-reform research and drafting exercise, not legal advice. Proposed legislation, model acts, constitutional amendments, and administrative language in this repository are illustrative working drafts. They have not yet been reviewed or approved by an attorney, legislative counsel, legal scholar, public official, or affected institution, and should not yet be treated as final or ready-to-introduce legislative text.

This project is intended to be institution-focused and nonpartisan in its standards, methods, and proposed remedies. It is not neutral about institutional abuse, democratic backsliding, corruption, personalist capture, rule-of-law failure, or unitary executive theory, and it is transparent about seeking to reverse, repair, and prevent institutional outcomes associated with Project 2025 and similar efforts to subordinate public institutions to personal or factional control. The project uses real-world examples to identify structural vulnerabilities and possible repairs, not to advance a party program or defend or condemn any person, party, administration, or ideology as such. Proposed remedies are meant to apply prospectively and evenhandedly across parties, officeholders, and political circumstances.

The project does not claim or intend to function as a Democratic Party agenda. At the same time, it does not ignore the practical reality that some readers, lawmakers, advocates, or institutions may be more receptive to the project because of the present political alignment of the abuses it studies. That likely audience does not define the project's standards. The project should remain candid about coalition realities while continuing to frame proposals as institutional repairs that can be evaluated, improved, supported, or criticized on their merits.

The project does not avoid naming public actors, including President Trump, where specific conduct is relevant to identifying institutional damage, structural vulnerability, or necessary repair. Such references are not included as partisan argument or personal condemnation for its own sake, but because the project depends on concrete examples of how institutions were damaged, tested, or exploited. The same standards should apply to any officeholder, party, administration, or movement that creates comparable institutional risk.

The project is not limited to incidents from President Trump's administrations. Those incidents are a principal case study because they exposed how many parts of the constitutional and administrative system depended on political traditions, voluntary restraint, unwritten norms, and underspecified legal guidelines. The project also includes older, continuing, or future-facing institutional weaknesses where they bear on democratic resilience, including representation, disenfranchisement, and other structural conditions that affect whether the system can remain self-correcting over time.

The full neutrality, language, coalition-reality, and political-language review rules are maintained in the Framework and Methodology, including its political-language audit.

The project is also a living research draft. Sources, citations, examples, issue classifications, and proposed remedies may be incomplete, provisional, or later revised as the work develops.

The project is author-directed. The author has set the research agenda, selected and organized the issues, made the editorial judgments, and remained in charge of the project's structure and development. Large language model tools, including ChatGPT, have been used extensively for research organization, drafting assistance, revision, comparison, and issue spotting, but the project was not generated from scratch by an LLM. The author asserts authorship of the project as a whole and remains responsible for its editorial choices, judgments, omissions, and errors.

For authorship, stakeholder input, technical-record access, and contact information, see About the Project.

How to Read an Issue Page

Issue pages are designed to move from the institutional problem to the proposed remedy, with detailed legal and evidentiary support reserved for the end of the page.

1. **Check the project status.** On the public website, the notice beneath the title identifies whether the page is a candidate, working draft, or proposal developed enough for external review. A candidate or deferred page is not an affirmative project recommendation. Even a **Review Ready** proposal remains a working draft awaiting knowledgeable critique.
2. **Start with the Issue Snapshot.** Its three lines identify the problem, the core repair, and the proposed legal or institutional vehicle.
3. **Read the diagnosis.** **Institutional Anomaly**, **Manifestation of the Failure**, **Resulting Damage**, and **Underlying Weakness** explain the structural defect, representative evidence, resulting harm, and the safeguard that failed. When additional evidence or litigation is maintained elsewhere, **Supporting Record and Updates** links to that material without overloading the issue page.
4. **Follow the remedy analysis.** **Proposal Survey** compares existing law and prior or adjacent models. **Least-Complex Adequate Remedy** identifies the smallest sufficient reform, while **Repair and Prevention** explains how it would correct existing damage and reduce recurrence.

5. **Open the proposal vehicle.** **Proposed Legislation** links to the separate draft bill, rule, amendment, manual provision, or procedural text. Some issues identify a preferred shared framework and a complete independent alternative; those are separate enactment choices, not bills that must be adopted together. Amendment-dependent issues separately identify the proposed constitutional amendment and enabling legislation.
6. **Review costs, readiness, and practical constraints.** The **Budgetary Impact Statement** is a preliminary workload or fiscal classification, not an official government cost estimate. **Proposal Scoring** summarizes development readiness, adoption prospects, resistance, the likely political or institutional pathway, and the next review need. A high quality score measures development and testing—not importance, popularity, certainty, or likelihood of enactment.
7. **Use the Annotation for technical depth.** The final section contains supporting authority, qualifications, competing arguments, constitutional and implementation risks, alternatives, and explanations that would make the main sections unnecessarily long. The linked review history preserves the complete internal audit record.

Optional sections such as **Adoption Viability Note** and **Relationship to Adjacent Proposals** appear only when they materially clarify who could adopt the remedy or how nearby proposals differ. Headings may vary slightly where a different title makes the analysis easier to understand, but the same problem-to-remedy sequence should remain visible.

Proposal Scores

Issue pages may include a **Proposal Quality Score** from 0 to 100. The score is a planning and readiness signal, not a claim that the proposal is correct, final, popular, legally valid, or certain to pass. It measures how well the proposal has been developed, sourced, tested against existing law, checked for implementation risk, and prepared for review.

Score bands are interpreted as follows:

Score	Meaning
0	Not Scored: retired, merged, moot, pending development, or awaiting a controlling finding.
1-49	Early/Partial Draft: major unresolved source, legal, remedy, or structure issues.
50-64	Developed Draft: meaningful structure but incomplete review support.
65-74	Substantially Developed Draft: useful internally but still has material unresolved issues.
75-84	Review Ready: strong enough for knowledgeable external critique, but not yet proposal-ready.
85-89	Advanced Review Ready: most internal checks are complete, but key validation remains.
90-94	Proposal Ready: mature enough for serious proposal packets or stakeholder circulation, with caveats.
95-99	Publication Ready: rare and heavily validated.
100	Fully Validated: theoretically possible but not expected for most reforms.

The full scoring formula and internal-review rules are maintained in `framework/Framework.md`.

Some issue pages also show an **Adoption Score** from 0 to 12. This is part of the Proposal Quality Score, not a separate score. It measures whether the proposal has a realistic, evidence-supported adoption path, including likely audiences, good-faith objections, coalition strategy, current support evidence, and the required electoral environment.

Adoption score bands are interpreted as follows:

Score	Meaning
0	Unassessed: adoption path has not been scored.
1-3	Weak Adoption Basis: adoption path is mostly undeveloped or unsupported.
4-6	Limited Adoption Basis: some adoption logic exists, but key evidence is missing.
7-9	Credible Adoption Basis: adoption path is reasonably developed and partly evidenced.
10-11	Strong Adoption Basis: adoption path is well developed and well supported.
12	Exceptional Adoption Basis: adoption path is unusually complete and strongly evidenced.

Some issue pages also show **Coalition Support Estimates** for Democratic, Republican, independent, or bipartisan audiences. These percentages are provisional planning judgments, not polling claims. They estimate how likely each audience is to find the proposal supportable in principle based on the proposal's framing, institutional purpose, current public evidence, prior legislative behavior, stakeholder signals, good-faith objections, and internal review. They should be revised when better polling, expert review, legislative behavior, stakeholder feedback, or coalition analysis becomes available.

Some issue pages may also show **External Review Status** when a qualified professional or institutional reviewer has reviewed the proposal. External review can increase the Proposal Quality Score only when the review is documented, within the reviewer's domain, and incorporated into the project record. Qualified reviewers may include relevant attorneys, legislative counsel, legislators or legislative staff, law professors, public-law scholars, government practitioners, inspectors general or ethics professionals, subject-matter experts, or affected institutional stakeholders. External review is not a guarantee that a proposal is legally valid, final, or certain to pass.

Some issue pages also include an **Adoption Friction Score** from 0 to 100. This is separate from Proposal Quality. It estimates how much resistance, litigation risk, procedural blockade, public misunderstanding, or institutional opposition a proposal is likely to face. A higher friction score does not mean the proposal is worse; it means adoption will likely require more coalition work, explanation, staging, or

litigation planning.

Adoption friction bands are interpreted as follows:

Score	Meaning
0-20	Low Resistance: likely to face limited organized opposition or implementation friction.
21-40	Manageable Resistance: likely to face ordinary objections but no major structural barrier.
41-60	Significant Resistance: likely to require active coalition work, explanation, or implementation planning.
61-80	High Resistance: likely to face organized opposition, litigation risk, or serious procedural barriers.
81-100	Extreme Resistance: likely to face intense opposition, major litigation, or exceptional adoption barriers.
Unassessed	Not yet scored.

Some issue pages also include a **Required Electoral Environment** descriptor. This is not a separate score. It states, in plain terms, what political or institutional condition would likely need to exist before the proposal could realistically move. The descriptor helps calibrate adoption and implementation risk; it does not mean the proposal is weak, undesirable, or impossible.

current-law-available means a legal or institutional vehicle already exists; it does not mean the current officeholder or institution is likely to adopt the proposal. Where adoption depends on voluntary self-limitation by the same actor whose discretion would be constrained, the Adoption Score and Adoption Friction Score should reflect that practical barrier.

Common descriptors are interpreted as follows:

Descriptor	Meaning
current-law-available	Existing law, rule, or authority may already permit action.
not-electorally-dependent	The proposal does not mainly depend on an election outcome.
house-oversight-majority	A House majority could advance oversight, hearings, subpoenas, or reports.
narrow-unified-government	Same-party control is likely needed, but margins may be tight.
filibuster-constrained-unified-government	Unified government may still face Senate filibuster limits.
sixty-vote-senate	Ordinary Senate passage likely requires a 60-vote coalition.
filibuster-reform-or-exception	Passage likely requires changing or bypassing the filibuster.
wave-election-mandate	The proposal likely needs a major electoral shift.
post-crisis-repair-mandate	Adoption likely requires a public crisis or institutional reckoning.
constitutional-amendment-environment	Adoption would require Article V-level national and state support.
state-level-pathway	The proposal is more viable through state action or state models.
unassessed	The electoral environment has not yet been assessed.

Complete Printable Edition

Legislators, legislative staff, and government officials who would like a complete printable edition of the project for legislative, oversight, or institutional review may contact the author privately to request the current compiled version.

Find a Topic or Institution

Readers may Explore by Topic for concise explanations of major public subjects that span several institutional failures or remedies, or use the Subject and Institution Index to find a particular subject, department, agency, office, court, acronym, or common term. Readers who prefer the project's ordered institutional structure may instead browse the Project Areas.

Rights and reuse

Original project materials are copyright (c) 2026 Benjamin Smith. All rights reserved unless otherwise noted. See `LICENSE.md`.

The project is planned to be released at a later date, in whole or in part, under a Creative Commons license to support public use, adaptation, and legislative engagement. Until a public reuse license is adopted, no general permission is granted to reproduce, distribute, adapt, sublicense, or create derivative works from the original project materials outside rights independently provided by law or GitHub's platform terms.

Citation

For citation metadata, see `CITATION.cff`. The preferred citation may be updated when the project is formally released for broader public use.

Technical Records

The complete framework, methodology, issue-admission standards, internal-review rules, scoring rules, and source-governance rules are maintained in `framework/Framework.md`. Repository directories and file purposes are maintained in `framework/PROJECT_STRUCTURE.md`.

Agent-assisted and autonomous batch-review operating rules are maintained in `framework/AGENT_OPERATING_RULES.md`.

Autonomous, batched, or scheduled agent commit provenance and rollback references are maintained in `framework/logs/AGENT_AUDIT_LOG.md`. Human-invoked internal reviews use the technical review-history sidecar, issue-page metadata, and GitHub Project fields instead.

Project-wide method improvements are incorporated into the governing Framework and Methodology; proposal-specific review history remains with the affected proposal.

The Horizon Scan Log is maintained in `framework/logs/HORIZON_SCAN_LOG.md`.

Topic Guides

Campaign Finance {.arrp-topic-guide-title}

Overview

Campaign finance includes contributions, political spending described as independent of candidates, super PACs, dark-money organizations, corporate and union spending, donor disclosure, coordination rules, foreign-influenced funds, public financing, and enforcement by the Federal Election Commission. ARRP treats these as related but legally distinct questions.

ELEC-012 contains the detailed analysis. It separates constitutional limits associated with *Citizens United* and related doctrine from statutory measures that may improve transparency, coordination rules, identification of the actual source of funds, public financing, and enforcement against evasion. Its linked constitutional amendment and federal legislation provide different ways to implement the proposal. This page helps readers find that work without repeating it.

Applicable Proposals

<div class="arrp-topic-table arrp-topic-table--map" markdown>

Public concern	Proposal	How ARRP addresses it
Corporate, union, nonprofit, or other organizational spending	ELEC-012	Constitutional authority and safeguards for regulating election spending by organizations.
Dark money, shell entities, pass-through funding, and true-source disclosure	ELEC-012	Disclosure, tracing, privacy, anti-evasion, and public-database questions.
Super PAC contributions and candidate or party coordination	ELEC-012	Constitutional limits and statutory rules for super PACs and coordination.
Public financing and small-donor systems	ELEC-012	Optional public-financing and implementation models.
FEC deadlock, delay, forms, databases, and enforcement	ELEC-012	Administrative and judicial backstops for statutory duties.

</div>

What ARRP Does and Does Not Address

ARRP does not favor a candidate, party, donor, corporation, union, or political viewpoint through this page. The questions ARRP addresses concern democratic authority, transparency, prevention of evasion, reliable enforcement, and safeguards against viewpoint discrimination or rules designed to protect incumbents. Ordinary disagreement over who spends money or what political message the spending supports is not itself an institutional failure.

American Restoration and Resilience Project

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Civil Rights {.arrp-topic-guide-title}

Overview

ARRP’s civil-rights work focuses on whether government institutions administer rights through clear authority, stable records, fair procedures, neutral enforcement, effective remedies, and accountable enforcement. This page concentrates on government-wide civil-rights administration, constitutional remedies, anti-discrimination safeguards, identity records, and citizenship recognition. The primary institutional map is Civil Rights Administration, Remedies, and Identity Records.

Immigration-specific humanitarian protection, detention, removal, and adjudication are organized under Immigration System Reform. Voting administration, access, redistricting, and representation are organized under Elections. Those subjects can implicate civil rights, but repeating their full proposal maps here would make the topic routes less clear.

Applicable Proposals

<div class="arrp-topic-table arrp-topic-table--map" markdown>

Public concern	Proposal	How ARRP addresses it
Government-wide civil-rights definitions, identity records, grant conditions, privacy, or detention classification	RIGHTS-001	Establishes stable authority, records, privacy, procedures, and review across federal civil-rights administration.
Birthright citizenship, citizenship recognition, or federal identity documents	RIGHTS-003	Protects recognition continuity, federal records, reliance interests, benefits administration, and timely judicial review.
Law-enforcement constitutional violations	RIGHTS-005	Establishes civil remedies and calibrated personal civil and criminal accountability across Federal, State, and local law enforcement.
Constitutional injury by federal officials with no effective judicial remedy	JUD-012	Examines causes of action and other review barriers without changing the underlying substantive right.

</div>

Related Ideas Not Included

<div class="arrp-topic-table arrp-topic-table--related" markdown>

Idea	Record	Why it is not included
District of Columbia statehood	HOR-020	Statehood is a substantive political-status choice. ARRP may still address a separate, status-neutral rights, administration, due-process, home-rule, or representation defect.
Puerto Rico political status	HOR-021	Choosing statehood, independence, free association, territorial status, or another final arrangement is a substantive political decision. ARRP may still address a separate, status-neutral rights or administrative defect.

</div>

What ARRP Does and Does Not Address

ARRP addresses weaknesses in the administration, enforcement, review, and protection of civil rights. It may propose status-neutral safeguards for due process, anti-discrimination, identity and citizenship records, benefits, and access to adjudication. It does not select the District of Columbia’s or Puerto Rico’s final political status, resolve every disputed substantive-rights question, or replace ordinary constitutional and democratic decision-making with a preferred policy outcome. Immigration and election concerns remain available through their more specific topic guides even when they also implicate civil rights.

Classified Documents {.arrp-topic-guide-title}

Overview

Public controversies involving classified documents can raise several different institutional questions. Presidential classification authority is not the same as lawful possession after leaving office; records custody is not the same as secure handling; and protection against unauthorized disclosure is not the same as independent investigation or criminal accountability. ARRP separates those questions so that each proposal addresses one institutional defect without treating an allegation, charging document, or unreleased report as a judicial finding.

This page routes readers to the relevant proposals. The detailed source-status analysis remains in the project’s retained Jack Smith Volume Two crosswalk because that report has not been treated as a lawfully available substantive source.

Applicable Proposals

<div class="arrp-topic-table arrp-topic-table--map" markdown>

Public concern	Proposal	How ARRP addresses it
Presidential classification and declassification	CLASS-001	Addresses documentation, legal consequences, custody, possession, and statutory exceptions.
Overclassification and concealment	CLASS-004	Addresses improper secrecy, congressional access, and independent or judicial review.
Unauthorized retention or disclosure	CLASS-006	Addresses protection of classified information, intelligence sources, and methods.
Security-clearance integrity	CLASS-011	Addresses eligibility, process integrity, and retaliatory use of clearance authority.
Presidential-records custody and recovery	REC-001	Addresses identification, preservation, Archives authority, recovery, and transition controls.
Independent investigation of presidential misconduct	DOJ-007	Addresses conflicted investigation, evidence preservation, protected authority, and reporting.
Judicial ethics and recusal in presidential-party litigation	JUD-009	Addresses neutral ethics and recusal procedures without presuming bias from judicial appointment alone.
Sitting-President prosecution barriers	IMM-001	Addresses criminal immunity, delay, evidence, tolling, and temporary protections during presidential tenure.

</div>

What ARRP Does and Does Not Address

ARRP addresses institutional rules governing classification, custody, preservation, protection, investigation, judicial process, and accountability. It does not determine individual criminal guilt, treat an indictment as proof, disclose protected information, or rely substantively on an unavailable or unlawfully disclosed report.

Sources and Updates

The project’s detailed source-status analysis and public-source routing are retained in the Jack Smith Volume Two / Source Status and ARRP Crosswalk. That record distinguishes the unavailable report from lawful public substitutes and should be updated if a court or lawful public authority changes the report’s status.

DOGE and Agency Dismantling {.arrp-topic-guide-title}

Overview

DOGE is a familiar public label for the United States DOGE Service and related agency teams established through Executive Order 14158. ARRP separates questions about the authority and safeguards of a cross-agency operational unit from questions about the effects of its actions on particular agencies, appropriations, statutory programs, personnel, records, and information systems.

This page does not evaluate whether a particular efficiency policy is wise. It helps readers find the proposals addressing who may exercise cross-agency control, whether mandatory government functions may be disabled, and what legal safeguards apply.

Applicable Proposals

<div class="arrp-topic-table arrp-topic-table--map" markdown>

Public concern	Proposal	How ARRP addresses it
Creation or use of a cross-agency operational-control unit	CIV-009	Addresses appointments, delegation, systems access, privacy, procurement, records, and oversight.
Reclassification or removal of career employees	CIV-001	Addresses political reclassification and retaliation for professional judgment within one merit-system framework.
Large workforce reductions or loss of technical capacity	CIV-005	Addresses whether personnel reductions hollow out the government’s ability to perform required functions.
Functional dismantling of an agency or mandatory program	REG-001	Addresses substantial and sustained inability to perform duties assigned by Congress.
Nonspending used to suspend an agency or program	FUND-001	Addresses appropriations execution and agency closure through nonspending.
Broader refusal to carry out an enacted congressional mandate	JUD-011	Supplies a general civil remedy when executive action or inaction functionally nullifies enacted law.

</div>

What ARRP Does and Does Not Address

ARRP addresses legal authority, mandatory functions, appropriations, personnel safeguards, privacy, records, and accountable administration. It does not oppose efficiency review, modernization, lawful reorganization, waste reduction, or policy change authorized by Congress merely because DOGE or another presidential unit participates.

Elections {.arrp-topic-guide-title}

Overview

ARRP’s election work spans administration, certification, election-worker protection, litigation and investigative process, false result-transmission documents, transition continuity, federal-force activity, coordinated subversion, voting access, gerrymandering and redistricting, representation, campaign finance, and candidate competition. The primary institutional map is Election Integrity.

“Election fraud” can refer to an allegation, a request for an audit or records, a civil or criminal investigation, falsified official documents, or an adjudicated scheme. Those are not interchangeable. ARRP does not validate or reject disputed factual claims on this page. It directs readers to the proposal addressing the relevant process, evidentiary safeguard, official duty, or accountability mechanism. Federal interference is likewise divided by mechanism: civilian executive pressure, criminal process, use of federal forces, and threats to withhold federal funding are addressed by different proposals.

Applicable Proposals

<div class="arrp-topic-table arrp-topic-table--map" markdown>

Public concern	Proposal	How ARRP addresses it
Federal direction, pressure, administrative action, or official influence	ELEC-001	Civilian executive interference with State and local election administration.
Federal-force presence or custody of election materials	ELEC-007	Force-presence, emergency-response, and election-material safeguards.
Election-related funding leverage	FED-003	Executive grant conditions used to obtain State election-policy changes.
Fraud claims, private audits, inspection demands, subpoenas, or litigation	ELEC-004	Safeguards against abusive civil or administrative process without foreclosing legitimate claims.
Criminal searches, subpoenas, interviews, seizures, or data demands	ELEC-014	Limits and safeguards for federal criminal process involving State-administered elections.
Certification pressure	ELEC-002	Addresses official certification duties, deadlines, review, and continuity.
False electoral documents	ELEC-005	Addresses unauthorized records purporting to transmit electoral votes.
Coordinated election subversion	ELEC-008	Addresses coordinated schemes using independently wrongful acts to overturn a lawful result.
Election-worker threats and continuity	ELEC-003	Addresses protection, reporting, continuity, and support for election personnel.
Delayed presidential transition	ELEC-006	Addresses automatic transition access and agency cooperation.
Mail voting and ballot access	ELEC-010	Addresses voting access, reliability, and safeguards.
Candidate and debate access	ELEC-013	Addresses candidate-access and debate-qualification rules.
Electoral College and national popular-vote selection	ELEC-009	Addresses presidential-selection structure and a reserve national popular-vote amendment pathway.
Gerrymandering, redistricting, vote dilution, and representation safeguards	ELEC-011	Addresses district representation through model State legislation, neutral map-drawing safeguards, and reserve Federal vehicles.
Majority-choice and ranked-choice election methods	ELEC-015	Examines whether election methods reliably produce representative majority choice.
Campaign finance, dark money, super PACs, and corporate spending	ELEC-012	The separate Campaign Finance page explains ELEC-012 and its proposed constitutional amendment and federal legislation.
Foreign election interference and campaign counterintelligence	HOR-023	Defers a distinct remedy pending expert review of cyber operations, digital influence, campaign contacts, FISA safeguards, and classified oversight.

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What ARRP Does and Does Not Address

ARRP addresses neutral rules governing administration, evidence, official duties, accountability, access, continuity, and institutional design. It does not decide disputed election facts, select winners, presume that every fraud allegation is true or false, or treat ordinary disagreement over voting rules as an institutional failure without a separate structural weakness.

Epstein Files {.arrp-topic-guide-title}

Overview

The Epstein-files controversy crosses several distinct institutional questions. The Epstein Files Transparency Act imposed disclosure, withholding, redaction-justification, and congressional-reporting duties on the Justice Department. Litigation in *Phang v. Blanche* then raised questions about who has a legal right to enforce those duties, where a lawsuit may be brought, and how quickly a court can respond.

ARRP does not treat “the Epstein files” as one proposal. Different proposals address enforcement of the disclosure law, execution of judicial orders, public notice of later noncompliance findings, and possible investigation of independently established misconduct. This page helps readers find those proposals; it does not determine what the files establish, whether every withholding is unlawful, or whether any person committed misconduct.

Applicable Proposals

<div class="arrp-topic-table arrp-topic-table--map" markdown>

Public concern	Proposal	How ARRP addresses it
Did Congress create an enforceable disclosure duty?	JUD-011	Addresses standing, the right to sue, the proper court, expedited proceedings, and available remedies when the executive departs from a congressional mandate.
What happens after a court orders compliance?	JUD-001	Addresses enforcement when the executive branch controls execution of the court’s command.
Would Congress and the public automatically learn of defiance?	JUD-005	Applies only after the court makes the proposal’s qualifying noncompliance finding.
Does the controversy automatically trigger an independent counsel?	DOJ-007	No. A later application would require authenticated evidence and satisfaction of DOJ-007’s independent appointment criteria.

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What ARRP Does and Does Not Address

ARRP addresses enforceability, institutional independence, transparent notice, and neutral investigation triggers. It does not adjudicate the underlying crimes, endorse allegations about particular persons, demand disclosure that Congress lawfully exempted, or treat public suspicion as proof of obstruction or concealment.

Sources and Updates

The principal current sources are Public Law 119-38, DOJ’s January 30, 2026 production statement, the June 25, 2026 preliminary-injunction opinion, and the continuing *Phang v. Blanche* docket. Procedural descriptions should be refreshed when the docket materially changes.

American Restoration and Resilience Project

Page 18

Executive Orders and Presidential Power {.arrp-topic-guide-title}

Overview

Presidents need substantial authority to direct the executive branch, respond to emergencies, conduct foreign affairs, and carry out federal law. The institutional question is not whether presidents may issue executive orders or make policy choices. It is what happens when presidential action exceeds delegated authority, replaces legislation, withholds appropriated funds, disables an agency, disregards a court, or uses military or emergency power beyond durable limits.

This page separates those questions and directs readers to the proposal addressing each kind of presidential action.

Applicable Proposals

<div class="arrp-topic-table arrp-topic-table--map" markdown>

Public concern	Proposal	How ARRP addresses it
Executive order or directive that functionally nullifies enacted law	JUD-011	Addresses standing, forum, expedited review, and remedies for executive departure from congressional mandates.
Legally consequential federal action with no effective route to decide its legality	JUD-012	Addresses cross-cutting review barriers without treating ordinary policy disagreement or adverse merits rulings as defects.
Refusal to spend appropriated funds	FUND-001	Addresses impoundment, reporting, timing, and judicial enforcement.
Delayed rescission request timed to prevent congressional action	FUND-002	Addresses pocket rescissions and strategic delay.
Closure or disabling of an agency Congress created	REG-001	Addresses agency independence and continuity of mandatory functions.
Emergency economic authority used to make major policy without legislation	EMERG-003	Addresses statutory predicates, congressional approval, duration, and review.
Execution of judicial commands	JUD-001	Addresses practical enforcement when the executive does not carry out a court order.
Notice of executive noncompliance	JUD-005	Addresses automatic congressional and public notice after a qualifying judicial finding.
Unilateral or indefinite use of military force	WAR-001	Addresses authorization, reporting, termination, appropriations, and mission expansion.

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What ARRP Does and Does Not Address

ARRP addresses the legal and institutional limits governing presidential power. It does not treat every executive order, emergency response, enforcement priority, foreign-policy decision, or military judgment as abuse. Ordinary policy disagreement remains outside scope unless a separable defect in authority, process, review, enforcement, or institutional design is identified.

Federal Pressure on States and Cities {.arrp-topic-guide-title}

Overview

The federal government may enforce federal law, attach lawful conditions to federal programs, investigate violations, and preempt conflicting State or local law within constitutional limits. The institutional problem is not federal supremacy itself. It is the possible use of funding, enforcement, waivers, investigations, force, or administrative control to compel unrelated policy changes, punish disfavored jurisdictions, or displace State functions without adequate authority and review.

This page separates those mechanisms so that disputes over sanctuary policies, election administration, investigations, grants, disaster aid, and federal deployments are not treated as one federalism question.

Applicable Proposals

<div class="arrp-topic-table arrp-topic-table--map" markdown>

Public concern	Proposal	How ARRП addresses it
Conditioning disaster or infrastructure aid on an unrelated policy demand	FED-003	Addresses authority, germaneness, notice, and neutral eligibility.
Selective federal enforcement against a disfavored State or city	FED-002	Addresses comparators, documentation, review, and corrective safeguards.
Federal pressure concerning a State prosecution or clemency decision	FED-002	Addresses State-directed retaliation while preserving lawful federal enforcement.
Threatening grants to obtain sanctuary-policy or election-law changes	FED-003	Addresses statutory authority, germaneness, evidence, reporting, and expedited review.
Taking over or displacing an ordinary State function	FED-004	Addresses federal authority and limits on displacement of State administration.
Deploying federal forces over State objection	DOM-001	Addresses authority, findings, notice, duration, and review.
Federal executive interference with State election systems	ELEC-014	Addresses limits on federal criminal investigations into state-administered elections.
Retaliatory federal investigations or audits	FED-002	Addresses neutral predicates, documentation, comparators, and review.
Coercive federal waivers or approvals	FED-003	Addresses authority, germaneness, notice, evidence, and review.
Federal control of evidence needed for a State critical-incident investigation	DOM-005	Addresses preservation and secure State access without changing immunity or prosecution authority.

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What ARRП Does and Does Not Address

ARRP addresses coercion, retaliation, displacement, evidence access, and review within the federal system. It does not prevent lawful federal preemption, enforcement of federal law, relevant funding conditions, or emergency assistance requirements. It also does not treat States or cities as immune from federal investigation merely because their officials oppose federal policy.

Government Spending and Impoundment {.arrp-topic-guide-title}

Overview

Congress decides whether federal money is legally available and often directs how it must be used. Executive officials administer those appropriations and retain some lawful discretion over timing, implementation, contingencies, and requests for rescission. The institutional problem arises when delay, withholding, reprogramming, or nonspending defeats Congress’s enacted decision without an effective opportunity for review.

This page separates general impoundment, pocket rescissions, agency closure through nonspending, selective grant conditions, reprogramming, reporting, and judicial enforcement.

Applicable Proposals

<div class="arrp-topic-table arrp-topic-table--map" markdown>

Public concern	Proposal	How ARRP addresses it
Refusal to obligate or spend funds Congress appropriated	FUND-001	Addresses impoundment, legal justification, deadlines, reporting, and review.
Rescission request made too late for Congress to act before funds expire	FUND-002	Addresses pocket rescissions and strategic timing.
Nonspending used to suspend an agency or program	FUND-001	Addresses appropriations execution when withholding funds disables enacted functions.
Functional closure of an agency or mandatory program	REG-001	Addresses continuity of functions assigned by Congress.
Grant or aid withholding used to obtain an unrelated policy change	FED-003	Addresses political selectivity, germaneness, notice, evidence, and review.
Reprogramming funds beyond congressional intent	FUND-001	Addresses transfer, reprogramming, notice, and purpose limits.
Spending-specific judicial enforcement	FUND-001	Addresses plaintiffs, timing, and remedies for appropriations violations.
Executive nullification of spending mandates	JUD-011	Supplies general expedited review when executive conduct functionally nullifies an enacted mandate.
Delayed or incomplete reporting to Congress and GAO	FUND-001	Addresses real-time transparency needed for legislative response.

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What ARRP Does and Does Not Address

ARRP addresses compliance with enacted appropriations, lawful rescission procedures, transparent reprogramming, neutral grant administration, and timely remedies. It does not require wasteful spending, prevent Congress from changing appropriations, eliminate legitimate administrative discretion, or treat every delay or unspent balance as unlawful impoundment.

Immigration System Reform {.arrp-topic-guide-title}

Overview

Immigration policy combines contested political choices with institutional systems governing citizenship, humanitarian protection, adjudication, detention, removal, surveillance, federalism, and executive authority. A change of political control may alter substantive policy, but it does not necessarily repair defects that permit applicable rights to become unreviewable, lawful process to arrive too late, or executive implementation to outrun statutory limits.

ARRP therefore uses this page as a guide to the individual institutional defects detected across the project, not as a comprehensive immigration-reform platform. The project generally avoids prescribing admissions levels, visa allocations, legalization programs, removal targets, enforcement priorities, or sanctuary-policy outcomes. A substantive policy proposition may be considered where it is necessary to repair a documented institutional weakness, but political disagreement alone is not treated as an institutional failure.

Applicable Proposals

<div class="arrp-topic-table arrp-topic-table--map" markdown>

Public concern	Proposal	How ARRP addresses it
Asylum and humanitarian protection	RIGHTS-002	Examines statutory review, country-condition procedures, and access to humanitarian protection.
Citizenship and identity records	RIGHTS-003	Examines recognition continuity, records safeguards, reliance interests, and expedited review.
Lawful immigration pathways	HOR-039	Separates administration of existing pathways from the political question of whether Congress should create or expand pathways, eligibility categories, or numerical levels.
Immigration detention and removal	HOR-037	Tests whether existing detention and removal procedures provide effective safeguards before irreversible action.
Immigration-court independence	REG-003	Examines appointments, removal, assignments, performance controls, and decisional independence in executive-branch adjudication.
Courthouse immigration enforcement	HOR-010	Examines whether courthouse access requires a distinct institutional safeguard or fits an existing proposal.
Immigration-related funding conditions	FED-003	Addresses statutory authority, germaneness, notice, objective findings, and timely review.
Federal preemption and State authority	FED-004	Examines the authority and safeguards governing displacement of ordinary State functions.
Immigration-surveillance technology	DOM-009	Addresses federal law-enforcement surveillance procurement and deployment.
Interagency immigration-data sharing	HOR-034	Examines the repurposing of personal data across agencies.
Access to federal incident evidence	DOM-005	Addresses evidence preservation and secure State investigative access without changing immunity or prosecution law.
Personal accountability for constitutional violations by immigration officers	RIGHTS-005	Addresses civil remedies, aggravated personal financial responsibility, and Federal or lawful State criminal accountability without prescribing immigration policy.
Immigration action insulated from legality review	JUD-012	Addresses absent causes of action and statutory review barriers while leaving immigration policy and underlying rights with their specific proposals.
Emergency declarations for immigration enforcement	EMERG-001	Addresses declaration predicates, findings, duration, renewal, and review.
Domestic deployments for immigration enforcement	DOM-001	Addresses federal-force authority, safeguards, duration, and review.
Enforcement of immigration-related court orders	JUD-001	Addresses practical execution of judicial commands rather than immigration policy itself.
Notice of executive noncompliance in immigration cases	JUD-005	Addresses congressional and public notice after a qualifying judicial finding.

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Related Ideas Not Included

<div class="arrp-topic-table arrp-topic-table--related" markdown>

Idea	Record	Why it is not included
One omnibus immigration-system proposal	RIGHTS-004	The proposal was retired because it combined political-policy choices with institutional defects requiring different remedies. This topic page preserves the system-wide map, while the narrower proposals and candidates retain responsibility for diagnosis and repair.

</div>

What ARRP Does and Does Not Address

ARRP addresses institutional design: due process, humanitarian review, adjudicatory integrity, administration of enacted pathways, records continuity, lawful executive authority, surveillance and data controls, evidence access, judicial compliance, funding leverage, and federalism. It does not determine how many people should be admitted or removed, select a preferred visa or legalization program, require or prohibit sanctuary policies as a political preference, prevent lawful federal enforcement, or presume that every enforcement action is unlawful.

Whether Congress should create or expand lawful residency pathways is principally a political-policy question. ARRP may document who supported, blocked, abandoned, or changed particular legislation when authoritative records support that account, and neutrality does not require obscuring genuine partisan asymmetry. Legislative inaction or partisan responsibility is not itself the institutional defect, however, and motive should not be attributed without evidence. HOR-039 is limited to whether pathways Congress already enacted remain functionally accessible and whether any remedy can improve their administration without compelling a preferred immigration policy.

January 6 {.arrp-topic-guide-title}

Overview

“January 6” commonly refers both to the January 6, 2021 attack on the United States Capitol and to the broader effort surrounding the 2020 presidential-election result. The House Select Committee’s final report provides an official source for that broader institutional record.

ARRP does not treat the episode as one proposal. Pressure on election officials, threats against workers, abusive litigation, false electoral documents, transition obstruction, federal-force safeguards, coordinated subversion, presidential immunity, independent investigation, and pardons raise different institutional questions. This page helps readers find the proposal addressing each one.

Applicable Proposals

<div class="arrp-topic-table arrp-topic-table--map" markdown>

Public concern	Proposal	How ARRP addresses it
Federal pressure on State or local election administration	ELEC-001	Addresses civilian executive interference with State and local election administration.
Pressure on canvassing or certification officials	ELEC-002	Addresses clear official duties, deadlines, review, and continuity when certification is threatened.
Threats against election workers or officials	ELEC-003	Addresses protection, continuity, reporting, and support for election personnel.
Abusive lawsuits, subpoenas, audits, or inspection demands	ELEC-004	Addresses safeguards against misuse of election-related civil process.
False documents purporting to transmit electoral votes	ELEC-005	Addresses federal receipt, preservation, notice, and treatment of unauthorized electoral documents.
Delayed transition access or agency cooperation	ELEC-006	Addresses automatic transition procedures and enforcement.
Improper federal-force activity around election administration	ELEC-007	Addresses force presence, emergency response, and custody of election materials.
Coordinated efforts using independently wrongful acts to overturn a lawful result	ELEC-008	Addresses accountability for coordinated federal election-subversion schemes.
Presidential criminal immunity	IMM-001	Addresses whether official-act immunity bars investigation, evidence, prosecution, or punishment.
Independent investigation of presidential misconduct	DOJ-007	Addresses conflicted investigation, evidence preservation, prosecution, and reporting.
Clemency protecting participants or witnesses	PAR-001	Addresses corrupt, self-protective, obstructive, or politically abusive clemency.
Presidential self-pardons	PAR-005	Addresses the distinct constitutional uncertainty surrounding self-pardons.

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What ARRP Does and Does Not Address

ARRP addresses the institutional safeguards exposed by the episode. It does not use this page to determine individual criminal guilt, replace judicial findings, relitigate the election result, or assign collective responsibility to a political party or its voters. Allegations and prosecution assessments remain subject to the source and evidence rules governing the proposal pages.

Sources and Updates

The principal orientation source is the Final Report of the Select Committee to Investigate the January 6th Attack on the United States Capitol. The project’s detailed source-to-proposal routing is retained in the Jack Smith Volume One / ARRP Crosswalk. Detailed factual and legal support remains in the linked proposal pages and should be updated there first.

Presidential Accountability {.arrp-topic-guide-title}

Overview

Presidential accountability involves several distinct questions: what conduct may be investigated or prosecuted, who conducts an investigation when DOJ has a conflict, how courts enforce orders against the executive branch, when judicial recusal is necessary, how presidential financial conflicts are handled, and whether the pardon power is used for personal protection or obstruction.

These questions are addressed by separate proposals. This page directs readers to the proposal governing each safeguard.

Applicable Proposals

<div class="arrp-topic-table arrp-topic-table--map" markdown>

Public concern	Proposal	How ARRП addresses it
Whether official presidential conduct may be investigated, used as evidence, or prosecuted	IMM-001	Addresses criminal immunity, core powers, evidence, timing, and temporary protections during presidential tenure.
Who investigates presidential or senior executive misconduct	DOJ-007	Addresses independent appointment, authority, removal, evidence preservation, reporting, and judicial review.
Execution of judicial commands	JUD-001	Addresses practical enforcement when the executive does not carry out a court order.
Presidential or federal action that cannot receive legality review	JUD-012	Addresses absent causes of action, statutory review bars, and other threshold barriers while preserving Article III and political-question limits.
Notice of executive noncompliance	JUD-005	Addresses automatic congressional and public notice after a qualifying judicial finding.
Judicial ethics or recusal in presidential-party litigation	JUD-009	Establishes neutral ethics, disclosure, complaint-review, and recusal procedures without assuming bias from appointment alone.
Whether the president can cause the government to sue itself, settle with itself, or receive audit immunity	EMOL-015	Addresses adversity screening, settlement controls, payment restrictions, enforcement, and categorical rejection of audit immunity.
Clemency protecting allies, witnesses, or participants	PAR-001	Addresses corrupt, self-protective, obstructive, or politically abusive clemency.
Presidential self-pardons	PAR-005	Addresses the distinct constitutional uncertainty surrounding self-pardons.

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What ARRП Does and Does Not Address

ARRП addresses neutral institutions capable of investigating, reviewing, disclosing, correcting, or deterring presidential misconduct while preserving constitutional presidential authority. It does not presume guilt, make impeachment automatic, eliminate all immunity, treat appointment as proof of judicial bias, or invalidate a pardon merely because it is controversial.

Sources and Updates

The project’s detailed source-to-proposal treatment of executive-controlled investigation, recusal, sitting-President prosecution limits, congressional accountability, and pardon-related concerns is retained in the Mueller Report / ARRП Crosswalk. The crosswalk treats the report as a source-development and remedy-stress record rather than an adjudicated finding.

Project 2025 {.arrp-topic-guide-title}

Overview

Project 2025 is a collection of policy, personnel, administrative, and institutional proposals associated with *Mandate for Leadership: The Conservative Promise*. ARRP considers those proposals only when they reveal, depend on, or could exploit a weakness in law, government structure, administration, enforcement, or available remedies. It does not treat Project 2025 as a single ARRP issue or regard every policy recommendation as an institutional failure.

This page connects commonly recognized Project 2025 themes to the ARRP proposals that address them. The linked proposal pages contain the detailed analysis and recommendations.

Applicable Proposals

<div class="arrp-topic-table arrp-topic-table--map" markdown>

Public concern	Proposal	How ARRP addresses it
Schedule F-style reclassification or loyalty-based control of career officials	CIV-001	Addresses political reclassification of protected career positions.
Federal employee union protections	Pending	Requires review to distinguish ordinary labor policy from a structural civil-service independence defect.
Withholding or refusing to spend appropriations	FUND-001	Addresses impoundment and failure to execute enacted spending requirements.
Executive nullification of enacted mandates	JUD-011	Supplies general expedited review when executive conduct functionally nullifies enacted law.
Federal funding pressure on States and localities	FED-003	Addresses executive grant conditions used to obtain policy changes Congress did not clearly require.
Politically selective or retaliatory enforcement	DOJ-003	Addresses neutral enforcement records, review, oversight, and correction.
Conflicted investigations of presidential misconduct	DOJ-007	Addresses independent appointment, authority, evidence preservation, and reporting.
Asylum and humanitarian review	RIGHTS-002	Addresses access to statutory review and humanitarian protection.
Large-scale domestic enforcement deployments	DOM-001	Addresses domestic deployment authority and safeguards.
Abolition, closure, or disabling of agencies created by Congress	REG-001	Addresses agency continuity and presidential refusal to carry out enacted law.
Government-wide sex definitions, identity records, or civil-rights administration	RIGHTS-001	Addresses civil-rights administration and identity records.
Suppression or distortion of government science, statistics, or public information	FACT-001	Addresses scientific alteration, dataset suppression, statistical interference, and suppression of unfavorable findings within one technical-integrity framework.
Reproductive-health restrictions through agency action	Pending	Requires review to distinguish substantive policy from a statutory-authority, scientific-integrity, or procedural defect.
Religious-conscience exemptions	Pending	Requires review to determine whether administration exposes a structural rights or process defect beyond substantive policy balancing.
Adult-content enforcement and speech safeguards	Pending	Requires review to determine whether a distinct enforcement, due-process, or protected-speech defect exists.
Intelligence-agency politicization	Pending	Requires review to determine whether existing oversight and factual-integrity proposals adequately address the concern.
Veterans-benefits adjudication	REG-003	Routes procedural independence and adjudication safeguards separately from substantive benefit policy.
Removal or control of independent regulators	REG-001	Addresses protected independence and functional disablement.
Vacancy and succession practices that evade confirmation	APPT-001	Addresses removal combined with vacancy, delegation, or succession practices that defeat confirmation safeguards.
General emergency declarations	EMERG-001	Addresses declaration predicates, findings, duration, renewal, and review.
Emergency economic powers	EMERG-003	Addresses emergency economic authority used as a substitute for legislation.
Domestic deployment of federal forces	DOM-001	Addresses domestic deployment authority and safeguards.

Public concern	Proposal	How ARRP addresses it
Unilateral or indefinite military force	WAR-001	Addresses authorization, reporting, termination, appropriations, and mission expansion.
Denial of government access to disfavored media	PRESS-001	Addresses viewpoint-neutral access and rapid review.
Government retaliation against media or platforms	PRESS-006	Addresses governmental powers or benefits used to punish or pressure protected reporting.

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What ARRP Does and Does Not Address

ARRP addresses Project 2025 only where a proposal identifies or uses a separate institutional weakness. Disagreement over lawful tax, spending, benefit, energy, health, education, immigration, or social policy is not included merely because Project 2025 takes a position. ARRP includes a concern only when it involves a weakness in law, government structure, administration, enforcement, or available remedies rather than failure to enact a preferred policy outcome.

Sources and Updates

The principal sources are the Heritage Foundation's Mandate for Leadership page and Project 2025 policy entry point. The DocumentCloud copy provides a searchable copy. This page reflects ARRP proposals reviewed through July 18, 2026 and should be updated when those proposals or the underlying source material change.

Weaponization of Justice {.arrp-topic-guide-title}

Overview

“Weaponization of justice” is a contested public term. ARRP uses it here only as a reader-access phrase for possible misuse of investigative, prosecutorial, enforcement, personnel, or supervisory authority to benefit allies, punish opponents, obstruct neutral enforcement, or protect executive officials. The standard applies regardless of party or political viewpoint.

This page concerns executive-branch administration of justice, including the Justice Department, federal investigators, prosecutors, and senior executive supervision. It does not treat disagreement with a court’s decision as “weaponization” or presume that a politically important investigation is improper.

Applicable Proposals

<div class="arrp-topic-table arrp-topic-table--map" markdown>

Public concern	Proposal	How ARRP addresses it
Appointment of a president’s recent personal counsel to senior DOJ leadership	DOJ-001	Addresses heightened conflicts, screening, and safeguards for recent personal counsel.
White House direction concerning a particular criminal matter	DOJ-002	Addresses case-specific contacts, documentation, disclosure, and review.
Politically selective charging, noncharging, or favoritism	DOJ-003	Addresses neutral enforcement records, review, oversight, and corrective mechanisms.
Political or personal influence over a particular noncriminal regulatory matter	REG-002	Addresses contacts, conflicts, contrary professional analysis, explanations, preservation, and independent review without dictating the regulatory outcome.
Removal or reassignment of career personnel for professional judgments	DOJ-004	Addresses protection for career independence and lawful professional decision-making.
Recusal failures or weak internal enforcement	DOJ-005	Addresses enforceable screening, recusal, review, and discipline.
Investigation of presidential or senior executive misconduct	DOJ-007	Addresses independent appointment, authority, evidence preservation, and reporting.
Qualifications for senior DOJ leadership	DOJ-009	Addresses minimum professional qualifications and confirmation safeguards.
Criminal searches, subpoenas, seizures, or investigations involving State elections	ELEC-014	Addresses federal criminal-process safeguards without insulating election misconduct.

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What ARRP Does and Does Not Address

ARRP addresses institutional conditions that permit political or personal misuse of justice authority. It does not assume that prosecution of an opposition figure is improper, that nonprosecution of an ally is corrupt, or that every policy disagreement with DOJ is institutional abuse. The relevant proposal must identify evidence, a neutral rule, and a remedy capable of reciprocal application.

Sources and Updates

The project’s detailed source-to-proposal treatment of politically sensitive investigations, source vetting, FISA accuracy, internal challenge functions, and competing official assessments is retained in the Durham Report / ARRP Crosswalk. The crosswalk treats the report as a source-development and remedy-stress record rather than an adjudicated finding.

Project Areas and Issues

A-01 — Department of Justice

Generalized Institutional Concern

The Department of Justice lacks sufficient structural independence, external oversight, and enforceable safeguards to prevent presidential use of its leadership, personnel, investigative authority, and prosecutorial discretion for personal protection, political retaliation, or partisan advantage.

Active Issues

- **DOJ-001 — Recent Presidential Personal Counsel in Senior DOJ Leadership**
- **DOJ-002 — White House Direction or Interference in Particular Federal Criminal Matters**
- **DOJ-003 — Politically Selective Enforcement, Charging, and Favoritism**
- **DOJ-004 — Protection of Career DOJ Personnel from Politically Motivated Removal or Reassignment**
- **DOJ-005 — Weak Enforcement and Internal Control of DOJ Recusal Duties**
- **DOJ-007 — Independent Investigation of Presidential and Senior Executive Misconduct**
- **DOJ-009 — Insufficient Professional-Qualification Requirements for Senior DOJ Leadership**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **DOJ-006** — Merged into DOJ-002 and DOJ-007.
- **DOJ-008** — Merged into DOJ-003.

Issue Boundaries

- **DOJ-002** owns preventive controls over case-specific White House and political contacts, including routing, logging, review, and preservation.
- **DOJ-003** owns politically selective charging and noncharging together with independent OIG anomaly review and congressional reporting.
- **DOJ-004** is paused pending merits adjudication of the Article II removal question presented by the Maurene Comey litigation.
- **DOJ-005** owns senior-official recusal administration and enforcement.
- **DOJ-007** owns independent investigation, evidence preservation, and congressional reporting when presidential or senior executive conflict makes ordinary DOJ accountability unreliable.
- **DOJ-009** owns baseline professional eligibility, good standing, disciplinary disclosure, and post-appointment discipline consequences for senior DOJ legal offices.
- **REG-002** owns case-specific executive influence over DOJ Antitrust and other noncriminal regulatory-enforcement matters; DOJ-002 and DOJ-003 remain limited to criminal investigation, prosecution, charging, and noncharging.

Notes

DOJ-001, DOJ-002, DOJ-003, DOJ-005, DOJ-007, and DOJ-009 are developed. DOJ-004 is substantively identified but intentionally held at Awaiting merits adjudication. DOJ-006 and DOJ-008 are retired as duplicative standalone issues, with their nonduplicative components preserved in the identified primary issues.

DOJ-001 — Recent Presidential Personal Counsel in Senior DOJ Leadership

Issue Snapshot

Problem: Recent presidential counsel can control DOJ.

Repair: Seven-year top-DOJ cooling-off rule.

Vehicle: 28 U.S.C. §§ 503–504a amendments (draft).

Institutional Anomaly

The appointment framework does not adequately protect the Department of Justice from control by a president’s recent personal counsel, especially where the prior representation involved criminal exposure or matters touching presidential power.

Manifestation of the Failure

Senior DOJ personal-counsel appointment

President Trump nominated Todd Blanche, described by the Associated Press as President Trump’s former defense attorney, for senior Department leadership; the Senate confirmed Blanche as Deputy Attorney General in March 2025. See Associated Press and Congress.gov PN12-5. As of the June 27, 2026 internal project review, DOJ’s own pages list Blanche as both Acting Attorney General and Deputy Attorney General, making the manifestation broader than the original Deputy Attorney General confirmation alone. The Guardian separately reported on June 8, 2026 that President Trump nominated Blanche to serve as Attorney General; that report is treated as a source lead pending verification against an official nomination record. See The Guardian.

Resulting Damage

The arrangement creates a structural conflict between public law-enforcement responsibility and a recent relationship of personal loyalty, confidential knowledge, and strategic alignment. It also undermines confidence that Department decisions affecting the president, his associates, or political opponents are institutionally independent.

Underlying Weakness

Existing ethics and recusal rules are primarily matter-specific and internally administered. They do not fully address department-wide authority, personnel influence, access to information, agenda control, or the legitimacy costs created by placing recent personal counsel at the head of federal law enforcement.

Proposal Survey

Existing federal models use targeted eligibility limits and cooling-off periods rather than broad personal-disqualification regimes. The Secretary of Defense statute bars appointment within seven years after active-duty commissioned service unless Congress grants a waiver. See 10 U.S.C. § 113. Federal post-employment restrictions separately regulate former officers’ later appearances and communications, showing Congress’s willingness to address relationship-based conflicts through time-limited rules. See 18 U.S.C. § 207.

DOJ’s own conflict rules also provide a narrower internal analogue, requiring disqualification from criminal investigations or prosecutions where a personal or political relationship exists unless participation is authorized. See 28 C.F.R. § 45.2. The executive-branch impartiality rule similarly treats recent attorney, consultant, contractor, officer, and employee relationships as covered relationships that can require nonparticipation in particular matters. See 5 C.F.R. § 2635.502. DOJ-001 builds from those models but applies them at the appointment-eligibility stage, where matter-specific screening is insufficient.

The internal project review did not identify a direct prior bill using the same personal-presidential-counsel eligibility rule. The closest statutory models are therefore structural analogues: the Secretary of Defense cooling-off qualification, Senate-confirmation nominee disclosure timing, Office of Government Ethics review authority, and existing DOJ and executive-branch impartiality rules.

A closer adjacent legislative analogue is the Protecting Our Democracy Act, H.R. 5314, 117th Congress. Title VI, the “Security from Political Interference in Justice Act of 2020,” would have required DOJ communications logs for covered communications involving contemplated or ongoing DOJ investigations or litigation and periodic disclosure to the DOJ Inspector General. Congress.gov records that H.R. 5314 passed the House 220-208, had 168 cosponsors, and was received in the Senate. This does not establish precedent for a personal-counsel eligibility rule, but it does show prior House-passed legislative interest in insulating DOJ from White House political interference.

Least-Complex Adequate Remedy

Congress should amend 28 U.S.C. §§ 503, 504, and 504a to make a person ineligible to be appointed or serve as Attorney General, Deputy Attorney General, or Associate Attorney General during the seven years after personally providing covered legal representation or advice to the sitting President. Covered representation should include private, personal, electoral, criminal-defense, civil-liability, impeachment, or comparable matters in which the President’s interests were distinct from, or could reasonably diverge from, the interests of the United States. Official legal service performed solely on behalf of the United States or the Executive Office of the President should be excluded. This mirrors Congress’s established use of a cooling-off qualification for the Secretary of Defense under 10 U.S.C. § 113, uses existing statutory hooks for the senior DOJ offices in the Attorney General succession line, and directly addresses the conflict without creating a new institution.

Repair and Prevention

Repair requires transparent disclosure, independent Office of Government Ethics review, enforceable screening, and verification that affected matters are insulated. Prevention requires rules addressing recent personal representation before appointment to the Attorney General, Deputy Attorney General, or Associate Attorney General offices. The internal project review added a narrow judicial-review path for the covered individual and people directly subject to DOJ action substantially involving the allegedly ineligible official, while preventing automatic invalidation of DOJ actions absent an independent remedial basis and particularized prejudice.

Proposed Legislation

- Seven-Year Cooling-Off Rule for Senior Justice Department Eligibility

Budgetary Impact Statement

Administrative workload is possible through nominee disclosure, OGE review, DOJ ethics consultation, Senate review, and occasional expedited judicial review; no new appropriation is specified and no dollar estimate is assigned.

Note: Preliminary ARRPP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 82 / 100 (Review Ready)

Adoption Score: 5 / 12 (Limited Adoption Basis)

Coalition Support Estimates:

Democratic 80%

Independent 60%

Republican 40%

Bipartisan viability 55%

Adoption Friction: 72 / 100 (High Resistance)

Required Electoral Environment: sixty-vote-senate

Development Priority: active

Internal Review Status: Internal project review complete; SCOTUS current-status update no score effect

Last Internal Review: SCOTUS current-status update

Scoring Standard: 2026-06-27.2; **Scoring Basis:** Current project standard

Next Review: Follow-up internal review on post-*Slaughter* enforcement design, *J.G.G.* contempt posture, official AG nomination record, and external review

Full Review History: DOJ-001 review history

Annotation

Basis and Evidence. Former-client duties continue after representation ends, but they generally operate through confidentiality and matter-specific conflict rules. Senior Department leadership exercises authority extending beyond any single matter through supervision, personnel, policy, information access, and enforcement priorities. The current internal project source base includes Congress.gov PN12-5 for Todd Blanche's Deputy Attorney General nomination and confirmation, Associated Press reporting describing Blanche as President Trump's former defense attorney, 28 U.S.C. §§ 503, 504, 504a, and 508 for the Attorney General, Deputy Attorney General, Associate Attorney General, and succession statutory hooks, 10 U.S.C. § 113 for the cooling-off analogue, 5 U.S.C. § 13103 for nominee disclosure timing, 5 U.S.C. § 13122 for OGE review authority, 28 C.F.R. § 45.2 and 5 C.F.R. § 2635.502 for conflict and impartiality analogues, ABA Model Rule 1.9 for former-client professional-responsibility duties, and H.R. 5314 as an adjacent prior-legislative model for DOJ political-interference controls.

Qualification. Prior representation does not create a perpetual duty to advance a former client's interests, and appointment of a former attorney is not automatically unlawful. The identified defect is the inadequacy of existing institutional safeguards, not a categorical assertion that current professional-responsibility law forbids the appointment.

Related case-specific limits. A June 2026 federal ruling rejected a defendant's request to disqualify Acting Attorney General Blanche and D.C. U.S. Attorney Jeanine Pirro from supervisory involvement in a prosecution connected to an alleged attack at the White House Correspondents' Association dinner. The ruling did not address Blanche's prior representation of President Trump and therefore does not independently establish DOJ-001's manifestation. It is retained only as evidence that matter-specific disqualification litigation may not resolve the broader structural appointment concern. See Associated Press.

Remedial Alternatives and Constraints. Disclosure, recusal, and screening alone are simpler but do not adequately address department-wide authority or institutional legitimacy. A broader prohibition covering any attorney who served in any legal capacity would be easier to state but constitutionally more vulnerable and unnecessarily overinclusive. The proposed rule therefore should be temporary, generally applicable, and limited to personal or politically interested representation. Congress's use of office-specific cooling-off qualifications supports the design, but it is a statutory analogue rather than controlling judicial precedent. Full proposed legislative language is maintained separately in the project's Legislative Drafting Proposals under DOJ-001.

Judicial Scrutiny. The strongest constitutional argument for DOJ-001 is that Congress created the senior DOJ offices by statute, already defines their appointment structure, and may attach narrow office-specific eligibility conditions without changing the Appointments Clause process. The bill preserves presidential nomination and Senate advice-and-consent, does not create tenure protection, does not restrict removal, and does not assign appointment power to Congress. See *Buckley v. Valeo* for the Appointments Clause baseline that officers exercising significant federal authority must be appointed through constitutionally prescribed methods. The strongest constitutional objection is that the Attorney General, Deputy Attorney General, and Associate Attorney General exercise core executive law-enforcement authority, and current Supreme Court doctrine is protective of presidential control over officers who exercise executive power. See *Myers v. United States*, *Seila Law LLC v. CFPB*, and *Trump v. United States*. The proposal's best durability strategy is to frame the rule as a prospective, neutral, conflict-based eligibility condition rather than as a removal limit, prosecution rule, or punishment of a named person.

Current Judicial Vulnerability. The Supreme Court has now decided *Trump v. Slaughter*, holding that the FTC's statutory for-cause removal protection is unconstitutional. The decision does not directly decide whether Congress may set prospective eligibility rules for DOJ offices, because DOJ-001 is not a removal-protection scheme and preserves presidential nomination, Senate confirmation, and at-will supervision. It does, however, heighten the need for follow-up internal review on DOJ-001's enforcement and officeholding-relief design, especially any remedy that could be characterized as judicial interference with executive-office control.

The project should also recheck the contempt posture in *J.G.G. v. Donald Trump*, D.C. Cir. No. 25-5124. The D.C. Circuit contempt ruling is not Supreme Court precedent, and the project has not verified a Supreme Court disposition of the contempt question itself. Later Supreme Court action could affect DOJ-001 in part by changing the practical importance of DOJ-controlled contempt prosecution, independent-prosecutor fallback design, or executive-compliance remedies. Until that posture is verified, J.G.G. is a material-reframing risk rather than a mootness finding.

Criminal-contempt and executive-compliance disputes also show why the relationship may matter beyond ordinary prosecution policy: DOJ leadership may need to identify responsible officials, preserve evidence, and decide whether to authorize proceedings involving a President whom a senior official recently represented. That is an enforcement-design consideration, not a separate manifestation of the appointment defect. The Supreme Court docket in *Trump v. J.G.G.*, No. 24A931 concerns the underlying emergency posture rather than verified review of the later contempt ruling.

Enforcement Design. The internal project review concluded that broad private, taxpayer, voter, or legislator standing would be weak and should not be the enforcement backbone. The bill now uses a narrower review channel for the covered individual and for people directly subject to DOJ action personally authorized, directed, supervised, or substantially participated in by the allegedly ineligible official. It also limits automatic invalidation of DOJ actions to reduce de facto-officer disruption and separation-of-powers risk.

Budgetary Impact. DOJ-001 specifies no appropriation and does not create a new office. The expected burden is administrative: nominee disclosure, OGE review, possible DOJ Designated Agency Ethics Official consultation, Senate Judiciary receipt and consideration, and occasional expedited litigation in the U.S. District Court for the District of Columbia if the eligibility rule is contested. No dollar estimate is assigned because no CBO, OMB, agency, legislative-counsel, historical appropriation, or audited program-cost source has been identified for this proposal.

Quality Score. The 82/100 score reflects a review-ready proposal with strong structure, source support, legal fit, remedy design, abuse resistance, drafting quality, cogency, and project integration. It remains below proposal-ready status because no external legal or legislative review has been incorporated, no proposal-specific polling has been found, no direct prior bill using the same personal-presidential-counsel eligibility rule has been identified, no official Attorney General nomination record has been verified, and post-*Slaughter* enforcement design and the *J.G.G.* contempt posture still require follow-up.

Adoption Score. The 5/12 score is limited because the current evidence supports the general public-trust concern but not the specific seven-year cooling-off mechanism.

Coalition Support Estimates. The coalition support estimates are provisional planning judgments, not polling evidence.

Adoption Friction. The 72/100 score is high because the proposal concerns senior DOJ eligibility, presidential appointment discretion, separation-of-powers doctrine, a live manifestation involving President Trump, likely stakeholder opposition, public-messaging risk, and probable litigation.

Required Electoral Environment. The required environment is *sixty-vote-senate* because the current vehicle is ordinary federal legislation likely subject to Senate cloture unless attached to another viable vehicle or paired with procedural reform.

Development Priority. The priority remains *active* because the proposal is coherent and useful, but should be staged with narrower disclosure, OGE-review, confirmation-process, or oversight variants.

Support and Adoption. The internal project review found public-opinion evidence supporting the general institutional concern but not the specific DOJ-001 mechanism. A January 2025 AP-NORC poll found low public confidence that DOJ and the FBI would act fairly and nonpartisan during President Trump's second term, including uncertainty among Republicans. That supports the salience of DOJ independence, but it does not measure support for a seven-year personal-counsel cooling-off rule. The adoption score therefore remains 5/12.

Publication Readiness. DOJ-001 is a strong developed draft, not yet a publication-ready proposal. Before public circulation, the project should obtain external legal or legislative review, verify any official Attorney General nomination record if one becomes available, reassess the enforcement design after *Trump v. Slaughter* and any further verified *J.G.G.* contempt review, and decide whether to add a

staged fallback vehicle focused on disclosure, OGE review, or Senate-confirmation procedure.

DOJ-002 — White House Direction or Interference in Particular Federal Criminal Matters

Issue Snapshot

Problem: Political pressure can steer specific criminal matters.

Repair: Require logging, review, and neutrality memoranda.

Vehicle: Justice Manual amendment (draft).

Institutional Anomaly

The Department of Justice lacks sufficiently enforceable front-end safeguards against White House or political-appointee direction, pressure, retaliation, or favoritism in particular federal criminal matters, including matters in which the President is not personally under investigation.

Manifestation of the Failure

New York Times reporter subpoenas

On July 10, 2026, federal agents reportedly served grand-jury subpoenas at the homes of four *New York Times* journalists after their reporting on security concerns involving the Qatari-provided aircraft placed into service as Air Force One. The subpoenas reportedly identify only an unspecified alleged violation of federal criminal law. The Associated Press also reported, based on an unnamed source familiar with the discussions, that FBI Director Kash Patel and other Justice Department officials met at the White House about the matter before the subpoenas issued. The episode falls within DOJ-002's covered categories of compulsory process, journalists, confidential-source activity, and possible White House–DOJ contact, but the present public record does not establish political direction, retaliatory motive, the suspected offense, or violation of DOJ's news-media rules. See PRESS-003's source-development record, the Associated Press, and Justice Manual § 9-13.400.

Minnesota grand-jury subpoenas

In June 2026, the United States District Court for the District of Minnesota quashed grand-jury subpoenas issued to the offices of Governor Tim Walz and other Minnesota officials. The court found that the evidence overwhelmingly showed an improper coercive, retaliatory, or harassing purpose tied to federal civil-immigration enforcement, while the government did not identify a plausible criminal-investigative justification. See the unsealed District of Minnesota order and *The Guardian*. The ruling demonstrates that judicial review can work, but only after coercive process has issued and affected institutions have incurred cost, disruption, and risk.

That episode therefore shows both sides of the institutional design problem: the back-end judicial safeguard functioned, while front-end DOJ safeguards may have failed. A successful challenge in an unusually well-documented case does not establish that all improper influence will be detected, challenged, or remedied, especially where targets lack resources, coercive acts evade precompliance review, or political pressure is less explicit.

Resulting Damage

Improper case-specific influence can burden protected activity, distort federalism, intimidate critics, favor allies, injure uncharged persons, waste investigative resources, and undermine confidence that criminal law is administered for lawful rather than personal or partisan purposes.

Underlying Weakness

Existing White House–DOJ contact restrictions and Public Integrity Section review procedures demonstrate that DOJ can front-load neutrality safeguards through internal rules. Their limits are incomplete coverage, uneven enforceability, dependence on self-reporting, and vulnerability to amendment, suspension, waiver, or noncompliance by the same leadership whose conduct the rules are intended to constrain.

Obstruction and related criminal statutes may reach some corrupt interference, but they do not create a complete White House–DOJ contact code. They require proof of particular elements and ordinarily operate only after misconduct has occurred. Moreover, *Trump v. United States* treated presidential communications with DOJ concerning investigation and prosecution as core official conduct protected by absolute criminal immunity. Preventive routing, logging, review, and preservation therefore remain necessary even where prosecution of the President is unavailable.

Judicial review remains indispensable but is principally reactive. It depends on reviewable process, a capable challenger, a suitable procedural vehicle, and timely adjudication. It ordinarily does not reveal who initiated the matter, create internal discipline, compensate for burdens already imposed, or prevent related investigative actions.

Proposal Survey

DOJ already uses internal contact and consultation models that can be extended before creating a new institution. Justice Manual provisions restrict White House contacts concerning pending or contemplated matters and route communications through designated channels. See Justice Manual, § 1-8.000. DOJ also requires Public Integrity Section consultation or approval for specified public-corruption matters involving federal officials. See Justice Manual, § 9-85.000.

An adjacent statutory model is the Protecting Our Democracy Act, H.R. 5314, 117th Congress. Title VI would have required DOJ communications logs for covered White House/DOJ communications involving contemplated or ongoing investigations or litigation and periodic disclosure to the DOJ Inspector General. That bill did not create DOJ-002's Public Integrity approval model, but it shows a prior House-passed effort to regulate White House/DOJ communications around investigative and litigation matters.

Statutory alternatives include broader criminal obstruction, civil-rights, and official-interference provisions, but those operate after misconduct and require offense-specific proof. DOJ-002 therefore adapts existing administrative review and contact-control models first, reserving codification for demonstrated evasion.

Least-Complex Adequate Remedy

Adopt and publish a Justice Manual provision requiring a Political Neutrality Memorandum and Public Integrity Section review before specified actions in politically sensitive criminal matters. The rule should include contact routing and logging, record preservation, emergency procedures, periodic review, notice of material amendment or suspension, prospective-only weakening, and referral of noncompliance to OPR or OIG.

This is less complex than creating a new independent institution and builds upon safeguards DOJ already administers. If repeated suspension, evasion, or noncompliance demonstrates that an internal rule is inadequate, Congress should codify the minimum procedures.

Repair and Prevention

DOJ should extend the existing Public Integrity review model to politically sensitive criminal matters involving:

- federal, state, Tribal, territorial, or local elected officials;
- candidates, campaigns, political parties, transitions, and inaugural committees;
- persons publicly identified by senior executive officials as political allies, opponents, or desired investigative targets;
- state and local governments and senior officials acting for them;
- journalists, news organizations, and confidential-source activity;
- nonprofit, advocacy, religious, academic, labor, civic, and membership organizations substantially engaged in protected expression or association; and
- persons or entities selected because of protected speech, protest, petitioning, political activity, or disagreement with federal policy.

Covered matters should require contemporaneous written criminal predication, disclosure and logging of White House and political-appointee contacts, designated routing points, career consultation before opening or materially advancing the matter, and prior Public Integrity approval before specified coercive or disposition-determinative actions. Emergency contacts should be documented promptly, records preserved, and unofficial campaign, party, personal-lawyer, or outside-political channels prohibited from directing DOJ action.

The rules should remain viewpoint-neutral and should not confer immunity from legitimate investigation.

Proposed Legislation

- Proposed Justice Manual § 9-85.115 — Politically Sensitive Criminal Matters

Adoption Viability Note

This proposal is not treated as realistically adoptable by a hostile or self-protective Attorney General. Its current vehicle is legally available because DOJ can amend the Justice Manual, but practical adoption likely requires a future reform-aligned Attorney General, leadership change, external mandate, statutory fallback, appropriations condition, court order, settlement, or comparable adoption pressure.

Relationship to Adjacent Proposals

DOJ-002 owns front-end safeguards against case-specific White House, political-appointee, or politically motivated influence in covered criminal matters.

DOJ-003 partly overlaps by creating back-end comparator monitoring capable of detecting politically selective charging, declination, dismissal, plea, or sentencing patterns after DOJ-002 safeguards fail or are bypassed. DOJ-003 does not replace DOJ-002 because it generally detects anomalies after investigative or charging burdens have already occurred.

DOJ-007 owns independent investigation, evidence preservation, and reporting to Congress when presidential or senior executive conflict makes ordinary DOJ accountability unreliable. Former candidate issue DOJ-006 is therefore merged into DOJ-002 and DOJ-007 rather than maintained separately.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 78 / 100 (Review Ready)

Adoption Score: 2 / 12 (Weak Adoption Basis)

Adoption Friction: 84 / 100 (Extreme Resistance)

Required Electoral Environment: current-law-available

Development Priority: active

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Internal Review Status: Internal project review complete; SCOTUS current-status update no score effect

Last Internal Review: SCOTUS current-status update

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current project standard

Next Review: Follow-up internal review or external-validation pass

Full Review History: DOJ-002 review history

Annotation

Covered influence channels. Case-specific influence may concern whether to investigate an opponent, protect an ally, issue compulsory process, narrow or dismiss charges, alter a plea or sentencing position, disclose confidential information, manipulate staffing or resources, or deploy criminal process to coerce state or local officials. These are coverage categories for the proposed safeguard, not separate documented manifestations.

Basis and Evidence. Existing Justice Manual provisions restrict White House contacts concerning pending or contemplated matters and require Public Integrity consultation or approval for specified investigations involving Members of Congress. Those models establish the administrative feasibility of front-loaded career review. The June 2026 Minnesota subpoena ruling supplies a representative example of judicial correction after coercive process had already issued.

Qualification. Courts remain a capable and indispensable safeguard. The Minnesota result weighs against wholesale institutional replacement and supports reinforcing existing review mechanisms. Internal rules, however, remain legally amendable by executive leadership and therefore depend partly on transparency, institutional resistance, professional enforcement, and political cost.

The record also does not support treating every politically sensitive personnel review as completed retaliation. In *Does 1–9 v. Department of Justice*, the district court dismissed disclosure and retaliation claims after jurisdictional discovery did not show imminent disclosure or adverse action; the decision did not determine whether a later concrete disclosure, reassignment, termination, or politically directed investigative step would be lawful.

Remedial Alternatives and Constraints. More durable alternatives include statutory contact restrictions, codified approval procedures, expedited judicial review, fee shifting for process quashed as retaliatory or issued for improper purpose, and expanded OIG jurisdiction. Those measures should remain fallbacks unless experience demonstrates that a published internal rule is inadequate.

Judicial Scrutiny. DOJ-002 is strongest as an internal Justice Manual rule because it preserves ordinary executive supervision, creates no new independent prosecutor, and does not ask courts to manage charging decisions directly. The principal legal risks are overbreadth, interference with legitimate prosecutorial discretion, grand-jury secrecy, executive privilege, classified or sensitive investigative information, and possible chilling of lawful investigations involving political actors or protected activity. The proposed text mitigates those risks by stating that it creates no immunity, uses internal review rather than judicial preclearance, preserves lawful secrecy and privilege limits, applies viewpoint-neutrally, and reserves disclosure to courts under seal when judicial process is sought.

Current Judicial Vulnerability. The internal project review did not identify a Supreme Court case that directly decides DOJ's authority to adopt an internal politically sensitive criminal-matter review rule. The Supreme Court's later decisions in *Trump v. Slaughter* and *Trump v. Cook* remain relevant background because they affect how broadly courts frame presidential supervision of executive officers. DOJ-002 is less exposed than a freestanding judicial-enforcement model because it remains internal, prospective, nonprivate, and focused on DOJ's own review procedures.

Codification Strategy. The current least-complex vehicle remains a Justice Manual amendment. Statutory codification should be treated as a staged fallback if DOJ leadership refuses adoption, suspends the provision, uses repeated waivers, fails to preserve records, or materially evades the review requirement. A statutory fallback should likely begin with logging, preservation, Inspector General notice, congressional notice, and appropriations or confirmation-process pressure before attempting broader judicially enforceable limits on prosecutorial decision-making.

Publication Readiness. DOJ-002 is internally review-ready but not publication-ready. Before external publication as a mature recommendation, the project should obtain practitioner or legal review, validate whether Public Integrity is the right reviewer for all covered categories, complete final docket verification for the Minnesota matter, and draft a narrower statutory fallback for use if internal policy is refused, suspended, or evaded.

Budgetary Impact. DOJ-002 specifies no appropriation and creates no new office. The expected burden is administrative: covered-matter screening, Political Neutrality Memoranda, Public Integrity consultation or approval, contact logging, record preservation, periodic review, and possible OPR or OIG referral. No dollar estimate is assigned because no CBO, OMB, agency, legislative-counsel, historical appropriation, or audited program-cost source has been identified for this proposed Justice Manual provision.

Quality Score. The 78/100 score reflects a review-ready but not publication-ready proposal. The internal project review confirmed the page and proposed Justice Manual text remain aligned, refreshed current-source and pending-case posture, strengthened source tracking, and clarified implementation and judicial-risk limits. The score remains capped because no external expert or practitioner review has been incorporated, proposal-specific polling or stakeholder support has not been located, publication-level docket-service verification remains incomplete, and statutory fallback language remains conceptual rather than drafted.

Adoption Score. The 2/12 score is weak because the proposal has a formally available current-law vehicle through DOJ's existing authority to amend the Justice Manual, but adoption depends on a reform-aligned Attorney General voluntarily accepting limits on White House/DOJ contact flexibility and politically sensitive criminal-process control. The internal project review gives limited additional credit for a clearer staged fallback strategy, but adoption potential remains near zero absent leadership change, external mandate, statutory fallback, appropriations condition, court order, settlement, confirmation pressure, or comparable adoption pressure.

Adoption Friction. The 84/100 score is extreme because the proposal regulates politically salient criminal-process decisions, White House/DOJ contacts, immigration-adjacent retaliation risk, speech and association burdens, state and local officials, journalism, advocacy organizations, prosecutorial discretion, and institutional self-limitation by the very leadership class whose case-specific flexibility would be constrained.

Required Electoral Environment. The required environment remains **current - law - available** because the core vehicle is a Justice Manual amendment that DOJ leadership could adopt under existing administrative authority. Under rubric 2026-06-27.2, however, this means legally available rather than practically likely: Pathway Viability is **conditional-current** because the proposal requires a reform-aligned Attorney General or comparable external adoption pressure. Codification remains a fallback if internal policy can be suspended, waived, ignored, or refused by hostile leadership.

Development Priority. The priority remains **active** because the Minnesota order provides a concrete current manifestation, the remedy is less complex than creating a new institution, and the proposal is now mature enough for internal project review focused on docket posture, external review, adoption evidence, and codification-trigger drafting.

DOJ-003 — Politically Selective Enforcement, Charging, and Favoritism

Issue Snapshot

Problem: Selective prosecution patterns remain invisible.

Repair: Add BJS statistics and OIG anomaly notice.

Vehicle: Amend DOJ reporting and OIG statutes (draft).

Institutional Anomaly

Federal prosecutorial discretion lacks sufficiently comprehensive, independent, and reviewable safeguards against materially different investigative, charging, declination, dismissal, plea, or sentencing treatment based on political affiliation, viewpoint, loyalty, relationship, retaliation, or partisan advantage.

Manifestation of the Failure

James Comey charging-decision review

The 2026 federal case against former FBI Director James Comey illustrates the type of charging decision that warrants independent comparator review. DOJ charged Comey under federal threat statutes based in part on a May 2025 social-media post showing seashells arranged as “86 47.” The indictment charged violations of 18 U.S.C. §§ 871(a) and 875(c). The phrase is ambiguous and used in nonviolent senses, while Comey has long been a prominent critic of President Trump. Reporting states that Acting Attorney General Todd Blanche said the case rests on evidence beyond the post, and later reporting states that the lead prosecutor withdrew while the case remained pending for an October 21, 2026 trial; the notice of substitution confirms the government-counsel change. See *The Guardian*, *Associated Press*, and *The Guardian*. The institutional question is therefore not whether the charge is conclusively illegitimate, but whether materially comparable expression is ordinarily investigated and charged in the same manner, whether political demands influenced the decision, and whether the treatment departed from ordinary practice.

Congressional unlawful-orders video investigation

A separate 2025–2026 episode involved six members of Congress who released a video stating that military personnel must refuse unlawful orders. Reporting states that federal prosecutors investigated the lawmakers and sought indictments concerning the video, but a District of Columbia grand jury declined to indict them. See *Time* and *The Guardian*. The statement reflected the established distinction between lawful and unlawful military orders, although its generality could legitimately be criticized as imprecise. The episode is relevant because criminal-process burdens may arise through investigation and attempted charging even when no indictment ultimately issues.

Broadview Six grand-jury misconduct review

The Broadview Six anti-ICE protest prosecution is a process analogue for selective-enforcement risk because alleged political salience, aggressive charging, and grand-jury presentation irregularities converged in a single federal matter. AP reported that DOJ began reviewing more than 1,000 Illinois grand-jury presentations after misconduct revelations in the case, including a prosecutor meeting with a grand juror outside proceedings and dissenting grand jurors being dismissed from participation. The episode does not prove a department-wide selective-enforcement pattern by itself, but it shows why DOJ-003’s comparator and anomaly-review architecture should include investigative and charging steps that occur before or around indictment, not only final convictions or dispositions. See *Associated Press*, *Sweeping review of grand jury presentations underway in Chicago following misconduct revelations*.

Southern Poverty Law Center fraud prosecution

The federal prosecution of the Southern Poverty Law Center is a civil-society analogue to the voter-registration-organization search captured in ELEC-014, but DOJ-003 is the better primary home because the mechanism is criminal charging rather than election-specific investigative process. *Associated Press* reporting states that the SPLC was indicted on federal fraud, bank-fraud, and money-laundering-conspiracy charges tied to payments to informants inside extremist organizations; DOJ alleges the organization misled donors, while the SPLC denies wrongdoing, says the informant program produced intelligence shared with law enforcement, and describes the prosecution as vindictive. A later AP report states that the SPLC pleaded not guilty to a superseding indictment and that trial is scheduled for October. See AP, *What to know about the Southern Poverty Law Center*, and AP, *Southern Poverty Law Center pleads not guilty in federal fraud case*.

The institutional point is not that the SPLC prosecution is adjudicated to be invalid. The point is that a criminal case against a prominent civil-rights and advocacy organization raises comparator questions DOJ-003 is designed to surface: whether similarly situated nonprofits or investigative organizations are treated alike, whether political hostility or public accusations preceded the charging decision, whether ordinary fraud theories are being applied consistently, and whether lawful civil-society advocacy or watchdog activity is chilled by uneven criminal-process burdens.

Politically directed dismissal and investigation

Two 2025 decisions illustrate that selective-treatment risk can involve leniency as well as scrutiny. Acting Deputy Attorney General Emil Bove directed prosecutors to dismiss the prosecution of New York City Mayor Eric Adams without assessing the case's evidence or legal theory, stating that the prosecution restricted Adams's ability to assist federal immigration and public-safety policy; Associated Press reporting documented the ensuing dispute and prosecutor resignations. Separately, an April 2025 presidential memorandum directed the Attorney General to investigate alleged unlawful contributions through online fundraising platforms and expressly foregrounded ActBlue, an organization aligned with Democratic campaigns; Associated Press reporting described the direction and relevant comparison questions. These records do not establish that the Adams charges were sound or that the ActBlue allegations were false. They show why DOJ-003 must capture political contacts, comparator treatment, dismissals, and executive direction—not only filed charges.

Resulting Damage

Politically selective enforcement destroys equality before the law, converts legitimate discretion into a mechanism of reward or punishment, chills protected activity, distorts elections and public debate, and permits sustained favoritism or retaliation to remain concealed behind case-specific explanations.

Underlying Weakness

Prosecutorial discretion is indispensable and courts properly hesitate to supervise ordinary charging decisions. The same discretion, secrecy, and factual variability make political misuse unusually difficult to prove. No two cases are identical; differences in evidence, culpability, cooperation, history, venue, resources, timing, and lawful priorities may legitimately produce different outcomes.

The defect therefore cannot be completely prevented without risking paralysis of legitimate enforcement or creating a second prosecutorial hierarchy. The practical institutional objective is corrigibility: preserve prosecutorial authority while creating the capacity to detect, document, investigate, report, and correct sustained unexplained disparities.

Proposal Survey

Existing law provides narrow case-level remedies rather than system-level detection. Selective-prosecution doctrine permits constitutional challenges but imposes demanding comparator and intent requirements that individual defendants rarely can satisfy. See *United States v. Armstrong*, 517 U.S. 456 (1996).

Oversight models already exist inside DOJ. The Inspector General Act authorizes Inspectors General to conduct audits and investigations and to report serious problems to agency heads and Congress. See 5 U.S.C. chapter 4. DOJ's OIG describes itself as an independent DOJ entity that detects and deters waste, fraud, abuse, and misconduct and reports to the Attorney General and Congress. See DOJ OIG. DOJ's OPR separately states that it has jurisdiction over professional-misconduct allegations involving Department attorneys' exercise of authority to investigate, litigate, or provide legal advice, and that OIG ordinarily refers such allegations to OPR. See DOJ OPR. DOJ-003 therefore borrows the audit-and-reporting model and expressly addresses OIG/OPR coordination because existing structures do not provide a comprehensive charging-comparator dataset.

Congress has also mandated DOJ statistical-reporting systems for sensitive criminal-justice problems. The Bureau of Justice Statistics is authorized to collect, analyze, publish, and disseminate justice statistics, including comprehensive federal justice transaction statistics. See 34 U.S.C. § 10132. PREA requires annual BJS statistical review and analysis of prison rape with methodology and confidentiality safeguards. See 34 U.S.C. § 30303. The Death in Custody Reporting Act requires custody-death data collection and Attorney General reporting. See 34 U.S.C. § 60105. Federal crime-data authority also includes Attorney General collection, classification, and exchange of criminal-identification and crime records. See 28 U.S.C. § 534. DOJ-003 is therefore novel in subject matter, not in congressional method.

The internal project review public-source review did not identify a direct prior federal bill creating a DOJ-wide charging-comparator monitoring system. Adjacent models exist, however. The House-passed Protecting Our Democracy Act included DOJ-related reporting and inspector-general notice provisions for covered White House-DOJ communications, which supports the general oversight architecture but is not a direct analogue for universal charging-data review. DOJ-003 is therefore structured as a hybrid amendment: BJS owns the statistical architecture under existing DOJ statistical-reporting law, while DOJ OIG owns anomaly review, source-file audit, protected congressional notice, and interference reporting.

Least-Complex Adequate Remedy

Enact the Prosecutorial Neutrality Monitoring and Congressional Oversight Act as a hybrid amendment to existing DOJ statistical-reporting and inspector-general authority. The Act should:

1. amend BJS authority to require standardized federal charging and disposition transaction statistics;
2. require automated data extraction where practicable and targeted manual justification where analytically necessary;
3. preserve earlier proposed and authorized stages for OIG audit where needed;
4. assign source-file audits, contextual anomaly review, and protected congressional notice to DOJ OIG;
5. create graduated internal-review, reportable, and urgent anomaly thresholds;

6. require contextual human review and external methodological validation;
7. limit political-characteristic data to public, case-relevant, and analytically necessary information;
8. require random source-file audits and penalties for concealment or falsification;
9. require bipartisan confidential congressional notice of qualifying anomalies; and
10. expressly prohibit BJS, OIG, GAO, or Congress from directing an individual investigation, charge, plea, dismissal, or sentencing position.

The proposal will not necessarily prevent the first abusive decision. Its purpose is to prevent selective enforcement from remaining statistically invisible, institutionally unreviewable, or capable of becoming entrenched without congressional notice.

Repair and Prevention

BJS should create a universal federal charging-and-disposition transaction record and provide DOJ OIG access for source-file audit and contextual anomaly review. Monitoring should include filed charges, declined charges, dismissals, reductions, superseding decisions, plea agreements, deferred- and non-prosecution agreements, material sentencing positions, policy departures, and final case dispositions.

The system should distinguish proposed, authorized, grand-jury-presented, and final operative decisions. Routine data should be extracted automatically from existing case-management systems. Manual explanation should be required where necessary to record evidence strength, aggravating and mitigating factors, cooperation, policy departures, political contacts, no-bills or failed indictment efforts, and other legitimate comparators.

BJS should own data standards, statistical architecture, and public aggregate reporting. OIG should identify anomalies through transparent, validated methodology; conduct human contextual review; audit source files randomly; investigate materially unexplained political disparities; and report threshold-specific anomalies confidentially to the chairs and ranking minority members of the House and Senate Judiciary Committees. Confidential reports should provide enough identifying or relationship information for Congress to understand the politically material actor, comparator group, treatment disparity, and oversight significance, while allowing minimum-necessary redaction, anonymization, classification, delay, or secure review where required to protect lawful secrecy and safety interests. An anomaly must remain an oversight trigger, not proof of illegality or misconduct.

Proposed Legislation

- Prosecutorial Neutrality Monitoring and Congressional Oversight Act

Budgetary Impact Statement

The draft authorizes \$30,000,000 per year for five fiscal years. This is a proposed authorization, not a cost estimate. PREA's BJS data-and-research authorization was \$15,000,000 per year for fiscal years 2004 through 2010; DOJ-003 uses \$30,000,000 as a conservative modern starting point for a more complex DOJ-wide charging-data, privacy, validation, OIG, and GAO-review system.

Note: Preliminary ARRPP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 82 / 100 (Review Ready)

Adoption Score: 3 / 12 (Weak Adoption Basis)

Adoption Friction: 78 / 100 (High Resistance)

Required Electoral Environment: sixty-vote-senate

Development Priority: active

External Review Status: not-reviewed

—

Internal Review Status: Internal revision review complete; SPLC manifestation source-development update no score effect

Last Internal Review: SPLC manifestation source-development update

Scoring Standard: 2026-06-27.2; **Scoring Basis:** Current project standard

Next Review: Follow-up internal review / external validation

Full Review History: DOJ-003 review history

Annotation

Selective-treatment channels. Selective treatment can operate through unusually aggressive investigation or charging of opponents, unusually favorable declinations or resolutions for allies, strategic delay, narrow investigative scope, favorable plea terms, dismissal, reduced sentencing positions, or resource allocation that systematically burdens one political class while protecting another. These are analytical coverage categories rather than separate manifestations.

Comparator-data rationale. The cited examples are not treated as conclusive proof of selective prosecution. Each instead demonstrates why department-wide comparator data, political-contact records, and independent anomaly review are necessary. Relevant questions include whether similarly situated speakers, defendants, or organizations were treated similarly, whether public political demands preceded enforcement, whether career officials objected, and whether the charging theory departed materially from ordinary practice.

Grand-jury no-bills and failed indictment efforts should be part of that comparator record. A no-bill is not proof of malfeasance because grand juries may decline charges for ordinary evidentiary, venue, witness, statute-of-limitations, legal-instruction, or prudential reasons. But repeated no-bills, failed resubmissions, judicial findings of grand-jury irregularity, or case abandonments after politically salient charging efforts may help identify matters where prosecutors or leadership pressed weak, selective, retaliatory, or otherwise abnormal theories. DOJ-003 should therefore track no-bill rates and failed-indictment patterns alongside comparable declinations, charge authorizations, dismissals, career-official objections, political-contact records, and later court rulings.

Informal signals and invisible discretion. Direct White House instructions may never be documented. Unequal outcomes may instead emerge from Attorney General priorities, political-appointee supervision, informal institutional signals, resource allocation, repeated discretionary choices, or career officials anticipating leadership preferences. Individual defendants generally cannot see the broader universe of comparable matters needed to identify a pattern.

Basis and Evidence. Selective-prosecution doctrine and the presumption of prosecutorial regularity make individual judicial challenges difficult. Centralized data analysis can reveal repeated severity or leniency patterns that no individual defendant or district can observe. The model preserves executive charging authority while strengthening Congress's ability to perform systemic oversight. The Comey case, the unsuccessful effort to indict six members of Congress, and the SPLC fraud prosecution are included as contemporary comparator-trigger examples, not adjudicated findings of political misuse.

Qualification. Statistical disparity is not self-proving. Reliable analysis must account for offense conduct, admissible evidence, culpability, history, cooperation, obstruction, harm, venue, resources, legal changes, sample size, and lawful enforcement priorities. Political data must not become a registry of private beliefs; collection should be limited to public and case-relevant facts. Pending or declined prosecutions must be described according to their actual procedural posture and with the presumption of innocence intact. Public reporting should remain aggregate and privacy-protective, but confidential congressional reporting must not be anonymized in a way that prevents Congress from understanding a material political actor, relationship, comparator group, treatment disparity, or oversight need.

Remedial Alternatives and Constraints. Preapproval of every charging decision would be more preventive but could impede legitimate enforcement and create constitutional tension. Complaint-only OIG review would be simpler but would miss invisible patterns. A wholly freestanding monitoring office would be less anchored in existing law. Hybrid BJS statistics plus OIG anomaly review is more administratively demanding than ordinary reporting, but it is the least-complex mechanism capable of identifying systemic selectivity while leaving individual prosecutorial control in DOJ. DOJ-002 supplies front-end review for politically sensitive matters; DOJ-003 supplies universal back-end detection and correction. Former candidate issue DOJ-008 is merged here because external review is part of the same defect and remedy architecture.

Budgetary Impact. The proposal now includes an authorization of \$30,000,000 per year for five fiscal years. PREA provides a historical statutory analogue because Congress authorized \$15,000,000 per year for fiscal years 2004 through 2010 for BJS prison-rape statistics, data, and research. DOJ-003's proposed authorization is higher because it would require secure DOJ-wide charging-data infrastructure, automated extraction, statistical and legal staff, privacy controls, source-file audits, GAO methodology review, and confidential congressional reporting. The figure remains a proposal-design authorization, not an official cost estimate.

Quality Score. The internal revision review score is 82/100, **Review Ready**. Component scores: Structural 8/8; Evidence 11/12; Legal Fit 9/10; Prior-Proposal Grounding 7/8; Remedy Design 11/12; Implementation Design 7/8; Abuse Resistance 8/8; Drafting Quality 8/8; Cogency 6/6; Adoption Path 3/12; Project Integration 4/4; External Review 0/4; Penalties 0. The existing-law redraft increased the score by one point because it anchored the proposal in BJS statutory authority and enacted statistical-reporting/budget analogues. The later congressional-reporting anonymization guardrail strengthened oversight anti-evasion but did not change the score because the affected components were already at or near full credit and broader external-review/legal-fit issues remain unresolved. The proposal is strong enough for knowledgeable external critique, but it is not publication-ready because it still lacks qualified external review, proposal-specific adoption evidence, a direct charging-comparator analogue, and an official fiscal score.

Adoption Score. The 3/12 score is weak because DOJ-003 identifies the basic federal legislative vehicle, staged pathway, and general cross-partisan rule-of-law value proposition, but lacks proposal-specific polling, sponsor or validator mapping, direct bipartisan legislative precedent, public-support evidence for the actual mechanism, and a mature objection-handling strategy.

External Review Status. No qualified external review has been incorporated. The next improvement path should seek review by a former prosecutor, defender, DOJ OIG or OPR practitioner, privacy expert, statistician, legislative counsel, or public-law scholar.

Adoption Friction. The preliminary friction score is high because the proposal would require statutory monitoring of federal prosecutorial decisions, new OIG infrastructure, politically sensitive comparator analysis, confidential congressional reporting, privacy safeguards, and likely opposition from actors concerned about prosecutorial independence, separation of powers, law-enforcement secrecy, or partisan misuse of anomaly reports.

Required Electoral Environment. DOJ-003 likely requires ordinary federal legislation capable of surviving Senate procedure, so the preliminary required electoral environment is **sixty-vote-senate**. The most viable path is staged: first develop oversight, source verification, and external-methodology validation; then consider narrower pilot, reporting, appropriation-condition, or inspector-general-capacity vehicles before attempting the full statutory monitoring architecture.

Development Priority. The priority is **active** because the issue is developed, institutionally distinct from DOJ-002, and tied to concrete contemporary comparator-trigger examples. Further development should target source verification, existing-law fit, prior-proposal survey, adoption evidence, privacy safeguards, OIG/OPR jurisdiction fit, and implementation burden.

Judicial Scrutiny and Recent Cases. Recent Supreme Court removal-power decisions, including *Trump v. Slaughter* and *Trump v. Cook*, do not directly decide DOJ-003 because this proposal does not insulate an officer from presidential removal or authorize courts to control charging decisions. They remain relevant as background risk because DOJ-003 would assign mandatory reporting and review duties inside DOJ. The current drafting preserves executive charging control, avoids private enforcement, uses existing BJS and OIG authority, frames anomaly notices as oversight triggers rather than adjudicative findings, and includes staged validation before formal anomaly reporting.

DOJ-004 — Protection of Career DOJ Personnel from Politically Motivated Removal or Reassignment

Issue Snapshot

Problem: Career DOJ protections face Article II uncertainty.

Repair: Await merits ruling before final remedy.

Vehicle: Pending judicial clarification.

Institutional Anomaly

Career prosecutors, investigators, and legal officials may be removed, reassigned, stripped of responsibility, investigated, or professionally disadvantaged for resisting improper political influence even when existing civil-service and whistleblower protections nominally apply.

Manifestation of the Failure

Maurene Comey termination litigation

The July 2025 termination of career SDNY prosecutor Maurene Comey presents a live test of this vulnerability. According to reporting on her complaint, DOJ terminated her without identifying misconduct or inadequate performance and cited Article II as the stated authority. Comey alleges that the action was based on her familial association with former FBI Director James Comey or perceived political views. DOJ disputes her claims. See Associated Press. In April 2026, the district court permitted the constitutional challenge to proceed in federal court rather than requiring exclusive administrative channeling; the merits remain unresolved. See Associated Press.

Resulting Damage

Unexplained or politically perceived removals can chill candid legal advice, encourage anticipatory compliance, permit leadership to replace resistant personnel until it obtains a desired case outcome, and weaken confidence that prosecutorial decisions reflect law and evidence rather than personal loyalty.

Underlying Weakness

Existing protections under Title 5, the Civil Service Reform Act, whistleblower statutes, OSC and MSPB procedures, FBI-specific protections, OIG, and OPR may be inadequate if removal can be justified as an incident of presidential Article II authority or if review occurs only after the affected matter has been irreversibly altered.

The current litigation may determine whether the principal defect is:

1. insufficient statutory coverage;
2. inadequate enforcement and delay;
3. lack of an automatic interim remedy; or
4. a constitutional limitation on Congress's power to protect career prosecutorial personnel.

Proposal Survey

Existing personnel-protection models include the Civil Service Reform Act, Office of Special Counsel complaint channels, Merit Systems Protection Board review, and whistleblower protections. See 5 U.S.C. § 2302 and 5 U.S.C. §§ 1211-1215. Those models assume that statutory merit-system protections meaningfully constrain agency action.

DOJ-004 remains different because the live issue is constitutional: whether Article II permits displacement of those protections for career federal prosecutors. Until that question is adjudicated, the relevant proposal survey is necessarily provisional. Possible models include automatic interim stays, expedited federal-court review, written-reason requirements, and record-preservation duties.

Least-Complex Adequate Remedy

No final remedy is selected at this stage. The least-complex adequate remedy depends materially on whether the courts hold that existing statutory protections constrain Article II removal authority over career federal prosecutors.

Repair and Prevention

Substantive development is intentionally paused pending merits adjudication. Potential safeguards include automatic temporary stays, expedited judicial review, contemporaneous written reasons, identification of the directing official, immediate preservation of political-contact and personnel records, interim pay and status protection, and rebuttable presumptions arising from unexplained or expressly constitutional removals.

Budgetary Impact Statement

Not estimated pending proposal development.

Note: Preliminary ARRPP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Not Scored)

Adoption Friction: N/A

Required Electoral Environment: N/A

Development Priority: N/A

Internal Review Status: Pending judicial or controlling external finding; no proposal-quality score assigned

Last Internal Review: Internal project review predicate check

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current unscored status

Next Review: Reassess predicate

Full Review History: DOJ-004 review history

Annotation

Article II removal predicate. The Maurene Comey episode raises a threshold question that may determine the appropriate remedy: whether Article II permits the executive branch to remove a career federal prosecutor notwithstanding statutory merit-system protections, and if so, to what extent. This is a legal qualification arising from the cited manifestation, not a separate manifestation.

Basis and Evidence. The litigation concerns an asserted Article II basis for terminating a career federal prosecutor outside ordinary documented cause procedures. The district court’s April 2026 ruling addressed forum and channeling, not ultimate legality.

Qualification. Retaliatory motive, the scope of presidential removal authority, and the validity of Comey’s claims have not been finally adjudicated. The case should not be treated as proof that every removal of a career prosecutor is unlawful or politically motivated.

Remedial Alternatives and Constraints. Expanding Title 5 protections may be sufficient if Article II does not displace them. If the courts recognize broader presidential removal authority, a statutory remedy may require narrower procedural protections, alternative institutional safeguards, or constitutional treatment.

DOJ-005 — Weak Enforcement and Internal Control of DOJ Recusal Duties

Issue Snapshot

Problem: DOJ recusal enforcement remains internally controlled.

Repair: Require independent senior-official recusal review.

Vehicle: Amendment to DOJ disqualification authority (draft).

Institutional Anomaly

Federal law already requires disqualification in specified DOJ conflicts, but disclosure, interpretation, waiver, succession, and enforcement remain substantially controlled within the same hierarchy affected by the conflict. The system is least reliable when the recusal question reaches the Attorney General, Acting Attorney General, Deputy Attorney General, or another official controlling a nationally significant matter.

Manifestation of the Failure

Matthew Whitaker and the Special Counsel investigation

After becoming Acting Attorney General in 2018, Matthew Whitaker assumed supervision of the Special Counsel investigation despite prior public criticism of the investigation and statements concerning its scope. Reporting at the time stated that at least one DOJ ethics official recommended recusal, but senior DOJ officials concluded recusal was not legally required and Whitaker retained supervision. See Axios, Dec. 20, 2018. No later finding established that Whitaker improperly interfered with the investigation. The episode nevertheless demonstrates that a consequential recusal dispute could remain advisory, internally reversible, and unavailable for timely independent adjudication.

Jeff Sessions and pressure to reverse recusal

Attorney General Jeff Sessions recused from matters concerning the 2016 presidential campaign after receiving DOJ ethics advice. President Trump repeatedly pressed Sessions to reverse the recusal and publicly criticized him for failing to protect the President. The Mueller Report described evidence and assessed possible inferences concerning whether those actions were connected to control of the investigation, but that prosecutorial assessment should not be treated as an adjudicated finding. Sessions did not reverse the recusal. See the DOJ-hosted Mueller Report, Volume II. The episode demonstrates the need for anti-retaliation and anti-evasion protection even when the initial recusal decision is sound.

Together, the episodes reveal complementary defects: a recused official may face pressure or removal, while the successor's own conflict may remain subject only to internal, nonbinding review.

Resulting Damage

Weak enforcement allows conflicted officials to retain direct or indirect control over investigations, appointments, staffing, jurisdiction, resources, charging, appeals, and disclosure. It also permits recusal to be narrowed, waived, or terminated without a durable record and may deter ethics officials from giving candid advice.

Underlying Weakness

The defect is not the absence of recusal law. Existing authorities include:

- 18 U.S.C. § 208 and 5 C.F.R. § 2635.402 for financial conflicts;
- 28 U.S.C. § 528 and 28 C.F.R. § 45.2 for DOJ personal, financial, political, and appearance conflicts in criminal investigations and prosecutions; and
- 5 C.F.R. § 2635.502 for impartiality concerns involving covered relationships.

The principal weaknesses are self-reporting, narrow definitions, internal supervisory control, discretionary authorization to continue participation, limited transparency, no generally enforceable private right, and inadequate safeguards against indirect supervision after recusal.

The analysis should distinguish:

1. duties that already exist but are weakly enforced;
2. conflicts the existing rules cover inadequately; and
3. conflicts the rules do not cover.

Proposal Survey

Federal conflict law already includes both statutory and regulatory recusal models. Section 208 bars executive officials from participating in particular matters affecting specified financial interests. See 18 U.S.C. § 208. DOJ-specific rules require disqualification in criminal investigations or prosecutions where personal or political relationships create conflicts or appearances of conflict. See 28 U.S.C. § 528 and 28 C.F.R. § 45.2.

Other models rely on disclosure, waiver, and internal ethics advice. DOJ-005 treats those models as insufficient for the Attorney General and other senior officials because the conflict-review chain may itself be affected. The proposal therefore strengthens existing recusal duties rather than inventing a new substantive ethics code.

The internal project review confirms that the least-complex vehicle is an amendment to 28 U.S.C. § 528, which already directs the Attorney General to promulgate DOJ disqualification rules. The linked draft now adds senior-official disclosure, independent review, temporary transfer, congressional notice, anti-evasion requirements, and conforming regulatory instructions to that statutory hook rather than maintaining a wholly freestanding regime.

The internal project review identified no direct prior bill creating a senior DOJ recusal-review panel. The closest prior-proposal analogue is the bipartisan Special Counsel Independence and Integrity Act, S. 2644, 115th Congress, which protected special-counsel removal and expressly accounted for Attorney General recusal by assigning authority to the most senior Senate-confirmed DOJ official not recused from the matter. That bill does not solve DOJ-005's review problem, but it supports the narrower principle that Congress can draft DOJ accountability mechanisms around recusal status, successor authority, written reasons, preservation, and expedited review.

Functional analogues include OGE's executive-branch ethics-program role under 5 U.S.C. § 13122, DOJ OIG's independent oversight function, and DOJ OPR's professional-misconduct jurisdiction over Department attorneys. Those analogues support the proposed division of labor but do not eliminate the need for legislative-counsel review of panel composition and authority.

Least-Complex Adequate Remedy

Strengthen enforcement of existing DOJ recusal duties by amending the existing statutory disqualification authority rather than creating a wholly new substantive ethics code. Congress should require:

1. mandatory written conflict disclosures and determinations;
2. independent review of recusal, nonrecusal, waiver, partial-recusal, and recusal-termination decisions involving specified senior officials;
3. temporary transfer of authority while a substantial conflict is reviewed;
4. identification of the lawful successor decisionmaker;
5. redacted public explanation and confidential congressional notice where lawful;
6. OIG or OPR referral for concealment or participation contrary to a binding determination;
7. meaningful discipline and corrective action; and
8. anti-evasion rules prohibiting indirect participation.

Broader substantive expansion should remain a fallback where significant political or institutional conflicts fall outside existing definitions.

Repair and Prevention

Senior-official recusal decisions should require contemporaneous written disclosure and an independent determination outside the affected supervisory chain. A recused official should be barred from indirect supervision, staffing, funding control, outcome-oriented communication, selective briefing, and unilateral withdrawal from recusal.

The reviewing body should decide only whether an official may participate. It should not supervise investigative merits or direct charging outcomes.

Proposed Legislation

- Senior DOJ Recusal Review and Transparency Act

Budgetary Impact Statement

Administrative workload is likely, including ethics review, written determinations, reporting, and OIG/OPR referrals; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 76 / 100 (Review Ready)
Adoption Score: 3 / 12 (Limited Adoption Basis)
Adoption Friction: 68 / 100 (High Resistance)
Required Electoral Environment: sixty-vote-senate
Development Priority: active
External Review Status: not-reviewed
Coalition Support Estimates:
Democratic 72%
Independent 58%
Republican 22%
Bipartisan viability 45%

Internal Review Status: advanced readiness review complete; external validation pending
Last Internal Review: advanced readiness review
Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current project standard
Next Review: Follow-up internal review / external validation
Full Review History: DOJ-005 review history

Annotation

Basis and Evidence. Section 528 already directs the Attorney General to promulgate disqualification rules for personal, financial, or political conflicts or appearances of conflict. Section 45.2 supplies mandatory language but leaves disclosure, evaluation, and authorization within DOJ management. The Whitaker and Sessions episodes show that internal advice may be nonbinding and that a valid recusal may be subjected to presidential pressure.

Qualification. Neither episode establishes that every disagreement over recusal is improper or that an official who declines recusal necessarily acts corruptly. Overbroad recusal can disrupt lawful presidential supervision, enable strategic disqualification, and diffuse accountability.

Remedial Alternatives and Constraints. A permanent external ethics tribunal would provide stronger insulation but add complexity and potentially raise Article II concerns. The narrower remedy makes existing duties independently reviewable for specified senior officials while preserving executive control over policy and case merits.

Quality Score. The proposal scores 76 / 100 after the internal project review because it now has an existing-law amendment vehicle, a close prior-proposal analogue in special-counsel removal legislation, functional analogues in OGE/OIG/OPR oversight roles, clearer source support for the manifestations, and a coherent limited panel function. It remains short of publication-ready status because no external reviewer has validated the draft, no direct recusal-panel prior bill has been found, and the internal project review must still test panel composition, congressional notice, privileged-information handling, OGE voting status, and post-removal-power doctrine.

Adoption Score. The adoption score is limited because S. 2644 shows bipartisan willingness to legislate around special-counsel independence and Attorney General recusal, but DOJ-005 itself has no identified sponsor, no proposal-specific polling, no stakeholder endorsement, and likely institutional resistance from executive-branch leadership.

External Review Status. No qualified external review has been incorporated. The most useful next review would come from legislative counsel, a former DOJ ethics official, an OGE practitioner, a DOJ OIG or OPR practitioner, or a public-law scholar focused on executive supervision.

Coalition Support Estimates. These are provisional planning judgments, not polling evidence. Democrats and independents are more likely to support the proposal as an anti-corruption and rule-of-law safeguard. Republican support is likely lower because the proposal arose from examples involving President Trump's administration and constrains senior DOJ discretion, though institutional conservatives may support a reciprocal rule if framed around preventing future abuse by either party.

Adoption Friction. Friction remains high because the proposal constrains Attorney General and senior DOJ discretion, creates written records around politically sensitive matters, adds confidential congressional notice, and may be challenged as intrusion into presidential supervision of criminal enforcement. Friction is slightly reduced by anchoring the proposal in existing section 528 authority and preserving executive control over prosecutorial merits.

Required Electoral Environment. Ordinary federal legislation likely requires a Senate environment capable of overcoming filibuster constraints unless it is attached to a viable DOJ authorization, ethics, appropriations, or post-crisis institutional-repair vehicle.

DOJ-007 — Independent Investigation of Presidential and Senior Executive Misconduct

Issue Snapshot

Problem: Conflicted executives control special-counsel initiation.

Repair: Authorize judicial appointment of investigative counsel.

Vehicle: Ratify the amendment, then enact the Interbranch Review Framework Act (JUD-011) and DOJ-007 Shared-Framework Implementation Act (preferred), or enact the standalone Act (independent alternative).

Institutional Anomaly

Federal law provides no durable mechanism by which an institution outside the presidential chain of command can initiate and appoint an independent investigative counsel when the President, Attorney General, or senior executive officials possess a disabling conflict of interest. Existing special-counsel arrangements remain dependent on executive initiation, jurisdiction, resources, and removal authority.

Manifestation of the Failure

Mueller investigation and executive-branch limits

The Mueller Report illustrates the defect. The Special Counsel described evidence concerning possible presidential obstruction but accepted the Office of Legal Counsel conclusion that a sitting President could not be indicted or criminally prosecuted and therefore declined to make a traditional prosecutorial judgment. The report stated that, had the evidence clearly established that the President did not commit obstruction, it would have said so; it did not exonerate him. The central structural lesson is not that an independent counsel should have prosecuted a sitting President, nor that the report itself adjudicates criminal liability. It is that investigation of presidential conduct remained dependent on an executive-branch arrangement vulnerable to presidential pressure, removal, jurisdictional restriction, and termination.

Watergate and evidence-preservation function

Watergate supplies an earlier analogue. Evidence concerning President Nixon was developed through criminal investigation, special-prosecutor process, and congressional inquiry, then addressed through impeachment-related mechanisms before later criminal accountability became moot through resignation and pardon. The Senate Historical Office's account of the Select Committee on Presidential Campaign Activities records the committee's bipartisan investigation, subpoena disputes, interaction with Special Prosecutor Leon Jaworski, the Supreme Court's order requiring production of tapes to the special prosecutor, and resulting impeachment-related action. The episode demonstrates the need to preserve evidence and independent inquiry even when prosecution cannot proceed during presidential tenure.

Resulting Damage

The arrangement permits presidential self-protection, suppression of politically sensitive investigations, retaliatory or protective use of DOJ authority, obstruction or retaliation against investigators and witnesses, loss of evidence, expiration of limitations periods, and loss of public confidence that federal law applies equally to those controlling the executive branch.

Underlying Weakness

The Appointments Clause permits Congress to vest appointment of inferior officers in courts of law, and *Morrison v. Olson* upheld judicial appointment of an independent counsel after an executive trigger. That precedent does not securely authorize a court to initiate appointment over executive objection. More recent doctrine, particularly *Trump v. United States*, treats presidential control over federal investigation and prosecution as part of exclusive Article II authority. A direct judicial trigger therefore requires an express constitutional amendment.

The distinction between investigation and prosecution is essential. The Office of Legal Counsel's 2000 opinion on a sitting President's amenability to indictment and criminal prosecution states that indictment or criminal prosecution of a sitting President would unconstitutionally impair the executive branch's functioning. DOJ-007 is designed to protect investigation from presidential control, not to create authority to prosecute a sitting President or to supersede substantive immunity doctrine.

Proposal Survey

The principal historical model is the former independent-counsel statute, which permitted judicial appointment after an executive trigger. The Supreme Court upheld that arrangement in *Morrison v. Olson*, 487 U.S. 654 (1988), but the statute later expired. The Congressional Research Service describes the independent-counsel and special-counsel models as prior mechanisms for extraordinary executive-branch investigations, while emphasizing that the current special-counsel framework remains regulatory and executive-controlled. See CRS, *Special Counsels, Independent Counsels, and Special Prosecutors*, and 28 C.F.R. Part 600.

Congress has also considered narrower special-counsel independence measures that would protect a special counsel from improper removal after appointment, such as the bipartisan Special Counsel Independence and Integrity Act, S. 2644, 115th Congress. That model addresses post-appointment removal risk but does not cure DOJ-007's central trigger problem: a conflicted Attorney General or executive leadership structure can still prevent appointment or define the investigation before independence protections attach.

Congress has also relied on impeachment, oversight, and ordinary DOJ investigation, but those mechanisms depend on political will or executive initiation. DOJ-007 therefore uses the independent-counsel tradition but requires constitutional authorization for a nonexecutive trigger, avoiding overreliance on a conflicted Attorney General.

The internal project review refreshed the removal-power vulnerability shortly before final merits decisions issued. The Supreme Court has now decided *Trump v. Slaughter*, holding that the FTC's statutory for-cause removal protection is unconstitutional, and *Trump v. Cook*, denying the Government's stay application concerning President Trump's attempted removal of Federal Reserve Governor Lisa Cook. These matters do not moot DOJ-007 because the proposal uses a constitutional amendment, but they underscore that any implementing statute must be drafted with extreme care around removal, judicial review, and protected investigative independence.

Least-Complex Adequate Remedy

Adopt a constitutional amendment authorizing Congress to permit a specially constituted federal judicial panel or separately firewalled component of an Article III judicial division to appoint an independent investigative counsel upon a verified petition and findings that:

1. credible information indicates that a federal offense, obstruction, retaliation, evidence destruction, or serious abuse of federal investigative or prosecutorial authority may have occurred; and
2. a conflict involving the President, Vice President, Attorney General, senior White House officials, presidential campaign activity, or DOJ leadership materially impairs the reliability of ordinary executive investigation.

The amendment should insulate the investigation from presidential direction and removal while preserving congressional definition of crimes and procedure, judicial protection of rights, lawful oversight, professional discipline, transparent reporting, and removal for defined misconduct or incapacity.

Repair and Prevention

The Constitution should authorize Congress to establish a narrowly bounded judicial mechanism for appointing an independent investigative counsel when credible evidence and structural executive conflict make ordinary DOJ control unreliable. The appointing panel should determine whether the trigger exists, appoint counsel, define jurisdiction, protect resources, review removal, and determine completion. It should not supervise investigative tactics, charging decisions concerning other persons, plea negotiations, trial strategy, or sentencing positions.

The panel should function as an independent gatekeeper rather than a ministerial filing office. Submission by an authorized applicant should not require appointment; the panel should deny appointment where the statutory conditions are not met, lesser measures are adequate, or appointment would be unnecessary or disproportionate.

A judicial noncompliance finding or public notice under JUD-001 or JUD-005 may supply authenticated supporting material, but it must not activate DOJ-007 automatically. An authorized applicant must still establish credible possible serious misconduct and extraordinary executive conflict, and the panel must make the independent findings required for appointment.

Qualifying subject matter should include credible information that the President or senior executive officials directed or sought an investigation without a good-faith lawful factual predicate or for an improper case-specific purpose; sought investigation or prosecution of an opponent for an improper purpose; sought protection, dismissal, leniency, or nonenforcement for an ally; requested confidential investigative information for personal or political use; threatened personnel or manipulated staffing, jurisdiction, resources, or timing to obtain a desired case result; directed materially false representations; or obstructed, concealed, or retaliated against resistance to such conduct.

The counsel should be authorized to investigate a sitting President; use grand-jury and compulsory process; collect and preserve evidence; litigate privilege and access disputes; investigate obstruction, retaliation, witness tampering, or evidence destruction; prosecute other persons within jurisdiction where lawful; and transmit substantial and credible information to the House of Representatives and appropriate congressional committees.

The mechanism is also designed for the failure case in which credible information suggests that serious criminal or investigative misconduct may have occurred, but Congress lacks the political will, institutional capacity, or reliable factual record necessary to initiate an adequate inquiry. In that circumstance, the remedy supplies a bounded pathway for independent fact-finding, evidence preservation, and confidential or public reporting as law permits. Its purpose is disinfecting sunlight and institutional accountability, not a presumption of guilt or a substitute for impeachment, trial, or ordinary congressional judgment.

The statute should expressly provide that a sitting President may not be indicted or tried under this mechanism while in office. It should toll applicable limitations periods so later accountability is not defeated by presidential tenure. Impeachment remains the constitutional mechanism for removal and may proceed before the investigation is complete.

Proposed Constitutional Amendment

- Independent Investigative Counsel Amendment

Proposed Enabling Legislation

Preferred implementation — amendment plus Interbranch Review Framework Act (JUD-011)

- Independent Investigative Counsel Shared-Framework Implementation Act
- Interbranch Review Framework Act (JUD-011)

After ratification, the preferred Act adds a separately firewalled Investigative Counsel component to the Interbranch Review Division. It reuses the national roster, clerk, facilities, security, technology, judgeships, and nondecisional administration created by the Interbranch Review Framework Act (JUD-011) while maintaining different panels, decisional employees, dockets, protected records, authority, and appellate routes.

Independent alternative — amendment plus standalone DOJ-007 Act

- Independent Investigative Counsel Appointment and Accountability Act

If Congress rejects the Interbranch Review Framework Act (JUD-011), it may ratify the same amendment and enact the standalone Act. That bill independently supplies the Special Division, roster, appointment standard, administration, funding, investigation protections, removal process, reporting, and review.

Interbranch Review Pathways

Common constitutional predicate: Ratify the DOJ-007 amendment under either path.

Preferred implementation: Enact the Interbranch Review Framework Act (JUD-011) and the DOJ-007 Shared-Framework Implementation Act. The latter expressly adds the investigative component; DOJ-007 does not arise under JUD-011's civil anti-nullification cause.

Independent alternative: Enact the standalone DOJ-007 Act without JUD-011. It creates and funds its own Special Division.

Congressional choice: The preferred path avoids duplicate judicial infrastructure. The standalone path preserves independent enactability if Congress rejects the Interbranch Review Framework Act (JUD-011).

Relationship to Adjacent Proposals

DOJ-002 owns preventive routing, logging, review, and preservation requirements for White House and political contacts concerning particular matters. Former candidate issue DOJ-006 is merged into DOJ-002 and DOJ-007.

IMM-001 owns the substantive constitutional rule governing criminal immunity for presidential official acts. DOJ-007 remains independently useful even if immunity persists because investigation, evidence preservation, impeachment reporting, legislative oversight, and prosecution of other participants may still proceed.

JUD-005 owns automatic public and congressional notice after a qualifying judicial finding of executive noncompliance. The notice is not a DOJ-007 appointment trigger; it may support an application only when the independent misconduct and conflict criteria are also alleged and established.

The Epstein Files Transparency Act litigation illustrates that boundary. The present preliminary injunction and show-cause posture belong principally to JUD-011 and JUD-001 and do not establish a possible offense or extraordinary executive conflict. A later authenticated finding of obstruction, concealment, evidence destruction, retaliation, or comparable serious misconduct could support a DOJ-007 application only if an authorized applicant independently satisfies every appointment criterion.

The Interbranch Review Framework Act (JUD-011) directly addresses civil executive nullification of enacted statutory mandates and cannot itself authorize nonexecutive appointment of investigative counsel. After ratification of the DOJ-007 amendment, however, the preferred implementing Act may use JUD-011's expressly extensible judicial infrastructure through a separate Investigative Counsel component. The civil and investigative functions share only roster and nondecisional administration; they do not share panels, decisional staff, protected records, jurisdiction, or appellate routes. The standalone DOJ-007 Act remains independently enactable.

Budgetary Impact Statements

Preferred implementation — Interbranch Review Framework Act (JUD-011)

The Interbranch Review Framework Act (JUD-011) carries the two additional D.D.C. judgeships and base national-roster, clerk, facilities, technology, cybersecurity, secure-record, procurement, and general administrative capacity. The DOJ-007 preferred Act adds incremental panel and administration workload plus investigation-specific counsel, personnel, litigation, experts, travel, security, and records costs. Shared judicial costs must be separately reported, and investigation-specific operations require additional separately accounted appropriations. No dollar estimate is assigned pending AOUSC, CBO, GAO, appropriations, PAYGO, and legislative-counsel review.

Independent alternative — standalone DOJ-007 apparatus

Budget authority is likely required; no dollar estimate is assigned pending source-backed cost data. DOJ-007 must independently fund its Special Division administration, counsel, investigative staff, litigation, experts, security, records, and other operations.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 78 / 100 (Review Ready)

Adoption Score: 1 / 12 (Weak Adoption Basis)

Adoption Friction: 92 / 100 (Extreme Resistance)

Required Electoral Environment: constitutional-amendment-environment

Development Priority: conditional

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Internal Review Status: Internal project review and Epstein-files remedy-fit review complete; external validation pending

Last Internal Review: Manifestation-polish review (2026-07-15)

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current project standard

Revision Review Needed: No — the Epstein-files cross-reference remains expressly conditional and does not activate appointment

Next Review: External validation / follow-up internal review

Full Review History: DOJ-007 review history

Annotation

Conflict and inquiry threshold. When alleged federal criminal conduct or abuse of federal investigative authority concerns the President, presidential associates, senior White House officials, or DOJ leadership, the officials ordinarily responsible for deciding whether an independent investigation should exist may themselves be politically, institutionally, or personally conflicted. A loyal Attorney General can prevent appointment, restrict jurisdiction, withhold resources, remove the investigator, or terminate the investigation. Judicial findings that executive action was unlawful may create substantial grounds for further inquiry but do not automatically establish criminal liability or an impeachable offense. The defect arises when credible evidence warrants independent examination but the President controls the institution that determines whether that examination continues. These propositions define the conflict and threshold; they are not separate manifestations.

Design requirements for implementing legislation. Implementing legislation should provide:

- a three-judge panel selected by neutral random assignment from different circuits, using JUD-011's national roster under the preferred path or a self-contained roster under the independent alternative;
- verified petitions from authorized institutional actors rather than unrestricted private applications;
- a threshold limited to credible evidence and structural conflict, not guilt or probable cause;
- jurisdiction over serious misuse of federal investigative or prosecutorial authority as well as possible offenses;
- merit-based appointment and defined jurisdiction;
- express authority to investigate a sitting President, preserve evidence, use grand-jury process, and report substantial and credible impeachment- or oversight-related information;
- an express prohibition on indictment or trial of a sitting President under the mechanism;
- lawful prosecution of other persons within assigned jurisdiction;
- limitations-period tolling during presidential tenure;
- ordinary compliance with DOJ rules subject to notice-only good-cause departure;
- independent investigative capacity, protected resources, and binding access to assistance;
- removal only for misconduct, incapacity, substantial dereliction, or material jurisdictional violation;
- no displacement of impeachment and no requirement that Congress await completion;
- final reporting consistent with grand-jury secrecy, classification, defendants' rights, and privacy;
- disqualification of appointing judges from resulting cases;
- separate panels, decisional personnel, dockets, protected records, and information firewalls from any related civil proceeding concerning the same conduct; and
- termination when the assigned matter is complete.

Basis and Evidence. *Morrison v. Olson*, 487 U.S. 654 (1988), sustained judicial appointment of a limited inferior officer after an Attorney General trigger. *Trump v. United States*, 603 U.S. 593 (2024), treated presidential control of executive investigation and prosecution as exclusive Article II authority, making a direct judicial trigger constitutionally insecure without amendment. The Mueller Report recognized both that investigation of a sitting President was permissible and that DOJ policy barred indictment and prosecution during tenure. The internal project review verified current 28 C.F.R. Part 600 as an executive-controlled model, CRS's special-counsel report as useful institutional history, the OLC sitting-President indictment opinion as the prosecution-limit source, and the Senate Historical Office Watergate Committee account as support for the Watergate oversight and impeachment analogue.

Qualification. The Mueller Report did not formally conclude that President Trump committed obstruction. DOJ-007 does not decide ultimate criminal liability, expand substantive offenses, abolish presidential immunity, or authorize prosecution of a sitting President. *Trump v. United States* makes executive independence more consequential because presidential communications with DOJ may be immune from criminal prosecution while remaining relevant to impeachment, oversight, institutional reform, and the liability of other participants. Investigation of immune conduct is permitted for those noncriminal purposes but must not be presented as proof that the conduct was criminal.

Remedial Alternatives and Constraints. A statutory restoration of the former independent-counsel model would be simpler but would leave an executive trigger capable of blocking appointment. Judicial review of refusal would reduce that vulnerability but remain constitutionally contestable. A permanent independent prosecution authority would be broader and more disruptive. This proposal is narrower: it protects investigation during extraordinary conflict, preserves impeachment as the tenure-removal mechanism, and coordinates with IMM-001 for any substantive immunity reform.

Interbranch Review Framework Act (JUD-011) Integration Boundary. DOJ-007 is not an application of JUD-011's civil anti-nullification cause, and JUD-011 cannot supply the constitutional authority needed for nonexecutive appointment. The DOJ-007 amendment supplies that authority. The preferred implementing Act then uses JUD-011's roster and nondecisional infrastructure through a separately authorized and firewalled Investigative Counsel component. The independent alternative instead supplies its own complete Special Division. Neither civil findings nor shared administration may direct investigation, establish criminal facts, transfer protected records, or alter ordinary criminal-case review.

Budgetary Impact. DOJ-007 is correctly classified as likely requiring budget authority because it creates an independent investigative-counsel mechanism, protected appropriations, staff capacity, access-dispute litigation, reporting, records transfer, and GAO audit functions. The internal project review confirmed that current 28 C.F.R. Part 600 requires a special counsel to develop a budget with DOJ's Justice Management Division and obtain Attorney General budget approval, but that model is not a source-backed cost range for an independent constitutional mechanism. The internal project review located secondary reporting that the Mueller investigation had cost roughly \$17 million by May 2018, but that is not sufficient for a proposal-specific estimate because DOJ-007 would create a different constitutional and funding structure. See Axios, May 31, 2018. No dollar figure is assigned.

Quality Score. The 78/100 score reflects a Review Ready draft suitable for knowledgeable external critique. The internal project review verified the constitutional-amendment vehicle, linked enabling legislation, current special-counsel regulations, OLC prosecution-limit source, Watergate congressional-investigation analogue, removal-power vulnerability, prior removal-protection bill comparator, issue-to-legislation alignment, and a limited budget analogue source lead. The score remains below publication-ready because adoption evidence, source-backed cost analysis, coalition estimates, external professional review, grand-jury disclosure mechanics, and publication-level judicial-scrutiny work remain incomplete.

Adoption Score. The 1/12 score is weak because the proposal requires constitutional amendment and the internal project review did not identify current evidence of a realistic ratification coalition. The proposal receives limited credit for correctly identifying the high-threshold vehicle and preserving staged implementation, but no favorable credit for current passage likelihood, polling, sponsor support, or stakeholder validation.

Adoption Friction. The 92/100 score is extreme because the proposal changes control over investigations involving the President and senior executive officials, depends on contested separation-of-powers and appointments doctrine, requires a constitutional amendment, invites intense partisan framing, creates a new protected investigative structure, requires funding, and would likely face immediate constitutional and political opposition.

Required Electoral Environment. The required environment is constitutional-amendment-environment, with Pathway Viability post-crisis-only and Pathway Adjustment stage. A statutory version cannot reliably solve the central defect because a nonexecutive trigger over executive objection is constitutionally insecure without amendment. The internal project review confirms that narrower statutory options, including current DOJ special-counsel regulations and prior special-counsel independence bills, can reduce removal or interference risk but do not supply the missing nonexecutive appointment trigger. Staged work should therefore focus on external review, public-facing explanation, source development, oversight framing, evidence-preservation logic, and relation to IMM-001 before treating the proposal as externally actionable.

Development Priority. The priority is conditional: DOJ-007 is important to the project architecture and now ready for knowledgeable external critique, but further work should remain targeted. The follow-up internal review should focus on external professional review, publication-level judicial-risk analysis, source-backed cost analogues, public-support evidence, and whether a narrower oversight-stage measure should accompany the amendment strategy.

DOJ-009 — Insufficient Professional-Qualification Requirements for Senior DOJ Leadership

Issue Snapshot

Problem: Senior DOJ roles may lack good-standing requirements.

Repair: Require bar status, disclosure, and delegation rules.

Vehicle: Title 28 DOJ amendment package (draft).

Institutional Anomaly

The Attorney General and senior Department of Justice legal officers exercise extraordinary legal authority over federal prosecutions, federal civil litigation, legal positions of the United States, professional-responsibility systems, law-enforcement policy, legal opinions, and the government's conduct before courts. Yet federal appointment law may not expressly require that the Attorney General, Deputy Attorney General, Associate Attorney General, Solicitor General, Assistant Attorneys General, or persons performing those functions in an acting capacity be attorneys in good standing, remain eligible to practice law, or be free from final professional discipline materially inconsistent with serving in a senior federal legal office.

Bar membership is not merely a credential. It is a continuing external professional-conduct framework administered by courts, bar authorities, disciplinary bodies, and licensing authorities. For senior DOJ legal officers, good standing in a bar provides an institutional check outside the Department's internal hierarchy and outside ordinary presidential supervision. A statutory good-standing requirement would therefore connect senior federal legal authority to an existing professional regulator capable of imposing discipline for misconduct, dishonesty, lack of candor, breach of fiduciary duty, misuse of client confidences, and other violations of professional legal obligations.

The Senate confirmation process and appointment norms are important safeguards, but they are political safeguards rather than legal eligibility rules. If the President and Senate are aligned, indifferent, or strategically motivated, those safeguards may not prevent a person who has been disbarred, suspended, or adjudicated professionally unfit from serving in a position that directs the legal work of the United States.

This issue does not assume wrongdoing by any current or former official. It concerns the structural question whether federal law should impose baseline professional-qualification and good-standing requirements for senior DOJ legal offices.

Manifestations of the Failure

No express good-standing rule for the Attorney General

The federal statutes establishing the Attorney General and other senior DOJ legal offices do not expressly impose an across-the-board active-bar-membership, good-standing, or final-discipline eligibility rule. See 28 U.S.C. §§ 503–506. DOJ-009 is therefore prophylactic: it identifies a documented statutory qualification gap rather than alleging that a named senior officer has remained in office after losing professional good standing.

Resulting Damage

If senior DOJ legal officers lack baseline professional-qualification requirements, the Department may be led by officials whose professional discipline would bar or impair ordinary legal practice while still allowing them to supervise federal legal positions, prosecutions, recusals, and professional-responsibility systems. That weakens public confidence in neutral law enforcement, strains internal professional norms, and leaves Congress to rely on political screening rather than enforceable eligibility standards.

Underlying Weakness

Existing law may lack:

- an express bar-admission or good-standing requirement for the Attorney General and selected senior DOJ legal officers;
- mandatory disclosure of bar memberships and disciplinary history before confirmation or appointment;
- continuing notification duties if discipline is imposed while in office;
- temporary delegation or recusal rules if an officer loses professional good standing;
- a distinction between pending allegations and final adjudicated professional discipline;
- a rule protecting the office while preventing politically motivated complaints from becoming automatic disqualification tools.

Proposal Survey

Congress has often imposed office-specific qualifications for federal legal or law-enforcement roles. The Solicitor General and Assistant Attorneys General are statutory offices, but existing provisions do not clearly impose a general good-standing requirement for all senior DOJ legal officers. The U.S. Code provisions for the Attorney General, Deputy Attorney General, Associate Attorney General, Solicitor General, and Assistant Attorneys General are collected at 28 U.S.C. §§ 503-506. Attorney General succession is separately addressed in 28 U.S.C. § 508. Federal law already uses attorney-ethics cross-references for Department lawyers through 28 U.S.C. § 530B, while DOJ regulations implementing that provision address professional-conduct rules for Department attorneys at 28 C.F.R. part 77. The internal project review also identified 28 U.S.C. § 530C(c)(1) as an existing compensation-related licensure analogue for individuals employed as attorneys.

The closest existing automatic-effect model located so far is the Federal Vacancies Reform Act, which provides that when a covered office is not being performed by an authorized acting officer, the office remains vacant for protected functions and unauthorized actions have no force or effect. 5 U.S.C. § 3348. That model supports a duty-devolution and action-validity approach more clearly than automatic removal from a Senate-confirmed office.

Ethics-disclosure models also exist through Senate confirmation, the Office of Government Ethics, OPR, and bar authorities. DOJ-009 draws from those models but converts professional fitness into a baseline eligibility and continuity rule for senior DOJ legal offices.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a targeted title 28 amendment package. The draft adds a proposed new section to 28 U.S.C. chapter 31, conforms the Attorney General succession statute, and links the rule to the existing Government-attorney ethics and compensation provisions in 28 U.S.C. §§ 530B-530C.

Repair and Prevention

Congress should consider statutory professional-qualification requirements for the Attorney General and selected senior DOJ legal officers.

The statute should require, at minimum:

1. admission to practice law in at least one United States jurisdiction;
2. good standing in at least one jurisdiction at the time of nomination, appointment, or designation;
3. disclosure of all current bar memberships, suspensions, disbarments, resignations in lieu of discipline, public discipline, and pending formal disciplinary charges;
4. continuing duty to notify the President, Senate Judiciary Committee, DOJ Inspector General, Office of Professional Responsibility, and Office of Government Ethics of final professional discipline while serving;
5. disqualification from exercising covered legal-supervisory duties, with temporary delegation to the next eligible officer, if the officer loses good standing, is disbarred or suspended in all admitted jurisdictions, or is otherwise finally disciplined in a manner materially inconsistent with service;
6. preservation of Senate and presidential appointment authority subject to baseline statutory eligibility limits;
7. an express rule that pending complaints, unadjudicated allegations, or politically motivated complaints do not create automatic disqualification.

Proposed Legislation

- Senior Department of Justice Professional Qualification and Good Standing Act

Relationship to Adjacent Proposals

- **DOJ-001** concerns appointment of recent presidential personal counsel to senior DOJ leadership.
- **DOJ-003** concerns politically selective enforcement, charging, and favoritism.
- **DOJ-005** concerns weak enforcement and internal control of DOJ recusal duties.
- **DOJ-007** concerns independent investigation of presidential and senior executive misconduct.
- **DOJ-009** concerns baseline professional eligibility, good standing, and disciplinary-disclosure rules for senior DOJ legal offices.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 77 / 100 (Review Ready)

Adoption Score: 4 / 12 (Limited Adoption Basis)

Adoption Friction: 68 / 100 (High Resistance)

Required Electoral Environment: sixty-vote-senate

Development Priority: active

External Review Status: not-reviewed

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Internal Review Status: Internal project review complete; qualified legal and legislative-counsel review pending

Last Internal Review: Internal project review

Scoring Standard: 2026-06-27.2; **Scoring Basis:** Current project standard

Next Review: Qualified public-law, legislative-counsel, and professional-responsibility review

Full Review History: DOJ-009 review history

Annotation

No Personal Finding. This issue does not assume misconduct by any current or former official and should not be framed around any named person. Individual complaints or disciplinary proceedings may serve as source-development examples only if described neutrally and with procedural posture clearly identified.

Bar as External Regulator. Bar membership and good standing matter because attorney licensing authorities provide an external professional-conduct check on lawyers exercising legal authority, including senior DOJ legal officers.

Pending Complaints. Pending ethics complaints should not be automatic disqualifiers. A pending complaint may be relevant to disclosure or Senate evaluation, but automatic legal consequences should turn on final discipline, suspension, disbarment, resignation in lieu of discipline, or comparable adjudicated findings.

Prospective Design. DOJ-009 is presently more prophylactic than incident-driven. It should not imply that the project has identified a concrete example of a senior DOJ legal officer losing good standing while in office. Its real-world premise is the combination of existing DOJ licensure/ethics rules and the absence of a clear senior-office continuity trigger if good standing is lost.

Disqualification Rather Than Automatic Removal. Loss of good standing should disqualify a covered officer from exercising covered legal-supervisory duties and trigger temporary devolution to the next eligible officer. The project has not identified a clean federal analogue for automatic removal of a Senate-confirmed executive officer without action by Congress, a court, or the executive. The closer analogue is the Federal Vacancies Reform Act's functional model: unauthorized acting service can leave protected functions vacant and render unauthorized actions ineffective.

Readiness Finding. The internal project review confirmed that DOJ-009 is internally coherent, has a plausible existing-law amendment vehicle, and required a deeper publication-readiness pass before external circulation. The strongest source support remains the existing title 28 architecture: the Solicitor General statute expressly uses a legal-qualification concept, while the Assistant Attorney General statute omits similar language and notes that the phrase *learned in the law* was treated as unnecessary for several federal legal offices. 28 U.S.C. § 505; 28 U.S.C. § 506. The proposal's duty-devolution model remains supported as a functional analogue by the Federal Vacancies Reform Act's vacant-office and no-force-or-effect rules, but the fit should still be reviewed by legislative counsel or a public-law attorney before external circulation. 5 U.S.C. § 3348.

Publication-Readiness Finding. The internal project review raises DOJ-009 to 77/100 (Review Ready), but it is not publication-ready. The review strengthened the source base by confirming that DOJ's existing professional-conduct regulation covers senior DOJ legal officers while expressly excluding statutes, rules, or regulations requiring licensure or membership in a particular state bar from the phrase *state laws and rules and local federal court rules governing attorneys*; that carve-out supports DOJ-009's premise that a separate good-standing and duty-devolution rule is needed. 28 C.F.R. part 77. The internal project review also added professional-responsibility analogues from ABA Model Rules addressing supervisory responsibility, unauthorized practice and good-standing concepts, reporting misconduct affecting honesty or fitness, and prosecutor-specific obligations. ABA Model Rule 5.1; ABA Model Rule 5.5; ABA Model Rule 8.3; ABA Model Rule 3.8. The review also treats *Kennedy v. Braidwood Management, Inc.* and *Trump v. Slaughter* as current Appointments Clause and removal-power caution sources. Those cases do not moot DOJ-009, but *Slaughter* heightens the need to ensure that duty devolution is drafted as a neutral statutory eligibility and duty-performance rule rather than as a disguised removal restriction or congressional veto. *Kennedy v. Braidwood Management, Inc.*; *Trump v. Slaughter*.

Appointments Clause Sensitivity. Any statutory qualification rule should be reviewed for compatibility with the Appointments Clause, presidential nomination authority, Senate advice-and-consent authority, and Congress's power to structure executive offices by statute. The Constitution Annotated explains that Congress may establish federal offices but may not aggrandize itself at the expense of another branch or impose procedural restrictions that intrude on nomination authority. Appointments Clause overview; Restrictions on Congress's Authority.

Professional Independence. The rule should protect DOJ's professional legitimacy without allowing partisan or bad-faith bar complaints to be weaponized against nominees or officials.

Implementation Fit. DOJ already has professional-responsibility architecture that DOJ-009 can build from rather than replace. Section 530B subjects Government attorneys to applicable state and local federal-court professional rules, and 28 C.F.R. part 77 defines

attorney for the government to include the Attorney General, Deputy Attorney General, Solicitor General, Assistant Attorneys General, and many DOJ litigating and supervisory lawyers. 28 U.S.C. § 530B; 28 C.F.R. part 77. The internal project review specifically confirms that part 77's professional-conduct rule does not itself include state-bar licensure or membership requirements, so it is an implementation foundation rather than a substitute for proposed § 506A. DOJ OPR's current public description gives OPR jurisdiction over attorney professional-misconduct allegations tied to legal authority, while OIG remains the broader waste, fraud, abuse, and non-attorney-misconduct channel. DOJ OPR jurisdiction.

External Review Pending. Qualified external review remains the publication blocker. A public-law attorney, legislative counsel, or professional-responsibility expert should examine Appointments Clause doctrine, *Slaughter*-era removal-power doctrine, comparable statutory qualification requirements for federal legal offices, Senate confirmation materials, whether proposed 28 U.S.C. § 506A is the best codification location, whether covered offices other than Solicitor General have historically been occupied by non-attorneys or persons whose licensure status was unclear, and whether the material-inconsistency review should be assigned to the DAEO, OPR, OGE, the President, or a different combination of officials.

Quality Score. The 77/100 score following the internal project review uses scoring standard 2026-06-27 . 2: Structural 8/8; Evidence 10/12; Legal Fit 7/10; Prior-Proposal 7/8; Remedy 10/12; Implementation 7/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4; Penalties 0. The score increased because the review verified the 28 C.F.R. part 77 licensure carve-out, added professional-responsibility analogues, and clarified implementation fit. Legal Fit, Adoption, and External Review do not increase because *Slaughter* heightens the removal-power caution, no proposal-specific coalition evidence was found, and no qualified external review has been incorporated.

Existing-Law Redraft. Human authorization on 2026-06-28 resolved the internal project review blocker. The linked draft now uses an existing-law amendment package built around 28 U.S.C. chapter 31, proposed 28 U.S.C. § 506A, the Attorney General succession provision in 28 U.S.C. § 508, the Government-attorney ethics provision in 28 U.S.C. § 530B, the compensation/licensure provision in 28 U.S.C. § 530C(c)(1), DOJ professional-conduct regulations, and acting-officer cross-references. The internal project review tightened the draft so acting service is covered as service in an acting capacity rather than as a separate statutory office.

Adoption Score. The 4/12 score is limited. DOJ-009 has a clear federal statutory vehicle and a general professional-fitness value proposition that can be framed neutrally, but the internal project review did not identify proposal-specific polling, sponsor support, prior bipartisan legislation, professional-association endorsement, or a current legislative coalition.

Adoption Friction. The 68/100 score is High Resistance. The proposal is narrower than DOJ-001 or DOJ-002 and can be defended as professional baseline legislation, but it would constrain presidential selection, acting-officer designations, and Senate tolerance for professionally disciplined nominees, and it may draw separation-of-powers, Appointments Clause, compensation-authority, and politicized-bar-complaint objections.

Required Electoral Environment. The required environment is sixty-vote-senate, with Pathway Viability plausible-after-wave and Pathway Adjustment stage. The internal project review found no current-law or internal-policy route adequate to create binding eligibility rules for covered Senate-confirmed and acting DOJ legal offices.

Development Priority. The priority is active because the proposal is developed, structurally distinct from adjacent DOJ reforms, and capable of improvement through ordinary source development, existing-law fit review, and constitutional analysis.

A-02 — Election Integrity

Generalized Institutional Concern

The election system remains vulnerable to federal executive interference, delegitimization of lawful results, pressure on election officials, disruption of certification, misuse of civil or criminal process, districting distortions, structural distortions in presidential selection, opaque or disproportionate political spending, candidate gatekeeping, and efforts to obstruct the peaceful transfer of power.

Active Issues

- **ELEC-001 — Federal Executive Interference with State and Local Election Administration**
- **ELEC-002 — Pressure on Certification and Canvassing Officials**
- **ELEC-003 — Insufficient Protection for Election Workers and Officials**
- **ELEC-004 — Abuse of Election Litigation and Civil Process**
- **ELEC-005 — Weak Safeguards Against False Presidential Result-Transmission Documents**
- **ELEC-006 — Insufficiently Automatic Presidential-Transition Procedures**
- **ELEC-007 — Improper Federal-Force Presence in Election Administration**
- **ELEC-008 — Accountability for Coordinated Federal Election-Subversion Schemes**
- **ELEC-009 — Electoral College Structure and National Popular Vote**
- **ELEC-010 — Mail-In Voting Access, Reliability, and Trust**
- **ELEC-011 — Algorithmic Redistricting Baseline and Representation Safeguards**
- **ELEC-012 — Campaign Finance, Dark Money, and Corporate Political Spending**
- **ELEC-013 — Federal Candidate Access, Ballot Access, and Debate Gatekeeping**
- **ELEC-014 — Limiting Federal Criminal Investigations into State-Administered Elections**
- **ELEC-015 — Ranked-Choice Voting and Majority-Choice Election Methods**

Issue Boundaries

- **Political-status boundary.** District of Columbia statehood and the choice of Puerto Rico's final political status are political outcomes outside ARRP's scope. A-02 may still address election administration, ballot access, certification, voter protection, campaign finance, redistricting, or another neutral election-system defect affecting either jurisdiction when the remedy does not presuppose statehood or another final-status result.
- **ELEC-001** concerns civilian executive interference through presidential authority, agencies, investigations, funding, regulation, intelligence, administrative process, or official influence.
- **ELEC-002** concerns the vulnerability of state and local canvassing and certification mechanisms to refusal, deadlock, delay, or unauthorized discretion, regardless of the source of pressure or motive.
- **ELEC-003** concerns politically neutral protection of election personnel and continuity of election operations, with state administration and only narrowly limited federal financial support.
- **ELEC-004** concerns abuse of election litigation, civil subpoenas, audit requests, inspection demands, and extraordinary proceedings, including later-discovered improper-purpose coordination.
- **ELEC-005** concerns false or unauthorized presidential result-transmission documents entering federal receipt, preservation, recognition, or electoral-count channels.
- **ELEC-006** concerns continuity of government, transition automaticity, and narrow statutory backstops for presidential-transition access, agreements, agency cooperation, and enforcement.
- **ELEC-007** concerns improper federal-force presence, emergency response, and election-material custody safeguards around election administration.
- **ELEC-008** concerns coordinated federal election-subversion schemes using independently wrongful predicate acts to corruptly nullify, reverse, obstruct, delay, or procure official disregard of a lawful federal-election result.
- **ELEC-009** concerns whether the Electoral College itself should be restructured or replaced by a national popular-vote system.
- **ELEC-010** concerns the vulnerability of mail-in and absentee voting systems to unequal access, late or unreliable ballot delivery, inconsistent cure and signature rules, politicized postal or administrative disruption, chain-of-custody attacks, and unsupported delegitimization of lawful mail ballots.

- **ELEC-011** concerns redistricting, vote dilution, majority-minority representation, racial-gerrymandering doctrine, state voting-rights acts, independent redistricting institutions, mid-decade redistricting safeguards, and algorithmic first-draft map generation. HOR-009 is admitted here after *Louisiana v. Callais*, and ELEC-011 now uses model State legislation as the least-complex path while preserving reserve constitutional amendment and Federal enabling-legislation vehicles. See ELEC-011.
- ELEC-012 concerns corporate, union, nonprofit, LLC, super PAC, and dark-money election influence; disclosure and coordination rules; small-donor or public-financing models; state corporate-law strategies; constitutional-amendment options; and post-*Citizens United* / *SpeechNow* remedies. HOR-013 is admitted here because campaign-finance integrity is not owned by the existing election proposals. ELEC-012 now supports H.J.Res. 54 with an ARRP enforcement/federalism clarification, preserves H.J.Res. 13 as a narrower alternative, and links post-ratification FECA conforming-amendment legislation. Hawaii's first-in-the-nation corporate-powers law, reported by the Associated Press as signed by Governor Josh Green and set to take effect July 1, 2027, is a high-salience source-development lead rather than a settled model.
- **ELEC-013** concerns federal candidate-access, ballot-access, and debate-gatekeeping rules that can entrench dominant-party control or suppress nonstandard candidacies through debate criteria, polling thresholds, state ballot-access burdens, petition-defect rules, cure limits, public-benefit debate structures, or weak FEC-facing transparency. After the July 6, 2026 boundary split, ranked-choice voting and majority-choice election-method design are no longer owned here. The initial Federal Candidate Access and Debate Transparency Act draft uses Ross Perot's 1992 debate inclusion as the modern case-study anchor, a HAVA-centered Federal access form and certification-status interface, State publication and notice-and-cure floors, and targeted FECA debate-criteria transparency for covered debates tied to FEC debate treatment or Federal public benefits. A source-development explanatory checklist maps the presidential debate and state-by-state ballot-access pathway. See ELEC-013, the draft, and the checklist.
- **ELEC-014** concerns federal criminal investigative process directed at state-administered elections, election officials, voter-registration activity, voter data, ballots, voting systems, or voting-rights organizations. It is distinct from ELEC-004 because it concerns criminal searches, criminal subpoenas, grand-jury process, law-enforcement interviews, device seizures, criminal investigative data demands, and prosecution-threat communications rather than civil litigation or Anti-SLAPP-style election proceedings. Civil and administrative voter-data lawsuits, Voting Section letters, information-sharing requests, and noncriminal state-election-record demands are tracked in the ELEC-004 civil-process catalog unless a criminal-process hook is verified. See ELEC-014 and ELEC-014 Criminal-Process and State Election Records Catalog.
- **ELEC-015** concerns ranked-choice voting, runoffs, majority-choice election methods, tabulation transparency, voter education, recount rules, accessibility, implementation costs, state-law adoption or prohibition trends, and model-state or federal voluntary-pilot election-method options. It is deferred pending additional certified election-outcome data and additional election-method, ballot-access, party-system, and implementation input before deciding whether to draft a narrow implementation-safeguards proposal, preserve the issue as research-only, or retire it in favor of upstream competition reforms. It was branched from ELEC-013 on July 6, 2026 so candidate-access/debate reform and election-method reform can develop separately. See ELEC-015.

Notes

ELEC-001, ELEC-002, ELEC-003, ELEC-004, ELEC-005, ELEC-006, ELEC-007, ELEC-008, ELEC-009, ELEC-010, ELEC-011, ELEC-012, and ELEC-013 are developed. ELEC-013 completed its July 9, 2026 external-review readiness push after subsequent drafting, conservative budget framing, prior-proposal source development, and budget-analogue review and is scored 75/100 (Review Ready); the next review should support qualified external review focused on FEC matter files, broader official state samples, fiscal/workload validation, adoption evidence, and election-law, First Amendment, FEC/EAC, State-administration, fiscal, and legislative-counsel review. ELEC-004 now owns civil and administrative voter-data and state-election-record demand source development unless a criminal-process hook is verified. ELEC-014 has completed issue-admission and source-development review and July 9, 2026 criminal-scope/catalog routing cleanups, but is deferred pending unsealed or otherwise available primary criminal-process instruments, statutory-predicate identification, legitimacy assessment, and later remedy selection review. ELEC-015 is deferred and unscored pending additional certified election-outcome data and additional election-method, ballot-access, party-system, and implementation input before remedy selection.

ELEC-001 — Federal Executive Interference with State and Local Election Administration

Issue Snapshot

Problem: Federal power can pressure state election administration.

Repair: Ban result-directed executive election interference.

Vehicle: Hatch Act package (draft).

Institutional Anomaly

The President and other federal executive officials possess substantial investigative, prosecutorial, regulatory, funding, intelligence, administrative, and communicative power but possess no general constitutional authority to direct state or local election administration. Existing law does not provide a sufficiently precise, comprehensive, and rapidly enforceable prohibition against using federal executive office to obtain, prevent, alter, or secure a preferred electoral outcome through state or local election functions.

Manifestations of the Failure

Georgia result-pressure call

On January 2, 2021, President Trump called Georgia Secretary of State Brad Raffensperger after Georgia had certified its presidential election result and completed multiple reviews of the vote. President Trump asked Raffensperger to “find 11,780 votes,” the number necessary to reverse President Trump’s certified defeat, and invoked possible criminal consequences while urging state officials to act. See the U.S. House Select Committee to Investigate the January 6th Attack, Final Report.

The institutional significance does not depend on a final criminal judgment: a sitting President used federal executive influence to seek a candidate-specific alteration of a state’s lawful election determination. The episode demonstrates that such pressure can occur without a formal order or agency action and without an immediate specialized mechanism to stop it, preserve records, or move investigation outside the presidential chain of command.

Federal citizenship-list and voter-data architecture

In 2026, Executive Order 14399 directed DHS, USCIS, SSA, DOJ, and USPS toward a federal election-control architecture involving state citizenship lists, federal database matching, voter-data transmission, election-fraud investigation priorities, and mail-ballot restrictions. The order was published as 91 Fed. Reg. 17125 and described federal compilation and transmission of state-specific citizenship lists derived from federal records.

Federal litigation then produced decisions blocking or rejecting key parts of that architecture. Public reporting described a federal court blocking an order aimed at creating a federal voter list and restricting mail-ballot distribution, a Sixth Circuit ruling against a demand for sensitive Michigan voter data, and dismissal of a DOJ lawsuit seeking detailed Maryland voter data. See Associated Press, federal voter-list injunction, Michigan voter-data appeal, and Maryland voter-data lawsuit.

DHS threat of penalties and funding consequences

On July 17, 2026, DHS Secretary Markwayne Mullin said that state election officials who did not participate in DHS’s expanded SAVE-based voter-roll program could face fines, penalties, or prison. He also linked federal election-related support or reimbursement to state cooperation. The announcement did not identify a charging instrument, a particular official subject to enforcement, or a legally operative funding decision. See Associated Press, *Mullin pushes states to comply with election demands*, and ABC News, *Mullin threatens to withhold aid from states that don’t comply with DHS election directives*.

The institutional significance is that federal executive power can be converted from case-specific enforcement into a centralized election-administration architecture and reinforced through threatened investigations, penalties, or funding consequences. Even when courts block implementation or no enforcement action follows, state and local officials must respond to federal data demands, reconcile federal database claims with state registration law, protect sensitive voter information, and make election-administration decisions under time pressure.

Resulting Damage

Federal executive interference can distort or delay lawful election administration, coerce state and local officials, undermine federalism, convert federal law-enforcement or administrative powers into electoral leverage, chill resistance to unlawful demands, and damage public confidence that election outcomes are determined by lawful votes rather than federal executive pressure.

The harm exists even when the target refuses and the result remains unchanged. An unsuccessful attempt may still burden officials, consume public resources, generate threats or retaliation, and normalize future misuse of federal office.

Underlying Weakness

The Constitution assigns states primary responsibility for administering elections under state law, subject to federal constitutional protections and valid Acts of Congress. Article I, Section 4 gives Congress broad authority over congressional-election regulation; Article II assigns each state authority over the manner of appointing presidential electors, while reserving specified timing functions to Congress. Neither provision gives the President a general supervisory power over state election administration.

Existing federal law addresses portions of the problem but not the complete institutional defect:

- 5 U.S.C. § 7323 prohibits covered federal employees from using official authority or influence to interfere with or affect an election, but the Hatch Act excludes the President and Vice President from the relevant definition of employee.
- 18 U.S.C. § 595 criminalizes specified official interference with federal elections but is narrower in coverage, remedies, and institutional design.
- 18 U.S.C. §§ 241 and 242 protect federal voting rights but require proof of distinct statutory elements and do not directly create rapid protection for a state election authority facing federal executive pressure.
- obstruction, records, civil-rights, and election statutes may apply to particular conduct but do not establish a unified prohibition, mandatory record, expedited state-initiated remedy, and independent referral process.

The central gap is therefore not the absence of every possible legal prohibition. It is the absence of a coherent rule expressly covering the President and senior executive officials, defining prohibited result-directed interference, preserving legitimate federal functions, and providing relief before the election process becomes irreversible.

Proposal Survey

The Hatch Act already prohibits many federal employees from using official authority to interfere with or affect an election, but it excludes the President and Vice President from the relevant employee definition. See 5 U.S.C. §§ 7321-7326. Criminal law also contains narrower election-interference provisions. See 18 U.S.C. § 595.

The Office of Special Counsel's Federal Employee Hatch Act information confirms the same baseline for federal executive employees: except for the President and Vice President, federal civilian executive-branch employees are covered, and covered employees may not use official authority or influence to interfere with or affect an election result. That source supports the Hatch Act anchor but also shows why ELEC-001 needs a specially bounded extension rather than wholesale application of all Hatch Act restrictions to the President and Vice President.

Civil-rights and voting-rights statutes may reach some coercive conduct, but they do not create a complete state-initiated emergency remedy for misuse of federal executive power. ELEC-001 therefore extends the Hatch Act principle while adding civil and criminal enforcement suited to state election functions.

Least-Complex Adequate Remedy

Amend the Hatch Act rather than create an entirely separate primary regime. The amendment should:

1. extend the prohibition on use of official authority or influence to the President and Vice President for this specific category of conduct without subjecting them to every Hatch Act restriction on political activity;
2. establish a separately named Federal Executive Election Noninterference provision within 5 U.S.C. chapter 73;
3. define state and local election functions, federal governmental authority, preferred electoral outcome, and specifically prohibited conduct;
4. require contemporaneous records and preservation of covered contacts;
5. authorize Office of Special Counsel investigation and ordinary Hatch Act administrative sanctions for covered subordinate officials;
6. provide anti-retaliation protections and referral to Inspectors General;
7. create a companion civil-enforcement title authorizing states and responsible election authorities to seek expedited declaratory, injunctive, preservation, and restorative relief; and
8. enact a companion criminal provision, preferably 18 U.S.C. § 595A, for knowing, intentional, coercive, or result-directed violations.

Where the President, Vice President, Attorney General, or another senior executive official creates a disabling investigative conflict, the matter should be referable to the independent investigative-counsel mechanism developed under DOJ-007. Criminal enforcement against presidential official acts remains subject to current immunity doctrine unless superseded by IMM-001.

This package is less complex than a wholly freestanding election-administration code because it extends an existing federal principle, uses established OSC and MSPB structures, and regulates federal executive actors rather than the internal organization of state elections.

Repair and Prevention

Federal law should prohibit a covered executive official from knowingly using, directing, threatening, authorizing, requesting, or causing the use of official authority or influence derived from federal office to interfere with a state or local election function for the purpose of effectuating, preventing, altering, or securing a preferred outcome for an identified candidate, political party, slate of electors, ballot position, or election result.

The general prohibition should be paired with objectively defined covered acts, including efforts to:

1. add, exclude, alter, manufacture, destroy, suppress, count, or refuse to count votes contrary to law;
2. state, transmit, canvass, recount, or certify a materially false result;
3. depart from an applicable election statute, final judicial order, or lawfully completed administrative determination;
4. initiate or manipulate a federal investigation, prosecution, audit, regulatory action, funding action, intelligence activity, or administrative process without a good-faith lawful basis and for the prohibited electoral purpose;
5. obtain ballots, voting equipment, voter records, election data, citizenship-list data, or election materials without lawful authority;
6. procure a materially false official representation concerning fraud, vote totals, certification, or election results;
7. threaten or impose adverse federal action to obtain an election-related act; or
8. retaliate against an official who refuses an unlawful or unauthorized election-related request.

A completed alteration of the election result should not be required. Attempt, direction, authorization, conspiracy, and knowing material assistance should be covered.

The statute must preserve ordinary political advocacy, public criticism, lawful litigation, good-faith enforcement of federal law, compliance with judicial process, authorized voting-rights and election-crime enforcement, foreign-interference response, and voluntary technical or cybersecurity assistance requested by lawful state authorities.

Proposed Legislation

- Federal Executive Election Noninterference Act

Relationship to Adjacent Proposals

ELEC-001 concerns civilian executive interference through presidential authority, agencies, investigations, funding, regulation, intelligence, administrative process, or official influence.

ELEC-007 should be narrowed to military, National Guard, or armed federal-force intervention in polling, counting, canvassing, recount, certification, or custody of election materials.

REG-001 owns independent-agency removal, vacancy, and functional-disablement concerns, including the July 2026 Election Assistance Commission episode. ELEC-001 should cross-reference that event only if further evidence shows that EAC leadership collapse formed part of a broader federal architecture pressuring state or local election administration.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 77 / 100 (Review Ready)

Adoption Score: 5 / 12 (Limited Adoption Basis)

Adoption Friction: 88 / 100 (Extreme Resistance)

Required Electoral Environment: sixty-vote-senate

Development Priority: active

Internal Review Status: Internal project review complete; external validation pending

Last Internal Review: July 18, 2026 targeted source and remedy-fit review

Scoring Standard: 2026-06-27.2; **Scoring Basis:** Current project standard

Next Review: External validation / follow-up internal review

Full Review History: ELEC-001 review history

Annotation

Enforcement architecture. The eventual legislation should provide layered enforcement:

- immediate three-judge-court review and emergency injunctive relief;

- mandatory contact records, preservation orders, and narrow authorization for state election officials to record covered official communications;
- OSC, OIG, Public Integrity, and DOJ-007 referral according to jurisdiction and conflict;
- administrative discipline and disqualification from delegated election-related functions for subordinate officials;
- substantial civil penalties and reimbursement of state or local response costs;
- calibrated criminal penalties distinguishing attempted pressure, coercive use of federal powers, and completed alteration or falsification; and
- mandatory congressional reporting for substantiated violations involving senior officials.

Courts and investigators should not determine the winner of an election or substitute their policy judgment for lawful state election administration. Their role is to prevent and remedy misuse of federal executive authority.

Basis and Evidence. The Hatch Act already embodies the principle that federal employees may not use official authority or influence to interfere with or affect an election. Its exclusion of the President and Vice President and its employment-centered remedial structure leave the principal conduct identified here inadequately covered. The call between President Trump and Raffensperger is a representative manifestation because the requested numerical alteration corresponded to the margin necessary to reverse the state's certified result. HOR-001 was integrated into this issue because the federal citizenship-list and voter-data architecture is a later manifestation of the same core defect: federal executive authority being used to control, pressure, or restructure state election administration outside ordinary constitutional channels. The July 2026 DHS announcement adds a documented public threat of penalties and funding consequences tied to state voter-roll cooperation; it supports the coercion concern but does not itself establish a statutory violation or the bill's required electoral-purpose element.

Qualification. Federal executive officials retain lawful responsibilities concerning voting rights, election crimes, campaign finance, foreign interference, cybersecurity, federal judicial process, and other functions assigned by the Constitution or Congress. The proposal regulates misuse of federal office, not political speech, criticism, litigation, or good-faith execution of federal law. The term "partisan" is deliberately not used as an operative limitation because prohibited conduct may be personal, candidate-specific, retaliatory, factional, or otherwise result-directed without fitting a narrow partisan classification.

Remedial Alternatives and Constraints. A wholly freestanding statute would permit cleaner organization but would duplicate the Hatch Act's established official-authority principle and enforcement institutions. Amending only the Hatch Act would remain inadequate because OSC–MSPB proceedings cannot supply rapid state-initiated injunctions and should not convert every administrative violation into a felony. The least-complex adequate solution is therefore a Hatch Act amendment with companion civil and criminal titles.

Quality Score. The 77/100 score reflects a Review Ready draft suitable for knowledgeable external critique. The internal project review verified the Hatch Act anchor, official OSC baseline, companion 18 U.S.C. § 595A concept, adjacent rights-statute comparators, three-judge-court source, current EO 14399 source lead, issue-to-legislation alignment, budget caveat, and adoption/friction posture. The score remains below publication-ready because primary court orders for the 2026 litigation, fuller prior-proposal research, state-plaintiff standing analysis, criminal-law narrowing, budgetary-source development, and external election-law review remain incomplete.

Adoption Score. The 5/12 score is limited. ELEC-001 has strong institutional salience, an existing-law anchor in the Hatch Act, and neutral election-integrity framing, but the internal project review did not identify proposal-specific polling, active sponsors, a bipartisan prior bill, state attorney-general coalition support, or external election-law validation for the full mechanism.

Adoption Friction. The 88/100 score is Extreme Resistance. The proposal would regulate presidential and senior executive conduct in election administration, create state-initiated emergency litigation, add criminal exposure, and interact with presidential-immunity doctrine, making organized partisan, executive-power, and constitutional opposition highly likely.

Required Electoral Environment. The required environment is *sixty-vote-senate*, with *Pathway Viability plausible-after-wave* and *Pathway Adjustment stage*. The bill is ordinary federal legislation and does not require constitutional amendment, but adoption likely requires a Senate environment capable of overcoming filibuster constraints or an unusually strong post-election-abuse mandate.

Development Priority. The priority is *active* because the proposal addresses a high-salience electoral-institution vulnerability, has a concrete draft, and can be substantially improved through internal source development, existing-law fit review, and prior-proposal research.

ELEC-002 — Pressure on Certification and Canvassing Officials

Issue Snapshot

Problem: Certifiers can delay or refuse ministerial duties.

Repair: Mandate certification and automatic substitution.

Vehicle: Model state act (draft).

Institutional Anomaly

State election law does not always provide sufficiently clear ministerial certification duties, fixed deadlines, automatic substitution, and immediate judicial enforcement when a designated state or local canvassing or certification official refuses, delays, deadlocks, or exceeds the lawful scope of the certification function.

The issue is directed principally at the design and conduct of state and local certification bodies, not at federal officials who pressure them. Federal executive interference is addressed separately in ELEC-001.

Manifestations of the Failure

Wayne County, Michigan — 2020

On November 17, 2020, the four-member Wayne County Board of Canvassers initially deadlocked along party lines over certification of the county's general-election results. The board later voted unanimously to certify. Two members subsequently sought to rescind their votes, although Michigan officials stated that no legal mechanism existed to undo the completed certification. See Associated Press, *Tape reveals Donald Trump pressured Michigan officials not to certify 2020 vote*.

The deadlock shows that a small canvassing body can temporarily place certification of a large jurisdiction at risk after ordinary tabulation is complete.

Otero County, New Mexico — 2022

On June 13, 2022, the Otero County Commission refused to certify the county's primary-election results based on generalized concerns about voting machines rather than a demonstrated defect in the canvass. The New Mexico Secretary of State sought mandamus, and the New Mexico Supreme Court ordered certification. A majority ultimately complied, while one commissioner continued to refuse. See Axios, *New Mexico Supreme Court orders GOP-led commission to certify primary vote*.

The refusal required emergency mandamus even though the objections rested on generalized concerns rather than a demonstrated canvass defect.

Cochise County, Arizona — 2022

Cochise County supervisors failed to certify the 2022 general-election canvass by the statutory deadline while raising objections concerning voting-machine certification. A state court ordered the board to perform its legal duty, and the county certified after the order. One supervisor later pleaded guilty to a misdemeanor offense for failure or refusal to perform an election duty, and litigation concerning another supervisor confirmed that certification was an administrative rather than discretionary legislative act. See Associated Press, *Two county officials in Arizona plead not guilty to charges for delaying 2022 election certification*, and Axios Phoenix, *Cochise Supervisor Judd takes plea deal in case over delayed 2022 election certification*.

The missed deadline forced emergency litigation before statewide certification could proceed and later produced individual criminal enforcement.

Fulton County, Georgia — 2024

A Fulton County election-board member sought a judicial declaration that local certifying officials possessed discretion to refuse certification based on perceived error or fraud. A Georgia court rejected that position and held that certification was mandatory, explaining that fraud concerns could be referred to appropriate authorities but could not be used to convert certifiers into investigators, prosecutors, judges, and juries. See Axios, *Georgia counties must certify election results, judge rules*, and Associated Press, *Republican election official in crucial Georgia appeals order saying she must certify results*.

The litigation illustrates how a certifier may attempt to combine ministerial certification with investigative and adjudicative functions assigned elsewhere.

Resulting Damage

Refusal, deadlock, or unauthorized delay can disenfranchise an entire jurisdiction, disrupt statewide deadlines, interfere with recounts and election contests, create leverage for alternate-electoral schemes, transfer electoral power from voters to low-visibility officials, consume public resources, and amplify misinformation even when courts eventually compel certification.

Underlying Weakness

Certification law often assumes that officials will perform their duties without expressly addressing strategic nonperformance. Existing provisions may require certification but fail to provide one or more of the following:

- a precise statement that certification is ministerial;
- a narrow definition of what defects may temporarily justify noncertification;
- automatic substitution upon refusal, deadlock, incapacity, or missed deadline;
- immediate mandamus jurisdiction;
- tolling or preservation of downstream deadlines;
- removal from the affected certification matter;
- anti-retaliation protection for officials who perform the duty; and
- consequences calibrated to knowing refusal or falsification.

Proposal Survey

States have begun clarifying certification duties through litigation and statutory practice, while Congress addressed presidential certificate procedures through the Electoral Count Reform and Presidential Transition Improvement Act of 2022. See Pub. L. No. 117-328, div. P. Those federal reforms reduced some electoral-count vulnerabilities but did not comprehensively redesign local and state certification bodies.

Common remedial models include mandamus, ministerial-duty statutes, automatic substitution, expedited judicial review, and penalties for refusal or falsification. ELEC-002 selects model state legislation because state law creates most canvassing and certification offices and can specify the correct substitute official or court.

Least-Complex Adequate Remedy

The least-complex adequate remedy is model state legislation rather than comprehensive federal regulation. States create and administer the relevant county and state certification offices and are best positioned to specify the lawful successor, court, deadline, and enforcement mechanism within their own institutional structures.

A limited federal floor may remain appropriate for elections containing a federal office, particularly under the Elections Clause for congressional elections and existing federal law governing presidential electors. The primary recommendation, however, is uniform state adoption of the model act.

Repair and Prevention

Each state should adopt a Model State Election Certification and Automatic Substitution Act providing that:

1. certification is ministerial after completion of tabulation, canvassing, recount, and adjudicative procedures assigned by law;
2. certifiers may identify only specific arithmetic, documentary, or statutory defects within their assigned authority;
3. generalized allegations of fraud, policy disagreement, personal belief, or matters assigned to another tribunal do not authorize withholding certification;
4. any temporary withholding must be written, particularized, and issued within a short statutory period;
5. refusal, deadlock, incapacity, or failure to meet the deadline automatically transfers the duty to a designated substitute official or court;
6. mandamus or equivalent emergency relief is available immediately;
7. downstream deadlines remain protected and may not be defeated by strategic delay;
8. officials may refer suspected fraud or illegality to law enforcement without withholding certification;
9. knowing refusal or delay for an unauthorized purpose supports removal from the matter, civil penalties, reimbursement of public costs, and appropriate discipline; and
10. intentional falsification, concealment, destruction, or corrupt alteration of certification records may be criminally punished.

Proposed Legislation

- Model State Election Certification and Automatic Substitution Act

Relationship to Adjacent Proposals

- **ELEC-001** regulates federal executive officials who interfere with state election administration.
- **ELEC-002** makes the state certification mechanism resistant to refusal or deadlock regardless of the source or motive.
- **ELEC-005** addresses alternate-electoral and false-certification schemes.

- **ELEC-008** addresses broader accountability for efforts to overturn lawful election results.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 76 / 100 (Review Ready)
Adoption Score: 5 / 12 (Limited Adoption Basis)
Adoption Friction: 58 / 100 (Significant Resistance)
Required Electoral Environment: state-level-pathway
Development Priority: active

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Internal Review Status: Internal project review complete; external validation pending
Last Internal Review: Internal project review
Scoring Standard: 2026-06-27.2; **Scoring Basis:** Current project standard
Next Review: External validation / follow-up internal review
Full Review History: ELEC-002 review history

Annotation

Scope. This issue retains the existing title because pressure upon certifiers remains an important manifestation, but its distinct institutional subject is the vulnerability of the certification mechanism itself.

State-Level Orientation. The proposal is intended principally as model state legislation. It does not presume a federal takeover of state election administration.

Qualification. Certification must not become automatic in the sense of ignoring a demonstrated defect that state law assigns the certifier to resolve. The model statute therefore permits narrow, written identification of defects within the official's lawful authority while prohibiting generalized investigation or relitigation through the certification process.

Quality Score. The 76/100 score reflects a Review Ready draft suitable for knowledgeable external critique. The internal project review verified the model-state vehicle, ministerial-duty theory, automatic substitution design, manifestation source coverage, ECRA background treatment, issue-to-legislation alignment, budget caveat, and state-by-state adoption posture. The score remains below publication-ready because primary court orders or official state records, representative state statutory comparisons, administrator/stakeholder validation, federal-floor analysis, optional appropriation language, and penalty calibration remain incomplete.

Adoption Score. The 5/12 score is limited. ELEC-002 has a plausible state-level model-law path and concrete recent examples, but the internal project review did not identify proposal-specific polling, state sponsor coalitions, election-administrator endorsements, bipartisan adoption records, or comparable enacted model-law uptake.

Adoption Friction. The 58/100 score is Significant Resistance. The proposal is less nationally partisan than federal executive-election-interference reforms and preserves lawful defect correction, but it constrains local certification officials, may draw state-level election-administration opposition, and will be resisted where certification discretion is treated as a partisan leverage point.

Required Electoral Environment. The required environment is state-level-pathway, with Pathway Viability state-by-state and Pathway Adjustment model-law. The proposal does not require federal legislation as its primary vehicle.

Development Priority. The priority is active because the proposal addresses a recurring election-administration failure, has multiple real-world manifestations, and can improve through ordinary state-law source development and model-bill refinement.

ELEC-003 — Insufficient Protection for Election Workers and Officials

Issue Snapshot

Problem: Election personnel face uneven protection.

Repair: Pair state protections with HAVA funding.

Vehicle: State and federal acts (state, federal).

Institutional Anomaly

Election administration depends on permanent officials, temporary workers, contractors, and volunteers who perform legally indispensable and politically sensitive duties, yet protection against threats, violence, coercive intimidation, unlawful disclosure of personal information, retaliation, and targeted harassment remains fragmented, reactive, and uneven among jurisdictions.

The federal government should not become the primary administrator, supervisor, or operational protector of state election personnel. Protection should remain principally state and local, with federal support confined to a narrowly structured financial backstop and independently authorized federal criminal enforcement.

Manifestations of the Failure

Election workers, officials, and their families — Georgia, 2020–2022

After false allegations accused Fulton County election workers Ruby Freeman and Wandrea “Shaye” Moss of manipulating ballots, both women and members of their family were subjected to sustained racist harassment and death threats. Freeman testified that the FBI advised her to leave her home through the presidential inauguration. Moss testified that people went to her grandmother’s home, attempted to push inside, and claimed that they intended to make a “citizen’s arrest.” Moss subsequently left election work. The episode demonstrates family targeting, forced displacement, career loss, and the inability of ordinary post hoc remedies to prevent severe personal and institutional damage. See U.S. House Select Committee to Investigate the January 6th Attack, *Final Report*, ch. 2 (2022); fourth public hearing materials and testimony.

Georgia Secretary of State Brad Raffensperger likewise testified that his personal information was disseminated, his wife received sexualized threats, and intruders entered the home of his widowed daughter-in-law after he refused efforts to alter Georgia’s certified result. Similar testimony described armed or threatening demonstrations outside other officials’ homes. These examples show the same institutional failure at different levels of election administration: political disputes were transferred to officials’ homes and families. See the Select Committee Final Report and summary of fourth-hearing testimony.

Threats against bipartisan Arizona election officials — 2021–2025

Federal prosecutions have documented repeated threats against Arizona election officials of both parties. James W. Clark threatened to detonate an explosive device unless then-Secretary of State Katie Hobbs resigned, searched for her home address and methods of killing her, and caused evacuation of portions of the state government complex and security sweeps of Hobbs’s home and vehicle. He was sentenced in March 2024 to 42 months’ imprisonment. Other prosecutions have involved threats against Maricopa County officials and later threats against officials in both Arizona and Colorado. These cases demonstrate that existing criminal law can punish provable true threats but often only after evacuation, fear, security expense, and operational disruption have already occurred. See *The Guardian*, March 12, 2024; Associated Press, May 29, 2025.

Election Day bomb threats and polling-place closures — 2024

On November 5, 2024, bomb threats were directed at polling locations in multiple battleground states. The FBI stated that many appeared to originate from Russian email domains and that none had been determined credible at the time. At least two Fulton County, Georgia polling locations were evacuated and closed temporarily; officials sought extended voting hours to compensate for the interruption. Later research identified at least 227 threats against polling places and tabulation centers and found evidence that extending hours may not have fully cured turnout suppression at affected DeKalb County precincts. This episode demonstrates that even noncredible threats can disrupt voting, divert law-enforcement resources, expose workers to risk, and produce harm that cannot necessarily be repaired after the fact. See Reuters, November 5, 2024; Sequoia Andrade & Philip B. Stark, *Does Extending Polling Hours Compensate for Bomb Threats? Evidence from the 2024 Election in Georgia, USA* (2025).

Workforce attrition and recruitment damage — nationwide

The harm is not limited to a few prominent prosecutions. In a 2024 Brennan Center survey of 928 local election officials, 38 percent reported threats, harassment, or abuse related to their work; 27 percent reported knowing one or two officials who had resigned because of safety concerns; and 20 percent stated that they were unlikely to remain through the 2026 midterms. These findings support the institutional inference that intimidation is degrading experience, recruitment, and continuity across election offices even when no single communication results in prosecution. See Brennan Center survey reporting, May 1, 2024.

Existing criminal enforcement is necessary but incomplete. Some dangerous conduct remains constitutionally protected, cannot be attributed or proved beyond a reasonable doubt, falls below the applicable criminal threshold, or causes operational damage before prosecution can occur.

Resulting Damage

Inadequate protection can remove experienced personnel, deter recruitment, distort official judgment, increase security costs, disrupt polling or counting facilities, weaken continuity of operations, and make lawful election administration depend on whether individual officials are willing to endure escalating personal danger.

Personal courage should not substitute for institutional protection.

Underlying Weakness

The protection system may lack one or more of the following:

- uniform coverage of permanent and temporary election personnel;
- protection for family or household members targeted because of election duties;
- rapid threat reporting and risk assessment;
- expedited protective orders and emergency security assistance;
- address-confidentiality and anti-doxxing protections;
- facility-security and continuity planning;
- clear coordination among election administrators, law enforcement, prosecutors, and courts;
- civil, criminal, and administrative remedies calibrated to distinct forms of misconduct;
- financial capacity for small or resource-constrained jurisdictions; and
- safeguards against politically selective protection or enforcement.

A federal remedy centered on discretionary executive supervision would create an additional institutional risk: the same funding or protection mechanism could be used to reward, punish, pressure, or influence state election administration.

Proposal Survey

Federal law already protects voting rights and criminalizes some intimidation, threats, and interference. Relevant models include the Voting Rights Act intimidation provision, federal threat statutes, and civil-rights enforcement authority. See 52 U.S.C. § 10307) and 18 U.S.C. § 875).

Election-administration funding also has an established vehicle: the Help America Vote Act of 2002 created federal support through the Election Assistance Commission while preserving state administration. See 52 U.S.C. chapter 209. ELEC-003 combines state protection statutes with a HAVA-style funding backstop rather than federal operational control.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a coupled legislative package:

1. a model state Election Personnel Protection Act establishing the substantive, politically neutral protection regime; and
2. a narrowly drawn HAVA amendment offering automatic formula payments only to states maintaining that regime.

The state supplies legal protection and operational administration. The federal government supplies only a voluntary financial backstop, objective verification, protection-purpose accounting, and independently authorized criminal enforcement. Failure to participate results only in loss of the new grant.

This structure is less coercive and less susceptible to executive leverage than withholding existing election, justice, homeland-security, transportation, or other federal funds.

Repair and Prevention

State protection regime

Each state should enact a politically neutral election-personnel protection statute that:

1. protects permanent and temporary election officials, employees, poll workers, contractors, and volunteers when targeted because of election-related duties;
2. extends appropriate protection to family or household members targeted for the same reason;
3. applies without regard to party, candidate, viewpoint, ideology, election outcome, or the perceived political effect of an official act;
4. addresses threats, violence, coercive intimidation, unlawful doxxing, retaliation, and targeted harassment while preserving constitutionally protected speech;

5. establishes rapid reporting, threat assessment, and referral procedures;
6. authorizes expedited protective orders, emergency security, temporary relocation, and related support where justified;
7. protects residential and other sensitive personal information where constitutionally permissible;
8. requires facility-security and continuity-of-operations planning;
9. provides enforceable state remedies and institutional responsibility through existing state and local bodies; and
10. remains operative regardless of whether federal funding is available or accepted.

Limited federal support through HAVA

Congress should amend the Help America Vote Act of 2002 by adding a self-contained Election Personnel Protection Payments program. The program should provide automatic, formula-based block grants only to states that enact and maintain a qualifying neutral protection statute containing the minimum protections expressly enumerated by Congress.

Enactment and maintenance of the qualifying state statute should be the sole substantive eligibility condition. Grant funds should remain restricted to election-personnel protection and operational continuity, with ordinary accounting, audit, and anti-fraud requirements.

The amendment should:

1. create a new and dedicated funding stream rather than threaten existing HAVA or unrelated federal funds;
2. require only state certification and a provision-by-provision statutory crosswalk, not a federally approved state plan;
3. make qualification automatic after objective verification of the enumerated statutory elements;
4. prohibit competitive awards, discretionary scoring, waivers, supplemental eligibility conditions, and federal evaluation of state election policies;
5. confine the Election Assistance Commission, or any other administrator, to ministerial payment, accounting, and misuse-review functions;
6. preserve exclusive state control over institutional placement, procedures, enforcement, and methods of compliance beyond the enumerated minimum protections;
7. prohibit federal consideration of voter eligibility, registration, voting methods, ballot custody, counting, canvassing, recounts, certification, elector appointment, election outcomes, or election disputes;
8. prohibit a state's ineligibility from affecting any other federal payment or assistance; and
9. provide expedited de novo judicial review of a denial identifying the specific missing statutory element.

Federal criminal jurisdiction should remain limited to independently defined federal offenses, including conduct with an appropriate federal or interstate nexus. It should not become a source of administrative control over state election processes.

Proposed Legislation

- Model State Election Personnel Protection and Continuity Act
- Election Personnel Protection Amendments to the Help America Vote Act of 2002

Relationship to Adjacent Proposals

- **ELEC-001** concerns federal executive interference with state and local election administration.
- **ELEC-002** concerns the legal resilience of canvassing and certification mechanisms.
- **ELEC-003** concerns the personal security and operational continuity of election personnel throughout the election process.
- **ELEC-007** concerns military, National Guard, or armed federal-force intervention in election administration.
- **ELEC-008** concerns broader accountability for efforts to overturn lawful election results.

A threat intended to compel a certification decision may implicate both ELEC-002 and ELEC-003. ELEC-002 owns the certification mechanism; ELEC-003 owns protection of the targeted person and continuity of election operations.

Budgetary Impact Statement

Budget authority is likely required; no dollar estimate is assigned pending source-backed cost data.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 77 / 100 (Review Ready)
Adoption Score: 5 / 12 (Limited Adoption Basis)
Adoption Friction: 58 / 100 (Significant Resistance)
Required Electoral Environment: state-level-pathway
Development Priority: active

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Internal Review Status: Internal project review complete; external validation pending
Last Internal Review: Internal project review
Scoring Standard: 2026-06-27.2; **Scoring Basis:** Current project standard
Next Review: External validation / follow-up internal review
Full Review History: ELEC-003 review history

Annotation

Legislation crosswalk. The model state act should satisfy the federal HAVA eligibility structure through a provision-by-provision statutory crosswalk. The current draft maps federal minimum requirements to state-act sections covering protection of election personnel and covered family or household members; politically neutral administration; prompt reporting, threat assessment, referral, and coordination; emergency protective assistance; expedited protective relief; address confidentiality and data minimization; remedies for threats, coercion, retaliation, doxxing, false emergency reports, bomb threats, swatting, and comparable misconduct; continuity planning; workforce support; aggregate reporting; neutral application; and continued state-law operation regardless of federal funding.

The current model state draft also maps documented manifestations to remedy provisions. Freeman and Moss-style threats, family targeting, forced displacement, and career loss are addressed through reporting, family-inclusive assessment, emergency relocation, protective orders, address confidentiality, doxxing liability, threat offenses, counseling, leave, anti-retaliation, and retention support. Arizona-style threats, evacuation, and later prosecution are addressed through rapid assessment, preventive security, protective orders, threat liability, restitution, evacuation protocols, backup operations, and continuity planning. Election Day bomb threats and polling-place closures are addressed through aggravated liability, restitution, relocation, public notice, backup sites, staffing, records preservation, and lawful remedial procedures. Raffensperger-family-style doxxing, sexualized threats, and intrusion are addressed through family and household protections, suppression of exposed personal information, emergency residential security, and civil and criminal remedies for targeted disclosure and coercion. Workforce attrition is addressed through counseling, protected leave, replacement staffing, recruitment and retention assistance, aggregate measurement, and needs-based funding.

Constitutional Structure. Congress may encourage state action through clearly stated, related, and genuinely voluntary spending conditions. The proposal avoids commandeering by leaving states free to decline the new funds and avoids the principal coercion concern identified in *NFIB v. Sebelius* by placing no existing or unrelated funding at risk. See U.S. Const. art. I, § 8, cl. 1; *South Dakota v. Dole*, 483 U.S. 203 (1987); *NFIB v. Sebelius*, 567 U.S. 519 (2012); *Murphy v. NCAA*, 584 U.S. 453 (2018).

HAVA Placement. HAVA already provides a federal-state election-assistance architecture, including state certification and requirements payments. The proposed amendment should constitute a separate part rather than add election-personnel protection to the existing HAVA voting-system requirements or state-plan process. See 52 U.S.C. §§ 20921, 21001–21008, 21081–21085.

Neutrality. Political neutrality requires equal eligibility, procedures, benefits, enforcement standards, and remedies without regard to political affiliation, candidate preference, viewpoint, election-related position, or the political consequences of an official act. It does not prohibit risk-based distinctions grounded in credibility, imminence, severity, vulnerability, prior conduct, or operational impact.

First Amendment Qualification. The state regime must distinguish true threats, unlawful intimidation, retaliation, and actionable disclosure of protected information from constitutionally protected criticism, advocacy, protest, and rhetorical hyperbole. Criminal penalties should not be treated as the exclusive remedy because harmful conduct may remain protected, unattributable, unprovable, or below a criminal threshold.

Federalism Firewall. Federal eligibility review should be binary and statutory, not a general assessment of whether federal officials approve of a state's election-security program. No regulation, guidance, executive order, or grant term should be permitted to add substantive conditions beyond those enacted by Congress.

Source Note. The manifestations are illustrative rather than exhaustive. The examples were selected to show distinct institutional failures: individual and family targeting, forced displacement, prosecutable true threats, facility evacuation, Election Day operational disruption, and workforce attrition.

Quality Score. The 77/100 score reflects a Review Ready draft under scoring standard 2026-06-27.2. The internal project review confirmed the required issue architecture, state-primary remedy design, HAVA funding hook, issue-to-legislation alignment, budget-statement posture, official-law source coverage, Maryland state-law analogue, EOLDN functional legal-assistance analogue, and prosecution-limit source support. The score remains below publication-ready because primary records for every manifestation, representative state-law comparison, full federal prior-proposal research, source-backed fiscal analogues, election-administrator validation, and deeper First Amendment/doxxing analysis remain incomplete.

Adoption Score. The 5/12 score is limited. ELEC-003 has a plausible state-by-state model-law path, a federal grant-support vehicle, bipartisan institutional beneficiaries, and concrete recent manifestations, but the internal project review did not identify proposal-specific

polling, sponsor coalitions, enacted model-state uptake, election-administrator endorsements, or bipartisan legislative records sufficient to award higher adoption credit.

Adoption Friction. The 58/100 score is Significant Resistance. The proposal protects election personnel of all parties and preserves state administration, which lowers friction, but it touches election administration, speech-adjacent threat and doxxing rules, appropriations, state-federal grant conditions, and security operations, each of which creates meaningful opposition, litigation, and implementation risk.

Required Electoral Environment. The required environment is state-level-pathway, with Pathway Viability state-by-state and Pathway Adjustment model-law-and-voluntary-federal-grant. The model state act can proceed state by state, while the federal HAVA amendment would require federal legislation and appropriations to create the voluntary funding backstop.

Development Priority. The priority is active because election-personnel threats, operational disruption, and workforce attrition remain live election-administration risks and the proposal has concrete vehicles for continued development.

Prior-Proposal and Existing-Law Fit. The internal project review confirms that the draft should remain coupled rather than solely federal. Existing federal threat and voting-rights statutes punish some conduct but do not create a complete personal-security, continuity, and workforce-support regime; reporting on the DOJ election-threats task force indicates that prosecution alone reaches only a subset of threats. Source leads show state-law movement, including Maryland's enacted 2024 Protecting Election Officials Act, and a functional legal-assistance analogue through the Election Official Legal Defense Network. A follow-up internal review should complete a direct Congress.gov and state-legislature survey.

ELEC-004 — Abuse of Election Litigation and Civil Process

Issue Snapshot

Problem: Process can manufacture election uncertainty.

Repair: Add election Anti-SLAPP screening.

Vehicle: Federal and state acts (federal, state).

Institutional Anomaly

This issue is modeled on the logic of **Anti-SLAPP** laws. Anti-SLAPP statutes recognize that the legal process itself can be abused: even a weak claim can impose cost, delay, discovery burdens, reputational harm, and coercive pressure before a court reaches the merits. ELEC-004 applies that same procedural insight to election proceedings. The adapted target is not ordinary speech or petitioning activity, but the use of election litigation, civil subpoenas, noncriminal audits, inspection demands, or comparable civil process to delay certification, manufacture uncertainty, harass election personnel, obtain sensitive election materials, or create a false predicate for extra-legal pressure.

Election law necessarily permits candidates, parties, voters, public officials, and authorized institutions to seek recounts, contests, audits, administrative review, and judicial relief. Existing law, however, does not always distinguish quickly and reliably between good-faith election review and proceedings used primarily for improper procedural leverage.

The institutional problem is not the availability of election challenges. The problem is the use of formal legal, quasi-legal, subpoena, audit, inspection, or judicial mechanisms to convert unsupported allegations into deadline pressure, evidentiary rummaging, official harassment, or public claims that a lawful result remains unresolved.

Manifestations of the Failure

2020 post-election litigation and emergency-relief wave

After the 2020 presidential election, numerous lawsuits were filed challenging procedures, vote counting, certification, or state results. Many were dismissed for lack of standing, laches, lack of evidence, failure to state a claim, or absence of a legally available remedy. Even when unsuccessful, such filings imposed emergency burdens on courts and election officials and could be used publicly to claim that results remained legally contested.

Pennsylvania — mismatch between public fraud narrative and court presentation. In federal litigation challenging Pennsylvania's result, public claims of fraud were not matched by the legal theory ultimately presented in court. Counsel stated that the case was not a fraud case, and the Third Circuit rejected the effort to undo certification. The episode illustrates how litigation may prolong public allegations even when the courtroom presentation does not support them. See *Donald J. Trump for President, Inc. v. Secretary Commonwealth of Pennsylvania*, No. 20-3371 (3d Cir. Nov. 27, 2020).

Michigan — post-election suit and later sanctions. A federal post-election suit in Michigan sought extraordinary relief affecting the presidential result. The district court later sanctioned counsel, finding that the suit had been filed without adequate factual and legal basis and was not a legitimate vehicle for overturning the result. This episode illustrates that a proceeding may appear initially as litigation but later prove sanctionable when its factual basis, purpose, or coordination is examined more fully. See *King v. Whitmer*, Opinion and Order, Civil Case No. 20-13134 (E.D. Mich. Aug. 25, 2021).

Wisconsin, Nevada, Georgia, and other state proceedings. Post-election challenges in multiple states sought relief that would have affected certified or certifiable results, including selective invalidation of votes, extraordinary review, or annulment theories. Courts generally rejected claims that failed to establish material error sufficient to change the result or justify the requested remedy. These proceedings show the need for early materiality and remedy-fit requirements when a filing seeks election-disruptive relief. In Wisconsin, the Seventh Circuit affirmed rejection of a post-certification Electors Clause challenge on delay and merits grounds. See *Trump v. Wisconsin Elections Commission*. In Georgia, the hearing transcript in *Pearson v. Kemp*, No. 1:20-CV-4809-TCB (N.D. Ga. Dec. 7, 2020) provides primary support for a narrow remedy-fit example involving emergency election-disruptive relief, inspection/access demands, and decertification-style remedies.

2025–2026 federal voter-data and state-record demands

The 2025–2026 DOJ campaign used Voting Section letters, administrative requests, civil litigation, and information-sharing demands to seek state voter rolls, identifiers, and election records. The ELEC-004 Civil Process and State Election Records Catalog preserves the evidence by chronology and process type. The campaign illustrates how noncriminal process can burden election offices, expose sensitive records, or create election-time pressure even when a court ultimately rejects or narrows the demand. ELEC-001 and ELEC-010 separately address the broader federal election-control and mail-ballot architecture.

Resulting Damage

Abusive election proceedings can compress statutory deadlines, shift attention from ordinary recount and contest channels, increase litigation and security costs, burden election personnel, expose sensitive materials, encourage forum shopping, create public misimpressions of legal uncertainty, and provide a predicate for certification delay, alternate-electoral schemes, legislative intervention, or federal executive pressure.

The damage is often procedural rather than outcome-determinative: delay, uncertainty, access pressure, and public delegitimization may succeed even when the underlying case eventually fails.

Underlying Weakness

Existing law may lack:

- Anti-SLAPP-style early screening adapted to extraordinary election-disruptive relief;
- a motion-invoked trigger that avoids unnecessary screening where no party disputes material facts or no sensitive civil process is sought;
- a pre-election timing bar preventing special motions concerning elections more than 180 days away, except for immediate sensitive-material or present security/privacy risks;
- an express rule that no fixed post-election cutoff applies while the proceeding remains functionally related to the election result, election administration, or sensitive election material;
- particularized pleading and evidentiary-proffer requirements;
- automatic stays of intrusive discovery, subpoenas, or inspection demands;
- materiality and remedy-fit requirements before certification or election deadlines are affected;
- protections for ballots, voter data, election equipment, source code, logs, chain-of-custody records, and security procedures;
- prompt sanctions for knowingly false, frivolous, or improper-purpose filings;
- later-discovered improper-purpose sanctions where coordination or bad faith emerges after initial proceedings;
- clear separation between citizen reporting, recounts, contests, audits, certification, civil proceedings, and litigation;
- expedited appellate review before downstream deadlines expire; and
- safeguards against chilling good-faith reporting or authorized election contests.

Proposal Survey

Anti-SLAPP statutes provide the closest procedural analogue: early screening, discovery stays, burden clarification, and fee shifting for abusive litigation. Because Anti-SLAPP law is primarily state law and varies widely, ELEC-004 adapts the architecture rather than copying any single state statute.

Representative state comparison also shows why the state model must be adapted jurisdiction by jurisdiction. Nevada, for example, has an Anti-SLAPP special-motion framework in NRS 41.660 and 41.670, while election-contest timing, verification, materiality, presidential-electoral contest, and ballot-inspection constraints appear in NRS chapter 293. Those provisions are useful comparators, not a complete model for all states.

Federal procedural models also exist for accelerated election litigation and sensitive-material protection, including expedited review provisions in the Electoral Count Reform Act, ordinary protective-order practice, and Congress's authority to prescribe federal procedure by statute. See 3 U.S.C. § 5, the official Federal Rules of Civil Procedure, and 28 U.S.C. § 2072).

The January 2026 Supreme Court decision in *Berk v. Choy* strengthens the need to frame ELEC-004 as express federal legislation, not a court-inferred screening gloss on ordinary pleading rules. *Berk* held that a state affidavit-of-merit screen could not apply in federal court where it conflicted with Rules 8 and 12. ELEC-004 therefore should operate as a specific congressional procedure for covered federal election proceedings and should say so expressly.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a two-track package:

1. mandatory federal-court Anti-SLAPP-style screening, discovery control, sensitive-material protection, and later-discovered improper-purpose sanctions for federal election proceedings; and
2. model state legislation encouraging states to adopt parallel procedures for state courts and state-law election proceedings.

This approach avoids a federal takeover of state election-contest systems while ensuring that federal courts do not become vehicles for election-disruptive litigation, evidentiary rummaging, or later-discovered coordinated schemes.

Repair and Prevention

Federal-court legislation

Congress should enact an Anti-SLAPP-style federal Election Proceedings Integrity Act governing federal-court proceedings that seek election-disruptive relief or access to sensitive election materials in elections involving federal office. The statute should include:

1. a motion-invoked special procedure to screen election proceedings seeking extraordinary relief;
2. a bar on special motions concerning elections more than 180 days away, except where immediate sensitive-material access or a present security/privacy risk is at issue;
3. no fixed post-election cutoff where the proceeding remains functionally related to election administration, the election result, certification, recounts, contests, elector appointment, or sensitive election material;
4. an automatic stay of intrusive discovery, subpoenas, inspections, and sensitive-material access pending screening once a proper motion is filed;
5. early requirements of legal authority, timeliness, particularized facts, materiality, evidentiary support, and remedy fit;
6. heightened findings before certification, elector appointment, counting, tabulation, recount, or other statutory election deadlines may be delayed or disturbed;
7. protective-order procedures for ballots, voter data, equipment, source code, logs, chain-of-custody records, and security-sensitive information;
8. narrow discovery only where necessary to test a specific, colorable, material claim;
9. fee shifting and sanctions only upon specific findings of abuse, bad faith, frivolousness, knowingly false factual allegations, improper purpose, harassment, delay, or unauthorized-access motive;
10. a post-disposition lookback mechanism allowing sanctions where later-discovered evidence proves that the proceeding was part of a coordinated improper scheme; and
11. safe harbors for good-faith citizen reporting, ordinary recounts, ballot-specific voter remedies, and statutorily authorized contests.

Model state legislation

States should be encouraged to enact a parallel Anti-SLAPP-style Election Proceedings Integrity Act for state courts, state-law election contests, recount litigation, nonstatutory audit demands, subpoenas, and proceedings seeking to affect state or local certification. State adoption is necessary because many election contests and challenges arise in state court and under state law.

Citizen reporting distinction

ELEC-004 does not regulate ordinary citizen complaints, reports of suspected irregularity, ballot-specific voter remedies, or statutorily authorized recount participation. A voter may report suspected irregularities to election officials, law enforcement, candidates, parties, prosecutors, or other authorized bodies without triggering the special screening or sanctions mechanism.

The screening procedure applies to proceedings or demands that seek coercive, disruptive, or sensitive-material relief, regardless of whether the filer is a candidate, party, official, organization, attorney, or private plaintiff.

Proposed Legislation

- Federal Election Proceedings Integrity Act
- Model State Election Proceedings Integrity Act

Relationship to Adjacent Proposals

- **ELEC-001** concerns federal executive interference with state and local election administration.
- **ELEC-002** concerns certification refusal, deadlock, delay, or unauthorized discretion by certification bodies.
- **ELEC-003** concerns protection of election personnel from threats, harassment, doxxing, retaliation, and operational disruption.
- **ELEC-004** concerns Anti-SLAPP-style control of abusive election litigation, civil subpoenas, audit requests, inspection demands, and extraordinary proceedings.
- **ELEC-005** concerns alternate-electoral or false-certification schemes.
- **ELEC-008** concerns broader accountability for efforts to overturn lawful results.
- **ELEC-014** concerns federal criminal investigative process directed at state-administered elections, election officials, voter-registration activity, voter data, ballots, voting systems, or voting-rights organizations.
- **DOJ-002** and **DOJ-003** concern politicized federal law-enforcement direction, charging, enforcement, and favoritism.

ELEC-004 may supply the procedural predicate for ELEC-002 or ELEC-005 conduct, but it owns the abuse of formal election process itself.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Proposal Scoring

Proposal Quality Score: 75 / 100 (Review Ready)

Adoption Score: 4 / 12 (Limited Adoption Basis)

Adoption Friction: 72 / 100 (High Resistance)

Required Electoral Environment: sixty-vote-senate

Development Priority: active

Internal Review Status: Manifestations reorganized by chronology and type; review-ready score preserved while external legal review and additional primary-source expansion remain needed

Last Internal Review: Manifestation chronology and type reorganization

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current project standard; **Revision Review Needed:** No

Next Review: Qualified federal-courts/election-law review; source-develop DOJ civil voter-data and state-election-record demand campaign by chronology and process type through primary letters, complaints, orders, and state responses; retrieve Nevada primary order; complete representative state comparison beyond Nevada; decide title 28 codification; and complete Petition Clause review

Full Review History: ELEC-004 review history

Annotation

Legislation crosswalk. The federal and model state bills are intended to mirror one another while respecting institutional differences. ELEC-004 applies to federal courts and federal election proceedings; ELEC-004-state adapts the same architecture for state courts, state election tribunals, state civil subpoenas, administrative or legislative demands, and state-law election contests. The federal bill currently preserves federal criminal investigation and prosecution. Federal criminal investigative searches, interviews, and subpoenas directed at election-related civic participation, state election administration, ballots, voter data, or voting infrastructure are now treated as ELEC-014 source-development material rather than ELEC-004 remedies. Future revisions should check the corresponding federal or state draft before materially changing definitions, timing, special-motion procedure, stays, emergency-relief findings, sensitive-material protections, sanctions, later-discovered sanctions, expedited review, savings clauses, uniform application, relation-to-law provisions, or severability.

The remedy architecture addresses abusive pre-election challenges through the 180-day timing bar, relief-based trigger, special screening motion, stay, and emergency-relief findings; unsupported public fraud narratives through evidentiary, materiality, remedy-fit, and sanctions requirements; post-election disruption through no fixed post-election cutoff and emergency-relief findings; sensitive-material demands through stay and protective-order requirements; broad subpoenas, audits, inspections, or forensic demands through screening, narrowing, quashing, conditioning, and sanctions; later-discovered coordination through the post-disposition sanctions mechanism; and good-faith-report chilling through preserved-activity provisions.

Anti-SLAPP Analogy. This issue expressly borrows from Anti-SLAPP architecture: early screening, discovery stay, burden clarification, fee-shifting, and sanctions. The model is adapted for public-law election proceedings rather than ordinary civil claims affecting speech or petitioning.

Motion-Invoked Procedure. The screening mechanism is not automatic. It is invoked by a party or affected person, allowing uncontested cases, pure questions of law, and cases without sensitive-material or election-disruptive relief to proceed without unnecessary screening delay.

Timing Rule. The special motion is barred for future elections more than 180 days away, except where immediate access to sensitive election material or a present security/privacy risk is at issue. No fixed post-election cutoff applies; after the election, availability depends on functional relation to the election result, election administration, or sensitive election material.

No Anti-Challenge Rule. The proposal does not disfavor election challenges. It requires an early showing only when a proceeding seeks extraordinary relief, deadline disruption, intrusive discovery, sensitive-material access, or other coercive process capable of impairing election administration.

Later-Discovered Coordination. Sanctions should remain available after final disposition where later evidence shows that a filing or demand was materially connected to an improper scheme. The penalty is not retroactive criminalization; it is deferred enforcement against conduct that was improper when undertaken but provable only later.

Federalism. Federal legislation should govern federal courts and federal-election-related proceedings. States should be encouraged, not commandeered, to adopt parallel procedures for state courts and state-law contests.

Targeted Source / Comparator Follow-Up. The July 4, 2026 follow-up verified primary order support for the Michigan sanctions manifestation, added a Georgia hearing transcript source for *Pearson v. Kemp*, and added official Nevada Anti-SLAPP and election-contest statutory comparators. The same-day score recalibration treats that work as enough to move ELEC-004 into Review Ready status for knowledgeable external critique. The pass did not retrieve a primary Nevada *Law v. Whitmer* order, replace the Wisconsin mirror with an official Seventh Circuit PDF, complete representative-state review beyond Nevada, or supply qualified external legal review.

Source Development Pending. Further development should cite representative cases and orders from Nevada and other election proceedings, together with additional state Anti-SLAPP analogues, state election-contest statutes, ballot-secrecy rules, open-records limits, and representative state court-rule constraints. Pennsylvania has direct Third Circuit source support; Michigan now has primary

order support; Georgia now has hearing-transcript support; Wisconsin has a reviewed Seventh Circuit opinion mirror but should still be replaced or supplemented with the official court PDF if available; and Nevada still needs primary-order retrieval or narrower phrasing.

Civil Record-Demand Source Routing. The July 9, 2026 ELEC-014 boundary cleanup routes civil and administrative voter-data lawsuits, Voting Section letters, state-election-record requests, and noncriminal information-sharing demands primarily to ELEC-004 rather than ELEC-014. ELEC-004 should source-develop those materials as civil-process examples while preserving ELEC-014 for warrants, grand-jury subpoenas, criminal subpoenas, criminal investigations, and prosecution-threat communications.

Civil Process Catalog. The ELEC-004 civil-process catalog now carries the detailed working table for DOJ civil voter-data requests, voter-roll lawsuits, information-sharing proposals, and noncriminal state-election-record demands. Use that catalog, not the ELEC-014 criminal-process catalog, for civil suits and administrative record-demand source development.

Manifestation and scope organization. The concise manifestation section now retains two evidence-bearing episodes: the 2020 post-election litigation wave and the 2025–2026 federal civil voter-data campaign. The civil-process catalog, rather than the reader-facing section, carries the broader source-development taxonomy for pre-election challenges, civil subpoenas, audits, inspections, record demands, and administrative process. Federal criminal searches, interviews, grand-jury process, and prosecution threats remain assigned to ELEC-014.

Quality Score. The 75/100 score reflects a Review Ready proposal after follow-up internal review and same-day score recalibration. The current component calculation is: Structural 8/8; Evidence 10/12; Legal Fit 7/10; Prior-Proposal 5/8; Remedy 9/12; Implementation 7/8; Abuse Resistance 7/8; Drafting 8/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4; Penalties 0. The recalibration raises Evidence from 9 to 10 because the follow-up replaced the Michigan source lead with a verified primary sanctions order, added a Georgia primary hearing transcript, and added reviewed source-inventory rows for the new materials. It raises Implementation from 6 to 7 because the Nevada statutory comparison now gives the state-model component a concrete implementation comparator for Anti-SLAPP procedure, election contests, presidential-elect timing, and ballot-inspection limits. Review Ready means strong enough for knowledgeable external critique; it does not mean publication-ready. The Nevada primary order, broader representative-state implementation comparison, Petition Clause and First Amendment limits, title 28 procedural vehicle, and qualified external review remain unresolved.

Adoption Score. The 4/12 score is limited. ELEC-004 has a clear procedural analogue in Anti-SLAPP law and a staged federal/state vehicle, but the internal project review did not identify proposal-specific polling, sponsor coalitions, administrator or court-administration support, bipartisan legislative records, or enacted election-specific Anti-SLAPP analogues.

Adoption Friction. The 72/100 score is High Resistance. The proposal touches election litigation, court procedure, sanctions, sensitive election materials, subpoena and audit demands, and Petition Clause/First Amendment concerns, and opponents could characterize it as burdening election challenges even though the draft preserves good-faith reporting and lawful contests.

Required Electoral Environment. The required environment is *sixty-vote-senate*, with *Pathway Viability plausible-after-wave* and *Pathway Adjustment stage*. The federal-court procedure likely requires ordinary federal legislation, while the model-state component can be developed and promoted state by state as a staged path.

Development Priority. The priority is *active* because litigation and civil-process abuse can materially affect election timelines, sensitive election materials, election personnel, and public confidence even when the underlying claim ultimately fails.

Procedure Authority. follow-up internal review treats the federal bill as a specific federal statutory procedure rather than a proposed amendment to the Federal Rules of Civil Procedure or a court-inferred screening rule. That posture is strengthened by *Berk v. Choy*, which confirms that ordinary Rules 8 and 12 displace nonfederal affidavit or evidentiary screens in federal court, while also underscoring why ELEC-004 must speak expressly if Congress intends a special federal election-proceeding screen. Before circulation, a federal-courts or legislative-counsel reviewer should still determine whether the bill should be codified in title 28, narrowed further, or converted into amendments to existing procedural statutes.

Petition Clause Limits. ELEC-004 must preserve reasonably based election litigation even when it fails. Supreme Court Petition Clause doctrine supports sanctions for baseless litigation, but also recognizes First Amendment interests in reasonably based but unsuccessful suits. See *Bill Johnson's Restaurants, Inc. v. NLRB* and *BE&K Construction Co. v. NLRB*. This is why the draft rejects automatic penalties for losing and requires abuse-specific findings.

Revision Review and Remedy Fit. The July 3, 2026 internal revision review cleared the stale Ohio source-development marker without changing the score. A later boundary-cleanup pass removed the Ohio Organizing Collaborative FBI-search episode from ELEC-004's core manifestations and spun the federal criminal-process concern into ELEC-014. ELEC-004 remains focused on Anti-SLAPP-style control of election litigation, civil subpoenas, audits, inspection demands, and comparable noncriminal process. The current federal bill deliberately preserves federal criminal investigation and prosecution.

ELEC-005 — Weak Safeguards Against False Presidential Result-Transmission Documents

Issue Snapshot

Problem: False presidential result documents can enter federal channels.

Repair: Define, mark, and penalize unauthorized transmissions.

Vehicle: Title 3 amendment (draft).

Institutional Anomaly

Federal presidential-election law relies on official state-issued documents entering a federal receipt, preservation, and counting or verification channel. Under the current Electoral College system, those documents include presidential-elect certificates and related elector-vote materials. Under any replacement system, they would include whatever official state or national presidential result-transmission documents federal law designates.

Existing law does not expressly define a purpose-built federal offense or civil enforcement mechanism for knowingly submitting, transmitting, filing, presenting, delivering, or using false or unauthorized presidential result-transmission documents in that federal channel.

The problem is not that existing fraud, forgery, false-statement, obstruction, conspiracy, or state-law remedies are unavailable in every case. The problem is that those remedies are retrospective, uneven, element-specific, and not expressly designed to protect the federal presidential result-transmission channel before false documents can be used as procedural or political leverage.

Manifestations of the Failure

Multi-state false-electoral certificates — 2020

After the 2020 presidential election, individuals in multiple states prepared or signed documents purporting to cast electoral votes for a candidate who had not been certified as the winner in those states. The institutional harm was the creation of facially official elector documents outside the lawful certificate-of-ascertainment process, with potential use in the federal electoral-count process. The Select Committee to Investigate the January 6th Attack treated the alternate-electoral effort as a distinct pressure point in the broader federal-count record. See Final Report of the Select Committee to Investigate the January 6th Attack on the United States Capitol. A former Senate official also testified in Michigan proceedings that a fake certificate of votes was mailed to the Senate and did not match the official gubernatorial certificate. See Associated Press, *Fake Michigan Certificate of Votes mailed to U.S. Senate after 2020 presidential vote, official says*.

Uneven treatment under general state statutes

Some states pursued prosecutions under general forgery, false-instrument, election-law, fraud, or conspiracy statutes. These prosecutions demonstrate that existing law may reach some conduct, but also demonstrate that prosecutors must fit presidential-result-transmission conduct into statutes not written for this specific federal-channel function. Michigan charges were dismissed for insufficient evidence of fraudulent intent, Nevada's case was revived on venue grounds, and Arizona prosecutors dismissed their case while stating an intent to seek a new indictment after losing an appeal concerning grand-jury process. See Politico, *Michigan judge dismisses criminal charges against false Trump electors*, Politico, *Nevada Supreme Court revives criminal case over Trump elector gambit*, and Associated Press, *Arizona prosecutors dismissing fake elector case but vow to seek new indictment*.

Resulting Damage

False or unauthorized presidential result-transmission documents can manufacture ambiguity, support congressional objections, pressure federal officials, create public confusion, burden courts and election officials, and provide a predicate for efforts to obstruct or distort the lawful presidential result-recognition process.

Underlying Weakness

Existing law may lack:

- a federal prohibition on false or unauthorized presidential result-transmission documents entering federal channels;
- a clear definition of unauthorized presidential result-transmission documents, including presidential-elect documents under the current system;
- a safe harbor for genuinely contingent, nonoperative documents;
- explicit federal recipient duties to preserve, mark, refer, and avoid treating unauthorized documents as operative;
- rapid civil enforcement and declaratory relief;
- calibrated criminal penalties tied to knowing federal-channel misuse;
- an express rule preserving state authority before federal transmission; and

- clear nonpreemption of state criminal, civil, and election-law remedies.

Proposal Survey

The Electoral Count Reform Act clarified several certificate and electoral-count procedures but did not create a standalone false-result-transmission offense. See 3 U.S.C. §§ 5, 11, 12, and 15. Existing criminal statutes may apply to false documents, false statements, conspiracy, or obstruction, but they were not designed specifically for presidential result-transmission channels. See 18 U.S.C. §§ 371, 1001, and 1512.

State forgery, false-instrument, and election-law statutes provide additional models, but coverage and remedies vary. ELEC-005 therefore proposes a targeted federal-channel rule that supplements rather than displaces existing federal and state remedies.

Least-Complex Adequate Remedy

The least-complex adequate remedy within the existing Electoral College framework is a targeted federal amendment to Title 3 rather than a general federal regulation of state elector appointment. The amendment should protect only the federal receipt, preservation, and counting channel.

A less complex and more complete structural remedy may be abolition of the Electoral College itself, because eliminating presidential electors would make false presidential-electoral certificates moot. That broader structural reform belongs principally to ELEC-009. If a non-Electoral-College presidential election mechanism is adopted, however, the core principle of ELEC-005 should remain applicable to the official transmission of presidential-election results to federal officials. A replacement system would still require a protected federal channel for official state or national result documents, and knowingly false or unauthorized result-transmission documents should not be permitted to create federal procedural ambiguity.

Repair and Prevention

Congress should amend chapter 1 of title 3, United States Code, by adding a new section, likely 3 U.S.C. § 12A, governing false or unauthorized presidential result-transmission documents submitted or used in federal channels.

The federal amendment should:

1. apply only when a false or unauthorized presidential result-transmission document is transmitted, submitted, filed, presented, delivered, or used in a federal channel;
2. leave state appointment, recount, contest, canvass, certification, and result-determination procedures to state law before federal transmission;
3. define unauthorized presidential result-transmission documents, including elector certificates and certificates of vote under the current Electoral College framework;
4. protect clearly labeled contingent or disputed-result documents prepared solely to preserve lawful claims in pending proceedings;
5. impose duties on federal recipients to preserve, mark, refer, and avoid treating unauthorized documents as operative;
6. authorize civil declaratory and injunctive relief by the United States;
7. create calibrated criminal penalties for knowing federal-channel misuse; and
8. supplement, rather than displace, existing federal and state remedies.

Proposed Legislation

- Presidential Result Transmission Integrity Amendments

Relationship to Adjacent Proposals

- **ELEC-002** concerns certification refusal, deadlock, delay, or unauthorized discretion by certification bodies.
- **ELEC-004** concerns abusive election litigation, subpoenas, audits, and process leverage.
- **ELEC-005** concerns false or unauthorized presidential result-transmission documents entering federal channels.
- **ELEC-009** concerns whether the Electoral College itself should be restructured or replaced by a national popular-vote system.
- **ELEC-008** concerns broader accountability for efforts to overturn lawful results.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 78 / 100 (Review Ready)
Adoption Score: 5 / 12 (Limited Adoption Basis)
Adoption Friction: 64 / 100 (High Resistance)
Required Electoral Environment: sixty-vote-senate
Development Priority: active

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Internal Review Status: Internal project review complete; external validation pending
Last Internal Review: Internal project review
Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current project standard
Next Review: External validation / follow-up internal review
Full Review History: ELEC-005 review history

Annotation

Transmission and official-receipt vulnerability. False or unauthorized presidential result-transmission documents become most dangerous when sent to Congress, the President of the Senate, the Archivist, NARA, federal courts, or other federal recipients. Without explicit receipt duties, such documents may be preserved, circulated, cited, or publicly described in a way that creates legal uncertainty or supports pressure on federal actors. This is the remedial rationale for federal recipient duties, not a separate documented manifestation.

Existing Remedies. This issue does not assume that false result-transmission conduct is otherwise lawful. Existing fraud, forgery, false-statement, obstruction, conspiracy, perjury, and state election statutes may apply, but criminal law may not supply rapid declaratory relief, document invalidation, or federal-recipient duties. Wisconsin's civil settlement obtained acknowledgment and future-service limits only after the documents entered public and federal channels. See *The Guardian*, *Fake electors in Wisconsin first to admit Biden won election and face penalty*. The proposed reform addresses the remaining federal-channel document-integrity gap.

Federalism Boundary. The proposal does not regulate how states appoint electors or determine presidential results before federal transmission. It attaches only when a presidential result-transmission document is submitted, transmitted, filed, presented, delivered, or used in a federal channel.

Electoral College Relationship. Abolishing the Electoral College would supersede the elector-certificate-specific problem addressed here. The general document-integrity principle would remain relevant, however, to any replacement system requiring official presidential-election results to be transmitted to federal officials.

Contingent Documents. A safe harbor is necessary to preserve legitimate litigation-contingent activity while prohibiting false present-tense certification or deceptive federal-channel use. Post-2020 defenses repeatedly invoked contingent-electoral theories and the 1960 Hawaii example; that history supports clear labeling and nonoperative-use requirements rather than treating every preservation document as criminal. See *The Guardian*, *The fake elector defense: what Trump allies are saying to justify the 2020 scheme*.

Source Development Pending. Further source development should review the Electoral Count Reform Act, 3 U.S.C. §§ 5, 11, 12, and 15, state false-electoral prosecutions, state statutory-gap reports, 18 U.S.C. §§ 371, 1001, and 1512, and relevant forgery and false-instrument statutes.

Prior-Proposal and Existing-Law Fit. The internal project review confirms that the current vehicle follows the project's existing-law-first preference because it amends chapter 1 of title 3 rather than creating a new standalone title. The Electoral Count Reform Act is the closest enacted analogue because it amended the same Title 3 presidential-count architecture, but it does not create a standalone false-result-transmission offense or federal-recipient handling rule for unauthorized documents.

Judicial Scrutiny. The proposal's legal durability depends on narrow federal-channel drafting. The strongest defense is that Congress is regulating documents submitted for federal receipt, preservation, recognition, or counting, not choosing state electors or adjudicating state election results. The further internal review should test the offense against vagueness, overbreadth, petitioning, litigation-contingency, due process, Article II, the Twelfth Amendment, the Necessary and Proper Clause, anti-commandeering doctrine, and state sovereign authority over elector appointment before the criminal provisions are treated as circulation-ready.

Implementation. Recipient duties should remain ministerial: preserve the document, mark or log disputed status, avoid treating it as operative absent legal authority, refer apparent misconduct, and notify likely recipients. The further internal review should verify how NARA, congressional officers, courts, and DOJ already handle disputed elector materials before assigning any more specific duty, deadline, referral path, or recordkeeping burden.

Quality Score. The proposal is 78/100 after the internal project review because it has a developed issue architecture, a linked Title 3 amendment, official statutory source leads, current-status source support, plausible safe-harbor design, a stronger existing-law fit explanation, a federal-count source lead, and no material issue-to-legislation discrepancy. The score remains Review Ready rather than publication-ready because primary state court or attorney-general records, direct Congress.gov prior-proposal survey, legislative-counsel review, criminal-law review, election-law review, and recipient-duty implementation validation remain pending.

Adoption Score. Adoption Score remains 5/12. The Title 3 amendment path is understandable and benefits from the post-2020 bipartisan precedent of Electoral Count Reform Act revisions, but ELEC-005 does not yet cite proposal-specific polling, sponsor coalitions, committee activity, or external election-law validation.

Adoption Friction. Adoption Friction is 64/100 because the proposal addresses presidential-election documents, false-electoral conduct, federal criminal penalties, state-federal boundaries, and speech/litigation-adjacent safe harbors. Those features make opposition and litigation likely even though the proposal is framed as a neutral federal-channel document-integrity rule.

Required Electoral Environment. Required Electoral Environment is **sixty-vote-senate**; Pathway Viability is **plausible-after-wave**; Pathway Adjustment is **proceed**. Because the proposal amends federal presidential-election law and creates a new federal offense, it likely requires ordinary federal legislation capable of surviving Senate cloture and presidential signature. The proposal should proceed as a federal Title 3 amendment, with further internal review assessing whether a narrower civil-recipient-duty or appropriations/reporting package could be staged if the criminal-offense path proves too politically or legally costly.

ELEC-006 — Insufficiently Automatic Presidential-Transition Procedures

Issue Snapshot

Problem: Transition access remains delay-prone.

Repair: Add automatic triggers and enforceable deadlines.

Vehicle: Transition Act amendment (draft).

Institutional Anomaly

Presidential-transition law depends on timely cooperation among the outgoing administration, the incoming transition team, federal agencies, the General Services Administration, national-security offices, ethics officials, clearance authorities, and Congress. Historically, many of these functions were regulated successfully by political norms rather than detailed statutory compulsion. Losing administrations generally cooperated, apparent winners received practical access, agencies prepared briefing materials, and transition teams accepted ethics, funding, and security conditions.

Recent transition cycles show that those norms can fail or be strategically delayed. Congress partially addressed one major failure point in 2022 by reducing the risk that a single administrator could indefinitely withhold transition resources from an apparent successful candidate. But presidential transition remains insufficiently automatic and enforceable as a continuity-of-government function.

The residual vulnerability is not only government-side obstruction. Transition readiness may also be impaired by candidate-side delay, refusal to execute required agreements, delayed ethics commitments, delayed security-clearance or FBI background-check arrangements, incomplete donor or funding disclosures, agency noncooperation, and dependence on congressional oversight that may not materialize if Congress is passive, divided, aligned with the delay, or complicit in it.

Manifestations of the Failure

Genuine uncertainty compressing transition time

The 2000 presidential election demonstrated that even good-faith legal uncertainty can substantially compress the effective transition period. When the election result remains unresolved for weeks, national-security preparation, personnel vetting, agency briefings, and continuity planning may be delayed even without bad faith. The 9/11 Commission later identified the abbreviated transition as one factor contributing to slow national-security staffing. See The 9/11 Commission Report.

Administrative discretion delaying transition access

The 2020 transition demonstrated a different failure mode: transition access can be delayed when statutory operation depends too heavily on discretionary recognition by a single official or small number of political actors. Even if Congress later applies oversight pressure, the delay itself may already have impaired readiness. GSA ascertained the Biden-Harris transition on November 23, 2020, after weeks of dispute over access. See Axios, *Key government agency says Biden transition can formally begin*.

Transition-team noncompliance and delayed agreements

A transition may also be impaired when the apparent incoming administration delays or refuses to execute transition agreements, ethics commitments, donor-disclosure obligations, information-security protocols, or arrangements necessary for background checks and clearances. This failure mode is distinct from GSA ascertainment delay and requires a different statutory response. In 2024, the Trump-Vance transition delayed signing the Justice Department agreement permitting FBI background checks and security-clearance processing and declined a GSA agreement for federal funding and support. See Politico, *Trump transition green-lights FBI background checks for incoming staff*.

Resulting Damage

Delayed or incomplete transition access can compress national-security preparation, personnel vetting, ethics review, agency briefings, and continuity planning into the final weeks before inauguration. That damage may persist even after access is eventually granted because lost preparation time cannot always be restored, and uncertainty over transition duties can leave agencies, candidates, and Congress without a reliable enforcement path during the period when delay matters most.

Underlying Weakness

Existing law may still lack:

- sufficiently automatic staged transition access;
- objective triggers for preliminary and expanded access;
- enforceable agency cooperation deadlines;
- consequences for delayed transition agreements;
- transition-team duties tied to ethics, security, funding, and vetting requirements;
- public written-denial or delay notices;

- direct expedited judicial review for missed statutory duties;
- protections against dependence on congressional oversight as the primary remedy; and
- a clear statement that transition access is administrative preparedness, not legal recognition of election victory.

Proposal Survey

The Presidential Transition Act of 1963 is the principal statutory model. Congress has repeatedly amended it, including through the 2022 Electoral Count Reform and Presidential Transition Improvement Act, which reduced dependence on a single GSA ascertainment decision where the apparent winner remains unclear. See the Presidential Transition Act statutory compilation and Pub. L. No. 117-328, div. P.

Prior reform models focus on resources, agency cooperation, ethics plans, security clearances, and ascertainment. ELEC-006 treats those as partial solutions and adds objective staged access, candidate-side duties, written delay notices, and expedited review.

Least-Complex Adequate Remedy

The least-complex adequate remedy is not a comprehensive federal takeover of presidential transition. It is a targeted amendment to the Presidential Transition Act that codifies narrow automatic defaults, transparency requirements, and enforcement mechanisms while preserving ordinary cooperative transition norms wherever they continue to function.

Repair and Prevention

Congress should amend the Presidential Transition Act of 1963 to preserve ordinary cooperative transition norms while adding narrow statutory backstops for known failure points.

The statute should not replace historically successful transition practice with a sweeping new bureaucratic or judicialized system. Instead, it should establish default rules that activate only when ordinary transition cooperation fails.

The reform should include:

1. automatic pre-election planning access for qualifying candidates;
2. automatic limited post-election access when the outcome remains unresolved;
3. expanded access upon objective result-related triggers;
4. a ministerial GSA role;
5. statutory deadlines for transition agreements;
6. consequences for failure to execute required agreements;
7. agency deadlines for briefing materials, transition contacts, and access coordination;
8. written public explanations for denial or delay;
9. expedited judicial review for concrete missed statutory duties;
10. no concession requirement; and
11. preservation of congressional oversight without dependence on congressional action as the primary remedy.

Proposed Legislation

- Presidential Transition Continuity and Automaticity Act

Relationship to Adjacent Proposals

- **ELEC-005** concerns false or unauthorized presidential result-transmission documents entering federal channels.
- **ELEC-006** concerns continuity of government and automatic transition access after a presidential election.
- **ELEC-009** concerns whether the Electoral College should be restructured or replaced.
- Judicial and congressional-enforcement issues may overlap where expedited review or oversight mechanisms are implicated.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 76 / 100 (Review Ready)
Adoption Score: 5 / 12 (Limited Adoption Basis)
Adoption Friction: 56 / 100 (Significant Resistance)
Required Electoral Environment: sixty-vote-senate
Development Priority: active

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Internal Review Status: Internal project review complete; external validation pending
Last Internal Review: Internal project review
Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current project standard
Next Review: External validation / follow-up internal review
Full Review History: ELEC-006 review history

Annotation

Politically contingent oversight. Congressional oversight is an inadequate emergency backstop when transition access is delayed. Oversight pressure may be effective only if congressional leaders and committees are institutionally willing to oppose the delay. If Congress is passive, divided, aligned with the delaying actor, or complicit in the delay, hearings, subpoenas, appropriations pressure, and public accountability may not occur in time to protect continuity of government. This is a remedy limitation rather than a separate manifestation.

Norm-Preserving Design. The proposal should preserve the historical norm-based transition model and add statutory backstops only where recent manifestations show that norms can fail.

2022 Reform Baseline. The 2022 amendments should be treated as a partial reform, not ignored. The Presidential Transition Act compilation provides source support for apparent-successful-candidate services, multiple-candidate support in some unresolved-election circumstances, transition memoranda of understanding, public ethics-plan availability, background investigations and security clearances, and public statements when a sole apparent successful candidate is treated as such. ELEC-006 should therefore remain focused on residual gaps: automatic staged access, enforceable agency deadlines, candidate-side agreement delay, public delay notices, and expedited review for concrete missed transition duties.

No Legal Recognition of Victory. Transition access should be characterized as administrative preparedness, not legal determination of the election winner.

Bilateral Duties. The statute should address both government-side obstruction and transition-team noncompliance.

Congressional Nondependence. Congressional oversight should be preserved, but transition continuity should not depend on Congress being willing or able to oppose delay.

Source Development Pending. The internal project review attempted official-source substitution for the 2020 ascertainment delay and 2024 transition-agreement/background-check delay but did not locate stable official records through the public paths checked. External validation or a follow-up internal review should continue seeking official GSA, congressional, transition-team, White House, DOJ, FBI, or oversight records; complete a direct prior-proposal or legislative-history survey; and add transition-law or national-security practitioner review.

Quality Score. The proposal is 76/100 after the internal project review. Component score: Structural 8/8; Evidence 9/12; Legal Fit 7/10; Prior Proposal 6/8; Remedy 10/12; Implementation 7/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4. The internal project review did not change the score because it did not resolve the remaining publication blockers: official 2020/2024 event records, direct prior-proposal research, exact amendment placement, budget/workload analogues, and external review. The proposal remains Review Ready for knowledgeable external critique.

Adoption Score. Adoption Score is 5/12. Presidential-transition continuity has bipartisan institutional logic and an enacted 2022 reform baseline, but ELEC-006 does not yet cite proposal-specific polling, current sponsor coalitions, committee activity, transition-practitioner endorsement, or external validation for its full automaticity package.

Adoption Friction. Adoption Friction is 56/100 because the proposal affects presidential transitions, agency access, background checks, ethics agreements, donor-disclosure leverage, sensitive-information gates, and expedited review. The norm-preserving design reduces resistance, but presidential-transition disputes remain politically salient and can be framed as affecting candidate strategy during disputed elections.

Required Electoral Environment. Required Electoral Environment is sixty-vote-senate; Pathway Viability is plausible-after-wave; Pathway Adjustment is stage. The full federal amendment likely requires ordinary legislation capable of clearing Senate cloture and presidential signature. Staged alternatives should focus on transition-agreement deadlines, written delay notices, agency-preparation deadlines, public reporting, and limited access defaults if the full automatic-access package proves too difficult.

ELEC-007 — Improper Federal-Force Presence in Election Administration

Issue Snapshot

Problem: Federal responders can become election participants.

Repair: Separate emergency response from election administration.

Vehicle: Federal-force noninterference statute (draft).

Institutional Anomaly

Election administration is a civilian state and local function. Federal personnel may have legitimate law-enforcement, emergency-response, protective, or technical roles in extraordinary circumstances, but federal agents, federalized military personnel, federally directed armed personnel, or federally commanded task forces should not administer, supervise, direct, control, monitor, inspect, count, recount, canvass, audit, certify, decertify, transport, seize, or otherwise participate in election administration.

The central distinction is that federal personnel may respond to a non-election emergency; they may not become part of the election. An emergency near a polling place, counting center, canvassing board, certification proceeding, election office, ballot-storage facility, or voting-equipment site should not convert federal responders into election administrators.

Existing law strongly disfavors troops at polling places and military participation in domestic law enforcement, but modern risks are broader than the classic image of soldiers at the polls. Contemporary risks include armed federal agents near counting facilities, federalized forces around election offices, federally directed seizure or inspection of election materials, federal personnel present at certification proceedings, or emergency response used as a pretext for election-administration influence.

Manifestations of the Failure

Statutory coverage gap for modern federal personnel and election sites

Federal law already prohibits specified military presence at polling places and limits use of the armed forces to execute domestic law. See 18 U.S.C. § 592 and 18 U.S.C. § 1385. Those provisions document an established anti-interference principle but do not clearly address the full modern risk involving federal agents, federalized forces, emergency responders, technical personnel, counting and certification sites, or election-material custody. ELEC-007 is prophylactic beyond that demonstrated statutory gap and does not presently claim a named modern incident as proof of every covered scenario.

Resulting Damage

Improper federal-force presence can intimidate voters or election workers, disrupt chain of custody, compromise state election deadlines, and create the appearance that federal officials are supervising, validating, or challenging a state-run election. Even when no ballot is altered, visible federal operational involvement can damage public trust and supply a pretext for later attacks on certification or legitimacy.

Underlying Weakness

Existing law may lack:

- a modern election-site definition extending beyond polling places;
- a clear prohibition on federal personnel participating in election administration;
- a strict distinction between non-election emergency response and election-related participation;
- a state-consent and state-capacity-inadequacy requirement for extraordinary emergency assistance;
- a narrow exigent-life-safety fallback;
- a good-faith incidental-contact safe harbor for federal personnel who inadvertently encounter election activity while performing lawful non-election duties;
- a voter-rights savings clause confirming that federal employment does not impair personal voting rights;
- election-material access, imaging, copying, transport, and seizure safeguards;
- written scope, duration, and termination limits for federal emergency assistance;
- notice and after-action reporting requirements; and
- expedited judicial review for unlawful federal-force presence or election-material interference.

Proposal Survey

Existing law already disfavors military presence at polls and domestic military law enforcement. The troops-at-polls statute prohibits certain military presence at elections, while the Posse Comitatus Act limits use of the Army and Air Force to execute domestic law. See 18 U.S.C. § 592 and 18 U.S.C. § 1385.

Those models do not fully address modern federal agents, federalized forces, emergency response, cyber or technical assistance, and election-material custody. ELEC-007 modernizes the older troops-at-polls principle while preserving genuine non-election emergency response.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a targeted federal statute clarifying that federal personnel may respond to genuine non-election emergencies near election sites, but may not participate in election administration. The statute should modernize existing troops-at-polls principles without displacing state and local civilian election control.

Repair and Prevention

Congress should modernize federal election-protection statutes to provide that federal personnel have no operational role in election administration except where a separate and narrowly tailored court order authorizes limited election-material evidence preservation under statutory safeguards.

The emergency exception should authorize only otherwise lawful law-enforcement, emergency-response, protective, or technical-assistance functions directed at the non-election emergency. It should not authorize federal personnel to administer, supervise, direct, control, observe for election-integrity purposes, interrupt, delay, count, recount, canvass, certify, audit, transport, seize, inspect, access, image, copy, or take custody of election materials.

Federal emergency assistance at or near a covered election site should require:

1. a written request or consent from the Governor or other statewide official designated by state law;
2. an extraordinary emergency involving a concrete non-election emergency;
3. a written finding that state and local authorities cannot timely and adequately address the specific non-election emergency without federal assistance;
4. assistance limited to the specific state-capacity inadequacy identified;
5. written scope limits governing location, duration, personnel, mission, permitted actions, prohibited actions, and termination trigger;
6. prohibition on federal election-administration participation;
7. public notice and after-action reporting once safety permits; and
8. automatic withdrawal when the emergency ends or state capacity is restored.

Where prior written state consent is impossible because of an imminent threat to life or serious bodily harm, federal personnel may act only to stabilize the emergency and protect life. Federal personnel must withdraw unless state consent, a valid judicial order, or another lawful non-election emergency predicate is promptly obtained.

The statute should also make clear that inadvertent or unavoidable incidental contact with election activity does not create liability if the federal personnel act in good faith, do not intend to influence election administration, disengage from any election-administration issue as soon as practicable, and do not use federal authority to affect the election. Separately, the statute should not restrict federal employees, agents, or service members from voting, registering to vote, standing in line to vote, or otherwise acting in a lawful personal civic capacity subject to ordinary election law and ethics rules.

Proposed Legislation

- Election Administration Federal-Force Noninterference Act

Relationship to Adjacent Proposals

- **ELEC-001** concerns federal executive interference with state and local election administration generally.
- **ELEC-003** concerns protection of election personnel from threats and operational disruption.
- **ELEC-004** concerns abuse of election litigation and investigatory mechanisms.
- **ELEC-007** concerns federal-force presence, emergency response, and election-material custody around election administration.
- Domestic-deployment and Insurrection Act issues belong primarily in the DOM-series area.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 78 / 100 (Review Ready)
Adoption Score: 5 / 12 (Limited Adoption Basis)
Adoption Friction: 70 / 100 (High Resistance)
Required Electoral Environment: sixty-vote-senate
Development Priority: active

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Internal Review Status: Internal project review complete; external validation pending
Last Internal Review: Internal project review
Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current project standard
Next Review: External validation / follow-up internal review
Full Review History: ELEC-007 review history

Annotation

Covered scenarios and safeguards. These scenarios define the proposal's preventive coverage and should not be treated as separate documented manifestations:

- **Federal-force presence near voting, counting, or certification sites.** Federal personnel physically present near election sites may intimidate voters or election workers, create the appearance of federal supervision, or chill lawful election participation even if no overt order is given.
- **Emergency response becoming election participation.** A bomb threat, active threat, violent incident, cyberattack, or other emergency may justify non-election law-enforcement response. But without clear statutory limits, emergency responders could remain in election spaces, observe election processes, question personnel, influence reopening decisions, access materials, or otherwise participate in election administration.
- **State-capacity failure as a narrow predicate for assistance.** Federal assistance may be appropriate only where a state can demonstrably not handle a specific extraordinary emergency adequately without federal help. The state should identify the particular capacity gap, such as insufficient explosives response, cyber-forensics, multi-site security, interstate-threat coordination, specialized technical assistance, or disaster-continuity capacity.
- **Election-material custody and federal process.** Federal law-enforcement process directed at ballots, voting equipment, pollbooks, tabulators, memory devices, election records, or result-transmission materials can disrupt chain of custody, statutory deadlines, recounts, audits, and certification. Election materials should not be accessed, imaged, copied, moved, or seized absent separate, narrow judicial authorization and election-specific safeguards.
- **Federal law enforcement as a pretext for election supervision.** Investigations, threat response, federal-facility protection, or emergency assistance can be misused as a pretext to pressure state or local officials, influence election timing, create public doubt, or support claims that federal officials are validating or invalidating the election.

Core Rule. Federal agents may respond to the emergency; they may not become part of the election.

State Capacity Requirement. State consent alone should not be sufficient. The state should also document why state and local capacity is inadequate for the specific extraordinary emergency.

Emergency Limitation. An emergency authorizes only non-election law enforcement, emergency response, protection, or technical assistance. It does not authorize federal election administration.

Incidental Contact Safe Harbor. Good-faith inadvertent or unavoidable incidental contact should not create liability where federal personnel do not intend to influence election administration, do not use federal authority, and disengage as soon as practicable.

Personal Voting Rights. Federal personnel retain the same personal right to vote, register, appear at a polling place, and engage in lawful personal civic activity as other citizens, subject to ordinary election law, ethics rules, and agency rules.

Election-Material Safeguards. Ballots, voting equipment, pollbooks, tabulators, memory devices, election records, and result-transmission materials require separate judicial safeguards before access, imaging, copying, transport, or seizure.

Source Development Pending. External validation or a follow-up internal review should examine National Guard and Insurrection Act authorities, emergency-response authorities, state emergency-management law, exact codification placement, and practitioner feedback from election-law, civil-rights, emergency-management, or domestic-deployment experts.

Current Domestic-Deployment Context. Current litigation over federalized National Guard deployment confirms that Posse Comitatus and federal domestic-force authority remain live legal issues, though not election-specific ones. See the Ninth Circuit's 2025 orders in *Newsom v. Trump* and related rehearing order.

Prior-Proposal Grounding. Brennan Center materials identify federal and state prohibitions on federal forces at polling places and provide a close model-bill analogue on state accountability for federal interference at polling places. These sources strengthen the prior-proposal family, but further internal review should still examine formal legislative history and enacted-law options before publication.

Civil-Rights Monitoring Savings. The internal project review added a narrow carveout for lawful Voting Rights Act observers and Department of Justice election monitoring, limited to non-force, non-intimidating, non-directive civil-rights monitoring that does not take custody of materials or participate in election-administration decisions.

Quality Score. The proposal is 78/100 after the internal project review. Component score: Structural 8/8; Evidence 10/12; Legal Fit 8/10; Prior Proposal 7/8; Remedy 10/12; Implementation 7/8; Abuse Resistance 7/8; Drafting 8/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4. The internal project review improved source support, legal fit, and drafting by adding official DOJ civil-rights monitoring support and revising the bill to avoid impairing lawful VRA observers and DOJ election monitoring. The proposal remains Review Ready rather than publication-ready because exact codification strategy, National Guard/Insurrection Act analysis, budget/workload analogues, standing/remedy review, and external review remain pending.

Adoption Score. Adoption Score is 5/12. The proposal has a neutral institutional premise and existing statutory analogues, but it does not yet cite proposal-specific polling, sponsor coalitions, committee activity, cross-partisan institutional validators, or election-security/public-safety practitioner support.

Adoption Friction. Adoption Friction is 70/100 because the proposal implicates federal law enforcement, military and federalized-force authority, state election administration, emergency response, voter intimidation, civil-rights enforcement, election-material custody, and likely separation-of-powers and federalism objections.

Required Electoral Environment. Required Electoral Environment is **sixty-vote-senate**; Pathway Viability is **plausible-after-wave**; Pathway Adjustment is **stage**. The further internal review should assess whether narrower updates to election-material safeguards, notice/reporting, or emergency-response scope limits could be staged if the full federal-force package proves too difficult.

ELEC-008 — Accountability for Coordinated Federal Election-Subversion Schemes

Issue Snapshot

Problem: Coordinated subversion can evade scheme-level accountability.

Repair: Create narrow predicate-act accountability framework.

Vehicle: Title 18 amendment adding a new election-subversion chapter adjacent to existing election and political-activity offenses (draft).

Institutional Anomaly

Congress partially addressed post-2020 election-subversion vulnerabilities through the Electoral Count Reform and Presidential Transition Improvement Act of 2022. That statute amended the Electoral Count Act and the Presidential Transition Act, clarified that the Vice President's role in counting electoral votes is ministerial, raised the threshold for congressional objections, narrowed objection grounds, clarified state certificate procedures, provided expedited review for certain presidential-election disputes, and improved transition-resource rules where the apparent winner remains unclear.

Those reforms hardened specific pressure points in the presidential electoral-count and transition process, but they did not create a comprehensive accountability framework for coordinated schemes to overturn lawful federal-election results. Existing law may punish individual acts — false statements, obstruction, intimidation, fraud, forged documents, unlawful pressure, or abuse of process — but a modern election-subversion effort may operate through a coordinated pattern of individually narrower acts spread across states, courts, administrative bodies, Congress, media channels, and transition institutions.

The institutional anomaly is that federal law may lack a narrowly tailored framework for treating a coordinated federal election-subversion scheme as a scheme, rather than as disconnected predicate acts.

Manifestations of the Failure

Coordinated post-2020 multi-channel effort

The clearest manifestation is the alleged multi-channel effort after the 2020 presidential election to overturn, obstruct, delay, or procure official disregard of the lawful presidential-election result through several different mechanisms that existing law treated largely as separate incidents.

The relevant manifestation is not any single act alone. It is the alleged combination of state-official pressure, false or unauthorized presidential-electoral or result-transmission documents, attempted use of federal executive authority, pressure on the Vice President and Congress, and continuing efforts after courts and state officials rejected the asserted factual basis. See the federal indictment in *United States v. Trump*, No. 23-cr-257.

This manifestation exposed a pattern-level gap: existing law supplied tools for pieces of the conduct, but not a narrowly tailored federal statute that clearly treated the coordinated election-subversion pattern as such while preserving lawful litigation, recounts, advocacy, reporting, legal advice, journalism, and congressional procedures.

The proposal should therefore be justified by the following structural lesson: if a coordinated scheme uses independently wrongful predicate acts to corruptly interfere with the lawful result of a federal election, federal law should be able to address the scheme as a scheme, without converting ordinary political dispute, protected speech, or good-faith legal process into liability.

Resulting Damage

Coordinated election-subversion schemes can aggregate individually addressable acts into a broader effort that threatens the lawful result itself. The institutional damage is not limited to any one false document, lawsuit, pressure campaign, or obstructive act. The larger harm is that officials, courts, Congress, voters, and transition institutions may face a manufactured multi-channel crisis without a clear scheme-level accountability tool calibrated to federal-election integrity.

Underlying Weakness

Existing law addresses many component acts, but it may not clearly identify a coordinated federal-election-subversion scheme as a distinct wrong when the scheme combines pressure, false documents, abusive process, federal-channel misuse, transition obstruction, or other independently wrongful predicates. Ordinary RICO is too broad and poorly tailored for election disputes, while narrower election reforms may leave no single framework for scheme-level accountability that also protects lawful advocacy, litigation, recounts, journalism, legal advice, and congressional activity.

Proposal Survey

The closest legal analogue is RICO, which treats coordinated patterns of predicate misconduct as a distinct statutory wrong. See 18 U.S.C. chapter 96. Ordinary RICO is too broad for election disputes because protected speech, litigation, recounts, contests, journalism, and congressional activity must be preserved.

Existing federal criminal statutes already cover important components of the problem, including election and political-activity offenses in 18 U.S.C. chapter 29, conspiracy against the United States, conspiracy against voting rights, and obstruction-related conduct. See 18 U.S.C. § 371, 18 U.S.C. § 241, and 18 U.S.C. § 1512. But those statutes address particular theories of liability rather than a tailored election-subversion framework with election-specific safe harbors, state-nexus emergency relief, and scheme-level remedial structure.

Congress also partially addressed presidential-election subversion through the Electoral Count Reform Act, but that reform hardened electoral-count procedures rather than creating scheme-level accountability. See Pub. L. No. 117-328, div. P. Any obstruction-related design must account for *Fischer v. United States*, which narrowed the reach of 18 U.S.C. § 1512(c)(2), and *Trump v. United States*, which makes presidential-immunity and official-act evidence limits central where presidential conduct is implicated. ELEC-008 therefore uses a narrow election-specific RICO analogue with defined predicates, safe harbors, and immunity-aware limitations.

Least-Complex Adequate Remedy

The least-complex adequate remedy is not a general election-denial statute. It is a narrow scheme-level accountability framework that applies only when independently wrongful predicate acts are coordinated for the corrupt purpose of overturning or obstructing a lawful federal-election result.

Repair and Prevention

Accountability model

Congress should consider a narrow Title 18 amendment that operates as a RICO analogue but is tailored to federal-election integrity. The preferred vehicle is a new chapter 29A, placed adjacent to chapter 29's election and political-activity offenses rather than inside ordinary RICO or in a new federal title.

The amended title 18 chapter should require:

1. a coordinated course of conduct involving two or more persons;
2. knowing and corrupt participation;
3. a specific objective to nullify, reverse, obstruct, delay, or procure official disregard of a lawful federal-election result, certification, result-transmission process, transition process, or federal count proceeding;
4. at least two defined independently wrongful predicate acts; and
5. material connection between the predicate acts and the corrupt objective.

Predicate acts

Predicate acts should be limited to independently wrongful conduct, such as:

- knowingly false federal-election result-transmission documents;
- coercive intimidation of election personnel;
- threats or retaliation against certification officials;
- corrupt use of official authority;
- bribery or extortion;
- evidence fabrication;
- knowingly false sworn statements;
- unauthorized access to election materials;
- obstruction of a federal electoral proceeding;
- knowing violation of election-material custody safeguards;
- knowing violation of transition-obstruction safeguards;
- abuse of judicial, subpoena, audit, or investigatory process after a court or tribunal finding of bad faith, material falsity, or improper purpose.

Safe harbors

The statute should expressly preserve:

- good-faith litigation;
- recounts;
- election contests;

- public advocacy;
- lobbying;
- lawful congressional objections;
- legal advice;
- reporting suspected irregularities;
- whistleblowing;
- journalism;
- academic analysis;
- ordinary campaign activity;
- contingent preservation of legal claims;
- good-faith cooperation with investigations;
- lawful state or federal official duties.

No person should be liable merely for asserting that an election was unlawful, supporting a candidate, filing a losing lawsuit, advocating for a recount, criticizing election administration, or participating in ordinary political activity.

A narrow statute could include:

1. criminal penalties for knowing corrupt schemes;
2. civil enforcement by the United States;
3. civil enforcement by affected states or election officials in narrow circumstances;
4. emergency injunctive relief before certification, transition, or federal count deadlines;
5. public-cost reimbursement;
6. disgorgement of funds raised through knowing false representations tied to the scheme;
7. disqualification from federal election-administration roles, presidential-electoral service, or specified transition roles where narrowly justified;
8. record-preservation duties;
9. expedited judicial review.

Proposed Legislation

- Federal Election Subversion Accountability Act

Relationship to Adjacent Proposals

- **ELEC-002** addresses pressure on certification and canvassing officials.
- **ELEC-004** addresses abusive election litigation, investigatory demands, subpoenas, audits, and extraordinary proceedings.
- **ELEC-005** addresses false or unauthorized presidential result-transmission documents.
- **ELEC-006** addresses presidential-transition continuity and automaticity.
- **ELEC-007** addresses improper federal-force presence and election-material custody safeguards.
- **ELEC-008** is the capstone accountability framework for coordinated schemes using one or more of those narrower mechanisms.
- **IMM-001** addresses criminal immunity for presidential official acts. ELEC-008 and IMM-001 are complementary: ELEC-008 defines a scheme-level accountability framework for coordinated election subversion, while IMM-001 is necessary to preserve a meaningful avenue for applying such accountability when presidential conduct or claimed official-act immunity would otherwise prevent adjudication.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 75 / 100 (Review Ready for External Critique)
Adoption Score: 4 / 12 (Limited Adoption Basis)
Adoption Friction: 85 / 100 (Extreme Resistance)
Required Electoral Environment: post-crisis-repair-mandate
Development Priority: active

Internal Review Status: Internal check complete; Title 18 amendment structure corrected; external validation still needed before circulation

Last Internal Review: Internal check of Title 18 amendment restructure

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current project standard

Next Review: Qualified criminal-law, election-law, federal-courts, First Amendment, Speech or Debate, and legislative-counsel review; then targeted source-backed revisions if review identifies concrete fixes

Full Review History: ELEC-008 review history

Annotation

Predicate categories and adjacent ownership. The coordinated post-2020 effort supports studying several possible predicate categories, but the categories themselves are definitions and boundary rules rather than separate manifestations:

- **Multi-channel pressure campaigns.** A coordinated effort to overturn a lawful result may include pressure on state and local officials, pressure on certification bodies, pressure on federal actors, and public or private efforts to induce officials to disregard lawful results.
- **False or unauthorized result-transmission documents.** False presidential-electoral documents or other false result-transmission documents may be used as one predicate act within a broader scheme. ELEC-005 addresses this specific mechanism; ELEC-008 addresses its role as part of a coordinated course of conduct.
- **Abusive litigation, subpoenas, audits, or investigatory demands.** These mechanisms may be lawful when pursued in good faith. They become relevant to ELEC-008 only when used as independently wrongful or sanctionable predicate conduct within a coordinated scheme to obstruct or nullify a lawful result.
- **Federal-count pressure.** Congress addressed several presidential electoral-count vulnerabilities in 2022, including vice-presidential role clarification and objection-threshold reforms. ELEC-008 should address coordinated predicate conduct designed to corruptly influence or exploit federal-count processes without duplicating those reforms.
- **Transition obstruction.** ELEC-006 addresses transition automaticity directly. ELEC-008 should treat transition obstruction only as a possible predicate when connected to a larger coordinated scheme.

False-purpose fundraising comparator. False-purpose political fundraising can function as a financing predicate when donors are induced by knowingly false material representations and the funds help sustain the coordinated scheme. The useful analogue is the alleged *We Build the Wall* fundraising pattern, where DOJ alleged that organizers solicited donations under false representations about how funds would be used. See the U.S. Attorney's Office for the Southern District of New York, *Leaders Of 'We Build The Wall' Online Fundraising Campaign Charged With Defrauding Hundreds Of Thousands Of Donors*. That episode is a structural comparator for knowing false-purpose fundraising, not itself a manifestation of election subversion or a basis for a generic campaign-finance provision.

Additional scope and framing.

Scope. ELEC-008 should apply to covered federal elections, meaning elections for President, Vice President, United States Senator, and Representative in Congress. It should not generally federalize state and local elections.

For presidential and vice-presidential elections, the proposal should include special provisions for presidential-electoral appointment, presidential result-transmission documents, certificates of ascertainment, certificates of vote, electoral-vote transmission, congressional electoral-count proceedings, and presidential-transition access.

For Senate and House elections, the proposal should be drafted carefully to avoid interfering with each chamber's constitutional authority under Article I, Section 5 to judge the elections, returns, and qualifications of its own members. The proposal should target independently wrongful conduct affecting election administration, certification, canvassing, recounts, evidence integrity, intimidation, false documents, unauthorized access, bribery, coercion, obstruction, or corruption — not legitimate congressional adjudication of election contests.

State and local elections should be covered only where the predicate conduct independently violates federal law, such as voter intimidation, civil-rights violations, obstruction of federal proceedings, misuse of federal authority, or interference with federally protected voting rights.

Relationship to existing post-2020 reform. The 2022 Electoral Count Reform and Presidential Transition Improvement Act should be treated as a partial reform, not ignored. ELEC-008 should proceed from the premise that Congress already addressed several core presidential-election vulnerabilities:

1. vice-presidential discretion during electoral-vote counting;
2. congressional objection thresholds;

3. permissible grounds for objections;
4. state certificate and elector-transmission procedures;
5. expedited review of certain candidate claims; and
6. transition-resource uncertainty.

ELEC-008 addresses a different residual problem: coordinated accountability for schemes that combine multiple wrongful acts to nullify, reverse, obstruct, delay, or procure official disregard of a lawful federal-election result.

RICO analogy. The conceptual model is RICO-like, but the proposal should not simply import ordinary RICO.

RICO addresses organized patterns of racketeering activity. ELEC-008 would address organized patterns of federal election-subversion activity. The analogy is useful because election subversion may involve multiple actors, multiple forums, and multiple predicate acts that collectively produce an institutional harm larger than any single act.

Ordinary RICO is too broad and too controversial to use wholesale in the election context. Election disputes involve constitutionally protected speech, litigation, lobbying, recounts, contests, political advocacy, legal advice, reporting, and congressional activity.

ELEC-008 should therefore be an election-specific RICO analogue with narrow elements, defined predicates, high mens rea, and robust safe harbors.

Core thesis. Existing law punishes many discrete election-related offenses, and Congress has already hardened several specific post-2020 presidential-election vulnerabilities. But federal law may still lack a narrow, scheme-level accountability framework for coordinated efforts to overturn lawful federal-election results through independently wrongful predicate acts.

The target is not election denial, political speech, litigation, recounts, or lawful objections. The target is knowing participation in a coordinated scheme that uses independently wrongful conduct to corruptly procure official disregard, reversal, obstruction, delay, or nullification of a lawful federal-election result.

Manifestation-to-remedy mapping.

Manifestation	Existing narrower issue or law	Residual gap	ELEC-008 response
Pressure on state or local officials to disregard, alter, delay, or refuse lawful certification or canvassing duties	ELEC-002 addresses certification and canvassing pressure	Pressure may be one part of a larger coordinated scheme involving other actors, documents, litigation, or federal channels	Treat corrupt pressure under color of office, coercion, threats, or unlawful inducement as predicate acts when materially connected to a coordinated federal election-subversion scheme
False or unauthorized presidential-electoral, certificate, or result-transmission documents	ELEC-005 addresses false presidential result-transmission documents	False documents may be used not only as standalone fraud but as one instrument in a broader scheme to create a pretext for official disregard of lawful results	Treat knowing creation, execution, transmission, or use of false or unauthorized federal-election result documents as predicate acts
Attempted use of federal executive authority, federal investigations, or official pressure to induce state or federal actors to disregard lawful results	DOJ-002, DOJ-003, DOJ-005, and DOJ-007 address White House–DOJ interference, selective enforcement, recusals, and independent investigation	Existing DOJ controls address internal misuse, but may not connect such misuse to a broader election-subversion scheme	Treat corrupt use of official authority and misuse of federal channels as predicate acts when tied to the corrupt objective of nullifying, reversing, obstructing, delaying, or procuring disregard of a lawful federal-election result
Pressure on the Vice President or Congress to reject, delay, or alter electoral-vote counting	ECRA addressed vice-presidential role, objection thresholds, and objection grounds	ECRA hardens procedures but does not itself create a scheme-level accountability framework for predicate conduct designed to corruptly exploit or obstruct those procedures	Preserve ECRA as baseline and treat independently wrongful pressure, false documents, obstruction, or bribery aimed at federal count procedures as predicate conduct
Abusive litigation, subpoenas, audits, or investigatory demands used after factual and legal rejection	ELEC-004 addresses abusive election litigation and extraordinary process	A lawsuit, subpoena, or audit request may be lawful in isolation; the difficulty is identifying when adjudicated bad faith or improper purpose becomes one part of a coordinated scheme	Allow process abuse to serve as a predicate only after a court, tribunal, or authorized body finds bad faith, material falsity, improper purpose, contempt, sanctionable conduct, or knowing misuse
Unauthorized access to election systems or materials	ELEC-007 addresses election-material custody and federal-force safeguards; other laws may address computer intrusion or election-material tampering	Unauthorized access may function as one predicate in a larger coordinated effort to manufacture doubt, obtain data, alter records, or justify official disregard	Treat unauthorized access, copying, imaging, custody, disclosure, or use of election materials or systems as predicate conduct when independently wrongful and materially connected to the scheme
Transition obstruction or denial of practical effect to lawful result	ELEC-006 addresses transition automaticity and continuity	Transition obstruction may be used as downstream pressure to deny the practical effect of a lawful election result	Treat knowing violation of transition-access duties, transition court orders, or transition-continuity safeguards as predicate acts when tied to the scheme

Manifestation	Existing narrower issue or law	Residual gap	ELEC-008 response
Fundraising, financing, or material assistance based on knowing false representations tied to the scheme	Existing fraud and campaign-finance laws may apply unevenly; the <i>We Build the Wall</i> prosecution is a false-purpose fundraising analogue, not an election-subversion analogue	Scheme financing may enable the coordinated pattern even where each fundraising communication is difficult to litigate separately	Treat knowing material false fundraising as a predicate only when tied to the coordinated federal election-subversion scheme, and permit disgorgement where funds are knowingly raised through materially false representations in furtherance of that scheme
Presidential participation or claimed official-act immunity	IMM-001 addresses criminal immunity for presidential official acts	An election-subversion statute may define prohibited scheme-level conduct, but accountability can fail if immunity doctrine bars prosecution, civil enforcement, evidence, or adjudication	ELEC-008 supplies the accountability framework; IMM-001 preserves the pathway to apply it to presidential conduct where constitutionally valid

Ambitious Scope. ELEC-008 is broader and more constitutionally sensitive than ELEC-002 through ELEC-007. It should proceed cautiously and should be developed with a comparative review of existing reform proposals, election-subversion scholarship, RICO doctrine, First Amendment limits, Petition Clause protections, and post-2020 federal reforms.

Federal-Election Scope. ELEC-008 should cover presidential, vice-presidential, Senate, and House elections. It should not generally federalize purely state or local elections, except where predicate conduct independently violates federal law.

ECRA Baseline. The 2022 Electoral Count Reform and Presidential Transition Improvement Act is a partial reform baseline. ELEC-008 should not duplicate or ignore it.

Presidential Accountability Complement. ELEC-008 should be developed in tandem with the presidential-immunity reform. An election-subversion accountability statute may define prohibited scheme-level conduct, but presidential accountability may still fail if immunity doctrine prevents prosecution, civil enforcement, evidentiary use, or adjudication of presidential conduct. The two reforms therefore complement each other: ELEC-008 supplies the accountability framework; the immunity reform preserves the pathway to hold a president accountable where the conduct falls outside legitimate constitutional functions or where Congress validly defines enforceable duties.

Conduct Not Belief. The statute should target corrupt coordinated conduct using independently wrongful predicate acts, not beliefs, public claims, or political advocacy.

Predicate-Act Requirement. Liability should require at least two defined predicate acts that are independently unlawful, sanctionable, or otherwise specifically prohibited.

Safe-Harbor Centrality. Robust safe harbors are essential to prevent the statute from chilling lawful election contests, recounts, litigation, advocacy, reporting, legal advice, journalism, or congressional activity.

Working Draft. Full statutory drafting has begun. The current draft should be treated as a first-pass framework subject to comparative review of existing proposals and related scholarship. The likely model is a narrow election-specific RICO analogue, not direct incorporation of ordinary RICO.

Title 18 Amendment Structure. The July 4 amendment pass converts ELEC-008 from a freestanding accountability act into a title 18 amendment adding a new chapter 29A for coordinated federal election subversion. This keeps the proposal in the criminal-law title, adjacent to existing election and political-activity offenses, while preserving its RICO-analogue structure without importing ordinary RICO's broader civil-damages model.

Internal Check Correction. The July 4 internal check preserved the chapter 29A vehicle but corrected the proposed section range from 6201-6216 to 618-633 so the new chapter sits numerically between 18 U.S.C. chapter 29's election-and-political-activity provisions and 18 U.S.C. chapter 31.

Follow-Up Source Review. The July 4, 2026 follow-up added direct prior-proposal comparators for the Presidential Election Reform Act and the Deceptive Practices and Voter Intimidation Prevention Act, and associated the Protecting Our Democracy Act with ELEC-008 as an adjacent presidential-accountability and election-integrity comparator. These sources confirm that Congress has considered narrower procedural, deceptive-practice, voter-interference, White House/DOJ-contact, and electoral-count reforms. They do not supply a complete scheme-level election-subversion framework, so ELEC-008's residual-gap theory remains plausible but still needs expert validation.

State Backstop Controls. The amendment draft now makes the state-attorney-general and election-official backstop more abuse-resistant by requiring contemporaneous notice to the United States, recognizing federal intervention as of right, allowing federal statements of interest, consolidation, transfer, or dismissal requests, and directing dismissal or sanctions where an action is primarily partisan, chilling, duplicative, or contrary to the chapter's safe harbors.

Source Development Pending. Further source development should review state anti-subversion proposals, Protect Democracy and other reform proposals, post-2020 federal and state prosecutions, congressional election-contest procedures, Article I Section 5 doctrine, Speech or Debate doctrine, fiscal/workload analogues, safe-harbor stress testing, and ARRP's presidential-immunity reform.

Quality Score. The proposal is 75/100 after the July 4 Title 18 amendment restructure and internal check. Component score: Structural 8/8; Evidence 11/12; Legal Fit 7/10; Prior Proposal 6/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4. The score movement comes from improving the draft, not changing the scoring standard: the bill now selects a Title 18 codification strategy, adds chapter-and-table amendment language, and

strengthens state-backstop anti-weaponization controls. External review remains 0/4, so the proposal should be treated as ready for expert critique rather than ready for public circulation.

Legal Fit. Existing conspiracy, voting-rights, and obstruction statutes provide component-law support, but *Fischer* cautions against unbounded obstruction theories and *Trump v. United States* requires official-act and evidence-use limits for presidential applications. ELEC-008 should therefore remain predicate-act-based, safe-harbor-heavy, and complementary to IMM-001 rather than relying on a general obstruction or election-denial theory.

Case Posture. The federal election-subversion prosecution did not produce adjudicated findings. DOJ's final Special Counsel report should be treated as the government's prosecution assessment and source lead, not as a judicial determination of fact. See Final Report on the Special Counsel's Investigations and Prosecutions, Volume One.

Next Improvement Path. To earn a higher score under the existing rubric, ELEC-008 should be improved by incorporating qualified external review, adding source-backed fiscal/workload analogues, verifying official docket posture from primary records, and stress-testing the safe harbors against hostile readings that could chill ordinary election litigation or protected advocacy.

ELEC-009 — Electoral College Structure and National Popular Vote

Issue Snapshot

Problem: Electoral College can override national vote.

Repair: Establish direct national presidential election.

Vehicle: Constitutional amendment (draft) plus title 52 enabling legislation (first draft).

Institutional Anomaly

The constitutional system for selecting the President can award the office to a candidate who did not receive the greatest number of votes nationally, concentrates campaign attention and practical influence in a limited number of competitive states, and assigns presidential selection through state-based electoral votes rather than equal aggregation of individual votes nationwide. These features can weaken public confidence that presidential authority reflects the electorate's collective choice.

The Electoral College also creates elector-specific pressure points, including elector appointment, certificates of ascertainment, certificates of vote, electoral-vote transmission, and congressional electoral-count proceedings. These mechanisms can become focal points for false-document schemes, certification pressure, elector disputes, and federal-count pressure.

Manifestation of the Failure

Popular-vote and Electoral College divergence

The Electoral College winner did not receive the national popular-vote plurality in the presidential elections of 1876, 1888, 2000, and 2016. The 1824 election also produced a President who did not lead the initial popular vote, although the popular vote was incomplete and the election was ultimately decided by the House of Representatives under the Twelfth Amendment.

Official FEC election compilations verify the two modern examples central to this proposal's contemporary relevance. In 2000, the FEC reported Al Gore with 50,992,335 popular votes and George W. Bush with 50,455,156 popular votes, while the electoral-vote map gave Bush 271 electoral votes and Gore 266. See [FEC Federal Elections 2000](#) and [FEC Federal Elections 2000 PDF](#). In 2016, the FEC reported Hillary Clinton with 65,853,514 popular votes and President Trump with 62,984,828 popular votes, while the electoral-vote table reported President Trump with 304 electoral votes and Clinton with 227 after faithless-electors votes. See [FEC Federal Elections 2016](#) and [FEC Federal Elections 2016 workbook](#).

The issue is not dependent upon misconduct by any individual officeholder. The 2000 and 2016 elections are modern manifestations of a longstanding structural possibility: a candidate may assume the presidency despite receiving fewer votes nationwide than an opponent.

Resulting Damage

Divergence between the popular vote and the constitutional result may:

1. weaken perceived democratic legitimacy and institutional trust;
2. produce unequal practical weight among voters because electoral votes are allocated by state;
3. concentrate campaign resources and policy attention in a small number of competitive states;
4. render voters in predictably noncompetitive states less consequential to campaign strategy;
5. increase the possibility that a narrow shift in a few states overrides a substantial national vote margin;
6. create recurring disputes over whether the President possesses a national democratic mandate;
7. create elector-specific document and transmission vulnerabilities; and
8. create a separate congressional-count pressure point that direct election would largely eliminate.

These harms do not establish that every Electoral College outcome is illegitimate. They identify a structural mismatch between the constitutional selection mechanism and the modern expectation that the candidate receiving the most votes should ordinarily prevail.

Underlying Weakness

Article II and the Twelfth Amendment establish a state-based elector system. Each state receives electors equal to its total representation in Congress, and a candidate must obtain a majority of appointed electoral votes. If no candidate receives a majority, the House selects the President by state delegation, with each state casting one vote.

The Constitution does not require winner-take-all allocation, which is a product of state law in nearly every state. States therefore retain substantial authority over elector allocation, but complete abolition of electors and direct national election of the President requires a constitutional amendment.

The current system combines several distinct features that should not be treated as inseparable:

- the existence of presidential electors;
- allocation of electoral votes among states;

- winner-take-all state allocation;
- the electoral-vote majority requirement;
- contingent election by state delegation in the House; and
- decentralized state administration of the underlying popular vote.

Proposal Survey

Prior reform models include constitutional amendments for direct popular election, state allocation reforms, proportional or district-based electoral-vote allocation, and the National Popular Vote Interstate Compact. The compact seeks to use state appointment power to award electoral votes to the national popular-vote winner once states totaling 270 electoral votes join. See National Popular Vote.

The compact remains a live staged model rather than a completed substitute for amendment. National Popular Vote's current status page states that the compact has been enacted by 19 jurisdictions possessing 222 electoral votes and would take effect when enacted by states possessing an additional 48 electoral votes. See National Popular Vote state status. Because that source is maintained by the compact's advocacy organization, publication-ready treatment should verify individual state enactments through state legislative or code sources.

The July 4, 2026 follow-up confirms that this compact-status posture remains materially current: the compact sponsor identifies Virginia as the newest enacted jurisdiction and continues to report 19 jurisdictions, 222 electoral votes, and 48 additional electoral votes needed for activation. That development strengthens the compact-as-live-alternative discussion but does not make the compact equivalent to Article V repeal, and it does not remove the need for official state-by-state verification before publication-ready reliance.

Recent congressional direct-election proposals confirm that ELEC-009 has direct legislative analogues but also that the proposal has not advanced far in modern Congress. In the 116th Congress, H.J.Res. 7, S.J.Res. 16, and S.J.Res. 17 each proposed constitutional amendment language for direct election or abolition of the Electoral College, but each remained introduced or referred rather than advancing to proposal by Congress.

The Electoral Count Reform Act improved counting procedures but left the Electoral College structure intact. See Pub. L. No. 117-328, div. P. ELEC-009 treats compact and allocation reforms as possible interim models but selects constitutional replacement as the durable remedy.

Least-Complex Adequate Remedy

The most durable method of guaranteeing that the national popular-vote winner becomes President is a constitutional amendment establishing direct national popular election. Article V requires proposal by two-thirds of both houses of Congress or a convention called on application of two-thirds of state legislatures, followed by ratification by three-fourths of the states or state conventions. See Article V. That remedy is legally clear but politically difficult and requires detailed national rules governing recounts, ballot access, dispute resolution, certification, and election administration.

The National Popular Vote Interstate Compact is less procedurally difficult than amendment but does not abolish the Electoral College, depends on coordinated state enactments, and presents unresolved constitutional and operational risks. It should be evaluated as an interim or alternative mechanism rather than presumed equivalent to constitutional replacement.

Repair and Prevention

Congress and the States should adopt a constitutional amendment abolishing presidential electors and providing for direct national election of the President and Vice President by the people of the United States.

The amendment should:

1. abolish presidential electors;
2. provide for joint presidential and vice-presidential tickets;
3. provide that each voter casts one vote for a joint ticket;
4. establish the national popular vote as the default method of election;
5. allow Congress to enact a uniform national majority mechanism such as a runoff or ranked-choice tabulation;
6. authorize Congress to establish uniform rules for ballot access, counting, certification, recounts, contests, result transmission, candidate vacancies, ties, and unresolved contests;
7. preserve state administration subject to uniform federal standards;
8. supersede inconsistent constitutional provisions; and
9. provide a delayed effective date sufficient for implementation.

Proposed Constitutional Amendment

- Direct Election of the President and Vice President Amendment

Proposed Enabling Legislation

- Direct Presidential Election Implementation Act

Relationship to Adjacent Proposals

- **ELEC-005** concerns false or unauthorized presidential result-transmission documents within the existing constitutional system. Direct election would remove elector-specific document vulnerabilities but still require secure national result-transmission rules.
- **ELEC-006** concerns continuity and automatic operation of presidential transition procedures. Direct election would simplify some sources of uncertainty but would still require transition administration.
- **ELEC-008** concerns coordinated federal election-subversion schemes. Direct election would reduce elector-specific attack surfaces while preserving the need for scheme-level accountability.
- **ELEC-009** concerns the constitutional presidential-selection mechanism itself.

Budgetary Impact Statement

No direct appropriation is anticipated for the amendment itself; implementing legislation may have costs.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 75 / 100 (Review Ready for External Critique)

Adoption Score: 4 / 12 (Limited Adoption Basis)

Adoption Friction: 95 / 100 (Extreme Resistance)

Required Electoral Environment: constitutional-amendment-environment

Development Priority: conditional

Internal Review Status: First draft enabling legislation complete; external validation and majority-mechanism refinement still pending

Last Internal Review: First draft enabling legislation

Scoring Standard: 2026-06-27.2; **Scoring Basis:** Current project standard; **Revision Review Needed:** No

Next Review: Qualified constitutional-law, election-law, election-administration, and legislative-counsel review; majority-mechanism selection or defense; official state-by-state compact verification; fiscal and workload analogues

Full Review History: ELEC-009 review history

Annotation

Implementation architecture. ELEC-009 cannot rely on amendment text alone. A direct national presidential election would require implementing legislation that converts state-administered vote totals into a lawful national result under uniform federal rules.

The first enabling-legislation draft now uses an amendment to the existing federal election-administration title, principally title 52, rather than a freestanding election code. Title 52 already houses federal voting, election-administration, and campaign-finance statutes, including the Help America Vote Act framework. Title 3 would still require conforming amendments after ratification because its current presidential-election provisions are built around electors, certificates of ascertainment, electoral-vote transmission, and congressional counting.

The Direct Presidential Election Implementation Act is a first draft. It would create a new title 52 direct-presidential-election chapter for State administration under uniform federal rules, joint tickets, ballot access, State vote certificates, national canvass, recounts, contests, plurality-default operation, candidate substitution, emergencies, exact ties, public guidance, and enforcement. It would also add a title 3 conforming section making elector-based procedures inapplicable to covered direct presidential elections while preserving succession and vacancy law.

The implementation architecture should include:

1. **Codification vehicle.** The enabling act should primarily amend title 52, either by adding a direct-presidential-election subchapter to the existing election-administration framework or by creating a new title 52 chapter for national presidential canvass, certification, recount, contest, and transition rules.
2. **National canvass and certification.** States should continue administering voting, but federal law should prescribe uniform certification content, transmission format, authentication standards, public posting, correction procedures, and final national aggregation. Existing 3 U.S.C. § 5 supplies a useful procedural analogue because it requires state executive certification, transmission to the Archivist, certificate security features, treatment of court-ordered revisions, and expedited federal judicial procedures for presidential-election certification disputes.
3. **Election-administration floor.** Congress should adapt existing federal election-administration infrastructure rather than inventing every rule from scratch. The Help America Vote Act framework in 52 U.S.C. chapter 209 is relevant because it already addresses election-administration improvements, the Election Assistance Commission, voting-system guidance, testing, certification, and

federal-state implementation tools.

4. **Title 3 conforming amendments.** Because direct election would abolish presidential electors, implementing legislation should repeal, supersede, or conform Title 3 provisions that assume elector appointment, certificates of ascertainment, certificates of vote, electoral-vote transmission, and congressional counting. Some Title 3 procedures should be reused as analogues, but Title 3 should not be the main affirmative home for the new national popular-vote regime.
5. **Recount triggers.** Implementing legislation should define automatic and candidate-requested recount thresholds, whether recounts occur nationwide or only in affected jurisdictions, how corrected state totals are aggregated, who bears costs, and how recount deadlines interact with transition timing.
6. **Contest procedure.** Direct election would need an expedited federal contest path for disputes capable of changing the national result. A three-judge district-court model with expedited Supreme Court review, analogous to the procedure in 3 U.S.C. § 5(d), should be tested against due process, federalism, timing, and administrability concerns.
7. **Majority mechanism.** The amendment and first enabling draft currently use a national plurality default while allowing Congress to enact a uniform runoff, ranked-choice tabulation, or other majority mechanism. That default is legally simple but politically and legitimacy-sensitive. Publication-ready work should either defend plurality as the default or select a concrete majority mechanism.
8. **Ballot access and candidate continuity.** Federal law should establish minimum national rules for ballot access, write-in treatment, joint-ticket substitution, candidate death or incapacity, withdrawal, replacement deadlines, and party or independent-candidate certification.
9. **Emergency and unresolved-contest rules.** The enabling act should specify what happens if a state fails to certify, a disaster prevents voting in part of a state, litigation remains unresolved, or no final national result is available by transition deadlines.

This architecture does not require all election administration to become federal. The better model is state administration under uniform federal rules, with federal procedures for national aggregation, expedited review, and result finality.

Public opinion and adoption evidence. Available polling shows a durable national preference for selecting the President by national popular vote, but also a serious adoption gap between abstract public support and the Article V coalition required to abolish presidential electors. In September 2024, Pew Research Center reported that 63 percent of U.S. adults preferred the presidential winner to be the person receiving the most votes nationally, while 35 percent preferred retaining the Electoral College. Pew also reported a large partisan divide: 80 percent of Democrats and Democratic-leaning independents favored a popular-vote system, while Republicans and Republican leaners were more divided, with 46 percent favoring replacement and 53 percent favoring retention. See Pew Research Center, *Majority of Americans continue to favor moving away from Electoral College*.

Gallup's September 2020 polling asked the more constitutionally specific question whether respondents preferred amending the Constitution so the candidate receiving the most total votes nationwide wins. Gallup found 61 percent support and 38 percent opposition overall, with 89 percent support among Democrats, 68 percent among independents, and 23 percent among Republicans. Gallup also reported that support for replacing the Electoral College with a national popular vote usually remained at majority levels in its post-2000 polling, but fell to 49 percent immediately after the 2016 election, reflecting how public attitudes can shift with partisan incentives and recent electoral outcomes. See Gallup, *61% of Americans Support Abolishing Electoral College*.

This evidence strengthens the public-legitimacy case for ELEC-009: support for a national popular-vote rule is not merely an elite or academic preference. It also clarifies the adoption problem. National majority support does not translate into Article V viability because ratification requires geographically distributed state support, and the polling shows substantial partisan asymmetry. ELEC-009 should therefore distinguish three questions: whether the public generally prefers a national popular vote; whether voters support a specific constitutional amendment with implementation details; and whether enough states and congressional actors would support ratification despite expected partisan and state-interest resistance.

For scoring purposes, the targeted internal revision review treats this polling as sufficient for modest adoption-credit improvement. The evidence is directly relevant to popular-vote reform, and Gallup's 2020 question is specifically relevant to a constitutional-amendment mechanism, but the record still does not establish support for this draft amendment's full architecture, including plurality default, congressional power to create a runoff or ranked-choice mechanism, uniform national administration, state-administered implementation, recount rules, ballot-access rules, or contest procedures.

Institutional-Trust Basis. This issue belongs in the project even though it is not principally prompted by the conduct of a particular President. The project addresses institutional structures that undermine legitimacy, accountability, resilience, or public confidence. Repeated divergence between the national popular vote and the presidential outcome presents such a structural concern.

Neutrality. The issue should not be framed around which political party has benefited from particular elections. Any reform must apply identically regardless of candidate, party, region, or expected electoral advantage.

Historical Qualification. Four elections—1876, 1888, 2000, and 2016—clearly produced an Electoral College winner who did not receive the national popular-vote plurality. The 1824 election is historically distinct because popular voting was not universal among states and the House selected the President after no candidate obtained an electoral majority.

Constitutional Constraint. Direct abolition of the Electoral College requires constitutional amendment. State-law allocation reforms and the interstate compact may alter practical outcomes without formal abolition, but they raise different questions of durability, administration, and constitutional validity.

Compact Status Refresh. The July 4, 2026 follow-up confirms the compact remains live but incomplete. National Popular Vote reports 19 jurisdictions with 222 electoral votes, including Virginia after its 2026 enactment, leaving 48 electoral votes short of activation. This supports treating the compact as a serious staged alternative but not as a completed substitute for Article V amendment.

Implementation Required. The amendment must be paired with implementing legislation for national certification, recount thresholds, contest procedures, ballot access, candidate replacement, tie resolution, transition access, and emergency contingencies. The July 4 implementation audit identified the core architecture and statutory analogues, and the first title 52 enabling draft now supplies a concrete starting text. It still requires expert review, refinement, and fiscal/workload support before publication-ready circulation.

Implementation Architecture. The July 4 implementation audit adds a source-backed outline for national canvass, certification, recounts, contests, majority mechanism, ballot access, candidate continuity, emergencies, and unresolved contests. The likely enabling-legislation vehicle is a title 52 amendment, using 52 U.S.C. chapter 209 as an election-administration infrastructure analogue, with conforming title 3 amendments to remove or adapt obsolete elector-based machinery. It uses 3 U.S.C. § 5 as an expedited presidential-election certification analogue, not as the primary codification home.

First Draft Enabling Legislation. The July 4, 2026 first draft adds the Direct Presidential Election Implementation Act. The draft creates a title 52 direct-presidential-election chapter, assigns ministerial national canvass duties, requires State presidential vote certificates, defines recount and contest paths, uses three-judge federal review with direct Supreme Court appeal for result-affecting contests, keeps a national plurality default, permits a later uniform majority mechanism, addresses candidate substitution and emergencies, creates an exact-tie runoff fallback, and adds a title 3 conforming amendment for elector-based provisions.

Quality Score. The proposal is 75/100 after the July 4, 2026 first draft enabling-legislation pass. Component score: Structural 8/8; Evidence 10/12; Legal Fit 7/10; Prior Proposal 8/8; Remedy 9/12; Implementation 7/8; Abuse Resistance 5/8; Drafting 7/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4. The score movement comes from improving the issue itself, not changing the scoring standard: ELEC-009 now has actual title 52 implementation text rather than only a source-backed implementation architecture. The proposal reaches Review Ready for External Critique, but it is not publication-ready. The majority mechanism remains unresolved, the exact-tie runoff and Archivist/EAC administration model need expert testing, compact legality and official state-by-state compact verification remain incomplete, budget/workload analogues are missing, and external constitutional-law or election-law review remains unavailable.

Adoption Score. Adoption Score is 4/12 (Limited Adoption Basis). Pew 2024 supports the underlying national-popular-vote reform principle with current national polling. Gallup 2020 is older but remains probative because it asks the more mechanism-specific question whether the Constitution should be amended so the national popular-vote winner becomes President. The adoption record remains limited because the project has not identified state-level ratification evidence, current sponsor strength, a verified bipartisan Article V path, external validator support, or public support for this draft amendment's full implementation architecture.

Adoption Friction. Adoption Friction is 95/100 (Extreme Resistance) because the proposal would abolish presidential electors, alter presidential-selection incentives nationwide, require Article V ratification, affect state and party strategic interests, require extensive implementing legislation, and invite intense federalism, partisan, administrative, recount, and ballot-access objections.

Required Electoral Environment. Required Electoral Environment is constitutional-amendment-environment, with Pathway Viability *post-crisis-only*, Development Priority *conditional*, and Pathway Adjustment *stage*. Interim development should preserve comparison to the National Popular Vote Interstate Compact, state allocation reforms, ranked-choice or runoff mechanisms, and electoral-count hardening while recognizing that direct abolition requires Article V ratification.

ELEC-010 — Mail-In Voting Access, Reliability, and Trust

Issue Snapshot

Problem: Mail-ballot rules are uneven and fragile.

Repair: Set mail-ballot and USPS election-mail standards.

Vehicle: Federal election and postal legislation.

Institutional Anomaly

Mail-in and absentee voting are lawful, widely used election-administration tools, but the safeguards governing access, ballot delivery, voter verification, cure, chain of custody, deadline design, and public explanation remain uneven across jurisdictions. That unevenness creates two linked institutional risks: lawful voters can lose ballots through avoidable administrative failure, and opponents of a lawful result can exploit ordinary mail-ballot processing complexity to delegitimize valid votes.

The issue is not whether every jurisdiction must conduct elections primarily by mail. The issue is that where mail-in or absentee voting is available, the legal framework should make the process reliable, reviewable, voter-correctable, secure, and publicly intelligible.

Manifestations of the Failure

Postal-service dependence and delivery uncertainty

Mail voting depends on a federal delivery system that state election officials do not control. In 2020, the USPS Office of Inspector General found that the Postal Service processed and delivered at least 135 million identifiable ballots going to and coming from voters, prioritized Election Mail, and used extraordinary measures such as extra transportation and overtime. The same report also found that many ballots were not measurable through service-performance tracking, that some facilities failed to follow all-clear and postmark procedures, and that local communication about Election Mail guidance was not always timely or effective. See USPS OIG, *Service Performance of Election and Political Mail During the November 2020 General Election* (Mar. 5, 2021).

The report shows both that large-scale mail voting can work and that incomplete tracking, inconsistent procedures, and dependence on extraordinary last-week measures create avoidable fragility.

Federal postal and voter-data leverage over mail ballots

In 2026, Executive Order 14399 linked federal citizenship lists, database matching, voter-data transmission, and USPS handling of mail ballots. Litigation blocked or rejected related efforts to create a federal voter-list architecture, restrict mail-ballot distribution, and obtain sensitive state data. See 91 Fed. Reg. 17125 and Associated Press reports concerning the voter-list injunction, Michigan data appeal, and Maryland lawsuit.

USPS then proposed *Ballot Mail for Federal Elections*, requiring serialized ballot-envelope barcodes, participation lists, and state-submitted verification data. The institutional concern is not tracking itself; it is the possibility that federal postal service becomes conditional on state participation in a voter-data system that lacks sufficient congressional authorization or voter-protective procedures. See The Guardian, mail-ballot injunction.

Technical rejection and uneven cure rules

Mail ballots may be rejected for signature, secrecy-envelope, dating, witness, identification-number, timeliness, or other technical defects. Those requirements can protect authentication and integrity, but uneven notice and cure rules can produce different outcomes for similarly situated eligible voters. The Election Assistance Commission identifies cure, rejected-ballot documentation, reconciliation, and late-arriving-ballot review as parts of the canvass process. See the EAC *Guide to the Canvass*.

After new rules took effect, Texas rejected roughly 13 percent—22,898—of mail ballots reported in its March 2022 primary. See Axios, *Texas tossed out 13% of mail ballots in March primary election, AP finds*. The episode illustrates how technical requirements and insufficient cure can produce large-scale disenfranchisement without a finding that the affected voters were ineligible.

Chain-of-custody and ballot-handling vulnerability

Mail voting adds custody points from printing and outbound delivery through voter return, postal or drop-box handling, election-office intake, verification, storage, tabulation, and canvass. Weak documentation can create security risk or an appearance of irregularity. The EAC *Guide to the Canvass* identifies chain-of-custody records, ballot reconciliation, late-arriving-ballot tracking, and drop-box pickup records as integrity safeguards.

Delegitimization of lawful mail ballots

Lawful mail ballots may be counted after election night because state law permits later processing, receipt of timely postmarked ballots, cure periods, UOCAVA timing rules, or ordinary canvassing. Without clear public explanation, those predictable timelines can be portrayed as evidence of fraud. Associated Press reporting summarizes the broader record: voter fraud occurs but is rare, and election systems use voter lists, signature checks, tracking, audits, and decentralized administration to detect it. See Associated Press, October 3, 2024.

Resulting Damage

Mail-ballot failure can disenfranchise eligible voters, especially voters who are elderly, disabled, overseas, serving in the military, temporarily displaced, medically vulnerable, working inflexible schedules, lacking transportation, living in remote areas, or relying on mail because of caregiving, detention, weather, disaster, or public-health conditions.

The damage is not limited to access. Poorly designed mail-voting rules can also create inconsistent treatment, late litigation, disputed rejection rates, administrative overload, election-night misinformation, chain-of-custody suspicion, and public doubt about lawfully counted ballots.

Underlying Weakness

Mail voting crosses several institutional boundaries:

1. states set eligibility, request, return, receipt, cure, verification, canvass, and certification rules;
2. local officials administer intake, verification, cure, reconciliation, counting, and custody;
3. USPS controls most delivery infrastructure but does not control state election deadlines;
4. federal executive agencies may seek voter data or impose postal conditions that affect mail-ballot access;
5. courts often resolve disputes close to election deadlines; and
6. voters must navigate complex instructions under time pressure.

Existing law often addresses pieces of the process but not the whole mail-ballot pathway. Common weaknesses include:

- request deadlines that do not account for realistic mailing time;
- receipt deadlines that shift postal delays onto voters;
- inconsistent or opaque signature-review standards;
- no mandatory notice and cure opportunity;
- cure deadlines that expire before notice can practically reach the voter;
- inadequate ballot tracking and voter-facing status tools;
- inconsistent drop-box custody and collection rules;
- insufficient public reporting of rejection categories;
- weak contingency rules for postal disruption, disaster, or administrative failure;
- inaccessible instructions for voters with disabilities or limited English proficiency; and
- partisan narratives that attack mail voting categorically rather than distinguishing security defects from lawful processing.

Proposal Survey

ELEC-010 should be drafted with the existing legislative field in view. Prior proposals have generally fallen into three groups: mail-access expansion, postal-reliability reform, and election-security restriction.

The closest models include the Supreme Court's postmark-deadline decision in *Watson v. Republican National Committee*, postal-reliability and ballot-tracking bills, broader federal voting packages, and state integrity laws. ELEC-010 combines reliable postal handling, tracking, authentication, meaningful cure, custody controls, transparent rejection reporting, and clear receipt rules while rejecting both a categorical federal postmark mandate and categorical restrictions that make lawful mail voting unnecessarily difficult. Detailed bill and state-law comparisons appear in the Annotation.

Least-Complex Adequate Remedy

The least-complex adequate remedy is federal legislation for federal elections, paired with federal postal standards for election mail.

Congress can set a federal floor for congressional elections under the Elections Clause and can regulate postal handling of election mail through federal postal authority. For presidential elections, the statute should be drafted more carefully, tying requirements to federal result-transmission, elector-appointment timing, and any federal funding or administrative support rather than assuming unlimited federal control over state presidential-election administration.

The federal role should ensure that USPS and federal actors do not become hidden veto points over lawful mail-ballot channels, and that voters in federal elections receive minimum notice, cure, tracking, deadline, and transparency protections. States may extend the same standards to state and local contests to avoid dual-track administration, but ELEC-010 does not require a separate state legislative project as the primary remedy.

This approach is less complex than nationalizing mail-voting administration and more adequate than leaving federal-election cure, tracking, deadline realism, chain-of-custody documentation, USPS mailing advisories, and postal contingency planning to fragmented local practice.

Repair and Prevention

Congress should enact a Mail-In Voting Reliability and Cure Act establishing minimum standards for mail and absentee ballots in federal elections where those voting methods are available. After *Watson*, the Act need not make post-Election-Day receipt categorically lawful by federal statute; the Supreme Court has already rejected the argument that the federal election-day statutes require receipt by Election Day. The Act should instead ensure that any state-created mail-ballot channel is reliable, transparent, voter-correctable, and not subject to hidden federal postal veto points. The Act should:

1. set request, outbound-mailing, and return deadlines that account for USPS delivery standards and local processing needs;
2. require prepaid return postage or an equally reliable no-cost return option;
3. require voter-facing ballot tracking for request, outbound mailing, receipt, acceptance, rejection, and cure status;
4. require uniform statewide signature or identity-verification standards for federal-election ballots where signature or identity review is used;
5. require prompt notice and a meaningful cure opportunity for missing signature, signature mismatch, ID-number mismatch, missing date, envelope defect, or comparable curable errors;
6. prohibit rejection for immaterial paperwork defects where voter eligibility, ballot timeliness, and ballot authenticity are otherwise established;
7. require USPS, in consultation with state election officials, to publish jurisdiction-specific recommended mailing dates for ballot return;
8. require states to provide reasonable nonpostal return options after the recommended mailing date where mail return is no longer reasonably reliable;
9. require clear publication and uniform administration of receipt deadlines, including the treatment of timely postmarked ballots where State law permits post-Election-Day receipt;
10. require secure drop-box rules where drop boxes are used, including public locations, collection frequency, bipartisan or dual-control pickup, seal logs, and reconciliation;
11. require election offices to publish rejection statistics by category after each election;
12. require contingency plans for postal disruption, severe weather, disaster, cyber incident, printing failure, vendor failure, or administrative backlog;
13. require plain-language instructions, accessibility review, and language-access compliance; and
14. require public explanation of mail-ballot processing timelines before Election Day.

Congress should also enact federal postal standards for election mail, including tracking, communication, postmarking, all-clear procedures, delivery-performance reporting, election-official escalation channels, evidence-based mailing advisories, and a prohibition on operational changes that foreseeably degrade election-mail performance during defined election windows without notice and mitigation. USPS should not refuse, delay, or condition lawful election-mail service based on a state's refusal to participate in a federal voter-data, citizenship-list, or ballot-identifier system unless Congress has clearly authorized that condition and supplied voter-protective procedures.

Proposed Legislation

- Mail-In Voting Reliability and Election Mail Standards Act

Relationship to Adjacent Proposals

ELEC-001 covers federal executive interference with state and local election administration. ELEC-010 covers ordinary and extraordinary vulnerabilities in the mail-ballot pathway itself, including postal performance and voter cure.

ELEC-002 covers certification refusal and automatic substitution. ELEC-010 covers ballot receipt, verification, cure, and canvass before certification.

ELEC-003 covers protection of election workers and officials. ELEC-010 may reduce threats by making mail-ballot processing more transparent and less susceptible to bad-faith narratives.

ELEC-004 covers abusive election litigation and investigatory mechanisms. ELEC-010 should reduce litigation incentives by making mail-ballot rules clearer before voting begins.

ELEC-007 covers improper federal-force presence in election administration. ELEC-010 covers mail and custody procedures that may reduce pressure for pretextual federal intervention.

Budgetary Impact Statement

Budget authority may be required if the chosen remedy funds postage, tracking, or election-administration support; no dollar estimate is assigned pending source-backed cost data.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 77 / 100 (Review Ready)

Adoption Score: 4 / 12 (Limited Adoption Basis)

Adoption Friction: 72 / 100 (High Resistance)

Required Electoral Environment: sixty-vote-senate

Development Priority: active

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Internal Review Status: Internal project review complete; external validation pending

Last Internal Review: Internal project review

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current project standard

Next Review: External validation / follow-up internal review

Full Review History: ELEC-010 review history

Annotation

Design tradeoffs.

Debated design questions. Mail voting has been extensively debated, and ELEC-010 should not flatten those debates into a simple access-versus-suppression story. The proposal should account for at least six recurring disputes.

Receipt deadline versus postmark deadline. An Election Day receipt deadline produces faster finality and reduces the number of ballots arriving after election night, but it shifts postal delay risk onto voters. A postmark-by-Election-Day rule better protects voters who act by Election Day, but it delays final counts and depends on reliable postmarking and tracking.

In *Watson v. Republican National Committee*, decided June 29, 2026, the Supreme Court held that the federal election-day statutes do not prevent Mississippi from counting absentee ballots postmarked by Election Day but received up to five business days afterward. The Court described the question as narrow and did not decide Congress's broader regulatory authority over federal elections. The decision reduces the need for ELEC-010 to defend postmark grace periods against the specific claim that federal Election Day statutes require receipt by Election Day. It does not eliminate the need for clear state deadlines, reliable postmarking, ballot tracking, cure procedures, nonpostal return options, or public explanation of lawful post-Election-Day receipt and counting.

USPS mailing advisory versus USPS disqualification deadline. A USPS advisory can improve voter notice and state planning; in 2024, USPS urged voters to mail ballots by October 29 in jurisdictions requiring receipt by November 5. See Axios, *USPS: "Don't delay" in returning mail-in ballots*. An advisory should not become a USPS-controlled legal deadline that shortens an election-law voting period. ELEC-010 therefore prefers public advisory dates, earlier outbound mailing, and nonpostal return options over postal control of ballot validity.

Signature verification versus alternative authentication. Signature matching is familiar and can deter some abuse, but it can produce false mismatches and uneven treatment. Alternatives include ID-number matching, barcode tracking, attestation, voter-notification cure, or layered verification. The core requirement should be uniform standards plus cure, not any single verification technique.

Drop boxes versus mail-only return. Drop boxes reduce dependence on USPS near Election Day and help voters who receive or complete ballots late. They also require strong chain-of-custody rules, collection logs, seal procedures, surveillance or public-location standards where appropriate, and reconciliation.

Fast results versus complete canvass. Mail-ballot processing can slow unofficial results. That delay is not itself evidence of fraud, but it is politically exploitable. The remedy is earlier preprocessing where lawful, public timelines, and transparent canvass reporting.

Uniform federal floor versus state flexibility. Federal elections need minimum protections so federal voting rights do not depend on avoidable administrative failure. States still need room to administer different voting systems, especially where they combine federal, state, and local contests on the same ballot.

Detailed proposal survey.

Supreme Court postmark-deadline decision. In *Watson v. Republican National Committee*, 609 U.S. ____ (2026), the Supreme Court held that federal election-day statutes do not require absentee ballots to be received by Election Day where state law requires ballots to be postmarked by Election Day and received within a later state-law window. ELEC-010 should therefore be narrower than a federal postmark-grace authorization bill. The better fit is an administrability statute: publish receipt rules, support reliable postmarking and tracking, preserve state flexibility, and prevent federal postal or data systems from becoming practical veto points over lawful state mail-ballot channels.

Election Mail Act. The closest federal model is the Election Mail Act, introduced by Senator Amy Klobuchar and described as requiring First-Class service standards for election mail, postmarks on ballots, and no voter or election-official postage payment for ballot return.

See Axios, *First look: Klobuchar introduces election mail bill* (July 1, 2022). ELEC-010 should borrow the postal-reliability idea but go beyond postage and postmarking to include tracking, election-official escalation channels, all-clear procedures, mailing advisories, and contingency planning.

For the People Act and Freedom to Vote Act. Broad Democratic election bills have included vote-by-mail access as part of larger voting-access packages. The For the People Act of 2021 passed the House and, according to the Congressional Research Service summary on Congress.gov, expanded voting access including vote-by-mail and early voting. See H.R. 1, 117th Cong.. The Freedom to Vote Act similarly addressed voter registration, voting access, election integrity, redistricting, and campaign finance, including vote-by-mail and early voting. See S. 2747, 117th Cong.. ELEC-010 should remain narrower than those omnibus bills: its focus is the reliability, cure, transparency, and custody design of mail-ballot systems, not a full national voting-rights code.

Universal Right to Vote by Mail Act and ballot-tracking proposals. Earlier mail-voting proposals, including the Universal Right to Vote by Mail Act of 2009, would have barred states from requiring a special excuse to vote by mail in federal elections, while related proposals such as the Absentee Ballot Track, Receive and Confirm Act focused on ballot tracking. See H.R. 1604, 111th Cong. and H.R. 2510, 111th Cong.. ELEC-010 need not require nationwide no-excuse mail voting as its central remedy, but it should adopt ballot-tracking and voter-notice concepts where mail voting is offered.

SAVE Act and SAVE America Act lineage. Republican proposals have concentrated on proof of citizenship, voter-list controls, voter identification, and mail-voting restrictions. The 2025 SAVE Act, H.R. 22, 119th Cong., passed the House and would require documentary proof of U.S. citizenship for federal voter registration, require states to remove noncitizens from voter lists, create a private right of action, and establish criminal penalties for certain registration offenses. Press reporting on the later SAVE America Act describes related requirements for in-person documentary proof, voter-ID rules, and mail-voting constraints. See The Guardian, *What does Trump's restrictive voting bill include - and does it have a chance of becoming law?* (Mar. 13, 2026). ELEC-010 should answer the underlying integrity concerns through targeted authentication, list-maintenance compatibility, cure records, transparent rejection data, and auditable custody rather than by making lawful mail voting categorically harder to use.

American Confidence in Elections Act and Make Elections Great Again Act. The American Confidence in Elections Act, H.R. 4563, 118th Cong., included election-administration and security provisions, including congressional election observers and restrictions tied to ballot collection. The Make Elections Great Again Act, H.R. 7300, 119th Cong., goes further on mail voting: its text would limit possession or return of other voters' mail ballots, require individual requests for mail ballots, require trackable election-mail barcodes, and require absentee and mail-in ballots for federal elections to be received by poll closing time, subject to UOCAVA exceptions. See also TIME, *The Sweeping Elections Changes House Republicans Are Proposing* (Jan. 29, 2026). ELEC-010 should engage these objections directly: chain-of-custody rules, drop-box controls, collection limits where needed, tracking, preprocessing, and finality rules are legitimate design subjects, but they should be calibrated to protect eligible voters from avoidable rejection.

State election-integrity statutes. State models also matter. Georgia's Election Integrity Act of 2021 replaced absentee signature matching with voter-identification requirements, limited drop boxes, barred officials from sending unsolicited absentee-ballot request forms, and narrowed the absentee request window. See Georgia General Assembly, S.B. 202, 2021-2022 Reg. Sess.. Texas S.B. 1 added mail-ballot identification-number requirements that contributed to high rejection rates in 2022 and continued litigation. See The Guardian, *Texas leans on new voting law to reject thousands of ballot applications* (Feb. 3, 2022), and Politico, *Appeals court upholds Texas law requiring ID numbers to cast mail-in ballots* (Aug. 4, 2025). Arizona's ballot-collection restriction was upheld by the Supreme Court in *Brnovich v. Democratic National Committee*, 594 U.S. 647 (2021), against Voting Rights Act and discriminatory-purpose challenges. See *Brnovich v. Democratic National Committee*, 594 U.S. 647 (2021).

The drafting lesson is that ELEC-010 should not be framed as a purely partisan access bill or as a broad federal mandate for postmark grace periods. It should preserve access to lawful mail voting while building a record-responsive integrity architecture: reliable postal handling, voter-facing tracking, uniform authentication standards, meaningful cure, drop-box and collection controls, transparent rejection reporting, clear receipt/counting rules, and public explanation of canvass timing.

Basis and Evidence. Mail voting can be administered securely, but it is operationally demanding. The USPS OIG's 2020 report supports both sides of that conclusion: the Postal Service prioritized and largely delivered election mail, but it also identified visibility, communication, all-clear, postmarking, and measurement gaps. EAC canvass guidance confirms that cure, chain of custody, ballot reconciliation, late-arriving mail ballots, and drop-box documentation are ordinary election-integrity tools rather than partisan inventions. USPS deadline advisories are useful evidence for voter guidance and statutory planning, but they should not themselves become legal disqualification rules.

Watson Update. *Watson v. Republican National Committee* narrows ELEC-010's legal-risk posture. The proposal no longer needs to treat postmark-by-Election-Day receipt windows as legally vulnerable under the federal election-day statutes. The remaining problem is operational and institutional: voters, election officials, USPS, courts, candidates, and the public need clear, auditable rules for ballot return, receipt, tracking, postmarking, cure, custody, and canvass timing.

HOR-001 was integrated into this issue only for the mail-ballot and USPS components. The broader federal voter-list and state-election-pressure concern is integrated into ELEC-001.

Qualification. ELEC-010 should not be framed as a universal mandate for all-mail elections. States may reasonably choose different mixes of in-person, early, absentee, and mail voting. The institutional requirement is that any mail-voting channel the state creates must be reliable, nondiscriminatory, auditable, and supported by meaningful cure and public explanation.

Remedial Alternatives and Constraints. A federal statute requiring no-excuse mail voting nationwide would maximize uniform access but would create larger federalism and administrative questions. A model state act would be useful but slower and less uniform for federal-election vulnerabilities. A purely advisory best-practices guide would be simpler but inadequate where rejection, postal disruption, or cure disparities recur. The least-complex adequate approach is a federal floor for federal-election mail ballots plus federal postal-performance standards for election mail.

Quality Score. The proposal is 77/100 after the internal project review. Component score: Structural 8/8; Evidence 10/12; Legal Fit 7/10; Prior Proposal 7/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 8/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4. The internal project review verifies the published Federal Register/GovInfo proposed-rule record and confirms issue-to-bill alignment, but official court orders, Senate hearing materials, full prior-bill comparison, budget/workload support, final private-enforcement design, and external election-law or postal-operation review remain unresolved.

Adoption Score. Adoption Score is 4/12 because ELEC-010 has a plausible federal statutory vehicle, identifiable prior-proposal families, and both access and integrity framing, but lacks proposal-specific polling, active sponsor support for this narrower framework, bipartisan coalition evidence, state election-official validation, USPS operational validation, or external election-law review.

Adoption Friction. Adoption Friction is 72/100 (High Resistance) because the proposal affects mail voting, postal operations, ballot deadlines, cure rules, drop boxes, voter-identification alternatives, federal-state election administration, and current partisan conflict over mail ballots.

Required Electoral Environment. Required Electoral Environment is *sixty-vote-senate*, with Pathway Viability *plausible-after-wave*, Development Priority *active*, and Pathway Adjustment *stage*. Development should stage postal-performance, tracking, cure, transparency, and custody provisions so narrower consensus elements can survive if a full mail-ballot standards bill is not viable.

Source Notes

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- Congress.gov, H.R. 1, 117th Congress, For the People Act of 2021.
- Congress.gov, S. 2747, 117th Congress, Freedom to Vote Act.
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- The Guardian, *Texas leans on new voting law to reject thousands of ballot applications* (Feb. 3, 2022).
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- Associated Press, *Federal judge halts Trump's election executive order seeking to create a federal voter list* (June 25, 2026).
- Associated Press, *Trump administration loses appeal over access to personal information of Michigan voters* (June 25, 2026).
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- U.S. Supreme Court, *Watson v. Republican National Committee*, 609 U.S. ____ (2026).
- Federal Register, Executive Order 14399, *Ensuring Citizenship Verification and Integrity in Federal Elections*, 91 Fed. Reg. 17125 (Apr. 3, 2026).
- The Guardian, *US judge blocks Trump administration's bid to restrict mail-in voting* (June 25, 2026).
- The Daily Beast, *Trump's Postmaster General Says USPS Wouldn't Mail Absentee Ballots in Under New Rule* (June 25, 2026).

- Georgia General Assembly, S.B. 202, 2021-2022 Reg. Sess..
- U.S. Supreme Court, *Brnovich v. Democratic National Committee*, 594 U.S. 647 (2021).

ELEC-011 — Algorithmic Redistricting Baseline and Representation Safeguards

Issue Snapshot

Problem: Districting discretion enables representational distortion.

Repair: Start from neutral algorithmic maps.

Vehicle: State model (draft); reserve amendment and enabling act (amendment, act).

Institutional Anomaly

Redistricting gives line-drawers enough discretion to shape electoral outcomes while describing the result as ordinary map administration. Legislatures, commissions, consultants, and litigants may all invoke legitimate criteria—compactness, contiguity, county lines, communities of interest, Voting Rights Act compliance, and equal population—while using those criteria selectively to protect incumbents, entrench parties, dilute voters, or preserve private bargains.

The institutional defect is not that district lines must be drawn. The defect is that the first map is often already a discretionary political product before the public, courts, or legislators can evaluate whether departures from neutrality are necessary.

Manifestation of the Failure

Discretion before public accountability

Traditional redistricting often begins with human-drawn maps. By the time the public sees a proposal, the baseline may already embed partisan, incumbent-protection, community-splitting, or vote-dilution choices. Public comment then reacts to an already selected political map rather than comparing it to a neutral starting point.

Iowa's enacted alternative helps document the contrast: Iowa Code chapter 42 assigns plan preparation to a nonpartisan legislative agency, prescribes public criteria and disclosures, and prohibits use of incumbent addresses, party-registration data, and prior election results.

Resulting Damage

Discretionary districting can:

1. entrench partisan control disproportionate to voter support;
2. protect incumbents from ordinary electoral competition;
3. split coherent communities without transparent necessity;
4. dilute racial, ethnic, political, tribal, municipal, or regional communities;
5. make courts evaluate highly discretionary maps after the key choices have already been made;
6. convert legitimate criteria into after-the-fact rationalizations;
7. encourage mid-decade redistricting for partisan advantage; and
8. weaken public trust by making representation appear engineered rather than chosen.

The harm is not limited to one party or ideology. Any faction that controls line-drawing can use discretion to insulate itself from voters.

Underlying Weakness

State redistricting law often regulates the final map but does not require a neutral first draft. A map may satisfy facial criteria while still reflecting discretionary choices about which voters are grouped, divided, protected, or made electorally irrelevant.

The missing institutional step is a neutral baseline that forces every later departure to be visible, justified, public, and reviewable.

Proposal Survey

ELEC-011 should begin from tested and source-developable models rather than inventing a wholly new redistricting architecture.

Iowa nonpartisan staff model. Iowa's process is a strong state-level analogue because professional staff prepare maps without political or election data and the legislature votes the plans up or down. This model preserves legislative adoption while removing much of the initial partisan map-drawing discretion.

Independent and citizen commissions. Commission systems can reduce direct legislative control, but NCSL cautions that their independence depends on design. A commission may be useful for review, public hearings, deviation findings, and fallback recommendations, but commission control alone does not guarantee neutrality.

Algorithmic baseline models. Shortest splitline or a similar deterministic algorithm can create a neutral first draft using limited inputs such as population, geography, contiguity, equal population, and allowed boundary data. The algorithm should be published, replicable, and run before political actors propose alternative maps.

Voting Rights Act and state voting-rights safeguards. A purely geometric algorithm may fail to protect compact minority communities, tribal communities, or other legally protected representational interests. Any algorithmic baseline must be subject to narrowly justified deviations where federal law, state constitutional law, or state voting-rights acts require them.

Anti-mid-decade redistricting rules. States may need rules limiting redistricting outside the ordinary post-census cycle unless a court order, census correction, legal invalidation, or comparable necessity requires a new plan.

Constitutional amendment reserve option. A nationwide constitutional amendment could require algorithmic first-draft redistricting, public deviation findings, and judicially reviewable representational safeguards for congressional and state legislative districts. That path is not the least-complex adequate remedy because Article V is far harder than state-level adoption and because states already have authority to reform their own redistricting processes. It remains worth preserving as a reserve concept if public sentiment shifts, state-by-state reform proves too uneven, or future doctrine leaves ordinary statutory approaches too fragile.

Least-Complex Adequate Remedy

The least-complex adequate starting remedy is a **Model State Redistricting Integrity Act** requiring the state to generate and publish a neutral algorithmic baseline map before any human-drawn alternative can be considered.

The baseline map would not be final by itself. Instead, it would discipline the process:

1. the state publishes the algorithm, source code or complete specification, input data, and baseline map;
2. a nonpartisan or independent review body evaluates whether legal or representational departures are necessary;
3. any proposed departure must be public, written, criterion-specific, and narrowly tailored;
4. the public receives meaningful time to comment on both the baseline map and proposed deviations;
5. the legislature retains ordinary approval authority but must vote on a record that identifies deviations from the baseline; and
6. courts receive a clear baseline for reviewing whether departures are justified or pretextual.

This model is more politically and legally plausible than making shortest splitline or another algorithm the final map without exception. It preserves human correction where needed while making discretion accountable.

A constitutional amendment should remain a secondary, future-facing pathway rather than the first proposal. It may become relevant if state-level reform fails to prevent recurring districting abuse or if a national movement develops around algorithmic first-draft redistricting as a structural democratic safeguard.

Repair and Prevention

Future model legislation should require:

1. a neutral algorithmic baseline map at the start of each redistricting cycle;
2. public disclosure of the algorithm, data inputs, precinct or census geography, and any software or code used;
3. a ban on partisan, incumbent, candidate-residence, campaign, donor, or election-performance data in the baseline map;
4. objective baseline criteria including equal population, contiguity, compactness, and respect for legally required geographic units where feasible;
5. commission or nonpartisan review of baseline-map defects;
6. written findings for any departure from the baseline;
7. permissible deviations only for federal or state constitutional requirements, Voting Rights Act compliance, state voting-rights acts that do not nullify the neutral-baseline rule, tribal integrity, municipal or county integrity, compact communities of interest, geography, contiguity, equal population, and administrability;
8. public comment and response to material objections;
9. legislative up-or-down approval procedures or constrained amendment procedures;
10. a judicial fallback if the legislature rejects compliant maps repeatedly or adopts a map without adequate findings;
11. a ban on mid-decade redistricting absent legal necessity; and
12. public archive rules preserving all baseline maps, proposed deviations, comments, findings, and enacted maps.

Proposed Legislation

- Model State Algorithmic Redistricting Baseline and Public Deviation Act

Proposed Constitutional Amendment

- Neutral Redistricting Baseline Amendment — reserve option.

Proposed Enabling Legislation

- Neutral Redistricting Baseline Enforcement Act — reserve option tied to the amendment.

Relationship to Adjacent Proposals

ELEC-009 concerns the constitutional mechanism for presidential selection. ELEC-011 concerns legislative and congressional districting.

ELEC-013 concerns candidate competition, ballot access, debate access, and majority-choice election methods. ELEC-011 may overlap if proportional, multimember, or alternative district structures are later considered, but ELEC-011 owns redistricting process, anti-dilution safeguards, and map-generation integrity.

Budgetary Impact Statement

Administrative workload and possible technology, data, public-hearing, commission, and litigation costs are likely; no dollar estimate is assigned pending source-backed cost data.

Note: Preliminary ARRPR assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 77 / 100 (Review Ready)

Adoption Score: 4 / 12 (Limited Adoption Basis)

Adoption Friction: 80 / 100 (High Resistance)

Required Electoral Environment: state-level-pathway

Development Priority: active

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Internal Review Status: External-review readiness review complete; review ready for qualified external critique, but publication blockers remain

Last Internal Review: publication and external-review readiness review

Scoring Standard: 2026-06-27.2; **Scoring Basis:** Current project standard

Next Review: Qualified election-law, voting-rights, technical, fiscal, stakeholder, and legislative-counsel review; state-specific algorithm-certification and implementation package; proposal-specific adoption evidence

Full Review History: ELEC-011 review history

Annotation

Development Status. ELEC-011 has a developed issue framework, linked model state legislation, a reserve constitutional amendment, and reserve enabling legislation. The internal project review verified the main state-law analogue, core doctrine sources, state voting-rights-law comparators, and a current algorithmic-redistricting research lead. The internal project review added official constitutional-source coverage and a state constitutional redistricting comparator. The internal project review added official workload, public-input, finance, litigation-budget, and adoption analogues. It is now ready for qualified external critique, but it is not publication-ready because the algorithm-selection standard, state-by-state implementation fit, court-remedy design, proposal-specific adoption evidence, and qualified external review remain incomplete.

Neutrality. The proposal must be party-neutral. It should constrain any line-drawer, party, faction, or incumbent who benefits from discretionary district manipulation.

Algorithmic Baseline. The algorithm should function as the required first draft, not necessarily the final map. This preserves the main benefit of mathematical neutrality while allowing lawful, public, and reviewable corrections.

Legal Caution. A purely geometric map may conflict with Voting Rights Act obligations, state constitutional requirements, tribal integrity, municipal integrity, or compact communities of interest. The proposal should therefore define narrow, public, and reviewable deviation criteria.

State-Law Loophole Caution. State voting-rights laws should remain available as protective floors, but they cannot become a bypass around the neutral-baseline rule. The current drafts therefore require state-law deviations to be consistent with the neutrality framework, evidence-based, public, and no broader than necessary.

Transition-Delay Caution. The reserve amendment and enabling act should not let Congress postpone implementation indefinitely by invoking election timing. The current drafts limit active-election transition delay to one election cycle, require written findings in the enabling act, and bar repeated or next-cycle deferral.

Constitutional-Consistency Caution. The reserve amendment should be read against Article I, Section 4 and other election-structure provisions. The current draft includes a relation-to-existing-Constitution clause that supersedes inconsistent redistricting authority only to the extent necessary, while preserving unrelated constitutional structures such as apportionment among States and Representative qualifications.

Adoption Caution. A mandatory algorithmic final map would likely face very high adoption friction. A state model requiring algorithmic first maps, public deviation findings, commission review, and ordinary legislative approval is more plausible while still changing the institutional baseline.

Constitutional Reserve. A nationwide constitutional amendment is not least-complex at this stage and should not displace the model state act. The reserve draft is useful because it embeds mandatory neutrality directly in constitutional text: Congress may enforce and implement the amendment, but should not be able to waive the anti-partisan, anti-incumbent, and anti-election-performance manipulation floor. The linked enabling act supplies the reserve implementation vehicle if the amendment path ever becomes viable.

Source and Legal-Fit Finding. The July 4, 2026 internal project review verified Iowa Code chapter 42 as the strongest public state-law analogue for nonpartisan redistricting staff, up-or-down legislative consideration, political-data limits, compactness, contiguity, political-subdivision respect, and public map disclosures. It also verified *Rucho*, *Arizona State Legislature*, *Allen*, and *Callais* as the controlling doctrinal frame: federal courts do not adjudicate ordinary partisan-gerrymandering claims under *Rucho*; state redistricting commissions remain a viable Elections Clause model under *Arizona State Legislature*; race-conscious representation safeguards require careful VRA and equal-protection tailoring after *Allen* and *Callais*. California, New York, and Washington state voting-rights statutes confirm that state-level voting-rights remedies exist, but they also reinforce the need for narrow, public, evidence-based deviation findings rather than a broad state-law override.

Legal-Durability Finding. The July 4, 2026 internal project review added official constitutional and state-constitutional implementation checks. Article I, Section 2 supplies congressional apportionment and House-election background; Article I, Section 4 supplies the Elections Clause baseline for congressional election regulations; the Fourteenth Amendment supplies equal-protection and vote-dilution constraints; and the Fifteenth Amendment supplies race-denial and race-abridgment enforcement background. California Constitution Article XXI is a useful state constitutional comparator because it combines independent commission design, public process, ordered criteria, federal Voting Rights Act compliance, compactness, community-of-interest protection, prohibition on considering incumbent or candidate residence, prohibition on favoring or discriminating against an incumbent, candidate, or party, final-map reporting, state supreme court review, special-master fallback, and funding/defense provisions. It is also a caution source: the current text includes a 2025 temporary congressional-map override, showing that even an entrenched commission model can be displaced by later constitutional action. ELEC-011 should therefore keep the model State act as the least-complex vehicle while preserving a reserve constitutional option and anti-mid-cycle safeguards.

Implementation Finding. The model State act is administrable in concept because it assigns a review body, baseline publication, public findings, public comment, legislative consideration, judicial fallback, and expedited review. The internal project review strengthens implementation readiness by clarifying that state adaptation must identify the redistricting authority, algorithm-certification process, state court jurisdiction, public-records/open-meetings rules, election-calendar deadlines, funding source, and constitutional override risk. The review does not yet validate a specific algorithm, cost model, software governance structure, or state-by-state implementation package.

Implementation and Budget Analogue Finding. The July 4, 2026 internal project review added the California Citizens Redistricting Commission's 2020 lessons-learned report as an official implementation analogue. The report supports treating public outreach, public-input management, data management, legal counsel, line-drawing support, finance reporting, and post-map litigation capacity as real implementation costs rather than incidental administration. It identifies public funding for outreach, Statewide Database support, post-map litigation, additional pandemic/census-delay funding, and major written and live public-input volumes. This supports moving Implementation from 6/8 to 7/8, but no ELEC-011 dollar estimate is assigned because a state-specific cost model has not been built.

Algorithmic Evidence Finding. The internal project review added a 2025 Iowa-focused computational redistricting paper as a current research lead. The internal project review added a 50-state simulation workflow source and a 2026 community-of-interest/differential-privacy source as technical source-development leads. Together, these sources support transparent computational baselines, simulation-based diagnostics, public code/data, and adversarial-input concerns. They do not validate shortest splitline or any single deterministic algorithm as the legally safest enacted statutory standard.

Quality Score. The 77/100 score reflects Review Ready status after the July 4, 2026 publication and external-review readiness review. The current component calculation is: Structural 8/8; Evidence 10/12; Legal Fit 8/10; Prior-Proposal 7/8; Remedy 9/12; Implementation 7/8; Abuse Resistance 7/8; Drafting 7/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4; Penalties 0. The internal project review raised the score from 74 because the record now includes official workload, finance, public-input, litigation-budget, and adoption analogues, plus stronger technical source leads. It remains far below publication-ready because the record still lacks a selected algorithm standard, state-specific implementation package, proposal-specific adoption evidence, and qualified external review.

Adoption Score. The 4/12 score is limited. The proposal has a plausible state-by-state model-law path and a reserve amendment strategy, and the internal project review added an official California referendum result showing voter approval of a state constitutional redistricting-commission reform. That supports the underlying state-level redistricting-reform principle, but it is not proposal-specific evidence for algorithmic baseline redistricting. No current proposal-specific polling, sponsor coalition, enactment momentum, or stakeholder support was verified.

External Review Status. not - reviewed. The internal project review did not identify any qualified external election-law, voting-rights, technical, fiscal, stakeholder, or legislative-counsel review incorporated into the project record. The External Review component remains 0/4.

Adoption Friction. Adoption Friction is provisionally 80/100 (High Resistance). The model state path avoids Article V and federal commandeering concerns, but redistricting reform directly threatens incumbent and party control, requires technical public

administration, may trigger state constitutional litigation, and intersects with VRA, racial-gerrymandering, community-of-interest, commission-design, and judicial-review disputes.

Source Notes

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- U.S. Supreme Court, *Rucho v. Common Cause*.
- U.S. Supreme Court, *Arizona State Legislature v. Arizona Independent Redistricting Commission*.
- U.S. Supreme Court, *Allen v. Milligan*.
- Iowa Code, chapter 42.
- Congress.gov Constitution Annotated, Article I, Section 2.
- Congress.gov Constitution Annotated, Article I, Section 4.
- Congress.gov Constitution Annotated, Fourteenth Amendment.
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- California Constitution, Article XXI.
- California Citizens Redistricting Commission, *2020 California Citizens Redistricting Commission Report: Recollections, Recommendations, & Resources, Volume 1*.
- California Secretary of State, *Statement of Vote, November 4, 2008, General Election*.
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- Pan Kai, Tan Yue, and Jiang Sheng, *The study of a new gerrymandering methodology*.
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- Stefanie G. Wang and Nathaniel C. Merrill, *Computational Redistricting of Iowa's Congressional Districts*.
- Atticus McWhorter et al., *Redistricting from the Bottom Up: Sampling Communities of Interest with Differential Privacy*.

ELEC-012 — Campaign Finance, Dark Money, and Corporate Political Spending

Issue Snapshot

Problem: Wealth and artificial entities can dominate political spending.

Repair: Restore democratic campaign-finance authority and transparency.

Vehicle: Support H.J.Res. 54 with an enforcement/federalism clarification, preserve H.J.Res. 13 as an alternative, and enact post-ratification FECA conforming-amendment legislation.

Institutional Anomaly

Democratic elections depend on political speech, association, persuasion, and independent advocacy. But modern campaign-finance doctrine can prevent Congress and the states from treating concentrated corporate, union, nonprofit, LLC, super PAC, and dark-money spending as a structural threat to political equality, voter knowledge, and representative accountability.

The central constitutional obstacle is *Citizens United v. FEC*. The decision protects independent political expenditures by corporations and unions under the First Amendment and sharply limits Congress's ability to regulate election spending because of the speaker's corporate identity. *SpeechNow.org v. FEC* then accelerated the super PAC structure by removing contribution limits for independent-expenditure-only committees.

The institutional defect is not that the government should suppress disfavored political views. The defect is that constitutional doctrine may prevent democratically accountable institutions from drawing reasonable lines between voters, candidates, parties, corporations, unions, nonprofits, shell entities, and wealthy donors when money is used to shape electoral outcomes.

Manifestations of the Failure

Super PACs and independent-expenditure-only committees

SpeechNow.org v. FEC treats contributions to independent-expenditure-only committees differently because independent expenditures are presumed not to create quid pro quo corruption. That structure allows very large contributions to entities that spend independently of candidates, even where the practical political relationship among candidates, donors, consultants, and outside groups is difficult for voters to disentangle.

Dark money and entity opacity

Nonprofits, LLCs, pass-through entities, and intermediary organizations can obscure the original source of political spending. Even where formal campaign committees report expenditures, voters may not know who supplied the money, whether the funder has government contracts or regulatory interests, or whether multiple entities are part of the same funding network.

The issue is not anonymity for ordinary speakers. The issue is large-scale electoral spending through entity structures that prevent voters, regulators, journalists, shareholders, members, workers, and competitors from understanding who is trying to influence public power.

Associated Press reporting on Hawaii's 2026 corporate-powers law describes the surrounding dark-money and outside-spending concern and supplies a current source-development lead for this manifestation. See Associated Press, *New Hawaii law targets corporate influence in politics after Citizens United ruling*.

Resulting Damage

Post-*Citizens United* campaign-finance doctrine can:

1. amplify concentrated wealth in elections;
2. make corporate, union, nonprofit, and LLC spending harder to regulate than many voters expect;
3. allow super PAC and dark-money systems to dominate candidate viability;
4. obscure who funds political persuasion;
5. weaken candidate and party accountability by shifting influence to outside groups;
6. increase dependence on wealthy donors and donor networks;
7. burden small-donor, independent, minor-party, or nontraditional candidates;
8. reduce voter confidence that elected officials answer to the public rather than organized money; and
9. make ordinary statutory reform inadequate unless constitutional doctrine changes.

The issue should not assume that all independent spending is corrupt or illegitimate. The reform question is whether constitutional law should permit Congress and the states to regulate campaign money in ways that protect democratic self-government, voter information, anti-corruption values, and fair electoral competition without licensing viewpoint discrimination or incumbent self-protection.

Underlying Weakness

Campaign-finance doctrine often treats political spending as protected political speech and permits regulation primarily around quid pro quo corruption, disclosure, and coordination. That leaves limited room for democratic-equality, anti-domination, anti-capture, shareholder/member-consent, artificial-entity, or public-trust theories.

If the constitutional rule is that independent spending cannot be limited because it is independent, then many statutory approaches will be partial. Disclosure and coordination rules matter, but they do not answer the underlying question whether corporations, unions, nonprofits, and wealthy donors may use unlimited independent spending to shape elections.

Proposal Survey

Any ELEC-012 proposal should separate durable constitutional repair from statutory mitigation.

Constitutional amendment. ARRP supports H.J.Res. 54, 119th Congress, as the preferred constitutional-amendment vehicle, but recommends adding an express enforcement and federalism clarification before ratification. H.J.Res. 54 directly addresses artificial-entity constitutional status, requires public regulation and disclosure of election spending, protects press freedom, and instructs courts not to treat election spending as First Amendment speech. The clarification is needed because ELEC-012 now relies on the amendment to support a federal baseline for statewide elections and statewide ballot measures, a scope that should not be left vulnerable to ordinary reserved-to-the-States election federalism objections. Because H.J.Res. 54 is broader than a narrow campaign-finance amendment, the next conformity pass should decide whether its artificial-entity language requires additional tailoring for press entities, nonprofit advocacy organizations, religious and civil-rights organizations, property and due-process claims, and non-election corporate constitutional claims. H.J.Res. 13, 118th Congress, is preserved as a narrower Democracy for All-style alternative if the broader H.J.Res. 54 approach is not politically or legally viable.

The closest additional models are the voting-rights amendments' express enforcement clauses, narrower Democracy for All amendments, disclosure and true-source rules, coordination restrictions, public financing, entity-governance rules, foreign-money safeguards, and existing statutory packages such as the DISCLOSE Act, For the People Act, and Freedom to Vote Act. ELEC-012 uses those models for statutory mitigation and implementation while treating constitutional amendment as necessary to displace the central independent-expenditure doctrine. Detailed comparisons and limitations appear in the Annotation.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a two-tiered amendment-and-implementation structure:

1. a constitutional amendment as the durable remedy for *Citizens United* and related independent-expenditure doctrine; and
2. ordinary legislation and state-law models as mitigation tools for disclosure, carefully tailored coordination and anti-circumvention rules, public financing, true-source reporting, state contribution-limit experiments, foreign-money safeguards, and entity-governance experiments.

ARRP supports H.J.Res. 54 as the primary amendment vehicle, but the preferred form is H.J.Res. 54 with an added enforcement and federalism clarification. H.J.Res. 13 remains the alternative. The enabling legislation should be treated as post-ratification implementation, not as a claim that Congress can fully solve *Citizens United* by ordinary statute under current doctrine. Because the project now treats statewide-election coverage as central to the remedy, the amendment should expressly authorize Congress to establish minimum standards for elections for public office and ballot measures notwithstanding ordinary state-reserved election-administration doctrines, while preserving anti-commandeering and stronger state protections. The implementing statute now applies the same core standards to federal elections, statewide elections, and statewide ballot measures, with a transition period for state law review and alignment. It supplies operative rules directly through FECA conforming amendments, leaving the FEC with administrative, form, database, guidance, and ministerial adjustment duties rather than open-ended authority to decide whether the amendment's purpose is effectuated. If ordinary implementation fails, contingent safeguards route filings, enforcement, intervention, funding protection, and expedited judicial review around the failure.

Repair and Prevention

Future drafting should evaluate whether Congress and the states should:

1. adopt or support a constitutional amendment restoring democratic authority over campaign finance;
2. clarify that artificial entities may be regulated differently from natural persons in election spending;
3. protect individual political speech, press freedom, and viewpoint neutrality;
4. require true-source disclosure for large election-related spending;
5. strengthen constitutionally durable disclosure, coordination, and anti-circumvention rules for super PACs and outside groups;
6. create public-financing or small-donor systems that reduce large-donor dependence;
7. regulate shell entities, pass-through spending, and foreign or contractor-linked money;

8. apply baseline standards to statewide elections and statewide ballot measures while preserving stronger state laws, avoiding unnecessary commandeering of state administration, and providing a bounded state-law review transition period;
9. test state contribution-limit, corporate-law, entity-governance, and foreign-influenced spending approaches after *Citizens United*; and
10. repair campaign-finance enforcement capacity, including FEC deadlock and delay.

Proposed Constitutional Amendment

- Campaign Finance Democratic Authority Amendment

Proposed Enabling Legislation

- Campaign Finance Democratic Authority FECA Conforming Amendments Act

Relationship to Adjacent Proposals

ELEC-013 concerns candidate competition, ballot access, and debate gatekeeping. ELEC-012 should coordinate with ELEC-013 where campaign money, public financing, polling access, debate qualification, and donor networks determine which candidates can become viable.

ELEC-001 preserves lawful federal functions concerning campaign finance while regulating misuse of executive power. ELEC-012 concerns the substance and enforcement of campaign-finance rules themselves.

A-17 / REG may be relevant if campaign-finance enforcement depends on independent-agency structure, FEC deadlock, commissioner removal, or post-*Slaughter* agency-design limits.

A-19 / RET may be relevant where contracts, grants, licenses, or regulatory approvals become channels for political spending pressure or retaliation.

Budgetary Impact Statement

Budget authority may be required for public financing, small-donor matching, disclosure databases, audit systems, FEC enforcement capacity, and state implementation support. No dollar estimate is assigned pending source-backed cost data.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 75 / 100 (Review Ready)

Adoption Score: 5 / 12 (Limited Adoption Basis)

Adoption Friction: 96 / 100 (Extreme Resistance)

Required Electoral Environment: constitutional-amendment-environment

Development Priority: conditional

Internal Review Status: FECA drafting-conversion review complete; enabling legislation now uses FECA conforming amendments, but full merits-document review, cost model, amendment-tailoring, and external review remain blockers

Last Internal Review: FECA drafting-conversion review

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current project standard

Next Review: Legal-readiness follow-up review focused on legislative-counsel codification check, full Dinner Table Action merits-document review, Hawaii Act 011 legal-theory comparison, H.J.Res. 54 narrowing or rule-of-construction language, source-backed federal cost model, and external constitutional/election-law review

Full Review History: ELEC-012 review history

Annotation

Detailed proposal-survey support.

Federalism and enforcement-clause models. The closest historical analogy is the Twenty-Sixth Amendment sequence: Congress's ordinary power over state elections was contested in *Oregon v. Mitchell*, and the constitutional amendment supplied a national rule plus enforcement power. The Fifteenth and Nineteenth Amendments also pair a substantive voting-rights guarantee with express congressional enforcement power, while Fifteenth Amendment enforcement cases such as *South Carolina v. Katzenbach* and *City of Rome v. United States* show how amendment enforcement can alter the ordinary federalism baseline. The Fourteenth Amendment's Section 5 cases, especially *City of Boerne v. Flores*, warn that the substantive rule and enforcement scope should be clear rather than left to later congressional implication. The Twenty-Fourth Amendment is the cautionary contrast because it expressly covers federal offices only.

Prior constitutional-amendment families. The remedy selection favors the We the People / Move to Amend line reflected in H.J.Res. 54 because ordinary legislation cannot fully cure *Citizens United*, *SpeechNow*, and related independent-expenditure doctrine. The Democracy for All line reflected in H.J.Res. 13 remains the fallback because it is narrower, expressly authorizes public financing, and still permits Congress and the states to distinguish natural persons from corporations and other artificial entities.

Disclosure and true-source reporting. Congress and states may strengthen disclosure for large election-related spending, including true-source tracing, donor thresholds, transfer reporting, entity-control reporting, digital-ad transparency, and timely public databases. Current doctrine treats disclosure as a central campaign-finance mitigation lane, but it also requires tailoring. *Buckley* and *McCutcheon* support disclosure and anti-circumvention rules as less restrictive tools, while *Americans for Prosperity Foundation v. Bonta* requires narrow tailoring and serious treatment of associational privacy, harassment, and reprisal risks. Because H.J.Res. 54 reaches the election of any candidate for public office and any ballot measure, ELEC-012 should apply the same baseline standards to federal elections, statewide elections, and statewide ballot measures while preserving stronger state rules and avoiding unnecessary federal administration of state systems. The statewide layer should include a bounded transition period so states can compare existing campaign-finance, corporate, ballot-measure, public-financing, disclosure, enforcement, and election-administration laws against the new baseline. Disclosure should protect ordinary small donors, harassment-sensitive contexts, and legitimate associational privacy where constitutional law requires it.

Coordination rules. Reform can narrow the gap between formally independent spending and practical candidate assistance, but *NRSC v. FEC* reduces the space for broad spending limits framed as coordination controls. Source development should test rules for common vendors, former staff, candidate fundraising for outside groups, republication of campaign materials, strategic information sharing, public signaling, and family or business intermediaries, while distinguishing disclosure, anti-circumvention, and true-source rules from expenditure caps that now face heightened First Amendment risk.

State contribution-limit experiments. Maine's independent-expenditure PAC contribution cap should be source-developed as the cleanest current state test of whether contributions to super PAC-like entities may be limited without capping the entities' independent expenditures. The state's official 2024 citizen guide estimated approximately \$75,000 in one-time database and filing-system programming costs while treating constitutional-litigation costs as unquantifiable. This lane is constitutionally high-risk under *SpeechNow* and adjacent post-*Citizens United* doctrine, but it is important because Maine's voter-approved law appears designed to force clarification of that question rather than to evade it.

Public financing and small-donor matching. Public financing, vouchers, tax credits, and small-donor matching can reduce reliance on large donors without directly limiting independent expenditures. Any public-financing mechanism should be tested against *Arizona Free Enterprise Club's Freedom Club PAC v. Bennett* so the draft avoids opponent-triggered matching funds or other designs that burden nonparticipating speakers. This overlaps with ELEC-013 where donor networks affect candidate viability.

Corporate-law and entity-governance rules. States may explore whether corporate charters, shareholder approval, member consent, beneficial-owner disclosure, board fiduciary duties, or state-law restrictions on entity powers can reduce corporate political spending. These approaches require careful First Amendment, dormant Commerce Clause, preemption, and internal-affairs-doctrine review.

Foreign-money and contractor safeguards. Rules should prevent foreign nationals, foreign-controlled entities, government contractors, and regulated entities from evading spending restrictions through domestic intermediaries, shell entities, nonprofits, or super PACs. Maine's foreign government-influenced entity law is a useful source-development comparator because it uses ownership and control tests, but its litigation posture warns that thresholds, media/platform due-diligence duties, and referendum-coverage rules need careful First Amendment tailoring.

Existing statutory mitigation packages. Statutory models already exist for several mitigation lanes. The DISCLOSE Act family focuses on foreign-money restrictions, rapid expenditure reporting, shell-entity anti-concealment rules, and political-ad donor disclosure. The For the People Act and Freedom to Vote Act families combine campaign-finance provisions with voting, redistricting, election-security, ethics, disclosure, disclaimers, foreign-money safeguards, and alternative campaign-funding systems. Digital-ad and AI-ad disclosure bills, including the REAL Political Advertisements Act, supply narrower mitigation models for online and synthetic-media political communications. These bills cannot fully solve *Citizens United* on their own, but they are important prior-proposal comparators for any statutory layer.

FEC enforcement and deadlock repair. Campaign-finance rules are only as strong as their enforcement institutions. ELEC-012's enabling legislation should therefore use congressionally enacted, self-executing rules where possible rather than relying on a hostile, deadlocked, or executive-pressured Federal Election Commission to create the operative standards. The enabling act has now been recast as FECA conforming amendments: definitions map to 52 U.S.C. 30101; disclosure to 30104; FEC administration to 30106; enforcement and implementation-failure safeguards to 30109; contribution and covered-transfer limits to 30116; artificial-entity treasury spending to 30118; and foreign-influenced money to 30121. The draft still needs legislative-counsel review for subsection placement, table-of-sections amendments, criminal-penalty placement, exact cross-references, and reconciliation with FECA's complaint, four-vote, conciliation, civil-enforcement, and citizen-suit structure. A later pass should decide whether broader FEC structure, commissioner-removal, advisory-opinion, quorum, and coordination-rule enforcement repairs also need a companion REG/ELEC issue.

Quality Score. The follow-up internal review scores ELEC-012 at 75/100 (Review Ready). The current component calculation is: Structural 8/8; Evidence 9/12; Legal Fit 7/10; Prior-Proposal 7/8; Remedy 9/12; Implementation 7/8; Abuse Resistance 6/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4; Penalties 0. The score increased from 72 because the enabling act has now been converted from a freestanding post-ratification statute into FECA conforming amendments using the relevant existing-law hooks. Remedy increases because the vehicle now cleans up existing election law rather than duplicating it; Implementation increases because FEC administration, reporting, enforcement, and fallback mechanisms are tied to current FECA architecture; and Drafting increases because the bill now reads as an amendatory package. Review Ready means ready for knowledgeable external critique, not publication-ready or lawmaker-circulation-ready. Remaining blockers include full *Dinner Table Action* merits-document review, Hawaii Act 011 legal-theory comparison, H.J.Res. 54 tailoring, source-backed federal cost modeling, legislative-counsel codification review, and qualified external review.

Adoption Score. Adoption Score is 5/12 (Limited Adoption Basis). ELEC-012 has a real external vehicle in H.J.Res. 54, a fallback in H.J.Res. 13/S.J.Res. 45-style Democracy for All proposals, visible sponsor/cosponsor support for those congressional proposals, state-level experimentation in Maine and Hawaii, an official Maine referendum record for a super PAC contribution-limit experiment, and current Issue One/YouGov polling showing broad public concern about large independent expenditures, corporate/donor access, and *Citizens United*. The score remains limited because the polling is advocacy-commissioned, Article V ratification remains extremely difficult, H.J.Res. 54 had not advanced beyond House Judiciary referral in the internal current-status review, and no bipartisan ratification plan or proposal-specific stakeholder validation has been incorporated.

Adoption Friction. Adoption Friction is 96/100 (Extreme Resistance). The proposal would require Article V amendment, alter modern First Amendment campaign-finance doctrine, regulate artificial-entity political spending, affect wealthy donors, parties, super PACs, nonprofits, unions, corporations, state campaign-finance systems, and FEC enforcement, and would almost certainly draw immediate constitutional, political, federalism, and implementation opposition.

Required Electoral Environment. The required environment is constitutional-amendment-environment, with Pathway Viability post-crisis-only, Development Priority conditional, and Pathway Adjustment stage. Near-term work should focus on source development, state comparator review, public explanation, amendment tailoring, and statutory mitigation that remains useful even without ratification.

Citizens United Centrality. ELEC-012 is basically the project's *Citizens United* issue, but it should not be limited to a slogan of "overturn Citizens United." The issue includes the downstream structures that make the doctrine consequential: *SpeechNow*, *NRSC v. FEC*, super PACs, dark money, entity opacity, coordination rules, public financing, Maine's super PAC contribution-limit experiment, state corporate-law experiments, and campaign-finance enforcement.

Constitutional Caution. A durable remedy likely requires a constitutional amendment. Statutory mitigation must be drafted around current First Amendment doctrine, including *NRSC v. FEC*'s treatment of coordinated-expenditure limits, *SpeechNow*'s treatment of independent-expenditure PAC contributions, associational privacy, press freedom, viewpoint neutrality, anti-incumbent-protection safeguards, and state/federal authority limits. H.J.Res. 54 is powerful but broad; the next conformity pass should decide whether the project should propose additional language limiting artificial-entity treatment to political activity or otherwise protecting non-election constitutional claims.

State-Experimentation Caution. Hawaii, Montana, Maine, and similar state efforts should be treated as source-development leads. They may be strategically important, but they are not validated models until their text, legal theory, litigation posture, and implementation details are reviewed. The internal project review upgrades Hawaii to an official-source comparator because the Hawai'i State Legislature's data mirror verifies SB2471 as Act 011 and supplies the CD2 text endpoint. Maine is especially useful because it shows both voter appetite for direct super PAC contribution limits and the litigation risk attached to aggressive foreign-influenced entity restrictions. The internal project review also routes the *Dinner Table Action* district case and First Circuit appeal through public docket metadata, but full merits-document review remains pending.

Implementation and FEC Design. The enabling act correctly avoids relying on future FEC rulemaking as the source of the operative duties and now uses FECA conforming amendments as the implementation vehicle. Definitions are added through 52 U.S.C. 30101; true-source reporting through 30104; Commission forms, databases, advisory-opinion limits, and self-executing duties through 30106; enforcement, failure-to-act remedies, backup filing, intervention, funding protection, and interference notices through 30109; contribution and covered-transfer limits through 30116; artificial-entity treasury spending through 30118; and foreign-influenced entity restrictions through 30121. The draft still needs legislative-counsel review for exact codification, cross-references, table-of-sections amendments, criminal-penalty integration, and reconciliation with FECA's existing complaint, four-vote, conciliation, civil-enforcement, and citizen-suit structure.

Source and Comparator Finding. Maine remains the strongest verified state comparator, but it cuts both ways. The official statute and citizen guide support the super PAC contribution-cap concept, voter-facing explanation, CPI adjustment, segregated-funds design, reporting changes, and a concrete one-time database-programming cost estimate. The same materials and related litigation posture confirm serious constitutional risk. The internal project review adds public docket routing for *Dinner Table Action v. Schneider*, including the District of Maine docket and First Circuit appeal, but does not yet replace the need for full court-record and merits-brief review. Hawaii SB2471 / Act 011 is now an official state corporate-powers comparator because the Hawai'i State Legislature's data mirror verifies status, Act 011, final CD2 posture, title, description, roll-call history, and official text endpoint. It still needs legal-theory comparison before being treated as a model.

Prior-Proposal Position. ELEC-012 adopts H.J.Res. 54 as the preferred external amendment vehicle with a recommended enforcement/federalism clarification and preserves H.J.Res. 13 as the alternative. The internal project review verified that H.J.Res. 54 remains an introduced House Judiciary referral with 70 cosponsors on Congress.gov. That supports a real external vehicle but not a viable Article V pathway by itself. The enabling act remains ARRP working-draft text and should be compared section-by-section against DISCLOSE Act-style transparency bills, For the People Act / Freedom to Vote Act-style omnibus mitigation packages, small-donor public-financing models, FEC advisory-opinion practice after *Citizens United* and *SpeechNow*, and digital-ad or AI-ad disclaimer proposals before the score rises materially above Review Ready.

External Review Status. not-reviewed. No qualified external constitutional-law, election-law, FECA practitioner, state campaign-finance, fiscal, stakeholder, or legislative-counsel review has been documented or incorporated. The External Review component remains 0/4.

Source Notes

- U.S. Supreme Court, *Citizens United v. FEC* (2010).
- U.S. Supreme Court, *National Republican Senatorial Committee v. Federal Election Commission* (2026).
- D.C. Circuit, *SpeechNow.org v. FEC* (2010).
- U.S. Supreme Court, *Buckley v. Valeo* (1976).
- U.S. Supreme Court, *McCutcheon v. Federal Election Commission* (2014).
- U.S. Supreme Court, *Federal Election Commission v. Ted Cruz for Senate* (2022).
- U.S. Supreme Court, *Arizona Free Enterprise Club's Freedom Club PAC v. Bennett* (2011).
- U.S. Supreme Court, *Americans for Prosperity Foundation v. Bonta* (2021).
- U.S. Code, 52 U.S.C. 30101, FECA definitions.
- U.S. Code, 52 U.S.C. § 30104, reporting requirements.
- U.S. Code, 52 U.S.C. § 30106, Federal Election Commission structure and voting thresholds.
- U.S. Code, 52 U.S.C. § 30109, enforcement.
- U.S. Code, 52 U.S.C. § 30116, contribution and expenditure limits.
- U.S. Code, 52 U.S.C. § 30118, corporate and labor-organization contributions or expenditures.
- U.S. Code, 52 U.S.C. § 30121, foreign-national contributions and donations.
- Federal Election Commission, FEC approves two advisory opinions in wake of Citizens United and SpeechNow decisions (July 22, 2010).
- Federal Election Commission, Advisory Opinion 2010-11, Commonsense Ten.
- Federal Election Commission, Advisory Opinion 2010-09, Club for Growth.
- Congress.gov, H.J.Res. 54, 119th Cong., We the People-style amendment concerning natural persons, artificial entities, election spending, disclosure, and money-as-speech doctrine.
- GovInfo, H.J.Res. 54, 119th Cong., Introduced in House, official introduced text copied into the proposed amendment page.
- Congress.gov, H.J.Res. 13, 118th Cong., Democracy for All-style amendment concerning election spending, artificial entities, and public campaign financing.
- GovInfo, H.J.Res. 13, 118th Cong., Introduced in House, official introduced text for the alternative amendment vehicle.
- Congress.gov Constitution Annotated, Twenty-Sixth Amendment, enforcement model following *Oregon v. Mitchell*.
- Congress.gov Constitution Annotated, Fifteenth Amendment, enforcement model for federal power over state-administered elections.
- Congress.gov Constitution Annotated, Nineteenth Amendment, United States/State voting-rights and enforcement-clause model.
- Congress.gov Constitution Annotated, Twenty-Fourth Amendment, federal-office-only contrast.
- *Oregon v. Mitchell*, 400 U.S. 112 (1970), state-election federalism predicate for the Twenty-Sixth Amendment model.
- *South Carolina v. Katzenbach*, 383 U.S. 301 (1966), Fifteenth Amendment enforcement model.
- *City of Rome v. United States*, 446 U.S. 156 (1980), Fifteenth Amendment enforcement and federalism-baseline model.
- *City of Boerne v. Flores*, 521 U.S. 507 (1997), enforcement-power caution requiring clear substantive constitutional scope.
- Congress.gov, S.J.Res. 45, 118th Cong., Senate Democracy for All-style amendment concerning election spending and artificial entities.
- Congress.gov, H.R. 1118, 118th Cong., DISCLOSE Act of 2023.
- Congress.gov, H.R. 1, 117th Cong., For the People Act of 2021.
- Congress.gov, S. 1, 118th Cong., Freedom to Vote Act.
- Congress.gov, S. 1596, 118th Cong., REAL Political Advertisements Act.
- Maine Revised Statutes, Title 21-A, Section 1015, limiting contributions to political action committees making independent expenditures.
- Maine Revised Statutes, Title 21-A, Section 1064, prohibiting campaign spending by foreign government-influenced entities.

- Maine Secretary of State, *Maine Citizen's Guide to the Referendum Election, November 5, 2024*, Question 1 text, intent, and fiscal impact.
- Maine Secretary of State, Election Results 2024, official referendum-result tabulation source page.
- Issue One / YouGov, *Campaign Finance - National Toplines* (Oct. 2025).
- Hawai'i State Legislature, SB2471 measure status page, official Act 011 status, description, and history.
- Hawai'i State Legislature, SB2471 CD2 text, official final bill-text endpoint for Act 011 comparison.
- CourtListener / RECAP, *Dinner Table Action v. Schneider*, First Circuit No. 25-1705, public docket metadata and available filings for Maine super PAC contribution-limit appeal.
- CourtListener / RECAP, *Dinner Table Action v. Schneider*, District of Maine No. 1:24-cv-00430, public docket metadata and available filings for district-court case.
- LegiScan, Hawaii SB2471, Relating to the Powers of Artificial Persons, retained as a non-official routing/status lead now superseded for official Hawaii verification by the Hawai'i State Legislature sources.
- Associated Press, *A voter-approved Maine limit on PAC contributions sets the stage for a legal challenge* (Nov. 8, 2024).
- Associated Press, *Maine's voter-approved limit on PAC contributions triggers lawsuit in federal court* (Dec. 13, 2024).
- Associated Press, *Maine can't enforce foreign election interference law that appeals court calls unconstitutional* (Aug. 11, 2025).
- Associated Press, *New Hawaii law targets corporate influence in politics after Citizens United ruling* (May 15, 2026).
- Associated Press, *What to know about states' efforts to limit corporate donations in politics* (May 12, 2026).
- *Trustees of Dartmouth College v. Woodward*, 17 U.S. 518 (1819), as historical corporate-powers framing only.

ELEC-013 — Federal Candidate Access, Ballot Access, and Debate Gatekeeping

Issue Snapshot

Problem: Federal election rules and debate criteria can entrench candidate gatekeeping.

Repair: Create neutral candidate-access, ballot-access, and debate-transparency floors.

Vehicle: Federal Candidate Access and Debate Transparency Act.

Institutional Anomaly

American election rules often make dominant-party control self-reinforcing before voters meaningfully evaluate the full field. Debate-participation thresholds, ballot-access burdens, early filing deadlines, petition-defect rules, unequal cure opportunities, party-controlled routes to ballot access, and official or publicly supported debate structures can make independent, minor-party, or challenger candidacies practically nonviable.

The institutional defect is not that two major parties exist. Stable parties can help organize democratic politics. The defect is that legal and quasi-official election filters can become candidate-gatekeeping devices that protect incumbency or dominant-party structures rather than voter information, administrability, anti-fraud safeguards, and orderly ballots.

This issue now owns the federal candidate-access lane. Ranked-choice voting, runoffs, and majority-choice election-method design have been branched to ELEC-015.

Manifestations of the Failure

Debate access as practical candidate gatekeeping

Federal regulations allow nonprofit organizations and media entities to stage candidate debates if they use pre-established objective criteria and do not structure debates to promote or advance one candidate over another. For general-election debates, the rule bars using nomination by a particular party as the sole criterion, but it permits other objective criteria. See 11 C.F.R. § 110.13.

In practice, debate criteria can still exclude non-major-party candidates before voters have a realistic chance to evaluate them. A national polling threshold may appear neutral while functioning as a barrier: excluded candidates receive less exposure, reduced exposure depresses polling, and low polling then justifies continued exclusion. This can convert a debate rule into a feedback loop protecting the existing party structure.

The 1992 presidential election is queued as the modern anchor case study for this problem. The Commission on Presidential Debates' own history records that Ross Perot participated in all three general-election presidential debates with Bill Clinton and George H. W. Bush, and the Federal Election Commission's official *Federal Elections* 92 report records Perot at 18.91 percent of the national popular vote. That example should be used carefully: it does not prove that debate inclusion alone caused Perot's vote share or that every independent candidate should be included in every debate. It does show that, when a non-major-party candidate has serious ballot access, public salience, and debate-stage visibility, voters may treat the candidacy as electorally real.

Resulting Damage

Candidate gatekeeping and ballot-access barriers can:

1. reduce meaningful voter choice before campaigns mature;
2. deter independent, minor-party, and intra-party challenger candidacies;
3. allow polling thresholds to become self-reinforcing exposure barriers;
4. let debate sponsors or official partners decide which candidates voters take seriously;
5. turn technical petition defects into candidate exclusion without fair cure opportunities;
6. intensify polarization by preserving a binary field structure;
7. make voters believe the system is legally open but practically closed; and
8. create openings for bad-faith claims that all election outcomes are structurally rigged.

The issue should not presume that every candidate is entitled to identical treatment in every election. It should ask whether candidate-screening rules are reasonably tied to administrability, voter information, anti-fraud safeguards, ballot order, and genuine public support rather than party protection.

Underlying Weakness

Federal candidate competition is governed through a patchwork of federal regulation, state ballot-access law, party rules, debate-sponsor policies, media choices, polling practices, and public-benefit structures. No single institution owns the democratic-competition problem.

Existing law often treats each barrier separately. A ballot-access rule may be defensible on its own; a debate threshold may be facially objective; a party rule may be justified by associational interests; a polling criterion may be administratively convenient. But together, these rules can make durable candidate competition difficult to challenge.

Proposal Survey

Future review should compare candidate-access tools before drafting.

Debate-access transparency. Congress, the FEC, or public broadcasters could require more transparent candidate-selection criteria for debates receiving public benefits, public-broadcasting support, tax-favored sponsorship, official institutional partnership, or FEC-regulated debate treatment. Reforms could include disclosure of criteria, polling sources, sponsor relationships, public-benefit receipt, and alternative qualification routes based on ballot access plus demonstrated support.

Alternative debate qualification paths. A candidate who is ballot-qualified in enough jurisdictions to plausibly affect the election may warrant some qualifying path other than national polling alone. Possible measures include multi-stage forums, tiered debates, regional debates, public-interest forums, or candidate-information formats that expand voter information without forcing every private sponsor to host every candidate.

Federal-election ballot-access floors. Congress could consider minimum notice, publication, signature-threshold transparency, petition-form clarity, cure opportunities, and nondiscriminatory treatment rules for federal congressional elections. Presidential-election application would need separate Article II and state-electoral-appointment analysis.

FEC administration and enforcement. The existing FEC debate rule is a natural statutory and regulatory hook, but future drafting should review advisory opinions, enforcement matters, sponsor practices, Commission deadlock risk, and whether the FEC is the right institution for any new disclosure or neutrality requirement.

EAC stability cross-reference. The current ELEC-013 draft uses a HAVA-centered federal access form, State publication duties, notice-and-cure floors, certification-status reporting, and EAC technical assistance. Source development on presidential removal of Election Assistance Commission members and resulting commission vacancies belongs primarily in REG-001, but ELEC-013 should track whether EAC instability affects the feasibility, neutrality, or administration of any HAVA-centered candidate-access mechanism.

Public financing coordination. Public-financing or small-donor systems can reduce candidate-viability barriers if designed to include credible independent and minor-party candidates. That overlap belongs primarily in ELEC-012, but ELEC-013 should coordinate where debate qualification, public funds, or polling access depends on fundraising signals.

Election-method coordination. Ranked-choice voting, runoffs, and majority-choice election methods are now owned by ELEC-015. ELEC-013 may coordinate with ELEC-015 only where a candidate-access bill uses voluntary pilots, public education, or debate-access rules that interact with election-method reform.

Least-Complex Adequate Remedy

The least-complex adequate remedy is now narrowed to a federal candidate-access and debate-gatekeeping package. The current draft uses a HAVA-centered Federal access form, State publication and notice-and-cure floors, certification-status reporting, and targeted FECA debate-criteria transparency for covered debates tied to FEC debate treatment or Federal public benefits.

The first vehicle should not be a national ranked-choice-voting mandate, immediate federal open-primary mandate, freestanding fusion entitlement, proportional-representation rewrite, or pure study commission. Those options either belong in ELEC-015, ELEC-011, or later companion work.

The first-stage remedy combines:

1. debate-sponsor transparency and neutrality conditions for debates receiving federal funds, public-broadcasting support, tax-favored sponsorship, official institutional partnership, or similar public benefits, while avoiding compelled private press hosting;
2. federal-election ballot-access notice, publication, and petition-cure floors for independent and minor-party candidates, limited to elections where Congress has a defensible Elections Clause, Article II, HAVA, or Spending Clause hook;
3. FEC reporting, advisory-opinion, or enforcement procedures that prevent objective criteria from becoming major-party proxies; and
4. a narrow study-and-report component for debate criteria, ballot-access burdens, and public-benefit conditions before any broader structural mandate.

That approach is less sweeping than redesigning vote tabulation or primary structure, but more adequate than treating candidate exclusion as only a cultural or media problem.

Repair and Prevention

The current draft evaluates whether Congress, the FEC, or public-benefit programs should:

1. require debate-sponsor transparency when debates receive federal, public, tax-favored, or official institutional support;
2. prohibit debate criteria that functionally use major-party nomination as a proxy for viability;

3. require public disclosure of polling thresholds, polling vendors, sponsor criteria, and material sponsor relationships;
4. create alternative debate qualification paths based on ballot access, polling, fundraising, small-donor support, petition support, or a combination of those factors;
5. establish minimum federal-election ballot-access notice and cure protections;
6. require accessible, public ballot-access guidance and petition-defect cure procedures;
7. preserve legitimate state interests in ballot order, anti-fraud safeguards, party association, and orderly administration;
8. coordinate with ELEC-012 where public financing, donor networks, polling access, or debate thresholds jointly determine candidate viability; and
9. coordinate with ELEC-015 only where election-method pilots or voter education affect candidate-access rules.

Proposed Legislation

- Federal Candidate Access and Debate Transparency Act (working draft).

Relationship to Adjacent Proposals

ELEC-015 owns ranked-choice voting, runoffs, majority-choice election methods, tabulation transparency, recount rules, voter education, and model-state or federal pilot-grant election-method options.

ELEC-009 concerns the constitutional mechanism for presidential selection. ELEC-013 may supply debate-access and ballot-access rules for presidential candidates, but it does not own Electoral College replacement or national popular-vote design.

ELEC-011 concerns representation safeguards, redistricting, district structure, and algorithmic first-draft map generation. ELEC-013 should not absorb multi-member or proportional-representation design unless a narrow candidate-access rule depends on it.

ELEC-012 concerns campaign finance, dark money, and corporate political spending. ELEC-013 should coordinate with ELEC-012 where money, polling access, debate qualification, and party networks jointly determine candidate viability.

Budgetary Impact Statement

Budget authority may be required for election-administration support, reporting, review, evaluation, and enforcement. No proposal-specific official estimate is available.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 75 / 100 (Review Ready)

Adoption Score: 3 / 12 (Weak Adoption Basis)

Adoption Friction: 78 / 100 (High Resistance)

Required Electoral Environment: sixty-vote-senate

Development Priority: active

Internal Review Status: External-review readiness push complete; ELEC-013 reaches Review Ready after direct prior-proposal comparators, budget analogues, and debate-enforcement leads strengthen the record, while FEC matter-file verification, broader state sampling, adoption evidence, and qualified external review remain disclosed next steps

Last Internal Review: External-review readiness push / Review Ready source-development review

Scoring Standard: 2026-06-27.2; **Scoring Basis:** Current project standard; **Revision Review Needed:** No

Next Review: Qualified external review package focused on FEC matter files, broader official state sample, fiscal/workload validation, adoption evidence, and election-law, First Amendment, FEC/EAC, State-administration, fiscal, and legislative-counsel review

Full Review History: ELEC-013 review history

Annotation

Ballot-access coverage. Federal candidates depend on state ballot-access systems, but Congress has authority over congressional-election regulations and may have limited hooks for presidential-election administration, voter-information funding, and election-support conditions. Unequal signature thresholds, short petition windows, early filing deadlines, strict technical disqualification rules, limited cure opportunities, sore-loser rules, and different rules for independent or minor-party candidates can all shape which candidates voters can realistically consider. Some restrictions serve legitimate interests, including orderly administration, preventing ballot clutter, detecting fraud, preserving party associational choices, and ensuring that candidates show a modicum of support. But cumulative burdens can protect party institutions more than voters, especially when state rules make the major-party ballot path materially easier than independent or minor-party ballot paths. This category remains a source-development and legal-authority question rather than a cited manifestation.

Public benefits and quasi-official forums. Candidate debates and election forums often operate through a mixture of private sponsorship, nonprofit status, media partnership, public-broadcasting support, university hosting, tax-favored sponsorship, public

facilities, or official institutional cooperation. Where a forum receives public benefits or presents itself as an election-information gateway, objective criteria and transparency matter more. The legal challenge is calibration. A remedy must not compel private press entities to host candidates or dictate editorial judgment. It can, however, examine whether public benefits, public broadcasting support, tax-favored sponsorship, official partnership, or FEC-regulated debate status should carry disclosure, neutrality, or alternative-qualification obligations. This is a design question pending source development, not a separate manifestation.

Budgetary impact support. Budget authority may be required for EAC form development, limited technical assistance, public certification-status reporting, FEC rulemaking, expedited debate-criteria review, public-benefit compliance review, public reporting, independent evaluation, and DOJ enforcement. Preliminary ARRP assessment estimates modest discretionary costs, likely \$10,000,000 to \$35,000,000 over five fiscal years if State grants remain limited to voluntary technical assistance and implementation support. Larger State modernization grants would require separate congressional judgment and are not assumed here. This conservative range is benchmarked against low-end CBO administrative-process estimates for reporting, review, rulemaking, and database work, and against election-security grant tranches as an upper-scale comparator rather than a model for this bill.

Boundary Split. On July 6, 2026, ranked-choice voting, runoffs, and majority-choice election-method design were branched to ELEC-015. ELEC-013 now owns the narrower federal candidate-access, ballot-access, and debate-gatekeeping lane.

Revision Review Status. The July 6, 2026 targeted internal revision review confirmed that the narrowed issue page, review metadata, source notes, and adjacent-proposal boundaries described the same institutional defect: federal candidate-access and debate-gatekeeping rules. The July 9, 2026 internal draft check cleared the first post-draft revision-review flag. The subsequent Review Ready drafting revisions have now passed targeted internal revision review, and the later budget-framing score reanalysis did not identify a new remedy-fit defect or pending revision-review flag.

Development Status. The issue now has a revised legislative draft, a subsequent targeted internal revision review, a conservative preliminary budget range, and direct prior-proposal comparators. It is Review Ready for knowledgeable external critique, not Proposal Ready or Publication Ready. The HAVA/FECA amendment path is stronger after the draft added clearer staging, cure limits, late-litigation controls, public-benefit boundaries, and debate-cycle review mechanics. FEC matter-file verification, broader state sampling, adoption evidence, fiscal/workload validation, and external validation remain incomplete.

Quality Score. The external-review readiness push raises ELEC-013 to 75/100 (Review Ready). Prior-Proposal increases because the record now includes direct federal FECA/FEC presidential candidate-documentation and candidate-disclosure comparators, plus a cautionary State ballot-access disclosure comparator. Evidence increases because the budget statement is now tied to source-backed administrative-process and election-grant scale analogues. The score does not rise further because the record still lacks official FEC matter-file verification, broader official state samples, proposal-specific adoption support, full fiscal/workload validation, and external expert review.

Post-Review Drafting Revision. After the internal project review, the linked draft was revised toward Review Ready posture by adding clearer congressional/presidential staging, a defined Federal candidate-access rule, tighter technical-versus-material cure limits, diligence/laches/anti-disruption limits on late candidate litigation, a no-automatic-ballot-placement remedy limit, a narrower Federal public-benefit definition for covered debates, expedited debate-cycle review, public-benefit consequences, and a more concrete authorization structure. The targeted internal revision review clears the remedy-fit flag but leaves external-review readiness work open.

Adoption Score. Adoption Score is 3/12 (Weak Adoption Basis). The proposal has a neutral voter-choice rationale and an ordinary federal legislative vehicle, but the internal project review found no proposal-specific polling, sponsor coalition, election-administrator endorsement, or direct bipartisan prior-proposal record.

Adoption Friction. Adoption Friction is 78/100 (High Resistance) because the proposal affects debate access, federal/state election administration, political-party competition, public-benefit conditions, speech and press limits, agency enforcement, and strategic litigation incentives.

Required Electoral Environment. Required Electoral Environment is **sixty-vote-senate**; Pathway Viability is **plausible-after-wave**; Pathway Adjustment is **stage**. The draft should proceed as ordinary federal legislation, but the next drafting pass should convert the internal project review's presidential-access, congressional-access, and debate-transparency staging findings into tighter timing and enforcement text.

Development Priority. The priority is **active** because the issue now has a distinct election-resilience draft and addresses candidate-access barriers without absorbing ELEC-015 election-method design.

Source-Development Status. The current source base is strong enough for a first draft but not yet strong enough for publication-ready drafting. A source-development explanatory checklist maps the procedural path for presidential debate qualification and state-by-state ballot access: Presidential debate and ballot-access explanatory checklist. The draft uses Perot's 1992 debate inclusion as the modern case-study anchor while avoiding a causal overclaim. The next pass should compare Perot's 1992 inclusion, Perot's 1996 exclusion, post-2000 polling-threshold practice, current presidential-debate sponsor criteria, FEC debate advisory opinions and enforcement matters, official state ballot-access statutes, petition-cure examples, candidate challenges, and current litigation or administrative records.

Prior-Proposal Comparators. The closest federal comparators do not combine ELEC-013's candidate-access, cure, status-reporting, and debate-transparency architecture, but they do validate important pieces of the vehicle choice. H.R. 1503, 111th Congress, would have amended FECA to attach presidential eligibility documentation to a principal campaign committee filing. The For the People Act of 2019 committee print included Title X provisions requiring presidential and vice-presidential candidates, Presidents, and Vice Presidents to submit tax returns to the FEC and treating redacted returns as FECA reports. California SB 27 is a cautionary State ballot-access

disclosure comparator because it conditioned presidential primary ballot access on tax-return submission and public posting; ELEC-013 avoids that model's most vulnerable feature by preserving State substantive ballot-access law and avoiding a new substantive presidential qualification.

Budget Analogues. The conservative fiscal range is not an official score. It is bounded by administrative-process analogues rather than major election-modernization grants: CBO's H.R. 4228 estimate is a low-end comparator for reporting, review, and administrative-process duties; CBO's H.R. 9 estimate is a higher administrative/rulemaking/database comparator; and AP's 2024 election-security funding report is used only as an upper-scale contrast for broad election-security grants, not as the expected cost of ELEC-013.

Neutrality. The issue must not be framed as helping any party, faction, or candidate. The rule should be whether election-process structures fairly permit voters to consider meaningful alternatives while preserving administrability, anti-fraud safeguards, clarity, party-association rights, and finality.

Constitutional Caution. Debate-access reform must account for First Amendment and press-freedom limits. Ballot-access reform must account for state election-administration authority, party-association rights, the Elections Clause, Article II, and Supreme Court ballot-access doctrine, including the Anderson/Burdick balancing framework, *Williams v. Rhodes* on severe two-party-favoring ballot burdens, and *Storer v. Brown* on ballot-route integrity. The Supreme Court's January 14, 2026 decision in *Bost v. Illinois State Board of Elections* strengthens candidate-standing assumptions for federal election-rule challenges, but it also reinforces the need to avoid late, destabilizing election-rule litigation.

Legal-Fit Finding. The internal project review confirms the draft should remain staged. The congressional-election interface has the stronger Elections Clause footing, while the presidential-election provisions should remain limited to filing-interface, publication, certification-status, public-benefit, and transparency rules unless Article II review supports a stronger command. HAVA supports a national form and election-administration support analogy, but 52 U.S.C. chapter 209 also contains state-discretion and EAC rulemaking limits that counsel against treating the EAC as a general ballot-access regulator. FECA supports the debate-transparency hook, but 52 U.S.C. § 30109's four-vote thresholds and failure-to-act review mean the FEC cannot be assumed to provide fast or reliable debate-cycle relief.

Implementation Caution. Candidate-access rules can create abuse risks if they force ballot clutter, invite candidacies lacking meaningful electoral support or good-faith intent, overload election administrators, or let bad-faith actors use debate access to launder unserious candidacies. Any remedy needs objective thresholds, cure procedures, emergency exceptions, and administrable enforcement.

Source Notes

- 11 C.F.R. § 110.13, Candidate debates.
- Federal Election Commission, Registering as a candidate.
- Federal Election Commission, Gaining ballot access.
- Federal Election Commission, Combined Federal/State Disclosure and Election Directory.
- Commission on Presidential Debates, 1992 Debates.
- Commission on Presidential Debates, 2024 Nonpartisan Candidate Selection Criteria.
- Commission on Presidential Debates, Statement on CPD's 2024 General Election Debates.
- Federal Election Commission, *Federal Elections 92*.
- Associated Press, Robert F. Kennedy Jr. fails to qualify for CNN's debate (2024).
- Associated Press, Kennedy says he has secured ballot access in enough states to win. That's not yet true (2024).
- Texas Secretary of State, Running For President in Texas (in 2024).
- Virginia Department of Elections, Independent and Third Party Presidential Candidate Bulletin (2024 general election).
- U.S. Supreme Court, *Williams v. Rhodes* (1968).
- U.S. Supreme Court, *Anderson v. Celebrezze* (1983).
- U.S. Supreme Court, *Burdick v. Takushi* (1992).
- U.S. Supreme Court, *Timmons v. Twin Cities Area New Party* (1997).
- U.S. Supreme Court, *Storer v. Brown* (1974).
- National Archives, Constitution of the United States: A Transcription.
- U.S. Supreme Court, *Arizona v. Inter Tribal Council of Arizona* (2013).
- U.S. Supreme Court, *Burroughs v. United States* (1934).
- U.S. Supreme Court, *Bost v. Illinois State Board of Elections* (2026).

- 52 U.S.C. chapter 209, Election Administration Improvement.
- Election Assistance Commission, National Mail Voter Registration Form.
- Federal Voting Assistance Program, Election Forms and Materials.
- Department of Justice Civil Rights Division, Voting Section.
- Federal Election Commission, How to file a complaint with the FEC.
- 52 U.S.C. § 30109, Enforcement.
- Associated Press, Robert F. Kennedy Jr. files complaint over rules for CNN's presidential debate (2024).
- Associated Press, Georgia lawmakers approve new election rules that could impact 2024 presidential contest (2024).
- Randy Barnett and Lawrence Lessig, It's Time to Fix the Rules for Third-Party Presidential Campaigns (2016).

ELEC-014 — Limiting Federal Criminal Investigations into State-Administered Elections

Issue Snapshot

Problem: Federal criminal process can chill election participation and state election administration.

Repair: Defer remedy selection until primary instruments identify the defect.

Vehicle: Pending unsealed criminal-process records.

Institutional Anomaly

Federal criminal enforcement is essential to election integrity. The federal government must be able to investigate and prosecute voter intimidation, civil-rights violations, ballot destruction, public corruption, foreign election interference, knowing election fraud, threats, and other federal crimes.

The institutional defect is different: federal criminal investigative tools can also chill voting, voter registration, election administration, voting-rights work, and state control of elections if deployed without election-specific predicates, timing safeguards, supervisory review, privacy limits, and neutrality controls.

Because elections are time-sensitive and mostly state-administered, even a lawful investigative act can have unusually large institutional effects. A broad search, subpoena, data demand, interview campaign, device seizure, or public investigative signal close to an election can burden election offices, discourage civic organizations, expose voter data, disrupt registration work, or create public claims of fraud before any violation is adjudicated.

Manifestations of the Failure

ELEC-014 should begin from a complete criminal-process catalog before judging motive or legitimacy. The current source-development catalog is ELEC-014 Criminal-Process and State Election Records Catalog. It tracks core criminal probes, warrants, grand-jury subpoenas, criminal subpoenas, prosecution-warning letters, and unresolved criminal-process leads. Noncriminal state-record demands now live in ELEC-004 Civil Process and State Election Records Catalog, with ELEC-001 or ELEC-010 cross-references where federal election-control or voter-data architecture is central, unless a criminal-process hook is verified.

ELEC-014 is not primarily a grand-jury reform issue on the current public record. Grand-jury subpoenas and grand-jury integrity concerns remain tracked mechanisms where confirmed, but searches, seizures, warrants, investigative resource surges, prosecution-warning letters, and criminal referrals must be analyzed on their own terms. Do not presume grand-jury origin unless a subpoena, indictment, no-bill, transcript, motion, order, or other primary record identifies grand-jury process.

Federal searches of voter-registration or voting-rights organizations

In June 2026, federal agents searched the Cleveland office of the Ohio Organizing Collaborative, a grassroots organization involved in voter-registration and voting-rights work, and reportedly seized documents and computer files while also contacting people affiliated with the group. Reporting described the search as connected to potential voter-fraud allegations, while officials and voting-rights advocates criticized the timing and warned that the action could chill voter-registration activity before competitive 2026 races. Treat political motive, retaliation, or voter-intimidation purpose as concerns raised by critics unless later court records, warrant materials, inspector-general findings, congressional findings, or official admissions substantiate them. See Associated Press, *FBI searches office of Ohio group that supports voter registration efforts*, and The Guardian, *FBI raid of Ohio voting rights group stokes fear of pre-midterm crackdown*.

The Ohio episode is a source-development trigger, not yet a proven violation. Publication-ready use requires primary materials, including any warrant, application, return, docket record, Rule 41 proceeding, official DOJ or FBI explanation, inspector-general finding, congressional record, or civil action challenging the search.

Federal seizure of state election records and ballots

In January 2026, AP reported that FBI agents executed a search at Fulton County, Georgia's election hub and seized hundreds of boxes containing ballots and other documents from the 2020 election. AP reported that the warrant remained sealed and that federal authorities had not publicly explained the basis for the operation. This is a core ELEC-014 manifestation because it concerns federal criminal process directed at state-administered election materials. The first source-development question is the alleged statute or offense theory. Secondary sources point to possible federal theories involving destruction of election-related records and production of fraudulent voter registrations or fraudulent votes, but the project should not rely on that characterization until the warrant, affidavit, return, inventory, chain-of-custody records, docket materials, and official DOJ/FBI explanation identify the actual statutory predicates. See Associated Press, *FBI seizure of Georgia ballots reflects pursuit of Trump's 2020 election grievance*.

In July 2026, AP further reported that the FBI directed 260 analysts and staff operations specialists to assist its Fulton County 2020 election investigation and review records. That report makes the Georgia episode a useful source-development example for scope and burden, but it still does not answer why the investigation was launched, whether the factual predicate was adequate, or whether the investigative steps were legitimate. See Associated Press, *The FBI is directing hundreds of analysts to its probe of Georgia's 2020 presidential election*.

Federal subpoenas for election-worker identities or state election records

In April 2026, DOJ served a grand-jury subpoena seeking names and personal contact information for all Fulton County employees and volunteer poll workers who worked during the 2020 election. AP reported that U.S. District Judge William Ray quashed the subpoena in July 2026, citing low need, burden, and grand-jury-purpose concerns. This is a central ELEC-014 manifestation because it combines grand-jury process, election-worker privacy, possible chilling effects, and a judicial legitimacy check. The alleged statute or offense theory remains unresolved until the subpoena, motion to quash, any hearing transcript, and the court's order are reviewed. See Associated Press, *Judge rejects Justice Department attempt to get names of 2020 election workers in Fulton County*.

The catalog also preserves an unresolved Arizona lead: reporting references a federal grand-jury subpoena for Arizona Senate Republican caucus records from the Maricopa County 2020 election audit. That lead should not be used as a scored or publication-ready manifestation until verified through a reliable accessible report or primary subpoena record.

Federal election-fraud priorities and state-administered election systems

Executive-branch election-integrity initiatives can combine voter-list access, citizenship verification, database matching, election-fraud rhetoric, and investigative direction in ways that place pressure on state-administered elections. Executive Order 14399 is already source-developed in ELEC-001 and ELEC-010 for federal election-control and mail-ballot concerns. ELEC-014 should source-develop only the criminal-investigative layer: when federal election-crime authority may be invoked, what predicate must exist, who must approve it, and what safeguards protect lawful participation and state election administration.

DOJ's broader 2025-2026 voter-data campaign is boundary material, not ELEC-014 substance standing alone. AP reported requests for voter registration lists and election information from at least 19 states by August 2025; later reporting described lawsuits or demands involving at least 30 states and the District of Columbia, including requests for detailed identifiers such as dates of birth, addresses, driver-license numbers, and partial Social Security numbers. Those demands matter for voter-data privacy, federalism, and possible election-administration pressure, but they are civil or administrative state-record demands unless a warrant, grand-jury subpoena, criminal subpoena, Criminal Division investigative channel, or prosecution threat is documented. Route them primarily to ELEC-004, with ELEC-001 or ELEC-010 cross-references where federal election-control or voter-data architecture is central, unless the criminal-process hook is verified. See Associated Press, *The Justice Department seeks voter and election information from at least 19 states, AP finds, Justice Department sues six more states to get detailed voter data, A federal judge dismisses another DOJ lawsuit seeking voter data, this time in Massachusetts, and Judges in Maine and Wisconsin dismiss Justice Department's attempts to force turnover of voter rolls*.

In July 2026, AP reported that DOJ sent letters to election officials in all 50 states and the District of Columbia warning that election administrators could face criminal charges if they knowingly allowed noncitizens to vote or remain on voting rolls. That is not a subpoena or search, but it belongs in ELEC-014's catalog as a prosecution-threat manifestation because criminal warnings from DOJ can affect state election administration even without immediate process. The next source-development step should obtain the letter text and code whether it was a general legal reminder, an investigative demand, or a predicate for later enforcement. See Associated Press, *The Trump administration is ramping up pressure on states to change election practices*.

Adjacent DOJ grand-jury integrity pattern

ELEC-014 should also source-develop adjacent DOJ grand-jury-integrity failures before deciding whether ordinary grand-jury practice is an adequate safeguard in election-sensitive criminal matters. The Broadview Six anti-ICE protest prosecution is not an election-process manifestation, but AP reported that DOJ began reviewing more than 1,000 Illinois grand-jury presentations after misconduct revelations in that case, including a prosecutor meeting with a grand juror outside proceedings and dissenting grand jurors being dismissed from participation. That episode supports testing whether ELEC-014 needs front-end or back-end safeguards for prosecutor-controlled grand-jury presentations, dissenting-grand-juror handling, transcript preservation, and OPR/OIG review. Do not infer similar misconduct in any election-related subpoena or warrant without primary records. See Associated Press, *Sweeping review of grand jury presentations underway in Chicago following misconduct revelations*.

Resulting Damage

Misuse or overbroad use of federal criminal investigative process in election contexts can:

1. chill voter-registration drives, voting-rights advocacy, and lawful civic participation;
2. deter voters, volunteers, election workers, or local officials from engaging with election activity;
3. expose voter data, membership lists, donor lists, device contents, ballots, election-system records, or security-sensitive material;
4. convert generalized voter-fraud allegations into public investigative pressure;
5. disrupt election administration during compressed pre-election or post-election windows;
6. create an appearance of federal supervision over state election administration beyond lawful federal enforcement authority;
7. produce partisan or retaliatory perceptions even where an investigation later proves lawful; and
8. weaken trust in legitimate federal enforcement of voting-rights and election-crime statutes.

Underlying Weakness

Federal election-crime enforcement sits at the intersection of criminal law, civil-rights enforcement, state election administration, associational privacy, voter privacy, federalism, and emergency election timing.

Existing safeguards may not be sufficiently election-specific. Ordinary criminal-procedure rules address probable cause, warrants, subpoenas, privilege, and suppression after the fact, but they may not fully address pre-election chilling effects, voter-data sensitivity, state election deadlines, associational records, or the public meaning of federal investigative action in an election environment.

The issue should source-develop whether DOJ policy, internal approval channels, court oversight, congressional reporting, OIG review, minimization rules, and statutory standards already cover the problem or whether a new statutory or Justice Manual framework is needed.

Proposal Survey

The least-complex remedy is not yet selected. Future review should compare:

DOJ policy and Justice Manual controls. Review existing DOJ election-crimes, Public Integrity, civil-rights, and election-year sensitivity policies before drafting. If internal policy is adequate but nonbinding, codification or reporting may be the least-complex adequate remedy.

Criminal-procedure safeguards. Review Rule 41, grand-jury subpoena practice, warrant minimization, privilege screening, return-of-property procedures, suppression remedies, and protective orders to determine whether ordinary criminal procedure already protects sensitive election and associational material.

Voting-rights and election-crime enforcement. The proposal must preserve legitimate federal enforcement of voting-rights statutes, voter-intimidation laws, civil-rights crimes, public-corruption laws, foreign-interference laws, and actual election fraud. It should not create practical immunity for election-related crime.

Sensitive-context analogues. Review existing safeguards for politically sensitive investigations, attorney-client materials, press materials, associational records, medical records, classified information, and election materials to identify analogues for heightened approval, minimization, timing, reporting, and post-action review.

Least-Complex Adequate Remedy

The least-complex adequate remedy is deferred. Current public materials show criminal searches, a confirmed grand-jury subpoena, investigative-resource escalation, prosecution-warning letters, and unresolved criminal-process leads, but no located unsealed federal indictment arising from the 2025-2026 election-related investigations tracked here. The project should wait for unsealed indictments, warrants, affidavits, returns, subpoenas, court orders, DOJ letters, state responses, no-bill records, OIG/OPR findings, or congressional records before selecting a final remedy.

A plausible future remedy could require heightened written findings, supervisory approval, timing review, minimization, and after-action reporting before federal criminal investigative process may seek sensitive election materials or target state-administered election activity, voter-registration work, voting-rights organizations, election officials, ballots, voter data, or voting infrastructure. That remedy should not be selected until the primary records clarify whether the defect is selective or vindictive enforcement, abuse of investigative process, overbroad search or subpoena practice, grand-jury misuse, voter-data exposure, political direction, or simply lawful enforcement with poor optics.

That remedy should be calibrated to prevent chilling, retaliation, rummaging, and election-period disruption without disabling legitimate federal enforcement.

Repair and Prevention

Future drafting should evaluate whether Congress or DOJ should require:

1. a specific factual predicate tied to a defined federal offense before federal criminal process targets state-administered election activity;
2. heightened approval for searches, subpoenas, interviews, device seizures, or data demands close to an election;
3. written neutrality and non-retaliation findings for politically sensitive election investigations;
4. timing safeguards for pre-election or certification-period investigative actions unless delay would create concrete risk;
5. minimization rules for ballots, voter data, membership lists, donor lists, volunteer records, devices, source code, chain-of-custody records, and security-sensitive materials;
6. under-seal judicial notice or review where especially sensitive election or associational material is sought;
7. post-action reporting to the DOJ Inspector General, Congress, or both, with redactions for secrecy, privacy, and investigation integrity;
8. emergency exceptions for imminent threats, destruction of evidence, violence, foreign interference, corruption, or ongoing criminal conduct;

9. an anti-evasion rule preventing civil election-control efforts from being routed through criminal process without the required predicate; and
10. explicit preservation of lawful federal voting-rights and election-crime enforcement.

Proposed Legislation

- Pending development.

Relationship to Adjacent Proposals

ELEC-001 concerns federal executive interference with state and local election administration through presidential authority, agencies, funding, regulation, intelligence, administrative process, official influence, or federal voter-data architecture. ELEC-014 is narrower: it concerns federal criminal investigative process.

ELEC-004 concerns Anti-SLAPP-style control of election litigation, civil subpoenas, audit requests, inspection demands, and comparable noncriminal process. ELEC-014 owns federal criminal searches, criminal subpoenas, grand-jury process, law-enforcement interviews, and election-related criminal investigative guardrails.

ELEC-007 concerns improper federal-force presence around election administration. ELEC-014 may overlap if federal law-enforcement activity involves physical presence, searches, seizures, or custody of election materials, but ELEC-014's core focus is the criminal-investigative predicate and process.

DOJ-002 concerns White House direction or interference in particular federal criminal matters. DOJ-003 concerns selective enforcement, charging, and favoritism. ELEC-014 should cross-reference those issues where the defect is political direction or selective enforcement, but it remains in A-02 because the protected institutional interest is election participation and state-administered election integrity.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified pending source-backed implementation review.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Not Scored)

Adoption Friction: N/A

Required Electoral Environment: N/A

Development Priority: N/A

Internal Review Status: Deferred pending unsealed or otherwise available primary criminal-process instruments; zero score preserved until statutory predicates, legitimacy concerns, and remedy fit can be assessed

Last Internal Review: Civil record-demand routing to ELEC-004

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current unscored status

Next Review: Monitor for unsealed indictments, warrants, affidavits, returns, subpoenas, orders, DOJ letters, state responses, no-bill records, OIG/OPR findings, congressional records, and Arizona lead verification; then identify exact alleged statutes or offense theories and conduct a remedy-selection and legitimacy review

Full Review History: ELEC-014 review history

Annotation

Deferred Status. ELEC-014 is deferred after source development showed that the public record is not yet sufficient for remedy selection. It remains spun off from ELEC-004 because federal criminal investigative process does not fit ELEC-004's Anti-SLAPP-style civil-procedure remedy.

Review Status. The July 3, 2026 internal project review confirms issue admission, area placement, and the civil/criminal boundary. ELEC-014 remains fixed at 0/100 because the least-complex adequate remedy and proposal vehicle have not yet been selected.

Manifestations Catalog. The July 9, 2026 catalog cleanup adds a source-development catalog for federal criminal probes, searches, grand-jury subpoenas, prosecution-warning letters, and unresolved criminal-process leads. The catalog now treats civil or administrative state-election-record demands as boundary material only unless a criminal-process hook is verified. The first question for each criminal-process entry is the alleged statute or offense theory; the catalog marks that field as unknown where warrants, subpoenas, letters, or orders are not yet available.

Grand-Jury Scope Caution. Grand-jury process is a tracked mechanism, not the organizing scope of ELEC-014. The issue should not presume grand-jury origin for searches, warrants, analyst surges, or prosecution-warning letters unless primary records confirm that connection. The current doctrinal center is selective or vindictive enforcement and abuse of criminal investigative process in election-sensitive contexts, with grand-jury misuse as a subtopic where confirmed.

Civil Record-Demand Routing. Civil and administrative voter-roll requests, voter-data lawsuits, Voting Section letters, information-sharing proposals, and noncriminal state-election-record demands are routed to ELEC-004 Civil Process and State Election

Records Catalog, ELEC-014 retains them only as boundary references or sequence leads where a later criminal-process hook may need verification.

Existing DOJ Guardrails. Current DOJ materials already contain election-specific guardrails relevant to this issue. Justice Manual 9-85 assigns Public Integrity Section supervisory jurisdiction for election crimes, warns against overt ballot-fraud investigative measures before certification and related contests are complete, requires consultation over armed officials where elections are held, and prohibits timing investigative actions to affect elections. The same section also states that the 9-85.210 consultation requirement for campaign-finance, federal patronage, and election-process corruption matters is suspended while Department leadership revises it. That suspension should be treated as a current-source finding requiring further internal analysis, not as proof that any specific investigation was improper.

Criminal-Procedure Baseline. Ordinary federal criminal procedure already supplies warrant, inventory, return-of-property, suppression, and grand-jury secrecy rules. The further internal review should test whether those generally applicable protections are adequate for election-specific timing, voter-data, associational-privacy, state-administration, and chilling-effect concerns or whether Congress should codify a narrower election-context overlay.

Neutral Framing. The issue is not anti-law-enforcement and should not imply that federal election-crime enforcement is illegitimate. The premise is that election-related criminal process can require heightened guardrails because the state-administered election context magnifies chilling, privacy, timing, and federalism harms.

Source Caution. The Ohio Organizing Collaborative episode is a source-development trigger only. Current public sources are secondary reporting and criticism. Do not treat motive, retaliation, intimidation, or illegality as established without primary records or official findings.

Pathway Note. Adoption pathway fields remain N/A while the issue is candidate-only. Possible future vehicles include Justice Manual revision, statutory codification of election-crime investigative predicates and approvals, reporting/OIG review, or a hybrid model; further internal review should select the least-complex adequate path before any formula score is assigned.

Legal Caution. Any remedy must be tested against the Fourth Amendment, Rule 41, grand-jury secrecy, prosecutorial discretion, federal civil-rights enforcement, legitimate voter-fraud enforcement, associational privacy, voter privacy, state election authority, and emergency-threat exceptions.

Source Notes

- Associated Press, *FBI searches office of Ohio group that supports voter registration efforts* (June 12, 2026).
- The Guardian, *FBI raid of Ohio voting rights group stokes fear of pre-midterm crackdown* (June 12, 2026).
- Federal Register, Executive Order 14399 — Ensuring Citizenship Verification and Integrity in Federal Elections (published Apr. 3, 2026).
- U.S. Department of Justice, Justice Manual 9-85.000 - Protection of Government Integrity (accessed July 3, 2026).
- U.S. Department of Justice, *Federal Prosecution of Election Offenses* (Seventh Edition, May 2007; revised Aug. 2007).
- Source-development catalog: ELEC-014 Criminal-Process and State Election Records Catalog.
- Associated Press, *FBI seizure of Georgia ballots reflects pursuit of Trump's 2020 election grievance* (Jan. 29, 2026).
- Associated Press, *The FBI is directing hundreds of analysts to its probe of Georgia's 2020 presidential election* (July 2, 2026).
- Associated Press, *Judge rejects Justice Department attempt to get names of 2020 election workers in Fulton County* (July 7, 2026).
- Associated Press, *The Justice Department seeks voter and election information from at least 19 states, AP finds* (Aug. 3, 2025).
- Associated Press, *Justice Department sues six more states to get detailed voter data* (Dec. 3, 2025).
- Associated Press, *A federal judge dismisses another DOJ lawsuit seeking voter data, this time in Massachusetts* (Apr. 9, 2026).
- Associated Press, *Judges in Maine and Wisconsin dismiss Justice Department's attempts to force turnover of voter rolls* (May 21, 2026).
- Associated Press, *The Trump administration is ramping up pressure on states to change election practices* (July 8, 2026).
- Associated Press, *Sweeping review of grand jury presentations underway in Chicago following misconduct revelations* (July 1, 2026) (adjacent DOJ grand-jury-integrity pattern source; not an election-process manifestation).
- U.S. Code / House Office of the Law Revision Counsel, Federal Rules of Criminal Procedure (accessed July 3, 2026).
- Future source development should review DOJ election-crimes guidance, Justice Manual provisions for politically sensitive investigations, Public Integrity Section approval rules, Civil Rights Division voting-rights enforcement materials, Rule 41, grand-jury subpoena practice, warrant minimization, OIG review, congressional oversight models, and any public court record arising from the Ohio search.

ELEC-015 — Ranked-Choice Voting and Majority-Choice Election Methods

Issue Snapshot

Problem: Plurality rules can turn voter choice and candidate entry into strategic pressure.

Repair: Deferred pending additional election-outcome data and outside input before any remedy selection.

Vehicle: Pending later reassessment.

Institutional Anomaly

Single-winner plurality elections can make elections feel binary even where voters hold more varied preferences. A voter may prefer a third candidate, independent candidate, minor-party candidate, or factional challenger, but avoid that vote because the preferred candidate is perceived as unable to win. The result is a recurring "spoiler" or "wasted vote" dynamic that can suppress candidacies, discourage coalition-building, and make winners in crowded fields appear less broadly legitimate.

Ranked-choice voting, instant-runoff voting, traditional runoffs, and related majority-choice election methods are attempts to repair that defect. Their shared premise is that election rules should let voters express broader preferences while preserving administrability, voter comprehension, ballot access, finality, recountability, and trust.

The institutional defect is not that every election must use ranked ballots. The defect is that plurality-default election systems often fail to ask whether a winner has majority support, whether voters can safely express backup preferences, and whether the tabulation process is transparent enough to maintain legitimacy.

Manifestations of the Failure

Spoiler pressure in single-winner elections

Plurality elections can penalize voters for supporting their first-choice candidate when that candidate is unlikely to finish first. This pressure may deter independent candidates, minor-party candidates, and intra-party challengers even before a campaign begins.

Ranked-choice voting is designed to reduce that pressure by allowing voters to rank candidates and by transferring votes under defined rules if no candidate has enough support to win initially. The mechanism can reduce first-round spoiler fears, but it also introduces implementation demands that ordinary plurality systems do not have.

The current research is mixed rather than conclusive. See MIT Election Data + Science Lab, *Ranked Choice Voting: Instant Runoff Voting Use in the United States*, and New America, *What We Know About Ranked-Choice Voting*. ELEC-015 therefore treats reduced spoiler pressure as a proposition for continued testing, not a proven universal effect.

Implementation complexity and voter comprehension

RCV and other majority-choice systems are not self-executing. Voters need clear ballot instructions, accessible materials, examples, error-prevention design, language assistance, and public education before Election Day. Election officials need tabulation rules, software or central-count procedures, public reporting formats, recount rules, and a way to explain exhausted ballots and transfer rounds without making the result appear opaque.

Maine supplies an important implementation source base because the Secretary of State maintains official ranked-choice voter information, rules, voter-instruction materials, tabulation glossaries, recount rules, and election-results/data pages with RCV summaries and cast-vote-record files. Maine's official FAQ states that the state uses ranked-choice voting for all state-level primary elections and, in general elections, only for federal offices, including President; the ranked-choice rounds apply only when a race has more than two candidates. See Maine Secretary of State, *Ranked Choice Voting Information and Rules*, *Ranked-Choice Voting Frequently Asked Questions*, and *Election Results/Data*.

Adoption, repeal pressure, and state-law fragmentation

State experimentation is moving in conflicting directions. NCSL's March 2026 ranked-choice voting brief identifies Alaska and Maine as statewide RCV users and also reports that 19 states prohibit ranked-choice voting in at least some elections. Alaska's nonpartisan-primary and ranked-choice general-election model has faced repeal pressure, while D.C. voters approved Initiative 83 in 2024, combining ranked-choice voting with unaffiliated-voter primary access. See NCSL, *Ranked Choice Voting*; Alaska Division of Elections, *2024 General Election Results*; D.C. Council, *B25-1075 / Initiative 83 introduction PDF*; and D.C. Board of Elections, *2024 General Election Results*.

This mixed environment suggests that a model-state or voluntary-pilot path may be more realistic than an immediate national mandate. Reform durability depends on public understanding, transparent administration, cost realism, and local legal fit.

Resulting Damage

Plurality-default and poorly implemented majority-choice systems can:

1. discourage voters from supporting their genuine first choice;
2. deter independent, minor-party, and challenger candidacies;
3. make crowded-field winners appear less legitimate;

4. intensify negative campaigning by preserving binary contest structure;
5. encourage strategic voting rather than sincere voting;
6. create public suspicion if tabulation rounds are hard to observe or explain;
7. increase administrative burden without adequate funding or training; and
8. trigger repeal backlash if reforms are adopted faster than voters and election officials can absorb them.

The issue should not assume that ranked-choice voting is always superior to plurality voting or traditional runoffs. It should ask when a majority-choice method is justified, which method is least complex for the election type, and which transparency safeguards are necessary before adoption.

Underlying Weakness

Election-method design is fragmented across state constitutions, state statutes, local charters, party rules, ballot-design rules, election-equipment constraints, voter-education practices, and federal election-support programs. No single institution owns the problem of majority legitimacy, spoiler pressure, and tabulation trust.

Because election-method reforms affect both political incentives and election administration, they can be attacked from both directions: as partisan manipulation by opponents and as needless technical complexity by administrators or voters. A durable remedy therefore needs both democratic theory and implementation discipline.

Current Evidence Synthesis

ELEC-015 should remain analysis-first rather than pro-RCV by default. The current Maine extraction does not show that RCV has produced a clear increase in candidate participation, alternative vote expression, or third-party/independent electoral success. The regular-primary turnout series shows a possible post-2018 increase, but 2018 was both Maine's first RCV-use cycle and the first midterm election of the Trump era, making that signal highly confounded. The absence of third-party or independent winners in the gathered Maine RCV record is relevant evidence against the strongest claim that RCV meaningfully disrupts two-party dominance, though it does not resolve narrower claims about backup-preference expression, voter experience, or implementation safeguards. The working extraction is maintained in ELEC-015 Maine RCV Participation Data.

This working read is consistent with the broader research landscape. The MIT Election Lab's 2026 explainer describes IRV effects as contested and concludes that most evidence remains inconclusive, especially outside local elections. See MIT Election Data + Science Lab, *Ranked Choice Voting: Instant Runoff Voting Use in the United States*. FairVote's research summary collects more favorable turnout, ranking-use, voter-understanding, and representation evidence, but it also acknowledges that RCV's full turnout impact is not yet known and that competitiveness and election timing are hard to separate from method effects. See FairVote, *Research and data on RCV in practice*. New America's synthesis similarly supports continued study while warning against overclaiming from incomplete evidence. See Lee Drutman and Maresa Strano, *What We Know About Ranked-Choice Voting*. Recent academic work on turnout, mobilization, candidate entry, and real-world RCV performance supplies useful testable claims, but it does not by itself establish that a Maine-style RCV remedy is worth ARRPP advocacy without a clearer institutional benefit. See Elisabeth Dowling, Caroline Tolbert, Nicholas Micatka, and Todd Donovan, *Does ranked choice voting increase voter turnout and mobilization?*; Jonathan Colner, *Running toward Rankings: Ranked Choice Voting's Impact on Candidate Entry and Descriptive Representation*; and Adam Graham-Squire and David McCune, *An Examination of Ranked Choice Voting in the United States, 2004-2022*.

The current synthesis is therefore: RCV may reduce some spoiler pressure and may support expressive backup voting, but the evidence gathered so far does not justify treating RCV as a proven fix for two-party dominance, candidate competition, or participation. If the institutional goal is to increase non-D/R viability, the primary repair likely occurs before tabulation: ballot access, debate access, party-recognition rules, fundraising, media visibility, primary structure, voter beliefs about viability, and district design. ELEC-015 should therefore own the downstream question of how votes are counted once voters have real choices, while upstream candidate-competition reforms remain primarily with ELEC-013 and representation-structure questions remain with ELEC-011. ELEC-015 should proceed only if later source development identifies a narrower defensible remedy, such as implementation safeguards for jurisdictions that independently adopt RCV, a voluntary pilot with rigorous reporting, or a comparative election-method standard that includes non-RCV alternatives.

Proposal Survey

Future review should compare election-method tools rather than assume one. The key source-development question is whether Maine, Alaska, D.C., or other jurisdictions show measurable changes in candidate participation, voter participation, turnout, ballot completion, voter adaptation, candidate-field structure, or repeal pressure after majority-choice adoption, implementation, or attempted implementation.

Maine operational record. Maine remains the best initial comparator for operational maturity because it provides official ranked-choice voter materials, tabulation rules, result files, and cast-vote-record or summary data. Its current evidentiary value is mostly cautionary: the record can test claims about participation, alternative vote expression, ballot completion, and third-party viability, but the gathered data does not yet support a transformative RCV claim.

Alaska top-four plus RCV record. Alaska is the best comparator for political-system interaction because its reform combines a nonpartisan primary with RCV in the general election and has faced repeal pressure. Source development should separate participation effects from candidate-field structure, party strategy, repeal campaigns, and statewide political salience.

D.C. adoption and implementation transition. D.C. is the best comparator for adoption and transition because voters approved Initiative 83 in 2024, combining ranked-choice voting with unaffiliated-voter primary access. Source development should track certified initiative results, funding, implementation schedule, primary-turnout baseline, unaffiliated-voter participation, and any Council, Board of Elections, litigation, or delay materials.

Ranked-choice voting / instant-runoff voting. RCV lets voters rank candidates and uses transfer rounds if no candidate wins initially. It is most directly responsive to spoiler pressure in single-winner elections, but requires careful ballot design, voter education, accessible instructions, tabulation transparency, and recount rules.

Traditional runoff elections. Runoffs are familiar and may be easier to explain than ranked ballots. They can identify a majority winner after a second election, but they increase cost, delay finality, often produce lower-turnout second rounds, and do not eliminate first-round spoiler pressure.

Nonpartisan, open, top-four, or top-five primary models. Primary reforms can interact with RCV or runoffs by changing who advances to the general election. Alaska and D.C. are source-development leads, but these structures should be evaluated carefully because they may alter party associational interests and can disadvantage smaller parties if the general election is limited to top finishers.

Federal pilot grants and technical standards. Congress may be able to support voluntary state or local pilots through election-administration grants, technical assistance, reporting requirements, or HAVA-adjacent equipment and accessibility standards. A pilot-grant model would likely be less constitutionally aggressive than a national voting-method mandate.

Model-state legislation. A model-state act could specify election types eligible for RCV or runoffs, voter-instruction requirements, ballot-design standards, tabulation publication, cast-vote-record or equivalent transparency, recount rules, audit procedures, implementation timelines, and repeal or sunset-review procedures.

Prior federal proposal families. The Fair Representation Act, introduced in the 119th Congress as H.R. 4632, is a broad comparator because it proposes ranked-choice voting for congressional elections together with multi-member district and redistricting reforms. H.Res. 20, 119th Congress, is a process comparator because it would create a House Select Committee on Electoral Reform to study alternative congressional election methods. These are useful source leads, but ELEC-015 should not automatically adopt their full structural scope.

Least-Complex Adequate Remedy

The least-complex adequate remedy is not yet selected. ELEC-015 is deferred pending additional certified election-outcome data and additional election-method, ballot-access, party-system, and implementation input. The current record does not justify treating RCV as a primary competition remedy; later review should decide whether ELEC-015 should remain deferred, become a narrow implementation-safeguards issue, or be retired in favor of upstream candidate-access and representation-structure reforms.

A plausible later path may be a model-state majority-choice election-method act, paired with an optional federal pilot-grant and technical-assistance framework. That approach would allow structured experimentation without immediately requiring a national RCV mandate for all federal elections, but it should not be selected until the participation record, implementation costs, transparency record, accessibility record, and repeal/durability evidence are source-developed.

The first remedy-selection pass should decide whether ELEC-015 should draft:

1. a model-state RCV/runoff implementation act;
2. a federal voluntary-pilot grant and technical-standards bill;
3. a combined model-state plus federal-support package; or
4. a narrower source-development memorandum before drafting.

Repair and Prevention

Future drafting should evaluate whether reform text should require:

1. clear eligibility rules for which elections may use ranked-choice, runoff, or other majority-choice methods;
2. plain-language ballot instructions and sample ballots;
3. accessibility, language-access, and voter-error testing;
4. public tabulation rules and round-by-round result publication;
5. cast-vote-record publication or equivalent transparency with privacy safeguards;
6. recount and contest procedures tailored to transfer rounds or runoff elections;
7. election-equipment certification and cybersecurity review;

8. implementation grants, training, and voter-education funding;
9. cost reporting and post-election performance reports;
10. sunset, review, or repeal procedures that preserve voter confidence; and
11. clear boundaries with adjacent reforms owned by ELEC-013, ELEC-011, and ELEC-009.

Proposed Legislation

- Pending development.

Relationship to Adjacent Proposals

ELEC-013 concerns federal candidate access, debate gatekeeping, ballot-access floors, and FEC-facing competition rules. ELEC-015 now owns ranked-choice voting, runoffs, majority-choice election-method design, and implementation safeguards.

ELEC-009 concerns whether the Electoral College itself should be restructured or replaced by a national popular-vote system. ELEC-015 may supply election-method options, but it does not own the presidential-selection structure question.

ELEC-011 concerns representation safeguards, redistricting, district structure, and algorithmic map generation. ELEC-015 may cite multi-member or proportional-representation comparators only where they bear on election-method design; broader districting and representation remedies remain in ELEC-011.

Budgetary Impact Statement

Budget authority may be required for voter education, ballot redesign, election-equipment updates, tabulation software, accessibility testing, training, recount administration, technical assistance, and state or local pilot grants; no dollar estimate is assigned pending source-backed cost data.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Not Scored; deferred pending additional data and input)

Adoption Friction: N/A

Required Electoral Environment: N/A

Development Priority: N/A

Internal Review Status: Deferred pending additional certified election-outcome data and additional election-method, ballot-access, party-system, and implementation input; zero score preserved until remedy value and fit can be reassessed

Last Internal Review: Deferred status update

Scoring Standard: 2026-06-27.2; **Scoring Basis:** Current unscored status; **Revision Review Needed:** No

Next Review: After the next midterm election cycle, update certified outcome data for RCV jurisdictions and obtain additional expert or stakeholder input; then reassess whether ELEC-015 should remain deferred, become an implementation-safeguards issue, or be retired in favor of upstream competition reforms

Full Review History: ELEC-015 review history

Annotation

Branch-Off Status. ELEC-015 was created on July 6, 2026 to receive the ranked-choice voting, runoff, and majority-choice election-method material previously carried inside ELEC-013. The split keeps ELEC-013 focused on federal candidate-access, debate, and ballot-access rules while allowing ELEC-015 to develop election-method design on its own terms.

Deferred Status. ELEC-015 is deferred at 0/100 because the evidence gathered so far does not justify remedy selection. Additional certified outcome data and additional expert or stakeholder input are needed before deciding whether to draft a narrow implementation-safeguards proposal, preserve the issue as research-only, or retire it in favor of upstream competition reforms.

Analysis-First Posture. ELEC-015 should begin as comparative analysis rather than immediate remedy drafting. The first source-development question is whether Maine, Alaska, and D.C. show measurable changes in candidate participation, voter participation, turnout, ballot completion, voter adaptation, candidate-field structure, or repeal pressure after majority-choice adoption, implementation, or attempted implementation.

Future Data Checkpoint. Revisit ELEC-015 after the next midterm election cycle with certified outcome data. The update should specifically test whether RCV jurisdictions produced third-party or independent winners, materially changed alternative vote expression, or otherwise supplied evidence that the major bottleneck is not upstream ballot access, debate access, primary structure, fundraising, media visibility, or district design.

Preflight Notice. Any future internal review should begin by noting that ELEC-015 has no proposed legislation yet unless a draft has been added before that review. Without drafting, the review should be limited to source development, issue admission, remedy selection, and unscored candidate review.

Implementation Caution. RCV and related election-method reforms can lose legitimacy if voters experience them as confusing, opaque, expensive, or imposed. The source-development priority is therefore not simply whether RCV is desirable; it is whether a specific implementation model can be explained, audited, recounted, funded, and administered.

Legal Caution. Future drafting should map state constitutional constraints, state election-code provisions, party-association concerns, Elections Clause authority, Article II implications for presidential elections, HAVA and EAC equipment issues, accessibility requirements, equal-protection arguments, and any state-law prohibitions on ranked-choice voting.

Source Notes

- Maine Secretary of State, Resources for Ranked-Choice Voting.
- Maine Secretary of State, Ranked Choice Voting Information and Rules.
- Maine Secretary of State, Ranked-Choice Voting Frequently Asked Questions.
- Maine Secretary of State, Election Results/Data.
- Maine source-development table, ELEC-015 Maine RCV Participation Data.
- NCSL, Ranked Choice Voting (updated Mar. 23, 2026).
- MIT Election Data + Science Lab, Ranked Choice Voting: Instant Runoff Voting Use in the United States (updated June 24, 2026).
- FairVote, Research and data on RCV in practice.
- Lee Drutman and Maresa Strano, New America, What We Know About Ranked-Choice Voting (Nov. 10, 2021).
- Elisabeth Dowling, Caroline Tolbert, Nicholas Micatka, and Todd Donovan, *Does ranked choice voting increase voter turnout and mobilization?*, *Electoral Studies* 90 (2024).
- Jonathan Colner, *Running toward Rankings: Ranked Choice Voting's Impact on Candidate Entry and Descriptive Representation*, *American Journal of Political Science* 69:3 (2025).
- Adam Graham-Squire and David McCune, *An Examination of Ranked Choice Voting in the United States, 2004-2022* (2023).
- D.C. Council, B25-1075 / Initiative 83 introduction PDF.
- D.C. Board of Elections, 2024 General Election Results.
- Alaska Division of Elections, 2024 General Election Results.
- Congress.gov, H.R. 4632, 119th Congress, Fair Representation Act.
- GovInfo, H.R. 4632, 119th Congress, Fair Representation Act.
- Congress.gov, H.Res. 20, 119th Congress, Establishing the Select Committee on Electoral Reform.
- GovInfo, H.Res. 20, 119th Congress, Establishing the Select Committee on Electoral Reform.
- Associated Press, *Maine counts ranked choice ballots to determine nominees for governor and a US House race* (June 2026).
- Axios, *D.C. approves Initiative 83 for ranked-choice voting* (Nov. 6, 2024).
- Associated Press, *Measure aimed at repealing Alaska's ranked choice voting system scores early, partial win in court* (June 2024).

A-03 — War Powers and Military Force

Generalized Institutional Concern

The existing allocation of war powers allows presidents to initiate, expand, and prolong significant military operations without timely, specific, informed, and politically effective congressional authorization or continuing oversight.

Active Issues

- **WAR-001 — Comprehensive War Powers and Use-of-Force Authorization Reform**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **WAR-002 through WAR-008** — Merged into **WAR-001 — Comprehensive War Powers and Use-of-Force Authorization Reform** as automatic-termination, AUMF, legal-interpretation, oversight, information, mission-expansion, and appropriations components of one comprehensive war-powers framework.

Issue Boundaries

- **WAR-001** concerns comprehensive statutory reform of war powers and use-of-force authorization, including unilateral initiation, offensive hostilities, emergency defense, automatic termination, AUMF specificity and sunsets, executive legal interpretation, congressional information access, oversight, mission expansion, appropriations-as-authorization, funding consequences, and presentment/veto-override posture.

Notes

A-03 is structured as a single comprehensive issue because the original WAR-001 through WAR-008 defects are proximate, interdependent, and primarily arise from the same War Powers Resolution, AUMF, appropriations, executive-interpretation, and congressional-enforcement architecture.

WAR-001 — Comprehensive War Powers and Use-of-Force Authorization Reform

Issue Snapshot

Problem: Presidents can initiate unauthorized hostilities.

Repair: Require authorization and automatic funding consequences.

Vehicle: War powers statute (draft).

Institutional Anomaly

The existing War Powers Resolution, AUMF practice, appropriations practice, executive legal interpretation, and congressional oversight framework fail to impose timely, specific, informed, and politically effective congressional authorization before, during, and after significant uses of military force.

The relevant defects are proximate and interdependent rather than meaningfully separable. A President can initiate force unilaterally because “hostilities,” emergency defense, and commander-in-chief authority are ambiguous; the operation can continue because termination mechanisms are weak; old authorizations may be stretched to new enemies, geographies, or missions; executive legal interpretations may remain controlling or opaque; Congress may lack adequate information before commitment; oversight may collapse along partisan lines; the mission may expand beyond its original premise; and appropriations may be characterized as implied authorization.

Accordingly, A-03 should proceed through one integrated discussion and one principal legislative vehicle rather than separate standalone issue tracks for WAR-001 through WAR-008.

Collapsed Scope

WAR-001 now incorporates the prior WAR-002 through WAR-008 candidate issues as subcomponents of a single comprehensive war-powers reform issue:

1. unilateral initiation of hostilities;
2. ineffective automatic termination under the War Powers framework;
3. overbroad and indefinite authorizations for use of military force;
4. executive control over legal interpretations of war, hostilities, self-defense, and authorization;
5. partisan collapse of congressional oversight;
6. insufficient information before military commitment;
7. mission expansion beyond original authorization; and
8. treatment of appropriations as implied authorization.

Manifestations of the Failure

Libya, 2011 — contested “hostilities” and termination clock

During the 2011 Libya intervention, the executive branch argued that continued United States participation did not constitute “hostilities” under the War Powers Resolution, despite United States air, refueling, surveillance, and support roles and congressional objections. The 60-day deadline passed without specific authorization while executive legal analysis continued to control whether the statutory termination rule applied. See the Office of Legal Counsel, *Authority to Use Military Force in Libya*. The episode illustrates the combined effect of an ambiguous trigger, executive control over the operative legal interpretation, and an ineffective termination clock.

2001 AUMF — associated-force, geography, and mission expansion

The 2001 Authorization for Use of Military Force has been relied on across years, countries, groups, and theaters beyond the immediate Afghanistan and al-Qaeda context. Executive practice extended the authorization through associated-force, successor-force, geographic, and mission interpretations that were not expressly enumerated in the original text. The episode illustrates how an authorization for one enemy and objective can become the asserted basis for materially different conflicts.

1991 and 2002 Iraq AUMFs — obsolete authorization risk

Repeated bipartisan efforts to repeal the 1991 and 2002 Iraq AUMFs show the continuing concern that old authorizations may remain legally available after their original factual and strategic predicates have changed. Even if not actively relied on, obsolete authorizations create latent authority unless Congress repeals, sunsets, or narrows them.

Iran, 2026 — war-powers pushback and supplemental funding

Current reporting on the Iran war illustrates the overlap between unauthorized hostilities, congressional disapproval, and after-the-fact funding pressure. The Guardian reported that the Senate passed a war-powers resolution challenging continued hostilities against Iran, with four Republicans joining Democrats, while Axios reported that the administration submitted an \$87.6 billion supplemental request with most of the money directed to Iran-war-related costs.

The episode illustrates that Congress may object only after the executive has initiated or entrenched a conflict, while later appropriations requests can pressure Congress to fund continuing operations without resolving whether they were authorized.

Resulting Damage

Weak war-powers constraints can allow military operations to begin, expand, and continue without timely, specific, informed, and politically accountable congressional authorization. The resulting damage includes loss of legislative control over war initiation, degraded public accountability, unclear legal obligations for service members and agencies, avoidable escalation risk, and practical normalization of unilateral offensive force as an ordinary presidential tool.

Underlying Weakness

The existing allocation of war powers is weakened by ambiguous statutory triggers, broad emergency framing, stale authorizations, uncertain termination mechanisms, opaque executive legal interpretations, insufficient pre-authorization information, mission expansion, and appropriations ambiguity. These weaknesses interact: even where one safeguard exists, another gap may allow unilateral initiation, continuation, or expansion of military operations without a fresh and specific congressional decision.

Proposal Survey

The War Powers Resolution supplies the baseline reporting, consultation, authorization, and termination architecture, but its disputed "hostilities" threshold, weak enforcement, and constitutionally doubtful concurrent-resolution mechanism leave major gaps. The bipartisan National Security Powers Act of 2021 and House National Security Reforms and Accountability Act provide modern comprehensive models, while AUMF repeal and narrowing bills supply specificity, sunset, mission, and geographic controls.

WAR-001 combines those models in a narrower war-powers vehicle: prior authorization for nonemergency hostilities, a bounded emergency-defense exception, objective definitions, automatic termination and funding consequences, AUMF limits, information and legal-basis requirements, mission-change triggers, and presentment-compliant congressional procedures. Detailed model-by-model comparisons and design takeaways appear in the Annotation.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a binding statutory amendment to the War Powers Resolution, AUMF framework, and related appropriations and reporting rules, enacted through bicameralism and presentment and, if necessary, presidential veto override. A constitutional amendment may be theoretically available, but it is not the first-line remedy.

Repair and Prevention

Congress should consider a comprehensive statutory reform package that:

1. defines hostilities, offensive hostilities, emergency defensive action, introduction into hostilities, imminent hostilities, and covered military operations with greater specificity;
2. expressly prohibits the President from initiating offensive hostilities without specific statutory authorization;
3. requires prior statutory authorization for non-emergency offensive or discretionary hostilities;
4. permits narrow emergency defensive action only where necessary to repel or prevent an imminent attack, rescue or protect U.S. persons from imminent harm, evacuate U.S. persons from imminent danger, or respond to comparable immediate defensive exigency;
5. excludes punitive retaliation, reprisal strikes, deterrent strikes, coercive diplomacy, preventive war, degradation campaigns, regime-change operations, occupation, seizure of territory, sustained targeting campaigns, and conduct-altering operations from unilateral emergency authority;
6. includes an anti-relabeling rule preventing executive labels from controlling statutory classification;
7. requires rapid public and classified reporting to Congress after emergency action;
8. requires prompt congressional authorization for continuation beyond a short emergency window;
9. establishes automatic termination, withdrawal, and force-protection rules when authorization is absent or expires;
10. imposes AUMF specificity, sunset, renewal, mission-scope, geography, enemy-identification, and material-change requirements;
11. requires executive legal-basis certification and disclosure or controlled congressional access to material legal interpretations;
12. requires adequate pre-authorization information before Congress votes on new or renewed force authorization;

13. requires reauthorization for material mission expansion;
14. prohibits treating appropriations, procurement, logistics support, intelligence support, or general defense funding as authorization unless Congress expressly states that authorization;
15. creates automatic funding restrictions for unauthorized hostilities after the statutory deadline;
16. provides expedited congressional procedures for authorization or disapproval votes; and
17. preserves genuinely defensive commander-in-chief action while preventing open-ended unilateral offensive war initiation.

Proposed Legislation

- War Powers and Use-of-Force Authorization Reform Act

Relationship to Adjacent Proposals

WAR-002 through WAR-008 are collapsed into WAR-001 rather than developed as separate issue files or standalone legislative vehicles. They remain useful as subcomponents for source development, drafting checks, and section-by-section review.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 77 / 100 (Review Ready)

Adoption Score: 5 / 12 (Limited Adoption Basis)

Adoption Friction: 70 / 100 (High Resistance)

Required Electoral Environment: sixty-vote-senate

Development Priority: active

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Internal Review Status: Internal project review complete; external validation pending

Last Internal Review: Internal project review

Scoring Standard: 2026-06-27.2; **Scoring Basis:** Current project standard

Next Review: External validation / follow-up internal review

Full Review History: WAR-001 review history

Annotation

Manifestation categories. The cited examples above illustrate nine recurring war-powers categories. These definitions guide coverage and drafting but are not separate manifestations:

- **Ambiguous threshold for “hostilities.”** Presidents may characterize military actions as limited, defensive, advisory, support, logistical, intelligence, cyber, or below the threshold of hostilities. Ambiguity over the statutory trigger allows operations to proceed without clear prior authorization.
- **Emergency framing.** The President may invoke emergency self-defense, protection of U.S. persons, counterterrorism, force protection, deterrence, national security necessity, or preemptive defense to initiate force before Congress can deliberate. Emergency authority may be necessary in genuine exigencies, but broad or indefinite use of that framing can swallow Congress’s authorization role.
- **Offensive-action relabeling.** Presidents may characterize punitive, deterrent, coercive, degradation, or retaliatory strikes as defensive or limited. Without a statutory anti-relabeling rule, the executive can treat offensive policy objectives as emergency defensive action.
- **Ineffective automatic termination.** A reporting-and-clock framework is insufficient if the clock is contested, if withdrawal obligations are vague, if funding remains available, or if Congress lacks an effective forced-vote mechanism.
- **Stale or overbroad AUMFs.** Broad authorizations can be repurposed over time to cover new enemies, geographies, methods, or objectives not clearly contemplated by Congress.
- **Executive legal-interpretation control.** If the executive branch controls the operative interpretation of hostilities, imminence, self-defense, emergency defense, associated forces, mission scope, and authorization, congressional constraints can be weakened without public statutory violation.
- **Insufficient information before commitment.** Congress may be asked to authorize or tolerate force without adequate information about legal basis, intelligence, expected duration, escalation risk, civilian harm, cost, alternatives, allied participation, mission objectives, and exit criteria.
- **Mission expansion.** Even where Congress authorizes one operation, the executive may expand the mission by changing the enemy, geography, objective, duration, method, or level of force beyond the original authorization.

- **Appropriations ambiguity.** Funding military operations may be characterized by the executive as implied congressional support, even where Congress did not specifically authorize hostilities. This can convert general or emergency funding into practical authorization by implication.

Additional design rationales. War-powers debates frequently arise after force is already initiated or after the executive branch has framed the factual and legal basis. Libya, Syria, Iran-related disputes, and AUMF renewal or repeal debates illustrate recurring congressional complaints that information can be incomplete, classified, late, or filtered through executive legal conclusions. This supports pre-authorization information requirements and classified-annex procedures.

Post-strike transparency presents a related design question. Executive Order 13862 revoked an earlier requirement for an annual public summary of strikes and assessed combatant and noncombatant deaths outside areas of active hostilities, while expressly recognizing that a separate statutory civilian-casualty report to Congress remained in force. The episode illustrates why essential reporting should rest on statute rather than revocable executive policy, while also showing that the statutory reporting safeguard was not displaced.

Congress may also continue funding military personnel, logistics, equipment, intelligence, evacuation, medical care, or withdrawal-related needs while disagreeing with the legality or wisdom of the operation. Executives may then argue that continued funding reflects congressional acquiescence or implied authorization. This supports express-authorization language and a rule that troop support, evacuation, medical care, force protection, intelligence, and withdrawal funding do not themselves authorize hostilities.

Finally, war-powers enforcement often depends on whether congressional majorities are willing to confront a President, whether leadership allows votes, whether committees act, and whether members are willing to risk political responsibility for limiting or ending military action. Even when members object, oversight may fail if there is no mandatory vote, minority-triggered process, reporting obligation, or funding consequence. This supports expedited procedures, minority-triggered review, mandatory reporting, funding consequences, and presentment-compliant votes.

Detailed design and proposal-survey support.

Statutory reform before constitutional amendment. A constitutional amendment is not the least-complex first-line remedy. The constitutional allocation of war powers is contested, but Congress already possesses substantial legislative tools: the power to declare war, authorize force, regulate the armed forces, appropriate or withhold funds, require reporting, and establish statutory conditions for military operations.

The least-complex adequate remedy is therefore to strengthen the War Powers Resolution, AUMF framework, and related appropriations and reporting rules through ordinary federal legislation. Even if judicial enforcement remains uncertain or untested, clearer statutory commands can create legal, institutional, appropriations, and political pressure sufficient to constrain unilateral or unauthorized uses of force.

No unilateral offensive action. The President should not be permitted to initiate offensive hostilities without specific statutory authorization. Unilateral presidential force should be limited to emergency defensive action: repelling an actual attack, preventing a specific and temporally urgent imminent attack, rescuing or protecting United States persons from imminent harm, evacuating United States persons from imminent danger, or protecting United States forces during withdrawal or immediate defense.

Offensive hostilities should include punitive retaliation, reprisal strikes, deterrent strikes, coercive diplomacy, preventive war, degradation campaigns, regime-change operations, occupation, seizure of territory, sustained targeting campaigns, and operations primarily intended to alter the conduct, capability, or political position of a foreign state, organization, or armed group.

An operation should not qualify as emergency defensive action merely because the executive branch labels it limited, targeted, defensive, preemptive, deterrent, counterterrorism, force protection, national security, humanitarian, or necessary to preserve credibility. Classification should turn on objective features: purpose, factual predicate, imminence, scope, duration, and reasonably foreseeable effects.

Presentment and veto override. A binding amendment to the War Powers Resolution or successor statute is ordinary legislation. It must pass both Houses and be presented to the President for signature or veto under Article I, Section 7. If vetoed, Congress may still enact the reform by overriding the veto with a two-thirds vote of both Houses.

A standalone concurrent resolution is not an adequate binding remedy. *INS v. Chadha* held that Congress cannot impose binding legal consequences through a legislative veto outside bicameralism and presentment. A concurrent resolution may express congressional judgment, but it cannot by itself create legally binding obligations or terminate hostilities without presentment where binding legal consequences are intended. WAR-001 should therefore focus on statutory rules enacted through bicameralism and presentment, with veto override as the constitutional backstop.

Mature reform field. War powers reform is a mature and heavily debated field. WAR-001 should not proceed as though ARRP is drafting on a blank slate. The project should begin with a comparative survey of prior proposed legislation, scholarship, and historical uses of force before selecting final legislative language.

Relevant models include reforms to the War Powers Resolution, repeal or narrowing of obsolete authorizations for use of military force, proposals to define “hostilities” more clearly, funding cutoffs for unauthorized operations, reporting reforms, expedited congressional procedures, and statutory rules preventing appropriations from being treated as implied authorization.

Detailed proposal survey.

War Powers Resolution of 1973. The War Powers Resolution is the baseline statutory model. It sought to check unilateral presidential use of force by requiring consultation, requiring a report within 48 hours when forces are introduced into hostilities or imminent hostilities, and requiring termination after 60 days plus a 30-day withdrawal period absent congressional authorization. It was enacted as Public Law 93-148 after President Nixon vetoed the resolution, as summarized by the House History, Art & Archives office.

Contribution to WAR-001: Establishes the core architecture of reporting, consultation, authorization, and termination.

Limitations: The meaning of “hostilities” has been contested, the concurrent-resolution mechanism is constitutionally doubtful after *INS v. Chadha*, presidents have often reported “consistent with” rather than “pursuant to” the Resolution, and judicial enforcement has been weak.

National Security Powers Act of 2021. The National Security Powers Act of 2021, introduced by Senators Chris Murphy, Mike Lee, and Bernie Sanders, proposed a broad rebalancing of national-security powers, including war powers, arms sales, and emergency authorities. It was a major bipartisan effort to reclaim congressional authority over national-security decisions.

Contribution to WAR-001: Provides a modern comprehensive model for congressional reassertion, especially in pairing war-powers reform with related national-security checks.

Limitations: Its breadth may make enactment more difficult. WAR-001 may need a narrower war-powers-and-AUMF reform vehicle if the project seeks the least-complex adequate remedy.

National Security Reforms and Accountability Act. The House companion reform effort, the National Security Reforms and Accountability Act, associated with Representative Jim McGovern, similarly sought to update congressional national-security controls. The House version is relevant because it reflects bicameral interest in a broader national-security-powers reform framework.

Contribution to WAR-001: Confirms that war-powers reform has serious House-side legislative models and should be studied before drafting.

Limitations: Like the Senate model, broader national-security reform may combine too many distinct topics for a narrow A-03 remedy.

No More Presidential Wars Act and similar authorization-first resolutions. The No More Presidential Wars Act and related resolutions emphasize the principle that the President should seek congressional authorization before engaging United States Armed Forces in hostilities against identified adversaries. These proposals are useful as clear statements of the authorization-first norm.

Contribution to WAR-001: Provides strong declaratory language that unilateral offensive war initiation is inconsistent with Congress's constitutional role.

Limitations: Sense-of-Congress or House-only resolutions are not by themselves adequate binding remedies. WAR-001 needs enforceable statutory mechanisms, not merely statements of principle.

AUMF repeal and narrowing proposals. Repeated efforts to repeal or narrow older authorizations for use of military force, including Iraq AUMF repeal efforts, address a core component of the A-03 defect: presidents can rely on stale, broad, or geographically/missions-shifted authorizations to justify new operations.

Contribution to WAR-001: Demonstrates the need for specificity, sunsets, renewal requirements, mission limits, geographic limits, and no implied successor-force or associated-force expansion without Congress.

Limitations: AUMF repeal alone does not solve unilateral initiation where no AUMF is invoked; it must be paired with initiation, termination, information, interpretation, mission-expansion, and appropriations rules.

Contemporary war-powers resolutions. Recent war-powers resolutions directed at specific conflicts demonstrate that Congress continues to use the War Powers framework, but they also reveal the weakness of relying on concurrent resolutions or politically fragile disapproval mechanisms. Some recent examples have been described as symbolic or legally uncertain because they do not necessarily go through presentment and veto override.

Contribution to WAR-001: Shows the continuing need for an enforceable mechanism that does not depend on constitutionally doubtful legislative veto structures.

Limitations: Conflict-specific resolutions are reactive and often occur only after hostilities have begun.

Survey takeaways for ARRP. ARRP should not begin by drafting a wholly original war-powers code. The project should synthesize existing models around a narrow set of design principles:

1. prior statutory authorization for non-emergency hostilities;
2. prohibition on unilateral offensive hostilities;
3. narrow emergency defensive exception;
4. clearer definition of hostilities, offensive hostilities, emergency defensive action, and covered operations;
5. anti-relabeling rule preventing labels such as limited, targeted, deterrent, counterterrorism, or force protection from substituting for statutory criteria;
6. automatic termination and withdrawal rules where authorization is absent or expires;

7. AUMF specificity, sunsets, renewal, mission limits, geographic limits, and no implied successor-force expansion;
8. disclosure or certification of executive legal interpretations;
9. pre-authorization information requirements;
10. mission-expansion and material-change reauthorization triggers;
11. no implied authorization from appropriations unless Congress says so expressly;
12. funding consequences for unauthorized hostilities;
13. expedited congressional procedures;
14. presentment-compliant mechanisms rather than standalone concurrent-resolution termination; and
15. political and appropriations consequences even where courts decline review.

Collapsed A-03 Structure. WAR-001 is the comprehensive A-03 issue. WAR-002 through WAR-008 are retired as separate candidate issue tracks and merged into WAR-001.

Mature Reform Field. WAR-001 should include a proposal-survey phase before final legislative drafting. Prior war powers reform bills and scholarship should be compared rather than ignored.

No Unilateral Offensive Action. The central substantive principle is that the President may act alone to defend against immediate harm, but may not act alone to initiate, punish, deter, coerce, degrade, or reshape foreign actors through offensive military force.

Survey Status. Initial survey completed. Further source development should still review bill text and committee materials before drafting final legislation.

Source-Development Status. Initial examples have been incorporated into this issue and retained in the WAR-001 source-development notes. Further work should add precise citations, bill numbers, OLC opinion references, CRS report references, and committee materials.

Quality Score. The internal project review scores the proposal at 77/100 (Review Ready). Component score: Structural 8/8; Evidence 9/12; Legal Fit 8/10; Prior Proposal 8/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 6/8; Drafting 7/8; Cogency 6/6; Adoption 5/12; Project Integration 4/4; External Review 0/4. The score is current under scoring standard 2026-06-27.2. Review Ready means ready for knowledgeable external critique, not publication-ready or lawmaker-circulation-ready; external validation, legal durability, operational definitions, funding mechanics, expedited procedures, budget/workload evidence, and source pinpoints remain incomplete.

Adoption Score. 5/12 (Limited Adoption Basis). The proposal benefits from bipartisan prior-proposal models and a clear ordinary-legislation vehicle, but the internal project review did not locate proposal-specific polling, current sponsor strategy, state analogue evidence, or a developed coalition map.

Prior Reform Model Alignment. The internal project review confirmed that S.2391 and H.R.5410 contain close functional analogues for definitions, authorization requirements, funding termination, and expedited procedures, with H.R.5410 also expressly including judicial review. WAR-001 should be treated as a synthesis-and-narrowing exercise rather than an original draft written on a blank slate.

Adoption Friction. The preliminary internal assessment places the proposal at 70/100 (High Resistance). War-powers reform has documented bipartisan prior-proposal support, but it directly constrains presidential military discretion, requires ordinary federal legislation capable of clearing Senate constraints, and would likely face executive-branch, national-security, procedural, and operational objections.

Required Electoral Environment. The minimum pathway is *sixty-vote-senate* for ordinary federal legislation, with *plausible-after-wave* viability and *stage* as the pathway adjustment. The further internal review should test whether narrower modules, such as AUMF sunset rules, appropriations anti-implied-authorization language, reporting access, or expedited-procedure reforms, could move separately if the full package is too broad.

Statutory First-Line Remedy. A constitutional amendment is not necessary as the initial remedy. Congress can create meaningful legal and political constraints by ordinary legislation.

Judicial Enforcement Uncertainty. Some war powers disputes may remain difficult to litigate. The statutory remedy should be designed to create political, appropriations, reporting, internal executive-branch, and congressional-process consequences even where courts decline review.

Presentment Required. Binding reform requires ordinary legislation subject to presidential signature or veto. Congress may override a veto by a two-thirds vote of both Houses.

Concurrent Resolution Insufficient. A standalone concurrent resolution should not be treated as a binding mechanism for imposing legal consequences.

Working Draft. A first working draft has been created and should be refined against prior reform models before being treated as mature legislative text.

Source Development Pending. Further source development should review the War Powers Resolution of 1973, *INS v. Chadha*, post-1973 uses of force, Office of Legal Counsel opinions, National Security Powers Act of 2021, National Security Reforms and

Accountability Act, No More Presidential Wars Act, AUMF repeal proposals, funding-cutoff precedents, and congressional expedited-procedure models.

A-04 — Judicial Independence and Enforcement

Generalized Institutional Concern

The federal judiciary's authority to interpret and apply law is not matched by a sufficiently independent, reliable, adequately resourced, and consistently routed enforcement structure capable of ensuring timely executive compliance during interbranch conflict, nor by a complete Supreme Court ethics, disclosure, complaint-review, and recusal framework.

Active Issues

- **JUD-001 — Executive Dependence of Judicial Enforcement**
- **JUD-005 — No Automatic Public Notice of Executive Noncompliance**
- **JUD-009 — Supreme Court Ethics, Recusal, and Transparency**
- **JUD-010 — Judicial Branch Capacity, Funding, and Emergency Docket Resilience**
- **JUD-011 — Executive Nullification of Congressional Mandates**
- **JUD-012 — Government Action Insulated from Judicial Review**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **JUD-002, JUD-003, JUD-004, JUD-006, JUD-007** — Merged into JUD-001. JUD-007 supplies the evasion-through-substitution, reorganization, and nominally revised directive application.
- **JUD-008** — Merged into JUD-005 for automatic public compliance verification, with JUD-001 retaining direct evidentiary and enforcement authority.

Issue Boundaries

JUD-010 concerns whether judicial-branch appropriations, judgeships, support staffing, court security, magistrate and special-master capacity, court technology, and emergency-docket procedures are sufficient for timely constitutional and statutory adjudication during high-volume executive-branch litigation. It is distinct from JUD-001, which concerns enforcement of court orders after judgment or injunction, and JUD-009, which concerns Supreme Court ethics, disclosure, complaint review, and recusal, including presidential-party litigation.

The candidate was admitted from HOR-017 after preliminary review of judicial-branch appropriations, court capacity, and whether increased judicial bandwidth is needed to prevent court delay from becoming a practical limit on constitutional enforcement. Initial source leads include the vetoed bipartisan JUDGES Act of 2024, which would have added federal district judgeships over time; Business Insider reporting that the judiciary's FY2025 appropriation fell below the Judicial Conference request while security funding remained flat; and Washington Post reporting that lower federal courts sought additional security funding that was not provided on the same terms as Supreme Court security funding.

JUD-011 concerns executive nullification of enacted congressional mandates. It directly creates a generally applicable civil cause of action, eligible-plaintiff rules, anti-nullification threshold, D.D.C. forum, judicial assignment, procedure, relief, administration, and funding without requiring subject-specific opt-in legislation. REG-001 and FUND-001 are separate standalone alternatives Congress may enact if it rejects the general remedy. After ratification of its separate amendment, DOJ-007's preferred implementing Act may add a firewalled Investigative Counsel component that reuses JUD-011's roster and nondecisional infrastructure; its standalone Act remains independently enactable. JUD-010 remains the primary home for judiciary-wide capacity and funding adequacy.

JUD-005 concerns the absence of automatic, simultaneous, and public notice after a court formally finds material or willful executive noncompliance. JUD-001 remains the home for direct enforcement and is JUD-005's preferred coordinated vehicle. DOJ-007 is only a conditional escalation path where its independent serious-misconduct and extraordinary-conflict criteria are satisfied. Congress's ultimate political response is outside JUD-005's scope.

JUD-012, admitted from HOR-036, concerns legally consequential federal action for which no effective judicial route remains to decide the underlying legality. It excludes political-question decisions, ordinary merits losses, preliminary-relief denials, and cases preserving a realistic substitute plaintiff, claim, forum, or later review. Subject-specific proposals retain the underlying rights and duties; JUD-012 owns only the cross-cutting review-access defect.

JUD-007 is integrated into JUD-001 because substitution of officials, reorganization, or a nominally revised directive is a method of evading an existing judicial command rather than a distinct enforcement institution. JUD-008 is integrated into JUD-005 because public compliance verification is the reporting and notice layer; evidence needed to determine compliance remains within JUD-001's direct enforcement process.

Notes

JUD-001, JUD-005, JUD-009, and JUD-011 are developed. Targeted consolidation reviews preserve JUD-001 at 78/100 and JUD-005 at 63/100 without changing their recorded review history. JUD-009 was materially expanded through consolidation of HOR-019 and retains its historical 77/100 score only provisionally pending a targeted internal revision and remedy-fit review. JUD-005 next requires a legal-and-implementation review of Title 28 coverage, transmission mechanics, protected information, congressional distribution, current comparators, workload, and JUD-001 fit. JUD-011 remains 82/100 and Review Ready pending qualified review. JUD-010 remains a provisional capacity proposal requiring full source development. JUD-012 is in development and unscored; additional supporting cases must be sought before remedy selection to test whether its effects and any coherent cross-cutting remedy are sufficiently broad.

JUD-001 — Executive Dependence of Judicial Enforcement

Issue Snapshot

Problem: Executive defiance can blunt court orders.

Repair: Impose named-official contempt accountability and automatic public notice.

Vehicle: Civil contempt statute (draft).

Institutional Anomaly

Federal courts can issue binding judgments and orders against executive officials, but practical enforcement often depends on executive-branch compliance, executive-controlled personnel, or ordinary contempt tools that may be too slow, diffuse, or institutionally cautious during a separation-of-powers crisis.

The anomaly is not that every adverse executive-party order requires extraordinary enforcement. The problem is that, when executive officials resist, delay, narrow, or selectively implement judicial relief, the judiciary lacks a fast and reliable civil-enforcement structure that identifies accountable officials and imposes consequences that cannot be absorbed by the agency or taxpayers.

Manifestation of the Failure

Alien Enemies Act removal flights — order-transmission dispute

In March 2025, litigation challenging removals under the Alien Enemies Act produced an immediate conflict over whether removal flights had to stop or turn around after a district-court order and oral direction. Public reporting described the government as arguing that the oral direction was not enforceable as an injunction and that the flights were outside the United States by the time the written order issued. The episode illustrates the risk that, during fast-moving executive action, no named responsible official is immediately accountable to certify receipt, transmit the court's order, pause implementation, preserve records, and report compliance facts to the court. See *The Guardian*, April 16, 2025; *Washington Post*, March 20, 2025.

Abrego Garcia — unclear responsibility for executing return obligations

After Kilmar Abrego Garcia was removed to El Salvador despite protection against removal there, federal litigation required the government to facilitate his return. Public reporting described a Justice Department lawyer acknowledging in court that Abrego Garcia should not have been removed and that the lawyer lacked answers from government officials about why the government could not return him. Later proceedings involved expedited discovery, assertions of privilege, and disputes over whether the government was meaningfully complying. See *Politico*, April 5, 2025; *Associated Press*, April 2025.

The manifestation is the post-order enforcement problem rather than the underlying removal error: the court had to seek information from within the executive branch while responsibility, authority, and implementation capacity remained unclear.

Melgar-Salmeron — removal after an appellate stay

In May 2025, Jordin Alexander Melgar-Salmeron was deported to El Salvador shortly after the Second Circuit had suspended his removal. Reporting on the later appellate order described the government's explanation as a confluence of administrative errors. The court ordered the government to facilitate his return and to report his location, custodial status, and the steps and timeline for return. See *Associated Press*, June 24, 2025; *The Guardian*, June 24, 2025.

This example illustrates how noncompliance may arise from operational fragmentation rather than express refusal. In either case, the enforcement gap is the absence of an identifiable compliance chain after a judicial stay.

Resulting Damage

Weak enforcement of judicial orders undermines the rule of law, encourages strategic delay, burdens prevailing parties with repeated enforcement litigation, and teaches future officials that court orders may be treated as negotiable. In high-stakes public-law cases, delayed or incomplete compliance can defeat the remedy even if the court's legal ruling remains formally intact.

Underlying Weakness

Existing contempt doctrine gives courts important authority, but it does not always supply a structured, predictable, and personally accountable path for executive-party noncompliance. In particular, the system may lack:

- mandatory identification of a senior official responsible for implementation;
- sworn compliance plans and status reports;
- expedited show-cause proceedings for alleged noncompliance;
- calibrated civil-contempt penalties tied to actual authority and practical ability to comply;
- a rule preventing contempt penalties for willful defiance from being shifted to the agency, Treasury, or taxpayers; and
- automatic notice to inspectors general and Congress when executive noncompliance becomes persistent or willful.

Proposal Survey

Courts already possess contempt authority, and federal rules permit enforcement of judgments and appointment of masters in appropriate cases. See 18 U.S.C. § 401, Federal Rule of Civil Procedure 53, and Federal Rule of Civil Procedure 70. A Congressional Research Service overview surveys enforcement of court orders against executive officials and Congress's authority to alter the governing enforcement mechanisms.

More complex proposals could create an independent judicial enforcement service or nonexecutive prosecution trigger. JUD-001 starts with the narrower model: strengthen civil contempt and compliance reporting, make responsible officials identifiable, and require personal payment where willful noncompliance is found.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a statutory executive-compliance and civil-contempt framework that makes existing judicial authority faster, clearer, and personally accountable.

This approach is narrower than creating an independent judicial enforcement service. It uses familiar tools: responsible-officer designation, sworn compliance plans, expedited hearings, civil-contempt sanctions, fee shifting, remedial-cost awards, and notice to oversight institutions. It also avoids making criminal prosecution initiation part of this issue. Non-executive initiation of contempt or related prosecutions belongs in the separate congressional and prosecution-independence issues, including CONG-001.

Repair and Prevention

Congress should strengthen civil contempt and compliance tools in cases involving federal executive officials, while preserving ordinary appeal, stay, due-process, privilege, and national-security safeguards.

The remedy should authorize a court entering coercive relief against the United States, a federal agency, or a federal officer to require designation of a named responsible official with practical authority over compliance. That official should file a sworn implementation plan and periodic compliance reports when ordered by the court.

Upon a credible allegation of noncompliance, the court should have authority to set an expedited show-cause hearing, require sworn declarations from responsible officials, make factual findings regarding practical ability to comply, and impose coercive civil-contempt remedies where noncompliance is willful or unjustified.

Civil-contempt monetary penalties for willful noncompliance should be borne personally by the named responsible official after notice, an opportunity to be heard, and a finding that the official had legal or practical authority to comply or to take materially necessary compliance steps. Such penalties should not be paid, reimbursed, indemnified, or otherwise shifted to agency funds, appropriated funds, the Judgment Fund, or other public money, except pursuant to a specific later act of Congress.

Material agency noncompliance or willful noncompliance by a responsible official should trigger simultaneous notice to the relevant inspector general, the Attorney General, congressional majority and minority recipients, and the Administrative Office of the United States Courts. A searchable register should display the public finding and give equal prominence to a later stay, reversal, vacatur, modification, or compliance determination. This JUD-005 function is informational and remedial, not a substitute for judicial enforcement or an automatic investigative referral; JUD-001's personal sanctions still require willfulness.

Legislation Crosswalk

The bill addresses fast-moving executive action after judicial intervention through responsible-official designation, immediate compliance plans, preservation duties, and expedited show-cause proceedings.

It addresses unclear executive responsibility by requiring named officials to identify their authority, supervisors, necessary cooperating components, and practical compliance steps.

It addresses agency-funded contempt weakness by requiring personally payable monetary penalties for willful noncompliance and prohibiting payment, reimbursement, indemnification, offset, or insurance from public funds absent a later specific Act of Congress.

It addresses operational fragmentation by requiring sworn reporting from officials with practical control and by preserving court authority to obtain evidence about custody, records, directives, and implementation chains.

It addresses overlap with prosecution-independence proposals by preserving existing criminal-contempt and prosecution law without creating a new non-executive prosecution mechanism.

Proposed Legislation

- Executive Compliance and Civil Contempt Accountability Act

This Act is also the preferred coordinated vehicle for JUD-005. It combines direct enforcement with automatic congressional transmission and a public status register. DOJ-007 remains conditional on its separate serious-misconduct and extraordinary-conflict requirements.

Budgetary Impact Statement

The proposal would add compliance hearings, clerk transmission, protected-information handling, status updates, and an Administrative Office public register to existing court functions. It creates no new court or investigative body. No reliable dollar estimate is assigned pending judiciary workload and systems data.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 78 / 100 (Review Ready)

Adoption Score: 5 / 12 (Limited Adoption Basis)

Adoption Friction: 78 / 100 (High Resistance)

Required Electoral Environment: sixty-vote-senate

Development Priority: active

Internal Review Status: Internal project review and current-case remedy-fit review complete; external validation pending

Last Internal Review: Manifestation-polish review (2026-07-15)

Scoring Standard: 2026-06-27.2; **Scoring Basis:** Current project standard

Revision Review: Current; *Phang* retained as a conditional monitoring item rather than a contempt manifestation

Next Review: External validation / follow-up internal review, including public-register administration and continued *Phang* docket monitoring

Full Review History: JUD-001 review history

Annotation

Adjacent courtroom-authority dispute. In March 2026, a federal judge ejected Mark Coyne, the head of appeals in the New Jersey U.S. Attorney's Office, from a sentencing hearing after he had not formally entered an appearance. Reporting described resulting questions about office leadership and an order requiring three office leaders to testify about the chain of command. See Defender Services Office, March 17, 2026. The episode supports clear identification of government counsel and supervisors, but it does not independently establish disregard of a judicial command and therefore is not presented as a JUD-001 manifestation.

Emerging Epstein-files enforcement test. On June 25, 2026, the D.D.C. granted a preliminary injunction in *Phang v. Blanche*, requiring production or a showing of cause for specified records and action concerning foreign-language materials and the statutory redaction log. DOJ filed a response to the show-cause portions. See the case docket. The current posture does not establish contempt or willful noncompliance because several directives allowed DOJ to show cause and the court has not made the finding JUD-001 would require for personal sanctions. If a definite compliance command is later disobeyed by an official with notice and practical ability to comply, the matter could move from JUD-011's statutory-nullification stage into JUD-001's existing-order enforcement stage.

Noncompliance and sanction categories. Executive noncompliance may appear as refusal to act, delayed implementation, incomplete implementation, evasive interpretation of an order, failure to identify the official responsible for compliance, shifting responsibility among agencies or components, or continued reliance on a superseded directive while litigation continues. Ordinary institutional sanctions may not create adequate pressure where no individual official is made answerable, where agency budgets absorb monetary consequences, where compliance information remains inside the executive branch, or where appellate delay allows the practical effect of noncompliance to become irreversible. These categories synthesize the cited proceedings and define the remedial problem; they are not separate manifestations.

Detailed audit-tier proposal support. The internal project review confirms that the linked draft already follows the project preference for amending existing law. It amends 18 U.S.C. § 401 and 31 U.S.C. § 1304 rather than creating a wholly new enforcement title. The further internal review should source-check the civil-contempt doctrine, personal-payment rule, Judgment Fund limitation, and good-faith/impossibility safeguards.

The internal project review confirms that civil-contempt doctrine supports coercive and compensatory remedies, but only within due-process and civil/criminal-contempt limits. Bagwell distinguishes civil sanctions from criminal sanctions by asking whether the sanction is remedial, compensatory, or coercive and purgeable. Shillitani supports coercive civil confinement where compliance remains possible. Spallone cautions courts to seek compliance from the governmental entity before moving against individual officials. Hutto supports fee-shifting or cost remedies where official resistance prolongs unlawful conditions. These authorities support JUD-001's compliance-reporting and coercive-remedy structure, while warning that the personal-payment rule must remain tightly limited to willful, purgeable, due-process-protected noncompliance.

The internal current-status review strengthens, rather than moots, the proposal. The Washington Post reported on April 14, 2026 that a divided D.C. Circuit panel again blocked Judge Boasberg's contempt inquiry into the Alien Enemies Act deportation flights, including on grounds tied to order specificity and the limits of further judicial investigation. That development reinforces the proposal's emphasis on clear responsible-official designation, explicit compliance duties, and statutory civil-contempt standards. The internal project review also verified a primary Second Circuit order in *Melgar-Salmeron*, which ordered the government to facilitate return and provide location, custody, step, and timeline information after removal despite a stay.

The internal project review identified a useful adverse comparator. During the 2025 budget-reconciliation fight, public reporting described a House-passed contempt-enforcement restriction that would have barred enforcement of contempt citations for failure to

comply with an injunction or temporary restraining order where no Rule 65(c) security had been posted. See Washington Post, June 5, 2025. The internal project review did not verify that this contempt restriction was enacted in Public Law 119-21, so it is treated as a hostile prior vehicle and political-risk marker, not current law. It nevertheless shows that judicial-contempt enforceability has already been a live legislative battleground.

Quality Score. The proposal is scored at 78 / 100 after the internal project review because its institutional diagnosis, existing-law vehicle, civil-contempt doctrine grounding, manifestation support, adverse legislative comparator, drafting quality, and issue-to-legislation alignment are strong enough for review. It is not publication-ready because it still needs official source substitution where possible, qualified legal or legislative-counsel review, a fuller prior-proposal survey, and final scrutiny of personal payment by federal officers.

Adoption Score. Adoption is scored at 5 / 12 because the proposal has a concrete existing-law vehicle, a staged pathway, an institutional rationale grounded in judicial enforcement, and a verified recent legislative fight over contempt enforceability. It still lacks proposal-specific polling, sponsor base, outside reviewer, stakeholder coalition, or direct supportive prior-bill analogue.

Adoption Friction. Friction is high because the proposal would impose personal financial consequences on named executive officials, constrain executive-branch noncompliance tactics, and likely draw separation-of-powers objections, litigation risk, and resistance from administrations that expect to defend emergency or high-discretion executive action. The internal project review increased friction slightly because recent legislative activity included an adverse contempt-enforcement restriction, showing organized resistance to stronger judicial enforcement.

Required Electoral Environment. Ordinary federal legislation likely requires a Senate environment capable of overcoming filibuster constraints. The proposal may be staged through narrower contempt-reporting, responsible-official designation, Judgment Fund, or appropriations-oversight provisions if the full personal-payment model proves too politically or legally difficult.

Civil-Contempt Doctrine. The strongest doctrinal support is for responsible-official designation, sworn compliance reporting, compensatory costs, and coercive sanctions that can be purged by compliance. The highest-risk feature is personal payment by a named federal official, which should remain tied to notice, clear and convincing evidence, practical ability to comply, willfulness, and an opportunity to purge.

Implementation and Budget. The internal project review did not identify a need for a new standing enforcement office or direct appropriation. The likely budgetary effect remains court, agency, inspector-general, and congressional-notice workload. The further internal review should test whether additional reporting, secure-information handling, or appellate-expedition provisions would require appropriations or administrative infrastructure.

Personal Payment. The personal-payment rule is central. A contempt fine that can be paid by an agency, reimbursed by the Treasury, or treated as a litigation cost will not reliably deter willful executive defiance. The rule should be limited to willful noncompliance after due process and a finding of practical ability to comply, so that officials are not punished personally for good-faith legal disputes, impossibility, ambiguity, privilege review, or compliance obligations outside their control.

Good-Faith Disputes. The framework should preserve ordinary mechanisms for seeking clarification, modification, stay, mandamus, or appeal. It should not punish officials for making timely, nonfrivolous legal arguments about the scope, legality, or feasibility of an order.

Relationship to JUD-003. JUD-003 concerned delay as functional defiance. It is retired into JUD-001 because the developed remedy addresses delay through responsible-official designation, sworn implementation plans, expedited show-cause hearings, compliance reporting, and coercive civil-contempt tools.

Relationship to JUD-004. JUD-004 concerned whether the judiciary needs an independent enforcement officer or service. It is retired into JUD-001 because JUD-001 starts with the less complex remedy of strengthening contempt and compliance tools. An independent enforcement service remains a fallback if personal civil contempt and compliance supervision prove inadequate.

Relationship to JUD-006. JUD-006 concerned uncertainty regarding contempt and coercive sanctions against senior executive officials. It is retired into JUD-001 because JUD-001 identifies executive dependence as the broader structural defect and treats contempt strengthening as the initial remedy.

Relationship to JUD-007. JUD-007 concerned evasion through substitution of officials, reorganization, or nominally revised directives. It is merged into JUD-001 because the existing bill already authorizes responsible-official designation, successor-bound relief, sworn plans and reports, preservation, targeted fact development, and civil-contempt remedies against further evasion. A materially new directive remains subject to ordinary merits review rather than automatic treatment as contempt.

Relationship to CONG-001. CONG-001 concerns congressional access to executive information, subpoena enforcement, privilege defenses, contempt routing, and expedited review. JUD-001 should cross-reference that framework rather than duplicate a congressional-access remedy inside a proposal focused on enforcement of judicial commands.

Source Development Pending. Further development should review 18 U.S.C. § 401, 28 U.S.C. § 1361, 28 U.S.C. § 566, Federal Rule of Civil Procedure 53, Federal Rule of Civil Procedure 70, civil-contempt doctrine, the Judgment Fund, federal indemnification practice, inspector-general notification duties, and constitutional limits on imposing personal financial liability on federal officers.

JUD-005 — No Automatic Public Notice of Executive Noncompliance

Issue Snapshot

Problem: Judicial findings of executive noncompliance lack a uniform public notice route to Congress.

Repair: Require simultaneous congressional transmission, a searchable public register, and later status updates.

Vehicle: Use JUD-001 with conditional DOJ-007 escalation (preferred), or enact a standalone notice Act.

Institutional Anomaly

Federal courts publish orders through individual case dockets, but federal law does not provide a general, automatic process for transmitting a formal finding of material or willful executive noncompliance simultaneously to congressional majority and minority recipients and placing an accurate public version in one searchable register.

The institutional defect is the missing information route, not Congress's political response. Congress remains free to investigate, legislate, use its internal procedures, or decline to act. Automatic notice instead ensures that neither executive control of information nor congressional inaction can keep a court's authenticated finding practically obscure.

Manifestations of the Failure

General contempt law contains no congressional-notice rule

18 U.S.C. § 401 authorizes federal courts to punish disobedience or resistance to lawful orders. Federal Rule of Criminal Procedure 42 governs criminal-contempt notice and prosecution. Neither reviewed provision establishes a general duty to transmit an executive-branch noncompliance finding to Congress or to a central public register.

Significant compliance disputes remain distributed across case dockets

The executive-compliance episodes collected in JUD-001—including removal after judicial intervention, disputes over return obligations, and removal despite an appellate stay—required courts to determine who had authority, what officials knew, and whether implementation complied with operative orders. Those proceedings may become nationally consequential, but their findings and later appellate status remain distributed among individual dockets and reporting rather than routed through a uniform interbranch notice system.

The same distribution problem is visible in *Phang v. Blanche*, where the D.D.C. granted preliminary relief concerning DOJ's compliance with the Epstein Files Transparency Act and later filings have required continued docket monitoring. The case has not yet triggered JUD-005: a preliminary merits assessment and production-or-show-cause order are not an express finding that DOJ materially or willfully failed to comply with the court's own command. If such a finding is later entered, JUD-005 would require automatic notice and status-aware public registration.

Existing judicial reporting models are subject-specific

Congress already requires the Administrative Office of the United States Courts to submit specified reports and data to Congress, and requires some judicial orders to be publicly available. See 28 U.S.C. § 604(a)(3)–(4), (13), and (20) and 28 U.S.C. § 360(b). These provisions demonstrate administrability, but they do not cover executive noncompliance findings generally.

Resulting Damage

Without automatic, simultaneous, and status-aware notice:

1. congressional oversight may depend on committee leadership, media attention, or manual docket monitoring;
2. majority and minority recipients may receive materially different information or receive it at different times;
3. the public may see an initial finding without an equally prominent notice that it was stayed, modified, reversed, vacated, or satisfied;
4. politically salient facts may be filtered through partisan characterization rather than a court's own written findings; and
5. voters may be unable to distinguish lack of knowledge from a conscious congressional decision not to respond.

Underlying Weakness

Court dockets serve adjudication, not standardized interbranch accountability. Existing contempt law governs judicial authority and procedure; existing Administrative Office reporting duties concern selected court business. No reviewed general provision joins the two functions by automatically routing a qualifying executive-noncompliance finding to Congress and maintaining a durable public record of both the finding and its later status.

Proposal Survey

The closest statutory models are existing Administrative Office duties to publish judicial information and transmit reports to Congress. 18 U.S.C. § 2519, for example, requires judges to report specified wiretap orders to the Administrative Office and requires an annual compiled report to Congress. Current proposals also use subject-specific notice: H.R. 5220 in the 119th Congress would require officials to report specified impoundment violations to Congress, the Comptroller General, and inspectors general. Neither model supplies this proposal's general, court-triggered route.

Least-Complex Adequate Remedy

The least-complex adequate remedy is automatic clerk transmission after a court makes a written qualifying finding, simultaneous delivery to majority and minority recipients, and an Administrative Office register that gives equal prominence to later appellate and compliance developments. The trigger should be judicial and objective; no legislator should be able to manufacture it through an allegation or unilateral request.

Repair and Prevention

The preferred coordinated remedy is to add the public-notice feature to JUD-001, which already supplies responsible-official, compliance-reporting, show-cause, and civil-contempt procedures. If the record also contains substantial and credible information of a possible federal offense, obstruction, retaliation, evidence destruction, concealment, serious misuse of investigative authority, and extraordinary executive conflict, the finding may support—but may not itself satisfy—an application under DOJ-007.

The independent alternative amends existing law to supply only the notice route. It applies to a court's written finding, after notice and an opportunity to be heard, that the United States, an agency, or an officer acting officially materially or willfully failed to comply with an operative order. It does not create a new finding, sanction, investigation, or obligation for Congress to act.

Both paths should protect sealed, classified, grand-jury, personal, and other lawfully restricted information; require a public version or docket statement where possible; and give later stays, reversals, modifications, vacatur, and compliance equal prominence.

Proposed Legislation

Preferred coordinated remedy — JUD-001 with conditional DOJ-007 escalation

- Executive Compliance and Civil Contempt Accountability Act (JUD-001)
- Independent Investigation of Presidential and Senior Executive Misconduct (DOJ-007)

JUD-001 supplies the qualifying judicial process, automatic transmission, and public register. DOJ-007 remains a separate, exceptional investigative pathway and activates only if its independent constitutional and statutory criteria are satisfied.

Independent alternative — standalone JUD-005 Act

- Judicial Noncompliance Notice and Public Accountability Act

Congress may enact this bill without JUD-001, DOJ-007, or JUD-011. It independently supplies the trigger, recipients, protected-information rules, public register, status updates, administration, and authorization of appropriations.

Relationship to Adjacent Proposals

- JUD-001 owns direct judicial enforcement, responsible-official designation, compliance plans, hearings, and civil-contempt remedies. JUD-005 owns public and congressional notice after a qualifying finding.
- DOJ-007 owns extraordinary independent investigation where possible serious misconduct and executive conflict exist. Noncompliance alone does not satisfy its appointment standard.
- JUD-011 concerns executive nullification of enacted congressional mandates. JUD-005 concerns notice after violation of a judicial order and does not depend on the subject matter of the underlying litigation.
- Former JUD-008 is integrated here because public compliance verification, status updates, and the searchable register are notice functions. JUD-001 retains discovery, evidence, hearings, compliance supervision, and coercive enforcement needed to determine whether an order has been obeyed.
- Congress's ultimate response remains a political judgment outside this proposal's scope.

Budgetary Impact Statement

Preferred coordinated remedy. JUD-001 would add incremental clerk-transmission, redaction, register, and status-update work within existing federal-court and Administrative Office functions. DOJ-007 costs arise only if its separate appointment criteria are satisfied and follow that proposal's shared-framework or standalone budget architecture. No reliable dollar estimate is assigned pending workload data.

Independent alternative. The standalone Act creates no court, judgeship, investigative office, grant, or entitlement. It would require limited Administrative Office technology, records, redaction, secure-transmission, and clerk support. The draft authorizes necessary appropriations but assigns no dollar amount pending Administrative Office workload and systems estimates.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 63 / 100 (Developed Draft)

Adoption Score: 3 / 12 (Weak Adoption Basis)

Adoption Friction: 54 / 100 (Significant Resistance)

Required Electoral Environment: Sixty-vote Senate

Pathway Viability: Unassessed

Development Priority: Active

External Review Status: Not reviewed

Internal Review Status: Initial framework review complete; Epstein-files notice-stage cross-reference added; targeted revision review and further internal review pending

Last Internal Review: Initial framework review (2026-07-15)

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current project standard

Revision Review: Needed for the new current-case cross-reference and an internal remedy-fit review

Next Review: Review the Epstein-files notice-stage cross-reference, Title 28 coverage, trigger precision, protected information, distribution, workload, current proposals, and JUD-001 fit

Full Review History: JUD-005 review history

Annotation

Issue-admission boundary. The earlier candidate title suggested that the defect was a weak or partisan congressional response. That would improperly make political will itself the institutional failure. The admitted proposal is narrower: once a court makes a qualifying finding, the information route should not depend on the executive branch, congressional leadership, or public docket monitoring. Congress's choice after notice remains accountable to voters rather than judicial command.

Trigger design. A pending allegation, disputed motion, adverse merits ruling, or ordinary litigation loss does not trigger notice. The court must make an express written finding of material or willful noncompliance after notice and an opportunity to be heard, and the underlying order must remain operative when the finding is made. A later stay or appellate change does not erase the historical record; it requires an equally prominent update.

No automatic investigative escalation. A qualifying finding can be relevant evidence for DOJ-007, but it does not establish criminality, probable cause, obstruction, extraordinary executive conflict, or entitlement to independent counsel. This separation prevents routine compliance litigation from becoming an automatic criminal-investigation referral.

Statutory fit. The internal project review moved the independent draft's ministerial notice duty from the criminal-code contempt chapter to a proposed Title 28 chapter 41 section and retained 28 U.S.C. § 604 for the Administrative Office register. It also tied the executive-party definition to 5 U.S.C. § 102 and § 105, replaced court selection of legislative committees with House- and Senate-controlled distribution, and limited updates to written docketed status events. The internal project review must test institutional coverage, deadlines, congressional procedures, and protected-information handling more deeply.

Quality Score. The current component score is Structural 8/8; Evidence 7/12; Legal Fit 5/10; Prior Proposal 4/8; Remedy 9/12; Implementation 5/8; Abuse Resistance 6/8; Drafting 6/8; Cogency 6/6; Adoption 3/12; Project Integration 4/4; External Review 0/4; penalties 0. The 63/100 score recognizes a complete, bounded issue-and-vehicle package while reserving substantial credit for additional source, coverage, workload, and legislative-fit analysis.

Adoption Score. The proposal identifies a federal statutory vehicle and a narrow standalone stage, but the internal project review found no proposal-specific polling, validator coalition, or developed sponsor map. It therefore receives only weak preliminary adoption credit.

Adoption Friction. The provisional 54/100 score reflects the current partisan salience of executive-compliance enforcement, concentrated executive-branch resistance, a modest new judiciary reporting system, and a plausible risk of litigation or caricature as judicial direction of Congress. The bill reduces friction by making transmission ministerial, leaving Congress free to act or decline, and routing committee distribution through each House's own procedures. The further internal review should replace this preliminary assessment with a fuller evidence record.

Required Electoral Environment. Enactment requires ordinary bicameral legislation and presidential approval or an override; absent a filibuster exception, the Senate route ordinarily requires cloture support. The internal project review therefore records sixty-vote-senate, but leaves pathway viability unassessed until sponsor, vote, and coalition evidence is developed. Staging preserves a narrow standalone notice bill even if Congress declines JUD-001's broader contempt reforms.

External Review Status. No qualifying external legal, legislative-counsel, judicial-administration, appropriations, or information-security review is recorded.

JUD-009 — Supreme Court Ethics, Recusal, and Transparency

Issue Snapshot

Problem: Supreme Court ethics and recusal obligations lack a comparable complaint, review, and enforcement process.

Repair: Establish statutory ethics, disclosure, complaint-review, and recusal procedures while preserving judicial independence.

Vehicle: Supreme Court ethics and recusal legislation (draft).

Institutional Anomaly

The Supreme Court adopted its first written code of conduct in 2023, but the code does not establish a process for investigating or resolving alleged violations. The Judicial Conduct and Disability Act supplies a disciplinary process for covered lower-court judges but does not apply to Supreme Court Justices. Federal recusal law applies to Justices, yet a Justice ordinarily decides whether to recuse without an established mechanism for review by a disinterested body. See the Supreme Court Code of Conduct and CRS, *Congressional Control over the Supreme Court*.

The concern is institutional and prospective. It does not depend on proving that any Justice or judge acted improperly, or on agreement with any judicial decision.

Manifestations of the Failure

A written code without a complaint or enforcement process

The Court's 2023 code states ethics principles governing integrity, impartiality, extrajudicial activity, disclosure, and political activity. CRS concluded that the code itself contains no enforcement mechanism or process for addressing alleged violations. See CRS, *Financial Disclosure and the Supreme Court*.

Recusal decisions without established independent review

Federal law requires recusal under specified circumstances, but Supreme Court practice generally leaves the decision to the challenged Justice, without a required written explanation or review mechanism. This makes the result difficult to evaluate even when the Justice acts in good faith. See 28 U.S.C. § 455 and CRS, *The Supreme Court Adopts a Code of Conduct*.

Appointer-president proceedings

Judge Aileen Cannon, appointed by President Trump, presided over connected civil, criminal, and post-dismissal proceedings involving him. The Eleventh Circuit reversed key orders in the civil special-master litigation, and the later criminal assignment produced public recusal demands. Litigation over access to special-counsel report materials continued the same appearance question after dismissal. These events do not establish actual bias; they demonstrate the recurring question created when an appointee adjudicates the appointing President's personal exposure or authority. See *The Guardian*, December 1, 2022, *The Guardian*, June 10, 2023, *Axios*, June 20, 2024, and *The Washington Post*, February 23, 2026.

Resulting Damage

An ethics system that depends principally on individual self-administration can weaken public confidence, produce inconsistent disclosure and recusal explanations, prevent neutral evaluation of complaints, and leave alleged violations without a proportionate response short of congressional investigation or impeachment. Unclear recusal procedures can also encourage strategic motions and partisan accusations against judges who have acted properly.

Underlying Weakness

Existing law and practice do not provide a complete, Supreme Court-specific system for:

- maintaining ethics rules through a transparent public process;
- receiving, filtering, and neutrally evaluating misconduct complaints;
- publishing appropriately redacted findings and aggregate compliance information;
- reviewing contested Supreme Court recusal motions without participation by the challenged Justice;
- requiring timely explanations of material recusal decisions;
- aligning gifts, reimbursements, financial interests, and party or amicus disclosures with recusal analysis; or
- addressing the distinct appearance risk when a judge hears a case involving the President who appointed that judge.

Proposal Survey

Congress already applies financial-disclosure and recusal statutes to Supreme Court Justices. Lower federal judges are also subject to the Judicial Conduct and Disability Act and the Code of Conduct for United States Judges. The Supreme Court's 2023 code supplies a Court-specific ethical baseline but not an external complaint or review process.

The closest direct prior proposal is the pending Supreme Court Ethics, Recusal, and Transparency Act of 2025, S. 1814, with an identical House measure, H.R. 3513. That proposal would require a public code, create a complaint and judicial-investigation process, strengthen gifts and disclosure rules, provide review of certified recusal motions, and require party and amicus disclosures. JUD-009 uses that existing proposal as its principal model and adds a severable appointer-president recusal rule.

Least-Complex Adequate Remedy

The least-complex adequate remedy is to adapt the existing Supreme Court ethics legislation rather than create an unrelated tribunal or alter the Court's composition. The mechanism should rely principally on judicial administration: neutral judges evaluate complaints and make recommendations, while the Supreme Court retains authority over any permissible judicial response.

Repair and Prevention

Congress should enact a modular and severable statute that:

1. places a Supreme Court code of conduct on a statutory and publicly accessible footing;
2. establishes a screened complaint process, with safeguards against repetitive, harassing, or frivolous submissions;
3. assigns qualifying complaints to a randomly selected panel of senior circuit judges for investigation, findings, and recommendations;
4. requires appropriately redacted public findings and periodic aggregate reporting;
5. strengthens gifts, reimbursements, financial-interest, party, and amicus disclosures relevant to conflicts and recusal;
6. provides review of contested Supreme Court recusal motions by the remaining Justices, without participation by the challenged Justice;
7. requires written public explanations for material recusal rulings, subject to protection of sensitive information; and
8. preserves the existing tiered appointer-president recusal rule, neutral reassignment, anti-gamesmanship protection, and no-inference-of-bias safeguard.

The complaint and recusal systems should recognize the Supreme Court's unique duty-to-sit concern, protect confidential judicial deliberations, and avoid any mechanism that permits Congress or a political officer to revise judicial decisions.

Proposed Legislation

- Supreme Court Ethics, Recusal, and Transparency Act

Relationship to Adjacent Proposals

- **HOR-019** is merged into JUD-009. Court expansion, changes to the number of Justices, and judicial term limits are outside this proposal's scope as political or constitutional-design questions not necessary to cure the ethics-process defect.
- **JUD-001** concerns enforcement of judicial commands after adjudication.
- **JUD-010** concerns judicial capacity, staffing, funding, security, technology, and emergency-docket resilience.
- **IMM-001** concerns the substantive scope of presidential criminal immunity; JUD-009 concerns neutral ethics and recusal administration.

Budgetary Impact Statement

The proposal would create recurring administrative costs for complaint screening, judicial-panel staffing, disclosure administration, reporting, and Federal Judicial Center studies. It should authorize such sums as may be necessary, with amounts determined through the judiciary's ordinary appropriations process.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 77 / 100 (historical fourth-tier internal-review score; material revision review pending)

Adoption Score: 5 / 12 (provisional pending revision review)

Adoption Friction: 82 / 100 (provisional pending revision review)

Required Electoral Environment: sixty-vote-senate

Development Priority: active

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Internal Review Status: Materially revised; targeted internal review required

Last Completed Internal Review: Fourth-tier publication review, June 28, 2026

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Historical score preserved pending review of the expanded framework

Revision Review Needed: Targeted internal revision and remedy-fit review

Next Review: Recalculate legal fit, implementation, drafting, budget, and adoption fields after the consolidation

Full Review History: JUD-009 review history

Annotation

Constitutional boundary. Congress already subjects Justices to recusal and financial-disclosure statutes, but the extent of congressional authority to impose and enforce a broader ethics system has not been conclusively adjudicated. The proposed judicial-panel mechanism therefore makes findings and recommendations rather than authorizing removal, salary reduction, or legislative revision of judgments. CRS identifies both Congress's established regulatory role and the unresolved separation-of-powers questions. See CRS, *Congressional Control over the Supreme Court*.

Recusal and the duty to sit. A Supreme Court Justice cannot ordinarily be replaced for a particular case. Recusal can leave an even-numbered Court and may effectively affirm the judgment below without precedent. The proposal therefore requires a substantiated motion, excludes the challenged Justice from review, and preserves rule-of-necessity principles rather than treating recusal as costless. See CRS, *The Supreme Court Adopts a Code of Conduct*.

Appointer-president rule. The existing JUD-009 tiered design remains a distinct component of the broader framework: mandatory recusal for personal-interest proceedings, tightly defined treatment of core presidential-authority cases, a written standard for broader official-capacity cases, and anti-gamesmanship protection when a President is named only to alter assignment. The targeted revision review must decide whether all three tiers remain appropriate after integration with the general recusal-review process.

Political neutrality. The proposal governs every Justice, judge, President, litigant, donor, party, and amicus under the same prospective rules. It does not characterize disagreement with a judicial ruling as an ethical violation, prescribe preferred case outcomes, change the number or tenure of Justices, or imply misconduct from the identity of an appointing President.

Revision status. HOR-019 was consolidated into JUD-009 on July 21, 2026. The prior 77-point score evaluated the narrower appointer-president recusal bill and remains visible only as historical audit information until a targeted internal revision and remedy-fit review evaluates the expanded issue and legislation.

JUD-011 — Executive Nullification of Congressional Mandates

Issue Snapshot

Problem: Executive action can nullify enacted mandates when political checks fail.

Repair: Create one generally applicable civil anti-nullification remedy.

Vehicle: Interbranch Review Framework Act.

Institutional Anomaly

Congress may enact substantive limits on executive action without supplying a uniform, durable, and adequately resourced way to adjudicate violations before delay makes relief ineffective. Existing review pathways vary by statute, plaintiff, venue, remedy, and appellate route. Some depend on later congressional authorization or executive-controlled enforcement even when unified party control makes institutional response politically unlikely.

The defect is not that every disagreement between Congress and the President belongs in a special court. The narrower anomaly arises when Congress has enacted a legal command, a later executive action or deliberate inaction allegedly displaces that command, ordinary review is fragmented or too slow to preserve meaningful relief, and Congress's contemporaneous political incentives make case-specific institutional action unreliable.

Congress can respond prospectively by establishing a neutral cause of action and judicial machinery before any particular controversy arises. The remedy should remain available when the political branches later share partisan control. Its application must depend on the enacted mandate, alleged executive conduct, a concrete Article III plaintiff, and restorative relief—not on a later congressional vote or a subject-specific statute opting in.

Manifestation of the Failure

Epstein Files Transparency Act — mandatory disclosure without an express enforcement route

The Epstein Files Transparency Act required the Attorney General within 30 days to publish covered unclassified Justice Department records, prohibited withholding for embarrassment, reputational harm, or political sensitivity, and required written redaction justifications. The Act supplied no express cause of action, eligible-plaintiff rule, review forum, expedited procedure, or civil or criminal penalty. DOJ later asserted that its January 30, 2026 production completed its obligations. See DOJ production letter.

In *Phang v. Blanche*, the D.D.C. held at the preliminary-injunction stage that journalist Katie Phang likely had Article III standing, that FOIA was not an adequate alternative, and that APA review was available; it then granted preliminary relief concerning specified withholdings, foreign-language records, and the required redaction log. The episode illustrates the JUD-011 defect without predetermining coverage: a plaintiff had to construct an APA route and litigate standing, sovereign immunity, and remedial adequacy before obtaining time-sensitive review of an explicit statutory command.

Resulting Damage

Fragmented interbranch review can:

1. allow delay to convert disputed executive action into irreversible operational facts;
2. produce conflicting orders and standards across districts;
3. make enforcement depend on partisan congressional authorization after the violation occurs;
4. duplicate judicial staff, secure-record, special-master, and emergency-procedure costs;
5. encourage proposals to omit enforcement because designing a complete judicial apparatus is too complex;
6. obscure standing, jurisdiction, and appellate defects until a crisis reaches court;
7. concentrate appointment and assignment power in ad hoc arrangements vulnerable to perceived manipulation; and
8. prevent future reforms from using a tested institutional pathway.

Underlying Weakness

Federal law contains useful components but no general cause of action and uniform review framework for this narrow category. Section 2284 permits Congress to require three-judge district courts. Section 1657 supports expedition when federal statutory or constitutional rights require priority. Judicial designation statutes permit temporary service across circuits. Congress has also created nationally constituted judicial structures for specialized functions.

The Judicial Panel on Multidistrict Litigation demonstrates a national panel of designated Article III judges with shared administration and publicly defined authority. The Foreign Intelligence Surveillance Court designation provision demonstrates a standing court composed of designated district judges from multiple circuits, although its secrecy, application, and substantive mission are not appropriate models for ordinary interbranch civil litigation.

No existing structure supplies the proposed combination of a generally applicable anti-nullification claim, D.D.C. filing, randomized national Article III participation, shared appropriations, public adversarial process, emergency preservation, restorative relief, and uniform appellate review.

Proposal Survey

Ordinary district-court review. Existing federal courts preserve familiar procedure and broad geographic access, but ordinary routing may produce conflicting orders and insufficient emergency capacity for nationally operative interbranch disputes.

Proposal-specific three-judge courts. This is the principal independent alternative for REG-001 and FUND-001. It does not by itself provide one generally applicable claim, shared staff, a stable roster, secure administration, or uniform procedure across subject matters.

Standalone Article I tribunal. A new non-Article III court could create constitutional, tenure, remedial, and legitimacy problems. JUD-011 should instead remain within the Article III judiciary and D.D.C.

Permanent specialized Article III court. A separate court could create greater institutional identity but would require more judgeships, administration, and jurisdictional complexity than the current caseload justifies.

D.D.C.-based division using designated judges. This model retains an established Article III court, permits national judicial participation, can use three-judge panels, and supports shared administration for claims created directly by JUD-011.

Broader interbranch infrastructure. JUD-011's core jurisdiction should remain civil anti-nullification. A later Act supported by independent constitutional authority may reuse its roster and nondecisional administration for a separately firewalled specialized component. Civil panels may not appoint or supervise investigators, share protected records, or acquire criminal jurisdiction merely because the functions use one administrative structure.

The closest statutory and legislative analogues supply individual parts rather than the complete framework. The Impoundment Control Act authorizes Comptroller General litigation in D.D.C.; H.R. 3454, S. 2838, H.R. 4124, and House-passed H.R. 5314 offer narrower cause-of-action, enforcement, panel, or accountability models. Standing, remedial, presidential-relief, and three-judge-court decisions further shape the design. JUD-011 combines those lessons but does not claim that any analogue validates the complete architecture; the detailed comparisons and qualifications appear in the Annotation.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a generally applicable civil cause of action administered through a D.D.C.-based Interbranch Review Division established by ordinary legislation.

The Civil Compliance Division should use randomly assigned three-judge panels composed of one D.D.C. district judge, one circuit judge from outside the D.C. Circuit, and one district judge from another circuit. The default appeal should be expedited review in the D.C. Circuit.

JUD-011 should directly define the claim, eligible-plaintiff categories, merits threshold, sovereign-immunity waiver, remedies, procedure, and application to continuing nullification of older mandates. It must preserve Article III standing and exclude ordinary policy disagreements, isolated violations, discretionary enforcement choices, criminal proceedings, habeas, election contests, and enforcement of existing judicial orders.

Repair and Prevention

Congress should:

1. establish the Interbranch Review Division within the United States District Court for the District of Columbia;
2. create a randomized, publicly prescribed national Article III roster for three-judge Civil Compliance panels;
3. create a direct civil cause of action for substantial and sustained executive suspension, redirection, evasion, or functional nullification of an enacted mandate;
4. apply that claim across subject matters without opt-in designation;
5. reach ongoing and future conduct affecting mandates enacted before, on, or after the framework;
6. define eligible plaintiff categories while preserving Article III standing;
7. provide expedition, emergency preservation, fact development, consolidation, restorative relief, and D.C. Circuit review;
8. protect lawful executive discretion and exclude ordinary policy, enforcement-priority, criminal, habeas, election-contest, and existing-order disputes;
9. authorize one additional D.D.C. judgeship at launch and a second only after public Judicial Conference workload certification, together with shared administrative capacity;
10. appropriate startup and multi-year operating funds for the complete JUD-011 remedy;
11. preserve existing remedies and final judgments;

12. permit later specific statutes to supplement the remedy unless Congress expressly makes them exclusive or displaces JUD-011; and
13. permit later constitutionally authorized specialized components to reuse the roster and nondecisional infrastructure only with express statutory authority and decisional, records, jurisdictional, and appellate firewalls; and
14. limit injunctions to complete relief for plaintiffs with standing, subject to ordinary certified-class and indivisible-injury principles.

The mechanism is reciprocal across parties, administrations, and subject matters: it applies only when the statutory and Article III elements are satisfied, not whenever a plaintiff objects to executive policy.

Proposed Legislation

- Interbranch Review Framework Act

The Act supplies the general remedy without subject-specific opt-in. REG-001 and FUND-001 retain independent standalone alternatives, and a later Act may reuse nondecisional infrastructure for a constitutionally authorized specialized function only through express authority, strict firewalls, and separate incremental funding.

Relationship to Adjacent Proposals

REG-001 concerns agency independence and functional nullification. JUD-011 alone is its preferred remedy; the standalone REG-001 bill is an independent alternative.

FUND-001 concerns impoundment, fiscal inertness, and release of budget authority. JUD-011 alone is its preferred remedy; the standalone FUND-001 bill is an independent appropriations-specific alternative.

DOJ-007 requires its own constitutional amendment because JUD-011's civil cause cannot authorize nonexecutive appointment or criminal investigation. After ratification, DOJ-007's preferred implementing Act adds a separately firewalled Investigative Counsel component that reuses JUD-011's roster and nondecisional infrastructure. The standalone DOJ-007 Act remains an independent alternative.

JUD-010 owns general judicial capacity, appropriations, staffing, technology, security, and emergency-docket resilience. It supplies a natural capacity-analysis companion but is not required to enact or operate JUD-011.

JUD-001 owns enforcement of orders already entered by federal courts. Those matters should ordinarily remain before the issuing court rather than being transferred into JUD-011.

The governing project-wide relationship is detailed in the General Anti-Nullification Review Framework, and current applications, exclusions, and future drafting screens are recorded in the Coverage and Independent Alternatives Matrix.

Budgetary Impact Statement

Budget authority is likely required. The draft schedules \$115 million for startup and seven years of base operations, with judicial compensation and any later specialized component requiring additional funding; no official JUD-011 cost estimate is available.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 82 / 100 (Review Ready)

Adoption Score: 4 / 12 (Limited Adoption Basis)

Coalition Support Estimates:

Democratic 72%

Independent 54%

Republican 32%

Bipartisan viability 42%

Adoption Friction: 87 / 100 (Extreme Resistance)

Required Electoral Environment: sixty-vote-senate

Development Priority: active

External Review Status: not-reviewed

Internal Review Status: Internal project review and Epstein-files remedy-fit review complete; qualified external review required

Last Internal Review: Manifestation-polish review (2026-07-15)

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current project standard

Revision Review: Current; the Epstein-files example confirms the general enforcement-route defect without changing JUD-011's coverage trigger

Next Review: Qualified constitutional, legislative-counsel, judicial-administration, appropriations, and CBO review / follow-up internal review

Full Review History: JUD-011 review history

Annotation

Framework-consolidation rationale. ARRP proposals already use or contemplate multiple special judicial structures. FUND-001 routes impoundment and executive-directive claims to a three-judge D.D.C. court, while REG-001 uses a similar structure for claims that executive action or deliberate inaction has functionally disabled congressionally mandated institutions or duties. Separate clerks, rosters, emergency rules, secure-record systems, appropriations, and assignment procedures would duplicate infrastructure and create inconsistent interbranch-review practices.

Existing public-law litigation may proceed through ordinary district-court jurisdiction, the Administrative Procedure Act, mandamus, specialized review provisions, or statute-specific three-judge courts. Mandamus remains extraordinary and requires a clear, nondiscretionary duty. See *Heckler v. Ringer*. 28 U.S.C. § 2284 recognizes that Congress may require a three-judge district court by statute, while 28 U.S.C. § 1253 supplies direct Supreme Court review for certain injunction decisions unless Congress provides otherwise. Those tools do not establish shared eligibility rules, staffing, records capacity, proposal coordination, or a default D.C. Circuit appellate pathway. This is design background for the shared framework rather than a separate real-world manifestation.

Automatic enforcement and temporal coverage. Congress may be least likely to authorize litigation, compel testimony, withhold funds, or enact corrective legislation when the same party controls Congress and the presidency. A remedy dependent on a later chamber vote or leadership decision can therefore weaken precisely when the institutional conflict is most serious. JUD-011 does not make courts representatives of abstract congressional will. It prospectively creates a narrow cause of action, eligible-plaintiff categories, anti-nullification threshold, and preservation and merits remedies while Congress is willing and able to legislate. Later political inaction would not silently disable that previously enacted enforcement route.

A new judicial framework would also be inadequate if it applied only to statutory duties enacted afterward. JUD-011 must itself reach executive conduct occurring or continuing after its effective date that nullifies a mandate enacted before, on, or after JUD-011. That is prospective relief against present conduct, not retroactive punishment or reopening of final judgments. These are design rationales and coverage rules, not separate manifestations.

Quality Score. The internal project review raises JUD-011 from 80 to 82 / 100 and retains Review Ready status. The publication pass verified every external citation and the operative statutory, rules, presidential-relief, mandamus, assignment, transfer, appellate, current-case, budget, and prior-proposal claims. It corrected senior-judge eligibility and section 294 treatment, separated Chief Justice roster designation from clerk case assignment, made the limited departures from sections 137 and 2284(b)(1) express, clarified reassignment and dismissal at the single-judge screen, and added a bounded due-process extension for interim deadlines. The complete verified-and-unresolved table is in the technical review history. The status cannot advance to Publication Ready without qualified external review.

Adoption Score. Adoption remains 4 / 12 because the issue identifies major audiences and validators, answers the strongest good-faith constitutional, federalism, generalist-judge, civil-liberties, cost, and administration objections, and explains reciprocal application across parties and administrations. H.R. 5314's House passage and 168 cosponsors show one-chamber viability for a broad accountability package, while narrower current bills establish a sponsor pool. H.R. 4124 is a direct structural analogue, but its introduced status and zero cosponsors add no viability credit. The record still lacks bipartisan passage, a direct JUD-011 sponsor, proposal-specific polling, an institutional validator, or evidence that the Senate would accept the general cause, roster, judgeships, and protected direct spending.

Coalition Support Estimates. These are provisional planning judgments, not polling. Democratic support is estimated highest because the current accountability agenda and prior House passage provide a visible coalition; independent appeal rests on neutral rule-of-law and anti-evasion framing; Republican and bipartisan viability remain lower because of strong unitary-executive, D.D.C.-forum, judgeship, and spending objections. A workload-contingent second seat, reciprocal framing, and plaintiff-complete relief modestly improve the cross-party case without changing the remedy's core.

Adoption Friction. Friction is estimated at 87 / 100 because the Act would constrain presidential nonexecution, create a new cause of action and specialized Article III division, add judgeships, directly appropriate multi-year funds, and invite immediate separation-of-powers and standing litigation. The score reflects the proposal's institutional design and the limited progress of narrower current analogues, not a judgment about its merits.

Required Electoral Environment. Ordinary enactment likely requires a federal governing coalition capable of overcoming Senate filibuster constraints. The most plausible staging strategy is to build support through narrower appropriations-enforcement, standing, expedition, judicial-capacity, and transparency components while preserving the general framework as the preferred complete remedy.

External Review Status. not - reviewed. No qualified constitutional, legislative-counsel, judicial-administration, appropriations, or public-law reviewer has reviewed the complete framework. Review Ready means the draft is ready for knowledgeable critique, not that its novel cause, roster, funding, or relief structure has been professionally validated.

Article III boundary. The Civil Compliance Division requires a case or controversy. JUD-011 identifies eligible plaintiff categories but does not assume that Congress can create standing by label alone. Every plaintiff must establish concrete injury, causation, and redressability.

Older statutes. JUD-011 applies to covered conduct occurring or continuing after its effective date even when the agency, appropriation, program, or institutional command was enacted earlier. No later subject-specific designation is required.

Detailed proposal analogues. The 119th Congress has considered narrower enforcement measures rather than a subject-matter-neutral framework. H.R. 3454, introduced with a private right of action under the Impoundment Control Act, had 41 cosponsors but remained

referred to House committees as of the internal project review. S. 2838, the *Protecting Our Democracy Act*, would strengthen Comptroller General litigation authority and remained referred to committee with 9 cosponsors. H.R. 4124, the *Restoring Judicial Separation of Powers Act*, directly proposes altered review of three-judge-court orders and a randomly selected multi-circuit appellate panel, but remained referred to House Judiciary with no cosponsors during the internal project review. In the 117th Congress, H.R. 5314 combined multiple executive-accountability reforms, had 168 cosponsors, and passed the House 220–208 before receiving no Senate action. The enacted Impoundment Control Act already authorizes the Comptroller General to sue in D.D.C. to release unlawfully withheld budget authority. These models provide meaningful cause-of-action, forum, panel, and political-history evidence, but none supplies or validates JUD-011's complete architecture.

Standing and cause-of-action analogues. *U.S. House of Representatives v. Mnuchin* recognized House standing for a concrete institutional injury from alleged executive spending beyond an appropriation, while *Committee on the Judiciary v. McGahn* recognized an authorized committee's standing to remedy a specific informational injury but separated standing from cause-of-action and jurisdiction questions. JUD-011 accordingly creates an express cause of action and jurisdictional grant but does not purport to make abstract legislative disagreement or an individual member's generalized institutional concern judicially cognizable.

Remedial boundary. *Trump v. CASA, Inc.* requires equitable relief to remain tied to complete relief for plaintiffs with standing. The bill therefore bars relief for nonparties solely to obtain universal compliance while preserving properly certified class relief and relief whose effect on nonparties is necessary to remedy an indivisible injury.

Procedure and single-judge limits. 28 U.S.C. § 2284 permits a single judge to conduct preliminary proceedings but reserves merits judgment and most injunction decisions to the three-judge court. *Shapiro v. McManus* permits a single judge to decline the panel only when the claim is wholly insubstantial or frivolous, not through an ordinary merits dismissal. The bill confines initial screening to that jurisdictional threshold, states how non-section-2303 filings are reassigned, and ties any seven-day preservation order to section 2284(b)(3). The Federal Rules of Civil Procedure, D.D.C. Local Rules, and D.C. Circuit Rules remain the ordinary procedural baseline except where the Act expressly provides otherwise.

Presidential and subordinate-officer relief. *Mississippi v. Johnson* refused to enjoin presidential performance of executive and political duties while distinguishing ministerial obligations. *Franklin v. Massachusetts* and *Severino v. Biden* likewise treat coercive relief directing presidential performance as constitutionally exceptional while recognizing the practical significance of relief against subordinate officials. JUD-011 accordingly does not enlarge direct coercive authority against the President and requires equivalent subordinate-officer relief to be preferred when available.

Current litigation pressure. The Supreme Court's 2025 stay in *Department of State v. AIDS Vaccine Advocacy Coalition* expressed a preliminary view that the Impoundment Control Act precluded the plaintiffs' APA suit and that mandamus was unavailable. That dispute demonstrates why an express anti-nullification cause must state its relationship to older specialized enforcement statutes. Separately, the D.C. Circuit's June 2026 en banc order in *National Treasury Employees Union v. Vought* retained jurisdiction while permitting a limited remand concerning a revised CFPB reduction-in-force plan. Neither matter resolves JUD-011's validity, but both show that reviewability, remedial route, intervening executive plans, and appellate control can determine whether merits review arrives before institutional dismantling becomes irreversible.

Durability, opposition, and reciprocal design. The strongest good-faith constitutional objection is that a broad new cause of action and specialized panel could convert ordinary statutory disputes into judicial supervision of the executive. JUD-011 answers that risk with concrete Article III injury, a substantial-and-sustained practical-repeal threshold, preservation of lawful discretion, complete-plaintiff-relief limits, preferred subordinate-officer relief, and severability into ordinary D.D.C. procedure. Courts may still construe the threshold narrowly, identify a political question, enforce an exclusive review scheme, or find particular relief inconsistent with Article II. Institutional conservatives may object to D.D.C. concentration, a national roster, new judgeships, direct spending, and perceived court packing. The Judiciary's 2024 random-assignment policy supports the anti-judge-shopping premise, while its 2025 generalist-judge discussion supplies a good-faith objection to concentrating subject-specific cases in a designated group. Federalism, civil-liberties, and administrative objections remain despite the draft's random assignment, ordinary recusal, bounded extensions, contingent second seat, ordinary appeal periods, and plaintiff-complete relief. The same cause applies across administrations and cannot be invoked merely because Congress, a State, or a private plaintiff dislikes executive policy. Likely validators include congressional counsel, inspectors general, appropriations practitioners, public-law scholars, former executive-branch lawyers, civil-liberties organizations, and court administrators; likely skeptics include executive-power advocates, appropriators concerned about direct spending, senators resistant to judgeships, and litigants concerned about a single national forum.

Political-inertia rationale. Automatic triggers and preauthorized pathways are justified as prospective safeguards against later institutional inaction, including in unified government. The tribunal does not represent Congress or resolve political disagreement; it applies enacted law through judicially manageable standards.

Appellate design. The working default is expedited D.C. Circuit review. Because 28 U.S.C. § 1253 supplies direct Supreme Court appeals for specified three-judge-court injunction decisions unless Congress provides otherwise, the bill expressly displaces section 1253. Final appeals proceed under section 1291, injunction appeals under section 1292(a)(1), notice periods under section 2107 and appellate rule 4, stay requests ordinarily begin before the panel, ordinary mandate procedure remains available, and section 1254 preserves certiorari. Legislative counsel should still confirm that every intended panel order is captured.

Judicial selection. National designation reduces dependence on one court's ordinary docket and one presidential appointing cohort. Sections 291, 292, and 294 ordinarily use requests or certificates; section 294 requires senior judges to be willing and able; section 295 supplies active-judge consent and public-filing safeguards; and section 296 supplies assigned judges' powers. The internal project review makes the Chief Justice responsible for term-roster designation, preserves applicable consent and willingness requirements, and

authorizes the clerk's later mechanical random case assignment without another case-specific designation. Roster size, terms, express departures from sections 137 and 2284(b)(1), recusals, replacements, and implementation remain subjects for AOUSC and legislative-counsel review.

Funding comparator. CBO's 2025 estimate for H.R. 1702 estimated approximately \$280,000 in 2025 compensation per new district judge, approximately \$760,000 in typical first-year administrative costs, and approximately \$700,000 in average annual operating costs once established. Those figures do not include the full JUD-011 clerk, secure-information, technology, special-master, or emergency-docket apparatus and do not constitute a JUD-011 score.

Budgetary Impact. The working draft directly provides \$10 million for startup and \$15 million annually for seven years, totaling \$115 million in scheduled budget authority for the base civil framework. Judicial compensation would add mandatory direct spending. CBO's H.R. 1702 estimate classifies district-judge compensation as direct spending and supplies ordinary comparators but does not estimate JUD-011's full apparatus. D.D.C.'s March 2025 profile reported 15 authorized judgeships, 4,311 annual filings, 6,464 pending matters, and 309 weighted filings per judgeship, while the Judicial Conference's 2025 recommendations did not request another D.D.C. seat. The first seat therefore rests on expected launch capacity rather than demonstrated ordinary-caseload shortage; the second depends on public workload certification. A later specialized implementing Act must separately authorize and fund incremental use.

External review pending. Before publication-ready use, qualified reviewers should test Article II and Article III limits, standing, sovereign immunity, judicial assignments, appointments functions, appropriations, direct and interlocutory appeals, secure-information handling, consolidation, removal and transfer, due process, and the legal mechanics of applying new remedies to ongoing violations of older statutes.

JUD-012 — Government Action Insulated from Judicial Review

Issue Snapshot

Problem: Legally consequential federal action can escape a judicial decision about its legality because no viable cause of action, plaintiff, evidence procedure, or review route exists.

Repair: Establish a neutral review pathway without overriding Article III, political-question limits, or lawful policy discretion.

Vehicle: Pending development.

Institutional Anomaly

Federal law may impose substantive or procedural limits on government action while leaving no realistic way for a court to decide whether the government complied. The barrier may arise from an absent cause of action, an express review bar, final presidential action outside the Administrative Procedure Act, government-controlled causation that prevents standing, or evidentiary secrecy that makes litigation impossible.

The institutional defect is not an adverse merits ruling, denial of preliminary relief, or disagreement with policy. It arises only when legally consequential action remains untested and no realistic substitute plaintiff, claim, forum, later proceeding, or other independent review mechanism can determine its legality.

Manifestation of the Failure

Completed federal-officer conduct without an available civil remedy

In *Tun-Cos v. Perrotte*, nine men alleged that Immigration and Customs Enforcement officers stopped and detained them without reasonable suspicion, entered homes without warrants or consent, and seized them unlawfully. The Fourth Circuit declined to recognize a *Bivens* cause of action and acknowledged that immigration procedures often do not redress constitutional violations occurring outside removal proceedings. In *Meshal v. Higgenbotham*, the parties agreed that a citizen alleging months of extrajudicial overseas detention and coercive interrogation had no alternative remedy, but the D.C. Circuit declined to recognize a damages action. These decisions did not adjudicate whether the alleged conduct violated the Constitution.

Hernández v. Mesa presents the same remedial problem after completed fatal conduct. The Justice Department declined prosecution, the United States denied Mexico's extradition request, and the Supreme Court declined to extend *Bivens* after a Border Patrol agent standing in the United States shot and killed a teenager across the border. The Court did not decide the underlying constitutional question.

State-secrets protection that prevents merits adjudication

In *El-Masri v. United States* and *Mohamed v. Jeppesen Dataplan, Inc.*, extraordinary-rendition allegations could not proceed because litigation would risk disclosure of protected national-security information. In *Wikimedia Foundation v. National Security Agency*, the Fourth Circuit found a genuine factual dispute relevant to standing but held that the state-secrets privilege prevented further litigation of the challenged surveillance. The privilege received judicial consideration; the underlying conduct did not receive merits adjudication.

Statutory or structural review barriers

The Supreme Court held in *Mullin v. Doe / Trump v. Miot* that 8 U.S.C. § 1254a(b)(5)(A) bars nonconstitutional challenges to Temporary Protected Status terminations, including claims alleging failure to follow mandatory statutory procedures. Constitutional claims remain reviewable, so this is a claim-specific rather than total foreclosure; RIGHTS-002 owns the underlying humanitarian and constitutional questions.

In *Citizens for Responsibility and Ethics in Washington v. Trump*, the D.C. Circuit held that courts generally cannot supervise day-to-day presidential compliance with the Presidential Records Act. REC-001 owns preservation, custody, and Archives enforcement; JUD-012 owns the recurring question whether an enacted duty has any effective judicial review route.

Supporting Record and Continuing Research

The expanded case-review memorandum corrects the initial six-case sample and records qualifying cases, rejected comparators, boundaries, and historical repair models. Additional supporting cases should be sought before remedy selection to ensure that JUD-012's demonstrated effects are not confined to national-security secrecy, immigration, or a few unusual remedial settings.

Resulting Damage

When no effective legality review exists:

1. completed injury may receive neither adjudication nor redress;
2. statutory duties may operate as political expectations rather than enforceable law;
3. government control of information may determine whether standing can be proven;
4. secrecy may protect necessary information while also preventing accountability;
5. an agency or President may receive more practical immunity than Congress intended;
6. subject-specific harms may recur because no decision clarifies the governing rule; and

7. public confidence may erode when courts can decide the threshold barrier but not the legality of the underlying conduct.

Underlying Weakness

The current system relies on a patchwork of the Administrative Procedure Act, implied constitutional remedies, sovereign-immunity waivers, subject-specific review provisions, equitable officer suits, habeas corpus, specialized tribunals, and evidentiary privileges. Each component serves legitimate purposes, but their interaction can leave gaps that no institution is assigned to identify or repair.

Congress cannot manufacture Article III injury, require courts to decide political questions, or make every policy dispute judicially cognizable. It can, however, create causes of action, waive sovereign immunity, preserve records needed to establish causation, specify review of final presidential action, establish secure procedures, narrow statutory review bars, and create constitutionally permissible alternative review mechanisms.

Proposal Survey

Federal constitutional-remedy analogue. The Bivens Act of 2025 would amend 42 U.S.C. § 1983 to reach persons acting under federal authority. It is a direct comparator for federal-officer constitutional violations, but it would not independently resolve state-secrets, presidential-action, standing, or statutory-review-bar problems.

Default reviewability and cause of action. Congress could create a carefully bounded default cause of action for concretely injured persons challenging final federal action, paired with an express sovereign-immunity waiver and ordinary Article III requirements. Further research must determine whether a general default can coexist with specialized statutory schemes without destabilizing deliberate channeling rules.

State-secrets procedure. Prior State Secrets Protection Act proposals and existing classified-information procedures provide models for independent judicial examination, in-camera proceedings, cleared counsel where appropriate, nonprivileged substitutions, and dismissal only when protected evidence is genuinely indispensable.

Presidential-action review. A statute could specify when final presidential action implementing a statutory scheme is reviewable, while preserving exclusive constitutional authority and lawful discretion. The review must distinguish a statutory-compliance gap from a political process Congress deliberately selected.

Targeted review-bar amendments. Congress may amend individual statutes whose review bars prevent adjudication of mandatory legal duties. This may prove safer and simpler than a universal override.

Alternative review institutions. Congress created independent judicial review of veterans-benefit decisions through the Veterans' Judicial Review Act of 1988. That history demonstrates that Congress can replace a longstanding review exclusion with a specialized, reviewable adjudicative pathway.

Least-Complex Adequate Remedy

The least-complex adequate remedy has not yet been selected. The present record establishes a recurring review-access defect across more than one subject and legal mechanism, but it does not yet establish that one general statute is preferable to several targeted amendments.

The next development pass should expand the supporting-case survey and then compare three architectures:

1. one general reviewability and remedies act with carefully defined exclusions;
2. a general procedural floor plus separate state-secrets and federal-officer-remedy modules; or
3. subject-specific amendments coordinated through a common JUD-012 standard.

Repair and Prevention

Future drafting should evaluate whether Congress should:

1. identify a narrow class of legally consequential federal actions for which some independent legality review must remain available;
2. create express causes of action without purporting to manufacture Article III standing;
3. waive sovereign immunity only for appropriate relief;
4. preserve ordinary political-question, merits, exhaustion, ripeness, and harmless-error rules;
5. require records or explanations sufficient to test causation where the government controls the relevant information;
6. provide secure procedures that protect genuine state secrets without automatically terminating the entire case;
7. preserve specialized review systems that provide an adequate substitute;
8. authorize review of statutory compliance by the President where Congress may constitutionally do so;
9. identify and amend review bars that unintentionally make mandatory duties unenforceable; and

10. require periodic reporting on dismissals that leave consequential federal conduct without merits adjudication.

Proposed Legislation

- Pending development.

Relationship to Adjacent Proposals

JUD-001 begins after a court has issued a command and concerns executive dependence of enforcement. JUD-012 concerns the earlier condition in which no court can decide the underlying legality.

JUD-011 creates a cause of action for substantial and sustained executive nullification of enacted congressional mandates. JUD-012 is broader as to review barriers but does not duplicate JUD-011's anti-nullification trigger or specialized interbranch remedy.

JUD-010 concerns judicial capacity, funding, staffing, security, and emergency-docket resilience. JUD-012 concerns legal access to adjudication even when courts have sufficient capacity.

HOR-035 concerns executive withdrawal, replacement, settlement, or temporary cessation that may moot litigation. JUD-012 concerns review unavailable because of standing, cause-of-action, privilege, statutory, or forum rules independent of litigation withdrawal.

RIGHTS-005 owns the specific civil and criminal accountability regime for law-enforcement constitutional violations, including an express federal cause of action. RIGHTS-002, REC-001, DOM-005, REG-006, WAR-001, and other subject-specific records retain ownership of the underlying rights, records duties, law-enforcement conduct, regulatory authority, or national-security policy. JUD-012 owns only the cross-cutting absence of an effective legality-review route.

Budgetary Impact Statement

No reliable estimate is available before remedy selection. A general judicial remedy could increase federal civil filings, protected-information proceedings, judicial staffing, secure-facility use, government litigation, and reporting costs. Targeted statutory amendments may have materially smaller administrative effects. Any later estimate should distinguish ordinary district-court implementation from a specialized tribunal or secure-review apparatus.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Not Scored; initial proposal vehicle pending)

Adoption Friction: N/A

Required Electoral Environment: N/A

Development Priority: N/A

Internal Review Status: In development; admitted from HOR-036 after expanded source review

Last Internal Review: Horizon candidate admission and source-development review

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current unscored status; **Revision Review Needed:** No

Next Review: Expand the supporting-case survey across subject areas, test whether the effects are sufficiently broad, and select the least-complex coherent remedy

Full Review History: JUD-012 review history

Annotation

Horizon provenance. JUD-012 was admitted from HOR-036 on July 19, 2026. The initial six-case sample did not establish the issue because it included ordinary preliminary-relief denials, merits decisions, and cases preserving later review. A broader source search identified recurring foreclosure through unavailable causes of action, state-secrets doctrine, statutory review bars, and presidential-action review limits.

Continuing breadth test. Admission establishes that the institutional weakness is plausible and supported; it does not establish that the present examples are exhaustive or that a single general remedy is already justified. Additional cases should be sought across administrations, subject areas, statutes, and doctrinal mechanisms. That research should test whether the effects are sufficiently broad, whether subject-specific remedies already cure important categories, and whether a cross-cutting statute can be drafted without overriding legitimate constitutional or statutory limits.

Neutrality boundary. The proposal applies regardless of which administration benefits from the review barrier or which substantive policy a plaintiff challenges. It does not presume that allegations left adjudicated are true or that the challenged conduct was unlawful.

Development notice. JUD-012 has no proposed legislation yet. Until a concrete vehicle is drafted, review should be limited to source development, boundary testing, and remedy selection; the proposal remains unscored rather than receiving a formula-based Proposal Quality Score.

Source Notes

The internal case-review memorandum contains the expanded case classifications, rejected comparators, historical repairs, and next research questions. The source inventory retains the external records relied upon here and should be expanded as the additional supporting-case search proceeds.

A-05 — Presidential Clemency and Pardon Power

Generalized Institutional Concern

The pardon power lacks adequate safeguards against use for personal protection, political reward, obstruction, corruption, self-enrichment, or circumvention of ordinary justice processes, while the professional review process remains advisory and avoidable.

Active Issues

- **PAR-001 — Corrupt, Self-Protective, and Politically Abusive Clemency**
- **PAR-005 — Self-pardon uncertainty**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **PAR-002 through PAR-004; PAR-006 through PAR-010** — Merged into PAR-001 as obstruction, monetization, self-interest, professional-review, transparency, categorical-use, transition-period, and remedy components of one clemency framework.

Issue Boundaries

- **PAR-001** owns corrupt, self-protective, monetized, obstructive, or politically abusive clemency, together with professional review, transparency, categorical and transition-period use, and post-use remedies.
- **PAR-005** remains separate because self-pardon validity presents a distinct constitutional question and may require a different vehicle from safeguards governing clemency for another person.

Notes

PAR-001 is in development; PAR-005 remains an unresolved candidate. Both require full source development before drafting.

A-06 — Presidential Conflicts of Interest and Emoluments

Generalized Institutional Concern

The constitutional and statutory framework does not adequately prevent a president from retaining financial interests that may receive benefits from foreign, federal, state, or private actors seeking influence.

Active Issues

- **EMOL-001 — Presidential Financial Conflicts, Emoluments, and Self-Dealing**
- **EMOL-015 — Executive Self-Litigation and Settlement Conflicts**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **EMOL-002 through EMOL-014** — Merged into EMOL-001 as substantive definitions, manifestations, disclosure and consent rules, enforcement mechanisms, remedies, or anti-circumvention safeguards.

Issue Boundaries

- **EMOL-001** owns the general presidential financial-conflict and Emoluments Clause framework, including divestment, statutory coverage, definitions, entity and family attribution, foreign and domestic patronage, disclosure, congressional consent, standing, enforcement, disgorgement, timing, and anti-circumvention. HOR-029 should be evaluated first as an EMOL-001 manifestation rather than as a presumptively independent proposal.
- EMOL-015 owns the narrower conflict created when the executive branch controls both sides of litigation, settlement, payment, or tax administration involving a President or other covered executive official.

Notes

EMOL-015 is an 83/100 Review Ready conflict-of-interest and settlement-authority proposal after internal project review. The President and a narrowly defined Vice President lane are expressly covered. The bill supplies automatic adversity screening, controlled maintenance with periodic review, payment restrictions, a bounded D.D.C. enforcement action, recipient process, protected-information procedures, explicit appeals, and a universal categorical audit-immunity amendment. Publication-form verification is complete; qualified constitutional, federal-courts, tax, appropriations, judicial-administration, and legislative-counsel review remains required.

EMOL-001 remains in development and next requires source development, a concrete comprehensive vehicle, and its first formal internal review. EMOL-015 remains independently developed and Review Ready.

EMOL-015 — Executive Self-Litigation and Settlement Conflicts

Issue Snapshot

Problem: Officials can sue agencies they influence.

Repair: Screen adversity, dismiss self-suits, and bar audit immunity.

Vehicle: Federal conflict statute (draft).

Institutional Anomaly

Federal conflict-of-interest law does not clearly prevent the President, Vice President, or another senior executive official from personally litigating against an executive agency, office, officer, employee, fund, account, or payment authority subject to that official's own supervision or practical executive-branch influence while the official remains in power.

Manifestation of the Failure

President Trump's tax-information suit

President Trump sued the Internal Revenue Service and Treasury Department in January 2026, seeking damages for alleged unlawful disclosure of tax information. Public reporting describes the claim as arising from disclosure of his tax information by former IRS contractor Charles Littlejohn. See Associated Press. The Justice Department later announced that the plaintiffs would dismiss the suit and other administrative claims in exchange for an “Anti-Weaponization Fund” receiving \$1.776 billion from the Judgment Fund; a related addendum reportedly sought to bar tax examinations or claims involving the President, his family, and affiliated entities. See DOJ's May 18 announcement, Axios, and Axios.

On July 13, 2026, U.S. District Judge Kathleen M. Williams found that the lawsuit had never presented genuinely adverse parties or an Article III case or controversy, concluded that it had been filed for an improper purpose and in bad faith, and imposed Rule 11 and inherent-authority sanctions. Among other relief, the court prohibited the parties from using the purported agreement in a judicial, administrative, regulatory, arbitral, or other official proceeding as evidence of a settlement reached in the case. The court expressly did **not** decide whether the private agreement was valid or enforceable, unlawfully drew on the Judgment Fund, or illegally conferred immunity. See the July 13 order, CourtListener docket entry, CNBC report supplied for this update, and Associated Press. The ruling materially strengthens EMOL-015's factual predicate, although appellate, reconsideration, disciplinary, fee, and implementation proceedings should be tracked before treating the disposition as final.

Resulting Damage

Conflicted self-litigation can create personal financial or legal benefit for officials, distort DOJ or agency settlement decisions, undermine public confidence in executive neutrality, route public money through weakly adversarial settlements, suspend audits or enforcement affecting the official and affiliated entities, and allow class-like compensation funds to be created without express congressional authorization. Categorical audit immunity would additionally create a favored status unknown to ordinary tax administration, bind future enforcement without adjudicating identified liabilities, and convert settlement authority into a means of exempting selected taxpayers from generally applicable law.

Underlying Weakness

Existing payment and settlement statutes assume genuine adverseness or an independently valid claim process. The Judgment Fund pays certain final judgments, awards, and compromise settlements under 31 U.S.C. § 1304. DOJ settlement authority and payment mechanics also depend on statutory channels such as 28 U.S.C. § 2414. Tax-return confidentiality law supplies a private damages remedy for certain unlawful inspections or disclosures. See 26 U.S.C. § 7431.

Those statutes do not clearly answer what should happen when the plaintiff is the sitting President or another official who supervises the defendant agency, the defending officials, or the payment authority. Federal courts must police Article III jurisdiction, but ordinary procedure does not require an automatic filing-stage adverseness screen tailored to executive self-litigation. If the nominal government defendant never answers or moves for summary judgment, a self-executing Rule 41 notice may terminate merits jurisdiction before the court completes that inquiry. The July 2026 district-court ruling shows that Rule 11, inherent judicial authority, fraud-on-the-court doctrine, and professional discipline can respond afterward, but those collateral remedies do not substitute for automatic screening, dismissal of a constitutionally non-adverse action, or an advance statutory rule separating the claimant from defense, settlement, audit, enforcement, and payment control.

The Vice President presents a related loophole. The Vice President may not formally supervise most agencies in the same way as the President or an agency head, but may still have substantial executive-branch influence, White House access, administration alignment, or practical ability to affect defense, settlement, payment, or public posture. The proposal should therefore cover the Vice President expressly rather than depending only on formal supervisory authority.

Proposal Survey

Representative prior and adjacent models include the Judgment Fund's statutory payment limitations, DOJ compromise-settlement authority, Rule 11 and inherent judicial sanctions, professional-discipline referrals, ordinary conflict-of-interest principles, and congressional power to condition appropriations. Section 7217 supplies the direct anti-interference hook, while sections 7121 and 7122 demonstrate how Congress can preserve case-specific tax finality without conferring prospective immunity. The official June 24, 2026 NO CARTE BLANCHE Act substitute to H.R. 7007 combines H.R. 8914 and H.R. 9210. It would restrict specified Judgment Fund payments and create 28 U.S.C. § 2414a, under which a presidential settlement is void unless a court finds adversity, good-faith defense consideration, no collusion or fraud, and an interest-of-justice basis. House Judiciary Committee materials identify the component bills and announced discharge effort. S. 4791 supplies a narrower Senate fund-abolition comparator, while a bipartisan Fitzpatrick-Suoizzi proposal supplies a narrower House fund-restriction comparator. EMOL-015 is broader and more prospective: it screens at filing, dismisses non-adverse self-suits, preserves genuine claims, covers additional executive officials, and categorically bars prospective tax-audit immunity. The July 2026 ruling is an enforcement backstop and factual validator, not a substitute for a prospective conflict rule.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a federal statute imposing two successive gates. First, filing automatically triggers a sua sponte Article III adverseness screen and a temporary bar on voluntary dismissal, settlement, release, immunity, or payment. If genuine adversity is absent, the court must dismiss without prejudice and statutory tolling preserves any still-timely claim outside the court until the conflict ends. Second, if Article III adversity exists, the court applies EMOL-015's separate conflict rule, controlled maintenance, independent-defense requirement, and settlement and payment restrictions.

The statute should make a Rule 41 notice or stipulation ineffective until screening is complete, so aligned nominal parties cannot divest the court of merits jurisdiction before the court decides whether a case or controversy exists. Tolling should preserve, but not revive, the underlying claim through the conflicted tenure and a defined post-service refiling period. This prevents an unfair "resign first" remedy where a covered official suffered legitimate injury from an adverse actor before assuming office or from conduct outside the official's control. The President and Vice President must not be excluded by title, office, or implication.

A parallel amendment to 26 U.S.C. § 7217 should prohibit categorical audit immunity for any taxpayer, regardless of whether it arises from covered executive self-litigation. It should make prohibited terms void from inception while preserving closing agreements, compromises, judgments, limitations periods, and ordinary IRS discretion concerning identified liabilities and neutral enforcement priorities.

Repair and Prevention

The remedy should:

- require the filing court, sua sponte and before any merits adjudication or voluntary dismissal, to determine coverage and genuine Article III adverseness;
- impose an automatic interim bar on settlement, compromise, release, immunity, payment, and Rule 41 dismissal until the written screening order issues;
- require dismissal without prejudice when no genuinely adverse party exists, without approving, incorporating, or enforcing any purported resolution;
- toll any still-unexpired claim through the conflicted service and for 1 year afterward without reviving a claim already time-barred when tolling began;
- apply controlled maintenance only if genuine Article III adversity exists but a separate statutory self-litigation conflict remains;
- allow liability adjudication only on clear and convincing evidence of legitimate injury, substantial injustice from deferral, continuing Article III adversity, and genuinely independent authority to defend the United States;
- permit narrowly tailored injunctive relief to stop ongoing or imminent harm without awarding money or settlement benefit;
- require damages, payment, settlement, offset, indemnification, reimbursement, and fund mechanics to be bifurcated and deferred until post-office absent heightened findings;
- toll limitations periods and litigation deadlines during the restricted period;
- prohibit settlement, compromise, confession, payment, offset, dismissal with prejudice, or Judgment Fund use while the conflict exists;
- amend 26 U.S.C. § 7217 to make prospective or categorical audit-immunity terms universally void, unenforceable, unavailable as settlement consideration, and reportable to TIGTA and Congress;
- preserve lawful finality for identified liabilities, matters, and taxable periods without permitting immunity beyond what was specifically and lawfully resolved;
- prevent official-capacity labels from shielding claims that practically confer personal or affiliated benefit;

- bar settlement-created compensation funds for politically defined or affiliated beneficiary classes absent express statutory authorization;
- require congressional notice for any attempted covered resolution; and
- preserve ordinary post-tenure litigation after the official no longer controls the relevant executive entity or payment authority.

Proposed Legislation

- Executive Self-Litigation and Settlement Conflict Act
- Procedural and enforcement analysis

Relationship to Adjacent Proposals

DOJ-002 owns White House or political-appointee influence over particular criminal matters. EMOL-015 instead owns personal-capacity civil claims by executive officials against entities they supervise.

DOJ-003 owns politically selective charging, declination, and prosecutorial favoritism. EMOL-015 concerns personal financial or legal benefit through civil litigation and settlement machinery.

A-11 owns broader power-of-the-purse and impoundment problems. EMOL-015 should cross-reference A-11 because the remedy limits Judgment Fund and agency-payment pathways, but the primary defect is executive self-dealing and conflict of interest.

Budgetary Impact Statement

Budget authority may be required for incremental court, agency, Treasury, IRS, TIGTA, DOJ, and congressional workload. The bill authorizes such sums as may be necessary but provides no fixed budget authority; no proposal-specific cost estimate is available.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 83 / 100 (Review Ready)

Adoption Score: 4 / 12 (Limited Adoption Basis)

Adoption Friction: 80 / 100 (High Resistance)

Required Electoral Environment: sixty-vote-senate

Development Priority: active

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Internal Review Status: Internal project review complete; qualified review pending

Last Internal Review: Internal project review (2026-07-13)

Scoring Standard: 2026-06-27.2; **Scoring Basis:** Current project standard

Next Review: Qualified constitutional, federal-courts, tax, appropriations, judicial-administration, and legislative-counsel review

Full Review History: EMOL-015 review history

Annotation

Covered personal claims. The conflict arises when a covered executive official brings, maintains, settles, compromises, or receives payment on a personal-capacity civil claim against the United States or an executive entity the official can influence. The ordinary litigation caption may suggest adverseness, but the official may retain practical influence over defense strategy, settlement posture, agency cooperation, payment timing, records access, or public explanation. The proposal should not permit evasion by caption. A suit styled as official-capacity litigation should remain outside the restriction only when it is exercised solely on behalf of the United States or the office and does not practically confer personal financial, legal, reputational, reimbursement, indemnification, settlement, or affiliated-entity benefit on the official. This defines statutory coverage rather than a separate manifestation.

Litigation as a payment pathway. The structural risk is not limited to one lawsuit. Litigation and settlement authority can convert a disputed personal claim into a lawful-looking payment pathway. If executive officials functionally control both the claimant side and the defense or payment side, ordinary appropriations discipline, adversarial testing, and public accountability may be weakened. This is the broader remedial rationale drawn from the cited tax-information litigation.

Budgetary impact support. The proposal creates no new office, judgeship, direct spending authority, or mandatory appropriation. Incremental workload may fall on filing courts, D.D.C., DOJ, affected agencies, Treasury, IRS, TIGTA, and congressional committees. The Judiciary's fiscal year 2027 request totals \$9.7 billion in discretionary funding. TIGTA's fiscal year 2027 justification requests \$137.661 million and 508 FTE while reporting pressure from mandatory reviews and constrained staffing. Those systemwide figures show capacity context only; neither estimates EMOL-015's caseload or cost. The bill authorizes such sums as may be necessary for fiscal years 2027 through 2033 but provides no budget authority; actual amounts await AOUSC, Treasury, TIGTA, IRS, DOJ, CBO, OMB, and appropriations review.

Basis and Evidence. The retained record supports the lawsuit, tax-confidentiality cause, announced Judgment Fund structure, and July 13 district-court ruling. The primary order controls: it found no genuine adverseness or Article III controversy, found improper purpose and bad faith, imposed sanctions, and barred use of the purported agreement as evidence of a settlement reached in the case, but did not decide

the agreement's validity, Judgment Fund legality, or purported immunity provisions. The internal project review verified the material claims against that order, official statutory and judicial sources, and direct congressional comparators. The same-day posture does not support a conclusion about appeal, reconsideration, fees, discipline, agreement enforcement, or payment implementation.

Qualification. This proposal does not assume that a sitting President or executive official lacks a valid underlying claim. It addresses the separate institutional conflict created when the claimant controls, supervises, or can influence the defendant agency, defense officials, settlement authority, or payment authority. The preferred remedy preserves post-tenure access to court.

President Included. The President is expressly included. The proposal should not permit an argument that the President is excluded because ordinary conflict-of-interest statutes sometimes exempt the President or because Article II gives the President supervisory authority over the executive branch.

Vice President Included. The Vice President remains expressly included, but the internal project review narrows coverage to formal authority, delegated responsibility, or personal participation or direction concerning the decision at issue. Political alignment, White House access, or title alone is insufficient. This preserves anti-evasion coverage without restricting a claim based on speculative influence.

Anti-Evasion. Official-capacity litigation remains available when the official acts solely on behalf of the United States or the office. Coverage requires a material and particularized personal or affiliated benefit, ownership or control, or an equivalent concrete benefit. Incidental reputation, precedent, ideology, political support, membership, access, or litigation strategy does not suffice.

Tax-Administration Integrity. Existing 26 U.S.C. § 7217 restricts specified senior executive actors from requesting that the IRS begin or end a particular taxpayer audit, but it does not expressly invalidate a settlement or assurance promising prospective audit immunity and excludes the Attorney General from one covered category. The proposed amendment is intentionally universal rather than limited to a covered claimant. It distinguishes categorical immunity from lawful closure of specified liabilities under 26 U.S.C. § 7121, compromises under 26 U.S.C. § 7122, judgments, limitations periods, and ordinary neutral IRS discretion. It covers the Attorney General and persons acting for the United States and applies prospectively without reopening completed tax resolutions. This is statutory-gap and remedy analysis derived from the alleged settlement terms in the cited manifestation, not a separate manifestation.

Judicial Scrutiny. The procedural analysis distinguishes threshold, collateral, enforcement, standing, and appeal lanes. The draft does not claim that Congress can create Article III adversity. It makes Rule 41 filings ineffective under an applicable federal statute until screening, mandates dismissal without prejudice when adversity is absent, and places continuing prohibitions and tolling in statute rather than residual merits jurisdiction. Chamber authorization does not manufacture standing; presidential relief runs through responsible subordinate officers; and protected-information, repayment, appeal, controlled-maintenance, and Article II counsel provisions are bounded. Qualified review must still test those applications.

Budgetary Impact. No proposal-specific caseload, staff-hour, or cost source exists. Judiciary and TIGTA figures remain capacity comparators only. The bill creates no office, judgeship, direct spending, or mandatory appropriation. Section 10 supplies a seven-year authorization of such sums as may be necessary, provides no budget authority, and leaves actual amounts to institutional workload development, CBO and OMB analysis, and annual appropriations.

Quality Score. The 83/100 score following the internal project review reflects publication-level source, claim, legislative-form, definition, cross-reference, deadline, appeal, effective-date, authorization, severability, and issue-to-bill verification. The proposal remains capped by same-day docket immaturity, application-specific Article III and Article II risk, uncertain repayment and protected-information operation, no proposal-specific fiscal estimate, limited adoption evidence, and no qualified external validation.

Adoption Score. The 4/12 score reflects H.R. 7007's official substitute, its H.R. 8914 and H.R. 9210 components, S. 4791 with 24 listed cosponsors, a bipartisan House fund-restriction proposal, and a current judicial predicate. None establishes enactment, committee approval, proposal-specific bipartisan support for EMOL-015, polling, or external legal validation.

Adoption Friction. The 80/100 score is high because the proposal directly constrains presidential and senior executive personal litigation benefits, limits settlement discretion, affects Judgment Fund and agency payment practices, and would likely draw Article II, access-to-courts, and partisan-retaliation objections.

Required Electoral Environment. Ordinary federal legislation likely requires a Senate environment capable of overcoming filibuster constraints unless attached to a broader ethics, appropriations, Judgment Fund, or post-crisis institutional-repair vehicle.

Development Priority. The priority is *active* because the issue identifies a distinct conflict-of-interest pathway, has a current source predicate, and may supply a broader structural complement to incident-specific anti-slush-fund legislation.

A-07 — Classification, Declassification, and National-Security Information

Generalized Institutional Concern

The classification system concentrates broad authority within the executive branch while lacking sufficiently clear, enforceable, and independently reviewable procedures governing presidential classification and declassification decisions, documentation, disclosure, retention, and misuse.

Active Issues

- **CLASS-001 — Presidential Classification, Declassification, Documentation, and Custody**
- **CLASS-004 — Overclassification, Concealment, and Independent Review**
- **CLASS-006 — Protection of Classified Information, Sources, and Methods**
- **CLASS-011 — Security-Clearance Integrity**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **CLASS-002, CLASS-003, CLASS-005, CLASS-007** — Merged into CLASS-001 as possession, statutory-exception, selective-declassification, implementation, documentation, and custody components.
- **CLASS-008, CLASS-009, CLASS-010** — Merged into CLASS-004 as overclassification, congressional-access, external-review, and remedy components of one anti-concealment framework.
- **CLASS-012** — Merged into CLASS-006 as the accountability component of protecting classified information, intelligence sources, and methods.

Issue Boundaries

- **CLASS-001** owns the legal and procedural consequences of presidential classification or declassification decisions, including documentation, custody, possession, statutory exceptions such as Restricted Data, archival implementation, and selective release.
- **CLASS-004** owns improper secrecy, overclassification, concealment, congressional access, and independent or judicial review.
- **CLASS-006** owns unauthorized exposure, retention, or disclosure that endangers classified information, intelligence sources, or methods.
- **CLASS-011** remains separate because security-clearance eligibility and retaliation operate through distinct personnel and national-security processes; cross-reference RET-001 when a clearance action is retaliatory.

Notes

CLASS-001, CLASS-004, and CLASS-006 are in development after consolidation. CLASS-011 remains an unresolved candidate. Full source development and initial vehicles are pending.

A-08 — Civil Service and Professional Administration

Generalized Institutional Concern

The executive branch retains excessive practical capacity to convert career administration into a loyalty-based workforce through reclassification, removal, reassignment, hiring control, intimidation, and erosion of merit protections.

Active Issues

- CIV-001 — Civil-Service Merit, Classification, and Anti-Politicization
- CIV-004 — Protection for Refusal of Unlawful Directives
- CIV-005 — Federal Workforce Capacity and Anti-Hollowing
- CIV-009 — Repurposed technical units as cross-agency operational control mechanisms

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- CIV-002, CIV-003, CIV-006, CIV-007 — Merged into CIV-001 as removal, reassignment, loyalty-based hiring, delayed-remedy, promotion, and performance-system components of one merit-system framework.
- CIV-008 — Merged into CIV-005 because mass reductions are a principal mechanism for degrading federal technical and institutional capacity.

Issue Boundaries

- CIV-001 is the primary home for Schedule F, Schedule Policy/Career, or similar reclassification systems; merit-based hiring, promotion, evaluation, discipline, and removal; retaliation for professional judgments; and remedies administered through Title 5, OPM, OSC, and MSPB. HOR-011 is integrated as a source-development manifestation. Initial source leads include Executive Order 14171 and reporting on OPM's later reclassification rule. See *The Guardian*, *Trump administration issues rule that makes it easier to fire federal workers*. Future development should obtain the final rule, litigation filings, union challenges, and prior legislative comparators.
- CIV-004 remains separate because protected refusal of unlawful directives and command responsibility require a narrower trigger than ordinary merit-system administration.
- CIV-005 owns workforce capacity, loss of technical expertise, and large-scale hollowing that impairs statutory functions. It should coordinate with REG-001 when personnel measures functionally disable a congressionally mandated institution.
- CIV-009 concerns the use of an existing technical, digital-service, temporary, advisory, or White House-linked unit to exercise practical cross-agency control over personnel, data systems, software access, contracts, grants, payments, reductions in force, or agency operations without ordinary appointment, delegation, transparency, privacy, records, procurement, appropriations, and oversight safeguards. The DOGE repurposing of the United States Digital Service is the principal source-development example: Executive Order 14158 renamed the United States Digital Service as the United States DOGE Service, created a temporary DOGE organization, directed agency DOGE teams, and called for access to unclassified agency records, software systems, and IT systems. See Executive Order 14158, 90 Fed. Reg. 8441 (Jan. 29, 2025).

CIV-009 owns the **instrument and authority** question: whether a repurposed unit such as DOGE/USDS may exercise cross-agency operational control and whether its appointments, delegations, access, records, privacy, procurement, appropriations, and oversight safeguards are adequate. REG-001 owns the distinct **institutional effect** question: whether DOGE or another presidential instrument substantially and sustainably disables mandatory functions or replaces the congressionally enacted purpose of the affected agency. The same episode may support both issues, but CIV-009 should not require proof that the target agency was functionally nullified, and REG-001 should not duplicate the rules governing DOGE's creation, staffing, or cross-agency access.

HOR-008 is integrated into CIV-009 as a source-development manifestation rather than a new issue. Public reporting on a DOJ court filing described DOGE access to sensitive Social Security Administration data, alleged improper sharing with an advocacy group seeking evidence of voter fraud or election reversal, possible Hatch Act referrals, and use of an unauthorized third-party server. See *The Guardian*, *DoJ improperly shared sensitive social security data, DoJ court filing reveals*. The election-purpose allegation overlaps with ELEC-001, but the primary institutional defect remains CIV-009: irregular cross-agency technical control over sensitive systems without ordinary privacy, records, appointment, delegation, and oversight safeguards.

Notes

CIV-001 and CIV-005 are in development after consolidation. CIV-004 and CIV-009 remain unresolved candidates. Full source development and initial vehicles are pending.

A-09 — Inspectors General, Whistleblowers, and Internal Oversight

Generalized Institutional Concern

Internal watchdogs lack sufficient independence, access, tenure protection, remedial authority, and enforcement capacity to investigate executive misconduct when agency leadership or the president resists.

Active Issues

- **OVS-001 — Inspector General Independence, Access, Reporting, and Follow-Through**
- **OVS-004 — Retaliation Against Whistleblowers**
- **OVS-008 — Independence of Internal Ethics Offices**
- **OVS-009 — Enforcement of Political-Activity Restrictions for Senior Officials**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **OVS-002, OVS-003, OVS-005, OVS-006, OVS-007** — Merged into OVS-001 as acting-service, records-access, report, recommendation, congressional-notice, and follow-through components of one inspector-general framework.

Issue Boundaries

- **OVS-001** owns inspector-general appointment and acting service, removal, access, testimony, reporting, recommendation follow-through, and congressional notification. Cross-reference APPT-001 for generally applicable acting-service rules.
- **OVS-004** remains separate because whistleblower coverage, disclosures, retaliation, confidentiality, administrative exhaustion, and rapid individual relief require a different legal framework.
- **OVS-008** remains separate because internal ethics offices have distinct advisory, disclosure, recusal, discipline, privilege, and enforcement functions that are not equivalent to statutory inspectors general.
- **OVS-009** remains separate because it concerns the external investigation and enforcement route for statutory political-activity restrictions when senior-official status makes ordinary adjudication unavailable or dependent on presidential discipline.

Notes

OVS-001 and OVS-009 are in development. OVS-004 and OVS-008 remain unresolved candidates. OVS-009 was admitted from HOR-032; its constitutional-fit review and initial legislative vehicle remain pending.

OVS-009 — Enforcement of Political-Activity Restrictions for Senior Officials

Issue Snapshot

Problem: Federal political-activity restrictions can produce different enforcement consequences depending on an official's position and whether the President is willing to act.

Repair: Provide a neutral, independently administered enforcement route with meaningful non-removal consequences while preserving constitutional appointment and removal authority.

Vehicle: Pending development.

Institutional Anomaly

Congress has restricted the use of official authority and federal resources for partisan political activity, but enforcement is not uniform across covered personnel. The Office of Special Counsel may pursue ordinary covered employees before the Merit Systems Protection Board. For certain presidentially appointed, Senate-confirmed officials, however, 5 U.S.C. § 1215(b) directs OSC to report its complaint to the President. The treatment of commissioned White House officers has also shifted with OSC's interpretation of its own jurisdiction.

The defect is not political activity by public officials as such, nor disagreement with a particular administration. It is the absence of a stable, reciprocal enforcement mechanism when a covered senior official's position makes ordinary adjudication unavailable or dependent on presidential discipline.

Manifestation of the Failure

Senior-official violations with administration-dependent consequences

OSC's 2021 investigation found Hatch Act violations by thirteen senior Trump administration officials and described a recurring enforcement weakness across presidential administrations: violations by senior officials may be referred to the President without any independently imposed consequence. The report also reviewed senior-official enforcement controversies during the George W. Bush and Obama administrations, demonstrating that the structural question is not party-specific.

OSC has continued to make findings or pursue enforcement involving senior officials, including former U.S. Attorney Rachael Rollins, former Secretary of the Navy Carlos Del Toro, and former White House official Neera Tanden. These matters followed different routes depending on position and employment status.

Unstable treatment of commissioned White House officers

In May 2024, OSC announced that it would present alleged Hatch Act violations by White House commissioned officers to the MSPB. In April 2025, OSC rescinded that position, citing statutory-jurisdiction and constitutional concerns, and returned to transmitting findings to the President. The reversal left the practical enforcement route dependent on an agency interpretation that changed between administrations.

Resulting Damage

The uneven enforcement structure can:

1. make consequences depend on presidential willingness to discipline political allies;
2. apply materially different procedures to comparable prohibited conduct;
3. permit an administration change to alter enforcement without legislation;
4. reduce deterrence for officials with the greatest ability to use public authority and resources; and
5. weaken public confidence that political-activity rules operate reciprocally.

Underlying Weakness

The Hatch Act and OSC statutes combine substantive restrictions with position-specific enforcement paths. Existing law may leave OSC able to investigate and report but unable to obtain an independent adjudication or meaningful consequence for some senior officials. OSC's December 2025 advisory indicates that recent MSPB adjudication partly reduced the former-employee gap, but it does not resolve the separate treatment of covered officials whose cases are referred to the President.

Preliminary Remedy Direction

The least-complex remedy should build on OSC, the MSPB, and ordinary judicial review rather than create another adjudicative system. Development should test whether Congress can authorize independently adjudicated civil, financial, disclosure, or future-service consequences for covered senior officials while preserving the President's constitutional appointment and removal authority.

Any remedy should apply reciprocally across administrations, define covered conduct by neutral statutory criteria, preserve ordinary notice and hearing rights, and distinguish official-resource misuse from protected political speech. The President and Vice President should remain outside the proposal unless a later constitutional review identifies a narrow permissible rule.

Proposed Legislation

- Pending development.

Relationship to Adjacent Proposals

OVS-008 concerns the independence and function of internal executive-branch ethics offices. OVS-009 concerns external investigation and enforcement of statutory political-activity restrictions for senior officials.

ELEC-001 concerns federal interference with State and local election administration. ELEC-012 concerns campaign-finance regulation. Neither owns the senior-official enforcement route addressed here.

CIV-001 concerns the broader merit-based civil-service system. OVS-009 is narrower and focuses on enforcement architecture for senior officials.

Budgetary Impact Statement

No reliable estimate is available before remedy selection. Using OSC, the MSPB, and existing courts would likely require additional investigative, adjudicative, litigation, and reporting capacity, but should be less costly than creating a new tribunal. A later estimate should distinguish added case volume from any new sanction-administration duties.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Not Scored; initial proposal vehicle pending)

Adoption Friction: N/A

Required Electoral Environment: N/A

Development Priority: N/A

Internal Review Status: In development; admitted from HOR-032 after cross-administration enforcement review

Last Internal Review: Horizon candidate admission and source-development review

Scoring Standard: 2026-06-27.2; **Scoring Basis:** Current unscored status; **Revision Review Needed:** No

Next Review: Complete the constitutional-fit and existing-law review, then select and draft the least-complex adequate enforcement vehicle

Full Review History: OVS-009 review history

Annotation

Horizon provenance. OVS-009 was admitted from HOR-032 on July 20, 2026. The candidate originated as preliminary intake INTAKE-GAP-001 and was initially placed near election proposals. Review showed that the recurring defect is better characterized as an oversight-and-enforcement gap rather than election administration or campaign finance.

Neutrality boundary. The proposal does not presume that every political communication or appearance by a senior official violates law. It addresses only conduct covered by neutral statutory restrictions and applies regardless of party, administration, or political beneficiary.

Development notice. OVS-009 has no proposed legislation yet. Until a concrete vehicle is drafted, review should remain focused on existing-law fit, constitutional limits, enforcement history, and remedy selection; the proposal remains unscored rather than receiving a formula-based Proposal Quality Score.

Source Notes

The source inventory records the statute, OSC reports, enforcement matters, and advisory changes supporting initial admission. Future development should examine MSPB decisions, judicial review, sanction design, presidential removal doctrine, and the precise status of each covered category before drafting.

A-10 — Emergency Powers and Domestic Executive Authority

Generalized Institutional Concern

Presidents can invoke broadly worded emergency statutes to unlock extraordinary powers without sufficiently demanding findings, narrow scope, firm time limits, recurring legislative approval, or prompt judicial review.

Active Issues

- **EMERG-001 — National-Emergency Declarations, Renewal, and Review**
- **EMERG-003 — Emergency Economic Powers as a Substitute for Legislation**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **EMERG-004 through EMERG-008** — Merged into EMERG-001 as subject-matter, termination, renewal, findings, and expedited-review components of the general national-emergency framework.
- **EMERG-002** — Merged into FUND-001 as the emergency-activated appropriation-redirection manifestation, with EMERG-001 retaining the declaration and review cross-reference.

Issue Boundaries

- **EMERG-001** owns declaration predicates, findings, scope, duration, renewal, congressional termination, and general expedited review under domestic emergency statutes.
- **EMERG-003** remains separate because IEEPA sanctions, tariffs, transactions, foreign-nexus requirements, and international-economic effects require a distinct statutory vehicle.
- FUND-001 owns emergency authority used to redirect or withhold appropriated funds contrary to enacted fiscal commands.

Notes

EMERG-001 is in development after consolidation. EMERG-003 remains a candidate with a substantive issue page and first statutory draft; its admission-stage internal review remains pending.

EMERG-003 — Emergency Economic Powers as a Substitute for Legislation

Issue Snapshot

Problem: General emergency authority can become a substitute for congressional authorization of major sanctions policy.

Repair: Require a direct nexus to the declared threat and specific legislation before sanctions target adjudicative or related legal activity.

Vehicle: Emergency Economic Powers Specificity and Adjudicative Independence Act.

Institutional Anomaly

The International Emergency Economic Powers Act (IEEPA) permits the President to regulate transactions and block property after declaring an emergency concerning an “unusual and extraordinary threat” originating substantially outside the United States. The statute also says that those powers may be used only to address that threat. See 50 U.S.C. § 1701.

Those limits do not presently require Congress to enact the particular sanctions policy, a direct and substantial nexus between each target and the declared threat, or specific authorization before economic sanctions are imposed because a person performed judicial, prosecutorial, investigative, defense, evidentiary, or supporting work. The result is a structural substitution risk: a President can describe a disputed international legal process as a foreign-policy emergency and use a general 1977 delegation to implement a sanctions regime that Congress considered but did not enact.

The defect is not disagreement with a particular foreign-policy outcome. It exists whenever either party uses general emergency power to establish a major sanctions policy that Congress has not specifically authorized.

Manifestations of the Failure

Congress enacted a narrower and internally differentiated ICC policy

The American Servicemembers’ Protection Act of 2002 (ASPA) establishes substantial congressional opposition to unconsented International Criminal Court jurisdiction. Among other restrictions, it bars federal, state, and local cooperation with ICC requests, extradition to the ICC, specified support, and use of appropriated funds to assist ICC proceedings against United States citizens or permanent residents. See 22 U.S.C. § 7423.

That enacted baseline is not a general statutory authorization to block the property of judges, prosecutors, witnesses, lawyers, victims’ representatives, or organizations that supply information to a court. Congress has also preserved authority to assist international efforts involving foreign nationals accused of genocide, war crimes, or crimes against humanity and expressly permits assistance to ICC investigations and prosecutions of foreign nationals related to Ukraine. See 22 U.S.C. § 7433. The statutory policy is therefore oppositional in some respects and selectively cooperative in others.

Congress considered but did not enact a new ICC sanctions mandate

H.R. 23, the proposed *Illegitimate Court Counteraction Act*, would have required property-blocking and entry sanctions against persons who participated in or materially assisted specified ICC action. The House passed the bill 243–140 on January 9, 2025. On January 28, the Senate voted 54–45 for cloture on the motion to proceed, short of the required threshold; the bill did not become law. See [Congress.gov bill text and action history](#).

Failure to enact a bill does not itself create a statutory prohibition, and ARRP does not infer the intent of individual legislators from that result. It does establish the narrower institutional fact that Congress had not enacted the specific sanctions authority contained in H.R. 23 when the executive branch created a substantially similar sanctions program through IEEPA.

Executive Order 14203 supplied the un-enacted sanctions policy

On February 6, 2025—nine days after the failed Senate cloture vote—Executive Order 14203 declared that any ICC effort to investigate, arrest, detain, or prosecute broadly defined protected persons constituted an unusual and extraordinary threat. The order authorized property blocking against persons who engaged in those efforts, supplied material assistance or services, or acted for a blocked person. It also invoked immigration authority to suspend entry. See Executive Order 14203.

The order and H.R. 23 are not identical. The bill would have made specified sanctions mandatory and supplied detailed statutory definitions; the order delegates discretionary designation authority within the executive branch. The significant point is functional: the President used general emergency and immigration delegations to establish the central property-blocking and entry-sanctions policy that Congress had considered in specific legislation but had not enacted.

The sanctions program reached adjudicative personnel and supporting organizations

The Office of Foreign Assets Control identifies IEEPA, the National Emergencies Act, Executive Order 14203, and 31 C.F.R. part 528 as the legal framework for the ICC-related sanctions program. See OFAC’s program page. OFAC designated the ICC Prosecutor in February 2025, four ICC judges in June 2025, four additional judges in August 2025, the nongovernmental organization Al-Haq in September 2025, and additional judges in December 2025. See, for example, the February 2025, June 2025, August 2025, September 2025, and December 2025 OFAC actions.

On July 13, 2026, Reuters reported that a State Department official described a broader effort to isolate or “dismantle” the ICC and said that additional sanctions, travel restrictions, action against affiliated organizations, and diplomatic pressure on other states were under

consideration. See Reuters. Those reported future measures remain contemplated rather than established facts. The existing executive order, regulations, and designations are implemented policy.

Reversible executive policy produces institutional instability

This is not the first IEEPA sanctions program aimed at ICC-associated persons. Executive Order 13928 created an ICC program in 2020; Executive Order 14022 terminated it in 2021; Executive Order 14203 created a new program in 2025. The Congressional Research Service records both episodes within the broader expansion of IEEPA from country-based emergencies to sanctions against groups and individuals. See CRS, *The International Emergency Economic Powers Act: Origins, Evolution, and Use*.

That sequence demonstrates the institutional problem independently of the merits: a consequential international sanctions policy can be created, rescinded, and recreated by successive Presidents without new legislation.

Resulting Damage

Using general emergency authority as a substitute for specific legislation can:

1. displace Congress from deciding whether a new sanctions category should exist and what limits, exceptions, waivers, and reporting duties should govern it;
2. convert a disputed legal or diplomatic position into an “emergency” without requiring a direct and substantial connection between each target and a concrete external threat;
3. impair judicial and prosecutorial independence by attaching severe economic consequences to ordinary adjudicative activity and to lawyers, witnesses, experts, victims’ representatives, or organizations that support it;
4. chill lawful transactions by United States persons who cannot safely determine how far “material assistance” or “services” prohibitions extend;
5. produce rapid policy reversals across administrations and reduce the reliability of United States commitments to allies and international institutions; and
6. create tension within enacted congressional policy when broad pressure on an institution may weaken capacities Congress expressly preserved for investigations involving foreign nationals in Ukraine.

The last point does not establish that any specific Ukraine investigation has been obstructed. It identifies a statutory-coherence risk: executive action aimed at weakening the institution as a whole may work against a limited cooperation channel Congress deliberately left open.

Underlying Weakness

50 U.S.C. § 1702 grants expansive transactional and property-blocking authority and contains important exceptions for personal communications, humanitarian donations, informational materials, and travel. It does not contain a comparable rule for adjudicative and related legal activity or require specific congressional authorization before that activity becomes the basis for sanctions.

50 U.S.C. § 1703 requires consultation and reports explaining the emergency, authority, action, necessity, and affected countries. Reporting does not force the executive to identify a specific enacted sanctions mandate, publish the individualized nexus for each designation, or obtain legislation before creating a new protected-activity sanctions category.

The National Emergencies Act permits Congress to terminate an emergency by enacted joint resolution and directs each chamber to consider termination every six months. See 50 U.S.C. § 1622. Because a termination resolution ordinarily must survive presentment and a possible veto, that procedure asks Congress to assemble a veto-proof coalition to reclaim authority after the President has acted. CRS reports that no national emergency has been terminated without presidential consent and that neither chamber has performed the required six-month review for an IEEPA emergency. See the CRS IEEPA report.

The result is a one-way institutional ratchet: a simple presidential declaration can create the program, while effective congressional reversal may require supermajority support.

Proposal Survey

Congress has used at least three relevant models.

First, IEEPA itself contains categorical exceptions for communications, humanitarian donations, informational materials, and travel. A protected-activity limitation therefore fits the statute’s existing architecture.

Second, Congress often legislates sanctions expressly. For example, 50 U.S.C. § 1708 identifies covered cyber-espionage conduct and authorizes IEEPA blocking against defined persons. H.R. 23 followed the same specific-authorization model for ICC sanctions, although it did not become law.

Third, National Emergencies Act reform proposals have used a congressional-approval model for emergencies continuing beyond a short period. CRS identifies repeated proposals requiring a joint resolution of approval, including a 30-day model. That broader declaration, duration, termination, findings, and review framework is consolidated in EMERG-001. EMERG-003 instead addresses the narrower substantive question: whether general emergency power authorizes the particular sanctions category at all.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a targeted amendment to existing law rather than a new tribunal or a comprehensive rewrite of emergency law. It should:

1. require each IEEPA action to be reasonably tailored to the specific conduct described in the emergency report and supported by a direct and substantial nexus to the declared threat;
2. prohibit property, transaction, entry, or visa sanctions based substantially on covered adjudicative activity unless an Act of Congress specifically authorizes that category;
3. prevent circumvention through sanctions against lawyers, witnesses, experts, service providers, or organizations solely because they assist covered activity;
4. preserve sanctions based on independently sanctionable conduct such as corruption, violence, terrorism, cyber intrusion, theft, or obstruction, when established without treating the adjudicative activity itself as the offense;
5. require an individualized unclassified explanation, with a classified annex where necessary;
6. provide expedited review in the United States District Court for the District of Columbia and ordinary appeal to the D.C. Circuit; and
7. require existing covered restrictions to be reviewed and either placed on a specifically enacted basis or terminated after a short transition.

Repair and Prevention

For existing programs, the executive branch would receive 60 days to identify a specific statutory authorization or an independent sanctionable basis for each covered restriction. A restriction lacking either basis would terminate, blocked property would be released subject to unrelated lawful restraints, and covered list entries would be removed.

Prospectively, the statute would force the political branch constitutionally responsible for legislation to decide whether judicial or related legal activity should itself trigger sanctions. A President could still respond immediately to independently wrongful conduct under IEEPA or another statute. What the President could not do is convert the ordinary work of an international or foreign adjudicative body into a sanctions category without Congress enacting that policy.

Proposed Legislation

- Emergency Economic Powers Specificity and Adjudicative Independence Act

Relationship to Adjacent Proposals

- **EMERG-001** owns general emergency declarations, termination, renewal, findings, and judicial review. EMERG-003 supplies only the findings and cause of action needed to enforce its narrower substantive limit.
- **CONG and WAR issues** may address international commitments or armed conflict, but this proposal does not regulate treaty withdrawal, military force, or ordinary diplomatic advocacy.
- **JUD-011** is not the primary remedy. The defect is the scope of delegated emergency authority before a new congressional mandate exists, not executive nullification of an enacted mandate.

Budgetary Impact Statement

Preliminary classification: Low administrative and litigation impact. Treasury, State, Justice, and the federal courts already administer designations, licenses, visa restrictions, reports, and sanctions litigation. The proposal adds individualized explanations, transition review, and expedited cases but creates no new agency, tribunal, judgeship, grant program, or entitlement. The first draft directs implementation from otherwise available appropriations. The further internal review should test likely review volume and whether a narrow authorization is needed for temporary staffing or systems changes.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Unscored candidate)

Required Electoral Environment: Unified congressional enactment or sufficient cross-party support to overcome presidential opposition

Development Priority: High

Internal Review Status: First statutory draft complete; internal project review pending

Last Internal Review: HOR-030 integration and initial statutory draft

Scoring Standard: 2026-06-27.2; **Scoring Basis:** Current unscored status

Next Review: Internal project review of statutory scope, immigration coordination, judicial review, transition, and implementation

Full Review History: EMERG-003 review history

Annotation

This proposal deliberately does not decide whether the United States should join the Rome Statute, recognize a particular ICC exercise of jurisdiction, cooperate with the ICC, fund the ICC, surrender a person, or support any particular investigation or prosecution. ASPA's enacted noncooperation rules and its limited assistance authority remain in place.

The proposal also does not treat H.R. 23's failure as a legal veto. Legislative inaction has multiple possible explanations and ordinarily carries little interpretive weight. The relevant fact is more limited: no specific ICC sanctions act had been enacted, so the executive program depended on general IEEPA and immigration delegations rather than the sanctions policy Congress had considered in express terms.

Congress would remain free to enact substantively identical sanctions after debate and presentment. The reform assigns that decision to legislation; it does not predetermine the decision.

Source Notes

- Primary statutory authorities: 50 U.S.C. §§ 1701–1703, 50 U.S.C. § 1622, 22 U.S.C. § 7423, and 22 U.S.C. § 7433.
- Specific congressional and executive records: H.R. 23, Executive Order 14203, and the 2026 continuation notice.
- Implementation and institutional context: OFAC ICC-related sanctions, CRS on IEEPA, the July 2, 2026 DOJ jurisdiction letter, and Reuters reporting of July 13, 2026.

A-11 — Executive Impoundment and Departure from Congressional Spending Decisions

Generalized Institutional Concern

The executive branch can implement policy beyond or contrary to Congress's enacted spending decisions by delaying, conditioning, redirecting, or refusing appropriated funds, while available enforcement mechanisms remain too slow, uncertain, or politically dependent.

Active Issues

- **FUND-001 — Fiscal Implementation of Ultra Vires Executive Directives**
- **FUND-002 — Pocket Rescissions and Strategic Delay**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **FUND-003, FUND-005, FUND-006, FUND-007, FUND-008** — Merged into FUND-001 as program-nullification, reprogramming, standing, remedy, accountability, and reporting components of its fiscal implementation framework.
- **EMERG-002** — Integrated into FUND-001 as the emergency-authority appropriation-redirection manifestation.
- **FUND-004** — Merged into FED-003 for state and local funding coercion, with RET-001 retaining the cross-sector retaliation mechanism and FUND-001 retaining enacted-appropriation enforcement.

Issue Boundaries

- FUND-001 owns spending, nonspending, apportionment, reprogramming, transfer, program nullification, fiscal implementation of ultra vires executive directives, standing, remedies, accountability, and real-time GAO or congressional reporting.
- FUND-002 remains separate because pocket rescissions exploit expiration and release timing even without FUND-001's repeated-unlawful-directive trigger.
- FED-003 owns federal funding or benefit conditions used to compel state or local policy change; RET-001 owns retaliation through grants or other federal benefits across recipient classes.

Notes

FUND-001 remains 83/100 and Review Ready after a targeted consolidation review found that its current issue and standalone bill already cover the absorbed fiscal mechanisms. FUND-002 has a candidate issue framework. Further FUND-001 advancement requires qualified appropriations, federal-courts, budget, program-administration, and legislative-counsel review plus proposal-specific workload evidence and a current-litigation refresh before circulation.

FUND-001 — Fiscal Implementation of Ultra Vires Executive Directives

Issue Snapshot

Problem: Agencies may use spending, nonspending, or program administration to implement executive directives that exceed lawful authority.

Repair: Enforce enacted appropriations and program mandates before implementation of ultra vires directives—directives beyond lawful authority—creates irreversible facts.

Vehicle: Interbranch Review Framework Act (JUD-011) alone (preferred); standalone FUND-001 (independent alternative).

Institutional Anomaly

Executive orders and presidential memoranda can be lawful tools for supervising the executive branch, coordinating agency action, and implementing statutes. FUND-001 addresses the narrower structural danger that arises when agencies use appropriated funds, nonspending, apportionment, grant administration, or statutory-program execution to implement executive directives beyond lawful authority. Its standalone trigger requires a pattern of qualifying final judicial judgments before the special fiscal constraints apply.

Direct regulation of the President's issuance of executive orders would raise serious Article II and separation-of-powers questions. The more durable statutory hook is Congress's power of the purse. A presidential directive may exist as an internal instruction, but agencies should not be able to use appropriated funds, apportionment authority, grant administration, program execution, or nonspending to implement a pattern of directives that courts or the Comptroller General have already identified as unlawful.

FUND-001 therefore treats repeated unlawful covered executive directives as an appropriations-control problem. The proposal does not nullify executive orders as presidential speech or internal management documents. It makes new covered directives and continuing implementation of lookback-period covered directives temporarily fiscally inert after an objective trigger, unless the implementing agency and OMB identify lawful statutory authority and survive an expedited review path.

Manifestations of the Failure

Youngstown and Train — executive action displaced by congressional law

In *Youngstown Sheet & Tube Co. v. Sawyer*, the Supreme Court set aside an executive order that lacked statutory or constitutional authority and conflicted with Congress's allocation of power. In *Train v. City of New York*, it rejected executive nonspending that frustrated Congress's statutory allotment direction. The decisions illustrate the recurring problem that executive implementation can displace Congress's policy or spending command before judicial relief arrives.

Anticipatory implementation of rejected NASA cuts

NASA's fiscal year 2026 budget request proposed \$18.8 billion, down from about \$24.8 billion in fiscal year 2025, but Congress later provided roughly \$24.4 billion. A House Science Committee Democratic staff report stated that NASA officials nevertheless began implementing requested reductions during 2025, including terminating work and dispersing personnel on the Electrified Powertrain Flight Demonstration after the request proposed no funding; NASA's later spending plan included \$40 million for the project. The episode illustrates how anticipatory program-execution decisions can impair Congress's ability to preserve a program even when it rejects a proposed cut. No court or GAO has found an Impoundment Control Act violation in this episode, and program-level apportionment, reprogramming, and obligation records remain necessary to establish unlawful withholding.

Directive-based funding suspensions

Executive Order 14169 imposed a 90-day pause on new foreign-assistance obligations and disbursements, subject to review and waivers. Other directive-based suspensions produced merits rulings: a D.D.C. court permanently enjoined enforcement of an order barring federal funding for NPR and PBS; a W.D. Washington court vacated the suspension of State electric-vehicle infrastructure plans; and the First Circuit affirmed enforcement against FEMA in part while narrowing relief that directly compelled grant disbursements. The decisions rest on different constitutional, statutory, and remedial grounds. Together they show the recurring gap FUND-001 addresses: implementation can begin before Congress changes the governing funding law, while ordinary litigation may provide program-specific and differently bounded relief.

Resulting Damage

Fiscal implementation of ultra vires executive directives damages Congress's power of the purse, statutory program reliability, federalism, equal administration, and democratic accountability. It lets the executive branch obtain time-sensitive policy results before legality is resolved, burdens states and private parties with emergency litigation, and can make judicial victory incomplete because funding, staffing, deadlines, or institutional capacity have already been disrupted.

Underlying Weakness

Existing law may lack:

- a pattern-based trigger for repeated unlawful executive directives;
- a clear rule that covered directives become fiscally inert as to their scope after the trigger;

- a lookback rule for continuing implementation of earlier covered directives issued in the same presidential term;
- a prohibition on spending, withholding, delaying, apportioning, reprogramming, or conditioning funds to implement a covered directive during the review period;
- OMB-specific duties for apportionment, deferral, and legal-authority certification;
- expedited review for states, congressional institutional plaintiffs, affected recipients, and program beneficiaries;
- a remedy that prevents both spending to implement unlawful directives and nonspending to effectuate them;
- safe-harbor protection for officials who refuse to implement directives that lack statutory authority during the review period.

Proposal Survey

The existing statutory foundation is the Impoundment Control Act of 1974. Rescission proposals are governed by 2 U.S.C. § 683, and deferrals are governed by 2 U.S.C. § 684. The Comptroller General may bring a civil action to enforce release of budget authority under 2 U.S.C. § 687.

The Supreme Court has rejected presidential nonspending where Congress directed funds to be allotted. In *Train v. City of New York*, the Court held that the executive could not frustrate the will of Congress by allotting less than the statutory formula required. In *Youngstown Sheet & Tube Co. v. Sawyer*, the Court rejected an executive order that lacked statutory or constitutional authority and conflicted with Congress's allocation of power.

The proposal draws from those sources but adds a new pattern-response mechanism. The closest functional analogue is not a legislative veto of executive orders. It is an appropriations rule: after repeated unlawful covered directives, new covered directives and continuing implementation of lookback-period covered directives may not be funded, used to withhold funds, or implemented through apportionment unless lawful authority is publicly certified or expedited review permits implementation.

Lisa Manheim and Kathryn A. Watts's article *Reviewing Presidential Orders* provides an important scholarly frame for this proposal. The article explains that presidents increasingly rely on executive orders and other unilateral written directives to influence agency policymaking, while courts lack a coherent framework for direct review of presidential orders. It also distinguishes the traditional route of challenging agency implementation under administrative-law doctrines from newer direct challenges to presidential orders. FUND-001 uses that distinction by regulating agency implementation and appropriated funds rather than attempting to invalidate presidential orders directly.

Least-Complex Adequate Remedy

The preferred remedy is the Interbranch Review Framework Act (JUD-011) alone because its generally applicable anti-nullification claim reaches substantial and sustained executive displacement of enacted appropriations and program mandates without a subject-matter opt-in. If Congress rejects that general framework, the least-complex independent alternative is FUND-001: federal legislation amending the Impoundment Control Act and related appropriations-enforcement rules. A constitutional amendment should be reserved only if Congress seeks to directly invalidate executive orders, impose presidential disabilities, or regulate the President's issuance authority rather than agency implementation and appropriated funds.

Repair and Prevention

Congress should create an **Executive Directive Impoundment Review** regime.

The statute should:

1. define covered executive directives to include executive orders, presidential memoranda, OMB directives, and other presidential or Executive Office instructions that materially affect appropriated funds, statutory program execution, grants, benefits, apportionment, reprogramming, enforcement capacity, or state-administered programs;
2. limit trigger findings to qualifying final judicial judgments involving distinct directives, while using Comptroller General findings as notice, evidence, and support for existing enforcement rather than as self-executing triggers;
3. activate a temporary review period after a specified number of trigger findings within a defined time window;
4. make new covered directives fiscally inert as to their covered scope during the review period;
5. require lookback review of continuing implementation actions under earlier covered directives issued in the same presidential term;
6. prohibit agencies and OMB from obligating, expending, withholding, delaying, deferring, apportioning, reprogramming, or conditioning funds to implement a covered directive unless the statutory process is satisfied;
7. require a public legal-authority certification from OMB and the implementing agency;
8. provide expedited three-judge review with D.C. Circuit appeal and certiorari review;
9. preserve emergency implementation only for narrow, time-limited, certified circumstances;

10. protect career and other covered employees who decline implementation where the directive lacks required certification or review clearance without restricting presidential removal of constitutionally removable appointees;
11. preserve ordinary executive orders that do not affect appropriations, statutory program execution, or covered democratic/federalism structures.

Proposed Legislation

Primary remedy — enact the Interbranch Review Framework Act (JUD-011) alone

- Interbranch Review Framework Act (JUD-011)

The Interbranch Review Framework Act (JUD-011) itself supplies the cause of action, eligible-plaintiff rules, anti-nullification threshold, D.D.C. forum, relief, and appellate procedure. It applies because the alleged executive conduct meets that general statutory test, not because FUND-001 opts in or is enacted.

Independent legislative alternative — enact FUND-001 alone

- FUND-001 — Ultra Vires Executive Directive Fiscal Review Act

FUND-001 is a complete appropriations-specific remedy Congress may enact if it rejects the Interbranch Review Framework Act (JUD-011). It independently supplies the trigger, fiscal-inertness rules, certification process, cause of action, plaintiffs, relief, three-judge D.D.C. procedure, and D.C. Circuit review. It does not rely on JUD-011 or another ARRP proposal.

Interbranch Review Pathways

Preferred remedy: Enact the Interbranch Review Framework Act (JUD-011) alone. Its coverage is automatic across subject matters when executive conduct substantially and sustainably nullifies an enacted mandate.

Independent alternative: Enact FUND-001 alone. Section 1026 supplies its own three-judge D.D.C. panel, temporary relief, expedition, remedies, and D.C. Circuit review.

Congressional choice: These are separate enactment choices, not two modes of FUND-001. Neither bill activates or depends on the other.

Relationship to Adjacent Proposals

- **FUND-002** concerns pocket rescissions and strategic delay. FUND-001 owns the repeated-unlawful-directive trigger and fiscal-inertness mechanism.
- FUND-003, FUND-005, FUND-006, FUND-007, and FUND-008 are integrated here as program-nullification, reprogramming, standing, remedy, accountability, and reporting components. The existing issue and standalone bill already address those mechanisms through covered fiscal actions, eligible plaintiffs, specific relief, protected employee reporting, GAO access, and congressional notice.
- FUND-004 is integrated into FED-003 for state and local funding coercion and RET-001 for cross-sector retaliation. FUND-001 remains applicable when the same conduct violates an enacted appropriation or program mandate.
- EMERG-002 is integrated here as the emergency-authority appropriation-redirection manifestation. EMERG-001 retains declaration, duration, renewal, and general emergency-review rules.
- JUD-005 supplies automatic public notice after judicially established executive noncompliance; the project does not treat unified-government oversight inaction itself as an independently remediable institutional defect.
- **FED-003** concerns coercive grant conditions imposed on states or local governments.
- **JUD-001** concerns judicial enforcement after a court has issued an order requiring executive compliance.
- The **Interbranch Review Framework Act (JUD-011)** is the preferred general anti-nullification remedy and applies without subject-matter designation. FUND-001 is a separate, complete appropriations-specific alternative.

Budgetary Impact Statements

Preferred remedy — Interbranch Review Framework Act (JUD-011)

Budget authority is likely required under JUD-011 for its launch and contingent judgeships and shared judicial administration. FUND-001 adds no separate judicial apparatus under this path, although a particular dispute may create OMB, agency, GAO, release, or restoration costs.

Independent alternative — standalone FUND-001

Budget authority is likely required. The standalone bill authorizes necessary OMB, agency, GAO, and judicial-administration appropriations but does not provide a fixed amount; no proposal-specific cost estimate is available.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 83 / 100 (Review Ready)

Adoption Score: 4 / 12 (Limited Adoption Basis)

Adoption Friction: 82 / 100 (Extreme Resistance)

Required Electoral Environment: sixty-vote-senate

Development Priority: active

Internal Review Status: Internal project review complete; fiscal-scope and title revision reviewed; qualified review pending

Last Internal Review: Fiscal-scope and title targeted internal revision review (2026-07-15)

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current project standard

Revision Review: Current for the fiscal-scope framing, NASA manifestation, JUD-011 coverage, the standalone alternative, and both budget pathways

Next Review: Qualified appropriations, federal-courts, budget, and legislative-counsel review; obtain NASA program-level apportionment, reprogramming, and obligation records

Full Review History: FUND-001 review history

Annotation

Executive-order comparator limits. The FUND-001 judicial-review comparator and its companion dataset retain the detailed research. No identified source directly compares executive-order-specific unlawfulness across administrations. The retained sources support only non-equivalent proxies: the Federal Register provides executive-order counts; CRS reports nationwide-injunction counts for the first Trump and Biden administrations in *Nationwide Injunctions Under the First Trump Administration and the Biden Administration*; AttorneysGeneral.org and its methodology provide broader multistate-litigation data; Ballotpedia routes Biden-era cases; and the Associated Press supplies a second-Trump-administration court-blocking proxy. Because orders, cases, injunctions, and findings of unlawfulness are different denominators, the incomplete comparison is retained as a research limitation rather than presented as a manifestation or cross-administration conclusion.

Pattern trigger and lookback design. Ordinary litigation can stop a single unlawful action, but it may not address a pattern. If several covered executive directives are found unlawful, the legal system has identified a repeat institutional failure. A repeated-failure trigger should not require impeachment before Congress can protect later appropriations from similar abuse. Because Presidents often issue numerous executive orders at the beginning of a term, a purely prospective trigger would leave first-day directives untouched even if later legal findings reveal a pattern of unlawful directive-based implementation. FUND-001 therefore requires a lookback review for covered directives issued earlier in the same presidential term that continue to affect appropriated funds, statutory programs, grants, benefits, apportionments, or agency operations after the trigger. The lookback mechanism does not retroactively void executive orders or unwind completed actions automatically; it requires continued implementation to be certified, narrowed, paused, or reviewed. These are remedy-design choices rather than separate manifestations.

Political, emergency, and federalism risks. If the President's party controls Congress or key committees, oversight, appropriations riders, subpoena enforcement, contempt, and impeachment may fail as practical checks. The absence of political enforcement makes neutral, rule-bound, court-accessible appropriations safeguards more important. Emergency powers, disaster aid, infrastructure funds, civil-rights grants, and state-administered programs can also be vulnerable to directive-based conditions, delays, or redirections. The same impoundment mechanism can become a tool for coercing states, local governments, universities, contractors, or beneficiaries. These propositions explain the breadth and institutional need for the remedy; they are not presented as independent documented incidents.

Detailed budgetary-impact support.

Budgetary pathways.

Preferred remedy — Interbranch Review Framework Act (JUD-011)

The Interbranch Review Framework Act (JUD-011) carries the two additional D.D.C. judgeships and the startup, national-roster, clerk, facilities, technology, secure-record, special-master, emergency-administration, and operating costs of the preferred general remedy. FUND-001 adds no separate judicial apparatus under this path. OMB, agency, GAO, fiscal-release, compliance, and program-restoration costs depend on the underlying dispute and are not included in the Act's judicial appropriation.

Independent alternative — standalone FUND-001. The independent FUND-001 bill separately authorizes such sums as may be necessary for fiscal years 2027 through 2031 for OMB, affected agencies, GAO, and judicial administration; the authorization does not itself provide budget authority. Workload depends on qualifying final judgments, certifications, protected-information handling, and litigation volume. As scale comparators rather than a bill estimate, GAO's fiscal year 2026 request sought \$933.9 million in appropriations for its entire agency-wide mission, a companion GAO budget submission reported more than 550 legal decisions in fiscal year 2024, OMB's federal-program inventory covered more than 2,600 programs and \$7 trillion in spending, and the Judiciary's fiscal year 2026 budget summary attributed \$17.2 million and 170 full-time-equivalent positions to projected court-support workload changes across the federal courts. The closest current legislative analogue, H.R. 5220, has no published CBO estimate. Those government-wide figures do not isolate FUND-001's incremental cost; a proposal-specific CBO score and affected-institution workload estimates remain necessary before Congress selects a fixed appropriation.

Detailed proposal-survey support.

Current-law and prior-proposal findings. The official U.S. Code confirms that 2 U.S.C. § 687 already authorizes the Comptroller General to sue in D.D.C. to require unlawfully withheld budget authority to be made available after congressional notice. FUND-001 preserves that separate authority but no longer lets a GAO opinion itself activate binding constraints on later executive action. That change responds to *Bowsher v. Synar*, which bars an officer subject to congressional removal from executing the laws, while retaining GAO's established investigative, reporting, and litigation roles.

The closest direct legislative analogues are the House-passed Protecting Our Democracy Act, H.R. 5314 (117th Congress) and the pending Congressional Power of the Purse Act, H.R. 5220 (119th Congress). Both use the Impoundment Control Act vehicle for prudent-obligation, apportionment-transparency, GAO-access, enforcement, or penalty reforms. The official House vote records H.R. 5314's 220-208 passage in 2021, with one Republican voting in favor; H.R. 5220 was introduced September 9, 2025, has 21 Democratic cosponsors, remains referred to seven House committees, and has no published CBO estimate. Those records establish a real legislative pathway and substantial drafting precedent, but they also show strong partisan and committee-jurisdiction friction.

The internal project review examined the introduced text of H.R. 5220 section by section. It would add prudent-obligation and expiring-funds rules as section 1018 of the Impoundment Control Act, apportionment reporting as section 1019, penalties as section 1020, expanded GAO access and D.D.C. litigation, and protected-information rules for published Office of Legal Counsel opinions. That confirms the title X amendment and D.D.C. enforcement vehicles used here. FUND-001 remains materially different: it creates a repeated-final-judgment trigger, temporary certification regime, injured-party cause of action, three-judge procedure, and prospective specific relief rather than relying principally on GAO litigation, reporting, and penalties. Congress.gov still reports no action after September 9, 2025, no CBO estimate, 21 Democratic cosponsors, and referral to seven House committees.

GAO's current Impoundment Control Act decision index reports both violation and no-violation decisions concerning fiscal year 2025 program pauses, grant funding, agency reductions, and a presidential wind-energy memorandum. The mixed results matter: they demonstrate both a current enforcement problem and the need to preserve good-faith apportionment and program administration rather than treating every pause or directive as abuse.

Readiness Findings. The independent bill now requires two qualifying final judicial judgments involving distinct directives issued during the current term by the President then serving, with at least one appropriations-specific finding, before the pattern trigger activates; the review period ends no later than that term. Preliminary injunctions, procedural-only APA rulings, multiple judgments arising from the same directive, and GAO opinions standing alone do not count. Filing a complaint also does not freeze implementation. The internal project review expanded the trigger and pre-enactment lookback windows from 24 to 36 months because the official records in the 2018 federal-workforce executive-order litigation and 2025 foreign-assistance litigation show that jurisdictional and appellate disputes can consume many months before finality. The longer window preserves a demanding objective trigger without making it practically unreachable within one presidential term.

The judicial-review section now tracks 28 U.S.C. § 2284: the initially assigned district judge notifies the chief judge of the D.C. Circuit, a single judge is limited to a Rule 65(b) temporary restraining order, and the panel decides preliminary and permanent relief. Appeals proceed to the D.C. Circuit under sections 1291 and 1292 notwithstanding 28 U.S.C. § 1253, with ordinary Supreme Court certiorari preserved.

The statute supplies an express cause of action and waives sovereign immunity for non-damages relief, but it does not purport to manufacture Article III standing. Concretely injured states, grantees, beneficiaries, contractors, and program administrators are the primary plaintiffs. Congress may sue only after both Houses authorize the same action and only if it independently establishes constitutional injury, causation, and redressability. *Raines v. Byrd* forecloses reliance on generalized institutional disagreement by individual legislators, while *Train* demonstrates the stronger route through a government or recipient denied congressionally directed funds.

The D.C. Circuit's amended order in the foreign-assistance cases held that the existing Impoundment Control Act did not give the grantees an APA cause of action to enforce the ICA, while expressly leaving open APA claims based on appropriations Acts. The Supreme Court's later stay order in *Department of State v. AIDS Vaccine Advocacy Coalition*, No. 25A269 similarly expressed only a preliminary view that the ICA precluded the APA theory and that mandamus was unavailable on that record. The Supreme Court's stay in *Department of Education v. California* likewise treated the availability of recovery in an appropriate forum as material to grant-payment relief; it is a forum-and-remedy caution, not a final merits holding. The internal project review therefore makes FUND-001's own cause of action and D.D.C. jurisdiction express, notwithstanding the APA adequate-remedy rule and the Tucker Act jurisdictional grants in 28 U.S.C. § 1491. It treats prospective release or obligation of identified budget authority as specific relief, consistent with *Bowen v. Massachusetts*, but preserves ordinary jurisdictional and administrative channels for claims arising solely under contracts, grants, procurement law, civil-service law, or labor law. That last limit responds directly to the D.C. Circuit's holding that federal unions could not bypass the Civil Service Reform Act review scheme merely by challenging executive orders in district court.

Scope and naming. *Ultra vires* means beyond lawful authority. The title identifies the proposal's limited concern: fiscal or program implementation of covered executive directives after qualifying final judicial judgments, not executive orders generally. JUD-011 remains the project home for the broader anti-nullification remedy. FUND-001 remains in the appropriations area because its independent legal hook is Congress's control over spending, nonspending, apportionment, and statutory-program execution; it does not directly nullify presidential directives.

No Blanket Nullification. The proposal does not declare executive orders void. It makes new covered directives, and continuing implementation of lookback-period covered directives, fiscally inert as to their covered scope during a review period. The President may still issue orders; agencies may not use or withhold appropriated funds to implement covered directives without satisfying the statutory process. Binding consequences arise from the enacted statute and final Article III judgments, consistent with *INS v. Chadha*, not from a

later one-house or legislative-agent veto.

Lookback Review. The lookback rule addresses first-day or early-term executive orders that are already in force when the trigger occurs. It applies only to ongoing or future covered implementation actions and does not automatically unwind completed acts or vested third-party rights. The draft uses a 30-day inventory deadline, 90-day certification deadline, and 180-day fiscal-inertness backstop for continuing implementation, while blocking new covered implementation under lookback directives unless certified. The internal project review found those staged periods facially administrable but did not obtain OMB, agency, or recipient validation; further internal review should seek that input before recommending fixed deadlines as publication-ready.

Objective Trigger. The trigger rests on two qualifying final judicial judgments involving distinct directives issued during the current term by the President then serving, including at least one appropriations-specific finding, within 36 months—not partisan congressional accusation. Preliminary injunctions and GAO opinions may expose urgent violations and support immediate ordinary relief, but they do not activate the broader pattern-response regime. This sacrifices speed at the trigger stage to reduce false positives, duplicate-counting, successor-administration spillover, and *Bowsher* risk. The parallel 36-month pre-enactment lookback prevents the statute from being prospective-only.

Appropriations Hook. The strongest statutory authority is Congress's control over appropriated funds, program terms, apportionment conditions, and agency implementation. The draft should avoid overclaiming Congress's ability to regulate the President's issuance of executive orders directly.

Emergency Exception Risk. Any emergency exception must be narrow. The internal project review retains the initial 14-day period but permits a judicial extension only for 30 days on clear and convincing evidence of continuing imminent harm, likely lawful authority, no narrower lawful measure, and necessity; each additional extension requires a fresh showing. This reduces, but cannot eliminate, the risk that the administration recasts policy preference as emergency program management.

Protected Information. Certifications must publicly identify every legal authority and provide a meaningful unclassified explanation. Protected facts may be placed only in a minimum-necessary annex transmitted to the relevant committees, GAO, and the reviewing court under lawful safeguards. The public record must identify the category and legal basis of withholding and provide a segregable unclassified summary; secrecy cannot conceal the existence of legal authority, a material budget effect, or the responsible official's title.

Standing and Review. The bill separates statutory authorization from constitutional standing. Concretely injured states and program participants supply the principal enforcement path; Congress requires authorization by both Houses plus independent Article III standing; and GAO retains its separate section 1016 authority. The internal project review adds a covered-scope zone-of-interests limitation and an express D.D.C. route for FUND-001 claims, distinguishes prospective specific relief from retrospective damages, preserves specialized review schemes for claims arising solely under other laws, and prevents relabeling. Legislative counsel and appropriations-law reviewers should scrutinize those overrides during the internal project review.

Preferred and Independent Remedies. The Interbranch Review Framework Act (JUD-011) alone is the preferred general remedy; it does not require FUND-001 to opt in. FUND-001 is the independent alternative and now contains no JUD-011 routing or dependency. Its own cause of action, plaintiff categories, trigger, fiscal-inertness rules, emergency exception, three-judge D.D.C. procedure, relief, and expedited D.C. Circuit review operate if Congress enacts FUND-001 by itself.

Quality Score. The 83/100 score uses scoring standard 2026-06-27. 2 remains Review Ready: Structural 8/8; Evidence 11/12; Legal Fit 9/10; Prior-Proposal 7/8; Remedy 11/12; Implementation 7/8; Abuse Resistance 8/8; Drafting 8/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4; Penalties 0. The internal project review completed the public-source work reasonably available for current litigation, direct analogue comparison, codification, protected information, emergency extensions, workload, adoption, opposition, and legal durability. Advanced Review Ready remains unavailable because the proposal lacks qualified external review, proposal-specific cost estimates, deadline validation, a bipartisan adoption coalition, a complete cross-administration trigger comparator, and a final merits resolution of the current impoundment cases.

Adoption Score. The score is 4/12 (Limited Adoption Basis). H.R. 5314 reached House passage and H.R. 5220 supplies a current 21-cosponsor vehicle, but the former passed almost entirely along party lines and the latter has only Democratic cosponsors, no committee action, and no CBO estimate. That supports a real but presently weak ordinary-legislation pathway, not a bipartisan coalition claim.

Adoption Friction. The 82/100 score is Extreme Resistance because the proposal constrains OMB and agency implementation after repeated final judicial findings involving executive directives, may be opposed by presidents of both parties, and would likely draw separation-of-powers, standing, expedited-review, emergency-authority, and appropriations-process objections.

Required Electoral Environment. The required environment is *sixty-vote-senate*, with *Pathway Viability plausible-after-wave* and *Pathway Adjustment stage*. A narrower first stage could focus on appropriations, grant conditions, OMB apportionment, GAO reporting, and expedited review without activating the full pattern-trigger regime.

FUND-002 — Pocket Rescissions and Strategic Delay

Issue Snapshot

Problem: Delay can cancel funds without Congress voting.

Repair: Require timely release, anti-expiration safeguards, and fast enforcement.

Vehicle: Impoundment Control Act amendments.

Institutional Anomaly

Congress may appropriate money for a limited period, but the executive branch can sometimes obtain the practical effect of cancellation by delaying obligation, apportionment, award, or distribution until the funds expire or the statutory purpose becomes impossible to accomplish. That can turn time into a substitute veto.

The institutional defect is not ordinary program administration, fraud review, technical grant processing, or lawful rescission proposals. The defect is strategic delay: using the calendar, apportionment, policy review, legal review, grant processing, or late rescission messages to prevent congressionally enacted funds from being used without Congress affirmatively approving cancellation.

Manifestations of the Failure

Pocket rescissions

Under the Impoundment Control Act, the President may propose rescission of budget authority, but the funds must remain available unless Congress completes a rescission bill within the statutory period. A pocket rescission attempts to send or maintain a rescission proposal so late in the period of availability that the money expires before Congress can act or before agencies can prudently obligate it.

This creates the same practical effect as a line-item veto or unilateral cancellation while preserving the appearance of a formal rescission process.

GAO's decision in *Impoundment Control Act—Withholding of Funds through Their Date of Expiration*, B-330330 supplies the principal source-development anchor for this category.

Strategic apportionment and obligation delay

Strategic delay can also occur without a formal rescission message. OMB or agencies may withhold apportionment, slow award decisions, pause grant processing, order legal or policy review, or impose temporary conditions until the remaining obligation period is too short for meaningful implementation.

The Ukraine security-assistance impoundment dispute is a source-development lead for this problem. GAO concluded in *Office of Management and Budget—Withholding of Ukraine Security Assistance*, B-331564 that OMB violated the Impoundment Control Act when it withheld funds for policy reasons. FUND-002 should test how the timing, apportionment, and policy-review features of that dispute illuminate broader anti-delay safeguards.

Resulting Damage

Pocket rescissions and strategic delay can:

1. defeat Congress's appropriations decisions without bicameralism and presentment;
2. convert temporary withholding into permanent cancellation;
3. make rescission proposals effective without congressional approval;
4. impair grants, contracts, benefits, foreign assistance, state-administered programs, and statutory implementation deadlines;
5. burden recipients with emergency litigation or administrative uncertainty;
6. make GAO or judicial remedies arrive after practical harm is complete;
7. distort agency planning and procurement; and
8. weaken Congress's power of the purse by making appropriations depend on executive timing choices.

Underlying Weakness

The Impoundment Control Act regulates rescissions and deferrals, but strategic delay can exploit timing gaps. The statute's 45-day rescission mechanism, apportionment practice, agency obligation cycles, and GAO enforcement may be too slow or under-specified when budget authority is close to expiration.

The key weakness is not only whether funds are formally withheld. It is whether executive delay leaves agencies and recipients with a realistic opportunity to obligate, award, distribute, or use the money for the purpose Congress enacted.

Proposal Survey

Any FUND-002 proposal should consider several remedy paths before drafting:

Anti-expiration rule. Provide that a rescission proposal, deferral, apportionment action, legal review, policy review, or comparable withholding action may not cause budget authority to expire, lapse, or become impracticable to use absent completed congressional rescission legislation.

Minimum release runway. Require withheld budget authority to be released with a minimum number of usable days before expiration, adjusted for the type of program, unless Congress enacts a rescission.

No late rescission effect. Clarify that a rescission special message submitted too late to permit congressional consideration and meaningful agency obligation cannot suspend availability past the normal expiration date or operate as a pocket cancellation.

Apportionment transparency. Require OMB to disclose apportionment footnotes, holds, program-review restrictions, and legal or policy conditions affecting time-limited budget authority.

Automatic availability extension. Toll or extend the availability period for funds withheld in violation of the Impoundment Control Act or released too late to permit meaningful obligation.

Expedited GAO and court review. Create fast review for near-expiration funds, with mandatory interim release, preservation, escrow, or availability-extension authority where delay itself threatens to defeat the appropriation.

Recipient and state notice. Require notice to affected states, grantees, contractors, or beneficiaries when a federal delay threatens a statutory obligation, award, or distribution timeline.

Least-Complex Adequate Remedy

The likely least-complex adequate remedy is an Impoundment Control Act amendment focused on timing: anti-expiration rules, minimum release runway, apportionment transparency, automatic availability extension for unlawful delay, and expedited review.

FUND-002 should remain distinct from FUND-001. FUND-001 addresses repeated unlawful executive directives and fiscal inertness after a pattern trigger. FUND-002 addresses the simpler and older problem of using delay itself to turn appropriated money into unusable money.

Repair and Prevention

Future drafting should evaluate whether Congress should:

1. prohibit pocket rescissions by requiring meaningful congressional consideration and meaningful obligation opportunity;
2. require a minimum release runway before funds expire;
3. extend availability for unlawfully withheld or too-late-released funds;
4. require public and congressional disclosure of apportionment holds affecting expiring funds;
5. give GAO rapid access to apportionment and agency timing records;
6. authorize expedited judicial review and interim relief for near-expiration funds;
7. require notice to affected recipients and states; and
8. define when legal review, policy review, grant review, or administrative processing becomes an impoundment or deferral.

Proposed Legislation

- Pending development.

Relationship to Adjacent Proposals

FUND-001 owns fiscal implementation of executive directives after an impoundment-based pattern trigger. FUND-002 owns pocket rescissions and strategic delay even when there is no executive-directive pattern trigger.

FUND-001 owns agency closure or program nullification through nonpending, standing, and general remedies. FUND-002 remains narrower: it should include only the expedited review and availability-extension concepts necessary to stop strategic delay from mooting an expiring appropriation.

JUD-001 is adjacent where courts issue orders that the executive branch delays or evades. FUND-002 is narrower: it concerns appropriations timing and budget authority.

Budgetary Impact Statement

No reliable estimate yet. The proposal would likely affect OMB, GAO, agency budget offices, grant administration, and litigation timelines. It may preserve spending Congress already enacted rather than create new program authority.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Not Scored)

Adoption Friction: N/A

Required Electoral Environment: N/A

Development Priority: N/A

—

Internal Review Status: Pending development; no proposal-quality score assigned

Last Internal Review: Initial candidate development

Scoring Standard: 2026-06-27 . 1; **Scoring Basis:** Current unscored status

Next Review: Source-development pass

Full Review History: FUND-002 review history

Annotation

End-of-year pressure. The risk is greatest when funds are near expiration, when grant cycles require lead time, when statutory deadlines or seasonal conditions matter, or when recipients cannot restore lost program capacity after a late release. A court order or GAO finding may arrive too late if the relevant fiscal year, obligation window, application period, construction season, benefit period, or staffing cycle has already passed. This explains the proposed timing safeguards but is not independently presented as a documented manifestation.

FUND-002 is a candidate issue promoted from A-11 inventory. It receives a proposal-quality score of 0 until source development, existing-law analysis, and a basic legislative framework are complete.

The neutral institutional frame is that a President should not be able to convert delay into cancellation. If Congress appropriates time-limited funds, the executive branch should either execute the appropriation, obtain timely congressional rescission, or face fast release and availability-extension remedies.

Source Notes

Primary source development should begin with the Impoundment Control Act, 2 U.S.C. §§ 681-688, especially rescission special messages under 2 U.S.C. § 683, deferrals under 2 U.S.C. § 684, and Comptroller General enforcement under 2 U.S.C. § 687. Source development should also include GAO's 2018 pocket-rescission decision, GAO's 2020 Ukraine security-assistance impoundment decision, OMB apportionment practice, relevant appropriations riders, and any recent congressional or judicial treatment of late rescission proposals.

A-12 — Appointments, Acting Officials, and Senate Confirmation

Generalized Institutional Concern

Temporary-service, delegation, and informal-authority arrangements can weaken statutory appointment safeguards when timely accountability depends on discretionary congressional opposition. The institutional concern is not ordinary personnel disagreement: it is whether appointment structures permit difficult-to-repair individual or democratic harm before elections, confirmation, oversight, or litigation can provide an effective correction.

Active Issues

- **APPT-001 — Evasion of Senate Confirmation and Statutory Appointment Safeguards**
- **APPT-004 — Exercise of Governmental Authority by Unappointed or Insufficiently Accountable Individuals**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **APPT-002, APPT-003, APPT-007, APPT-008** — Merged into APPT-001.
- **APPT-005** — Confirmation-backstop evasion rerouted to APPT-001; independent-agency removal rerouted to REG-001; ordinary at-will removal held outside scope.
- **APPT-006** — Authority manipulation merged into APPT-001; misleading public terminology rerouted to FACT-009 in A-18.

Issue Boundaries

- APPT-001 owns temporary-service, vacancy, delegation, succession, reporting, and enforcement mechanisms that can substitute for Senate confirmation or defeat an office-specific appointment backstop. It does not treat all acting service, delayed confirmation, or presidential removal as an institutional failure.
- **APPT-004** is limited to a potentially distinct gap involving a private person, adviser, special government employee, representative, or ambiguously designated official who exercises continuing governmental authority without sufficiently clear appointment status, duties, supervision, ethics coverage, records obligations, security review, or public accountability. It does not presume that an outsider, relative, political ally, special envoy, or temporary presidential agent is unqualified or unlawfully serving. HOR-028 and preliminary intake question **INTAKE - GAP - 004** are incorporated into this source-development lane. Promotion requires a legally supportable distinction among advice, representation, employment, and exercise of continuing significant federal authority.
- Removal of an independent-agency officer or other officer possessing a constitutionally permissible tenure protection belongs primarily to REG-001. Removal used together with temporary service, delegation, or repeated succession manipulation to defeat confirmation or an appointment backstop belongs to APPT-001. Ordinary removal of an officer serving at the President's pleasure remains a political personnel decision.
- Misleading public-facing terminology or institutional labels belong primarily to A-18 and FACT-009. Authority reassignment or relabeling belongs to APPT-001 only when it changes legal accountability or functions as confirmation evasion. Executive Order 14347 remains a FACT-009 source-development example. See Executive Order 14347, 90 Fed. Reg. 43893 (Sept. 10, 2025); 10 U.S.C. § 111.

Notes

The July 16, 2026 issue-admission review consolidated the eight provisional candidates into one active statutory proposal and one source-development candidate. The consolidation applies without regard to party: appointment safeguards should operate when either party controls the presidency and Congress, while preserving lawful temporary continuity and recognizing that an opposition Senate may delay or reject nominees.

APPT-001 — Evasion of Senate Confirmation and Statutory Appointment Safeguards

Issue Snapshot

Problem: Temporary service, delegation, and office-specific succession arrangements can become practical substitutes for Senate confirmation while delayed political or judicial correction leaves consequential authority in place.

Repair: Strengthen the existing Vacancies Act, GAO, and public-reporting system with objective anti-evasion rules, automatic notice, independent findings, and timely remedies while preserving legitimate temporary continuity.

Vehicle: Appointments Accountability and Confirmation Safeguards Act.

Institutional Anomaly

The Constitution gives the President the nomination power and the Senate an advice-and-consent role for principal officers and other offices Congress places within that process. Temporary service is nevertheless necessary when an office becomes vacant unexpectedly or confirmation is incomplete. The Federal Vacancies Reform Act therefore identifies who may serve temporarily and for how long.

The institutional defect is not acting service itself, rejection or delay of a nominee, or ordinary presidential removal. It arises when temporary service, delegation, title changes, or repeated manipulation of a succession statute allows substantially the same authority to continue without confirmation while enforcement depends on an aligned Congress choosing to object or an injured person obtaining relief after the consequential decision has already taken effect.

That risk is reciprocal. It can arise when either party controls the presidency and Congress and the legislative majority has little incentive to defend confirmation or oversight prerogatives. It can also be aggravated when an opposition Senate refuses to process nominees. A durable remedy must preserve a reasonable continuity period and lawful career succession without allowing either political condition to convert temporary authority into an indefinite alternative to confirmation.

Manifestations of the Failure

Delegation can preserve practical authority after acting-service limits expire

The Vacancies Act's strongest consequence applies to a statutory or regulatory function required to be performed by the vacant officer "and only that officer." See 5 U.S.C. § 3348. Courts and executive-branch authorities have often treated delegable responsibilities as outside that definition. The Congressional Research Service reports that this interpretation can leave the statute with a "vanishingly small" scope and permit an official described as "performing the duties of" an office to exercise delegated authority after the ordinary acting-service period has ended. See CRS, *The Vacancies Act: A Legal Overview*.

The concern is not every discrete delegation. Agencies require delegation to operate. The concern is an arrangement that transfers substantially all policy direction, supervision, final approval, or representational authority of a vacant Senate-confirmed office while avoiding the title and time limits that would accompany acting service.

Existing reporting produces findings but does not ensure timely public accountability

Agencies must report covered vacancies, acting officers, and nominations to Congress and the Comptroller General. GAO publishes time-limit violation letters and decisions, including a May 2026 decision concerning the official performing the duties of the FEMA Administrator. See GAO's Federal Vacancies Reform Act portal.

The reporting system still depends substantially on agency submissions, and the statute does not require GAO to investigate and decide every possible violation. Public information is also divided between GAO's vacancies work and OPM's PLUM Reporting website. GAO found in 2026 that the PLUM data omitted some positions, contained errors, and did not fully disclose known limitations, making it harder for Congress and the public to identify who is responsible for consequential decisions. See GAO-26-108164.

A succession backstop may be repeatedly neutralized without filling the office through confirmation

For a vacant United States attorney position, 28 U.S.C. § 546 authorizes an Attorney General appointment for 120 days and then permits the district court to appoint a United States attorney until the vacancy is filled. Section 541(c) states that each United States attorney is subject to presidential removal. The First Circuit and the Justice Department's Office of Legal Counsel have treated presidential removal as a check on a court-appointed officer. See *United States v. Hilario* and OLC, *Power to Remove Court-Appointed U.S. Attorneys*.

On July 15, 2026, the judges of the Western District of Washington unanimously appointed Roger Rogoff under section 546(d). Their General Order 09-26 also records that a prior court-appointed United States attorney had been removed in February 2025 without a Senate-confirmed successor. Contemporary reports state that President Trump removed Rogoff shortly after the new appointment. See Associated Press and Bloomberg Law.

This proposal does not presume that those removals were unlawful. The institutional question is whether removal and temporary-service arrangements can repeatedly defeat the succession mechanism Congress enacted while neither producing a confirmed officer nor requiring a prompt, public, and attributable legislative or executive response.

Resulting Damage

Appointment circumvention can produce two different forms of harm.

First, an improperly or indefinitely empowered official may make decisions affecting prosecution, immigration, employment, benefits, grants, contracts, regulation, civil rights, or access to evidence. Later confirmation, oversight, or electoral change may not restore liberty, lost employment, missed opportunities, dissipated funds, or withheld information.

Second, repeated substitution of temporary or delegated authority for confirmation can eliminate the public disclosure, questioning, testimony, investigation, and attributable vote that the advice-and-consent process supplies. The resulting democratic injury is strongest when the arrangement is prolonged, difficult to identify or challenge, or connected to consequential authority; it should not be inferred from every vacancy or delayed nomination.

Underlying Weakness

The existing framework contains real safeguards but leaves five connected weaknesses:

1. the narrow “function or duty” definition can exclude much of an office's practical authority;
2. substantially complete delegation can reproduce acting service without its title or time limit;
3. agency-centered reporting can delay independent and public identification of a violation;
4. remedies often depend on a properly situated plaintiff challenging a particular action after harm has occurred; and
5. office-specific succession statutes may not state what happens when a statutory backstop is repeatedly removed or bypassed.

These weaknesses matter when ordinary political correction arrives too late. If a vacancy is visible, temporary, lawfully staffed, and readily corrected without material individual or democratic harm, it remains part of ordinary constitutional politics rather than an ARRP institutional failure.

Proposal Survey

The least-complex reform begins with institutions Congress has already established.

- The **Federal Vacancies Reform Act** supplies eligibility, duration, reporting, and no-force-or-effect rules. Congress can clarify which delegations constitute acting-service evasion and what consequences attach.
- **GAO's Vacancies Act function** already receives agency reports and issues violation findings. The reform can make review, publication, and notice more timely without creating a new commission.
- The **PLUM Act reporting system** already requires OPM to publish senior-position, vacancy, and acting-official information in a searchable form. GAO's 2026 recommendations supply a current improvement baseline.
- **Office-specific succession laws**, including 28 U.S.C. § 546, can be amended where a general Vacancies Act rule cannot preserve the particular congressional backstop.
- **Existing judicial review** can be clarified through a subject-specific cause of action and expedition rather than a new tribunal. Possible overlap with JUD-011 remains a later threshold-screening question; the standalone APPT-001 vehicle does not depend on JUD-011.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a coordinated amendment of the Vacancies Act, PLUM reporting, and identified office-specific statutes. It should:

1. distinguish lawful task delegation from an arrangement that transfers substantially all practical authority of a vacant Senate-confirmed office;
2. require every material delegation connected to a covered vacancy to be written, time-limited, and publicly available;
3. require prompt agency reporting and a public explanation of the claimed acting-service or delegation authority;
4. require GAO to issue a public compliance determination when objective time, eligibility, or anti-evasion triggers are implicated;
5. place the vacancy, acting official, nomination, delegation, expiration date, and compliance status in a single searchable public record;
6. provide expedited declaratory and equitable review for a person suffering a concrete legal injury;
7. impose proportionate consequences on material actions without destabilizing routine benefits, emergency protection, or reasonable third-party reliance; and
8. preserve an office-specific succession backstop after removal rather than automatically reviving an expired temporary appointment.

Repair and Prevention

Existing covered vacancies and delegations would receive a short disclosure and conformity period. Agencies would identify the person exercising authority, the legal basis, the functions delegated, the applicable deadline, and any pending nomination. GAO and OPM would reconcile those submissions with the existing vacancies and PLUM systems.

Prospectively, the proposal would convert passive acquiescence into an affirmative and visible choice. A future Congress could amend or repeal the safeguards, but doing so would require legislation and public responsibility rather than allowing the appointment system to be displaced through undisclosed delegation or political inaction.

Proposed Legislation

- Appointments Accountability and Confirmation Safeguards Act

Relationship to Adjacent Proposals

- **APPT-004** remains a source-development candidate for people exercising governmental authority outside or ambiguously within the ordinary office-and-appointment structure. APPT-001 concerns an established office and the temporary exercise of its authority.
- **REG-001** owns independent-agency tenure protection and functional disablement. APPT-001 owns removal only when it is combined with vacancy, delegation, or succession practices that defeat confirmation or an appointment backstop.
- **FACT-009** owns misleading public terminology. APPT-001 reaches labels only when they obscure who legally exercises an office's authority or facilitate confirmation evasion.
- **DOJ and ELEC proposals** own selective enforcement and election interference. Those substantive harms may demonstrate the stakes of an appointment weakness, but APPT-001 does not duplicate their prohibitions.
- **JUD-011** supplies a general civil anti-nullification framework. APPT-001 presently supplies its own subject-specific statutory remedy; JUD-011 should not be described as preferred unless a later review confirms its coverage and a plausible Article III plaintiff.

Budgetary Impact Statement

Preliminary classification: Low-to-moderate administrative and litigation impact. GAO, OPM, agencies, and federal courts already perform the relevant reporting, publication, compliance, and review functions. The draft adds data reconciliation, written legal explanations, compliance determinations, and expedited litigation but establishes no new agency, tribunal, or judgeship. An initial review should examine GAO and OPM workload and determine whether implementation from existing appropriations is realistic or whether a limited authorization is necessary.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Unscored; in development)

Required Electoral Environment: Enactment by Congress and presentment or sufficient support to overcome presidential opposition

Development Priority: Medium

Internal Review Status: Initial consolidated issue and statutory framework drafted; internal project review required

Last Internal Review: Candidate consolidation and initial statutory draft

Scoring Standard: 2026-06-27.2; **Scoring Basis:** Current unscored development status

Next Review: Initial legal-and-implementation review of statutory scope, continuity, consequences, judicial review, and office-specific backstops

Full Review History: APPT-001 review history

Annotation

The proposal rests on delayed-correction analysis, not an assumption that one party is uniquely likely to abuse appointment authority. Its operative triggers must apply identically when party control is reversed. Examples from President Trump's administrations are stress tests and manifestations, not the outer definition of the defect.

Electoral correction remains important. A later congressional majority may restore oversight or insist on confirmation. That possibility is not an adequate answer where the interim exercise of authority causes difficult-to-repair individual harm, degrades election or justice processes, removes records or institutional capacity, or establishes a repeatable evasion method. Conversely, a temporary and transparent vacancy that produces no such harm should not be converted into a statutory crisis.

The initial bill deliberately avoids a general restriction on presidential removal of at-will officers. Its section 546 provision instead preserves the judicial appointment mechanism after a removal, requires public notice, and prevents an expired Attorney General appointment from automatically reviving. Whether Congress should impose a removal standard on any particular office requires separate constitutional and office-specific analysis.

Source Notes

- Governing statutes: 5 U.S.C. §§ 3345–3349, 5 U.S.C. § 3330f, and 28 U.S.C. §§ 541 and 546.
- Principal institutional analysis: CRS, *The Vacancies Act: A Legal Overview*, GAO's Vacancies Act portal, and GAO-26-108164.

- United States attorney source development: CRS, *Interim and Acting U.S. Attorneys Raise Open Legal Questions*, W.D. Wash. General Order 09-26, *Hilario*, and the 1979 OLC opinion.

A-13 — Presidential Records, Archives, and Government Information

Generalized Institutional Concern

Record-preservation rules depend too heavily on executive compliance and lack sufficiently rapid and independent enforcement when records are removed, destroyed, concealed, privatized, or transmitted through unofficial systems.

Active Issues

- **REC-001 — Presidential and Executive Records Integrity, Custody, and Enforcement**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **REC-002 through REC-008** — Merged into REC-001 as destruction, unofficial-system, Archives-authority, litigation, digital-preservation, classification, and transition-custody components of one records lifecycle.

Issue Boundaries

- **REC-001** owns presidential and executive records identification, capture, preservation, custody, recovery, Archives authority, personal-versus-presidential classification, digital systems, enforcement, and transition controls.
- HOR-027 should be tested first as an official-publication, authentication, and archival-capture module within REC-001. It should become independent only if contemporaneous public access to legally operative presidential communications requires a distinct communications law beyond records preservation and custody.

Notes

REC-001 is in development. Full source development, a concrete records-reform vehicle, and its first formal internal review remain pending.

A-14 — Federal Law-Enforcement and Military Use Inside the United States

Generalized Institutional Concern

The president retains broad and partially ambiguous authority to deploy federal law-enforcement personnel, the National Guard, or military resources domestically while legal limits and legislative controls may be too weak during political conflict.

Active Issues

- **DOM-001 — Domestic Deployment Authorities and Safeguards**
- **DOM-005 — State Investigative Access to Federal Critical-Incident Evidence**
- **DOM-007 — Domestic military intelligence activity**
- **DOM-009 — Federal Law-Enforcement Surveillance Procurement and Deployment**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **DOM-002, DOM-003, DOM-004, DOM-006, DOM-008** — Merged into DOM-001 as Posse Comitatus, Guard-federalization, protest or election deployment, federal-property, and expedited-review components of one domestic-deployment framework.
- **FED-005** — Integrated into DOM-001 as the federalism application involving deployment over state objection.

Issue Boundaries

- **DOM-005** owns confidential officer identification, preservation of existing evidence, and secure State investigative access following a covered Federal critical incident. It does not create a recording mandate, public-disclosure right, prosecution authority, or immunity rule. It is agency-neutral and applies beyond immigration enforcement. FED-004 is a secondary federalism cross-reference when exclusive Federal control of evidence displaces a State investigative function; DOM-001 supplies the expedited-review framework; DOJ-007 remains limited to presidential and senior executive conflict.
- **RIGHTS-005** owns personal civil and criminal accountability for law-enforcement constitutional violations. DOM-005 supplies evidence preservation and authorized State investigative access but does not determine liability, authorize prosecution, or alter immunity.
- **DOM-009** owns Federal law-enforcement surveillance procurement and deployment. DOM-005 owns preservation and investigative access when Federal recording or surveillance systems contain evidence of a covered use-of-force incident.
- **DOM-001** owns Insurrection Act, Posse Comitatus, National Guard federalization, protest and election deployment, asserted federal-property authority, findings, duration, termination, and expedited judicial review. FED-004 retains the general anti-commandeering and state-function-displacement framework.

Notes

DOM-001 is in development after consolidation. DOM-005, DOM-007, and DOM-009 remain distinct because they address investigative evidence, domestic intelligence, and surveillance procurement rather than deployment authority. Full source development and an initial DOM-001 vehicle are pending.

DOM-005 — State Investigative Access to Federal Critical-Incident Evidence

Issue Snapshot

Problem: Federal agencies can control the evidence needed for an independent State investigation of a death or serious injury involving Federal personnel.

Repair: Require confidential officer identification, automatic evidence preservation, and prompt, secure access for an authorized State investigative authority.

Vehicle: Federal Critical-Incident Evidence Access Act.

Institutional Anomaly

Federal law-enforcement officers operate inside States, enforce federal law, and may use force that implicates both federal authority and generally applicable state criminal law. After a death or serious injury, however, the employing agency, the FBI, or another federal component may take practical control of the scene, officers, recordings, communications, physical evidence, forensic testing, and investigative files. A State may possess ordinary territorial criminal jurisdiction yet lack timely access to the evidence needed to determine whether its law was violated.

That asymmetry becomes especially consequential when the federal officer asserts Supremacy Clause immunity. Under *In re Neagle*, 135 U.S. 1 (1890), federal authority can protect an officer from state prosecution for conduct undertaken pursuant to federal duty when the conduct was no more than necessary and proper. The applicability of that protection depends on facts: what the officer was authorized to do, what threat the officer confronted, what the officer perceived, and whether the force used was reasonably connected to the federal duty.

Federal-officer immunity should therefore be adjudicated by a court from an adequate evidentiary record. It should not become practically self-executing because the executive branch that asserts immunity also possesses and controls the evidence needed to contest its factual premise.

Manifestations of the Failure

The Biddeford, Maine, fatal shooting

On July 13, 2026, an ICE agent fatally shot a motorist in Biddeford, Maine. Associated Press reporting stated that Senator Angus King relayed the Homeland Security Secretary's description that the driver had "weaponized" the vehicle. The same report described nearby security footage showing the vehicle rolling into an intersection after shots were fired and emphasized that the central unresolved question was what the driver did with the vehicle and whether any threat justified deadly force. See Associated Press.

The event is not treated here as proof that the federal account is false or that evidence has been suppressed. It illustrates why an official characterization cannot substitute for shared evidence and independent factual review. Maine law gives the Attorney General full responsibility for directing and controlling homicide investigations and exclusive responsibility for directing a criminal investigation when a law-enforcement officer uses deadly force in the performance of duty. See 5 M.R.S. § 200-A. Maine's justification statute makes the reasonableness and necessity of deadly force fact-dependent. See 17-A M.R.S. § 107.

The Minnesota chronology demonstrates sustained state exclusion

The Minnesota record provides a longer and more developed test of whether ordinary federal-state cooperation is sufficient.

- **January 7-8 — Renee Good.** The Minnesota Bureau of Criminal Apprehension stated that it and the FBI initially agreed to conduct a joint investigation. Later the same day, according to the BCA, the FBI reported that the U.S. Attorney's Office had reversed course, that the FBI alone would lead, and that the BCA would no longer have access to case materials, scene evidence, or investigative interviews. The BCA withdrew because it could not conduct a complete independent investigation without that access. See the BCA statement.
- **January 14-22 — Julio Sosa-Celis.** In a separate nonfatal shooting, the BCA stated that it had not been permitted to interview the federal officer, did not know the officer's identity or whether the officer wore a body camera, and had been told that the FBI did not intend to share the results of its initial investigation. See the BCA case update.
- **January 24-25 — Alex Pretti.** The Hennepin County Attorney stated that federal agents denied the BCA access to the scene even after a state judge signed a search warrant. State and county officials then obtained a federal temporary restraining order prohibiting federal defendants from destroying or altering evidence taken from the scene or held in exclusive federal custody. See the Hennepin County statement and Minnesota Attorney General's account of the preservation order.
- **February 13-16 — formal refusal.** The BCA stated that the FBI formally notified it that the FBI would not provide access to any information or evidence collected in the Pretti investigation. The BCA characterized the lack of cooperation as unprecedented and continued its investigation using other available sources. See the BCA statement.
- **March 24-June 5 — litigation and Touhy process.** Minnesota, Hennepin County, and the BCA filed *Minnesota v. U.S. Department of Justice*, No. 1:26-cv-01007 (D.D.C.), challenging federal attempts to block access to evidence concerning Good, Pretti, and Sosa-Celis. The Minnesota Attorney General's litigation tracker identifies the action as a state-sovereignty evidence-access case. In May, the Hennepin County Attorney stated that evidence concerning Good had been produced for a separate federal criminal case but remained unavailable for the State's own review. In June, she stated that the federal responses to state Touhy demands indicated

continued withholding. See the county's May 7 and June 5 statements.

- **July 13 — eventual production.** Associated Press reporting stated that Minnesota prosecutors received hard drives containing statements, body-camera video, other evidence, and Good's damaged vehicle after more than half a year. State officials had not publicly attributed the production to a single cause, but court filings suggested that renewed mutual-sharing discussions followed a federal request for state evidence in another officer-shooting case. See Associated Press.

This chronology supports a finding of prolonged federal withholding from state investigators in the ordinary descriptive sense. It does not, without further evidence, establish destruction, falsification, concealment from a federal court, criminal obstruction, or the merits of any shooting. It does demonstrate that discretionary cooperation, Touhy requests, state warrants, and ordinary litigation did not produce the immediate, functionally equal access needed for a contemporaneous state investigation.

The Texas record shows why cooperation cannot remain discretionary

The Texas shootings present two different versions of the same structural weakness.

- **March 15, 2025 — Ruben Ray Martinez, South Padre Island.** A Homeland Security Investigations agent fatally shot Martinez, a 23-year-old United States citizen, while federal agents were assisting local police with traffic control. The Texas Rangers took the lead in the state investigation, and a Cameron County grand jury later declined to return an indictment. Yet federal and state authorities did not publicly disclose the federal agency's involvement for approximately eleven months. See Associated Press on the initial records disclosure and the grand-jury disposition. When the Texas Department of Public Safety later released body-camera and security footage, the available angles did not show Martinez striking the federal agent as DHS alleged, but they also did not conclusively disprove a strike; the federal agent was not wearing a body camera. See The Texas Tribune. This is therefore not a case in which the State lacked all investigative access. It is a warning that state participation alone does not guarantee prompt public identification, complete recording, or timely disclosure.
- **July 7, 2026 — Lorenzo Salgado Araujo, Houston.** An ICE agent fatally shot Salgado Araujo after a vehicle stop. DHS said that he rammed an ICE vehicle and that the officer fired in self-defense; passengers disputed that account through counsel. As of July 10, DHS had released no supporting scene evidence, the involved officers were not wearing body cameras, local prosecutors had not been invited into the federal investigation, and the FBI was reported to be controlling the evidence. See Associated Press. On July 13, the Harris County District Attorney stated that his office still did not know the involved officers' identities or whereabouts and that federal officials were not collaborating with the local investigation. See Associated Press.

The South Padre Island record shows that a state-led investigation can occur in practice; the Houston record shows that materially similar access is not assured in the next case. Neither record, standing alone, proves that federal officials destroyed evidence or that either use of force was unlawful. Together they demonstrate why notice, confidential identification, preservation, and State investigative access should arise automatically by statute rather than depend on an ad hoc Federal invitation. The absence of a recording may inform later evaluation of Federal recording policy, but the DOM-005 draft governs evidence that exists and does not create a new body-camera mandate.

These examples do not resolve the merits of any officer's conduct. They demonstrate the durable institutional defect: a State cannot responsibly accept or reject a federal justification, decide whether to invoke criminal process, or prepare to litigate immunity if the federal government withholds the underlying evidence or even the officers' identities.

Identification and existing-recording gaps

In the January 2026 Minnesota shooting, later-released video recorded from the ICE officer's perspective produced additional scrutiny of the federal self-defense account. Associated Press reporting also described an ICE body-worn-camera directive while noting that DHS had not answered whether the involved officers were wearing body cameras. See Associated Press. The two Texas records add both sides of the same failure: South Padre Island ultimately produced state and local recordings but no body-camera view from the federal shooter, while Houston officials reported that none of the involved ICE officers wore body cameras.

ICE is expanding camera deployment. ICE Directive 19010.2 requires body-worn-camera use where the program has been implemented, while limiting the directive to those areas until cameras are issued enterprise-wide and making full implementation dependent on appropriated funding. ICE's FY2024 annual report described completion of the first implementation phase, procurement of more than 6,100 systems and licenses, and development of expedited public-release procedures for critical-incident footage.

Those steps address evidence creation, not the separate access defect. The ICE directive routes external release through internal approvals, permits the ICE Director or designee to withhold or indefinitely delay public release in specified circumstances, treats litigation production under existing evidence procedures, and expressly creates no enforceable right. Public release and confidential State investigative access are distinct, but camera deployment alone guarantees neither prompt State access nor independent custody: a recording can exist while the Federal Government retains exclusive control of it. DOM-005 therefore complements rather than duplicates body-camera expansion by attaching preservation, authentication, and secure State-access duties to any recording that exists.

An evidence-access framework cannot depend on bystander recordings or discretionary disclosure. Federal personnel engaged in covered operations should be identifiable to authorized investigators, and every relevant recording that exists should be preserved, authenticated, and disclosed under uniform statutory rules. Whether Federal personnel should be required to create additional recordings is a distinct policy question outside the DOM-005 draft.

Disputed reassignment of Federal investigative responsibility

In July 2026, New York Times reporting republished by the *Philadelphia Inquirer* and independent CBS News reporting described written guidance shifting lead responsibility for alleged assaults involving DHS personnel from the FBI to Homeland Security Investigations, including matters arising from officer-involved shootings. DOJ and DHS denied that investigative policy had changed, and the directive is not publicly available. Reassignment does not establish concealment, bad faith, or inadequate investigation, and HSI is a criminal-investigative component distinct from ICE Enforcement and Removal Operations.

The disputed episode nevertheless reinforces DOM-005's institutional premise. A change in lead agency, a decision to assist only on request, or closure or narrowing of a Federal investigation should not determine whether relevant evidence is preserved and supplied to an authorized State investigator. Each Federal component retaining evidence should remain independently responsible for statutory preservation and production.

Reporting duties without investigative access

The Death in Custody Reporting Act requires federal law-enforcement agencies to report specified deaths to the Attorney General. See the statutory note following 18 U.S.C. § 4001. States separately report specified state and local deaths to the Attorney General under 34 U.S.C. § 60105.

Those provisions support aggregate accountability and federal reporting, but they do not guarantee a State prompt access to the evidence in a federal-officer shooting occurring within that State. A brief description submitted to the Attorney General is not a substitute for scene access, recordings, officer identities, communications, forensic materials, witness information, and an enforceable production right.

Supporting Record

- **Additional supporting record:** DOM-005 Evidence Record.

Resulting Damage

Federal control of covered-incident evidence can:

1. prevent a State from determining whether its homicide, assault, reckless-endangerment, obstruction, or evidence-tampering laws may apply;
2. make a federal immunity assertion effectively unreviewable because the State cannot obtain the facts needed to contest it;
3. allow evidence to degrade, disappear, be overwritten, or become harder to authenticate before a State can preserve it;
4. impair independent forensic testing, reconstruction, witness interviews, autopsy review, and chain-of-custody verification;
5. encourage premature public narratives that later evidence may support, qualify, or contradict;
6. create incentives for federal and state officials to defend institutional interests rather than develop a common factual record;
7. undermine confidence in both justified uses of force and warranted prosecutions; and
8. expose federal officers to prolonged public suspicion when prompt shared evidence would substantiate lawful conduct.

Underlying Weakness

Current law supplies fragments rather than a uniform critical-incident evidence-access system.

28 U.S.C. § 1442 permits removal of covered state prosecutions and subpoena proceedings to the local federal district court. Removal appropriately permits a federal forum to decide federal defenses, but it does not itself give the State the evidence needed to investigate or litigate those defenses.

The Privacy Act permits disclosure to a state or local governmental instrumentality for an authorized civil or criminal law-enforcement activity following a sufficiently specific written request. See 5 U.S.C. § 552a(b)(7). Permission to disclose is not a mandatory production timetable, a preservation duty, a right to participate in forensic work, or an enforceable guarantee against selective withholding.

Agency record-control rules, federal sovereign immunity, law-enforcement privileges, classification claims, privacy protections, grand-jury secrecy, compelled-statement rules, and ongoing-investigation concerns can each be legitimate in a particular application. The federal housekeeping statute authorizes department heads to regulate custody, use, and preservation of agency records but expressly disclaims authority to withhold information from the public. See 5 U.S.C. § 301. DOJ and DHS nevertheless administer requests for official records and testimony through agency Touhy regulations that permit centralized approval and consideration of law-enforcement interference, privilege, burden, and other governmental interests. See 28 C.F.R. part 16, subpart B and 6 C.F.R. part 5, subpart C. Without a specific statute, these procedures and other protections can produce delay, categorical refusal, or a federal evidence monopoly without prompt independent review.

Evidence access is necessary to test immunity

An assertion that a vehicle was "weaponized," an officer faced an imminent threat, or force was necessary does not itself establish Supremacy Clause immunity. If federal agencies exclusively control video, ballistics, communications, autopsy access, vehicle data, witness interviews, scene evidence, and investigative files, the executive branch can determine the practical viability of a state prosecution before any court evaluates the immunity claim.

Evidence access is therefore logically anterior to the immunity determination. If the evidence substantiates the federal account, prompt state access strengthens the officer's immunity defense and public legitimacy. If the evidence materially contradicts that account, the State can continue its investigation and, where supported by state law and professional prosecutorial judgment, commence a prosecution. The officer may then remove the case under section 1442, and a federal court can decide the federal defense on the developed record.

The proposed reform should neither presume wrongdoing nor abolish *Neagle* immunity. It should prevent an immunity claim from succeeding by evidentiary default because the party asserting it controls the proof.

Proposal Survey

Several existing models support parts of the design but do not solve the full problem.

State deadly-force investigation laws. Maine's statute demonstrates that a State may centralize homicide and officer-involved-deadly-force investigations in its Attorney General. Similar state structures should be surveyed to determine which official may activate the federal access right and how differing state investigative systems should be accommodated.

Death-in-custody reporting. Federal and state reporting duties establish that Congress already treats deaths connected with law-enforcement custody or attempted arrest as a subject for mandatory federal information collection. Existing reporting is retrospective and centralized; DOM-005 requires incident-level preservation and reciprocal state access.

Federal-officer removal. Section 1442 supplies a durable federal forum for federal defenses and for subpoena disputes directed at federal officers or agencies. The remedy should preserve removal while preventing it from becoming a mechanism for indefinite evidentiary delay.

Congressional consent to State investigative process. In *Goodyear Atomic Corp. v. Miller*, 486 U.S. 174 (1988), the Supreme Court recognized clear congressional authorization for state regulation affecting a federal facility. Congress has also expressly required federal facilities to comply with state substantive and procedural requirements and waived federal immunity in 42 U.S.C. § 6961. DOM-005 would be narrower: Congress would regulate Federal agencies' own evidence practices and consent to concurrent State investigative access, not permit States to direct Federal operations or authorize a prosecution.

State criminal process involving federal interests. *Trump v. Vance*, 591 U.S. 786 (2020), rejected a categorical Article II and Supremacy Clause bar to a state criminal subpoena for a sitting President's private records while preserving judicial protection against concrete interference. DOM-005 should likewise use judicial review to protect legitimate federal interests without creating categorical executive control over relevant evidence.

Least-Complex Adequate Remedy

The least-complex adequate remedy is a generally applicable Federal evidence-preservation and investigative-access statute governing a death or serious bodily injury involving a Federal law-enforcement officer, or another covered officer acting in a Federal operation or under Federal direction.

The statute should create automatic preservation and notice duties and an optional state-activation process. A State would not be compelled to investigate. If its attorney general, chief prosecutor with territorial jurisdiction, or another statutorily designated official elects to investigate, federal access and cooperation duties would attach by operation of law and on incident-based deadlines. They would not depend on a Touhy determination, completion of a federal investigation, an agency assessment of the merits, or the government's evaluation of litigation risk. The duties would be enforceable in the federal district court for the place where the incident occurred.

That local federal forum is preferable to exclusive D.D.C. jurisdiction for an acute incident because the scene, witnesses, prosecutors, physical evidence, and underlying state criminal law are local. A uniform federal cause of action and appellate rules can still produce national consistency.

Repair and Prevention

Future legislation should evaluate:

1. immediate identification of the involved federal agency and officers to authorized state investigators, with narrowly tailored protection against public disclosure when safety requires it;
2. automatic preservation from the moment a covered death or serious injury occurs, without waiting for a state request;
3. prompt notice to the State attorney general and prosecutor with territorial jurisdiction;
4. fixed incident-based and state-activation deadlines that are not tolled by a federal investigation, Touhy processing, interagency transfer, internal merits review, or an anticipated immunity defense;

5. contemporaneous or functionally equivalent access to the scene, vehicles, weapons, recordings, dispatch records, communications, location data, use-of-force reports, medical evidence, and other incident materials;
6. a tamper-evident incident inventory, cryptographic authentication where applicable, and prompt duplicate custody or secure escrow sufficient to prevent any one federal component from controlling the only copy;
7. independent observation of forensic testing, duplicate samples where feasible, and access to methodology, results, and chain-of-custody records;
8. access to autopsy and medical-examiner information consistent with state law and family privacy;
9. protection against exclusive witness control, witness intimidation, retaliatory process, or instructions that improperly prevent voluntary cooperation with state investigators;
10. preservation and prompt State investigative access for any body-worn-camera, vehicle-camera, surveillance, dispatch, or operational recording that exists or is created under another source of law or policy, without adding a new recording mandate to this proposal;
11. a requirement that the United States seek any temporary withholding before the disclosure deadline, identify each disputed item and specific harm, provide all reasonably segregable material, and bear the burden in expedited proceedings;
12. sealed deposit of disputed material, minimum-necessary redaction, protective orders, secure state review where feasible, and prompt in camera adjudication, without an automatic stay covering undisputed evidence;
13. an express prohibition on considering whether evidence favors the officer, supports immunity, creates federal liability, or increases litigation or political risk when determining whether and when to disclose it;
14. narrow safeguards for genuinely classified information, confidential sources, unrelated active operations, federal grand-jury matter, attorney work product, personal privacy, and compelled statements protected by *Garrity* and related doctrine;
15. an express federal sovereign-immunity waiver and a cause of action for the State attorney general or other authorized state official seeking preservation, production, access, anti-obstruction relief, costs, or statutory remedies;
16. a completed violation at the missed deadline, with fee shifting, reimbursement for delay-caused investigative costs, continuing duties, compliance plans, and escalating equitable remedies for repeated or willful noncompliance, so strategic late production does not erase all redressable consequences;
17. anti-circumvention rules preventing an agency from defeating access through transfer, relabeling, outsourcing, record-system design, reassignment of investigative responsibility, narrowing or closure of a Federal investigation, assistance only on request, or directing another Federal component to retain exclusive custody;
18. aggregate public compliance reporting that does not create public access to incident evidence or compromise an investigation; and
19. grants or reimbursements for secure evidence systems, authentication, duplicate forensic work, State investigative costs, and court administration.

The statute should expressly preserve ordinary state criminal-law elements, federal-officer removal, the judicial determination of federal defenses, the presumption of innocence, and all defendant rights. It should not authorize a State to command an ongoing federal operation, veto federal policy, determine federal charging decisions, or obtain unrelated intelligence merely because a covered incident occurred.

Proposed Legislation

- **First draft:** Federal Critical-Incident Evidence Access Act.
- **Current status:** Initial statutory draft complete; internal legal-durability and implementation review pending.
- **Core vehicle:** One amendatory bill adding a self-contained chapter 607 to title 34, preserving the Death in Custody Reporting Act as the reporting anchor, and making narrow Privacy Act, expedition, and removal conforming amendments.
- **Scope boundary:** The bill concerns evidence preservation and authorized State investigative access only. It does not mandate creation of recordings, create a public-disclosure right, authorize prosecution, establish State jurisdiction, or alter Federal-officer immunity.
- **Jurisdiction:** The federal district court for the district in which the covered incident occurred, with expedited review and an express waiver of federal sovereign immunity.
- **Immunity treatment:** The Act expressly leaves Supremacy Clause immunity and every other substantive defense unchanged.

Relationship to Adjacent Proposals

FED-004 is a secondary federalism cross-reference because exclusive Federal control of incident evidence can functionally displace a State's ordinary homicide-investigation authority. DOM-005 remains the primary home because the remedy governs confidential officer identification, evidence preservation, and State investigative access after a covered incident rather than presidential coercion of States generally.

DOM-001 supplies the area's general expedited-review concepts. DOM-005 should nevertheless contain its own incident-specific enforcement mechanism because evidence-preservation and access disputes require immediate local relief.

DOJ-007 owns independent investigation of presidential and senior executive misconduct when ordinary DOJ control is conflicted. DOM-005 is broader and applies regardless of presidential involvement, political motive, or the identity of the federal agency.

RIGHTS-005 owns civil and criminal personal accountability for law-enforcement constitutional violations, including the interaction with lawful State prosecution and Supremacy Clause immunity. DOM-005 neither creates liability nor authorizes prosecution; it supplies the evidence-access framework needed for an authorized State investigation and for a later court to decide the facts and defenses on a developed record.

RIGHTS-002 is adjacent when immigration enforcement affects humanitarian review, but DOM-005 remains the agency-neutral home for covered use-of-force evidence. It should apply equally to ICE, CBP, the FBI, ATF, DEA, the U.S. Marshals Service, the Secret Service, federal protective forces, joint task forces, and other covered personnel.

DOM-009 owns surveillance procurement and deployment. It is adjacent when Federal recording, sensor, vehicle, or location systems generate evidence of a covered incident, but DOM-005 owns preservation and investigative access to evidence that exists after the incident.

The Interbranch Review Framework Act (JUD-011) does not itself create the missing evidence-sharing duty and therefore is not the primary DOM-005 remedy. If Congress later enacts DOM-005's substantive mandate, JUD-011 could become relevant to a substantial and sustained executive effort to nullify that mandate. DOM-005 should still include complete, incident-specific enforcement because preservation and access disputes require immediate local relief and must remain operable if Congress rejects JUD-011.

Budgetary Impact Statement

No reliable estimate is available before an implementation and budget review. Material costs may include secure evidence retention, authentication, duplication and transmission, State forensic participation or reimbursement, inspector-general and aggregate compliance reporting, agency compliance personnel, protective-order administration, and expedited Federal-court workload. The draft does not fund or require new body-worn-camera equipment.

Some costs may be offset by existing agency recording systems, evidence platforms, investigative personnel, and grants. A later budget pass should distinguish one-time equipment and systems costs from recurring storage, disclosure, forensic, training, and litigation costs.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Not Scored)

Adoption Friction: N/A

Required Electoral Environment: N/A

Development Priority: N/A

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Internal Review Status: FBI-HSI investigative-responsibility update added; initial internal review pending

Last Internal Review: FBI-HSI investigative-responsibility internal review

Scoring Standard: 2026-06-27.2; **Scoring Basis:** Current unscored status

Next Review: Initial internal review of coverage, deadlines, withholding safeguards, remedies, and implementation

Full Review History: DOM-005 review history

Annotation

Evidence-access timing and strategic delay.

Eventual production does not cure strategic delay. Federal production after months of withholding does not establish why the government changed position. Production may reflect good-faith reconsideration, reciprocal evidence-sharing negotiations, changed investigative circumstances, or an effort to avoid an adverse judicial precedent after federal officials have reviewed the evidence and assessed their own exposure. The present record does not resolve that motive, and DOM-005 should not presume one. The June 18 amended complaint in *Minnesota v. U.S. Department of Justice* records shifting agency explanations and generalized Touhy objections; the federal government produced evidence before the district court adjudicated those objections.

The statutory design should make motive immaterial. A federal agency must not be permitted to withhold the record during the decisive investigative period, evaluate whether the record supports its officers, and then produce only when continued withholding becomes legally or politically risky. Timely access is itself part of the remedy because scene integrity, independent witness recollection, forensic observation, charging deadlines, and public confidence cannot always be restored by a later document production.

Late production also should not automatically eliminate a live enforcement controversy. The disclosure deadline should create a completed statutory violation carrying fee shifting, reimbursement of additional investigative costs caused by delay, continuing compliance duties, compliance plans, and escalating equitable remedies for repeated violations. Those redressable consequences—not a legislative declaration that a moot case remains live—should permit a court to adjudicate compliance even after the government eventually produces the requested material.

DOM-005 remains a candidate and receives a fixed score of 0 because the new first draft has not undergone an internal project review and the proposal still lacks a full primary-source survey, a privilege and criminal-procedure memorandum, a cost model, and an adoption pathway.

The proposal is institutionally neutral. It should apply regardless of the administration, the federal agency, the State's political leadership, the immigration or criminal status of the person subjected to force, or whether the evidence ultimately supports the federal officer or the State. The objective is a shared, reviewable evidentiary record—not a presumption of misconduct or a state veto over federal law enforcement.

Source Notes

The internal source review should expand beyond the authorities cited above to include Federal and State officer-involved-shooting protocols; DOJ, DHS, ICE, CBP, FBI, and Marshals Service critical-incident, evidence, and recording-retention policies; the Federal Rules of Criminal Procedure governing grand-jury secrecy; *Garrity* and derivative-use doctrine; Federal law-enforcement and deliberative privileges; Touhy regulations and 5 U.S.C. § 301; Privacy Act and records-system rules; State medical-examiner and attorney-general authorities; Supremacy Clause immunity doctrine; Federal-officer removal practice; inspector-general jurisdiction; prior congressional evidence-sharing proposals; and implementation costs.

DOM-005 should remain under active monitoring. Governor Tim Walz's Executive Order 26-05 and accompanying announcement created a council to document the effects of Operation Metro Surge and called for impartial investigations into the Good and Pretti deaths. Future council materials, BCA investigative releases, prosecutorial decisions, rulings in the D.D.C. evidence-access case, Touhy correspondence, and any public accounting of what the delayed federal production contained could show whether withholding merely delayed the same ultimate factual record or materially impeded, narrowed, or altered the state investigations. The Governor may publish policy and council findings, but investigative evidence may remain controlled by prosecutors, courts, privacy law, grand-jury rules, or an active investigation; DOM-005 should track the responsible Minnesota institutions rather than presume that the Governor personally can release every relevant record.

Texas should remain a separate comparison record. For South Padre Island, the project should obtain the complete Texas Rangers investigative production, determine what federal evidence was available to state investigators and the grand jury, and distinguish delayed public disclosure from denied investigative access. A March 24, 2026 congressional request for a DHS Inspector General investigation alleged concealment and misrepresentation; those are oversight allegations, not adjudicated findings. For Houston, the project should track whether federal officials identify the officers, preserve and produce the evidence, permit independent forensic access, and explain the legal basis for any withholding. The comparison should be updated if later records show either meaningful cooperation or suppression, destruction, or material omission.

DOM-009 — Federal Law-Enforcement Surveillance Procurement and Deployment

Issue Snapshot

Problem: Opaque surveillance procurement expands enforcement power.

Repair: Require transparent, reviewable surveillance safeguards.

Vehicle: Pending development.

Institutional Anomaly

Federal law-enforcement agencies can acquire, fund, test, integrate, and deploy surveillance technologies through procurement, research, pilot programs, contractors, data brokers, and interagency systems faster than ordinary legal safeguards can assess privacy, civil-rights, records, procurement, and oversight consequences.

The issue is not limited to immigration policy. Immigration enforcement is the current manifestation, but the institutional risk is broader: executive law-enforcement capacity can be expanded through opaque technology markets and contractor systems without transparent congressional authorization, public reporting, warrant/legal-process rules, retention limits, civil-rights review, or auditability.

Manifestation of the Failure

Immigration-enforcement surveillance procurement

In June 2026, reporting on a Mijente, Just Futures Law, and Surveillance Resistance Lab analysis described rapidly expanding ICE and CBP contracts for surveillance technology. The reporting identified AI tools, data brokers, analytics software, social-media scraping, facial recognition, device-extraction tools, drones, sensors, and contractor-operated systems as part of the federal immigration-enforcement surveillance ecosystem. See The Guardian, *'We should be worried': report sheds light on ICE's booming arsenal of hi-tech surveillance tools* (June 24, 2026), and the NoTechForICE source hub.

Geofence and location-data searches after Chatrie

In *Chatrie v. United States*, decided June 29, 2026, the Supreme Court held that police conducted a Fourth Amendment search when they acquired location data from Google because a person has a reasonable expectation of privacy in cell-phone location information. DOM-009 should treat *Chatrie* as an important constitutional baseline for geofence warrants, location-history databases, data-broker access, contractor-mediated location analytics, and procurement of tools that let law-enforcement agencies identify people by place, time, or movement pattern.

The decision strengthens the case that DOM-009 should not be framed only as procurement transparency. A serious remedy likely needs legal-process rules, minimization, retention limits, audit logs, and restrictions on indirect acquisition of location data through vendors or interagency systems.

Existing Overlap

This issue was admitted from HOR-002 as a distinct A-14 candidate rather than merged into existing issues.

- CIV-009 concerns repurposed technical units exercising cross-agency operational control, especially DOGE/USDS-style internal government access. DOM-009 is different because it concerns federal law-enforcement procurement and deployment of surveillance tools.
- DOM-007 concerns domestic military intelligence activity. DOM-009 concerns civilian federal law-enforcement surveillance procurement and contractor-mediated deployment.
- REC-001 concerns preservation of websites, datasets, and digital records. DOM-009 may require records and audit-log safeguards, but records preservation is not the whole remedy.
- FACT-001 concerns scientific, statistical, and technical data integrity. DOM-009 may use or generate government datasets, but the central issue is surveillance power and procurement governance.
- PRESS-003 may become relevant if surveillance targets journalists, confidential sources, or newsgathering.

Source-Development Questions

The source trail requires deeper review before legislation is drafted. The next pass should obtain the underlying report, DHS procurement records, ICE and CBP contract records, DHS privacy impact assessments, Inspector General or GAO materials, congressional oversight records, and post-*Chatrie* lower-court and agency guidance on location-data acquisition.

1. What statutes currently authorize ICE, CBP, DHS, DOJ, or other federal law-enforcement agencies to acquire or deploy the relevant technologies?
2. Which tools require warrants, subpoenas, administrative process, consent, immigration-process authority, border-search authority, or no individualized process?

3. Which contracts involve data brokers, contractor-operated analysis, biometric identification, social-media scraping, device extraction, drones, sensors, or automated risk scoring?
4. What privacy impact assessments, system-of-records notices, procurement records, audit logs, retention rules, civil-rights reviews, and Inspector General or GAO reviews already exist?
5. Which safeguards should apply to federal law-enforcement surveillance generally, and which should apply specifically to immigration enforcement, protests, sensitive locations, journalists, or U.S.-person data?
6. After *Chatrie*, how should Congress define warrant, particularity, minimization, notice, suppression, and vendor-access rules for geofence searches, location-history queries, and data-broker acquisition of cell-phone location information?

Preliminary Remedy Direction

The least-complex adequate remedy may be a federal law-enforcement surveillance procurement and deployment statute rather than a narrow immigration-only bill. A later proposal should evaluate:

1. mandatory public reporting for covered surveillance contracts and pilot programs;
2. pre-deployment privacy, civil-rights, and constitutional-impact assessments;
3. clear legal-process requirements for data acquisition, facial recognition, device extraction, data-broker queries, and biometric matching;
4. retention, minimization, access-control, and audit-log requirements;
5. restrictions on contractor-operated enforcement decision systems;
6. congressional notice for high-risk or high-cost surveillance programs;
7. independent Inspector General, GAO, and civil-rights review;
8. remedies for unlawful acquisition, retention, sharing, or operational use; and
9. special rules for journalists, confidential sources, protests, sensitive locations, and U.S.-person data.

Horizon Integration Note

HOR-002 was adjudicated on June 25, 2026. The decision was to admit the concern as DOM-009 rather than merge it into CIV-009, DOM-007, REC-001, FACT-001, or PRESS-003. The HOR-002 identifier remains static in the Horizon Scan Log integration log.

Chatrie v. United States was added on June 29, 2026 as a Supreme Court source-development update for location-data and geofence-search safeguards.

Budgetary Impact Statement

Not estimated pending proposal development.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Not Scored)

Adoption Friction: N/A

Required Electoral Environment: N/A

Development Priority: N/A

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Internal Review Status: Pending development; no proposal-quality score assigned

Last Internal Review: Horizon integration decision

Scoring Standard: 2026-06-27.1; **Scoring Basis:** Current unscored status

Next Review: Source-development pass

Full Review History: DOM-009 review history

A-15 — Congressional Oversight and Executive Accountability

Generalized Institutional Concern

Congressional oversight becomes ineffective when subpoenas, testimony demands, document requests, appropriations controls, and contempt mechanisms depend on voluntary executive compliance or partisan congressional will.

Active Issues

- **CONG-001 — Congressional Information and Subpoena Enforcement**
- **CONG-007 — Weak committee investigative capacity**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **CONG-002 through CONG-006** — Merged into CONG-001 as privilege, testimonial-immunity, delay, contempt-routing, and expedited-review components of one congressional-access framework.
- **CONG-008** — Retired as an independent proposal because unified-government inaction is principally a political failure. Automatic public notice of judicially established executive noncompliance remains addressed by JUD-005.

Issue Boundaries

- **CONG-001** owns congressional information access, subpoenas, executive privilege, testimonial immunity, contempt enforcement, litigation timing, and expedited judicial review.
- **CONG-007** owns committee staffing, technical capacity, secure facilities, counsel, data systems, and other investigative resources that do not depend on a particular subpoena dispute.
- The project may create automatic findings, reporting, and public notice that increase political accountability, but it does not compel a chamber or committee majority to conduct oversight.

Notes

CONG-001 is in development; CONG-007 remains an unresolved candidate. Both require source development before drafting.

A-16 — Presidential Immunity and Accountability for Official Misconduct

Generalized Institutional Concern

The legal system lacks a sufficiently clear, timely, and enforceable framework for holding presidents accountable for criminal, civil, or constitutional misconduct committed while in office or under the asserted mantle of official authority.

Active Issues

- **IMM-001 — Criminal Immunity for Presidential Official Acts**
- **IMM-002 — Civil immunity and remedial gaps**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **IMM-003 through IMM-006** — Merged into IMM-001 as tolling, evidentiary-use, delay, and impeachment-prerequisite components of the criminal-immunity framework.
- **IMM-007** — Integrated into IMM-001 for immunity arising from self-protective official acts and into DOJ-007 for conflicted investigation and prosecution.
- **IMM-008** — Merged into DOJ-007, which owns the independent investigative and prosecutorial institution.

Issue Boundaries

IMM-001 is the primary home for substantive reform of presidential criminal immunity, including core powers, presumptive official-act immunity, motive evidence, admissibility of official conduct, impeachment prerequisites, and temporary sitting-President protections.

DOJ-007 owns the independent institutional mechanism for investigation, evidence preservation, prosecution of other persons, and reporting to Congress. The two proposals are independently operable and mutually reinforcing.

IMM-001 incorporates tolling, evidentiary use, delay, impeachment prerequisites, and self-protective official-power applications. DOJ-007 independently owns investigation, evidence preservation, prosecution of other persons, and reporting to Congress. IMM-002 remains separate because civil damages, equitable remedies, statutory causes of action, official-capacity relief, and qualified-immunity interactions require a distinct framework.

Notes

IMM-001 remains 78/100 and Review Ready after a targeted consolidation review confirmed that its amendment already addresses the absorbed criminal-immunity components. IMM-002 remains an unresolved candidate requiring source development.

IMM-001 — Criminal Immunity for Presidential Official Acts

Issue Snapshot

Problem: Official-act immunity can bar accountability.

Repair: Abolish presidential criminal immunity.

Vehicle: Constitutional amendment (draft).

Institutional Anomaly

Current doctrine grants a former President absolute immunity from criminal prosecution for conduct within the President’s conclusive and preclusive constitutional authority and at least presumptive immunity for other official acts. It also restricts examination of motive, imposes a prosecution burden tied to institutional intrusion, and limits the evidentiary use of protected official conduct. The result may prevent otherwise valid criminal law from reaching conduct undertaken through official authority.

Manifestation of the Failure

Trump v. United States — immunity and evidentiary limits

In *Trump v. United States*, 603 U.S. 593 (2024), the Supreme Court held that presidential communications with DOJ concerning investigation and prosecution fall within the President’s exclusive constitutional authority and receive absolute criminal immunity. It recognized at least presumptive immunity for other official acts, generally restricted motive inquiry when classifying conduct, and limited evidentiary use of immune official acts.

The decision consequently affects both charging and proof. Alleged efforts to use DOJ authority for investigations lacking a good-faith lawful factual predicate or undertaken for an improper case-specific purpose may be unavailable for criminal adjudication even though the same conduct remains relevant to impeachment, congressional oversight, institutional reform, and the liability of other participants.

Resulting Damage

The doctrine can place criminal use of official power beyond ordinary judicial accountability, exclude highly probative evidence, reward the use of governmental machinery rather than private means, delay adjudication, and create uncertainty over whether generally applicable or President-specific criminal statutes constrain presidential conduct.

Underlying Weakness

The Constitution contains no express presidential criminal-immunity clause. The Court derived immunity from separation-of-powers concerns and the need to avoid chilling lawful presidential decisionmaking. Those concerns are legitimate but need not require categorical immunity, presumptive immunity, a prosecutorial burden to prove the absence of institutional intrusion, exclusion of official-act evidence, or a bar on examining motive where criminal intent is an element.

The principal problem is not that every mistaken or abusive policy decision should become criminal. Criminal liability must still depend on a valid criminal statute, all offense elements, proof beyond a reasonable doubt, and ordinary constitutional protections.

Proposal Survey

Ordinary legislation can define federal crimes, procedures, and limitations periods, but it cannot reliably supersede a constitutional immunity rule announced by the Supreme Court. The controlling modern baseline is *Trump v. United States*, 603 U.S. 593 (2024).

Possible reform models include narrower statutory clarification, impeachment-first accountability, independent screening, or a constitutional amendment. H.J.Res. 193, introduced in the 118th Congress, provides a close constitutional-amendment analogue by proposing that no federal officer, including the President and Vice President, is immune from criminal prosecution solely because the act was within constitutional authority or related to official duties. IMM-001 selects amendment because the defect is constitutional doctrine, while preserving procedural safeguards against partisan or legally deficient prosecutions.

Least-Complex Adequate Remedy

Adopt a constitutional amendment providing that:

1. neither absolute immunity for conclusive or preclusive presidential authority nor presumptive immunity for other official acts bars criminal accountability;
2. use of a core presidential power may constitute conduct, evidence, or an element of a valid federal offense where all constitutional and statutory requirements are satisfied;
3. criminal liability may arise under either a generally applicable law or a law specifically applicable to federal officers or the President;
4. motive may be considered where intent is an offense element;
5. presidential immunity creates no evidentiary exclusion rule for official communications, testimony, records, or surrounding circumstances;

6. separation-of-powers concerns may support tailored procedural protections but not immunity or a requirement that prosecutors prove the complete absence of institutional intrusion;
7. impeachment and Senate conviction are not prerequisites to criminal prosecution;
8. a sitting President may remain temporarily protected from indictment or trial while in office, with limitations periods tolled; and
9. independent screening and expedited review protect against partisan or legally deficient prosecutions.

Repair and Prevention

The Constitution should expressly abolish both absolute immunity for conclusive or preclusive presidential powers and presumptive immunity for other official acts. Official status, official classification, or the use of a core presidential power should not independently bar criminal investigation, prosecution, adjudication, or punishment.

The amendment should permit examination of motive where intent is legally relevant and should provide that presidential immunity creates no independent evidentiary exclusion rule. Official communications, testimony, records, and surrounding circumstances should remain admissible when otherwise relevant and lawful, subject to executive privilege, classification protections, fair-trial rights, and ordinary evidentiary rules.

Separation-of-powers concerns may justify tailored scheduling, privilege, process, venue, screening, or remedial protections. They should not create immunity or require the prosecution to prove that adjudication presents no danger of institutional intrusion.

The amendment should apply to any valid federal criminal law, whether generally applicable or specifically applicable to federal officers or the President. It should preserve lawful discretion by requiring proof of every element and should not criminalize policy disagreement, good-faith constitutional interpretation, or the lawful exercise of presidential authority standing alone.

Implementation Principles

Implementing legislation should require a prosecutor with lawful and institutionally reliable authority; written certification that the charge rests on a valid federal criminal statute, whether generally applicable or specifically applicable to federal officers or the President; identification of the alleged official and unofficial conduct; expedited pretrial review of privilege, classification, statutory coverage, and tailored separation-of-powers protections without recreating official-act immunity; protection against prosecution based solely on policy disagreement, good-faith constitutional interpretation, or lawful discretionary action; ordinary proof requirements and defendant rights; no immunity-derived exclusion of otherwise admissible official-act evidence; limitations-period tolling during any period in which indictment or trial is barred; and coordination with the independent-investigation mechanism developed under DOJ-007 without making either proposal dependent on adoption of the other.

Proposed Constitutional Amendment

- Presidential Criminal Accountability Amendment

Relationship to Adjacent Proposals

DOJ-007 owns the institutional mechanism for independent investigation, evidence preservation, prosecution of other persons, and reporting to Congress when ordinary executive investigation is unreliable.

IMM-001 owns the substantive rule governing whether a President or former President may claim criminal immunity. The two proposals are independently operable but mutually reinforcing.

Former IMM-003 through IMM-006 are integrated here because the current amendment already addresses limitation-period tolling, evidentiary use of official conduct, delay during presidential tenure, and the absence of an impeachment prerequisite. IMM-007 is integrated here only to the extent self-protective presidential power is asserted as an official-act immunity defense; conflicted investigation or prosecution remains in DOJ-007. IMM-008 is merged into DOJ-007 as the institutional-mechanism record. IMM-002 remains separate for civil immunity and remedial gaps.

Budgetary Impact Statement

No direct appropriation is anticipated for the amendment itself; implementing legislation may have costs.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 78 / 100 (Review Ready)
Adoption Score: 2 / 12 (Weak Adoption Basis)
Adoption Friction: 95 / 100 (Extreme Resistance)
Required Electoral Environment: constitutional-amendment-environment
Development Priority: conditional

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Internal Review Status: Internal project review complete; external validation pending
Last Internal Review: Internal project review
Scoring Standard: 2026-06-27.2; **Scoring Basis:** Current project standard
Next Review: External validation / follow-up internal review
Full Review History: IMM-001 review history

Annotation

Basis and Evidence. *Trump v. United States* recognized absolute immunity for core presidential powers, presumptive immunity for other official acts, and no immunity for unofficial acts. It also limited motive inquiry, placed an institutional-intrusion burden on prosecution of official acts, and restricted the evidentiary use of immune official conduct.

Quality Score. The internal project review scores the proposal at 78/100 (Review Ready). Component score: Structural 8/8; Evidence 11/12; Legal Fit 8/10; Prior Proposal 8/8; Remedy 10/12; Implementation 6/8; Abuse Resistance 7/8; Drafting 8/8; Cogency 6/6; Adoption 2/12; Project Integration 4/4; External Review 0/4. The score is current under scoring standard 2026-06-27.2. Review Ready means ready for knowledgeable external critique, not publication-ready or lawmaker-circulation-ready; Article V strategy, constitutional-law scrutiny, adoption evidence, implementing legislation, and external review remain incomplete.

Adoption Score. 2/12 (Weak Adoption Basis). The proposal correctly identifies an Article V pathway and now has a close 118th Congress constitutional-amendment analogue, but the internal project review did not verify current polling, state-ratification evidence, bipartisan sponsor strategy, or public-support evidence specific to abolishing presidential criminal immunity.

Prior Proposal Alignment. The internal project review verified H.J.Res. 193 as a direct constitutional-amendment analogue with official House text, named sponsorship, multiple co-sponsors, and referral to the House Judiciary Committee. IMM-001 is broader and more implementation-focused because it addresses motive evidence, evidentiary exclusion, tailored separation-of-powers procedures, sitting-President timing, and independent screening rather than only stating a no-immunity rule and self-pardon bar.

Adoption Friction. The internal project review places the proposal at 95/100 (Extreme Resistance). The proposal requires Article V amendment, directly reverses a recent Supreme Court constitutional holding, changes criminal exposure for Presidents and former Presidents, and would require extraordinary cross-party or post-crisis ratification conditions.

Required Electoral Environment. The required pathway is constitutional-amendment-environment, with post-crisis-only viability, conditional development priority, and stage as the pathway adjustment. Nearer-term work should focus on public explanation, DOJ-007 coordination, implementing safeguards, and external constitutional-law review rather than ordinary legislative enactment.

Qualification. The amendment should not authorize prosecution based solely on controversial policy, lawful use of a constitutional power, or disagreement with a predecessor administration. All offense elements, burdens of proof, privileges, classification rules, and defendant protections remain applicable.

Remedial Alternatives and Constraints. Ordinary legislation may clarify statutory coverage but cannot reliably supersede a constitutional immunity rule announced by the Supreme Court. A constitutional amendment is therefore the least-complex durable remedy.

A-17 — Independent Agencies and Regulatory Neutrality

Generalized Institutional Concern

The constitutional and statutory position of independent agencies is increasingly unstable, while presidential control over removal, vacancies, personnel, funding, enforcement, adjudication, and reorganization may also disable institutions and mandatory functions that Congress did not design as independent but did require to operate.

Active Issues

- REG-001 — Agency Independence and Functional Nullification
- REG-002 — Executive Influence over Federal Regulatory Enforcement
- REG-003 — Control of Administrative Adjudication
- REG-006 — Presidential control of rulemaking and legal positions

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- REG-004, REG-005, REG-007, REG-008 — Merged into REG-001. Operational dismantling, vacancies, funding independence, and post-doctrine constitutional design are components of its two-tier independence and continuity framework.

Issue Boundaries

- REG-001 is the primary home for a two-tier agency-independence and functional-continuity framework. Tier One applies heightened review where Congress intended meaningful independence, using statutory structure rather than an agency label alone. Tier Two applies a narrower continuity floor where presidential action or deliberate inaction substantially and sustainably disables an ordinary executive agency or mandatory statutory function. The shared concern is practical repeal or suspension without legislation, not ordinary presidential supervision or policy disagreement.
- REG-001 now presents two independent enactment choices. The preferred remedy is the Interbranch Review Framework Act (JUD-011) alone, whose generally applicable anti-nullification claim requires no REG-001 opt-in. The alternative is the standalone Congressional Institutional Continuity and Anti-Nullification Act, which supplies its own substantive and three-judge D.D.C. remedy without relying on JUD-011. REG-001 received an 83/100 score after internal project review (Review Ready); qualified review is next.
- The independent-agency removal and vacancy catalog remains the Tier One source-development record. *Trump v. Slaughter*, *Trump v. Cook*, and the July 2026 Election Assistance Commission collapse are primary independence and vacancy manifestations. REG-004 and REG-005 are merged into REG-001 because operational dismantling and vacancy manipulation are mechanisms of the same anti-nullification defect.
- HOR-018 supplies REG-001's Tier Two source-development lane for USAID, the Department of Education, reductions in force, transfers, funding freezes, program termination, and closure of operational capacity. Education-specific civil-rights or federalism questions may cross-reference A-24, A-11, and A-20; mechanism-specific personnel and funding remedies remain in CIV and FUND.
- HOR-024 supplies a CFPB bridge manifestation for REG-001. Funding structure is one independence indicator and possible disablement mechanism within REG-001; REG-002 retains case-specific executive influence over noncriminal regulatory enforcement, while REG-006 retains rulemaking and agency legal-position control.
- Independent funding is treated within REG-001 because it is one indicator and one potential mechanism of institutional independence or disablement, not a separate institutional failure. Constitutional design alternatives after recent removal-power doctrine remain in REG-001's proposal survey and annotations rather than occupying a separate proposal record.
- HOR-025 was integrated into REG-002 after private litigation placed alleged political “horse trading,” promised private benefits, and regulatory contacts within potentially discoverable records. Integration does not establish corruption. REG-002 now owns the process-integrity question for particular noncriminal regulatory-enforcement matters; REG-001 applies only if later evidence shows categorical or functional disablement of neutral enforcement.
- REG-003 owns executive control of administrative adjudication. Immigration-court removals, adjudicatory-pressure allegations, and the San Francisco court consolidation provide an initial manifestation while preserving lawful performance management, backlog reduction, and substantive immigration policymaking.

Notes

REG-001 was promoted after *Trump v. Slaughter*, expanded to consolidate operational, vacancy, funding, and constitutional-design components under a two-tier agency-independence and functional-continuity framework, and remains 83/100 and Review Ready after a targeted consolidation review. REG-002 is in development; REG-003 remains an active candidate, and REG-006 remains provisional. Enforcement, adjudication, and rulemaking or litigation-position controls remain separate because they may require different statutory vehicles.

REG-001 — Agency Independence and Functional Nullification

Issue Snapshot

Problem: Executive control can functionally nullify congressionally mandated institutions.

Repair: Protect lawful independence and mandatory operational capacity.

Vehicle: Interbranch Review Framework Act (JUD-011) alone (preferred); standalone REG-001 (independent alternative).

Institutional Anomaly

Congress creates institutions along a spectrum. At one end are multimember commissions and other bodies designed to exercise some degree of independence through for-cause removal rules, bipartisan membership limits, staggered terms, adjudicatory functions, quorum requirements, holdover rules, or separate procedural and funding protections. At the other are departments, agencies, offices, and programs placed under ordinary presidential supervision but still assigned duties that only Congress may repeal or suspend.

The shared defect is functional nullification. Presidential supervision can become a substitute for legislation when removals, vacancies, reductions in force, funding restrictions, transfers, stop-work directives, system shutdowns, or administrative nonuse leave a congressionally established institution materially unable to perform mandatory functions. The President's broader authority over an ordinary executive agency justifies more managerial latitude, but it does not necessarily include authority to abolish the institution or erase its statutory mission in practice.

REG-001 therefore uses a two-tier framework. Congress's demonstrated intent to create independence receives heightened protection; ordinary executive-controlled capacity receives a narrower continuity floor. Both tiers rest on the same boundary between presidential control over personnel, policy, and lawful methods of execution and congressional control over institutional existence and mandatory statutory duties.

Scope and Review Framework

Tier One — Congressionally intended independence

Heightened review applies when an organic statute, read as a whole, shows that Congress intended an entity or function to operate with meaningful insulation from immediate presidential command. Relevant indicators include for-cause removal language, fixed or staggered terms, multimember or bipartisan composition, quorum and holdover provisions, independent adjudicatory authority, separate funding or litigation authority, direct congressional reporting, and an express independent-agency designation. No single label or feature is dispositive.

When those indicators are present, removal, non-refill, succession manipulation, or operational interference that destroys quorum, neutral composition, adjudicatory capacity, or continuity should receive a strong presumption against functional disablement. After *Trump v. Slaughter*, source development must distinguish safeguards that remain available by statute from removal protection that may require a different agency design or constitutional authorization.

Tier Two — Executive-controlled agencies and functions

Lower review applies when Congress placed an entity under ordinary presidential supervision without specifying semi-independent operation. The President generally may replace leadership, change lawful priorities, reorganize under delegated authority, and choose among permissible implementation methods.

Review should become heightened only when presidential action or deliberate inaction causes a substantial and sustained inability to perform a mandatory statutory function. The question is not whether the President changed policy; it is whether the President achieved the practical equivalent of suspending, abolishing, or materially amending Congress's enactment.

Shared threshold and exclusions

REG-001 should require: (1) a congressionally established entity or affirmative statutory duty; (2) action or deliberate inaction that materially disables performance; (3) no statutory authorization for the suspension, termination, transfer, or reorganization; and (4) an effect comparable to practical repeal or suspension.

The issue should exclude isolated enforcement choices, good-faith priority setting, temporary vacancies accompanied by lawful continuity measures, authorized reorganizations, and functions committed to executive discretion. It should also cross-reference rather than duplicate specialized remedies for impoundment, civil-service manipulation, adjudication, enforcement policy, records, or particular agencies.

Manifestations of the Failure

Election Assistance Commission collapse

On July 10, 2026, the Associated Press reported that President Trump removed Democratic Election Assistance Commission members Thomas Hicks and Benjamin Hovland after *Slaughter*; Republican commissioner Christy McCormick resigned, and Republican commissioner Donald Palmer had already stepped down, leaving the four-member EAC without commissioners. See Associated Press, *Donald Trump ousts election commission members in latest push to reshape US voting process* (July 10, 2026).

This reported episode is the clearest Tier One illustration of how removal and vacancy management can combine to eliminate Congress's chosen commission in practice. The EAC's official commissioner page, dated May 1, 2026, still showed Hicks, McCormick, and Hovland at the internal project review and therefore supplies a pre-event baseline, not official confirmation of the July 10 removals or resignation. The EAC separately confirmed Palmer's April 30 departure. The zero-member claim remains attributed to current reporting pending an updated agency roster, removal records, or another primary source. ELEC-001 and ELEC-013 retain the election-administration and HAVA/candidate-access cross-references, while REG-001 owns the structural independence and continuity problem.

The organic statute confirms that the EAC has four Senate-confirmed members, political-balance and congressional-recommendation rules, fixed terms, and a holdover provision allowing service until a successor takes office. See 52 U.S.C. § 20923. Those features verify Congress's continuity design; they do not by themselves answer post-*Slaughter* removal power or guarantee quorum after members depart.

Department of Education and USAID continuity disputes

HOR-018 identified a lower-tier anti-nullification question involving reductions in force, program transfers, funding freezes, system shutdowns, and administrative nonuse at ordinary executive agencies. The White House's Executive Order 14242 directed steps toward closing the Department of Education while acknowledging statutory limits; the Department separately announced a substantial reduction in force, and the resulting continuity dispute reached the Supreme Court's emergency docket in *McMahon v. New York*, No. 24A1203.

These records do not establish that every staffing reduction or transfer is unlawful. They make concrete the Tier Two question: when does managerial control cross into a substantial and sustained inability to perform duties Congress assigned? The Supreme Court's public docket shows that the July 2025 emergency order stayed the preliminary injunction in *McMahon* pending the First Circuit appeal and any timely certiorari proceedings; it did not decide the merits. USAID dismantling, statutory transfer authority, appropriations, and program-continuity records should be assessed under the same threshold.

The scale is broader than isolated personnel disputes. GAO's June 2026 cross-agency update reported nearly 378,000 federal separations and about 127,000 hires during 2025, with workforce declines exceeding 10 percent at most major agencies and 30 percent at several. See GAO, *Federal Agency Workforce Changes: Update for July 2025 to January 2026*. That evidence supports cumulative-effects review but does not prove disablement at any particular agency; REG-001 still requires function-specific proof.

CFPB operational suspension

The CFPB supplies a bridge between the tiers because its removal-protection history and independent funding coexist with reported stop-work, building closure, personnel, enforcement, records, and funding actions. Associated Press reporting described the 2025 stop-work and closure directives and a later preliminary injunction against dismantling measures. REG-001 owns functional disablement and funding structure as an independence indicator or disablement mechanism; REG-002 retains case-specific executive influence over noncriminal regulatory enforcement, while REG-006 retains rulemaking and agency legal-position control.

In March 2026, the district court in *Rise Economy v. Vought* held that CFPB leadership acted contrary to law by adopting an interpretation that produced no funding request and ordered the Bureau to request the amount reasonably necessary to perform its statutory functions; the appeal remains pending. The ruling supplies a function-specific example of the proposed Tier Two threshold rather than proof that every funding or personnel reduction disables an agency.

PCLOB removals and quorum risk

The President's removal of Privacy and Civil Liberties Oversight Board members Travis LeBlanc and Edward Felten reduced a congressionally structured bipartisan watchdog to one member. The district court held the removals unlawful, reasoning that they impaired the Board's intended independence and ability to function; the D.C. Circuit stayed that relief and held the appeal in abeyance pending the Supreme Court's removal-power decision. The unresolved posture reinforces REG-001's need to distinguish constitutionally vulnerable tenure protection from quorum, holdover, records, reporting, and continuity safeguards that do not depend entirely on restricting presidential removal.

Resulting Damage

Functional disablement can:

1. nullify Congress's institutional design without repeal, presentment, or a recorded legislative vote;
2. destroy bipartisan, staggered-term, adjudicatory, expertise-based, or continuity safeguards intended to moderate immediate partisan control;
3. leave agencies, offices, or programs formally existing but materially unable to perform mandatory duties;
4. destabilize reliance interests for states, regulated parties, workers, consumers, grantees, investors, and competitors;
5. shift disputes from reviewable policy choices to irreversible operational facts, including lost staff, lapsed grants, deleted systems, abandoned cases, and expired appropriations;
6. permit a President to use removals, vacancies, funding, personnel, or reorganization as substitute methods of suspension; and
7. blur the boundary between lawful executive supervision and unilateral amendment of statutes.

Underlying Weakness

The governing weakness is the absence of a clear, enforceable boundary between control and abolition. The Constitution's Take Care duty reaches powers Congress assigns to department and agency heads, not only powers assigned directly to the President. See Library of Congress, *Overview of the Take Care Clause*. Yet existing safeguards are fragmented among organic statutes, appropriations law, the Vacancies Reform Act, civil-service law, reorganization authority, judicial-review rules, and agency-specific quorum or succession provisions.

For Tier One institutions, *Slaughter* makes conventional for-cause removal protection constitutionally unreliable for many officers exercising substantial executive power. For Tier Two institutions, presidential control is broader, but the law may still lack a usable test and remedy when action or deliberate inaction eliminates statutory capacity. The Impoundment Control Act supplies a partial model because executive action or inaction that prevents use of budget authority can constitute an impoundment subject to statutory procedures. See U.S. Government Accountability Office, *What is the Impoundment Control Act and What is GAO's Role?* (Mar. 5, 2025).

REG-001 should develop a function-based continuity rule without treating every management dispute as statutory nullification or recreating removal protection that current doctrine forbids.

Proposal Survey

Any REG-001 proposal should evaluate these paths before drafting:

Classification rule. Require an agency-specific finding identifying whether Congress intended meaningful independence, which statutory functions are mandatory, which functions remain discretionary, and what operational capacity is necessary to perform them.

Tier One safeguards. Test written removal reasons, congressional notice, holdover continuity, quorum preservation, lawful fallback succession, records preservation, protection of pending adjudications, decisional recusal, and expedited review. Agency redesign or a constitutional amendment may be necessary where meaningful independence cannot survive current removal doctrine.

Tier Two continuity floor. Require executive-controlled agencies to preserve minimum capacity for mandatory functions while leaving the President broad authority over leadership, lawful priorities, discretionary programs, and implementation methods. Any floor should be tied to statutory duties rather than historical staffing levels or policy outcomes.

Cross-mechanism anti-evasion rule. Evaluate cumulative effects across removals, vacancies, reductions in force, funding holds, transfers, delegations, system or website shutdowns, records loss, grant or contract termination, and stop-work directives. A formally lawful action should not automatically defeat review if coordinated measures produce practical statutory suspension.

Notice, certification, and review. Consider advance congressional notice, public legal-authority findings, continuity-impact assessments, GAO or inspector-general review, preservation orders, and expedited judicial review before irreversible disablement. Source development must identify viable plaintiffs, reviewable final actions, and relief that does not improperly control discretionary executive judgments.

Specialized statutory coordination. Keep appropriations and impoundment remedies in A-11/FUND, civil-service and reduction-in-force safeguards in A-08/CIV, case-specific executive influence over noncriminal regulatory enforcement in REG-002, and rulemaking or agency legal-position control in REG-006. REG-001 supplies the shared continuity test and treats funding structure as one institutional-design indicator and possible disablement mechanism.

Functional redesign and constitutional reserve. Assess whether investigation, prosecution, adjudication, research, recommendation, and enforcement functions can be separated to preserve lawful independence. Preserve a constitutional-amendment option only where Congress's intended insulation cannot be protected by ordinary legislation and statutory redesign.

Least-Complex Adequate Remedy

The likely least-complex adequate remedy is a two-tier statutory framework implemented through agency organic statutes and cross-cutting continuity procedures.

Tier One would apply stronger notice, continuity, quorum, succession, records, and review safeguards where Congress demonstrated an intent to create independence. Tier Two would apply only when executive action or deliberate inaction creates a substantial and sustained inability to perform mandatory statutory duties. It would preserve ordinary presidential supervision and authorized reorganization.

The framework should begin with classification and continuity planning rather than a universal staffing mandate or immediate constitutional amendment. Agency-specific redesign should follow where current removal doctrine prevents the intended independence from operating lawfully. A constitutional amendment remains a reserve for independence Congress cannot otherwise preserve.

For judicial enforcement, the primary recommendation is to enact the Interbranch Review Framework Act (JUD-011) alone. The Act supplies the generally applicable cause of action, eligible-plaintiff rules, anti-nullification threshold, D.D.C. forum, emergency-preservation authority, merits procedure, relief, and appellate route. It applies automatically when executive conduct substantially and sustainably nullifies an enacted mandate; REG-001 does not need to designate coverage or become law for that remedy to operate.

If Congress rejects the Interbranch Review Framework Act (JUD-011), it may instead enact the standalone REG-001 bill. That independent alternative defines its own substantive duties, cause of action, plaintiffs, standard, defenses, relief, section 2284 three-judge D.D.C. procedure, emergency authority, expedition, fact development, appeal, reporting, and appropriations. It neither invokes nor

depends on JUD-011.

Repair and Prevention

Future drafting should evaluate whether Congress should:

1. classify agencies and functions under the two-tier framework using statutory structure rather than labels alone;
2. identify mandatory functions and the minimum lawful capacity needed to perform them;
3. require stronger removal, vacancy, quorum, holdover, succession, and adjudicatory-continuity safeguards for Tier One institutions where constitutionally permissible;
4. prohibit substantial and sustained disablement of mandatory Tier Two functions without express statutory authority;
5. require public legal-authority findings, congressional notice, and continuity-impact assessments before covered actions;
6. aggregate coordinated personnel, funding, transfer, system, records, and operational measures when evaluating disablement;
7. preserve records, pending adjudications, complaint intake, grant administration, and other legally required transition functions;
8. authorize timely GAO, inspector-general, congressional, and judicial review with relief suited to statutory rather than discretionary injuries;
9. prefer the Interbranch Review Framework Act (JUD-011) as the complete general remedy while preserving REG-001 as a separately complete and funded standalone alternative;
10. coordinate with impoundment, vacancies, civil-service, appropriations, records, and agency-specific statutes; and
11. reserve constitutional amendment language for independence that cannot survive through lawful statutory design.

Proposed Legislation

Primary remedy — enact the Interbranch Review Framework Act (JUD-011) alone

- Interbranch Review Framework Act (JUD-011)

The Interbranch Review Framework Act (JUD-011) itself supplies the claim, coverage test, eligible-plaintiff rules, remedies, forum, and procedure. Its coverage is based on the alleged executive nullification of an enacted statutory mandate, regardless of subject matter or enactment date. It does not require REG-001, an opt-in clause, or a designation by another Act.

Independent legislative alternative — enact REG-001 alone

- REG-001 — Congressional Institutional Continuity and Anti-Nullification Act

REG-001 is a separate, complete response Congress may enact if it rejects the Interbranch Review Framework Act (JUD-011). It supplies its own institutional-continuity duties, claim, plaintiffs, standard, defenses, relief, three-judge D.D.C. procedure, appeal, administration, and appropriations. It does not rely on JUD-011 or any other ARRP proposal.

Interbranch Review Pathways

Primary recommendation — Interbranch Review Framework Act (JUD-011) alone

Enact the Interbranch Review Framework Act (JUD-011) as the generally applicable anti-nullification remedy. A REG-001-type dispute enters that framework because the pleaded facts satisfy the Act's statutory coverage test, not because REG-001 opts in. The Act alone supplies the cause of action and complete remedial machinery for substantial and sustained executive nullification of an enacted mandate.

Independent alternative — standalone REG-001 review

If Congress rejects the Interbranch Review Framework Act (JUD-011), it may enact REG-001 alone. REG-001 independently supplies random initial assignment, panel-formation deadlines, recusal replacement, temporary single-judge preservation authority, expedited interim and merits schedules, fact-development powers, public and protected-record procedures, consolidation limits, exclusive expedited D.C. Circuit review, Supreme Court certiorari review, judicial reporting, and protected appropriations.

These are alternative enactment choices, not two modes of one bill. Neither proposal incorporates, activates, or depends on the other. If Congress enacts both, each statute operates according to its own terms, subject to ordinary rules governing overlapping remedies and any express coordination Congress adds during legislative-counsel review.

Relationship to Adjacent Proposals

A-17 assigns REG-001 the shared agency-independence and functional-nullification defect. Former REG-004 operational-dismantling and REG-005 vacancy-manipulation candidates are consolidated here as the Tier Two and vacancy mechanisms rather than maintained as separate proposals.

A-21 / FRB owns Federal Reserve-specific independence, including *Trump v. Cook*, attempted removal of Federal Reserve governors, central-bank history, and monetary-policy independence.

DOJ-007 and other DOJ issues may cite *Slaughter* as background removal-power doctrine, but they should not be the primary home for the FTC decision.

REG-002 owns case-specific executive influence over noncriminal regulatory enforcement, and REG-006 owns rulemaking and agency legal positions. Former REG-007 funding concerns are integrated here because funding structure can indicate intended independence and funding restrictions can contribute to functional disablement. Former REG-008 constitutional-design alternatives remain part of REG-001's proposal survey and annotations rather than an independent institutional failure.

A-11 / FUND owns appropriations and Impoundment Control Act remedies. A-08 / CIV owns civil-service and reduction-in-force safeguards. Those areas should implement mechanism-specific rules while REG-001 supplies the two-tier continuity framework.

The Interbranch Review Framework Act (JUD-011) is the preferred, generally applicable anti-nullification remedy. Its coverage turns on executive conduct and the enacted mandate, not REG-001 enactment or designation. REG-001 is instead a fully independent legislative alternative with its own narrower institutional-continuity rules and review mechanism.

CIV-009 owns repurposed technical or White House-linked units, especially DOGE/USDS, as cross-agency operational-control instruments. It asks whether the unit's creation, staffing, appointments, delegations, systems access, records, privacy, procurement, appropriations, and oversight arrangements are lawful and adequate. REG-001 instead asks whether action by that unit or any other presidential instrument substantially and sustainably disables mandatory functions or replaces the congressionally enacted purpose of the affected institution. A single episode may be cataloged by REG-001 and used as a CIV-009 manifestation, but the instrument-governance remedy and the target-agency continuity remedy should remain separate.

ELEC-001 should receive cross-reference where removal or vacancy collapse at the EAC becomes part of a broader federal executive architecture pressuring state or local election administration. ELEC-013 should receive cross-reference where EAC instability affects HAVA-centered candidate-access administration, technical assistance, federal access forms, or state publication and notice-and-cure infrastructure. REG-001 remains the primary home for the removal-power and independent-commission design problem.

Budgetary Impact Statements

Preferred remedy — Interbranch Review Framework Act (JUD-011)

Budget authority is likely required under JUD-011 for its launch and contingent judgeships and shared judicial administration. REG-001 adds no separate judicial apparatus under this path, although case-specific restoration and compliance may create additional agency or oversight costs.

Independent alternative — standalone REG-001

Budget authority is likely required. The standalone bill authorizes necessary implementation and judicial-readiness appropriations but does not provide a fixed amount; no proposal-specific cost estimate is available.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 83 / 100 (Review Ready)

Adoption Score: 4 / 12 (Limited Adoption Basis)

Adoption Friction: 88 / 100 (Extreme Resistance)

Required Electoral Environment: sixty-vote-senate

Development Priority: active

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Internal Review Status: Internal project review complete; qualified review pending

Last Internal Review: Internal project review (2026-07-13)

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current project standard

Revision Review: Current for JUD-011 coverage, the standalone alternative, and both budget pathways

Next Review: Qualified constitutional, administrative-law, federal-courts, agency-operations, budget, and legislative-counsel review

Full Review History: REG-001 review history

Annotation

Removal doctrine and review structure. In *Trump v. Slaughter*, decided June 29, 2026, the Supreme Court held that the Federal Trade Commission's for-cause removal provision, 15 U.S.C. § 41, violates the separation of powers. In *Trump v. Cook*, decided the same day, the Court denied the Government's stay application concerning attempted removal of Federal Reserve Governor Lisa Cook, treating the Federal Reserve as historically distinct and emphasizing statutory pretermination process. A-21/FRB remains the primary home for the Federal Reserve-specific lane. These decisions define legal constraints and possible distinctions for REG-001; they are not themselves manifestations of executive disablement.

A pre-enforcement challenge to Executive Order 14215 supplies a separate reviewability boundary. In *Democratic National Committee v. Trump*, the district court dismissed for lack of standing and ripeness after executive-branch and FEC counsel represented that the order

had not been, and was not planned to be, used to control the Commission's interpretation of federal election law. The decision did not approve presidential control of FEC legal judgment; a concrete application or changed circumstances would require renewed review.

The REG-001 Agency Independence and Functional Nullification Catalog tracks both tiers of the issue. Tier One covers reported removals, attempted removals, resignation demands, protection mechanisms, vacancies, and quorum collapse involving PCLOB, NLRB, MSPB, FLRA, FEC, EEOC, FTC, CPSC, FRB, EAC, and USIP. Tier Two covers reported attempts to dismantle, absorb, suspend, hollow out, or fundamentally repurpose congressionally established executive institutions or mandatory functions. Inclusion is a source-development flag, not a finding that an action was unlawful or that statutory capacity was actually eliminated.

The vacancy theory remains narrower than ordinary appointment discretion. The relevant pattern is removal, non-refill, holdover conflict, or succession manipulation that leaves a protected institution unable to perform functions Congress required. Potential safeguards include quorum-preserving and holdover rules, lawful acting-member fallbacks, vacancy reporting, continuity plans, and expedited review without assuming that Congress may compel a particular nomination.

Detailed budgetary-impact support.

Budgetary pathways.

Preferred remedy — Interbranch Review Framework Act (JUD-011)

The Interbranch Review Framework Act (JUD-011) carries the two additional D.D.C. judgeships and the startup, national-roster, clerk, facilities, technology, secure-record, special-master, emergency-administration, and operating costs of the preferred general remedy. REG-001 adds no separate judicial apparatus under this path. Agency restoration, inspector-general, GAO, records, personnel, grant, and program-compliance costs remain dependent on the relief required in particular cases and are not included in the Act's judicial appropriation.

Independent alternative — standalone REG-001. The independent REG-001 alternative authorizes such sums as may be necessary for fiscal years 2027 through 2033 for judicial readiness and three-judge-panel administration, without creating new judgeships or directly providing budget authority. It separately authorizes necessary agency, OMB, inspector-general, GAO, CIGIE-coordination, and implementation appropriations. The internal project review corrected the administration clause so executive and oversight implementation funds remain with the entities to which Congress appropriates them, while only Judiciary funds are administered by AOUSC.

The principal workload categories are: agency inventories and continuity plans; legal, records, systems, and program staff preparing impact assessments; inspector-general and GAO reviews; D.D.C. clerk and three-judge-panel work; expedited discovery and protected-information handling; possible magistrate-judge or special-master support; and compliance monitoring. GAO's government-reorganization framework confirms that implementation planning, workforce capacity, costs, and monitoring are recurring reorganization needs. The Judiciary's FY2026 budget summary uses \$17.2 million and 170 FTE as an agency-wide workload-change comparator, not an estimate of REG-001. GAO's 2025 federal-program inventory covered more than 2,600 programs, illustrating why a universal inventory could be substantial but not establishing incremental cost. No proposal-specific caseload, agency-hour, secure-record, or litigation estimate exists; CBO, AOUSC, GAO, appropriations, inspector-general, and representative-agency review is required before Congress selects a fixed amount.

Detailed proposal-survey support.

Direct and functional legislative analogues. Congress has used both preservation and abolition bills, reinforcing the central REG-001 boundary: Congress may choose institutional change through legislation, while executive officials should not accomplish the same result administratively without delegated authority. The Protect U.S. National Security Act, H.R. 1196 (119th Congress) would prohibit use of federal funds to eliminate USAID's independent-establishment status, require five years of certifications, and state that only an Act of Congress may eliminate the agency. The contrary-path Orderly Liquidation of the Department of Education Act, H.R. 2456 (119th Congress) would itself liquidate the Department, transfer specified functions, preserve applicable review procedures, and schedule program terminations. Neither bill supplies REG-001's cross-government continuity standard or judicial route, and both remained introduced during the internal project review.

Historical reorganization-authority proposals provide a procedural analogue rather than a substantive endorsement. GAO's review of the Reforming and Consolidating Government Act of 2012 described a presidential proposal process requiring congressional approval for transfers, abolitions, consolidations, and creation of departments or agencies. GAO's broader agency-reform framework emphasizes legal authority, goals, costs, workforce capacity, implementation planning, stakeholder engagement, and performance monitoring. These models support advance analysis and enacted authorization, but not a committee veto or automatic judicial conclusion.

An appropriations analogue shows both the value and constitutional limit of notice mechanisms. In B-332704, GAO found that OPM violated a statutory prior-consultation requirement before eliminating and reorganizing offices, personnel, functions, and funds, while explaining why committee approval cannot operate as a legislative veto. REG-001 therefore uses notice and nonbinding GAO or inspector-general certification; binding consequences come from enacted standards and Article III adjudication.

Legal-Durability Crosswalk.

Question	Authority or comparator	REG-001 treatment	Remaining qualification
Executive control versus statutory abolition	Take Care Clause; <i>Slaughter</i> ; <i>Cook</i>	Protects mandatory capacity while preserving supervision, lawful removal, priorities, enforcement discretion, and authorized reorganization	Constitutionality remains application-specific, especially for foreign affairs, military functions, and duties committed to discretion

Question	Authority or comparator	REG-001 treatment	Remaining qualification
Cause, jurisdiction, and sovereign immunity	28 U.S.C. § 1331; 5 U.S.C. § 702 analogue	Express REG-001 cause, exclusive original D.D.C. jurisdiction, non-damages waiver, responsible-officer decree	Does not create damages jurisdiction or absorb claims arising solely under another review regime
Article III plaintiffs	<i>Raines v. Byrd</i> and ordinary injury, causation, redressability	Concrete state, beneficiary, regulated-party, grantee, contractor, and other injuries; Congress only after authorization by both Houses and independent standing	Congress cannot manufacture constitutional standing; agency and officer capacity still depends on other law
Three-judge process	28 U.S.C. § 2284; <i>Shapiro v. McManus</i> ; Rule 65	Random initial judge, wholly-insubstantial threshold, chief-circuit-judge designation, Rule 65(b) temporary relief, panel merits control	Legislative counsel and Judiciary should test mandatory three-judge workload and assignment deadlines
Appellate route	28 U.S.C. §§ 1253, 1254, 1291, 1292; 28 U.S.C. § 47	Expressly displaces direct section 1253 review; uses D.C. Circuit final and injunction review and Supreme Court certiorari; disqualifies trial-panel circuit judge	Ten-day appeal period and express TRO appeal need appellate-practice review
GAO and inspector-general roles	31 U.S.C. § 716; <i>Bowsher v. Synar</i>	Existing GAO access rules; nonbinding certifications and reports; judicial findings remain independent	Access remains subject to statutory limits, privilege, and protected-information law
Specialized review and monetary claims	APA, CSRA, Tucker Act, organic statutes	Independent REG-001 claims survive; relabeling cannot evade exhaustion, channeling, exclusive review, limitations, or damages forums	Courts will still characterize mixed claims and requested relief
Presidential relief	<i>Franklin v. Massachusetts</i> ; <i>Mississippi v. Johnson</i>	President excluded as responsible official; no coercive presidential relief; remedies ordinarily run against subordinate officers	Redressability must exist through lawful relief against responsible subordinates

Implementation Schedule.

Step	Deadline or period	Safeguard
Common inventory and plan format	90 days after enactment	OMB consultation with GAO and CIGIE; format cannot narrow statutory duties
Substantive and review provisions	Effective after 90 days	Allows initial judicial and agency readiness
Entity inventories	270 days after enactment	Common format, risk prioritization, lawful incorporation by reference, lawful redaction
Advance impact assessment	30 days before a major measure	Trigger defined by duration, quorum, program/fiscal scale, or irreversible capacity loss
Material assessment update	7 days	Corrective measures required when effects materially depart
Emergency assessment	72 hours after action	Emergency measure limited to necessity and ordinarily 14 days
Judicial emergency extension	At most 30 days per extension	Clear-and-convincing showing, no narrower lawful measure, fresh findings for each renewal
Certification response	7 days	Certification remains nonbinding and cannot create standing
Emergency panel formation	Ordinarily 24 hours	Missed deadline does not divest jurisdiction
Other panel formation	Ordinarily 3 business days	Section 2284 process controls
Interim hearing and decision	10 days after full briefing; 10 days after hearing or briefing	Written extraordinary-circumstances extension and due-process savings
Merits target	90 days after record is ready	Public reason and revised schedule if missed
Judicial and continuity reports	Annually for 7 years	Public workload and compliance feedback without merits interference

REG-001 received an 83/100 score after internal project review (Review Ready). Its scope combines the former independent-agency removal, agency-operation dismantling, and commission-vacancy candidates under one two-tier theory.

The issue is not premised on opposition to a strong executive. Tier Two expressly preserves presidential authority over leadership, policy, lawful prioritization, and implementation methods. The concern begins where presidential control becomes the practical abolition or suspension of an institution or mandatory function Congress enacted.

The July 13 internal project review confirmed the corrected enactment architecture. JUD-011 alone is the preferred general remedy and requires no subject-matter opt-in. REG-001 is a separate independent alternative carrying the issue's two tiers, cumulative-effects rule, notice and continuity measures, narrow trigger, exclusions, review procedure, relief, reporting, and funding. The internal project review corrected appropriation administration, made operating funds expressly dependent on appropriations, assigned filing guidance and dated reports, clarified effective dates and emergency actors, repaired appellate-list grammar, and distinguished the official EAC pre-event

roster from the still report-dependent July zero-member claim.

Quality Score. The 83/100 score uses scoring standard 2026-06-27. 2 is Review Ready: Structural 8/8; Evidence 10/12; Legal Fit 9/10; Prior-Proposal 7/8; Remedy 11/12; Implementation 8/8; Abuse Resistance 8/8; Drafting 8/8; Cogency 6/6; Adoption 4/12; Project Integration 4/4; External Review 0/4; Penalties 0. Publication-level public-source review found no defect requiring withdrawal from Review Ready. Advanced Review Ready and Publication Ready remain unavailable because external review is zero, several manifestation rows lack final primary proof, application-specific constitutional questions remain, and no proposal-specific caseload or cost estimate exists.

Adoption Score. The 4/12 score reflects an ordinary federal-legislation vehicle and current bills supporting both preservation and legislated abolition. At the internal current-source review, H.R. 1196 had 66 Democratic cosponsors but no action beyond House Foreign Affairs referral; H.R. 2456 had no cosponsors and no action beyond Education and Workforce referral. No verified proposal-specific sponsor, bipartisan coalition, polling, stakeholder endorsement, or external validator supports the cross-cutting REG-001 framework.

Adoption Friction. The 88/100 score is Extreme Resistance because the proposal limits presidential control over personnel and agency operations, creates mandatory continuity duties and an independent D.D.C. route, and would attract unitary-executive, separation-of-powers, standing, managerial-flexibility, appropriations, and judicial-capacity objections.

Required Electoral Environment. The required environment is *sixty-vote-senate*, with Pathway Viability *plausible-after-wave* and Pathway Adjustment *stage*. A narrower first stage could enact continuity inventories, advance notice, records preservation, and agency-specific quorum or succession reforms while the full cross-cutting judicial remedy is developed.

Source Notes

Tier One source development should begin with *Trump v. Slaughter*, *Trump v. Cook*, *Humphrey's Executor*, *Seila Law*, *Free Enterprise Fund*, *Morrison v. Olson*, agency organic statutes, commission removal and quorum provisions, the removal and vacancy catalog, and prior proposals on independent-agency design.

Tier Two source development should include the Department of Education Organization Act, Foreign Assistance Act and USAID authorities, Dodd-Frank's CFPB mission and funding provisions, appropriations and impoundment records, reduction-in-force and transfer authorities, the Federal Vacancies Reform Act, records-preservation law, continuity requirements, *McMahon v. New York*, and the HOR-018 and HOR-024 source records.

Cross-tier legal development should test the Take Care Clause, congressional power to establish offices and duties, removal and appointments doctrine, *Train v. City of New York*, *Clinton v. City of New York*, reviewability and standing, available equitable relief, and the constitutional boundary between lawful supervision and practical statutory repeal.

REG-002 — Executive Influence over Federal Regulatory Enforcement

Issue Snapshot

Problem: Executive intervention in particular regulatory matters may occur without a reliable record of contacts, conflicts, professional analysis, or reasons for changing course.

Repair: Preserve lawful policy supervision while documenting case-specific intervention and protecting review of the decisional process.

Vehicle: Pending development.

Institutional Anomaly

The President and politically accountable agency leadership may lawfully establish enforcement priorities, interpret governing law, allocate resources, and reject career recommendations. A disagreement between political leadership and professional staff is not itself an institutional failure.

The narrower weakness arises when senior executive officials intervene in a particular noncriminal investigation, merger review, settlement, or enforcement decision through contacts or considerations that are not adequately recorded, disclosed to authorized reviewers, tested for conflicts, or preserved with the professional analysis they displace. Outside parties may obtain favored access through political relationships or lobbyists, while Congress, inspectors general, courts, affected States, and the public may lack enough information to distinguish lawful supervision from favoritism, retaliation, or personal benefit.

For this proposal, **regulatory enforcement** includes noncriminal federal enforcement performed by regulatory agencies and by components such as the Department of Justice Antitrust Division. It does not include criminal investigation or prosecution, general rulemaking, administrative adjudication, or retaliatory use of regulatory authority against protected activity.

Manifestations of the Failure

HPE–Juniper settlement and Antitrust Division personnel actions

The Justice Department sued to block Hewlett Packard Enterprise's acquisition of Juniper Networks and later entered a settlement permitting the transaction subject to divestiture and licensing commitments. The Department's public case record contains the proposed judgment, competitive-impact statement, public comments, and the government's response.

Reuters reported that Principal Deputy Assistant Attorney General Roger Alford and merger-enforcement official Bill Rinner were removed following internal conflict over the settlement. Associated Press later reported the departure of Antitrust Division head Gail Slater and attributed to Alford allegations that politically connected access affected merger outcomes. Members of Congress requested Department records and a briefing and an inspector-general investigation. These reports and requests establish neither corruption nor that the settlement was legally unsound. They identify a sufficiently concrete process question to justify documented review.

Paramount–Warner Bros. merger allegations

In June 2026, the Antitrust Division announced that it had closed its investigation of Paramount Skydance's acquisition of Warner Bros. after an eight-month review. The Department stated that the transaction would not substantially lessen competition and rejected suggestions that the decision reflected political considerations.

Two private cases place alleged political influence within potentially discoverable records:

- In *Faust v. Paramount Skydance Corp.*, consumers challenging the transaction under the Clayton Act alleged political “horse trading,” transaction-related concessions, and contacts involving President Trump and Paramount leadership. The counts seek antitrust relief; the political allegations are part of the pleaded factual narrative rather than an adjudicated corruption finding. The court denied preliminary relief on the record presented, while the case remains pending.
- In *Robbins v. Ellison*, a Paramount shareholder alleges that Larry and David Ellison promised President Trump private and editorial benefits to remove regulatory barriers and thereby exposed the company to legal and financial risk. The Delaware action asserts corporate fiduciary-duty and declaratory claims against company leadership, not a proven bribery judgment or a direct public-law claim against the President or DOJ. The official docket reflects no adjudication of those allegations.

The separate multistate action challenging the merger's competitive effects is not treated as a REG-002 manifestation. It is an ordinary antitrust merits challenge unless its record later supplies evidence concerning executive intervention in the federal review.

First-term inspector-general review as a neutral comparator

In 2024, the DOJ Inspector General reviewed allegations that the Antitrust Division opened a 2019 automaker investigation for political reasons. After reviewing documentary and testimonial evidence, the Inspector General reported that it had not identified sufficient evidence of improper political influence. That result illustrates both that suspicious timing does not prove misconduct and that access to contacts, memoranda, and witness testimony is necessary to reach a credible conclusion.

Resulting Damage

Undocumented case-specific influence can produce favored access, unequal enforcement, compromised settlements, concealed conflicts, or retaliation against professional personnel. Even when the ultimate decision is lawful, the absence of a reviewable record can prevent credible exoneration, intensify public suspicion, and weaken confidence that regulatory power is exercised according to law rather than personal or political relationships.

Underlying Weakness

Existing safeguards are fragmented. Ethics and recusal rules address some financial or prior-representation conflicts. Inspectors general, congressional oversight, whistleblower law, public-record statutes, and ordinary litigation may later expose parts of a decision. 15 U.S.C. § 16, commonly called the Tunney Act, supplies disclosure, public-comment, and judicial public-interest review for certain federal antitrust consent judgments, but it does not create a uniform record for investigations that are closed, challenges that are abandoned, informal intervention, or political-appointee overrides across agencies.

ARRP has not identified a general federal requirement that every covered agency preserve case-specific contacts with senior executive officials and outside advocates, retain materially contrary professional analysis, identify applicable recusals, and provide a contemporaneous explanation accessible to an authorized independent reviewer when leadership materially changes a proposed enforcement disposition. The next statutory survey must test that preliminary conclusion agency by agency.

Preliminary Remedy Direction

Congress should evaluate a uniform process-integrity framework for defined, case-specific federal regulatory-enforcement matters. Potential components include:

1. contemporaneous internal logging of material White House, senior-official, and outside-party contacts concerning a covered matter;
2. conflict screening and recorded recusal decisions;
3. preservation of materially contrary staff analysis and the factual record supporting the final disposition;
4. a contemporaneous leadership explanation when political appointees materially override or terminate a formally recommended enforcement action;
5. protected access for the relevant inspector general and designated congressional committees, with delayed or aggregate public disclosure where investigative, privileged, commercial, privacy, or law-enforcement interests require protection; and
6. cross-reference to existing whistleblower and personnel protections when employees report concealed contacts, conflicts, false records, or retaliation.

The framework must not give career personnel a veto, compel a particular enforcement result, expose active investigations indiscriminately, or authorize courts to substitute their preferred regulatory policy for a lawful executive decision. The remedy should regulate process, preservation, disclosure, and review rather than convert every disputed enforcement choice into litigation.

Proposed Legislation

- Pending development. The next stage must map existing contact, ethics, inspector-general, whistleblower, confidentiality, antitrust, and agency-specific authorities before selecting a statutory vehicle.

Relationship to Adjacent Proposals

- **REG-002** owns executive influence over particular noncriminal regulatory investigations, merger reviews, settlements, and enforcement or nonenforcement decisions.
- REG-001 owns agency independence and sustained functional nullification, including categorical disablement of an agency or mandatory statutory function.
- REG-003 owns executive control of administrative adjudicators and individual adjudicatory outcomes.
- REG-006 owns general rulemaking and government legal positions.
- RET-001 owns regulatory, licensing, contracting, grant, tax, access, or enforcement powers used to punish or coerce protected activity or perceived opposition.
- DOJ-002 and DOJ-003 own case-specific political influence and selective treatment in criminal investigation and prosecution.
- Career-personnel retaliation remains primarily within A-08 / CIV and applicable DOJ personnel proposals; REG-002 addresses the integrity and record of the regulatory decision itself.

Budgetary Impact Statement

The likely costs involve contact-record systems, ethics and conflict review, records preservation, inspector-general review capacity, training, and protected reporting channels across covered agencies. The magnitude cannot be estimated until Congress defines the covered matters, agencies, disclosure timing, and reviewing institutions.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Not Scored)

Adoption Friction: N/A

Required Electoral Environment: N/A

Development Priority: Medium

Internal Review Status: Initial scope development; remedy and legislation pending

Last Internal Review: Internal scope and integration review

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current unscored status

Next Review: Government-wide safeguard and statutory-authority comparison

Full Review History: REG-002 review history

REG-003 — Control of Administrative Adjudication

Issue Snapshot

Problem: Executive control can compromise individualized administrative adjudication.

Repair: Separate lawful policy supervision from pressure on case outcomes.

Vehicle: Pending development.

Institutional Anomaly

Administrative adjudicators decide immigration, benefits, labor, patent, and other matters within the executive branch. Agency leadership may lawfully set policy, manage performance, reduce backlogs, and correct misconduct. The structural defect arises when the same executive institutions that prosecute, enforce, or defend cases can remove adjudicators, control assignments, or impose performance pressure based on perceived outcomes without adequate statutory independence, written reasons, or review.

The present manifestation is immigration adjudication, where Department of Homeland Security attorneys prosecute removal cases while Department of Justice immigration judges decide them. The issue is not whether immigration enforcement should be stricter or more permissive. It is whether individual cases receive neutral adjudication under law rather than outcome-directed executive control.

Manifestations of the Failure

Immigration-judge removals and adjudicatory pressure

A July 2026 account by the United Nations Special Rapporteur on the independence of judges and lawyers reports at least 130 immigration-judge terminations between January 2025 and June 2026, separate deferred resignations, removal letters without individualized explanations, disproportionate effects on judges with higher asylum-grant rates or immigrant-defense backgrounds, and policy or working conditions perceived as pressuring adjudicative outcomes. The account states that a formal United Nations communication had been sent but was not yet public; ARRP therefore relies on the published account, not an unseen communication.

The reported data do not by themselves prove that every removal was improper or that asylum-grant rates measure performance. Removal, non-conversion of a probationary appointment, rescission before swearing, deferred resignation, voluntary retirement, and reassignment must be counted separately. The relevant institutional question is whether statutory safeguards distinguish legitimate performance management from adjudicatory retaliation or outcome control.

San Francisco court closure and docket consolidation

EOIR announced that the principal San Francisco Immigration Court would close on September 4, 2026, with cases heard at the Concord Immigration Court, remotely, or at a smaller San Francisco hearing location under Concord's administrative control. Associated Press reporting described substantial judge losses, repeated transfers and cancellations, and access burdens associated with moving a large docket. This record supports one verified closure and consolidation; it does not establish that every depleted location was formally closed.

Selective docket acceleration allegation

In *Hines Immigration Law v. EOIR*, legal-service organizations alleged that EOIR rapidly advanced hearings for non-detained Somali clients under an unwritten policy; the government denied that such a policy existed. The court denied preliminary relief because the organizations had not shown likely standing, redressability, or final agency action, and it did not decide whether the alleged policy existed or was lawful. The episode is therefore a bounded manifestation of assignment and scheduling control, not an adjudicated finding of outcome-directed pressure.

Replacement hiring and the capacity boundary

The administration has also hired replacements. EOIR reported the swearing-in of 77 permanent and five temporary immigration judges in May 2026 and stated that the pending-case backlog had declined. REG-003 therefore should not characterize the record only as a capacity collapse. The distinct question is whether appointments, renewable temporary service, training, evaluation, removal, and case-management controls preserve independent judgment while permitting legitimate management and timely adjudication.

Resulting Damage

Outcome-linked pressure or unexplained adjudicator turnover can alter individual decisions involving removal, protection from persecution or torture, benefits, employment, or other legal interests; increase delay and reassignment; reduce public confidence that cases are decided under law; and create a model that can be extended to other executive-branch tribunals.

Underlying Weakness

8 U.S.C. § 1101(b)(4) authorizes immigration judges to conduct removal proceedings, while 8 U.S.C. § 1103(g)(2) gives the Attorney General broad authority over EOIR. Much of the tribunal's structure, appointments, assignments, evaluation, and procedure is therefore controlled within the same executive branch responsible for immigration enforcement.

The Federal Circuit's pending review of *Jackler & Jaroch Consolidation v. Department of Justice* may clarify civil-service removal protections for immigration judges. That litigation does not resolve every structural question involving temporary appointments, leadership control, training, court locations, case assignments, or performance measures.

Preliminary Remedy Direction

Congress should compare two approaches before ARRP selects a preferred remedy:

1. an independent Article I immigration-court system, such as the structural model proposed in H.R. 7836, the Real Courts, Rule of Law Act of 2026; and
2. targeted statutory safeguards within the existing executive structure, including neutral qualifications, written removal reasons, reviewable for-cause standards, protected decisional independence, transparent performance measures, court-location criteria, and public staffing and disposition reporting.

Either approach must preserve discipline for misconduct, lawful policy guidance, reasonable case-management standards, and Congress's authority over substantive immigration law.

Proposed Legislation

- Pending development.

Relationship to Adjacent Proposals

- **REG-003** owns executive control of administrative adjudicators and tribunals, including appointments, removal, assignments, training, performance measures, and decisional independence.
- CIV-001 owns government-wide civil-service and removal protections where the adjudicatory function is not the defining defect.
- RIGHTS-002 owns asylum and humanitarian reviewability; HOR-037 owns the broader candidate inquiry into civil immigration detention and removal safeguards.
- REG-001 applies only if executive action substantially and sustainably disables an agency or mandatory function rather than controlling adjudicative outcomes.
- Article III judicial independence remains within A-04; immigration judges are executive-branch adjudicators, not Article III judges.

Budgetary Impact Statement

Not estimated pending remedy selection. An independent Article I court would require separate appropriations, administration, facilities, and judgeships; targeted safeguards within EOIR would have lower transition costs but would still require personnel, reporting, review, and information-system resources.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Not Scored)

Adoption Friction: N/A

Required Electoral Environment: N/A

Development Priority: Medium

—

Internal Review Status: Source development underway; remedy and legislation pending

Last Internal Review: Source-development review

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current unscored status

Next Review: Adjudicatory-system comparator and remedy-selection review

Full Review History: REG-003 review history

A-18 — Government Information, Scientific, Statistical, and Factual Integrity

Generalized Institutional Concern

Official information, public-facing government terminology, data, scientific findings, public-health guidance, economic statistics, historical information, and technical assessments remain vulnerable to suppression, alteration, delay, selective publication, political reinterpretation, or misleading presentation that can confuse the public about legal authority, constitutional status, enacted law, or institutional reality.

Active Issues

- **FACT-001 — Scientific, Statistical, and Technical Integrity**
- **FACT-007 — Official Historical Presentation Integrity**
- **FACT-009 — Misleading Official Terminology, Titles, or Institutional Labels**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **FACT-002 through FACT-006; FACT-008** — Merged into FACT-001 as dataset, publication-schedule, statistical-agency, terminology, unfavorable-finding, archival-preservation, and methodology-protection components of one technical-integrity framework.
- **PRESS-007** — Integrated into FACT-001 or FACT-009 according to whether the conduct alters technical substance or misrepresents legal or institutional reality. Protected presidential criticism of the press remains outside the proposal.

Issue Boundaries

- **FACT-009** concerns executive or agency use of public-facing terminology, secondary titles, institutional labels, or official communications that may mislead the public about legal authority, constitutional status, enacted law, declared war, statutory office structure, or institutional reality. HOR-005 is integrated here as a source-development example: Executive Order 14347 authorized use of "Department of War" and "Secretary of War" as secondary titles while acknowledging that statutory references to the Department of Defense and Secretary of Defense remain controlling until changed by law. See Executive Order 14347, 90 Fed. Reg. 43893 (Sept. 10, 2025); 10 U.S.C. § 111. This issue should cross-reference A-03 where war-status terminology may confuse public understanding of Congress's constitutional war powers, and APPT-001 only where terminology also obscures who legally exercises office authority or facilitates confirmation evasion.
- **FACT-001** owns scientific, statistical, public-health, economic, and technical information integrity, including datasets, publication schedules, methodologies, terminology that changes technical substance, independent preservation, and suppression or alteration of findings.
- **FACT-007** remains separate because official historical presentation raises cultural, archival, museum, commemorative, and viewpoint-neutrality questions different from technical-integrity rules.
- **Relationship to A-24.** A-24 owns civil-rights administration, anti-discrimination enforcement continuity, identity records, federally funded civil-rights conditions, detention classification, and medical-privacy safeguards. A-18 issues should remain in A-18 when the central defect is suppression, deletion, alteration, delay, selective publication, misleading terminology, or manipulation of government information. Cross-link A-24 only when the remedy primarily concerns civil-rights enforcement, identity records, grant conditions, detention classification, privacy, or rights-bearing administrative process.

Notes

FACT-001 is in development after consolidation. FACT-007 and FACT-009 remain unresolved candidates. Full source development and initial vehicles are pending.

A-19 — Federal Contracting, Grants, Licensing, and Regulatory Retaliation

Generalized Institutional Concern

Presidents and political appointees possess sufficient influence over contracts, grants, licenses, investigations, approvals, and regulatory burdens to reward allies or punish critics without adequately independent review and rapid remedies.

Active Issues

- **RET-001 — Executive Retaliation Through Federal Benefits and Regulatory Power**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **RET-002 through RET-008** — Merged into RET-001 as contracting, regulatory, licensing, enforcement, target-class, clearance, access, evidentiary, and emergency-remedy components of one anti-retaliation framework.

Issue Boundaries

- **RET-001** is the primary home for executive retaliation against universities, law firms, media organizations, businesses, states, grantees, contractors, or similarly situated institutions through grants, contracts, access restrictions, security clearances, investigations, licensing, settlement pressure, taxation, antitrust, enforcement, or regulatory burdens. It must distinguish ordinary lawful administration from coercive use of those tools to punish protected speech, clients, governance, advocacy, academic activity, or perceived political opposition.

University targeting should be source-developed here when federal grants, contracts, research funding, student-aid participation, civil-rights investigations, admissions data demands, program-monitoring conditions, or settlement pressure are used to alter institutional governance, academic programming, disciplinary systems, admissions practices, or protected expression. Civil-rights substance may cross-reference RIGHTS-001; funding and impoundment mechanics may cross-reference A-11; federalism or state-university coercion may cross-reference A-20.

Law-firm targeting should be source-developed here when executive orders, agency instructions, security-clearance restrictions, building-access restrictions, contractor-disclosure demands, contract reviews, hiring restrictions, or investigation threats burden a firm because of its clients, lawyers, lawful advocacy, DEI policies, or perceived political alignment. If the core defect becomes access to counsel or judicial independence rather than contracting/grant retaliation, cross-reference JUD-001, DOJ-003, or a later legal-profession-specific issue.

Notes

RET-001 is in development. Initial source leads include Harvard federal-funding litigation, Columbia grant and settlement pressure, executive orders targeting major law firms, and district-court rulings blocking or striking down law-firm orders. Full source development, neutral comparative triggers, a concrete vehicle, and its first formal internal review remain pending.

A-20 — Federalism and Presidential Coercion of States

Generalized Institutional Concern

The federal government can use funding, enforcement discretion, emergency authority, deployment powers, waivers, and regulatory pressure to coerce state or local governments for partisan or personal purposes.

Active Issues

- **FED-002 — Selective or Retaliatory Federal Administration Against States**
- **FED-003 — Federal Funding, Waiver, and Approval Coercion of States**
- **FED-004 — Federal Displacement of State Functions**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **FED-001, FED-008** — Merged into FED-003 as disaster-aid, infrastructure-aid, waiver, approval, and grant-condition instruments of federal coercion.
- **FED-007** — Merged into FED-002 as the investigation-and-audit application of selective or retaliatory federal administration against states.
- **FED-005** — Merged into DOM-001 as domestic deployment over state objection.
- **FED-006** — Merged into ELEC-014 as election-specific federal interference with state election administration; FED-004 retains the general federalism boundary.

Issue Boundaries

- **FED-002** owns selective or retaliatory enforcement, investigation, audit, and administrative treatment directed at a state or locality because of its lawful policies or political alignment.
- **FED-003** owns federal funding, grant conditions, disaster or infrastructure aid, waivers, approvals, and similar benefits used to compel state or local policy change without a sufficiently clear congressional command.
- **FED-004** owns takeover, anti-commandeering, preemption, and displacement of state functions when neither funding coercion nor selective enforcement is the principal mechanism.
- **Political-status boundary.** District of Columbia statehood and the choice of Puerto Rico's final political status are outside ARRP's scope as substantive political decisions. A-20 may still address a separable federalism defect involving coercion, displacement of local functions, emergency or National Guard control, selective enforcement, grant conditions, or waiver authority when the remedy operates independently of any statehood or final-status choice.

Notes

FED-002 and FED-003 are active candidates after consolidation and initial source development. FED-004 remains an unresolved candidate. Vehicle selection remains pending.

FED-002 — Selective or Retaliatory Federal Administration Against States

Issue Snapshot

Problem: Federal powers can punish a State for a lawful policy or decision.

Repair: Require neutral predicates, written reasons, comparators, and timely review.

Vehicle: Pending development.

Institutional Anomaly

Federal agencies must enforce federal law and may lawfully treat States differently when facts, statutes, or program criteria justify the distinction. The institutional defect arises when executive officials use enforcement, investigation, audit, administration, or other federal powers to punish a State for its lawful policy, political alignment, or refusal to satisfy an executive demand that Congress did not impose.

The rule must be reciprocal. It should apply whether a Democratic administration targets a Republican-led State, a Republican administration targets a Democratic-led State, or any future administration uses federal authority against a disfavored jurisdiction.

Manifestation of the Failure

Federal pressure following Colorado's prosecution of Tina Peters

Colorado convicted former Mesa County Clerk Tina Peters of state offenses arising from unauthorized access to election equipment. In April 2026, the Colorado Court of Appeals affirmed every conviction, held that a presidential pardon did not reach state offenses, and vacated the sentence for reconsideration because the sentencing court improperly considered protected speech.

Colorado alleges that, after President Trump demanded Peters's release and threatened "harsh measures," federal agencies singled the State out for funding and other adverse treatment. Those allegations are set out in Colorado's amended federal complaint. A federal district court later preliminarily enjoined one Department of Agriculture directive, finding at that preliminary stage that the surrounding sequence indicated punishment rather than a genuine program purpose.

Governor Jared Polis subsequently commuted Peters's sentence. His commutation letter states that the decision rested on the sentence's unusual length, the appellate First Amendment ruling, Peters's acceptance of responsibility, and the circumstances of her case. The present record establishes sustained federal pressure and a preliminary judicial finding concerning one challenged action; it does not conclusively establish that the pressure caused the commutation or that the entire alleged campaign was unlawful.

Resulting Damage

Selective or retaliatory federal administration can distort State decisions without Congress changing federal law; transfer political conflict into unrelated programs and services; burden residents who did not make the disputed decision; and make ordinary federal administration depend on a State's political alignment or compliance with personal presidential demands.

Underlying Weakness

Program-specific statutes, the Administrative Procedure Act, constitutional federalism principles, and ordinary judicial review constrain particular agency actions. They do not presently provide a uniform rule requiring the executive branch to identify neutral predicates, disclose comparators, and justify materially adverse State-specific treatment when the surrounding record plausibly indicates retaliation.

Preliminary Remedy Direction

The next review should test whether a general federal-administration statute can require written statutory authority and factual predicates, disclosure of materially comparable jurisdictions, preservation of decision records, notice to the affected State, and expedited judicial review. The statute must preserve legitimate federal enforcement, fraud prevention, emergency response, civil-rights enforcement, and program administration.

Proposed Legislation

- Pending development.

Relationship to Adjacent Proposals

- **FED-002** owns selective or retaliatory federal treatment directed at a State or locality because of its lawful policy, political alignment, or refusal to satisfy an executive demand.
- **FED-003** owns the funding, waiver, approval, or comparable-benefit mechanism when the defect is an executive condition or withholding not clearly authorized by Congress.
- **ELEC-001** owns direct civilian executive interference with State election administration. Peters's underlying election-related conviction does not make every later federal action an election-administration issue.
- **RET-001** supplies the broader cross-sector retaliation route; **FED-002** is the State-specific federalism application.

Budgetary Impact Statement

Not estimated pending proposal development. The likely costs involve agency documentation, records preservation, comparator review, and expedited litigation rather than a new benefits program.

Note: Preliminary ARRPs assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Not Scored)

Adoption Friction: N/A

Required Electoral Environment: N/A

Development Priority: Medium

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Internal Review Status: Source development underway; remedy and legislation pending

Last Internal Review: Source-development review

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current unscored status

Next Review: Comparator, authority, cause-of-action, and remedy-selection review

Full Review History: FED-002 review history

FED-003 — Federal Funding, Waiver, and Approval Coercion of States

Issue Snapshot

Problem: Executive grant conditions can coerce unrelated State policy changes.

Repair: Require clear congressional authorization, germaneness, notice, and review.

Vehicle: Pending development.

Institutional Anomaly

Congress may encourage State and local action through federal spending, and agencies may administer the conditions Congress enacted. The structural defect arises when the executive branch uses a grant, contract, holdback, suspension, or termination threat to obtain a State policy change that Congress did not clearly impose as part of the funding bargain.

The issue is independent of the policy sought. A condition may pursue immigration enforcement, election security, public health, education, or another legitimate federal objective and still present an institutional problem if the executive branch converts program-administration discretion into a general power to set State policy.

Manifestations of the Failure

Sanctuary designations and immigration-cooperation conditions

Executive Order 14287 directed the Attorney General and Secretary of Homeland Security to designate “sanctuary jurisdictions.” It then directed agency heads, in coordination with OMB and “as permitted by law,” to identify federal grants and contracts for suspension or termination. The qualification recognizes that the order cannot itself supply authority Congress withheld, but the order places broad federal funding at risk based on an executive designation and State or local immigration policy.

The FY2026 Homeland Security Grant Program notice makes the pressure more concrete. It requires at least 10 percent of State Homeland Security Grant Program and Urban Area Security Initiative funds to support a border-enforcement priority, requires at least one investment under that priority, identifies participation in 287(g) programs and cooperation with ICE detainees among eligible activities, and requires State Administrative Agencies to coordinate all such projects with ICE. See the official FY2026 HSGP notice, pp. 16–17.

These facts do not establish that every immigration-related grant condition is unlawful or that a State has a right to federal funds free of congressionally authorized conditions. They show the institutional risk when executive documents, rather than an express funding condition enacted by Congress, determine whether unrelated public-safety funds remain available.

That risk has produced concrete judicial review. In April 2025, a federal court preliminarily enjoined implementation of sanctuary-jurisdiction funding restrictions against the plaintiff localities. The ruling was preliminary and did not establish a universal rule for every grant, but it treated the 2025 directives as materially similar to restrictions previously invalidated and reinforces the need for a clear statutory-authorization test.

Election-law conditions attached to antiterrorism grants

FEMA describes the FY2026 Homeland Security Grant Program as strengthening capacity to prevent, prepare for, protect against, and respond to terrorism and catastrophic events. The program offers approximately \$1.064 billion through 56 expected awards. See the official opportunity listing.

The notice separately requires a 3 percent minimum expenditure on election security. It also withholds 20 percent of the recipient’s total HSGP award from drawdown until DHS verifies compliance with broader election-administration requirements. Those requirements include a transition plan for specified voting equipment, a post-election manual audit, voter-and-ballot reconciliation, use of the federal SAVE system to check the statewide voter-registration database, corrective action concerning verified noncitizens, and citizenship verification for polling-place and election-system workers. See the official FY2026 HSGP notice, pp. 8 and 15–16.

Election infrastructure can legitimately be treated as homeland-security infrastructure. The narrower concern is the breadth of the leverage: the 20 percent holdback reaches beyond the separate election-security set-aside and conditions access to antiterrorism funds on statewide election rules drawn from an executive order and agency notice rather than a newly enacted congressional mandate.

Related litigation shows that the operative defect can also lie in award administration. A Rhode Island district court vacated FEMA decisions reallocating homeland-security funds, shortening performance periods, and imposing a population-certification requirement. A Southern District of New York court entered a permanent injunction concerning the reduction of New York’s transit-security grant. These case-specific rulings do not resolve the separate FY2026 election conditions, but they demonstrate how executive-added criteria and reallocation decisions can change congressionally funded security programs before a uniform statutory rule is applied.

Funding pressure following a State criminal-justice decision

Colorado alleges that federal agencies imposed State-specific funding and program consequences after President Trump demanded the release of former Mesa County Clerk Tina Peters and threatened “harsh measures.” A federal district court preliminarily enjoined one Department of Agriculture directive, finding at that preliminary stage that the surrounding sequence indicated punishment rather than a genuine program purpose. FED-002 owns the overall alleged retaliatory campaign; FED-003 retains the narrower question whether federal funding or benefits were used without a sufficiently clear statutory and programmatic basis.

Resulting Damage

Executive-created cross-policy funding conditions can:

1. shift State policymaking without Congress enacting the condition or State voters and legislators accepting it on its own merits;
2. delay security, emergency, or other public services while governments challenge or attempt to satisfy the condition;
3. transmit the funding loss to local governments and other subrecipients that did not control the disputed policy;
4. create uncertainty about whether conditions will change after planning, application, or award; and
5. permit selective leverage against disfavored jurisdictions under standards controlled by the same executive officials applying them.

Underlying Weakness

6 U.S.C. § 603 authorizes the Secretary of Homeland Security to award grants under several homeland-security programs. 6 U.S.C. § 605 establishes the State Homeland Security Grant Program to assist State, local, and tribal governments in preventing, preparing for, protecting against, and responding to terrorism. These provisions provide substantial administrative authority, but the present source-development record has not identified language expressly authorizing the executive branch to condition a large portion of the overall award on the statewide election and immigration policies described above.

Existing doctrine constrains but does not supply a uniform ex ante rule. *South Dakota v. Dole*, 483 U.S. 203 (1987), addresses clear notice, relation to the federal interest, independent constitutional limits, and coercion in spending conditions. *NFIB v. Sebelius*, 567 U.S. 519 (2012), identifies the point at which financial inducement can become compulsion. *Murphy v. NCAA*, 584 U.S. 453 (2018), preserves the distinction between permissible federal regulation and a command directing States to govern according to federal instructions. Litigation under those doctrines is fact-specific and often occurs after funding and policy decisions have already been disrupted.

Proposal Survey

The existing constitutional models suggest four minimum safeguards: Congress should state the condition clearly; the condition should be related to the funded program; the choice should remain genuinely voluntary; and the condition should not require independently unconstitutional conduct. The current record also includes a federal order enforcing a preliminary injunction against a FEMA review process that relied on sanctuary-jurisdiction funding restrictions. See the D.R.I. enforcement order. That order demonstrates the availability of case-specific judicial enforcement, but not a uniform statutory rule governing future cross-policy grant conditions.

Least-Complex Adequate Remedy

The apparent least-complex adequate remedy is an amendment to existing federal grant-administration law, supplemented where necessary in program-specific statutes. The amendment should require express statutory authorization before an agency conditions, delays, suspends, or terminates funds to obtain a State or local policy change outside the administration or use of the funded program. It should also require advance publication, objective findings, germaneness, written reasons, an opportunity to cure, and timely judicial review.

The rule should preserve ordinary eligibility requirements, accounting and performance controls, fraud remedies, national-security safeguards, and policy conditions Congress expressly enacted. Further review is needed before selecting the statutory home, definitions, cause of action, remedy, and treatment of existing awards.

Repair and Prevention

For existing awards, a future vehicle should require agencies to identify every covered condition and its express statutory basis, promptly release any holdback lacking that basis, and provide written notice sufficient for review. Prospectively, agencies should certify that covered conditions were enacted by Congress and published before application or award.

Proposed Legislation

- Pending development.

Relationship to Adjacent Proposals

- **FED-003** owns the cross-subject use of federal grants, disaster or infrastructure aid, waivers, approvals, or comparable federal benefits to obtain State or local policy changes without a sufficiently clear congressional command. Former FED-001, FED-008, and the state-or-local application of FUND-004 are integrated here.
- FED-002 owns State-directed selective or retaliatory federal administration. When an alleged retaliation uses a grant or comparable federal benefit, FED-002 owns the retaliatory pattern and FED-003 owns the funding instrument.
- ELEC-014 owns direct federal interference with State election administration; an election-related grant condition remains a FED-003 manifestation when grant leverage is the operative mechanism.
- FUND-001 applies when the executive fails to obligate or administer funds contrary to an enacted appropriation or mandate. RET-001 owns retaliatory use of grants or other federal benefits across recipient classes.

- RIGHTS-002 owns asylum and humanitarian reviewability. FED-003 does not decide whether any sanctuary policy, detainer practice, election rule, or other State policy is substantively preferable.

Budgetary Impact Statement

Not yet estimated. A narrow grant-condition and review framework would primarily create administrative review, reporting, and litigation costs rather than a new benefits program. The fiscal effect cannot be estimated until the statutory vehicle, reviewing institution, remedy, and treatment of withheld awards are selected.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Not Scored)

Adoption Friction: N/A

Required Electoral Environment: N/A

Development Priority: Medium

Internal Review Status: Portfolio consolidation complete; remedy and legislation pending

Last Internal Review: Issue-admission consolidation review

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current unscored status

Next Review: Existing-law, Spending Clause, delegation, waiver, approval, grant-condition, and remedy-selection review

Full Review History: FED-003 review history

Annotation

This issue does not treat opposition to sanctuary policies, election-security requirements, or any other State policy as itself an institutional failure. Congress may regulate within its enumerated powers, preempt conflicting State law where constitutionally authorized, and attach lawful conditions to federal funds. The proposal concerns who establishes the condition, how clearly Congress did so, how closely the condition relates to the program, and whether the State retains a legally meaningful choice.

The same mechanism can arise outside immigration and election administration. In 2025, Maine challenged a Department of Agriculture funding action tied to the State's policy governing transgender participation in school athletics. The case docket is retained as a cross-policy grant-condition example. FED-003 uses it only to test statutory authorization, germaneness, notice, and review; it does not take a position on the underlying athletics policy.

The FY2026 notice is a current manifestation and may be revised or litigated. Before internal project review scoring, source development should determine the precise appropriations and authorization language governing the award, identify all current challenges and final rulings, compare prior grant cycles, survey existing statutory causes of action and remedies, and test whether a generally applicable amendment or a title 6 amendment is the cleaner vehicle.

A-21 — Federal Reserve Independence and Monetary Policy

Generalized Institutional Concern

The Federal Reserve’s operational independence remains vulnerable to presidential pressure, partisan retaliation, appointment manipulation, removal threats, financing pressure, and efforts to subordinate monetary-policy decisions to short-term electoral interests.

Active Issues

- **FRB-001 — Federal Reserve Independence and Democratic Accountability**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **FRB-002 through FRB-008** — Merged into FRB-001 as removal, appointment, vacancy, financing, retaliation, electoral-pressure, instrument-independence, and accountability components of one Federal Reserve framework.

Issue Boundaries

- **FRB-001** owns the complete institution-specific framework: monetary-policy pressure, removal protection, appointment and vacancy design, operational financing, retaliation, election-cycle manipulation, and democratic accountability. Separate statutory titles or a severable constitutional fallback may remain within one independently enactable proposal.
- HOR-006 is integrated into FRB-001. The Supreme Court's interim treatment of Federal Reserve removal protection in *Trump v. Cook*, read with *Trump v. Slaughter*, is the primary legal source lead. Reporting on the attempted removal, legal and security expenses, and pressure on monetary-policy decisions remains relevant to removal, retaliation, and policy-pressure manifestations. See The Guardian, removal-related expenses (June 18, 2026), and interest-rate pressure (Jan. 28, 2026).

Notes

FRB-001 is a high-priority systemic-risk proposal in development. Full source development, legal-vehicle analysis, and its first formal internal review remain pending.

A-22 — Freedom and Independence of the Press

Generalized Institutional Concern

Existing constitutional and statutory safeguards do not adequately prevent presidents and executive officials from using access, investigations, licensing, contracting, regulatory authority, funding, or public intimidation to punish disfavored news organizations, reward favorable coverage, or distort the public factual environment.

Active Issues

- **PRESS-001 — Equal Press Access and Rapid Review**
- **PRESS-003 — Journalist Compulsory Process, Surveillance, and Source Protection**
- **PRESS-006 — Governmental Retaliation Against the Press**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **PRESS-002** — Merged into PRESS-001 as the selective-exclusion application of equal-access rules.
- **PRESS-009** — Merged into PRESS-003 as the confidential-source component of journalist compulsory-process and surveillance safeguards.
- **PRESS-004, PRESS-005, PRESS-008, PRESS-010, PRESS-011** — Merged into PRESS-006 as regulatory, contracting, coercive, public-broadcasting, taxation, and financial instruments of governmental retaliation.
- **PRESS-012** — Integrated across PRESS-001, PRESS-003, and PRESS-006 because rapid relief is a safeguard tailored to each underlying press dispute, not an independent institutional defect.
- **PRESS-007** — Integrated into FACT-001 or FACT-009 according to whether official conduct alters technical substance or misrepresents legal or institutional reality. Protected criticism alone remains outside scope.

Issue Boundaries

- **PRESS-001** owns viewpoint-neutral access to government events, facilities, pools, briefings, and time-sensitive information, with rapid review when exclusion would make relief meaningless.
- **PRESS-003** owns subpoenas, searches, surveillance, source demands, device seizures, approval rules, notice, exhaustion of alternatives, and source confidentiality.
- **PRESS-006** owns use of governmental powers or benefits to punish, threaten, or extract concessions from press organizations because of reporting. It should coordinate with RET-001, which supplies the cross-sector anti-retaliation machinery, while preserving press-specific First Amendment, newsgathering, and public-information concerns.

Notes

PRESS-001, PRESS-003, and PRESS-006 are in development after consolidation. Distinguish protected criticism from governmental coercive or distributive action.

Source Development

Detailed supporting material for PRESS-003 is maintained in its source-development record.

A-23 — Federal Historic Property and Civic Heritage

Generalized Institutional Concern

Federal historic buildings, monuments, landscapes, civic spaces, museum-like interiors, and commemorative features remain vulnerable to unilateral executive alteration, demolition, privatized redesign, donor influence, expedited construction, opaque security claims, and weak remedies after irreversible physical change.

Active Issues

- **HER-001 — Federal Civic Property Preservation and Public Review**

Prior Issue Numbers

These numbers were assigned during preliminary review but did not become separate proposals. They are listed only to explain gaps in the sequence.

- **HER-002 through HER-008** — Merged into HER-001 as review, private-funding, commission-integrity, emergency-exception, commemorative-feature, notice, documentation, consultation, and timely-remedy components of one civic-property framework.

Issue Boundaries

- **HER-001** owns whether a President or executive official may demolish, substantially alter, finance, rename, obscure, or replace nationally significant federal civic property without durable approval, preservation review, commission integrity, documentation, public notice, congressional consultation, and relief capable of operating before irreversible work is complete.
- Donor-funded work should cross-reference EMOL-001 where a donor has business before the federal government. Security or emergency rationales should cross-reference A-10. Judicial-order evasion belongs in JUD-001 only when the evidentiary threshold for executive noncompliance is satisfied.
- HOR-031 remains separately monitored because national-monument designation and revocation arise under the Antiquities Act and affect land-management authority beyond alteration of federal civic property.

Notes

HER-001 is in development. Full source development, a concrete preservation-and-review vehicle, and its first formal internal review remain pending.

Source Development

Detailed supporting material is maintained in the HER-001 source-development record.

A-24 — Civil Rights Administration, Remedies, and Identity Records

Generalized Institutional Concern

Civil-rights enforcement, constitutional remedies, humanitarian protection, identity records, benefit access, federally funded services, detention classification, medical privacy, anti-discrimination guidance, and rights-bearing adjudication remain vulnerable to abrupt executive redefinition, selective enforcement, coercive grant conditions, records-system manipulation, unreviewable status decisions, incomplete accountability pathways, and weak procedural safeguards.

Active Issues

- **RIGHTS-001 — Civil-Rights Administration, Identity Records, and Federal Definition Control**
- **RIGHTS-002 — Temporary Protected Status, Asylum Access, and Humanitarian Reviewability**
- **RIGHTS-003 — Birthright Citizenship Statutory Recognition and Federal Identity Records**
- **RIGHTS-005 — Civil and Criminal Accountability for Law-Enforcement Constitutional Violations**

Former Developed Proposals

- **RIGHTS-004 — Comprehensive Immigration Reform, Removal Due Process, and Immigration System Integrity** — Retired as an independent proposal; retained for disposition history.

Issue Boundaries

- **A-24** owns civil-rights administration, anti-discrimination enforcement continuity, humanitarian protection, identity-document systems, medical and personal privacy protections, federally funded civil-rights conditions, rights-bearing adjudication, and rights-bearing records processes.
- **RIGHTS-005** owns uniform civil remedies and personal civil and criminal accountability for law-enforcement constitutional violations. DOM-005 retains comprehensive Federal critical-incident evidence access, and JUD-012 retains the broader problem of government action insulated from legality review.
- **Political-status boundary.** District of Columbia statehood and the choice of Puerto Rico's final political status are outside ARRP's scope. A-24 may still address a rights-bearing administrative, adjudicatory, due-process, identity-record, benefit-access, or anti-discrimination defect affecting residents of either jurisdiction when the issue and remedy do not depend on selecting statehood or another final political status.
- **Immigration-system boundary.** A-24 may own immigration-related issues when the central defect is due process, humanitarian status, statutory reviewability, access to adjudication, lawful status pathways, citizenship recognition, identity records, asylum-processing triggers, or rights-bearing administrative protection. General immigration enforcement, domestic deployment, detention operations, surveillance, or border-force activity should remain primarily in A-14, with cross-links to A-24 only where rights-bearing adjudication, status stability, citizenship recognition, or humanitarian protection is the central remedy.
- **RIGHTS-004 disposition.** The omnibus record combined substantive immigration-policy choices with several distinct institutional defects and therefore lacked one least-complex adequate remedy. Its system-wide navigational function is preserved by the Immigration System Reform topic page. Its nonduplicative components remain routed to RIGHTS-002 for humanitarian status, asylum access, removal due process, and reviewability; RIGHTS-003 for citizenship recognition and records continuity; DOM for enforcement, detention, surveillance, and deployment; FED for federalism; and future narrow analysis only when a separately remediable defect is established.
- **A-18** remains the home for government information, scientific, statistical, terminology, public-health-data, and factual-integrity issues. A-18 issues should not move into A-24 merely because civil-rights policy is the subject matter; move or cross-link only when the remedy primarily concerns anti-discrimination law, identity records, grant conditions, detention classification, privacy, or civil-rights enforcement.
- **A-19** should be cross-linked when the mechanism is retaliatory or coercive use of grants, contracts, licenses, or regulatory approvals.
- **A-20** should be cross-linked when the federal government pressures states or local governments to adopt federal civil-rights definitions or enforcement priorities.
- **A-08** should be cross-linked when career civil servants, experts, or administrators are disciplined, reassigned, or pressured for civil-rights enforcement judgments.

Notes

Created during review of proposed candidates HOR-015 and HOR-016. RIGHTS-003 was added after birthright-citizenship executive-order litigation appeared in the state-led adverse-rulings comparator, then reframed after *Trump v. Barbara* as a statutory recognition and records-continuity issue. RIGHTS-004 was later retired because its omnibus scope combined political-policy questions and distinct remedies already owned elsewhere; the Immigration System Reform topic page now preserves the broader reader route. RIGHTS-005 was admitted from HOR-022 as the civil and criminal law-enforcement constitutional-accountability proposal. Full source development remains pending where identified on each issue page.

RIGHTS-001 — Civil-Rights Administration, Identity Records, and Federal Definition Control

Issue Snapshot

Problem: Executive definitions can rewrite civil-rights administration.

Repair: Stabilize records, grants, privacy, and review.

Vehicle: Civil-rights, records, grants, and privacy legislation.

Institutional Anomaly

Federal civil-rights administration depends on statutes, regulations, agency guidance, identity records, grant conditions, detention rules, medical-privacy norms, and public-facing information systems. A president can attempt to move all of those levers at once through government-wide definitions, centralized guidance rescission, funding conditions, records changes, and enforcement priorities.

The institutional defect is not that civil-rights law must remain frozen. Congress may change statutes, agencies may change policies through lawful procedures, and courts may resolve contested doctrine. The defect is that rights-bearing administrative systems can be rapidly redefined across agencies without stable statutory authorization, transparent reasoning, preserved records, privacy safeguards, individualized process, or reviewable funding conditions.

Manifestations of the Failure

Government-wide sex-definition control

Executive Order 14168 directs the executive branch to recognize only two sexes, defines "sex" for executive interpretation and federal administration, requires agencies to revise documents and communications, directs changes to passports, visas, Global Entry cards, and personnel records, directs review of grant conditions, addresses prison and detention placement, and orders agencies to rescind inconsistent guidance. See Executive Order 14168, 90 Fed. Reg. 8615 (Jan. 30, 2025).

That order is a strong manifestation because it shows how a single executive definition can cascade into civil-rights enforcement, public records, public-health information, detention policy, federally funded entities, agency guidance, and proposed codifying legislation.

Project 2025 as vulnerability mapping

Project 2025 materials should be treated as a vulnerability map even where a particular recommendation has not been enacted. The relevant question is whether the proposal identifies a legal, administrative, or institutional weak point that ARRP should consider repairing.

The existing Project 2025 crosswalk identifies proposals to eliminate DEI and gender-identity protections across agencies and to restrict Title IX gender-identity policies and related guidance as possible civil-rights, factual-integrity, and regulatory-neutrality vulnerabilities. See the Project 2025 topic guide and crosswalk and the official Heritage Mandate for Leadership Series.

Fair-housing implementation tools

HUD withdrew a standardized local-government assessment tool used to administer the statutory duty to affirmatively further fair housing. A federal court dismissed the resulting challenge for lack of standing and also concluded that HUD had adequately explained the withdrawal; the underlying statutory duty remained. See *National Fair Housing Alliance v. Carson*. The episode illustrates how an executive agency may materially change the administrative method for carrying out a continuing civil-rights mandate without eliminating the mandate itself.

Internal case-processing rules can alter administration as well. In 2017, *The New York Times* reported that Department of Education investigators were no longer generally expected to expand individual complaints into broader systemic reviews and that regional officials no longer had to notify headquarters about certain sensitive cases. The report illustrates procedural fragility; it does not establish that every decision against expanding an investigation is unlawful.

DEI program, contractor, and grantee targeting

Executive Order 14151 directs agencies to terminate federal diversity, equity, inclusion, and accessibility programs, positions, plans, grants, contracts, equity-related actions, and related environmental-justice offices. See Executive Order 14151, 90 Fed. Reg. 8339 (Jan. 29, 2025).

Executive Order 14173 revokes several prior equal-opportunity and contractor-compliance executive orders, directs federal agencies to remove DEI-related language from acquisition and grant procedures, requires contractor and grantee certification tied to federal anti-discrimination law and False Claims Act materiality, and directs federal action against private-sector DEI practices. See Executive Order 14173, 90 Fed. Reg. 8633 (Jan. 31, 2025).

The Department of Education's February 14, 2025 Dear Colleague Letter applied its interpretation of Title VI and *Students for Fair Admissions* to admissions, hiring, scholarships, discipline, and other programs at federally funded educational institutions. The resulting challenge is preserved in the *American Federation of Teachers v. U.S. Department of Education* docket.

The institutional question is not whether every DEI program is lawful or wise. It is whether executive-branch civil-rights administration can be converted into a government-wide targeting system through employment directives, grant and contractor certifications, agency

guidance removal, False Claims Act risk, public reporting channels, and funding leverage without clear statutory standards, preserved records, transparent reasoning, and prompt review.

Identity-document instability

Passport sex-marker policy is a live example of identity-record instability. Politico reported that a federal judge expanded an injunction against restrictions on passport sex markers in June 2025, but later reporting stated that the Supreme Court allowed the administration to enforce its passport policy while litigation continued. See Politico, *Judge says government can't limit passport sex markers for many transgender, nonbinary people* and Politico, *Supreme Court OKs Trump's passport policy limiting options for transgender people*.

This issue should not assume that any particular passport-marker policy is already unlawful. It should ask what process, statutory clarity, record-integrity safeguards, reliance protections, and judicial-review pathways should apply when identity records are changed across a federal system.

Grant-condition coercion and speech risk

Associated Press reported that a federal judge blocked enforcement of executive-order conditions requiring federal grant recipients to stop promoting diversity, equity, and inclusion or acknowledging transgender individuals while litigation proceeded. See AP, *Judge blocks administration from enforcing anti-diversity and anti-transgender executive orders*.

This manifestation overlaps with A-19 and A-20 because civil-rights policy can be imposed through funding conditions, contractor rules, state-program conditions, or federally funded entity requirements.

Medical-record and privacy pressure

Associated Press reported that a federal judge temporarily blocked Justice Department subpoenas seeking medical records in a criminal probe involving transgender care at New York hospitals. See AP, *Judge temporarily blocks subpoenas in criminal probe of transgender care at New York hospitals*.

This manifestation is not yet developed into a remedial theory. It flags a source-development need around medical-record privacy, criminal subpoena standards, health-care investigations, patient reliance interests, and whether existing privacy law sufficiently protects sensitive records when federal civil-rights or culture-war enforcement priorities shift.

Doctrinal uncertainty after Skrametti

The Supreme Court's decision in *United States v. Skrametti* is a necessary doctrinal caution. It does not settle every federal civil-rights administration question raised here, but it affects how future proposals should be framed, especially where equal-protection arguments, sex classifications, age, medical care, Title IX, Title VII, and agency authority intersect.

The Supreme Court's decision in *West Virginia v. B. P. J.* adds a second caution for Title IX and Equal Protection claims involving school athletics and sex-specific classifications. RIGHTS-001 should not assume that Title IX requires gender-identity-inclusive athletics rules or that every sex-definition policy is constitutionally invalid. The remaining institutional question is whether civil-rights administration, identity records, grant conditions, privacy, detention classification, and agency guidance should have clearer statutory authority, transition rules, record preservation, individualized process, and review safeguards when executive definitions change.

Resulting Damage

Government-wide civil-rights redefinition can:

1. destabilize identity records and reliance interests;
2. pressure agencies to delete or rewrite public-facing guidance without preserving reasoning;
3. impose funding conditions that Congress did not clearly authorize;
4. chill civil-rights services by federally funded entities;
5. make rights depend on rapid executive reinterpretation rather than durable statutes;
6. expose sensitive medical records to broad enforcement demands;
7. increase litigation uncertainty for states, schools, grantees, employers, prisons, and individuals;
8. confuse regulated entities about which civil-rights rule actually governs; and
9. make future administrations reverse civil-rights administration through the same unstable mechanism.

Underlying Weakness

Civil-rights administration is distributed across many agencies and legal tools. A single executive order can alter definitions, guidance, record systems, grant conditions, enforcement priorities, detention rules, and public communications before Congress, courts, grantees, or affected individuals can respond.

Existing law contains partial safeguards: the Administrative Procedure Act, civil-rights statutes, the Spending Clause, the Privacy Act, health-privacy rules, agency organic statutes, and constitutional limits. RIGHTS-001 should determine whether those safeguards are

adequate when the executive branch uses a coordinated definition-control strategy.

Proposal Survey

Any RIGHTS-001 proposal should consider several remedy paths before drafting:

Civil-rights enforcement continuity. Require agencies to preserve prior guidance, disclose legal reasoning, identify statutory authority, and provide transition periods before rescinding or reversing major civil-rights guidance.

Identity-record safeguards. Require clear statutory authority, individualized notice, administrative review, reliance protection, and records-integrity rules before federal identity-document systems or personnel records are changed through government-wide definitions.

Grant-condition limits. Clarify that civil-rights-related grant conditions must be authorized by Congress, stated unambiguously, germane to the grant program, and subject to prompt judicial review. This should be coordinated with A-19 and A-20.

Medical-privacy and subpoena guardrails. Evaluate whether existing health-privacy and criminal-subpoena safeguards adequately protect sensitive patient records when federal enforcement priorities target disfavored medical care or civil-rights categories.

Public-information preservation. Preserve scientific, public-health, statistical, and civil-rights information before content is removed or revised. This should be coordinated with A-18, which remains the primary home for factual-integrity remedies.

Detention and prison classification process. Assess whether federal prison, detention, and shelter-classification policies require minimum individualized risk assessment, safety review, and appeal procedures.

Statutory clarification. Evaluate whether Congress should clarify Title IX, Title VII, identity-document, federal-records, prison-safety, medical-privacy, or grant-condition rules. This path requires high caution because doctrine is active, politically sensitive, and now includes *Skrmetti* and *West Virginia v. B. P. J.* as material limits on some equality and Title IX theories.

Least-Complex Adequate Remedy

The least-complex adequate remedy is not selected. RIGHTS-001 should begin with source development and doctrine review.

A narrow first-stage remedy could focus on process rather than substantive codification: preservation of prior guidance and records, reasoned explanation for major civil-rights reversals, clear statutory authority for funding conditions, identity-record notice and review, medical-record subpoena safeguards, and expedited judicial review for affected grantees, states, institutions, and individuals.

Repair and Prevention

Future drafting should evaluate whether Congress should:

1. require public legal memoranda before major civil-rights guidance reversals;
2. preserve rescinded civil-rights and public-health materials in accessible archives;
3. require agencies to identify statutory authority before imposing civil-rights-related grant conditions;
4. create notice, review, and reliance protections for federal identity-record changes;
5. limit broad federal access to sensitive medical records absent heightened, individualized justification;
6. require individualized safety assessment before prison or detention classification changes;
7. establish expedited judicial review for grantees, states, institutions, and individuals affected by government-wide civil-rights definition changes; and
8. coordinate any factual-integrity remedy with A-18 instead of duplicating it here.

Proposed Legislation

- Pending development.

Relationship to Adjacent Proposals

A-18 owns factual, scientific, statistical, public-health-data, and terminology-integrity problems. RIGHTS-001 should cross-link A-18 where civil-rights administration is implemented through deletion, suppression, alteration, or misleading presentation of government information.

A-19 owns coercive or retaliatory use of contracts, grants, licenses, and regulatory burdens. RIGHTS-001 should cross-link A-19 where civil-rights definitions are enforced through funding conditions or contractor requirements.

A-20 owns federal coercion of states. RIGHTS-001 should cross-link A-20 where federal civil-rights definitions are imposed on state programs through funding, waivers, threats, or enforcement pressure.

A-08 owns civil-service and professional-administration vulnerability. RIGHTS-001 should cross-link A-08 where civil servants or experts are pressured to implement, suppress, or reverse civil-rights policy without ordinary professional safeguards.

Budgetary Impact Statement

No reliable estimate yet. Early remedies may require compliance, records, review, and litigation resources, but no appropriation estimate should be assigned until a specific proposal exists.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Not Scored)

Adoption Friction: N/A

Required Electoral Environment: N/A

Development Priority: N/A

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Internal Review Status: Pending development; no proposal-quality score assigned

Last Internal Review: SCOTUS doctrine update

Scoring Standard: 2026-06-27.1; **Scoring Basis:** Current unscored status

Next Review: Post-B.P.J. source-development pass

Full Review History: RIGHTS-001 review history

Annotation

RIGHTS-001 is a candidate issue admitted from HOR-015. It receives a proposal-quality score of 0 until a basic proposal framework is developed.

The page intentionally avoids deciding the merits of every sex-specific law, gender-identity policy, athletics policy, or civil-rights claim. Its current role is to isolate the institutional weakness: government-wide civil-rights administration can be rapidly redefined through executive definitions, records systems, funding leverage, guidance rescission, and privacy-sensitive enforcement tools.

The issue must also preserve lawful policy-change authority. In *Little Sisters of the Poor Saints Peter and Paul Home v. Pennsylvania*, the Supreme Court held that Congress had delegated broad authority to create contraceptive-coverage exemptions and that the agencies satisfied the challenged Administrative Procedure Act requirements. A future remedy should therefore focus on statutory boundaries, transparent procedure, reliance, records, and review—not freeze every prior civil-rights or benefits-administration policy.

Source Notes

Primary source development should begin with Executive Orders 14151, 14168, and 14173; *United States v. Skrametti*; *West Virginia v. B. P. J.*; *Little Sisters of the Poor*; *National Fair Housing Alliance v. Carson*; Project 2025 / Heritage materials; and the dockets behind the passport, DEI/grant-condition, contractor-certification, prison/detention, public-health-information, and medical-record cases. Secondary reporting may be used to identify events, but final drafting should rely on official orders, docket filings, statutes, regulations, agency guidance, and congressional materials wherever available.

RIGHTS-002 — Temporary Protected Status, Asylum Access, and Humanitarian Reviewability

Issue Snapshot

Problem: Humanitarian protections can become unreviewable.

Repair: Restore reviewable status and asylum safeguards.

Vehicle: INA and TPS statutory amendments.

Institutional Anomaly

Temporary Protected Status and asylum access are rights-bearing humanitarian-administration systems. They depend on statutory triggers, country-condition findings, consultation records, port-of-entry access, removal timing, and judicial review. When those systems become practically unreviewable, humanitarian protection can turn on executive will rather than transparent statutory compliance.

The institutional defect is not that every TPS designation must last indefinitely or that every asylum applicant must ultimately prevail. Congress may make humanitarian protection temporary, require periodic review, and set eligibility standards. The defect is that the executive branch may be able to terminate or block access to statutory humanitarian protections while courts lack authority to review ordinary statutory, procedural, or country-condition compliance.

Manifestations of the Failure

TPS termination reviewability

In *Mullin v. Doe / Trump v. Miot*, decided June 25, 2026, the Supreme Court held that the TPS statute bars judicial review of non-constitutional claims concerning TPS designation, termination, or extension. The Court also concluded that the Haiti equal-protection claim was unlikely to succeed at the interim-relief stage.

The decision creates a direct statutory-design problem: if Congress wants review of procedural compliance, country-condition findings, consultation failures, reasoned explanation, or safe-return determinations, it must say so clearly in the statute.

Humanitarian status without reviewable country-condition findings

TPS depends on conditions in the designated country, including armed conflict, environmental disaster, extraordinary and temporary conditions, and whether nationals can safely return. The Supreme Court opinion describes the statutory review cycle and the role of Federal Register termination notices. See *Mullin v. Doe / Trump v. Miot*.

If the country-condition record is functionally unreviewable, a termination decision may be lawful even where affected people, courts, Congress, states, employers, and local communities cannot test whether the agency followed the statutory process or reasonably assessed safe return.

Asylum-access trigger rules and border metering

In *Mullin v. Al Otro Lado*, decided the same day, the Supreme Court addressed whether asylum-access and inspection obligations applied to noncitizens stopped before entry at ports of entry. Public reporting described the decision as allowing the government to turn back asylum seekers at the U.S.-Mexico border. See The Guardian, *Supreme court lets Trump turn back asylum seekers at US-Mexico border*.

This manifestation is related but not identical to TPS. It raises a statutory-trigger problem: if asylum rights depend on whether a person has been allowed to physically cross a threshold, executive border practices can determine whether statutory asylum procedures ever attach.

Current affected-population salience

NBC News reported that the Supreme Court allowed President Trump's administration to remove protections for thousands of Haitian and Syrian migrants. The Guardian similarly reported on the TPS decision and described broader consequences for Haitian and Syrian TPS holders. See NBC News, *Supreme Court allows Trump to remove protections for thousands of Haitian and Syrian migrants*, and The Guardian, *US supreme court allows Trump administration to strip Haitians and Syrians of protected status*.

These reports should be used as current-event leads. Final drafting should rest primarily on the Supreme Court opinions, Federal Register notices, statutory text, country-condition records, agency consultation records if available, and congressional materials.

Resulting Damage

Weak humanitarian reviewability can:

1. leave statutory TPS standards without an ordinary statutory remedy;
2. make country-condition findings difficult to test in court;
3. reduce transparency around interagency consultation;
4. allow safe-return determinations to turn on executive preference;

5. destabilize families, employers, schools, churches, and local communities that relied on lawful TPS presence;
6. incentivize border practices that prevent asylum procedures from attaching;
7. increase irregular crossing pressure if lawful port-of-entry access is blocked;
8. limit congressional oversight of humanitarian-status decisions; and
9. make future humanitarian protections depend on litigation over constitutional claims rather than clear statutory review.

Underlying Weakness

The Immigration and Nationality Act contains humanitarian protections but also gives the executive branch broad authority and, for TPS, a strong review bar. Courts may preserve constitutional review, but ordinary statutory and procedural claims can be barred unless Congress expressly creates a review channel.

RIGHTS-002 should therefore ask what minimum reviewability, record, timing, notice, country-condition, and safe-return safeguards are necessary for humanitarian status programs to function as law-governed civil-rights administration rather than discretionary executive grace.

Proposal Survey

Any RIGHTS-002 proposal should consider several remedy paths before drafting:

TPS reviewability amendment. Clarify that courts may review whether the Secretary complied with required procedures, consultation duties, notice requirements, timing rules, and statutory country-condition standards when terminating or extending TPS.

Minimum country-condition record. Require a public administrative record identifying the country-condition evidence, State Department or other agency consultation, humanitarian impacts, reliance interests, and safe-return findings supporting termination.

Safe-return standard. Define minimum safe-return findings for armed conflict, environmental disaster, extraordinary conditions, and temporary disruption before termination takes effect.

Transition and reliance protections. Require minimum transition periods, work-authorization continuity, employer notice, school/family stability consideration, and congressional notification before large-scale TPS terminations take effect.

Asylum-access trigger clarification. Clarify when asylum, inspection, and credible-fear procedures attach at ports of entry, including whether officials may prevent people from triggering statutory processing through physical metering or turnback practices.

Expedited but real judicial review. Create fast review without indefinite delay: prompt filing windows, direct review in designated courts, preservation of constitutional review, and limited interim relief where the agency record is missing or facially inadequate.

Congressional reporting and oversight. Require notice to relevant committees before TPS termination and significant asylum-access changes, including agency rationale and implementation effects.

Least-Complex Adequate Remedy

The least-complex adequate remedy is not selected. RIGHTS-002 should begin with source development and statutory review.

A narrow first-stage remedy could amend the INA to create limited review for TPS procedural compliance and country-condition findings, require a public safe-return record, preserve constitutional claims, and separately clarify that asylum-processing duties cannot be avoided solely by physically blocking access to a port of entry.

Repair and Prevention

Future drafting should evaluate whether Congress should:

1. create limited judicial review for TPS statutory and procedural compliance;
2. require public country-condition and safe-return findings before termination;
3. require documented consultation with appropriate agencies;
4. preserve constitutional review and define the scope of statutory review;
5. require transition periods for large TPS terminations;
6. clarify when asylum-access and credible-fear obligations attach at ports of entry;
7. prevent metering or turnback practices from nullifying statutory asylum access; and
8. require congressional notice for major humanitarian-status reversals.

Proposed Legislation

- Pending development.

Relationship to Adjacent Proposals

A-24 owns this issue because it concerns rights-bearing civil administration, humanitarian status, due process, statutory reviewability, and access to adjudication.

A-14 should be cross-linked where immigration enforcement, detention, federal law-enforcement deployment, or surveillance mechanics are the primary concern.

A-10 should be cross-linked where border, invasion, national-security, or emergency rhetoric supplies the policy predicate for restricting humanitarian protection.

JUD-001 should be cross-linked only where the executive branch disobeys or evades court orders. RIGHTS-002 is different: it concerns whether courts have statutory authority to review the humanitarian decision in the first place.

Budgetary Impact Statement

No reliable estimate yet. Reviewability, record-preparation, transition, and adjudication safeguards may require agency and court resources, but no appropriation estimate should be assigned until a specific proposal exists.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Not Scored)

Adoption Friction: N/A

Required Electoral Environment: N/A

Development Priority: N/A

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Internal Review Status: In development; no proposal-quality score assigned

Last Internal Review: Horizon integration decision

Scoring Standard: 2026-06-27 . 1; **Scoring Basis:** Current unscored status

Next Review: Source-development pass

Full Review History: RIGHTS-002 review history

Annotation

RIGHTS-002 is a candidate issue admitted from HOR-016. It receives a proposal-quality score of 0 until a basic proposal framework is developed.

The page should not frame TPS or asylum as a guarantee of permanent immigration status. The neutral institutional frame is that humanitarian protections enacted by Congress should have transparent records, reviewable statutory compliance, fair access triggers, and defined safe-return standards.

Source Notes

Primary source development should begin with *Mullin v. Doe / Trump v. Miot*, *Mullin v. Al Otro Lado*, the TPS statute, asylum-access provisions of the INA, Federal Register notices for Haiti and Syria TPS terminations, country-condition records, and agency consultation materials if public. The vacated panel opinion in *Ramos v. Wolf* remains a historical lead concerning claim-specific TPS reviewability but is not current precedential authority. Secondary reporting should be used to identify affected populations and implementation posture, not as the final legal basis for drafting.

RIGHTS-003 — Birthright Citizenship Statutory Recognition and Federal Identity Records

Issue Snapshot

Problem: Executive or statutory rollback can threaten birthright-citizenship recognition.

Repair: Preserve constitutional and statutory recognition, records, benefits, and review.

Vehicle: Pending source development.

Institutional Anomaly

Birthright citizenship is a rights-bearing legal status with downstream consequences for federal identity records, passports, Social Security records, benefits eligibility, immigration administration, state vital-record reliance, and family stability. If executive policy or a later statutory rollback attempts to deny or narrow recognition of citizenship for people born in the United States, affected persons may face immediate practical harms before final judicial resolution.

The institutional defect is not that citizenship doctrine is immune from judicial interpretation. Courts may resolve constitutional disputes, and Congress may legislate within constitutional bounds. The defect is that federal recognition, records systems, benefits access, and agency implementation can shift quickly through executive direction or statutory amendment attempts while affected people, states, hospitals, families, and agencies lack clear transition, reliance, and review safeguards.

Manifestations of the Failure

Birthright-citizenship executive-order litigation

The cross-project executive-directive state-led adverse-rulings scan identified two Trump second-term state-led challenges involving a birthright-citizenship executive order: *New Jersey v. Trump* and *Washington v. Trump*. The scan flagged both as immigration / presidential-directive matters with adverse preliminary relief and likely executive-order linkage.

The Supreme Court has now decided the merits in *Trump v. Barbara*, holding that children born in the United States to parents unlawfully or temporarily present are citizens at birth under the Fourteenth Amendment. That decision sharply narrows the predicate for any ARRP remedy aimed at resisting Executive Order 14160 itself. The remaining source-development question is whether a narrower records, recognition-continuity, reliance, and review safeguard remains useful for future executive implementation attempts, agency lag, record instability, or downstream benefit and identity-document disruption.

The same decision also shows why RIGHTS-003 is not moot. Justice Kavanaugh's opinion concurring in the judgment and dissenting in part would have resolved the case on statutory grounds, reasoning that Executive Order 14160 conflicted with 8 U.S.C. § 1401(a), and expressly identified amendment of that statute as Congress's route if it wants to change the governing birthright-citizenship rule. A statutory rollback would still face the majority's constitutional holding, but the separate opinion identifies a practical vulnerability: if Congress narrows the statutory recognition baseline, agencies could face pressure to alter citizenship treatment, records, documents, and benefits before affected persons obtain final judicial relief.

RIGHTS-003 should therefore shift from a case-pending executive-order posture to a statutory-recognition and implementation-backstop posture. The proposal should evaluate whether Congress should affirm the existing recognition rule in statute, protect reliance interests and existing records, require clear transition rules before any future change is implemented, and create expedited review for newborns, families, states, hospitals, and federal agencies affected by any attempted statutory or executive narrowing.

Resulting Damage

Executive or statutory denial or narrowing of birthright-citizenship recognition can:

1. destabilize citizenship records and reliance interests;
2. disrupt passports, Social Security records, benefits, tax records, and other federal identity systems;
3. create conflict between federal recognition and state vital records;
4. impose immediate burdens on newborns, parents, hospitals, state registrars, schools, employers, and benefit administrators;
5. force affected people into emergency litigation to preserve basic status recognition;
6. create inconsistent implementation across agencies or jurisdictions; and
7. make constitutional citizenship protections depend on agency compliance timing rather than durable safeguards.

Underlying Weakness

Federal identity and benefits systems depend on agency recognition of citizenship status. Existing constitutional doctrine, federal statutes, agency procedures, and judicial review may ultimately constrain unlawful executive action or unconstitutional statutory rollback, but they may not supply fast, uniform, and reliance-protective safeguards while litigation is pending.

RIGHTS-003 should determine whether a narrowly tailored statutory or procedural remedy can protect recognition, records stability, and review without trying to relitigate every substantive constitutional question in advance. The key post-*Barbara* question is not whether the project should override the Supreme Court's majority rule, but whether Congress should codify and operationalize a birthright-citizenship recognition baseline so future agencies cannot exploit statutory ambiguity, delayed compliance, or records-system friction.

Proposal Survey

Any RIGHTS-003 proposal should consider several remedy paths before drafting:

Recognition continuity. Require federal agencies to continue recognizing citizenship status based on existing statutory and constitutional baselines unless Congress clearly changes the governing rule or a final court judgment requires a different result.

Statutory recognition lock-in. Amend or clarify 8 U.S.C. § 1401(a) to preserve birthright-citizenship recognition for persons born in the United States, subject only to constitutionally recognized exceptions, and to state expressly that agencies may not narrow recognition through guidance, records policy, benefit eligibility rules, or implementing instructions.

Identity-record safeguards. Require notice, individualized process, records preservation, and administrative review before agencies deny, suspend, annotate, or alter citizenship-related records for people born in the United States.

Benefits and document continuity. Preserve temporary access to passports, Social Security records, tax records, health coverage, and other federal benefits or documents while legal status is under judicial review, subject to fraud and identity-verification safeguards.

State-record reliance. Clarify how federal agencies must treat state birth records, hospital records, and vital-statistics records when implementing citizenship-recognition policy.

Expedited judicial review. Create a fast review path for affected persons, states, and relevant institutions where a federal directive or statutory amendment attempt changes birthright-citizenship recognition or related identity-record treatment.

Transition and reliance rules. Require prospective implementation rules, records-preservation duties, notice to state registrars and federal benefit administrators, and protection for documents and records issued before any disputed change takes effect.

Implementation pause. Evaluate whether agency implementation should be stayed automatically for newborns, minors, or existing records until specified procedural and judicial-review conditions are satisfied.

Least-Complex Adequate Remedy

The least-complex adequate remedy is not selected. RIGHTS-003 should begin with post-*Barbara* source development, including constitutional doctrine, 8 U.S.C. § 1401(a), citizenship statutes, identity-record statutes, agency implementation rules, reliance interests, and any remaining implementation or compliance disputes after the Supreme Court's merits ruling.

A narrow first-stage remedy could focus on statutory recognition continuity and record stability: federal agencies may not deny or alter citizenship-related recognition for persons born in the United States without clear constitutional and statutory authority, individualized notice, preserved records, transition protection, and expedited review.

Repair and Prevention

Future drafting should evaluate whether Congress should:

1. codify and preserve the existing birthright-citizenship statutory recognition baseline in 8 U.S.C. § 1401(a), consistent with the Fourteenth Amendment as applied in *Trump v. Barbara*;
2. require continuity of citizenship recognition during litigation over executive directives, statutory amendment attempts, or agency implementation of controlling judicial rulings;
3. protect federal identity records from categorical alteration without clear constitutional and statutory authority;
4. preserve reliance on state birth records and federal records already issued;
5. require written agency authority, transition rules, and implementation guidance before any change in recognition policy takes effect;
6. create expedited review for affected persons, states, hospitals, and benefit administrators;
7. protect access to essential documents and benefits while status is under review; and
8. coordinate with FUND-001 where implementation depends on appropriations, agency spending, or fiscal backstops.

Proposed Legislation

- Pending development.

Relationship to Adjacent Proposals

A-24 owns this issue because it concerns civil-rights administration, identity records, benefit access, citizenship recognition, and rights-bearing adjudication.

RIGHTS-001 is adjacent because it concerns government-wide civil-rights definitions and identity-record instability. RIGHTS-003 should remain separate if the central issue is citizenship recognition rather than sex, gender, civil-rights enforcement, or general identity-record policy.

RIGHTS-002 is adjacent because it concerns humanitarian immigration reviewability. RIGHTS-003 should remain separate because birthright citizenship concerns recognition of U.S. citizenship rather than temporary humanitarian status or asylum access.

FUND-001 should be cross-linked if implementation of an unlawful executive directive depends on appropriations, agency spending, or a fiscal backstop.

A-14 should be cross-linked only where the implementation mechanism is immigration enforcement, detention, surveillance, or domestic law-enforcement deployment rather than citizenship recognition and records.

Budgetary Impact Statement

No reliable estimate yet. Records, notice, review, document-continuity, and litigation safeguards may require agency and court resources, but no appropriation estimate should be assigned until a specific proposal exists.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Not Scored)

Adoption Friction: N/A

Required Electoral Environment: N/A

Development Priority: N/A

Internal Review Status: Post-*Barbara* source-development update complete; no proposal-quality score assigned

Last Internal Review: Post-*Barbara* statutory-vulnerability update

Scoring Standard: 2026-06-27 . 1; **Scoring Basis:** Current unscored status

Next Review: Draft or source-develop a statutory citizenship-recognition and records-continuity backstop

Full Review History: RIGHTS-003 review history

Annotation

RIGHTS-003 is a proposed issue admitted after birthright-citizenship executive-order litigation appeared in the state-led adverse-rulings comparator. After *Trump v. Barbara*, the issue should not be framed as if the core Citizenship Clause merits question remains unresolved. It also should not be treated as moot: the separate statutory analysis in the case identifies 8 U.S.C. § 1401(a) as an attack surface that Congress could try to narrow, even though any such statute would have to confront the majority's constitutional holding.

The neutral institutional frame is that citizenship recognition and identity-record systems should not be destabilized by executive directive or statutory rollback attempt without clear constitutional authority, transparent implementation rules, reliance safeguards, and expedited review.

RIGHTS-003 receives a proposal-quality score of 0 until the project drafts or source-develops a concrete statutory citizenship-recognition and records-continuity vehicle.

Source Notes

Primary source development should begin with *Trump v. Barbara*, including the majority's Citizenship Clause holding and Justice Kavanaugh's statutory analysis of 8 U.S.C. § 1401(a), the Fourteenth Amendment Citizenship Clause, federal citizenship statutes, federal passport and Social Security identity-record authorities, relevant agency implementation guidance, and any remaining post-ruling implementation orders or agency compliance records. The *New Jersey v. Trump* and *Washington v. Trump* dockets and the cross-project executive-directive state-led adverse-rulings scan should now be treated as procedural-history and routing leads rather than as unresolved merits predicates.

RIGHTS-004 — Comprehensive Immigration Reform, Removal Due Process, and Immigration System Integrity

Final disposition — July 16, 2026; navigation update — July 18, 2026: Retired as an independent ARRP proposal. The record combined substantive immigration-policy choices with multiple institutional defects requiring different remedies. Its system-wide navigational function is now preserved by the Immigration System Reform topic page, while substantive questions remain routed to RIGHTS-002, RIGHTS-003, DOM, FED, and other narrowly defined proposals or candidates. Retirement does not reject immigration reform as policy; it applies ARRP's rule against treating a broad political-policy field as one institutional failure.

The material below is an archived development record, not an active recommendation. Future work may reuse a source lead or narrowly framed institutional question only through an active proposal or a new issue-admission decision.

Issue Snapshot

Problem: Immigration law combines high-stakes status decisions with fragmented process, weak review, detention pressure, and unstable lawful pathways.

Repair: Build a rights-bearing, reviewable, capacity-backed immigration system with durable status, removal, detention, humanitarian, and federalism safeguards.

Vehicle: Pending source development.

Institutional Anomaly

Immigration law is both a border and sovereignty system and a rights-bearing administrative system. It determines family unity, work authorization, detention, removal, citizenship pathways, asylum access, humanitarian protection, state and local cooperation, and whether people can meaningfully contest government action before life-altering consequences take effect.

The institutional defect is not that Congress lacks authority to choose immigration policy. The defect is that the immigration system can be pushed toward mass enforcement, categorical exclusion, rushed removal, prolonged detention, backlog-driven denial, emergency framing, or federal-state coercion without a stable statutory architecture that protects process, reviewability, capacity, records, and lawful pathways.

ARRP should treat comprehensive immigration reform as a structural-governance issue, not merely as a preference for a particular admissions level or enforcement priority. The reform question is whether the system has enough statutory structure to preserve lawful administration, individualized adjudication, judicial review, humanitarian protection, reliable records, and constitutional federalism across administrations.

Manifestations of the Failure

No manifestation was treated as established for proposal-scoring purposes before retirement. Preliminary coverage categories and adjacent-issue boundaries are preserved in Annotation as historical development material rather than documented manifestations.

Resulting Damage

Structural immigration-system weakness can:

1. make lawful status, asylum, humanitarian relief, and family unity depend on backlog timing rather than statutory entitlement;
2. push people toward removal or detention before meaningful hearing, counsel access, translation, or record review;
3. undermine judicial review through jurisdiction-stripping, exhaustion traps, or nonreviewable discretion;
4. destabilize employers, universities, hospitals, state agencies, families, and communities that rely on predictable status and work-authorization rules;
5. encourage federal-state conflict or coercive pressure over local enforcement participation;
6. concentrate enforcement power in agencies without matching oversight, data limits, detention rules, or individualized process;
7. create inconsistent treatment across regions, ports, agencies, and adjudicators; and
8. leave future administrations with incentives to weaponize delay, discretion, emergency claims, or records friction.

Underlying Weakness

The Immigration and Nationality Act and related statutes distribute immigration authority across admission, removal, detention, asylum, refugee protection, visa categories, employment authorization, citizenship, enforcement, benefits, records, and judicial review. That architecture is sprawling, highly technical, and often patched after crises. A broad reform cannot be credible unless it distinguishes ordinary policy choices from structural guardrails.

RIGHTS-004 should focus on the structural layer: adjudication capacity, rights-bearing process, reviewability, status stability, detention safeguards, lawful-pathway coherence, records integrity, humanitarian protection, and federalism boundaries. It should not try to resolve every contested admissions, visa-number, or enforcement-priority question at the issue-admission stage.

Proposal Survey

Any RIGHTS-004 proposal should consider several remedy paths before drafting:

Adjudication capacity and independence. Review immigration-court structure, EOIR independence, judge capacity, asylum-office capacity, case-management transparency, interpreter access, notice standards, and whether adjudication should be insulated from enforcement priorities.

Removal due process. Preserve individualized notice, hearing access, record access, counsel access where feasible, translation, custody review, administrative appeal, and judicial review before removal where serious liberty, family, persecution, or citizenship interests are at stake.

Detention safeguards. Evaluate bond, custody-review, conditions, family-unity, child-protection, medical-care, and alternatives-to-detention standards, while leaving domestic force deployment and facility-security questions to A-14 unless the central defect is adjudicative process.

Humanitarian and protection systems. Coordinate with RIGHTS-002 on asylum, refugee, TPS, withholding, Convention Against Torture, parole, safe-return findings, country-condition records, and reviewability.

Lawful pathways and status stability. Source-develop family, employment, agricultural, student, humanitarian, registry, adjustment, and long-resident pathways as structural pressure valves that reduce black-market labor, enforcement overload, and backlog-driven instability.

Citizenship and records. Coordinate with RIGHTS-003 on nationality recognition, birthright citizenship, certificates of citizenship, passports, Social Security records, state vital records, and records-continuity rules.

Federalism and state cooperation. Evaluate anti-commandeering, preemption, 287(g)-style cooperation, state-law authority, information-sharing, detainer practice, and grant conditions with A-20.

Enforcement oversight and technology. Coordinate with DOM-009 on surveillance, data brokers, device extraction, facial recognition, drones, sensors, procurement transparency, and privacy safeguards.

Emergency and border-authority controls. Coordinate with A-10 where immigration policy is routed through national-emergency declarations, border emergency claims, invasion rhetoric, or emergency funding redirection.

Post-removal court compliance. Coordinate with JUD-001 where the problem is compliance with court orders after wrongful removal, substitution, return, contempt, or judicial-enforcement delay.

Least-Complex Adequate Remedy

The least-complex adequate remedy is not selected. RIGHTS-004 is too broad for a first-pass formula score and should begin with source development and remedy selection.

The likely drafting choice is between:

1. a modular comprehensive immigration-system integrity bill that amends title 8 in coordinated parts; or
2. separate narrower vehicles for adjudication capacity, removal due process, detention safeguards, lawful pathways, humanitarian reviewability, citizenship records, and federalism boundaries.

The first source-development pass should decide whether a single comprehensive vehicle improves coherence or whether it would become too broad to audit, score, enact, or maintain.

Repair and Prevention

Future drafting should evaluate whether Congress should:

1. create a durable immigration-adjudication capacity and independence architecture;
2. preserve judicial review and meaningful administrative review for high-stakes removal, detention, humanitarian, and status decisions;
3. require notice, translation, record access, and counsel-access safeguards before removal or status denial;
4. establish custody-review, family-unity, child-protection, and detention-conditions guardrails;
5. stabilize lawful pathways and work-authorization systems to reduce backlog-driven illegality and enforcement overload;
6. preserve asylum, refugee, TPS, withholding, CAT, parole, and safe-return reviewability in coordination with RIGHTS-002;
7. protect citizenship, nationality, and identity-record continuity in coordination with RIGHTS-003;
8. clarify federal-state cooperation boundaries, preemption, grant conditions, detainers, and information-sharing with A-20;
9. limit surveillance, data, procurement, and contractor-mediated enforcement capacity in coordination with DOM-009; and

10. require implementation reporting, inspector-general review, and public metrics that reveal backlog, detention, removal, relief, and error-rate patterns without exposing protected personal data.

Proposed Legislation

- Pending development.

Relationship to Adjacent Proposals

A-24 owns RIGHTS-004 because the central issue is rights-bearing immigration administration: adjudication, reviewability, humanitarian protection, lawful status, identity records, citizenship pathways, and status-dependent rights.

RIGHTS-002 owns Temporary Protected Status, asylum access, and humanitarian reviewability. RIGHTS-004 should coordinate with RIGHTS-002 rather than duplicate its statutory-review work.

RIGHTS-003 owns birthright citizenship, statutory recognition, and federal identity-record continuity. RIGHTS-004 should cross-link but not absorb RIGHTS-003.

DOM-009 and A-14 own immigration-enforcement surveillance, contractor-mediated enforcement capacity, domestic deployment, detention operations, and force-structure questions when those mechanisms are the central defect.

A-20 owns federalism and anti-commandeering issues where the central question is federal pressure on states or local governments, state-law authority for cooperation, preemption, or grant coercion.

A-10 owns border or immigration emergency declarations where the central defect is emergency authority, emergency funding, or executive emergency framing.

JUD-001 owns judicial-enforcement and court-order-compliance failures after wrongful removal or other executive defiance.

DOJ-002 is adjacent only when civil immigration enforcement becomes a vehicle for politically directed criminal process, retaliatory subpoenas, or White House interference in particular matters.

Budgetary Impact Statement

No reliable estimate yet. A comprehensive immigration-system reform could have substantial fiscal effects because adjudication capacity, detention standards, lawful-pathway processing, counsel access, technology limits, oversight, and implementation reporting may require new appropriations or reallocation of existing DHS, DOJ, State Department, HHS, and court resources.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Not Scored)

Adoption Friction: N/A

Required Electoral Environment: N/A

Development Priority: N/A

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Internal Review Status: Retired as an independent proposal after portfolio issue-admission review

Last Internal Review: Portfolio issue-admission disposition (2026-07-16)

Scoring Standard: 2026-06-27 . 1; **Scoring Basis:** Unscored record; no formal proposal-quality audit completed

Next Review: Preserve narrow source leads under their active homes; do not reopen the omnibus record without a new issue-admission finding

Full Review History: RIGHTS-004 review history

Annotation

RIGHTS-004 was admitted to preserve a comprehensive immigration-reform lane inside A-24 and later retired after portfolio review found that it combined political-policy choices with distinct remedies already owned elsewhere. Its system-wide routing function was preserved by converting the existing immigration guide into the Immigration System Reform topic page. Its proposal-quality score remains 0 because no score-bearing formal proposal audit or unified statutory vehicle was completed.

The issue should remain institutionally neutral. It should ask whether immigration administration has enough process, review, capacity, records integrity, lawful-pathway coherence, humanitarian protection, and federalism boundaries to resist abuse across administrations. It should not become a general repository for every immigration policy preference or enforcement dispute.

Preliminary manifestation categories. These categories remain source-development hypotheses rather than evidence-backed manifestations:

- **Removal and detention pressure.** Rapid removal, expanded interior enforcement, mandatory or prolonged detention, expedited procedures, courthouse or workplace enforcement, and federal-state enforcement cooperation can create practical pressure to surrender claims, waive hearings, or accept removal before meaningful review occurs.

- **Adjudication backlog and capacity failure.** Immigration courts, asylum offices, visa agencies, consular systems, and status-adjustment processes can become so backlogged that formally available relief becomes functionally unavailable. Delay can operate as denial for families, employers, refugees, children, lawful residents, and people with colorable claims to status or protection.
- **Humanitarian protection instability.** RIGHTS-002 separately owns Temporary Protected Status, asylum-access triggers, and humanitarian reviewability. RIGHTS-004 should incorporate those issues only at the comprehensive-system level: a broad immigration reform bill should not leave humanitarian protection as an unreviewable or purely discretionary exception to ordinary lawful administration.
- **Citizenship and identity-record instability.** RIGHTS-003 separately owns birthright citizenship, statutory recognition, and federal identity-record continuity. RIGHTS-004 should cross-reference that work where comprehensive reform affects nationality, citizenship records, passports, Social Security records, or state vital-record reliance.
- **Enforcement technology, domestic deployment, and federalism pressure.** Immigration enforcement can become a vehicle for surveillance procurement, data-broker use, domestic law-enforcement deployment, federalized enforcement pressure, state-local coercion, or emergency-power leverage. DOM-009, A-14, A-20, and A-10 should continue to own those mechanisms when enforcement power, domestic deployment, federalism coercion, or emergency authority is the central defect.
- **Project 2025 immigration-structure gap.** The Project 2025 topic guide and crosswalk flags DHS reorganization, mass deportation, interior enforcement expansion, asylum and refugee restrictions, detention, federalism, and immigration-adjudication integrity for routing review. The retired record preserves that history without treating the combined field as one active proposal.

Source Notes

Initial source development should begin with the Immigration and Nationality Act, 8 U.S.C. § 1401 and related nationality provisions, asylum and TPS provisions already associated with RIGHTS-002, detention and removal provisions, immigration-court and EOIR authorities, 287(g)-style cooperation authorities, federalism and preemption doctrine, DHS/DOJ/State implementation records, inspector-general and GAO reports, and prior congressional comprehensive-immigration proposals. The Project 2025 crosswalk should remain a routing and weakness-discovery source, not a substitute for primary statutory, administrative, and legislative source development.

RIGHTS-005 — Civil and Criminal Accountability for Law-Enforcement Constitutional Violations

Issue Snapshot

Problem: Law-enforcement officers who violate constitutional rights may escape personal civil and criminal accountability because remedies depend on different, incomplete federal and State pathways.

Repair: Create a uniform civil action, calibrate personal financial responsibility for aggravated violations, strengthen the existing federal criminal statute, and preserve lawful State prosecution.

Vehicle: Law-Enforcement Constitutional Accountability Act.

Institutional Anomaly

Constitutional limits lose practical force when a serious violation can receive neither a meaningful civil remedy nor a viable criminal-accountability review. The problem is not that federal law formally grants every law-enforcement officer absolute immunity. It does not. The problem is the interaction of narrower doctrines and institutional choices: qualified immunity can bar civil damages against State and local officers; Congress has not enacted a general statutory counterpart to 42 U.S.C. § 1983 for federal officers; the Supreme Court has sharply limited implied *Bivens* actions; the Westfall Act can substitute the United States for federal employees on State-law tort claims; federal criminal enforcement depends on the demanding standard and charging structure of 18 U.S.C. § 242; and State criminal proceedings involving federal officers can present Supremacy Clause immunity and evidence-access barriers.

Each rule protects a legitimate interest, including fair notice, decisional independence, federal supremacy, and protection against meritless litigation. Their combined effect can nevertheless leave completed constitutional injury without any institution able to impose personal consequences.

Manifestations of the Failure

Federal civil-remedy gaps

Section 1983 supplies an express civil action for conduct under color of State law, but not an equivalent general action against federal officers. In *Egbert v. Boule*, the Supreme Court reiterated that recognizing new implied *Bivens* remedies is generally for Congress, not the courts. A Congressional Research Service survey of federal law-enforcement remedies likewise identifies the statutory gap and available congressional options. JUD-012 records cases in which alleged federal-officer constitutional violations received no merits adjudication because no damages action was available. RIGHTS-005 owns the narrower legislative response for law-enforcement accountability.

Qualified immunity separately shields government officials from damages unless existing law put the constitutional question beyond reasonable dispute. The doctrine protects reasonable official judgment, but requiring a plaintiff to identify sufficiently specific prior precedent can deny compensation and deterrence even when a court concludes that the challenged conduct violated the Constitution. The Congressional Research Service confirms both Congress's authority to alter the doctrine and the competing concern that officers need room to make reasonable decisions in uncertain circumstances.

State-law civil remedies do not supply a uniform substitute

State tort and civil-rights claims vary materially. For federal personnel, 28 U.S.C. § 2679 generally substitutes the United States for an employee sued for a within-scope State-law tort, while preserving claims brought for a constitutional violation or under a federal statute authorizing individual recovery. The Federal Tort Claims Act's law-enforcement proviso waives immunity for specified intentional torts, but a claim against the United States is not the same as a uniform constitutional action against the responsible officer.

Criminal accountability depends on a different pathway

Section 242 already criminalizes willful deprivation of federal rights under color of law and provides enhanced penalties for bodily injury, dangerous weapons, kidnapping, sexual abuse, attempted killing, or death. Qualified immunity is not a criminal defense. The distinct weakness is that the statute's willfulness requirement, construed against fair-notice concerns in *Screws v. United States*, can exclude knowing or consciously reckless misconduct, while federal prosecution remains controlled by the same executive branch that employs federal officers.

The allocation of investigative responsibility can also determine whether possible officer misconduct receives an independent criminal review. July 2026 New York Times reporting republished by the *Philadelphia Inquirer* and CBS News reporting described written guidance shifting lead responsibility for alleged assaults involving DHS personnel from the FBI to HSI, while DOJ and DHS denied that policy had changed. Because the directive is not public, RIGHTS-005 treats this as a monitored manifestation, not an established abandonment of FBI review. The institutional question is whether the employing department can exclusively decide whether evidence from a covered incident receives a separate section 242 screening.

States may prosecute federal officers under generally applicable criminal law when the conduct falls outside valid federal authority. Federal officers may remove the case under 28 U.S.C. § 1442, and the federal court may decide a Supremacy Clause immunity defense. Removal changes the forum; it is not itself immunity. A valid immunity defense protects conduct authorized by federal law and necessary and proper to the federal duty. It should not be confused with a categorical exemption from State criminal law.

Current law-enforcement incidents expose the interaction

Recent disputed federal law-enforcement vehicle stops and shootings illustrate why the civil, criminal, and evidence systems must be evaluated together. HOR-045 is monitoring whether immigration-enforcement vehicle stops have sufficiently durable safeguards. DOM-005 addresses federal control of evidence needed for an authorized State investigation. Those records do not conclude that any pending incident was unlawful. They show that personal accountability cannot be evaluated fairly if the responsible civil or criminal forum lacks both a cause of action and timely access to the facts.

Resulting Damage

An incomplete accountability system can:

1. leave people injured by unconstitutional force, search, seizure, detention, or discrimination without compensation;
2. weaken deterrence where public employers routinely indemnify judgments and officers face no personal consequence;
3. leave knowing or reckless misconduct outside a criminal statute requiring willfulness;
4. make accountability depend on whether the officer happened to act under State or federal authority;
5. allow evidence control or institutional conflict to determine whether a State or federal prosecution can proceed;
6. encourage repeated litigation without a clear merits rule; and
7. diminish confidence in both law enforcement and the constitutional rules officers are sworn to uphold.

Underlying Weakness

Congress has never supplied one coherent accountability floor spanning federal, State, and local law-enforcement officers. Civil liability, employer responsibility, indemnification, federal prosecution, State prosecution, removal, immunity, and evidence access developed through separate statutes and judicial doctrines. The resulting system may protect reasonable mistakes while also failing to distinguish them adequately from knowing or reckless violations.

The needed repair is not unlimited liability. An officer should remain able to contest whether a constitutional violation occurred, whether the officer caused the injury, whether force was objectively reasonable, and whether the governing criminal mens rea is proved beyond a reasonable doubt. The reform should remove threshold barriers that prevent those merits questions from being tested and reserve unavoidable personal financial consequences for aggravated findings.

Proposal Survey

The Bivens Act of 2025 would extend section 1983-style relief to persons acting under federal authority. The George Floyd Justice in Policing Act of 2025 would change section 242 from “willfully” to “knowingly or recklessly” and would reject a good-faith or clearly-established-law defense in civil actions involving covered officers. Earlier federal bills, including the Ending Qualified Immunity Act, provide additional drafting models. The Qualified Immunity Act of 2025 supplies the principal counterproposal by seeking to codify qualified immunity for federal, State, and local officers.

Colorado and New Mexico have enacted State civil-rights remedies that do not use federal qualified immunity. Their implementation experience should inform—but cannot replace—a national baseline.

Least-Complex Adequate Remedy

The least-complex adequate remedy is one modular and severable federal statute. A new section 1983A would provide a uniform civil action for constitutional violations by federal, State, and local law-enforcement officers. Separate titles would amend section 242, preserve nondiscriminatory State criminal jurisdiction outside lawful federal authority, and require minimum evidence preservation and charging-review safeguards.

The civil and criminal titles should be severable. Congress could adopt either component independently, and a court's rejection of one provision should not disable the others.

Repair and Prevention

The initial draft would:

1. create an express federal cause of action against federal, State, and local law-enforcement officers, eliminating dependence on an implied *Bivens* remedy;
2. waive federal sovereign immunity for covered employer liability and address State and local employer responsibility through Congress's enforcement powers;
3. prevent qualified immunity or a “clearly established law” requirement from barring the civil action while preserving merits, causation, proportionality, and ordinary procedural defenses;

4. permit public-employer indemnification of compensatory damages but prohibit indemnification of punitive damages and require a capped personal contribution after a final knowing-or-reckless finding;
5. amend section 242 to reach knowing or reckless rights deprivations, with a defined conscious-disregard standard and proof beyond a reasonable doubt;
6. require independent federal charging review and a written internal explanation in death or serious-bodily-injury cases when prosecution is declined;
7. clarify that valid federal duties remain protected but do not authorize knowing or reckless constitutional violations or displace nondiscriminatory State criminal law outside lawful authority;
8. preserve federal-officer removal and require prompt adjudication of a claimed federal immunity;
9. create evidence-preservation and secure-access duties sufficient to make civil and criminal review functional, without creating a public-disclosure right; and
10. prevent double recovery while preserving stronger nonconflicting State remedies.

Proposed Legislation

- **Initial draft:** Law-Enforcement Constitutional Accountability Act.
- **Structure:** Severable civil-remedies, federal-criminal-accountability, State-jurisdiction, evidence, and reporting titles.
- **Current status:** In development. The personal-contribution formula, State-sovereign-immunity basis, section 242 mens rea, federal charging-review mechanism, fiscal effects, and interaction with collective-bargaining and indemnification rules require further review.

Relationship to Adjacent Proposals

JUD-012 owns the general problem of government action insulated from legality review. RIGHTS-005 owns the specific civil and criminal accountability regime for law-enforcement constitutional violations.

DOM-005 owns comprehensive preservation and authorized State access to evidence after a federal critical incident. RIGHTS-005 includes only the minimum evidence provision necessary to remain independently operable and should conform to DOM-005 rather than create a conflicting system.

DOJ-007 owns independent investigation of presidential and senior executive misconduct. RIGHTS-005 requires a narrower charging review for covered officer conduct and should use DOJ-007's shared independent-investigation framework if Congress adopts it.

HOR-045 remains a deferred candidate focused on immigration-enforcement vehicle-stop safeguards. It may supply future manifestations but does not duplicate the accountability remedy.

Budgetary Impact Statement

No reliable estimate is available before empirical and implementation review. Likely costs include additional federal civil filings, representation and indemnification, agency and municipal insurance changes, evidence retention, Department of Justice charging review, inspector-general reporting, State investigative coordination, and federal-court adjudication. Recoveries and deterrence effects are not reliable offsets for budget scoring.

The next budget pass should separately estimate civil case volume, federal employer liability, State and local grant or compliance costs, evidence-system costs, and criminal-review staffing. It should also evaluate whether capped personal contributions affect recruitment, retention, insurance, collective bargaining, or officer behavior.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Proposal Scoring

Proposal Quality Score: 0 / 100 (Not Scored)

Adoption Friction: N/A

Required Electoral Environment: N/A

Development Priority: N/A

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Internal Review Status: In development; admitted from HOR-022 with an initial severable legislative draft

Last Internal Review: Horizon candidate admission and initial drafting

Scoring Standard: 2026-06-27 . 2; **Scoring Basis:** Current unscored status; **Revision Review Needed:** No

Next Review: Complete empirical, constitutional, fiscal, and stakeholder review before the first score-bearing audit

Full Review History: RIGHTS-005 review history

Annotation

No categorical absolute-immunity premise. The proposal does not claim that federal law-enforcement officers possess general absolute immunity. Qualified immunity is a civil damages doctrine, not a criminal defense. Judges, prosecutors, legislators, and the President may have different function-specific immunity rules outside RIGHTS-005's scope.

Personal accountability is calibrated. The draft does not expose officers to unlimited personal payment for reasonable mistakes. Public employers may indemnify compensatory awards. Personal payment attaches only after an aggravated finding and remains capped in relation to salary and judgment size; punitive damages remain personal. The formula is a first draft requiring evidence from State reforms, collective-bargaining systems, insurers, officers, municipalities, civil-rights litigants, and affected communities.

State criminal law is adjacent, not a substitute. Congress may define the scope of federal duties, preserve nondiscriminatory State prosecution outside those duties, and regulate federal evidence practices. It cannot authorize a State to punish conduct federal law validly requires or eliminate the Supremacy Clause. Federal removal and a prompt federal immunity ruling therefore remain part of the design.

Reciprocal application. The same rules apply regardless of the administration, the officer's agency, the political leadership of the prosecuting State, or the identity, citizenship, politics, or alleged offense of the person whose rights were affected. The proposal protects law-enforcement legitimacy by testing facts and authority in a neutral forum rather than presuming either misconduct or immunity.

Horizon provenance. RIGHTS-005 was admitted from HOR-022 on July 21, 2026. The original intake focused on qualified immunity. Adjudication broadened the proposal only enough to address the same accountability defect across federal civil remedies, personal financial exposure, federal criminal enforcement, and lawful State prosecution.

Source Notes

The first source-development pass relied on the current texts of 42 U.S.C. § 1983, 18 U.S.C. § 242, 28 U.S.C. §§ 1442, 2679, and 2680; *Screws, Egbert*, and the federal-officer cases retained by JUD-012; current and prior federal legislation; CRS analyses of qualified immunity and federal law-enforcement remedies; and Colorado and New Mexico State models. Before scoring, the project should add implementation evidence, case-volume and indemnification data, State criminal-prosecution comparators, officer and municipal objections, civil-rights critiques, and constitutional analysis of the State-liability and section 242 provisions.

Appendix A - Proposed Federal Legislation and Constitutional Amendments

APPT-001 — Appointments Accountability and Confirmation Safeguards Act

A BILL

To strengthen statutory limits on temporary service in offices requiring appointment by the President by and with the advice and consent of the Senate, prevent circumvention through substantially complete delegations of authority, improve public and congressional reporting, preserve office-specific appointment backstops, and provide timely judicial review.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “Appointments Accountability and Confirmation Safeguards Act”.

SEC. 2. PURPOSES.

The purposes of this Act are—

- (1) to preserve lawful temporary continuity in executive agencies while ensuring that temporary service does not become an indefinite substitute for appointment by and with the advice and consent of the Senate;
- (2) to prevent evasion of statutory service limits through an assignment that transfers substantially all of the practical authority of a vacant office while avoiding an acting title;
- (3) to make the identity, authority, duration, and legal basis of temporary officeholders and material delegates promptly available to Congress and the public;
- (4) to make statutory consequences and review operate without depending exclusively on discretionary congressional opposition;
- (5) to preserve reasonable reliance, emergency protection, and routine government operations; and
- (6) to require an affirmative and publicly accountable legislative choice before the safeguards established by this Act are displaced.

SEC. 3. CLARIFICATION OF ACTING SERVICE AND DELEGATED AUTHORITY.

(a) Definitions.

Section 3348(a) of title 5, United States Code, is amended—

- (1) in paragraph (2), by striking the period at the end and inserting a semicolon; and
- (2) by adding at the end the following:

“(3) the term ‘covered authority’ means a function, duty, supervisory power, final approval authority, policy-direction authority, or representational authority of a vacant office that—

“(A) is assigned to the office by statute or regulation;

“(B) was formally assigned or delegated to the office during the 180-day period preceding the vacancy; or

“(C) is included within a substantially complete authority arrangement described in paragraph (4);

“(4) the term ‘substantially complete authority arrangement’ means one or more assignments, delegations, directives, title designations, or organizational arrangements under which a person who is not serving in accordance with sections 3345, 3346, and 3347—

“(A) directs or supervises a predominant portion of the component, personnel, or operations ordinarily directed or supervised by the vacant officer;

“(B) exercises final approval over a predominant portion of the significant policy, enforcement, adjudicative, regulatory, spending, contracting, personnel, or representational matters ordinarily decided by the vacant officer;

“(C) publicly or internally exercises substantially the same authority as the vacant officer, whether or not the person uses the title ‘acting’ or ‘performing the duties of’; or

“(D) receives a combination of discrete delegations that, considered together, has substantially the same practical effect as service in the vacant office; and

“(5) the term ‘material delegation’ means a written or unwritten delegation or assignment made because of, during, or in anticipation of a covered vacancy that authorizes a person other than the agency head or a person serving in accordance with sections 3345, 3346, and 3347 to exercise covered authority, but does not include a routine ministerial assignment that does not involve final decision-making, supervision, policy direction, or representation as the officer.”.

(b) Redesignation.

Section 3348 of title 5, United States Code, is amended by redesignating subsections (c), (d), and (e) as subsections (e), (f), and (g), respectively.

(c) Anti-circumvention rule.

Section 3348 of title 5, United States Code, is amended by inserting after subsection (b) the following:

“(c) Substantially complete authority arrangements.—

“(1) A person may not exercise covered authority through a substantially complete authority arrangement during a period in which that person could not lawfully serve as the acting officer under sections 3345, 3346, and 3347.

“(2) A general vesting or delegation statute does not authorize an arrangement prohibited by paragraph (1) unless an Act of Congress expressly authorizes the temporary exercise of substantially complete authority for the specified office or objectively defined class of offices.

“(3) Paragraph (1) does not prohibit—

“(A) the agency head from performing a function or duty as provided by subsection (b);

“(B) a first assistant or other employee from performing a discrete, lawfully delegable task under a material delegation that satisfies subsection (d);

“(C) action strictly necessary to protect life, physical safety, national security, property, the continuity of benefit payments, or compliance with a judicial order when delay would create a substantial and imminent risk, if the action and its basis are reported under subsection (d) not later than 3 business days after the action; or

“(D) service expressly authorized by another Act of Congress that identifies the office or an objectively defined class of offices and authorizes temporary service.

“(4) The agency bears the burden of establishing that an arrangement falls within an exception in paragraph (3) in an action brought under section 3350.

“(d) Material delegations.—

“(1) A material delegation is effective only if it—

“(A) is in writing;

“(B) identifies the vacant office, delegate, delegating officer, statutory authority, covered authority, effective date, and expiration date;

“(C) explains why the delegation does not create a substantially complete authority arrangement;

“(D) states that the delegate may not use the title of the vacant office or represent that the delegate occupies that office; and

“(E) is reported and published as required by section 3349.

“(2) A material delegation may not remain effective for more than 90 days unless renewed in writing with a new explanation satisfying paragraph (1). Renewal does not authorize a substantially complete authority arrangement or extend a period of acting service.

“(3) Two or more delegations to the same person or coordinated persons shall be considered together when determining whether a substantially complete authority arrangement exists.

“(4) The absence of publication does not invalidate emergency action described in subsection (c)(3)(C) during the initial 3-business-day reporting period.”.

SEC. 4. REPORTING, PUBLIC EXPLANATION, AND A SINGLE PUBLIC RECORD.

(a) Agency reports.

Section 3349(a) of title 5, United States Code, is amended to read as follows:

“(a) The head of each Executive agency (including the Executive Office of the President, and other than the Government Accountability Office) shall submit to the Comptroller General of the United States, the Director of the Office of Personnel Management, each House of Congress, and the chair and ranking minority member of each appropriate committee of jurisdiction, and shall publish in the public record established under section 4(d) of the Appointments Accountability and Confirmation Safeguards Act—

“(1) not later than 3 business days after a vacancy occurs, notice identifying the office and the date and cause of the vacancy;

“(2) not later than 3 business days after a person begins or ends acting service, the person's name, position, authority, beginning or ending date, and applicable service period;

“(3) not later than 3 business days after a nomination is submitted, withdrawn, returned, rejected, or confirmed, the nominee, office, event, and date;

“(4) not later than 3 business days after a material delegation, as defined in section 3348(a), is issued, renewed, modified, or terminated, the delegation and the statement required by section 3348(d);

“(5) not later than 3 business days after the agency determines that a statutory service period has begun, been extended, expired, or restarted, the applicable dates, calculation, and statutory basis; and

“(6) not later than 7 days after receiving a written inquiry from the Comptroller General concerning a possible unreported vacancy, service period, or delegation, a complete response or an explanation of the additional time reasonably required.”.

(b) Legal-basis statement.

Section 3349 of title 5, United States Code, is amended by adding at the end the following:

“(c) Each report concerning acting service or a material delegation shall include an unclassified statement identifying—

“(1) the statutory authority relied upon;

“(2) the applicable service period and calculated expiration date;

“(3) the functions, duties, and covered authority exercised;

“(4) any nomination pending for the office;

“(5) any agency-specific succession statute relied upon; and

“(6) any classified, privileged, or protected information omitted, described to the greatest extent possible without revealing the protected information.”.

(c) Federal Register notice.

Section 3349 of title 5, United States Code, is further amended by adding at the end the following:

“(d) Not later than 7 days after an event described in subsection (a), the agency shall publish the report or a link to the complete report in the Federal Register. Publication under this subsection does not make classified or otherwise lawfully protected information public.”.

(d) Integrated public record.

The Director of the Office of Personnel Management, in consultation with the Comptroller General, shall maintain a searchable, sortable, downloadable, machine-readable, and historically preserved public record that integrates, for every covered office—

(1) the information required by section 3349 of title 5, United States Code;

(2) the position and appointment information required by section 3330f of that title;

(3) each material delegation and legal-basis statement;

(4) the current acting-service deadline and its calculation;

(5) each Comptroller General determination under section 5; and

(6) a conspicuous statement of known missing, disputed, late, or corrected information.

The record shall preserve prior entries and identify the date, source, and reason for each correction.

SEC. 5. COMPTROLLER GENERAL REVIEW AND NOTICE.

(a) Required review.

The Comptroller General shall initiate a compliance review when—

(1) reported information shows that an acting-service period has expired or will expire within 30 days without a statutory extension;

(2) an agency reports a material delegation after expiration of acting service;

(3) two or more material delegations may constitute a substantially complete authority arrangement;

(4) the public records required by section 4 materially conflict; or

(5) credible information indicates that an agency failed to report a covered vacancy, acting official, material delegation, or expiration.

(b) Determination.

Not later than 30 days after initiating a review, or as soon thereafter as practicable if classified information or extraordinary complexity requires additional time, the Comptroller General shall publish a determination stating—

(1) the facts established by the available record;

(2) the statutory provisions and agency-specific authorities considered;

- (3) whether the reported service or arrangement complies with sections 3345 through 3349 of title 5, United States Code;
- (4) what information remains unavailable or disputed; and
- (5) whether corrective action is recommended.

A determination under this section is an independent congressional-support finding and does not bind a court.

(c) Notice and response.

The Comptroller General shall transmit the determination simultaneously to the President, the agency head, each House of Congress, the chair and ranking minority member of each committee of jurisdiction, and the public record established under section 4(d). The agency shall publish a written response or notice of corrective action not later than 10 days after receiving the determination.

SEC. 6. CONSEQUENCES OF NONCOMPLIANT SERVICE OR AUTHORITY.

(a) Material final actions.

Section 3348(f)(1) of title 5, United States Code, as redesignated by section 3(b), is amended—

- (1) by inserting “or through a substantially complete authority arrangement prohibited by subsection (c)” after “in the performance of any function or duty”; and
- (2) by inserting “, if the violation materially affected the action” before the period at the end.

(b) Ratification.

Section 3348(f)(2) of title 5, United States Code, as so redesignated, is amended to read as follows:

“(2) An action that has no force or effect under paragraph (1) may not be ratified by the same person or by a person whose authority depends upon the same noncompliant service or arrangement. A lawfully appointed and authorized officer may independently reconsider the matter on a complete record after providing any process otherwise required by law.”.

(c) Reliance and continuity protections.

Section 3348(f) of title 5, United States Code, as so redesignated, is amended by adding at the end the following:

“(3) Paragraph (1) does not, solely because of the appointment violation—

“(A) require recovery of a benefit payment received in good faith;

“(B) invalidate a routine payment, ministerial act, or action necessary to protect life or physical safety;

“(C) disturb the rights of a third party who reasonably and detrimentally relied on an action without notice of the violation, unless necessary to remedy a constitutional or otherwise independently unlawful deprivation; or

“(D) prevent a court from tailoring prospective or equitable relief to protect reliance, orderly administration, and the rights of persons directly injured by the challenged action.”.

(d) Construction.

Nothing in this section creates a monetary claim against an individual officer or employee or makes a Comptroller General determination conclusive in litigation.

SEC. 7. JUDICIAL REVIEW.

(a) Cause of action.

Chapter 33 of title 5, United States Code, is amended by adding at the end the following:

“§ 3350. Judicial review of temporary-service and delegation requirements

“(a) A person suffering a concrete legal injury caused by an alleged violation of sections 3345 through 3349 may bring a civil action against the United States and the responsible officers for declaratory or equitable relief.

“(b) An action may be brought in the United States District Court for the District of Columbia or in another district court in which venue is otherwise proper under title 28. The United States waives sovereign immunity for relief authorized by this section.

“(c) The court shall decide questions of statutory authority and statutory interpretation de novo. Agency factual findings receive only the weight warranted by the record and do not control the legal classification of acting service, covered authority, or a substantially complete authority arrangement.

“(d) The action shall receive expedited consideration under section 1657 of title 28. The agency shall lodge the administrative record, including the relevant appointment, succession, delegation, and reporting materials, not later than 14 days after service unless the court orders otherwise.

“(e) The court may issue appropriate declaratory and equitable relief, including setting aside a material final agency action, enjoining continued exercise of covered authority, requiring a nondiscretionary report, or directing lawful reconsideration. This section does not authorize money damages or relief against the President personally.

“(f) No provision of this section shall be construed to dispense with the requirements of article III of the Constitution.”.

(b) Clerical amendment.

The table of sections for chapter 33 of title 5, United States Code, is amended by adding at the end the following:

“3350. Judicial review of temporary-service and delegation requirements.”.

SEC. 8. PRESERVATION OF THE UNITED STATES ATTORNEY APPOINTMENT BACKSTOP.

(a) Continued judicial appointment authority.

Section 546 of title 28, United States Code, is amended by adding at the end the following:

“(e)(1) If a United States attorney appointed under subsection (d) is removed before a United States attorney appointed by the President under section 541 is confirmed, the vacancy remains governed by subsection (d). The removal does not begin a new 120-day period under subsection (c), revive an expired appointment under subsection (a), or authorize the Attorney General to restore the removed or expired appointee through a designation, delegation, or substantially complete authority arrangement.

“(2) Pending a new appointment under subsection (d), the first assistant United States attorney may perform routine and emergency functions to the extent otherwise authorized by law, but may not be designated to exercise substantially complete authority in violation of chapter 33 of title 5.

“(3) Not later than 3 business days after a removal described in paragraph (1), the Attorney General shall publish in the Federal Register and transmit to the appointing court and the chair and ranking minority member of the Committees on the Judiciary of the House of Representatives and the Senate—

“(A) notice of the removal and its effective time;

“(B) the statutory and constitutional authority relied upon;

“(C) the identity and legal authority of each person who will exercise functions of the office pending a new appointment; and

“(D) whether the President intends to submit a nomination and, if so, the anticipated timetable.

“(4) Nothing in this subsection limits the authority of the President under section 541(c), creates a for-cause removal standard, or authorizes a court to review the President's reasons for removal. This subsection governs the statutory consequences and succession process following removal.”.

(b) Construction.

Nothing in this section determines whether any particular exercise of prosecutorial authority is lawful, requires nomination of a particular person, or limits otherwise applicable rules concerning recusal, disqualification, or supervision of a criminal matter.

SEC. 9. TRANSITION AND IMPLEMENTATION.

(a) Existing vacancies and delegations.

Not later than 60 days after enactment, each executive agency shall report and publish the information required by this Act for every then-existing covered vacancy, acting official, person performing the duties of a vacant office, and material delegation.

(b) Conformity period.

An existing material delegation shall be brought into conformity with section 3348(d) of title 5, United States Code, as added by this Act, not later than 60 days after enactment. This period does not extend an expired period of acting service or authorize a substantially complete authority arrangement.

(c) Regulations and guidance.

Not later than 90 days after enactment—

(1) the Director of the Office of Personnel Management and the Comptroller General shall publish implementation standards for the integrated public record and compliance-review process; and

(2) each executive agency shall update vacancy, succession, delegation, and records guidance to conform to this Act.

(d) Authorization of appropriations.

There are authorized to be appropriated such sums as may be necessary to the Government Accountability Office and the Office of Personnel Management to carry out the additional review, data-quality, publication, and historical-preservation duties established by this Act.

SEC. 10. RULES OF CONSTRUCTION.

Nothing in this Act shall be construed to—

- (1) require the Senate to confirm, reject, hold a hearing on, or vote upon a nomination;
- (2) limit the President's authority to nominate a person or to remove an officer who is otherwise removable by the President, except that Congress may specify the statutory succession consequences of a removal;
- (3) prohibit lawful temporary service, career succession, or discrete delegation consistent with this Act;
- (4) treat an acting official's policy position, party affiliation, personal loyalty, or disagreement with Congress as evidence of a violation;
- (5) authorize either political party or a congressional minority to control executive personnel or agency policy;
- (6) alter a statutory tenure protection or office-specific succession law except as expressly provided; or
- (7) preclude Congress from later amending, suspending, or repealing any provision through an Act of Congress.

SEC. 11. SEVERABILITY.

If any provision of this Act or an amendment made by this Act, or the application of that provision or amendment to any person or circumstance, is held invalid, the remainder of this Act and the application of its provisions and amendments to other persons or circumstances shall not be affected.

Budgetary Impact Statement

Preliminary classification: Low-to-moderate administrative and litigation impact. The draft relies on existing GAO, OPM, agency, Federal Register, and federal-court functions. Its principal incremental costs are vacancy and delegation reporting, data reconciliation, public-system improvements, GAO compliance reviews, and expedited record production. It creates no new agency, tribunal, judgeship, grant program, or entitlement. Section 9 authorizes such sums as may be necessary for GAO and OPM because GAO's 2026 PLUM review identified unresolved data-quality work and this proposal adds affirmative review duties. A reliable dollar estimate requires agency, GAO, OPM, and Administrative Office workload data.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This is an initial statutory draft. Legislative counsel should verify subsection redesignations and cross-references throughout 5 U.S.C. §§ 3348 and 3349 and convert any remaining freestanding implementation directions into the preferred Code placement.
- The definition of a substantially complete authority arrangement is intended to reach functional acting service without converting every lawful delegation into a confirmation requirement. Initial legal review should test whether “predominant portion,” “significant,” and aggregation language are sufficiently determinate.
- Section 6 attempts to strengthen consequences without destabilizing routine payments, emergency measures, or innocent third-party reliance. The no-force, ratification, and material-effect standards require detailed review against current FVRA and Administrative Procedure Act doctrine.
- Section 7 supplies an independent subject-specific remedy and does not rely on JUD-011. Article III standing remains constitutionally required.
- Section 8 does not restrict presidential removal under 28 U.S.C. § 541(c). It makes the judicial appointment backstop continue after removal and prevents automatic revival of an expired Attorney General appointment. The First Assistant transition, interaction with the Vacancies Act, and any constitutional objection require specific review.
- The draft does not create a privileged congressional resolution or purport to bind either chamber's internal rules. Political pressure is generated through automatic findings, simultaneous majority-and-minority notice, public legal explanations, and a searchable record.

DOJ-001 — Seven-Year Cooling-Off Rule for Senior Justice Department Eligibility

Statutory Analogue

The proposal uses the office-specific cooling-off structure found in 10 U.S.C. § 113(a)(2), which restricts appointment of certain recently retired commissioned officers as Secretary of Defense. That provision is a legislative analogue and historical practice, not a controlling judicial holding on the constitutionality of the proposed Attorney General qualification.

Proposed Amendment

Section 503 of title 28, United States Code, is amended by designating the existing text as subsection (a) and adding at the end the following:

- (b)(1)** A person may not be appointed to, or serve in, the office of Attorney General during the seven-year period following the termination of covered legal representation of the sitting President.
- (2)** In this subsection, the term “covered legal representation” means personal legal representation, advice, or advocacy provided directly to—
- (A)** the President;
- (B)** the President-elect; or
- (C)** a candidate for President who subsequently becomes the sitting President, in connection with a criminal investigation or proceeding, civil-enforcement matter, impeachment or removal proceeding, election or campaign matter, personal financial or business interest, claim of personal immunity, or any other matter in which the represented individual’s interests were distinct from, or could reasonably diverge from, the interests of the United States.
- (3)** Covered legal representation does not include legal service performed solely in an official capacity on behalf of the United States, an agency of the United States, or the Executive Office of the President.
- (4)** Not later than 5 days after the President transmits a nomination for Attorney General to the Senate, the nominee shall disclose to the Committee on the Judiciary of the Senate and to the Director of the Office of Government Ethics all facts reasonably necessary to determine compliance with this subsection. The nominee shall update the disclosure not later than the date of the first hearing to consider the nomination if additional responsive information becomes known.
- (5)** Before final committee action on the nomination, the Director of the Office of Government Ethics shall review the disclosure submitted under paragraph (4), consult as appropriate with the Department of Justice Designated Agency Ethics Official, and transmit to the Committee on the Judiciary of the Senate a written determination identifying whether the disclosed facts indicate compliance with this subsection. The determination shall not bind the Senate in exercising its advice-and-consent function and shall not preclude judicial review under paragraph (6).
- (6)(A)** An individual whose eligibility or continued service is governed by this subsection, or a person subject to a criminal prosecution, civil enforcement action, subpoena, compulsory process, or other Department of Justice action personally authorized, directed, supervised, or substantially participated in by an officer alleged to be serving in violation of this subsection, may bring a civil action in the United States District Court for the District of Columbia for declaratory or prospective injunctive relief concerning compliance with this subsection.
- (B)** An action under this paragraph shall receive expedited consideration.
- (C)** No indictment, conviction, judgment, subpoena, civil enforcement action, settlement, order, agency action, or other Department of Justice act shall be dismissed, vacated, suppressed, or otherwise invalidated solely because of a violation of this subsection unless another provision of law independently authorizes that remedy and the party seeking relief demonstrates particularized prejudice.
- (7)** If any provision of this subsection, or its application to any person or circumstance, is held invalid, the remainder of the subsection and its application to other persons or circumstances shall not be affected.

Section 504 of title 28, United States Code, is amended by designating the existing text as subsection (a) and adding at the end the following:

- (b)** The eligibility restriction, disclosure requirement, ethics-review provision, expedited-review provision, and severability rule set forth in section 503(b) apply in the same manner to appointment to, or service in, the office of Deputy Attorney General.

Section 504a of title 28, United States Code, is amended by adding at the end the following:

- The eligibility restriction, disclosure requirement, ethics-review provision, expedited-review provision, and severability rule set forth in section 503(b) apply in the same manner to appointment to, or service in, the office of Associate Attorney General.

Budgetary Impact Statement

Administrative workload is possible through nominee disclosure, OGE review, DOJ ethics consultation, Senate review, and occasional expedited judicial review; no new appropriation is specified and no dollar estimate is assigned.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- The seven-year period tracks the general lower-grade cooling-off period currently used in 10 U.S.C. § 113(a)(2)(A).

- The rule excludes official government representation so that service as White House Counsel, agency counsel, or another government lawyer is not automatically disqualifying merely because the lawyer represented the institutional presidency or the United States.
- The phrase “could reasonably diverge” is intended to capture personal or political representation presenting a foreseeable institutional conflict while avoiding a prohibition covering every legal service associated with a President.
- Extension to the Deputy Attorney General uses the existing office-specific statutory hook in 28 U.S.C. § 504 and corrects the earlier remedy mismatch between a Deputy Attorney General manifestation and Attorney General-only bill text.
- Extension to the Associate Attorney General uses 28 U.S.C. § 504a and tracks the succession role of that office under 28 U.S.C. § 508.
- The five-day disclosure timing tracks the nominee financial-disclosure timing Congress already uses in 5 U.S.C. § 13103(b).
- The Office of Government Ethics review role uses existing OGE conflict-review and corrective-action authority in 5 U.S.C. § 13122 while preserving the Senate's independent advice-and-consent role.
- The judicial-review provision is narrowed to the covered individual and people directly subject to DOJ action substantially involving the allegedly ineligible official. This is intended to improve Article III standing and avoid generalized taxpayer, voter, or legislator standing theories.
- The remedial-limit provision is intended to reduce de facto-officer disruption by preventing automatic invalidation of DOJ actions absent an independent remedial basis and particularized prejudice.
- No individual eligibility waiver is included. Congress could enact one by later legislation if an extraordinary case justified it.
- Further refinement should address whether the rule should extend to other specified senior DOJ offices.

Authority Notes

28 U.S.C. § 503 creates the office of Attorney General, prescribes presidential appointment with Senate advice and consent, and designates the Attorney General as head of the Department of Justice.

28 U.S.C. § 504 authorizes the President to appoint a Deputy Attorney General by and with the advice and consent of the Senate.

28 U.S.C. § 504a authorizes the President to appoint an Associate Attorney General by and with the advice and consent of the Senate.

28 U.S.C. § 508 places the Deputy Attorney General and Associate Attorney General in the statutory order for exercising Attorney General duties during a vacancy, absence, or disability.

10 U.S.C. § 113(a)(2) imposes a seven-year or ten-year cooling-off period, depending on grade, for certain former regular commissioned officers before appointment as Secretary of Defense.

5 U.S.C. § 13103(b) requires Senate-confirmation nominees to file financial disclosure reports within five days after nomination transmittal and update them before the first hearing.

5 U.S.C. § 13122 gives the Director of the Office of Government Ethics executive-branch conflict-prevention, disclosure-review, investigation, corrective-action, and advisory responsibilities.

DOJ-002 — Proposed Justice Manual § 9-85.115 — Politically Sensitive Criminal Matters

9-85.115 — Politically Sensitive Criminal Matters

A. Purpose

Federal criminal authority shall not be initiated, directed, timed, or used to coerce, retaliate against, disadvantage, or confer political benefit upon any person, organization, governmental entity, candidate, party, news organization, or protected expressive association. This section does not confer immunity. It establishes heightened procedures to ensure adequate criminal predication, political neutrality, proportionality, and protection against actual or apparent misuse.

B. Covered Matters

A politically sensitive criminal matter includes an investigation, preliminary inquiry, grand-jury matter, charging decision, declination, dismissal, plea agreement, sentencing position, or other prosecutorial action in which a subject, target, proposed recipient of compulsory process, or materially affected person is:

1. a federal, state, Tribal, territorial, or local elected official;
2. a candidate, campaign, political committee, political party, presidential transition, or inaugural committee;
3. a person publicly identified by the President, Vice President, Attorney General, or another senior political appointee as an ally, opponent, adversary, or desired investigative target;
4. a state, Tribal, territorial, or local government or senior official acting for it;
5. a news organization, journalist, publisher, broadcaster, documentary producer, or person engaged in newsgathering;
6. a nonprofit, advocacy, religious, academic, labor, civic, or membership organization substantially engaged in protected speech, association, petitioning, protest, or political activity; or
7. a person or entity whose selection could reasonably appear retaliatory, coercive, selective, or politically motivated.

The section also applies where the matter substantially concerns protected political expression, disagreement with federal policy, refusal by a state or locality to provide assistance not required by law, campaign or election activity, journalism, or conduct in which the White House or a political appointee has expressed particular investigative or prosecutorial interest.

C. Political Neutrality Memorandum

Before opening a preliminary or full investigation, the responsible component shall prepare a written memorandum stating:

1. the potential federal offenses;
2. the factual basis and reliability of the information;
3. the legitimate federal law-enforcement interest;
4. protected speech, association, journalism, petitioning, or federalism concerns;
5. materially comparable matters and the standard applied to them;
6. all White House, political-appointee, campaign, party, transition, or inaugural contacts;
7. whether the proposed action could reasonably appear retaliatory, coercive, selective, or politically motivated;
8. less intrusive alternatives considered; and
9. why the matter is necessary and proportionate.

D. Consultation and Approval

Consultation with the Public Integrity Section is required before opening or materially expanding a covered investigation, presenting evidence to a grand jury, taking an overt public step, materially changing the theory, or declining, closing, dismissing, or narrowing a matter after political contact.

Prior written Public Integrity approval is required before:

1. issuing compulsory process to a covered person or entity;
2. seeking a search warrant, tracking authority, communications data, surveillance, or delayed-notice authority;
3. directing an undercover employee, source, or cooperator to contact a covered person;
4. compelling associational, donor, membership, newsgathering, or source-identifying records;
5. filing or materially altering charges;

6. entering a deferred-prosecution, non-prosecution, plea, dismissal, or material sentencing decision; or
7. taking action reasonably likely to affect an election, legislative proceeding, governmental policy dispute, or protected public debate.

Approval requires written findings of adequate predication, legitimate purpose, necessity, proportionality, inadequate less-intrusive alternatives, neutrality toward protected activity, consistent treatment of comparable matters, and disclosure of political contacts.

E. Political Contacts

All communications concerning a covered matter with the White House, Executive Office of the President, political appointees outside the ordinary supervisory chain, campaigns, parties, transitions, inaugural committees, or persons acting for them shall be logged contemporaneously. The record shall identify participants, time, subject, requests or suggested outcomes, responsive action, and the legal and policy basis for that action.

A covered action may not proceed until Public Integrity has reviewed any such contact and found an independent and sufficient law-enforcement basis. Attempted improper direction, retaliation, coercion, or circumvention shall be reported to OPR and, where appropriate, OIG.

F. Judicial Process

When seeking judicial authorization or enforcement in a covered matter, DOJ shall disclose under seal that the section applies, that required review occurred, whether political contact occurred, whether review was waived or modified, and any material fact necessary to avoid misleading the court concerning predication, purpose, necessity, proportionality, or political influence. Disclosure remains subject to grand-jury, classification, privilege, privacy, and other lawful restrictions.

G. Emergency Exception

An otherwise covered action may proceed without prior review only when delay creates a substantial and imminent risk of death, serious bodily harm, flight, evidence destruction, operational compromise, national-security harm, or expiration of a nonextendable legal deadline. The responsible United States Attorney or Assistant Attorney General shall document the emergency and notify Public Integrity within 24 hours. Disagreement, inconvenience, or expected denial is not an emergency.

H. Continuing Review

Open covered matters shall be reviewed at least every 90 days for continuing predication, necessity, proportionality, political contacts, burden on protected activity, narrowing, closure, and possible corrective or disciplinary action.

I. Record Preservation

All memoranda, approvals, consultations, contact logs, dissents, emergency determinations, periodic reviews, and closure records shall be preserved in the official file and a protected central repository. A change in leadership, policy, theory, or disposition does not authorize alteration or destruction.

J. Amendment, Suspension, and Waiver

This section may not be generally suspended, waived, or materially amended except by a written Attorney General directive identifying the affected provisions, explaining the legal and policy basis, addressing risks of retaliation and selective enforcement, and providing advance notice to OIG, OPR, and the House and Senate Judiciary Committees. The directive shall be public except for lawfully protected portions.

A weakening may operate only prospectively and may not govern a matter already opened unless it affords greater protection. A case-specific waiver may not be approved by an official who participated in political contact concerning the matter.

K. Noncompliance

Noncompliance shall be reported to Public Integrity, OPR, and, where appropriate, OIG. Corrective action may include reassignment, disqualification, withdrawal or reconsideration of process, corrective disclosure to a court, reconsideration of disposition, discipline, and congressional notice. This section creates no private right of action except as otherwise provided by law.

L. Equal Application

This section shall apply without regard to party, ideology, viewpoint, office, relationship to the President, or whether the proposed action benefits or burdens the current Administration. Its purpose is not to shield politically connected persons, but to ensure adequately predicated, neutral, consistent, and lawful use of federal criminal authority.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- The proposal extends an existing Public Integrity review model rather than creating a new institution.

- Consultation governs lower-risk steps; prior approval is reserved for coercive or disposition-determinative actions.
- Transparency and prospective-only amendment increase political and institutional cost without falsely claiming that an internal manual provision can legally bind future Attorneys General.
- Statutory codification remains a fallback if experience shows the internal rule can be suspended, evaded, or ignored.

Source Notes

- Baseline source review should include the Justice Manual's current Protection of Government Integrity provisions, including existing Public Integrity consultation and approval models.
- Publication review should also test the reviewer-selection design against DOJ workload and component expertise. Public Integrity is the current least-complex analogue, but practitioner review may show that some covered categories should route to another career component, OPR, OIG, or a cross-component review process.
- Pending executive-power and removal-power cases should be treated as background judicial-risk sources rather than direct controls on this proposed Justice Manual amendment unless a later decision squarely addresses internal DOJ review rules, White House/DOJ contact controls, or prosecutorial-supervision procedures.

DOJ-003 — Prosecutorial Neutrality Monitoring and Congressional Oversight Act

A BILL

To amend existing Department of Justice statistical-reporting and inspector-general authorities to require federal charging and disposition statistics, independent anomaly review, protected reports to Congress, and preservation of executive responsibility for individual prosecutions.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Prosecutorial Neutrality Monitoring and Congressional Oversight Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to preserve lawful prosecutorial discretion; build on existing Department of Justice statistical-reporting authority; require uniform documentation of federal charging and disposition decisions; assign statistical architecture to the Bureau of Justice Statistics; assign independent anomaly review and protected congressional notice to the Department of Justice Office of the Inspector General; and enable legislative and oversight correction without authorizing OIG, BJS, GAO, or Congress to control individual prosecutions.

SEC. 3. DEFINITIONS.

(a) Charging-decision lifecycle.

1. **Proposed decision** means a documented recommendation concerning a charge or disposition before final supervisory authorization.
2. **Authorized decision** means a decision approved by the official or officials whose approval is required by law or Department policy.
3. **Final operative decision** means the decision actually filed, communicated, implemented, or used to resolve the matter.

(b) Charging or disposition decision.

The term includes a final operative decision to initiate a prosecution; seek, add, remove, reduce, substitute, supersede, or dismiss a charge; decline prosecution after formal presentation; close a substantially investigated criminal matter without charge; enter or materially modify a plea, deferred-prosecution, or non-prosecution agreement; adopt a material sentencing position; depart materially from generally applicable charging policy; or take a substantially equivalent action designated by regulation.

(c) Anomaly.

An anomaly is a statistically or contextually material departure from an appropriate comparison group that may indicate inconsistent severity, leniency, retaliation, favoritism, selective enforcement, or political influence and is not adequately explained by legitimate case-specific factors.

(d) Judiciary Committees.

The term means the House and Senate Committees on the Judiciary.

SEC. 4. FEDERAL CHARGING AND DISPOSITION STATISTICS.

(a) Amendment to Bureau of Justice Statistics authority.

Section 302(c) of the Omnibus Crime Control and Safe Streets Act of 1968 (34 U.S.C. 10132(c)) is amended by adding at the end the following:

“(24) collect, analyze, publish, and disseminate, subject to lawful safeguards, statistics concerning Federal criminal charging and disposition decisions, including final operative decisions to initiate, decline, dismiss, reduce, substitute, supersede, or dispose of charges; plea, deferred-prosecution, and non-prosecution agreements; material sentencing positions; and material departures from generally applicable charging policy;

“(25) establish, in consultation with the Attorney General, the Inspector General of the Department of Justice, the Director of the Administrative Office of the United States Courts, the Comptroller General, prosecutors, defense practitioners, statisticians, privacy experts, and civil-rights specialists, uniform data standards for Federal charging and disposition transaction statistics;

“(26) require each United States Attorney’s Office and Department of Justice component participating in Federal criminal charging or disposition to create and transmit a standardized electronic record for each final operative decision, and to preserve proposed and authorized stages for audit where required by regulation;

“(27) require, to the maximum extent practicable, automated extraction of routine fields from existing case-management, court-filing, sentencing, and financial systems, and avoid duplicative manual entry of information reliably available in an authoritative system;

“(28) require charging and disposition records to include, as applicable, component, district, date, procedural stage, decision type, offenses considered, charges proposed and finally implemented, applicable charging policies, material departures, offense conduct, evidence strength and admissibility, culpability, criminal history, harm, cooperation, obstruction, venue, jurisdiction, limitations, resource considerations, plea terms, dismissal terms, deferred- or non-prosecution terms, sentencing positions, approving officials, outside consultation, known covered political contacts, and neutral explanatory fields designated by regulation;

“(29) limit any political-status or relationship field to public, case-relevant, and analytically necessary information, and prohibit inference of political status solely from race, religion, sex, national origin, residence, occupation, or private belief;

“(30) publish annual aggregate Federal charging and disposition statistics, methodological descriptions, data-quality measures, national and component trends, and generalized systemic findings in a manner that protects grand-jury material, classified information, sealed material, privileged information, fair-trial rights, confidential sources, law-enforcement-sensitive information, personal privacy, and uncharged persons; and

“(31) provide the Inspector General of the Department of Justice timely access to charging and disposition records and related source materials reasonably necessary for anomaly review, source-file audit, data-integrity review, and protected reporting required by law, subject to lawful safeguards for grand-jury, classified, sealed, privileged, privacy, and law-enforcement-sensitive information.”.

(b) Timeliness.

Records required under paragraphs (26) through (31) of section 302(c) of the Omnibus Crime Control and Safe Streets Act of 1968, as added by subsection (a), shall be transmitted within 30 days after the final operative decision, subject to narrowly tailored temporary delay for substantial operational risk.

SEC. 5. INSPECTOR GENERAL REVIEW OF FEDERAL CHARGING AND DISPOSITION ANOMALIES.

(a) Express authority.

The Inspector General of the Department of Justice shall have express authority to audit, inspect, review, and investigate Federal charging and disposition records, related source files, political-contact records, and related attorney conduct for purposes of this Act and the amendments made by this Act, notwithstanding assignment of professional-responsibility matters to another Department office. The Office of Professional Responsibility may exercise coordinated or concurrent jurisdiction.

(b) Duties.

The Inspector General shall validate completeness; conduct continuous and periodic anomaly review; compare outcomes across districts, components, administrations, offenses, and materially similar matters; conduct contextual human review; audit source files; investigate qualifying anomalies; and issue required reports.

(c) Access.

The Inspector General shall have timely access to records reasonably necessary for duties under this Act, including prosecutorial memoranda and political-contact records, subject to lawful safeguards for grand-jury, classified, sealed, privileged, privacy, and law-enforcement-sensitive information.

No Department officer may prevent the Inspector General from initiating, carrying out, or completing a duty required by this Act.

SEC. 6. ANALYTICAL METHODOLOGY AND VALIDATION.

The Bureau of Justice Statistics and the Inspector General shall establish a transparent and periodically revised methodology developed with statisticians, prosecutors, defense practitioners, civil-rights specialists, privacy experts, and GAO. The methodology shall account for legitimate case differences, data completeness, sample size, multiple comparisons, and practical effect size.

No anomaly may be reported solely because an automated model generated a flag. A qualified Inspector General employee shall conduct and document contextual human review before any Level Two or Level Three anomaly is reported.

GAO shall review the methodology at least every three years for validity, neutrality, accuracy, manipulation risk, and disparate error.

SEC. 7. ANOMALY THRESHOLDS.

(a) Level One — Internal Review Anomaly.

A Level One anomaly exists when a decision or pattern materially departs from an appropriate comparison range and available data reveal no immediate neutral explanation. It requires preliminary OIG review but not congressional notice.

(b) Level Two — Reportable Anomaly.

A Level Two anomaly exists when contextual review confirms a statistically significant and practically material disparity; the disparity involves political contact, political status, repeated policy departure, or differential treatment capable of conferring political advantage or disadvantage; reliable data support the comparison; legitimate factors do not adequately explain it; and it affects multiple matters, a recurring class, a senior official or candidate, or a matter of substantial national importance.

(c) Level Three — Urgent Oversight Anomaly.

A Level Three anomaly exists when reasonable grounds indicate intentional political retaliation, favoritism, selective enforcement, or interference; senior DOJ or White House participation; concealment or data manipulation; a continuing substantial threat to neutral administration; or a risk that delayed notification would impair oversight.

(d) Standards.

OIG shall establish numerical and contextual thresholds requiring both statistical significance and meaningful effect size, appropriate multiple-comparison correction, minimum data quality, methods for rare but consequential decisions, and anti-evasion rules.

An anomaly is an oversight trigger. It does not by itself establish illegality, misconduct, discrimination, criminal conduct, or an impeachable offense.

SEC. 8. MANDATORY CONGRESSIONAL REPORTING.

A Level Two anomaly shall be reported confidentially within 30 days to the chair and ranking minority member of each Judiciary Committee. A Level Three anomaly shall be noticed confidentially within 7 days, followed by a fuller report when lawful and operationally safe.

Reports shall describe the methodology, comparison group, magnitude and persistence, neutral explanations considered, data limitations, political contacts or policy departures, investigative status, leadership interference, and recommendations. Where identity, office, candidacy, donor status, party role, personal relationship, official relationship, or other political connection is material to the anomaly, the report shall include enough information for the Judiciary Committees to understand the nature of the political relationship, the treatment disparity, the comparator group, and the oversight significance.

OIG may anonymize, classify, delay details, redact identifying information, or use secure channels only to the minimum extent required by law or reasonably necessary to protect active matters, grand juries, fair-trial rights, witnesses, confidential sources, classified information, law-enforcement-sensitive information, and uncharged persons.

Anonymization, classification, delay, redaction, or secure-channel reporting may not be used to prevent the Judiciary Committees from determining the nature of the anomaly, the politically relevant actor or relationship when material, the comparator group, the treatment disparity, and the oversight action required. If identifying details cannot lawfully or safely be included in the written report, OIG shall provide a secure means for the chair and ranking minority member of each Judiciary Committee, and appropriately cleared or authorized committee counsel designated by them, to review the identifying information necessary for oversight, subject to lawful safeguards.

OIG may not withhold the existence of a Level Three anomaly solely because a matter remains active.

Unresolved Level Two and Level Three anomalies shall receive confidential status reports at least every 90 days and a final report upon completion.

SEC. 9. PUBLIC REPORTING.

BJS shall publish annual aggregate data, national and component trends, methodological descriptions, and reporting-compliance measures. OIG shall publish annual aggregate anomaly counts, generalized systemic findings, methodological changes, corrective actions, and recommendations. Public reports shall protect uncharged persons and information barred from disclosure.

SEC. 10. DATA INTEGRITY AND RANDOM AUDIT.

OIG shall conduct risk-based and random source-file audits comparing submitted records against case-management systems, court records, decision memoranda, and other authoritative sources.

Knowing or repeated failure to report, concealment of a decision, falsification, manipulation of categories or comparison groups, omission of political contacts, threshold evasion, or retaliation shall be investigated and referred for appropriate discipline or prosecution.

Each component head shall certify annual material compliance. OIG shall report materially deficient components quarterly to the Attorney General and Judiciary Committees.

SEC. 11. PROTECTION AGAINST INTERFERENCE.

A request by DOJ leadership to delay, limit, modify, or terminate an anomaly review shall be written and preserved. OIG shall notify the Judiciary Committees within 7 days of a material attempt to obstruct, suppress, delay, or interfere. Removal or replacement of the Inspector General shall not terminate an existing review, and all files shall remain preserved for continuation by career personnel.

SEC. 12. LIMITATION ON AUTHORITY.

Nothing in this Act authorizes BJS, OIG, GAO, or Congress to initiate or terminate an investigation; direct strategy; approve, disapprove, delay, or veto a charge; require prosecution or declination; dictate a plea, dismissal, or sentencing position; or otherwise exercise prosecutorial authority.

Individual criminal matters remain with officers otherwise authorized by law. Monitoring and reporting serve oversight, accountability, administration, discipline, legislation, and institutional correction only.

This Act creates no private right of action and does not independently require dismissal, suppression, or vacation of a conviction.

SEC. 13. INFORMATION SAFEGUARDS.

BJS and OIG shall establish access, retention, cybersecurity, disclosure, and audit-log safeguards for grand-jury information, classified and sealed material, privilege, personal data, confidential sources, investigative methods, fair-trial rights, and uncharged persons.

SEC. 14. IMPLEMENTATION.

BJS, OIG, and the Attorney General shall issue proposed regulations within 180 days; BJS shall establish the Federal charging and disposition statistics system within one year; complete submissions shall begin within 18 months; formal anomaly reporting shall begin within two years; and, where practicable, DOJ shall supply at least five years of historical data for baseline analysis.

Before formal anomaly reporting begins, BJS and OIG shall conduct a staged validation period using historical data, pilot submissions from selected districts and components, privacy-impact review, data-quality testing, and methodology validation with GAO. During the staged validation period, BJS and OIG may issue internal data-quality findings and implementation recommendations, but OIG may not treat a preliminary model output as a Level Two or Level Three anomaly until the human-review and methodology standards required by this Act are operational.

SEC. 15. AUTHORIZATION AND SEVERABILITY.

There are authorized to be appropriated \$30,000,000 for each of fiscal years 2027 through 2031 to carry out this Act, including secure infrastructure, automated data extraction, historical-data validation, source-file audits, methodology review, and qualified legal, statistical, audit, investigative, privacy, and cybersecurity staff.

If any provision or application is held invalid, the remainder shall not be affected.

Budgetary Impact Statement

The bill authorizes \$30,000,000 for each of fiscal years 2027 through 2031. This authorization is a proposal-design figure, not an official cost estimate. PREA's BJS data-and-research authorization provides a historical analogue at \$15,000,000 per year for fiscal years 2004 through 2010.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- The statute creates universal visibility, not universal preclearance.
- The bill now amends existing DOJ statistical-reporting authority rather than relying on a wholly freestanding data architecture.
- BJS owns the statistical architecture, public aggregate reporting, data standards, and transaction dataset; OIG owns source-file audit, contextual anomaly review, protected congressional notice, and interference reporting.
- Final operative decisions supply the principal analytical dataset; earlier stages remain available to detect political alteration within the decision chain.
- Automated extraction limits administrative burden; manual narratives are targeted to decisions where neutral explanation matters most.
- Political data are restricted to public, case-relevant, analytically necessary facts.
- Confidential congressional reporting is not anonymized by default. Redaction, anonymization, classification, delay, or secure-channel reporting may protect legally sensitive information, but may not be used to defeat Congress's ability to understand a material political relationship, comparator group, treatment disparity, and oversight need.
- Random source-file audits address concealment and category manipulation.
- The staged validation period is meant to reduce false positives, privacy risk, data-quality failures, and implementation shock before formal anomaly reporting begins.
- The \$30,000,000 annual authorization is a starting proposal figure anchored to PREA's historical \$15,000,000 annual authorization for BJS prison-rape statistics, data, and research, adjusted upward because DOJ-003 covers a more complex DOJ-wide charging and disposition data system.
- Bipartisan confidential reporting reduces, but cannot eliminate, politicization of congressional oversight.
- The Act is intentionally corrective and deterrent. It does not promise prevention of every first abuse; it creates an institutional avenue for detection, exposure, correction, discipline, and legislative response.

Source Notes

- Source review should include the Inspector General Act, now classified in 5 U.S.C. chapter 4, and GAO evaluation authority under 31 U.S.C. § 717.

- Statistical-reporting analogues should include BJS authority under 34 U.S.C. § 10132, PREA statistical review under 34 U.S.C. § 30303, Death in Custody Reporting Act reporting under 34 U.S.C. § 60105, and Attorney General crime-record authority under 28 U.S.C. § 534.
- Appropriations review should include PREA's historical authorization of \$15,000,000 per year for prison-rape statistics, data, and research in Public Law 108-79, section 4(e).
- Privacy and sensitive-information review should include the Privacy Act, 5 U.S.C. § 552a, Federal Rule of Criminal Procedure 6(e), and the Classified Information Procedures Act where classified information may be implicated.
- DOJ institutional-fit review should include BJS's existing statistical authority, DOJ OIG's statutory oversight role, and DOJ OPR's current jurisdiction over professional-misconduct allegations involving Department attorneys.

DOJ-005 — Senior DOJ Recusal Review and Transparency Act

A BILL

To amend section 528 of title 28, United States Code, to require independent review, documentation, temporary transfer of authority, transparency, and compliance safeguards for Department of Justice recusal decisions involving senior officials.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Senior DOJ Recusal Review and Transparency Act.**”

SEC. 2. SENIOR-OFFICIAL RECUSAL REVIEW.

Section 528 of title 28, United States Code, is amended by designating the existing text as subsection (a) and adding at the end the following:

“(b) **Senior Official Recusal Review.**—

“(1) **Covered officials.**—For purposes of this subsection, the term ‘covered official’ means the Attorney General, Deputy Attorney General, Solicitor General, Associate Attorney General, an Assistant Attorney General, a United States Attorney, the Director or Deputy Director of the Federal Bureau of Investigation, and any acting official exercising substantially equivalent authority.

“(2) **Covered determinations.**—For purposes of this subsection, the term ‘covered determination’ means a determination concerning recusal, nonrecusal, partial recusal, authorization to participate, modification of recusal, termination of recusal, successor authority, access restriction, or substantially equivalent participation question involving a covered official in a criminal investigation or prosecution, or in a matter of substantial national importance designated by regulation.

“(3) **Written disclosure.**—A covered official shall promptly disclose in writing any relationship, interest, prior participation, public commitment, political relationship, personal relationship, financial interest, covered relationship, or other fact that may require disqualification, limitation, authorization, or impartiality review under this section, section 208 of title 18, Department regulations, executive-branch ethics regulations, professional-responsibility rules, or other applicable law or policy.

“(4) **Independent review panel.**—

“(A) A covered determination shall be made by a senior-official recusal review panel established by regulation.

“(B) The panel shall include qualified career representatives of the Department’s ethics office, the Office of the Inspector General of the Department of Justice, and the Office of Government Ethics, except that regulations may provide substitute or additional career reviewers when required by law, privilege, classified-information restrictions, recusal, vacancy, operational necessity, or institutional conflict.

“(C) The affected covered official may provide information to the panel but may not select, remove, supervise, direct, retaliate against, or otherwise influence a panel member with respect to the covered determination.

“(D) A panel member shall be disqualified from participating in a covered determination if the member has a personal, financial, political, professional, supervisory, or other conflict materially affecting the member’s impartiality.

“(5) **Temporary transfer of authority.**—When a substantial and nonfrivolous recusal question is presented, the covered official shall temporarily cease participation in the matter and authority shall pass to the lawful successor official until the panel issues a written determination, unless the panel determines in writing that temporary transfer is unnecessary to prevent conflict, appearance of conflict, or evasion.

“(6) **Timing.**—The panel shall act promptly. Regulations shall establish expedited procedures for urgent matters and should ordinarily require a covered determination within 7 days after the panel receives materially complete information, unless a written extension is necessary.

“(7) **Written determination.**—Each covered determination shall identify the governing authority, material facts, scope, duration, successor official, access restrictions, permitted contacts, procedure for reconsideration, and any authorization to participate.

“(8) **Public and congressional notice.**—

“(A) The Department shall release a public version of a covered determination to the maximum extent consistent with lawful secrecy, privilege, classified-information protection, investigative integrity, fair-trial rights, witness safety, confidential-source protection, and legitimate privacy.

“(B) For a nationally significant matter, an unredacted or less-redacted version shall be preserved and transmitted confidentially to the chair and ranking minority member of the House and Senate Committees on the Judiciary, subject to lawful safeguards.

“(C) Public or congressional notice may be delayed only to the minimum extent necessary to protect an active matter or legally protected information. Delay may not be used to conceal a conflict, evade oversight, or defeat this subsection.

“(9) **Effect of recusal.**—A recused covered official may not directly or indirectly supervise the matter; influence staffing, funding, jurisdiction, access, case strategy, timing, public characterization, appeal, or disposition; communicate a preferred outcome; receive nonpublic briefings except as specifically authorized; or cause another person to exercise authority on the official’s behalf.

“(10) **Authorization to participate.**—Any authorization for a covered official to participate notwithstanding a disclosed conflict, relationship, appearance concern, or impartiality concern shall be narrowly tailored, written, supported by specific findings, and limited in duration. Generalized claims of convenience, policy control, personal confidence, or ordinary hierarchy are insufficient.

“(11) **Modification or termination.**—A recusal may be modified or terminated only through a new written panel determination based on materially changed facts or law. The affected covered official may not resume participation unilaterally.

“(12) **Compliance and corrective action.**—

“(A) Material nondisclosure, misrepresentation, participation contrary to a binding determination, retaliation against reviewing officials, destruction or concealment of records, or indirect evasion shall be referred to the Office of the Inspector General of the Department of Justice and the Office of Professional Responsibility.

“(B) Corrective action may include removal from the matter, reassignment of authority, access restriction, preservation order, reconsideration of affected administrative decisions, and appropriate personnel action under existing law.

“(C) Nothing in this subsection authorizes the panel, the Office of Government Ethics, the Inspector General, the Office of Professional Responsibility, or Congress to direct investigative or prosecutorial merits, require prosecution or declination, dictate case strategy, or exercise prosecutorial authority.

“(13) **Annual reporting.**—The Department shall publish annual aggregate information concerning covered determinations, authorizations, violations, corrective actions, average resolution times, delayed notices, and implementation problems. The Inspector General shall report material interference with panel operations to the House and Senate Committees on the Judiciary.

“(14) **Regulations.**—Not later than 180 days after the date of enactment of this subsection, the Attorney General shall promulgate regulations to carry out this subsection, after consultation with the Office of Government Ethics, the Inspector General of the Department of Justice, the Office of Professional Responsibility, career ethics officials, prosecutors, defense practitioners, and relevant congressional committees.

“(15) **Relation to other law.**—This subsection supplements and does not narrow section 208 of title 18, this section, Department regulations, executive-branch ethics regulations, professional-responsibility rules, whistleblower protections, civil-service protections, Inspector General authorities, congressional oversight authorities, or any more protective recusal, impartiality, ethics, or conflict-of-interest requirement.”.

SEC. 3. CONFORMING RULEMAKING AND IMPLEMENTATION.

Not later than 180 days after the date of enactment of this Act, the Attorney General shall review and revise Department regulations, including section 45.2 of title 28, Code of Federal Regulations, and any relevant Justice Manual provisions, to conform to the amendments made by this Act.

SEC. 4. SEVERABILITY.

If any provision of this Act, any amendment made by this Act, or any application of such provision or amendment is held invalid, the remainder shall not be affected.

Budgetary Impact Statement

Administrative workload is likely, including ethics review, written determinations, reporting, and OIG/OPR referrals; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- The bill now amends existing DOJ disqualification authority in 28 U.S.C. § 528 rather than relying on a wholly freestanding recusal architecture.
- Section 528 is the preferred statutory hook because it already directs the Attorney General to issue DOJ disqualification rules for personal, financial, or political conflicts or appearances of conflict.
- The proposal leaves existing substantive conflict rules intact and strengthens senior-official disclosure, independent review, transfer, notice, anti-evasion, and compliance mechanisms.
- The panel decides only who may participate and who temporarily exercises authority; it may not direct investigative or prosecutorial merits.
- OGE participation supplies government-wide ethics expertise, while DOJ OIG and OPR referrals preserve existing oversight and professional-responsibility channels.

- Confidential congressional notice is limited by lawful secrecy, privilege, classified-information protection, investigative integrity, fair-trial rights, witness safety, confidential-source protection, and privacy.
- The internal project review identified no direct prior bill creating this exact senior-official recusal-review panel. The closest legislative analogue is the Special Counsel Independence and Integrity Act, S. 2644, 115th Congress, because it used a recusal-aware DOJ successor rule for special-counsel removal.
- The internal project review did not assign a dollar estimate because the proposal specifies administrative review and reporting duties but no new funded program or appropriation.

Source Notes

- Source review should include DOJ's statutory disqualification-rule authority, 28 U.S.C. § 528; the financial-conflict statute, 18 U.S.C. § 208; DOJ's attorney disqualification rule, 28 C.F.R. § 45.2; the executive-branch impartiality standard in 5 C.F.R. § 2635.502; and Inspector General authorities in 5 U.S.C. chapter 4.
- Institutional-fit review should include OGE's executive-branch ethics-program authority under 5 U.S.C. § 13122, DOJ OIG's oversight role, and DOJ OPR's professional-misconduct jurisdiction.
- Prior-proposal review should include the Special Counsel Independence and Integrity Act, S. 2644, 115th Congress, and the official reported-text PDF at GovInfo.
- Pending judicial vulnerability review should refresh Supreme Court removal-power and executive-control dockets, including *Trump v. Slaughter*, No. 25-332, before public circulation.
- Current and follow-up internal project reviews should test whether OGE participation should be voting, consultative, or review-only to reduce Article II and DOJ-management objections while preserving independent ethics input.
- Legislative-counsel review should verify whether the amendment should be codified directly in 28 U.S.C. § 528, in a neighboring section, or as a new section cross-referenced by section 528.

DOJ-007 — Independent Investigative Counsel Amendment

Proposed Constitutional Amendment

Section 1. Congress may by law authorize a court of the United States, a judicial panel established by law, or a specialized component within an Article III judicial division established by law to appoint an independent investigative counsel when credible information and a conflict of interest materially impair the ordinary investigation of a possible offense, obstruction, retaliation, evidence destruction, or serious abuse of federal investigative or prosecutorial authority involving the President or other senior executive officials.

Section 2. A counsel appointed under this article shall exercise the investigative authority prescribed by law and shall not be subject to direction, supervision, or removal by the President or by any officer acting under presidential authority, except as implementing law may provide consistently with the independence of the office. The authority may include investigation of a sitting President, compulsory process, grand-jury proceedings, evidence preservation, prosecution of persons other than a sitting President within assigned jurisdiction, and transmission of substantial and credible information to the House of Representatives and appropriate committees of Congress.

Section 3. Investigation and reporting under this article may concern conduct that is immune from criminal prosecution, provided that immunity is not treated as evidence of wrongdoing and the counsel does not purport to impose criminal liability where immunity applies.

Section 4. A sitting President shall not be indicted or tried under authority conferred by this article while holding office. Congress may provide for suspension of otherwise applicable limitation periods during presidential tenure and for a reasonable period thereafter.

Section 5. Congress shall provide by law for jurisdiction, qualifications, tenure, resources, reporting, removal standards, judicial review, and termination. Removal shall require defined cause and written findings and shall be subject to expedited judicial review. Congress may provide for shared use of a judicial roster, clerk, facilities, security, technology, financial administration, and other nondecisional infrastructure also used for separately authorized judicial functions.

Section 6. The appointing court, panel, or specialized component shall not direct investigative or prosecutorial decisions and shall not participate in any criminal case arising from an appointment made under this article. A judge or decisional employee who participates in a civil proceeding concerning the same underlying conduct shall not participate in appointment, jurisdiction, access, removal, or completion determinations under this article. Shared nondecisional administration shall not permit access to protected investigative material, transfer authority between separately authorized functions, or merge their decisional records.

Section 7. Nothing in this article shall displace or bypass impeachment, alter the respective impeachment powers of the House and Senate, make investigation a condition precedent to impeachment, or determine the substantive scope of presidential criminal immunity.

Section 8. Congress shall have power to enforce and implement this article by appropriate legislation.

Budgetary Impact Statement

No direct appropriation is anticipated for the amendment itself; implementing legislation may have costs.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- The amendment authorizes Congress to create a nonexecutive appointment trigger for extraordinary executive-conflict investigations.
- It preserves the distinction between investigation and prosecution of a sitting President.
- It does not determine the substantive scope of presidential criminal immunity; IMM-001 addresses that issue separately.
- The amendment is implementation-neutral. It permits Congress either to use a separately firewalled component of an existing Article III judicial framework or to create a self-contained judicial panel.
- The preferred DOJ-007 Shared-Framework Implementation Act reuses the infrastructure created by the Interbranch Review Framework Act (JUD-011). The standalone independent alternative supplies its own Special Division if Congress rejects the Interbranch Review Framework Act (JUD-011).

Source Notes

- Source review should include Morrison v. Olson, Trump v. United States, the Department of Justice archive of the Mueller Report, the OLC sitting-President indictment opinion, CRS's special-counsel and independent-counsel report, current 28 C.F.R. Part 600, and the Senate Historical Office Watergate Committee account.
- The amendment is intended to solve the trigger problem left by executive-controlled special-counsel regulations and narrower removal-protection bills such as the Special Counsel Independence and Integrity Act.
- The internal project review refreshed pending removal-power dockets and confirmed that the amendment vehicle is not mooted by those pending matters. Before publication, source review should still check grand-jury disclosure mechanics, implementing-statute safeguards, official cost and expenditure records, and current outcomes in pending executive-power cases.

DOJ-007 — Independent Investigative Counsel Shared-Framework Implementation Act (Preferred)

This is DOJ-007's preferred implementing legislation. It operates only after ratification of the Independent Investigative Counsel Amendment and enactment of the Interbranch Review Framework Act (JUD-011). It adds a separately firewalled Investigative Counsel component to JUD-011's existing Article III structure and reuses its roster, clerk, facilities, security, technology, judgeships, and nondecisional administration.

If Congress rejects the Interbranch Review Framework Act (JUD-011), it may instead ratify the same amendment and enact the standalone Independent Investigative Counsel Appointment and Accountability Act. That independent alternative does not rely on JUD-011.

A BILL

To implement the Independent Investigative Counsel Amendment through a separately firewalled component of the Interbranch Review Division, to provide for appointment, authority, independence, accountability, funding, and termination of independent investigative counsel in extraordinary cases of executive conflict, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Independent Investigative Counsel Shared-Framework Implementation Act.**”

SEC. 2. PURPOSES AND ENACTMENT STRUCTURE.

The purposes of this Act are to—

1. ensure that credible allegations involving the President or senior executive officials cannot be suppressed because the subjects control the ordinary investigative chain;
2. implement the Independent Investigative Counsel Amendment through a judicial component constitutionally authorized to appoint and protect an inferior investigative officer;
3. avoid a duplicative judicial roster, clerk, secure-record system, technology platform, facilities program, and judicial-capacity appropriation by using the infrastructure created by JUD-011;
4. preserve complete separation between civil anti-nullification adjudication, investigative-counsel appointment and protection, investigative merits, and any resulting criminal case;
5. preserve evidence and congressional access during presidential tenure while preserving impeachment as the constitutional mechanism for removal of a sitting President; and
6. permit lawful prosecution of persons other than a sitting President while respecting applicable immunity and criminal-procedure protections.

This Act is a preferred implementation package with JUD-011 and does not incorporate, activate, or depend on the standalone DOJ-007 alternative.

SEC. 3. DEFINITIONS.

In this Act:

1. **Covered official** includes the President, Vice President, Attorney General, Deputy Attorney General, Solicitor General, FBI Director or Deputy Director, White House Counsel, Cabinet officers, senior Executive Office personnel, senior DOJ political appointees, and persons whose investigation presents a substantial conflict for executive leadership.
2. **Credible information** means specific and articulable information providing a reasonable basis to believe that a federal offense, obstruction, retaliation, evidence destruction, concealment, unlawful interference with federal law enforcement, or serious abuse of investigative or prosecutorial authority may have occurred.
3. **Extraordinary executive conflict** means an actual or objectively reasonable conflict materially impairing DOJ's capacity or perceived capacity to investigate impartially.
4. **Investigative Counsel Panel** means a panel assigned under section 2311 of title 28, United States Code, as added by section 4.
5. **Independent Investigative Counsel** means the inferior officer appointed under this Act and the Independent Investigative Counsel Amendment.

SEC. 4. INVESTIGATIVE COUNSEL COMPONENT OF THE INTERBRANCH REVIEW DIVISION.

(a) Table of sections.

The table of sections for chapter 156 of title 28, United States Code, is amended by adding after the item relating to section 2310 the following:

“2311. Investigative Counsel component and panels.”.

(b) Component.

Chapter 156 of title 28, United States Code, is amended by adding after section 2310 the following:

“§ 2311. Investigative Counsel component and panels

“(a) Establishment.—There is established within the Interbranch Review Division an Investigative Counsel component to perform only the appointment, jurisdiction, notice, access, removal, discipline, and completion functions expressly conferred by the Independent Investigative Counsel Shared-Framework Implementation Act.

“(b) Constitutional source.—The authority of the component arises from the Independent Investigative Counsel Amendment and the implementing Act, not from the civil cause of action under section 2303. An application under the implementing Act is not a civil action under section 2303 and need not satisfy that section's standing or anti-nullification elements.

“(c) Shared roster and composition.—An Investigative Counsel Panel shall be selected randomly from the national roster established under section 2304(c) and shall consist of—

“(1) one judge of the United States District Court for the District of Columbia;

“(2) one circuit judge from a circuit other than the District of Columbia Circuit; and

“(3) one district judge from a district outside the District of Columbia and from a circuit different from the circuit of the judge selected under paragraph (2).

“(d) Assignment and replacement.—The clerk shall use the neutral random-assignment and recusal-replacement procedures prescribed under section 2310. No officer may select a judge for a particular application based on anticipated outcome, appointing authority, political affiliation, or views concerning the subject or alleged conduct.

“(e) Civil-proceeding disqualification.—A judge or decisional employee who participates in a civil proceeding concerning the same underlying conduct may not participate in an application, appointment, jurisdiction, access dispute, removal matter, discipline matter, or completion determination under the implementing Act. A judge serving under this section may not participate in a related Civil Compliance panel or in appellate review of a related civil proceeding.

“(f) Criminal-case disqualification.—A judge or decisional employee serving under this section may not participate in a criminal case or appeal arising from an appointment made under the implementing Act.

“(g) Limited panel authority.—An Investigative Counsel Panel may determine whether appointment conditions exist; appoint counsel; define or modify jurisdiction; receive required notices; adjudicate removal and discipline; resolve matters expressly assigned by the implementing Act; and determine completion. It may not direct investigative steps, charging decisions, plea negotiations, litigation strategy, sentencing positions, or good-faith departures from nonbinding Department of Justice policy.

“(h) Shared nondecisional administration.—The clerk and Administrative Office support authorized by section 2310 may provide facilities, technology, cybersecurity, secure-information capability, procurement, financial administration, personnel administration, and other nondecisional support to the component.

“(i) Decisional and information firewall.—The component shall maintain separately assigned decisional personnel, dockets, access permissions, deliberative records, sealed materials, grand-jury material, and investigative information. Shared administration does not authorize a Civil Compliance panel, civil party, or unrelated employee to obtain protected information or direct a function under the implementing Act.

“(j) Separate access judge.—A privilege, classification, compulsory-process, or agency-access dispute requiring judicial adjudication shall be assigned randomly to an otherwise unassigned Article III judge who has not participated in a related Civil Compliance proceeding, Investigative Counsel Panel, or resulting criminal case.

“(k) No transfer of authority.—A civil finding, referral, notice, preservation order, or public-register entry, including one issued or maintained under JUD-001 or JUD-005, does not establish criminal liability, probable cause, corrupt intent, impeachability, extraordinary executive conflict, or entitlement to appointment. It may be submitted as supporting material only when an authorized applicant independently alleges every condition required by the implementing Act. A determination under the implementing Act does not resolve a civil claim under section 2303.”.

SEC. 5. AUTHORIZED APPLICATIONS AND REFERRALS.

A verified sealed application may be submitted by the Attorney General or Deputy Attorney General; an Inspector General with related jurisdiction; the Director of the Office of Government Ethics; either House by resolution; either Judiciary Committee by majority vote; a bipartisan one-third minority of either Judiciary Committee; or an Article III court making a qualifying referral.

A court may refer a matter when it has found executive conduct unlawful, the record contains substantial and credible information of a possible federal offense, related obstruction, retaliation, evidence destruction, concealment, or serious misuse of federal investigative authority, and an extraordinary executive conflict may impair ordinary investigation. A notice or public-register entry under JUD-001 or JUD-005 does not itself satisfy these conditions. The referring judge and decisional employees are disqualified under section 2311(e). A referral is not a finding of guilt, probable cause, corrupt intent, impeachability, or entitlement to appointment and is not admissible to prove an offense.

Private persons may submit information to an authorized applicant but may not petition the Investigative Counsel Panel directly.

SEC. 6. APPOINTMENT STANDARD.

The Investigative Counsel Panel shall appoint counsel only upon written findings that—

1. credible information indicates a possible federal offense, related obstruction, retaliation, evidence destruction, or serious abuse of investigative or prosecutorial authority;
2. the matter concerns a covered official or presents extraordinary executive conflict;
3. ordinary recusal or reassignment is inadequate; and
4. appointment is necessary and proportionate.

Submission by an authorized applicant does not create entitlement to appointment. The panel shall independently review the application and may deny appointment if the statutory conditions are not satisfied, lesser measures are adequate, or appointment would be unnecessary or disproportionate.

The appointment order shall identify the subject matter, jurisdiction, institutional conflict, powers conferred, reporting requirements, and reasons lesser measures are inadequate. Public and sealed versions shall be issued consistent with investigative integrity, grand-jury secrecy, classification, and individual rights.

SEC. 7. QUALIFICATIONS, APPOINTMENT, AND TERM.

Counsel shall be a United States citizen and attorney in good standing with substantial federal criminal, judicial, or complex-litigation experience; demonstrated independence and integrity; no material conflict; and no recent representation or senior political service for a principal subject.

Selection shall be merit-based. Counsel shall take the constitutional oath and serve until completion or lawful termination. Appointment under this Act is an alternative to, not a replacement for, lawful executive appointment of special counsel.

SEC. 8. JURISDICTION.

Jurisdiction includes the matters identified in the appointment order; federal offenses arising from the same course of conduct; obstruction, retaliation, false statements, witness tampering, evidence destruction, and concealment affecting the investigation; persons who aid or conspire in such conduct; and serious use or attempted use of federal investigative or prosecutorial authority without a good-faith lawful factual predicate or for a retaliatory, protective, personal, electoral, partisan, or other improper case-specific purpose.

Covered misuse may include seeking investigation or prosecution of an opponent for an improper purpose; seeking protection, dismissal, leniency, or nonenforcement for an ally; obtaining confidential investigative information for personal or political use; manipulating staffing, jurisdiction, resources, or timing to obtain a desired result; directing materially false representations; or retaliating against resistance to such conduct.

Material expansion requires Investigative Counsel Panel approval limited to connectedness and continuing necessity arising from the executive conflict. The panel shall not review investigative merits.

SEC. 9. POWERS AND LIMITATIONS.

(a) Investigative authority.

Within assigned jurisdiction, counsel may conduct grand-jury proceedings; seek subpoenas, warrants, immunity orders, and other lawful process; interview witnesses and subjects; litigate privilege, classification, immunity, and access disputes; preserve evidence; appoint and supervise staff; request agency assistance; and exercise authority necessary to complete the investigation.

(b) Other persons.

Counsel may initiate, decline, dismiss, negotiate, try, and appeal criminal cases against persons other than a sitting President when those persons fall within assigned jurisdiction.

(c) Sitting President.

Counsel may investigate a sitting President, collect and preserve evidence, use grand-jury process, investigate obstruction or retaliation, and transmit substantial and credible information to Congress. A sitting President may not be indicted or tried under this Act while holding office. This prohibition does not prevent investigation, evidence preservation, lawful process appropriately tailored to official duties, reporting to Congress, or prosecution after the President leaves office if otherwise lawful.

(d) Immune official conduct.

Counsel may investigate conduct protected from criminal prosecution by presidential immunity when necessary to establish facts, preserve evidence, identify acts of nonimmune participants, inform impeachment or legislative oversight, or recommend institutional safeguards. Counsel shall distinguish factual findings from criminal conclusions and shall not characterize immunity itself as evidence of wrongdoing.

(e) DOJ rules and policies.

Counsel shall ordinarily comply with generally applicable DOJ rules and policies. Counsel may depart from a nonstatutory rule for specified good cause when compliance would impair independence, reflect the underlying conflict, frustrate the appointment, or be materially unsuitable. Counsel shall provide sealed written notice before departure or as soon afterward as practicable. Notice does not require panel approval; the panel may preserve it and consider knowing material abuse in removal proceedings but may not countermand the policy judgment.

SEC. 10. PERSONNEL, RECORDS, AND ASSISTANCE.

Counsel may employ sufficient independent personnel to avoid effective dependence on an agency controlled by a subject. Federal agencies shall provide reasonably necessary personnel, records, facilities, and technical assistance subject to lawful privilege and judicial process.

Detailed personnel may not be removed, reassigned, disciplined, denied access, or adversely treated because of lawful service. Access disputes shall receive expedited adjudication by the separate judge required by section 2311(j) of title 28, United States Code. Classification alone does not authorize denial of access, though lawful security procedures remain applicable.

SEC. 11. INDEPENDENCE AND ANTI-EVASION.

No federal officer or employee may knowingly obstruct or materially impede counsel; conceal, destroy, alter, or withhold evidence; deny lawful assistance; retaliate against witnesses or personnel; or use classification, funding, reassignment, removal, privilege, or administrative control to frustrate the investigation.

Counsel shall notify the Investigative Counsel Panel and appropriate congressional committees of substantial interference, subject to lawful delay protecting an active investigation, grand jury, national security, or individual rights.

SEC. 12. REMOVAL AND DISCIPLINE.

The President and executive officers may not remove, suspend, demote, reassign, or materially restrict counsel. A sealed removal petition may be filed by the Attorney General, DOJ Inspector General, Chief Judge of the D.C. Circuit, either Judiciary Committee by majority vote, or the Investigative Counsel Panel based on substantial and credible information.

Removal requires incapacity, serious misconduct, knowing material jurisdictional violation, substantial dereliction, disqualifying conviction, knowing material abuse of policy-departure authority, or another condition incompatible with office integrity. Disagreement with investigative judgment, reporting, lawful prosecution of another person, or a good-faith policy departure is not cause.

Counsel shall receive notice, an opportunity to respond, and an evidentiary hearing where facts are disputed. Review by the Supreme Court of a final removal decision shall be expedited.

SEC. 13. SHARED ADMINISTRATION AND FUNDING.

(a) Shared judicial administration.

Amounts appropriated under section 6 of the Interbranch Review Framework Act may be used for the incremental roster, panel, clerk, facilities, technology, cybersecurity, secure-record, personnel-administration, procurement, financial-administration, reporting, and other nondecisional judicial costs of this Act, notwithstanding section 6(d) of that Act. No duplicate clerk, judicial roster, facilities program, technology platform, or general judicial-administration office shall be established under this Act.

(b) Investigative operations.

There are authorized to be appropriated such additional sums as may be necessary for counsel, investigative personnel, litigation, experts, travel, security, records, and other investigation-specific operations. Amounts appropriated for those purposes shall be separately accounted for and may not be used for civil adjudication under section 2303 of title 28, United States Code.

(c) Protection.

An executive officer may not withhold, condition, defer, transfer, or impound amounts made available for this Act except as expressly authorized by a later Act of Congress. The Administrative Office shall administer shared judicial expenses. Counsel shall administer investigation-specific expenses subject to lawful financial controls.

(d) Audit and reporting.

The Comptroller General shall audit legality, internal controls, procurement, security compliance, and financial administration without examining judicial deliberations, grand-jury material, litigation strategy, or investigative merits. The Administrative Office shall identify incremental shared-framework costs separately in the annual report required by JUD-011.

SEC. 14. REPORTING AND IMPEACHMENT INFORMATION.

Counsel shall provide periodic administrative reports that protect grand-jury secrecy, classified information, fair-trial rights, and uncharged persons.

When substantial and credible information indicates presidential conduct potentially relevant to impeachment, counsel shall transmit a confidential report and supporting material to the House Judiciary Committee. The report shall distinguish judicial findings, possible criminal evidence, immune official conduct, evidence bearing on intent or abuse, conduct of other participants, and unresolved questions.

When an investigation reveals a serious institutional weakness without necessarily establishing criminal liability, counsel may transmit a confidential legislative-oversight report to the appropriate committees. The House retains exclusive authority to determine whether impeachment is warranted, and Congress need not await completion of an investigation.

A supervising district court may authorize disclosure of grand-jury material to the House Judiciary Committee when legally permissible and necessary to its constitutional function. At completion, counsel shall issue a report with a public version subject to lawful redaction and judicial resolution of disputes by a judge outside the Investigative Counsel Panel and any related Civil Compliance panel.

SEC. 15. LIMITATIONS PERIODS.

For an offense within assigned jurisdiction allegedly committed by a sitting President, any otherwise applicable limitation period shall be suspended during presidential tenure and for 180 days thereafter, to the maximum extent permitted by the Constitution. Tolling preserves later accountability and does not authorize indictment or trial while the President remains in office.

SEC. 16. COMPLETION AND TERMINATION.

Counsel shall notify the Investigative Counsel Panel when assigned matters are complete or lawfully transferred. The panel may terminate only when no substantial work remains, continued appointment is unnecessary to address the conflict, or no lawful jurisdiction remains. It may not terminate because it disagrees with pace, theory, investigative judgment, prosecution of another person, reporting, or policy departure.

Records shall be transferred to the National Archives under secure procedures preserving secrecy, classification, lawful congressional access, and future judicial process. Civil Compliance personnel shall not receive access by reason of shared administration.

SEC. 17. JUDICIAL AND APPELLATE REVIEW.

Courts shall expedite actions concerning constitutionality, authority, access, removal, and enforcement. A mere subject or target may not ordinarily obtain interlocutory review before a judicially reviewable action. A criminal defendant retains all constitutional and statutory challenges in the resulting proceeding.

Supreme Court review of a final removal decision shall remain expedited as provided in section 12. Review in a resulting criminal case shall proceed under otherwise applicable law. Section 2309 of title 28, United States Code, governs only Civil Compliance proceedings and does not route a criminal case or investigative-counsel matter through the D.C. Circuit.

SEC. 18. RULES OF CONSTRUCTION.

Nothing in this Act—

1. authorizes judicial prosecution or permits a Civil Compliance panel, Congress, or another court to direct a particular investigative or prosecutorial decision;
2. converts a civil finding or referral into evidence of guilt, probable cause, corrupt intent, or impeachability;
3. authorizes disclosure of protected civil or investigative records across components without lawful process;
4. alters impeachment powers or makes investigation a condition precedent to impeachment;
5. establishes that unlawful or immune conduct is automatically criminal or impeachable;
6. prevents lawful executive appointment of another special counsel;
7. diminishes defendants' rights, expands or abolishes substantive presidential immunity, or restricts the pardon power; or

8. expands the civil cause of action, plaintiff categories, jurisdiction, or relief under section 2303 of title 28, United States Code.

SEC. 19. EFFECTIVE DATE, COORDINATION, AND SEVERABILITY.

This Act takes effect only after the Archivist certifies ratification of the Independent Investigative Counsel Amendment and chapter 156 of title 28, United States Code, is operational. It shall not impose retroactive substantive criminal liability.

The Judicial Conference shall issue conforming administrative rules not later than 180 days after both predicates are satisfied. Those rules may coordinate nondecisional administration but may not merge jurisdiction, panels, decisional personnel, dockets, protected records, or appellate routes.

This Act does not enact or incorporate the standalone DOJ-007 alternative. If JUD-011 is not enacted or chapter 156 is unavailable, Congress may separately enact the standalone alternative; this Act does not create a duplicate fallback tribunal.

Invalidity of one provision does not affect the remainder, except that no appointment may occur without the constitutional amendment and a lawfully operating Investigative Counsel Panel.

Budgetary Impact Statement

Preferred shared-framework path.

This Act avoids duplicating JUD-011's two additional D.D.C. judgeships, national roster, clerk, facilities, technology, cybersecurity, secure-record, procurement, and general administrative capacity. JUD-011's base appropriation may cover incremental judicial administration after express authorization by this Act. Investigation-specific counsel, personnel, litigation, experts, travel, security, and records costs require additional separately accounted appropriations. No dollar estimate is assigned pending AOUSC, CBO, GAO, appropriations, PAYGO, and legislative-counsel review.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This is the preferred enabling Act because it uses one Interbranch Review Division and one national judicial infrastructure while preserving separate civil and investigative components.
- The shared-framework arrangement is administrative, not decisional. A Civil Compliance panel cannot appoint, supervise, remove, or obtain records from counsel.
- The constitutional amendment is the source of authority for nonexecutive appointment and protection; JUD-011 alone cannot create that authority.
- The standalone DOJ-007 Act remains a complete independent alternative and is not a fallback provision within this bill.
- A JUD-001 or JUD-005 notice can preserve and route an authenticated judicial finding, but DOJ-007 appointment still requires an authorized application, credible possible serious misconduct, extraordinary executive conflict, and independent panel findings.
- IMM-001 separately addresses substantive presidential immunity.

Source Notes

- Source review should include Morrison v. Olson, Trump v. United States, the Mueller Report, the OLC sitting-President indictment opinion, CRS's special-counsel and independent-counsel report, current 28 C.F.R. Part 600, and the Senate Historical Office Watergate Committee account.
- Legislative-counsel and external constitutional review should focus on the amendment's authorization of shared judicial infrastructure, nonadjudicatory appointment functions, Appointments Clause implementation, judicial assignments, removal, due process, grand-jury supervision, criminal venue, appellate separation, and protected appropriations.

DOJ-007 — Independent Investigative Counsel Appointment and Accountability Act (Independent Alternative)

This proposed enabling legislation depends on ratification of the Independent Investigative Counsel Amendment. It is the complete independent alternative for Congress to enact if it rejects the Interbranch Review Framework Act (JUD-011) and the preferred DOJ-007 Shared-Framework Implementation Act.

A BILL

To establish procedures for judicial appointment, authority, independence, accountability, and termination of independent investigative counsel in extraordinary cases of executive conflict.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Independent Investigative Counsel Appointment and Accountability Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to ensure that credible allegations involving the President or senior executive officials cannot be suppressed because the subjects control the ordinary investigative chain; provide a bounded independent fact-finding path when credible information suggests possible serious criminal or investigative misconduct but Congress lacks the political will, institutional capacity, or reliable factual record necessary to initiate an adequate inquiry; preserve evidence and congressional access during presidential tenure; protect investigation from presidential interference; permit lawful prosecution of other persons within assigned jurisdiction; investigate serious misuse of federal investigative or prosecutorial authority even where presidential immunity may bar prosecution; and preserve impeachment as the constitutional mechanism for removal of a sitting President.

SEC. 3. DEFINITIONS.

A **covered official** includes the President, Vice President, Attorney General, Deputy Attorney General, Solicitor General, FBI Director or Deputy Director, White House Counsel, Cabinet officers, senior Executive Office personnel, senior DOJ political appointees, and persons whose investigation presents a substantial conflict for executive leadership.

Credible information means specific and articulable information providing a reasonable basis to believe that a federal offense, obstruction, retaliation, evidence destruction, concealment, unlawful interference with federal law enforcement, or serious abuse of investigative or prosecutorial authority may have occurred.

An **extraordinary executive conflict** is an actual or objectively reasonable conflict materially impairing DOJ’s capacity or perceived capacity to investigate impartially.

The **Special Division** is the judicial panel established by section 4. The **Independent Investigative Counsel** is the inferior officer appointed under this Act.

SEC. 4. SPECIAL DIVISION.

A three-judge panel of United States courts of appeals shall be selected through a random and publicly prescribed Judicial Conference procedure, with no two judges from the same circuit and staggered terms. Judges shall be disqualified from any resulting criminal case.

The Special Division may decide whether appointment conditions exist, appoint counsel, define or modify jurisdiction, receive required notices, adjudicate removal, and determine completion. It may not direct investigative steps, charging decisions concerning other persons, plea negotiations, litigation strategy, sentencing positions, or good-faith departures from nonbinding DOJ policy.

The Special Division shall operate independently under this Act. Its clerk, secure-record, facility, technology, personnel, and administrative requirements shall be provided from amounts appropriated under section 13. No judge or decisional employee assigned to a civil proceeding concerning the same underlying conduct may participate in an application, supervision, access dispute, removal matter, or completion determination under this Act.

SEC. 5. AUTHORIZED APPLICATIONS AND REFERRALS.

A verified sealed application may be submitted by the Attorney General or Deputy Attorney General; an Inspector General with related jurisdiction; the Office of Government Ethics Director; either House by resolution; either Judiciary Committee by majority vote; a bipartisan one-third minority of either Judiciary Committee; or an Article III court making a qualifying referral.

A court may refer a matter when it has found executive conduct unlawful, the record contains substantial and credible information of a possible federal offense, related obstruction, retaliation, evidence destruction, concealment, or serious misuse of federal investigative authority, and an extraordinary executive conflict may impair ordinary investigation. A notice or public-register entry under JUD-001 or JUD-005 does not itself satisfy these conditions and may be submitted as supporting material only through an authorized application. Such a referral is not a finding of guilt, probable cause, corrupt intent, impeachability, extraordinary executive conflict, or entitlement to

appointment and is not admissible to prove an offense.

Private persons may submit information to an authorized applicant but may not petition the Special Division directly.

SEC. 6. APPOINTMENT STANDARD.

The Special Division shall appoint counsel only upon written findings that credible information indicates a possible federal offense, related obstruction, retaliation, evidence destruction, or serious abuse of investigative or prosecutorial authority; the matter concerns a covered official or presents extraordinary conflict; ordinary recusal or reassignment is inadequate; and appointment is necessary and proportionate.

Submission by an authorized applicant does not create entitlement to appointment. The Special Division shall independently review the application and may deny appointment if the statutory conditions are not satisfied, if lesser measures are adequate, or if appointment would be unnecessary or disproportionate.

The order shall identify the subject matter, jurisdiction, institutional conflict, powers conferred, reporting requirements, and reasons lesser measures are inadequate. Public and sealed versions shall be issued consistent with investigative integrity, grand-jury secrecy, classification, and individual rights.

SEC. 7. QUALIFICATIONS, APPOINTMENT, AND TERM.

Counsel shall be a United States citizen and attorney in good standing with substantial federal criminal, judicial, or complex-litigation experience; demonstrated independence and integrity; no material conflict; and no recent representation or senior political service for a principal subject.

Selection shall be merit-based. Counsel shall take the constitutional oath and serve until completion or lawful termination. Appointment under this Act is an alternative to, not a replacement for, lawful executive appointment of special counsel.

SEC. 8. JURISDICTION.

Jurisdiction includes the matters identified in the order; federal offenses arising from the same course of conduct; obstruction, retaliation, false statements, witness tampering, evidence destruction, and concealment affecting the investigation; persons who aid or conspire in such conduct; and serious use or attempted use of federal investigative or prosecutorial authority without a good-faith lawful factual predicate or for a retaliatory, protective, personal, electoral, partisan, or other improper case-specific purpose.

Covered misuse may include seeking investigation or prosecution of an opponent for an improper purpose; seeking protection, dismissal, leniency, or nonenforcement for an ally; obtaining confidential investigative information for personal or political use; manipulating staffing, jurisdiction, resources, or timing to obtain a desired result; directing materially false representations; or retaliating against resistance to such conduct.

Material expansion requires Special Division approval limited to connectedness and continuing necessity arising from the executive conflict. The panel shall not review investigative merits.

SEC. 9. POWERS AND DUTIES.

(a) Investigative authority.

Within jurisdiction, counsel may conduct grand-jury proceedings; seek subpoenas, warrants, immunity orders, and other lawful process; interview witnesses and subjects; litigate privilege, classification, immunity, and access disputes; preserve evidence; appoint and supervise staff; request agency assistance; and exercise authority necessary to complete the investigation.

(b) Other persons.

Counsel may initiate, decline, dismiss, negotiate, try, and appeal criminal cases against persons other than a sitting President when those persons fall within assigned jurisdiction.

(c) Sitting President.

Counsel may investigate a sitting President, collect and preserve evidence, use grand-jury process, investigate obstruction or retaliation, and transmit substantial and credible information to Congress. No officer, including the President or Attorney General, may terminate, limit, delay, or interfere because the subject is the sitting President.

A sitting President may not be indicted or tried under this Act while holding office. This prohibition does not prevent investigation, evidence preservation, lawful process appropriately tailored to official duties, reporting to Congress, or prosecution after the President leaves office if otherwise lawful.

(d) Immune official conduct.

Counsel may investigate conduct protected from criminal prosecution by presidential immunity when necessary to establish facts, preserve evidence, identify the acts of nonimmune participants, inform impeachment or legislative oversight, or recommend institutional safeguards. Counsel shall clearly distinguish factual findings from criminal conclusions and shall not characterize immunity itself as evidence of wrongdoing.

(e) DOJ rules and policies.

Counsel shall ordinarily comply with generally applicable DOJ rules and policies. Counsel may depart from a nonstatutory rule for specified good cause when compliance would impair independence, reflect the underlying conflict, frustrate the appointment, or be materially unsuitable. Counsel shall provide sealed written notice before departure or as soon afterward as practicable. Notice does not require approval; the Special Division may preserve it and consider knowing material abuse in removal proceedings but may not countermand the policy judgment.

SEC. 10. PERSONNEL, RECORDS, AND ASSISTANCE.

Counsel may employ sufficient independent personnel to avoid effective dependence on an agency controlled by a subject. Federal agencies shall provide reasonably necessary personnel, records, facilities, and technical assistance subject to lawful privilege and judicial process.

Detailed personnel may not be removed, reassigned, disciplined, denied access, or adversely treated because of lawful service. Access disputes shall receive expedited adjudication by an otherwise unassigned Article III judge. Classification alone does not authorize denial of access, though lawful security procedures remain applicable.

SEC. 11. INDEPENDENCE AND ANTI-EVASION.

No federal officer or employee may knowingly obstruct or materially impede counsel; conceal, destroy, alter, or withhold evidence; deny lawful assistance; retaliate against witnesses or personnel; or use classification, funding, reassignment, removal, privilege, or administrative control to frustrate the investigation.

Counsel shall notify the Special Division and appropriate congressional committees of substantial interference, subject to lawful delay protecting an active investigation, grand jury, national security, or individual rights.

SEC. 12. REMOVAL AND DISCIPLINE.

The President and executive officers may not remove, suspend, demote, reassign, or materially restrict counsel. A sealed removal petition may be filed by the Attorney General, DOJ Inspector General, Chief Judge of the D.C. Circuit, either Judiciary Committee by majority vote, or the Special Division based on substantial and credible information.

Removal requires incapacity, serious misconduct, knowing material jurisdictional violation, substantial dereliction, disqualifying conviction, knowing material abuse of policy-departure authority, or another condition incompatible with office integrity. Disagreement with investigative judgment, reporting, lawful prosecution of another person, or a good-faith policy departure is not cause.

Counsel shall receive notice, an opportunity to respond, and an evidentiary hearing where facts are disputed. Supreme Court review shall be expedited.

SEC. 13. FUNDING.

Protected appropriations shall be available in amounts reasonably necessary, subject to a statutory annual ceiling adjustable for inflation and Special Division approval of additional expenditures. Executive officers may not impound or condition funds. GAO shall audit expenditures without examining investigative merits. Judicial administration, counsel, investigative personnel, litigation, experts, security, records, and all other costs of this Act shall be payable under this section and separately accounted for.

SEC. 14. REPORTING AND IMPEACHMENT INFORMATION.

Counsel shall provide periodic administrative reports that protect grand-jury secrecy, classified information, fair-trial rights, and uncharged persons.

When substantial and credible information indicates presidential conduct potentially relevant to impeachment, counsel shall transmit a confidential report and supporting material to the House Judiciary Committee. The report shall distinguish judicial findings, possible criminal evidence, immune official conduct, evidence bearing on intent or abuse, conduct of other participants, and unresolved questions.

When an investigation reveals a serious institutional weakness without necessarily establishing criminal liability, counsel may transmit a confidential legislative-oversight report to the appropriate committees. Such a report may identify factual findings, legal constraints, recurring vulnerabilities, and recommended statutory or constitutional safeguards.

The House retains exclusive authority to determine whether impeachment is warranted. Appointment and investigation do not remove, suspend, disqualify, or alter tenure; do not authorize counsel or courts to decide impeachment; do not bypass or replace impeachment; and do not require Congress to await completion.

A supervising district court may authorize disclosure of grand-jury material to the House Judiciary Committee when legally permissible and necessary to its constitutional function.

At completion, counsel shall issue a report with a public version subject to lawful redaction and judicial resolution of disputes by a judge outside the Special Division.

SEC. 15. LIMITATIONS PERIODS.

For an offense within assigned jurisdiction allegedly committed by a sitting President, any otherwise applicable limitation period shall be suspended during presidential tenure and for 180 days thereafter, to the maximum extent permitted by the Constitution. Tolling preserves later accountability and does not authorize indictment or trial while the President remains in office.

SEC. 16. COMPLETION AND TERMINATION.

Counsel shall notify the Special Division when assigned matters are complete or lawfully transferred. The Division may terminate only when no substantial work remains, continued appointment is unnecessary to address the conflict, or no lawful jurisdiction remains. It may not terminate because it disagrees with pace, theory, investigative judgment, prosecution of another person, reporting, or policy departure.

Records shall be transferred to the National Archives under secure procedures preserving secrecy, classification, lawful congressional access, and future judicial process.

SEC. 17. JUDICIAL REVIEW.

Courts shall expedite actions concerning constitutionality, authority, access, removal, and enforcement. A mere subject or target may not ordinarily obtain interlocutory review before a judicially reviewable action. A criminal defendant retains all constitutional and statutory challenges in the resulting proceeding.

The appellate rules of this Act control. Supreme Court review of a final removal decision shall remain expedited as provided in section 12; review in a resulting criminal case shall proceed under otherwise applicable law.

SEC. 18. RULES OF CONSTRUCTION.

Nothing in this Act authorizes judicial prosecution; permits Congress or a court to direct a particular case; alters impeachment powers; establishes that unlawful or immune conduct is automatically criminal or impeachable; makes investigation a substitute for impeachment; prevents lawful executive appointment of other special counsel; diminishes defendants' rights; authorizes unlawful disclosure; expands or abolishes substantive presidential immunity; or restricts the pardon power.

The central rule is that this Act protects investigation and reporting from presidential control; it does not authorize prosecution of a sitting President or decide the substantive scope of immunity.

SEC. 19. SEVERABILITY AND EFFECTIVE DATE.

Invalidity of one provision does not affect the remainder. The Act takes effect upon certification of ratification of the authorizing constitutional amendment and shall not impose retroactive substantive criminal liability.

Budgetary Impact Statement

Independent alternative.

Budget authority is likely required; no dollar estimate is assigned pending source-backed cost data. This Act must independently fund judicial administration, counsel, investigative staff, litigation, experts, security, records, and related operations.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- The statute separates protected investigation from prosecution of a sitting President.
- It authorizes factual investigation and congressional reporting even where official-act immunity bars criminal prosecution.
- Other persons may be prosecuted within jurisdiction.
- Evidence preservation, House reporting, legislative oversight, and tolling prevent presidential tenure or immunity from making misconduct institutionally undiscoverable.
- IMM-001 separately addresses substantive immunity.
- The Special Division appoints and protects counsel but does not manage investigative or prosecutorial merits.
- This bill is the independent DOJ-007 alternative. It neither invokes nor depends on the Interbranch Review Framework Act (JUD-011) and supplies its own judicial roster, Special Division, administration, funding, appointment, investigation, removal, reporting, and review authority.
- The preferred DOJ-007 Shared-Framework Implementation Act uses the shared judicial infrastructure created by the Interbranch Review Framework Act (JUD-011) but is not required for this bill to operate.
- Separate judges and decisional firewalls prevent a related civil proceeding from influencing appointment, investigation, removal, or a resulting criminal case.

- A JUD-001 or JUD-005 notice can preserve and route an authenticated judicial finding, but DOJ-007 appointment still requires an authorized application, credible possible serious misconduct, extraordinary executive conflict, and independent panel findings.

Source Notes

- Source review should include Morrison v. Olson, Trump v. United States, the Department of Justice archive of the Mueller Report, the OLC sitting-President indictment opinion, CRS's special-counsel and independent-counsel report, current 28 C.F.R. Part 600, and the Senate Historical Office Watergate Committee account.
- The Special Counsel Independence and Integrity Act is a useful narrower comparator because it addressed post-appointment removal review rather than a nonexecutive appointment trigger.
- The internal project review refreshed pending removal-power dockets and located only a secondary Mueller-investigation cost analogue. Before publication, source review should still check grand-jury disclosure mechanics, limitations-period tolling analogues, protected-appropriation models, official cost and expenditure records, and current outcomes in pending removal-power cases.

DOJ-009 — Senior Department of Justice Professional Qualification and Good Standing Act

A BILL

To amend title 28, United States Code, to establish professional-qualification, good-standing, disciplinary-disclosure, continuing-notification, and temporary-delegation requirements for senior Department of Justice legal offices; to clarify the relationship between those requirements and existing attorney-ethics rules for Government attorneys; and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Senior Department of Justice Professional Qualification and Good Standing Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to—

1. preserve the professional legitimacy of the Department of Justice;
2. ensure that senior Department legal officers possess baseline professional qualifications to supervise the legal work of the United States;
3. recognize that attorney licensure and bar membership provide external professional-conduct checks administered by courts, bar authorities, disciplinary bodies, and licensing authorities;
4. require admission to practice law and good standing for covered senior Department legal offices;
5. require disclosure of bar memberships, final professional discipline, and pending formal disciplinary charges;
6. require continuing notice of final professional discipline while serving;
7. establish temporary delegation and restoration procedures where a covered officer loses professional good standing or receives final discipline materially inconsistent with senior Department legal service;
8. preserve presidential nomination authority and Senate advice-and-consent authority subject to statutory qualifications for offices Congress creates; and
9. prevent pending, unadjudicated, frivolous, or politically motivated complaints from becoming automatic disqualification tools.

SEC. 3. SENIOR DEPARTMENT LEGAL-OFFICER QUALIFICATIONS.

Chapter 31 of title 28, United States Code, is amended by inserting after section 506 the following:

“§ 506A. Professional qualifications and good standing for senior Department legal offices

“(a) Definitions.

“In this section:

“(1) **Covered office.** The term ‘covered office’ means—

“(A) Attorney General;

“(B) Deputy Attorney General;

“(C) Associate Attorney General;

“(D) Solicitor General;

“(E) Assistant Attorney General; and

“(F) any other Department of Justice office designated by the Attorney General by regulation as a senior legal-supervisory office for purposes of this section.

“(2) **Covered officer.** The term ‘covered officer’ means any person nominated, appointed, designated, or serving in a covered office.

“(3) **United States jurisdiction.** The term ‘United States jurisdiction’ means any State, the District of Columbia, Puerto Rico, Guam, the Northern Mariana Islands, the Virgin Islands, American Samoa, any federally recognized tribal court jurisdiction that licenses attorneys, or any federal court that admits attorneys to practice.

“(4) **Good standing.** The term ‘good standing’ means that the covered officer is currently admitted to practice law in at least one United States jurisdiction and is not suspended, disbarred, resigned in lieu of discipline, administratively ineligible for disciplinary reasons, or otherwise finally determined by a licensing authority to be ineligible to practice law in that jurisdiction.

“(5) **Final professional discipline.** The term ‘final professional discipline’ means a final, non-interlocutory order, judgment, decision, or disposition by a court, bar authority, disciplinary authority, or licensing authority imposing disbarment, suspension, public censure, public reprimand, resignation in lieu of discipline, reciprocal discipline, or comparable public professional discipline.

“(6) **Pending formal disciplinary charge.** The term ‘pending formal disciplinary charge’ means a formally filed public disciplinary complaint, charge, petition, or equivalent adjudicatory proceeding initiated by a court, bar authority, disciplinary authority, or licensing authority after preliminary screening or investigation.

“(7) **Materially inconsistent discipline.** The term ‘materially inconsistent discipline’ means final professional discipline that, considering the nature of the covered office, materially bears on the covered officer’s ability to exercise legal supervision, prosecutorial judgment, candor to tribunals, professional independence, fiduciary duties, confidentiality obligations, or ethical duties owed to the United States.

“(b) Professional qualification requirement.

“(1) **Requirement.** A person may not be appointed, designated, or continue serving in a covered office unless the person is admitted to practice law and in good standing in at least one United States jurisdiction.

“(2) **Acting service.** Paragraph (1) applies to any person designated to perform the functions and duties of a covered office in an acting capacity under section 508 of this title, the Federal Vacancies Reform Act of 1998, section 3345 et seq. of title 5, or any other statute authorizing acting service in a covered office.

“(3) **No effect on non-legal offices.** This section does not impose a bar-admission requirement on Department of Justice offices that are not covered offices.

“(c) Pre-nomination, appointment, and designation disclosure.

“(1) **Disclosure required.** Before appointment, Senate confirmation, or acting designation to a covered office, the covered officer shall provide to the President, the Department of Justice Designated Agency Ethics Official, and, for Senate-confirmed offices, the Committee on the Judiciary of the Senate—

“(A) all current and former bar memberships;

“(B) all jurisdictions in which the officer is currently admitted to practice law;

“(C) current good-standing status in each jurisdiction where admitted;

“(D) all final professional discipline;

“(E) any resignation in lieu of discipline;

“(F) any reciprocal discipline;

“(G) any pending formal disciplinary charge;

“(H) any administrative ineligibility based on professional-discipline reasons; and

“(I) any material limitation on the officer’s eligibility to practice law.

“(2) **Certification.** The covered officer shall certify under penalty of perjury that the disclosure is true, complete, and correct to the best of the officer’s knowledge after reasonable inquiry.

“(3) **Supplementation.** The covered officer shall supplement the disclosure promptly if information materially changes before appointment, confirmation, or designation.

“(d) Continuing duty to notify.

“(1) **Notice required.** A covered officer serving in a covered office shall notify the President, the Deputy Attorney General or next highest non-conflicted Department official, the Inspector General of the Department of Justice, the Office of Professional Responsibility, the Designated Agency Ethics Official, the Office of Government Ethics, and, for Senate-confirmed offices, the Committee on the Judiciary of the Senate, not later than 7 days after—

“(A) loss of good standing in any jurisdiction;

“(B) imposition of final professional discipline;

“(C) resignation in lieu of discipline;

“(D) initiation of a pending formal disciplinary charge;

“(E) reciprocal discipline;

“(F) suspension, disbarment, or administrative ineligibility for disciplinary reasons; or

“(G) any material limitation on eligibility to practice law.

“(2) **Contents.** The notice shall identify the jurisdiction, disciplinary body, nature of the action, effective date, current procedural posture, and any limitation on the covered officer's ability to practice law.

“(3) **Public reporting.** For Senate-confirmed covered offices, the Department shall publish a public notice of final professional discipline, suspension, disbarment, resignation in lieu of discipline, or loss of all good-standing status, except that information may be redacted to protect privacy, national security, law-enforcement sensitivity, or legally protected information.

“(e) Effect of pending complaints and pending formal charges.

“(1) **No automatic disqualification.** A pending complaint, grievance, allegation, request for investigation, media allegation, congressional complaint, political complaint, or pending formal disciplinary charge shall not automatically disqualify a person from nomination, appointment, designation, or service in a covered office.

“(2) **Disclosure and evaluation.** A pending formal disciplinary charge shall be disclosed and may be considered by the President, the Senate, the Department of Justice, the Office of Government Ethics, and appropriate ethics officials in evaluating professional fitness, conflicts, or temporary recusal needs.

“(3) **Protection against weaponization.** No legal consequence under this section may be based solely on a complaint or allegation that has not resulted in a pending formal disciplinary charge or final professional discipline.

“(f) Disqualification from covered duties and temporary delegation upon loss of good standing or final discipline.

“(1) **Duty disqualification and automatic temporary delegation.** If a covered officer loses good standing in all United States jurisdictions in which the officer is admitted, is suspended or disbarred in all such jurisdictions, resigns in lieu of discipline, or receives final professional discipline materially inconsistent with service in the covered office, the covered officer is disqualified from exercising the legal-supervisory duties of that office, and those duties shall temporarily devolve to the next eligible officer authorized by law.

“(2) **Scope.** Temporary delegation under this subsection applies to legal-supervisory duties, litigation authority, prosecutorial supervision, professional-responsibility supervision, approval of legal positions, and other duties materially requiring professional legal judgment.

“(3) **Succession and vacancies laws preserved.** Nothing in this subsection authorizes service by a person otherwise ineligible under section 508 of this title, the Federal Vacancies Reform Act of 1998, section 3345 et seq. of title 5, or any other applicable succession or vacancies statute.

“(4) **Presidential and Senate authority preserved.** Nothing in this subsection prevents the President from nominating, appointing, or designating an eligible replacement, or prevents the Senate from confirming an eligible nominee.

“(5) **No automatic removal.** This subsection disqualifies a covered officer from exercising covered legal-supervisory duties and provides for temporary devolution of those duties. It does not by itself remove a covered officer from office, except as otherwise provided by law.

“(6) **Restoration.** A covered officer whose duties are temporarily delegated may resume those duties only after regaining good standing in at least one United States jurisdiction and after the Designated Agency Ethics Official, in consultation with the Office of Professional Responsibility and the Office of Government Ethics, determines that no unresolved final professional discipline remains materially inconsistent with service.

“(7) **Written determination.** Any restoration determination shall be transmitted to the President, the Inspector General of the Department of Justice, the Office of Professional Responsibility, the Office of Government Ethics, and, for Senate-confirmed offices, the Committee on the Judiciary of the Senate.

“(g) Material-inconsistency review.

“(1) **Review required.** If a covered officer receives final professional discipline other than disbarment, suspension, or resignation in lieu of discipline, the Designated Agency Ethics Official, in consultation with the Office of Professional Responsibility and the Office of Government Ethics, shall determine whether the discipline is materially inconsistent with service in the covered office.

“(2) **Factors.** The determination shall consider—

“(A) the nature and seriousness of the misconduct;

“(B) whether the misconduct involved dishonesty, fraud, deceit, misrepresentation, obstruction, abuse of legal process, misuse of client information, breach of fiduciary duty, or lack of candor to a tribunal;

“(C) whether the misconduct relates to public office, government service, prosecutorial judgment, law-enforcement authority, professional supervision, or litigation conduct;

“(D) whether the misconduct resulted in action by an external bar authority, court, licensing authority, or disciplinary body charged with regulating professional conduct;

“(E) whether the discipline is final;

“(F) whether the officer remains in good standing in at least one United States jurisdiction;

“(G) whether temporary recusal, screening, or delegation can adequately protect the Department's interests; and

“(H) the public interest in the Department's integrity and professional independence.

“(3) **Written determination.** The determination shall be written and transmitted to the President, the Inspector General of the Department of Justice, the Office of Professional Responsibility, the Office of Government Ethics, and, for Senate-confirmed offices, the Committee on the Judiciary of the Senate.

“(h) Recusal, screening, and limited delegation.

“If final professional discipline or a pending formal disciplinary charge presents a specific conflict, appearance concern, or professional-responsibility issue short of automatic temporary delegation, the covered officer shall consult with the Designated Agency Ethics Official and Office of Professional Responsibility regarding recusal, screening, limited delegation, or other protective measures.

“(i) Office of Professional Responsibility and Inspector General review.

“(1) **OPR review.** The Office of Professional Responsibility shall review any final professional discipline, loss of good standing, or pending formal disciplinary charge involving a covered officer where the matter may affect the officer's legal-supervisory duties.

“(2) **Inspector General review.** The Inspector General of the Department of Justice may review Department compliance with this section, including disclosure, notification, delegation, and restoration procedures.

“(3) **Reports.** The Inspector General may report findings and recommendations to the Attorney General, the President, Congress, or the public, consistent with law and appropriate protections for confidential or protected information.

“(j) Regulations.

“(1) **In general.** Not later than 180 days after enactment, the Attorney General shall promulgate regulations implementing this section, including procedures for disclosure, verification of good standing, notice, temporary delegation, restoration, recusal, screening, and material-inconsistency review.

“(2) **Conflict rule.** If the Attorney General is unavailable, conflicted, ineligible, or subject to review under this section, the Deputy Attorney General or next eligible non-conflicted covered officer shall promulgate the regulations.

“(k) Rules of construction.

“Nothing in this section shall be construed to—

“(1) require disqualification based solely on a pending complaint, grievance, allegation, request for investigation, media allegation, congressional complaint, political complaint, or pending formal disciplinary charge;

“(2) limit the President's nomination authority except by establishing statutory qualifications for offices created by law;

“(3) limit the Senate's advice-and-consent authority;

“(4) create a private right of action;

“(5) authorize collateral attack on otherwise valid Department actions solely because of a covered officer's later-discovered disclosure violation, unless otherwise provided by law;

“(6) limit any stricter ethics, recusal, disciplinary, or professional-responsibility requirement otherwise applicable to a covered officer;

“(7) alter the authority of any State, court, bar authority, disciplinary authority, or licensing authority to regulate the professional conduct of attorneys; or

“(8) prevent Congress from requesting or considering information about pending complaints, professional fitness, or disciplinary matters during confirmation or oversight.”.

SEC. 4. ATTORNEY GENERAL SUCCESSION CONFORMING AMENDMENT.

Section 508 of title 28, United States Code, is amended by adding at the end the following:

“(d) Professional qualification for acting service.

“A person may not perform the functions and duties of the Attorney General under this section unless the person is eligible to serve under section 506A. If the next officer in the order of succession is ineligible under section 506A, the functions and duties of the Attorney General shall devolve to the next eligible officer authorized by law.”.

SEC. 5. ATTORNEY ETHICS CONFORMING AMENDMENT.

Section 530B of title 28, United States Code, is amended by adding at the end the following:

“(d) Relationship to senior Department legal-officer qualifications.

“Nothing in this section limits the professional-qualification, disclosure, notification, delegation, or review requirements under section 506A. Compliance with this section, including any applicable State laws and rules and local Federal court rules governing attorneys, may be considered in any material-inconsistency review under section 506A.”.

SEC. 6. COMPENSATION-LIMITATION CONFORMING AMENDMENT.

Section 530C(c) of title 28, United States Code, is amended by adding at the end the following:

“(2) Senior Department legal officers.

“Paragraph (1) shall not be construed to limit, displace, or satisfy section 506A. A covered officer under section 506A who is compensated for service materially requiring professional legal judgment must satisfy both paragraph (1) and section 506A.”.

SEC. 7. CLERICAL AMENDMENT.

The table of sections for chapter 31 of title 28, United States Code, is amended by inserting after the item relating to section 506 the following:

“506A. Professional qualifications and good standing for senior Department legal offices.”.

SEC. 8. EFFECTIVE DATE; TRANSITION.

(a) Effective date.

This Act and the amendments made by this Act shall take effect 90 days after enactment.

(b) Initial disclosure by serving covered officers.

A covered officer serving on the effective date shall submit the disclosure required under section 506A(c) of title 28, United States Code, as added by this Act, not later than 30 days after the effective date.

(c) No automatic effect from pending complaints.

Nothing in this Act or the amendments made by this Act shall be construed to impose automatic disqualification, temporary delegation, or removal from duty based solely on a pending complaint, grievance, allegation, request for investigation, media allegation, congressional complaint, political complaint, or pending formal disciplinary charge.

SEC. 9. SEVERABILITY.

If any provision of this Act, an amendment made by this Act, or the application of such provision or amendment to any person or circumstance is held invalid, the remainder of this Act, the amendments made by this Act, and the application of such provision or amendment to any other person or circumstance shall not be affected.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This draft has been converted from a freestanding bill into an existing-law amendment package following DOJ-009's internal review of publication blockers.
- The proposed new section 506A placement is provisional. Legislative counsel should verify whether the better codification location is after 28 U.S.C. § 506, elsewhere in chapter 31, or in another title 28 location.
- The draft uses 28 U.S.C. § 508 to connect the good-standing rule to Attorney General succession and acting service.
- The draft uses 28 U.S.C. § 530B to connect the proposal to the existing federal rule that Government attorneys are subject to State laws and rules and local Federal court rules governing attorneys.
- The draft uses 28 U.S.C. § 530C(c)(1) as an existing compensation-related attorney-licensure analogue and clarifies that the existing compensation limitation does not replace the broader good-standing and disclosure rule.
- The internal project review examined the Federal Vacancies Reform Act cross-reference as a functional analogue for duty devolution and no-force-or-effect consequences, but legislative counsel should still verify exact interaction with acting-service eligibility, statutory succession, and any nonratification rule before external circulation.
- The internal project review examined 28 C.F.R. part 77 and confirms that existing DOJ professional-conduct regulations are an implementation foundation, not a substitute for this draft: part 77 covers senior DOJ legal officers as attorneys for the Government, but its definition of state and local federal-court rules governing attorneys expressly excludes rules requiring licensure or membership in a particular state bar.
- The internal project review added professional-responsibility analogues from ABA Model Rules 5.1, 5.5, 8.3, and 3.8. Those sources support the professional-supervision, good-standing, fitness, and prosecutor-responsibility premises, but they are not enacted federal eligibility rules.

- The internal project review also reviewed *Kennedy v. Braidwood Management, Inc.* and *Trump v. Slaughter* as current Appointments Clause and removal-power caution sources. The duty-devolution structure should remain framed as a neutral statutory eligibility and duty-performance rule, not as automatic removal, congressional control, or an external veto over presidential supervision.
- The draft deliberately distinguishes pending complaints and pending formal charges from final professional discipline.
- Pending complaints are not automatic disqualifiers.
- Pending formal disciplinary charges trigger disclosure and may support ethics review, recusal, screening, or Senate evaluation, but not automatic disqualification.
- Duty disqualification and automatic temporary delegation are reserved for loss of good standing in all admitted jurisdictions, suspension or disbarment in all such jurisdictions, resignation in lieu of discipline, or final professional discipline materially inconsistent with senior DOJ legal service.
- The draft uses duty devolution rather than automatic removal from office because a follow-up internal review identified the Federal Vacancies Reform Act's function-and-duty model as a closer analogue than automatic removal of a Senate-confirmed executive officer.
- Appointments Clause, nomination-authority, removal-power, FVRA, 28 U.S.C. § 508, and professional-responsibility review by qualified public-law counsel, legislative counsel, or a professional-responsibility expert remains necessary before treating this draft as publication-ready.

Source Notes

- 28 U.S.C. chapter 31 contains the baseline statutory provisions for the Attorney General, Deputy Attorney General, Associate Attorney General, Solicitor General, Assistant Attorneys General, Attorney General succession, Attorney General functions, litigation authority, and attorney ethical standards for the Government.
- 28 U.S.C. § 508 governs Attorney General succession and is the most direct title 28 hook for acting service by Department officers.
- 28 U.S.C. § 530B already subjects Department attorneys to State laws and rules and local Federal court rules governing attorneys.
- 28 U.S.C. § 530C(c)(1) limits payment of compensation for services by an individual employed as an attorney unless the individual is licensed and authorized to practice in a State, territory, or the District of Columbia.
- 28 C.F.R. part 77 implements 28 U.S.C. § 530B and defines attorneys for the Government to include senior DOJ legal officers, but it also excludes state-bar licensure or membership requirements from the professional-conduct rules phrase, supporting the need for a separate statutory good-standing rule if Congress wants one.
- 5 U.S.C. § 3348 supplies an analogue for treating protected functions as vacant and unauthorized actions as ineffective when acting service is not authorized.
- 5 U.S.C. §§ 3345-3349d should be reviewed for interaction with any acting-service provision.
- ABA Model Rules 5.1, 5.5, 8.3, and 3.8 are professional-responsibility analogues for supervisory responsibility, unauthorized-practice and good-standing concepts, misconduct reporting tied to honesty or fitness, and prosecutor-specific obligations.
- *Kennedy v. Braidwood Management, Inc.* and *Trump v. Slaughter* should be treated as current constitutional caution sources before publication because the draft touches principal officers, acting officers, supervision, and duty consequences inside the executive branch.
- DOJ Office of Professional Responsibility and DOJ Inspector General authorities should be reviewed for implementation fit before publication.
- Constitution Annotated materials on the Appointments Clause and restrictions on Congress's appointment-related authority should be reviewed before publication because the draft regulates qualifications, disclosure, and duty consequences for presidentially appointed and Senate-confirmed legal offices.

DOM-005 — Federal Critical-Incident Evidence Access Act

A BILL

To amend title 34, United States Code, to require the preservation of and timely access to evidence concerning certain deaths and serious bodily injuries involving Federal law-enforcement personnel, to provide an expedited judicial remedy for authorized State investigative authorities, to make conforming amendments to the Death in Custody Reporting Act of 2013 and other laws, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Federal Critical-Incident Evidence Access Act**”.

SEC. 2. PURPOSES AND SCOPE.

(a) Purposes.

The purposes of this Act are to—

- (1) preserve evidence concerning a covered incident from the earliest practicable moment;
- (2) provide an authorized State investigative authority timely and functionally equivalent access to covered evidence in Federal possession, custody, or control;
- (3) replace discretionary intergovernmental production and agency-controlled disclosure procedures with uniform statutory duties and prompt judicial review;
- (4) protect classified information, unrelated operations, confidential sources, privileged communications, compelled statements, personal privacy, and Federal grand-jury matter through particularized safeguards rather than categorical withholding; and
- (5) permit Federal and State investigative authorities to develop an adequate factual record without predetermining the legality of an officer's conduct or any Federal defense.

(b) Limited scope.

This Act governs evidence preservation and investigative access. It does not create State criminal jurisdiction, authorize a prosecution, alter any element of an offense, determine the lawfulness of a use of force, or enlarge or diminish any immunity or defense available to a Federal officer.

SEC. 3. FEDERAL CRITICAL-INCIDENT EVIDENCE PRESERVATION AND STATE INVESTIGATIVE ACCESS.

Subtitle VI of title 34, United States Code, is amended by adding at the end the following:

“CHAPTER 607—FEDERAL CRITICAL-INCIDENT EVIDENCE PRESERVATION AND STATE INVESTIGATIVE ACCESS

“Sec.

“60701. Definitions.

“60702. Automatic notice, identification, and preservation.

“60703. Activation and investigative access.

“60704. Secure use and protection of disclosed evidence.

“60705. Limited withholding and pre-deadline judicial review.

“60706. Enforcement, jurisdiction, expedition, and relief.

“60707. Coordination and anti-circumvention.

“60708. Rules of construction.

“60709. Implementation, oversight, and reporting.

“60710. Authorization of appropriations.

“60711. Application to existing incidents.

“§ 60701. Definitions

“In this chapter:

“(1) **Authorized State investigative authority.**—The term ‘authorized State investigative authority’ means—

“(A) the attorney general of a State;

“(B) the principal prosecuting authority for the political subdivision in which a covered incident occurred; or

“(C) a State or local law-enforcement, investigative, or medical-examiner entity designated in writing by an official described in subparagraph (A) or (B),

“that is authorized under State law to investigate the death, injury, use of force, or possible violation of law at issue.

“(2) **Covered evidence.**—The term ‘covered evidence’ means any record, object, material, location, or information in the possession, custody, or control of a Federal entity that is reasonably related to—

“(A) the facts or circumstances of a covered incident;

“(B) the identity, authority, assignment, location, action, perception, communication, or use of force of a covered Federal officer involved in the incident;

“(C) the identity, location, observation, statement, or communication of a witness to the incident;

“(D) the collection, creation, preservation, transfer, testing, analysis, alteration, loss, or destruction of evidence concerning the incident; or

“(E) an agency policy, operational directive, warrant, order, briefing, training requirement, or use-of-force standard directly applicable to the incident.

“(3) **Covered Federal officer.**—The term ‘covered Federal officer’ means an officer, employee, agent, contractor, task-force participant, or other person acting under actual or purported authority of the United States who, in connection with a Federal operation, is authorized, assigned, or directed to—

“(A) carry a firearm;

“(B) make an arrest, seizure, search, or detention;

“(C) exercise law-enforcement, immigration-enforcement, protective, custodial, or correctional authority; or

“(D) supervise or direct a person performing a function described in subparagraph (A), (B), or (C).

“(4) **Covered incident.**—The term ‘covered incident’ means an incident occurring within a State in which—

“(A) a use of force by a covered Federal officer causes or reasonably appears to have contributed to the death or serious bodily injury of a person; or

“(B) a person dies while detained, under arrest, in the process of being arrested, or otherwise in the physical custody of a covered Federal officer, if the death is not plainly attributable to natural causes determined by an independent medical authority.

“(5) **Federal entity.**—The term ‘Federal entity’ means any executive department, military department, agency, independent establishment, Government corporation, Federal law-enforcement component, Federal task force, or contractor or other person possessing covered evidence for or on behalf of the United States.

“(6) **Functionally equivalent access.**—The term ‘functionally equivalent access’ means access sufficient to permit an authorized State investigative authority to conduct a timely, complete, and independent investigation, including—

“(A) contemporaneous or prompt access to a scene;

“(B) inspection and documentation of physical evidence;

“(C) authenticated copies of reproducible evidence;

“(D) duplicate forensic samples when reasonably feasible;

“(E) observation of destructive or materially altering testing; and

“(F) access to the methods, results, validation material, and chain-of-custody information for forensic testing.

“(7) **Lead Federal entity.**—The term ‘lead Federal entity’ means the Federal entity designated under section 60707(a), without relieving any other Federal entity of a duty imposed by this chapter.

“(8) **Record.**—The term ‘record’ includes recorded information described in section 3301 of title 44, without regard to whether the information constitutes a Federal record under that section, and includes photographs, audio or video recordings, body-worn-camera or vehicle-camera recordings, dispatch records, geolocation or telemetry data, electronic communications, reports, notes, forensic data, metadata, and audit logs.

“(9) **Serious bodily injury.**—The term ‘serious bodily injury’ has the meaning given that term in section 1365(h)(3) of title 18.

“(10) **State.**—The term ‘State’ means each of the several States, the District of Columbia, the Commonwealth of Puerto Rico, and each territory or possession of the United States.

§ 60702. Automatic notice, identification, and preservation

“(a) Incident notice.—As soon as practicable, and not later than 6 hours after a Federal entity knows or reasonably should know that a covered incident has occurred, the lead Federal entity shall provide notice to—

“(1) the attorney general of the State in which the incident occurred; and

“(2) the principal prosecuting authority for the political subdivision in which the incident occurred.

“(b) Contents of notice.—The notice shall identify, to the extent then known—

“(1) the date, time, location, and general nature of the incident;

“(2) each participating Federal entity;

“(3) the lead Federal entity and its designated contact;

“(4) whether a person died or sustained serious bodily injury; and

“(5) the procedures for activating access under section 60703.

“(c) Identification to investigators.—Not later than 12 hours after receiving an activation notice under section 60703, the lead Federal entity shall confidentially provide the authorized State investigative authority—

“(1) the name, employing or directing entity, official title, and unique personnel or badge identifier of each covered Federal officer whose conduct may reasonably be material to the incident; and

“(2) the name and contact information of the Federal official responsible for preserving and producing covered evidence.

“The United States may seek a protective order governing public disclosure of information produced under this subsection, but may not withhold the information from the authorized State investigative authority solely because public disclosure could create a safety or privacy risk.

“(d) Immediate preservation duty.—Beginning when any Federal entity knows or reasonably should know that a covered incident has occurred, each Federal entity shall—

“(1) preserve all covered evidence in its possession, custody, or control;

“(2) suspend any routine deletion, overwrite, recycling, return, transfer, alteration, or destruction process that could affect covered evidence;

“(3) issue and document a preservation instruction to relevant personnel, contractors, task-force participants, laboratories, detention facilities, communications providers, and evidence custodians;

“(4) preserve available metadata, system logs, access histories, and prior versions sufficient to identify any alteration, deletion, or transfer; and

“(5) take reasonable steps to obtain and preserve covered evidence held by a person from whom the Federal entity has a contractual, supervisory, possessory, or legal right to obtain it.

“(e) Incident inventory.—Not later than 24 hours after receipt of an activation notice, the lead Federal entity shall provide the authorized State investigative authority a tamper-evident inventory that—

“(1) describes each category of covered evidence known to exist;

“(2) identifies the present custodian and location of each item or category;

“(3) states when and by whom each item was collected, created, received, copied, transferred, tested, altered, or accessed;

“(4) identifies evidence known or reasonably believed to have been lost, destroyed, overwritten, materially altered, or not created, and explains the circumstances; and

“(5) includes a cryptographic hash or comparable authentication measure for digital evidence when technically practicable.

“The inventory shall be supplemented not later than 24 hours after additional covered evidence is identified, received, created, transferred, tested, lost, or materially altered.

“(f) Preservation period.—Covered evidence shall be preserved until the later of—

“(1) 5 years after the covered incident;

“(2) 1 year after the final disposition of every known Federal or State investigation, judicial proceeding, administrative proceeding, or civil action materially related to the incident; or

“(3) the expiration of a longer period required by other law or court order.

“§ 60703. Activation and investigative access

“(a) Activation notice.—An authorized State investigative authority may activate the duties under this section by delivering to the lead Federal entity a signed notice that—

“(1) identifies the covered incident;

“(2) certifies that the authority is conducting an investigation authorized by State law; and

“(3) designates the officials permitted to receive covered evidence.

“(b) No item-by-item demand required.—An activation notice need not identify each item sought. The duty to provide covered evidence is determined by the definition in section 60701 and is not limited by the Federal entity’s assessment of which evidence is favorable, inculpatory, exculpatory, material to a Federal theory, or necessary to the State investigation.

“(c) Scene access.—If a Federal entity controls or materially restricts access to the scene of a covered incident, the lead Federal entity shall provide the authorized State investigative authority access—

“(1) as soon as immediate threats to life and safety are controlled; and

“(2) before the scene is materially altered or released, unless alteration is strictly necessary to protect life or prevent imminent substantial harm.

“Nothing in this subsection authorizes a State official to direct an ongoing Federal operation or interfere with emergency medical care, the apprehension of a fleeing person, the neutralization of an immediate threat, or a safety measure applied without regard to the investigating sovereign.

“(d) Production schedule.—Except as provided in section 60705, the lead Federal entity shall provide—

“(1) the identification required by section 60702(c) not later than 12 hours after activation;

“(2) the incident inventory required by section 60702(e) not later than 24 hours after activation;

“(3) an authenticated duplicate of each readily reproducible item of covered evidence not later than 72 hours after activation or, for later-acquired evidence, not later than 72 hours after acquisition;

“(4) inspection of nonreproducible physical evidence and arrangements for duplicate sampling or independent testing not later than 5 days after activation or acquisition, whichever is later; and

“(5) reasonable continuing access to later-created investigative records, forensic results, supplemental recordings, and chain-of-custody information not later than 72 hours after creation or receipt.

“(e) Forensic access.—Before conducting a test that will consume, destroy, materially alter, or exhaust a nonfungible item of covered evidence, a Federal entity shall provide the authorized State investigative authority reasonable notice and an opportunity to—

“(1) observe and document the test;

“(2) obtain a duplicate sample when reasonably feasible; and

“(3) propose a reasonable alternative protocol that preserves independent testing without materially compromising safety or evidentiary reliability.

“(f) Witnesses.—A Federal entity may not instruct, pressure, or retaliate against a witness for voluntarily communicating with an authorized State investigative authority. This subsection does not compel any person to provide a statement, waive a right, disclose privileged information, or submit to an interview without counsel.

“(g) Form of access.—The Federal entity may retain original evidence if authenticated duplicates, inspection, sampling, observation, and chain-of-custody access provide functionally equivalent access. If no alternative provides functionally equivalent access, the district court may prescribe shared custody, secure escrow, neutral testing, or another arrangement that preserves the evidentiary interests of both sovereigns.

“(h) No tolling by Federal process.—A deadline under this chapter is not tolled by—

“(1) a pending Federal investigation, administrative review, disciplinary process, or charging decision;

“(2) an agency records or testimony regulation, including a procedure adopted under section 301 of title 5;

“(3) referral of a request or evidence to another Federal entity;

“(4) consideration of a Federal defense or immunity;

“(5) removal of a State proceeding under section 1442 of title 28; or

“(6) an internal assessment of the legal, political, reputational, or litigation consequences of disclosure.

“§ 60704. Secure use and protection of disclosed evidence

“(a) Investigative-use limitation.—Covered evidence obtained under this chapter may be used by an authorized State investigative authority for—

“(1) the investigation identified in the activation notice;

“(2) a judicial, grand-jury, charging, medical-examiner, professional-responsibility, or administrative proceeding directly arising from that investigation; or

“(3) another use authorized by the district court for good cause and consistent with this chapter.

“(b) Safeguards.—An authorized State investigative authority receiving covered evidence shall—

“(1) maintain administrative, technical, and physical safeguards appropriate to the sensitivity of the evidence;

“(2) limit access to persons with an investigative, prosecutorial, forensic, judicial, or defense-related need to know;

“(3) preserve authentication and chain-of-custody information;

“(4) comply with a lawful protective order entered under this chapter; and

“(5) promptly report a material unauthorized access or disclosure to the producing Federal entity and the district court.

“(c) No public-disclosure right.—This chapter does not create a right of public access to covered evidence. If applicable State law would require public disclosure that the United States contends would cause a specific and substantial harm described in section 60705(a), the United States may seek a narrowly tailored protective order before production. The pendency of that application does not stay production to the authorized State investigative authority under an interim protective order.

“(d) Defense access preserved.—Nothing in this section limits disclosure to a criminal defendant required by the Constitution, Federal or State law, or a court order, or authorizes a protective order inconsistent with the rights of an accused.

“§ 60705. Limited withholding and pre-deadline judicial review

“(a) Exclusive grounds.—Covered evidence may be withheld, redacted, or subjected to delayed or restricted access only to the minimum extent necessary to protect—

“(1) information properly classified under a statute or Executive order, or Restricted Data as defined in section 11 y. of the Atomic Energy Act of 1954 (42 U.S.C. 2014(y));

“(2) the identity of a confidential human source, or information that would create a specific and substantial risk of death or serious bodily injury to an identified person;

“(3) an ongoing operation unrelated to the covered incident, if disclosure would create a specific and imminent risk of materially compromising that operation and no substitute can avoid the risk;

“(4) a matter occurring before a Federal grand jury to the extent protected by rule 6(e) of the Federal Rules of Criminal Procedure, except that evidence created or obtained independently of the grand jury may not be withheld solely because it was subpoenaed by, summarized for, or presented to the grand jury;

“(5) an attorney-client communication or attorney work product that was prepared for litigation and does not consist of an underlying factual record otherwise covered by this chapter;

“(6) a compelled statement or information derived from such a statement, but only to the extent and for the period that disclosure to the designated State investigative or prosecutorial team would violate the Constitution or a binding immunity agreement;

“(7) personal information having no material relationship to the covered incident, after reasonably segregable material is produced; or

“(8) intelligence sources, methods, or operational information having no material relationship to the covered incident.

“(b) Grounds that are insufficient.—Covered evidence may not be withheld, delayed, or restricted solely because—

“(1) the evidence is designated law-enforcement sensitive, for official use only, deliberative, predecisional, or part of an open Federal investigation;

“(2) an agency regulation requires permission to produce official records or testimony;

“(3) the evidence may support or undermine a Federal account, Federal-officer immunity, administrative discipline, civil liability, or criminal exposure;

“(4) disclosure could cause embarrassment, criticism, political controversy, litigation risk, or a request for additional evidence; or

“(5) the Federal entity would prefer to complete its investigation, review the evidence, make a charging decision, or negotiate reciprocal production before providing access.

“(c) Pre-deadline application required.—A Federal entity seeking to withhold, redact, delay, or restrict access shall, before the applicable production deadline—

“(1) file an application in the United States district court for the district in which the covered incident occurred;

“(2) provide the authorized State investigative authority an itemized log identifying each disputed item, the precise ground asserted, the duration of the requested restriction, and the reason a less restrictive alternative is inadequate; and

“(3) deposit the disputed evidence with the court under seal, together with any classified or privileged declaration necessary for review.

“Failure to file a timely application constitutes a completed violation and waives authority to withhold or restrict investigative access, except to the minimum extent the court finds that production would itself violate the Constitution, rule 6(e) of the Federal Rules of Criminal Procedure, an express statutory prohibition, or the prohibition on disclosing classified information to an unauthorized person. An untimely application does not cure the violation; the court shall order the least restrictive secure access or substitute permitted by law and may grant relief under section 60706. Failure to file does not waive a protection against public disclosure or use beyond that authorized by section 60704.

“(d) De novo determination and burden.—The court shall determine the application de novo. The United States bears the burden of establishing by particularized evidence that each restriction is authorized by subsection (a), no broader than necessary, and unavailable through a less restrictive alternative.

“(e) Required alternatives.—Before authorizing withholding, the court shall consider and, when adequate, order—

“(1) segregation and minimum-necessary redaction;

“(2) an interim or permanent protective order;

“(3) attorneys'-eyes-only or forensic-examiner access;

“(4) secure-facility review;

“(5) a substitution, summary, admission, or stipulation that provides functionally equivalent investigative value;

“(6) delayed disclosure for a definite and shortest practicable period;

“(7) a taint team or other screening procedure for a compelled statement; or

“(8) shared custody, neutral escrow, or court-supervised testing.

“(f) Undisputed evidence.—An application under this section does not stay production of undisputed evidence or suspend a preservation, inventory, notice, or authentication duty.

“(g) Grand-jury material.—If evidence is withheld under subsection (a)(4), the Federal entity shall promptly seek any disclosure authorization available from the court supervising the grand jury and shall produce the same evidence from a non-grand-jury source when reasonably available.

“(h) Classified material.—The court may review classified material ex parte and in camera and may use secure procedures necessary to protect national security. The court shall order the greatest degree of access or an adequate substitute consistent with subsection (a)(1), but nothing in this chapter requires disclosure of classified information to a person not authorized to receive it.

“(i) No automatic stay.—An appeal does not automatically stay an access, preservation, inventory, or production order. A court may enter the narrowest stay necessary upon a particularized showing of likely irreparable harm, and shall expedite any appeal from an order under this section.

“§ 60706. Enforcement, jurisdiction, expedition, and relief

“(a) Cause of action.—An authorized State investigative authority may bring a civil action against the United States, a Federal entity, or the head of a Federal entity to enforce this chapter.

“(b) Jurisdiction and venue.—The United States district court for the district in which the covered incident occurred shall have original jurisdiction. If the incident location cannot reasonably be determined, the action may be filed in a district in which material covered evidence is located. The jurisdiction conferred by this subsection is not exclusive of jurisdiction otherwise provided by law.

“(c) Waiver of sovereign immunity.—The United States waives sovereign immunity for relief authorized by this section. The United States may be named as a defendant, and an action may not be dismissed or relief denied on the ground that it is against the United States or that the United States is an indispensable party.

“(d) No exhaustion.—An authorized State investigative authority need not exhaust a remedy under the Administrative Procedure Act, an agency records or testimony regulation, the Freedom of Information Act, or any other administrative disclosure procedure before filing an action under this section.

“(e) Expedition.—In an action under this chapter—

“(1) the court shall address a request for emergency preservation or access as soon as practicable;

“(2) the defendant shall answer a motion for preliminary relief not later than 48 hours after service unless the court sets a shorter period or finds that extraordinary circumstances require not more than 24 additional hours;

“(3) the court shall hold any necessary hearing not later than 7 days after filing; and

“(4) the court shall issue a decision as soon as practicable and, absent extraordinary circumstances stated in writing, not later than 3 days after the hearing or completion of briefing.

“(f) Relief.—The court may—

“(1) declare a violation of this chapter;

“(2) order preservation, inventory, authentication, identification, inspection, production, sampling, testing access, segregation, or secure disclosure;

“(3) appoint a neutral evidence custodian, special master, or technical expert;

“(4) order a Federal entity to reimburse an authorized State investigative authority for reasonable and documented investigative expenses directly caused by a violation occurring after the effective date of this chapter;

“(5) award reasonable attorney fees and litigation costs to an authorized State investigative authority that substantially prevails;

“(6) order a time-limited compliance plan, independent preservation audit, supplemental inventory, or other prospective measure reasonably necessary to remedy repeated, continuing, or willful noncompliance; and

“(7) grant other legal or equitable relief necessary to enforce this chapter and consistent with the Constitution.

“(g) Completed violation.—A failure to perform a duty by the statutory deadline constitutes a completed violation. Subsequent compliance does not eliminate a claim for relief described in subsection (f)(4), (5), or (6), or other relief that remains constitutionally redressable.

“(h) No personal damages action.—This chapter does not create a cause of action for damages against a Federal officer, employee, contractor, or State official in an individual capacity.

“(i) Appeals.—The court of appeals shall expedite an appeal from an interlocutory or final order under this chapter. The parties shall file any notice of appeal not later than 10 days after entry of the order, without limiting a shorter period required by other law.

“§ 60707. Coordination and anti-circumvention

“(a) Lead entity.—Not later than 2 hours after a Federal entity knows or reasonably should know of a covered incident, the participating Federal entities shall designate a lead Federal entity. If no designation is made, the Federal entity employing or directing the officer whose conduct most directly caused or allegedly contributed to the death or serious bodily injury shall serve as the lead Federal entity.

“(b) Shared responsibility.—Designation of a lead Federal entity does not relieve another Federal entity of preservation, production, litigation, or compliance duties concerning evidence in its possession, custody, or control.

“(c) Transfer and custody.—A Federal entity may not avoid or delay a duty under this chapter by—

“(1) transferring evidence, personnel, investigative responsibility, or nominal custody;

“(2) referring a matter to another component, agency, task force, contractor, inspector general, prosecutor, or grand jury;

“(3) declining, suspending, narrowing, or closing a Federal investigation;

“(4) making assistance by one Federal component dependent on a request from another component;

“(5) relabeling a record, operation, investigation, privilege, or security designation;

“(6) storing evidence in a system or location designed or selected to defeat timely access; or

“(7) declining to obtain evidence that the entity has a contractual, supervisory, possessory, or legal right to obtain.

“(d) Contractors and joint operations.—A Federal entity entering or renewing a contract, memorandum of understanding, task-force agreement, deputation, or intergovernmental agreement involving a covered Federal officer shall require compliance with this chapter. The absence of such a term does not limit a duty imposed by this chapter.

“(e) Other sovereign evidence.—This chapter does not require a State or local entity to transfer evidence to the United States as a condition of receiving covered evidence. Nothing in this subsection prevents voluntary reciprocal sharing or compliance with otherwise lawful Federal process.

“§ 60708. Rules of construction

“(a) Substantive law and prosecutorial authority unchanged.—Nothing in this chapter shall be construed to—

“(1) create, expand, contract, or determine State criminal, civil, or regulatory jurisdiction;

“(2) authorize or require an arrest, charge, indictment, prosecution, or particular disposition;

“(3) alter an element, burden of proof, defense, privilege, immunity, or standard governing the legality of a covered Federal officer’s conduct;

“(4) enlarge or diminish Supremacy Clause immunity or any other Federal defense;

“(5) alter removal jurisdiction under section 1442 of title 28, except that removal does not itself stay a duty imposed by this chapter; or

“(6) express a finding that any covered incident involved unlawful conduct.

“(b) Constitutional and criminal-process protections.—Nothing in this chapter authorizes—

“(1) compelled self-incrimination;

“(2) disclosure or use of a compelled statement in violation of the Constitution or a binding immunity agreement;

“(3) disclosure of matter occurring before a Federal grand jury except as authorized by law or the court supervising the grand jury;

“(4) denial of due process, assistance of counsel, confrontation, compulsory process, or disclosure owed to an accused; or

“(5) disclosure of classified information to a person not authorized to receive it.

“(c) No operational command.—This chapter does not authorize a State or local official to command, supervise, approve, or veto a Federal operation, deployment, policy, arrest, search, seizure, detention, or charging decision.

“(d) Existing recordings only.—This chapter governs preservation of and access to recordings and other evidence that exist or are created under another source of law or policy. It does not independently require an officer or Federal entity to create a body-worn-camera, vehicle-camera, or other recording.

“(e) No public or private access right.—Except for an authorized State investigative authority, this chapter creates no right to obtain covered evidence. A person may not use this chapter as a substitute for discovery, the Freedom of Information Act, or a State public-records law.

“(f) No suppression or dismissal remedy.—A violation of this chapter does not, standing alone, require suppression of evidence, dismissal of a charge, or termination of an investigation or proceeding.

“(g) More protective access laws.—This chapter does not displace another Federal law that requires earlier or broader investigative access, except to the extent that the other law authorizes withholding inconsistent with this chapter.

“§ 60709. Implementation, oversight, and reporting

“(a) Uniform regulations.—Not later than 180 days after enactment of the Federal Critical-Incident Evidence Access Act, the Attorney General, in consultation with the Archivist of the United States, the heads of Federal entities with law-enforcement authority, State attorneys general, State and local prosecutors and investigative agencies, and appropriate privacy and civil-liberties officials, shall issue uniform regulations to implement this chapter.

“(b) Limits on regulations.—A regulation or agency policy may not—

“(1) narrow the definition of covered evidence or covered incident;

“(2) add a withholding ground;

“(3) extend a statutory deadline;

“(4) condition access on reciprocal production, waiver, or exhaustion; or

“(5) postpone compliance pending issuance or amendment of a regulation.

“(c) Agency implementation.—Each Federal entity that employs or directs covered Federal officers shall—

“(1) designate a continuously available critical-incident evidence officer;

“(2) maintain secure preservation, duplication, transfer, and audit capability;

“(3) train covered Federal officers, evidence custodians, attorneys, contractors, and task-force participants concerning this chapter; and

“(4) publish contact and activation procedures that do not require disclosure of sensitive operational information.

“(d) Inspector General review.—The Inspector General of each Federal entity involved in a covered incident shall have access to the compliance record and may investigate an alleged violation. A knowing or willful violation by an officer or employee shall be referred for appropriate administrative or disciplinary review consistent with due process and applicable law.

“(e) Annual report.—Not later than March 31 of each year, the Attorney General shall submit to Congress and publish a report stating for the preceding calendar year—

“(1) the number of covered incidents, organized by Federal entity and State;

“(2) the number and disposition of activation notices;

- “(3) median and maximum times for notice, inventory, identification, production, and forensic access;
- “(4) the number of applications under section 60705, the grounds asserted, and the disposition of each application;
- “(5) the number of adjudicated violations and the relief awarded; and
- “(6) implementation recommendations.
- “The public report shall not identify a person or disclose evidence protected under section 60705 or by a court order.

“§ 60710. Authorization of appropriations

“There are authorized to be appropriated such sums as may be necessary for fiscal year 2027 and each fiscal year thereafter to carry out this chapter, including secure evidence systems, authentication and duplication, forensic access, training, inspector-general review, reimbursement ordered under section 60706, and grants or reimbursements to authorized State investigative authorities for secure receipt and handling of covered evidence.

“§ 60711. Application to existing incidents

“(a) Prospective duties concerning retained evidence.—On or after the effective date of this chapter, an authorized State investigative authority may submit an activation notice concerning a covered incident that occurred during the 5-year period preceding that date if—

“(1) an investigation authorized by State law remains open or may lawfully be reopened; and

“(2) a Federal entity retains covered evidence concerning the incident.

“(b) Deadlines.—For an activation under subsection (a), the duties and deadlines under sections 60702 through 60707 begin upon receipt of the activation notice.

“(c) No retroactive liability.—A Federal entity or person may not be held liable under this chapter for failing, before the effective date, to perform a duty created by this chapter. This subsection does not excuse post-effective-date destruction, withholding, delay, or noncompliance and does not limit liability under another law.”.

SEC. 4. DEATH IN CUSTODY REPORTING ACT CONFORMING AMENDMENT.

Section 3 of the Death in Custody Reporting Act of 2013 (Public Law 113–242; 128 Stat. 2861) is amended by adding at the end the following:

“(d) Relationship to Critical-Incident Evidence Duties.

“A report under this section does not satisfy or limit a preservation, identification, inventory, or investigative-access duty under chapter 607 of title 34, United States Code. Compliance with that chapter may not be delayed pending preparation or submission of a report under this section.”.

SEC. 5. PRIVACY ACT CONFORMING AMENDMENT.

Section 552a(b) of title 5, United States Code, is amended—

(1) in paragraph (12), by striking “or” at the end;

(2) in paragraph (13), by striking the period at the end and inserting “; or”; and

(3) by adding at the end the following:

“(14) to an authorized State investigative authority as required by chapter 607 of title 34, subject to the use, security, and protective-order requirements of that chapter.”.

SEC. 6. EXPEDITED CONSIDERATION.

Section 1657(a) of title 28, United States Code, is amended by striking “section 1826 of this title,” and inserting “section 1826 of this title or chapter 607 of title 34.”.

SEC. 7. FEDERAL-OFFICER REMOVAL; NO AUTOMATIC STAY.

Section 1442 of title 28, United States Code, is amended by adding at the end the following:

“(e) Critical-Incident Evidence Duties.

“Removal of a proceeding under this section does not toll or stay a preservation, notice, inventory, identification, or production duty under chapter 607 of title 34. A district court may alter a production obligation only in accordance with section 60705 of title 34.”.

SEC. 8. CLERICAL AMENDMENT.

The table of chapters for subtitle VI of title 34, United States Code, is amended by adding at the end the following:

SEC. 9. EFFECTIVE DATE; INTERIM IMPLEMENTATION.

(a) Effective date.

The amendments made by this Act shall take effect 270 days after the date of enactment.

(b) Interim preservation.

Beginning on the date of enactment, a Federal entity may not knowingly destroy, overwrite, transfer for the purpose of evasion, or materially alter evidence that the entity reasonably expects would become covered evidence under chapter 607 of title 34, United States Code, as added by this Act.

(c) Rules not prerequisite.

Failure to issue a regulation, policy, form, agreement, or technical standard does not delay the effective date or excuse compliance with chapter 607 of title 34, United States Code.

Budgetary Impact Statement

Budget authority is likely required; no dollar estimate is assigned pending source-backed cost data. The bill authorizes appropriations for secure evidence systems, authentication and duplication, forensic access, training, inspector-general review, and State reimbursement, while relying in part on existing recording, evidence, investigative, and court functions.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- **Vehicle fit:** The bill adds a self-contained chapter to title 34 because the existing Death in Custody Reporting Act supplies only retrospective reporting duties. Section 4 preserves that Act as the reporting anchor while distinguishing reporting from investigative access.
- **Narrow subject:** The bill governs existing evidence and access to an investigation. It does not mandate new recording equipment, create a public-disclosure right, authorize State prosecution, or modify Supremacy Clause immunity.
- **Local adjudication:** The district where the incident occurred receives jurisdiction because scene preservation and evidence access are local and time-sensitive. This proposal does not use the JUD-011 D.D.C. framework.
- **Existing incidents:** Section 60711 creates prospective access duties for retained evidence concerning recent incidents without imposing retroactive liability for conduct predating the Act.
- **First-draft questions:** further internal review should test the 6-hour, 12-hour, 24-hour, 72-hour, and 5-day deadlines; the definition of covered Federal officer; compelled-statement screening; grand-jury coordination; classified-information procedure; tribal-jurisdiction coverage; reimbursement and Judgment Fund mechanics; and whether the 5-year transition window should be longer.

ELEC-001 — Federal Executive Election Noninterference Act

A BILL

To amend the Hatch Act to prohibit the President, Vice President, and other federal executive officials from using official authority or influence to interfere with state or local election administration for a preferred electoral outcome; to provide expedited civil remedies, record-preservation requirements, administrative enforcement, and criminal penalties for knowing and coercive violations; and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Federal Executive Election Noninterference Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are—

1. to preserve the lawful authority of States and their political subdivisions to administer elections under State law, subject to the Constitution and valid Acts of Congress;
2. to prohibit the use of federal executive office, authority, resources, or influence to obtain, prevent, alter, or secure a preferred electoral outcome through a State or local election function;
3. to preserve lawful federal enforcement of voting-rights, civil-rights, election-security, campaign-finance, foreign-interference, and election-crime laws;
4. to provide rapid judicial protection before unlawful federal executive interference produces irreversible consequences; and
5. to ensure documentation, independent investigation, and accountability when senior executive officials are implicated.

TITLE I — HATCH ACT AMENDMENTS

SEC. 101. FEDERAL EXECUTIVE ELECTION NONINTERFERENCE.

Chapter 73 of title 5, United States Code, is amended by inserting after section 7323 the following:

§ 7323A. Federal executive interference with State and local election administration

(a) General prohibition.—A covered federal executive official may not knowingly use, direct, threaten, authorize, request, or cause the use of official authority or influence derived from federal office to interfere with a State or local election function for the purpose of effectuating, preventing, altering, or securing a preferred electoral outcome.

(b) Specifically prohibited conduct.—A violation of subsection (a) occurs when a covered federal executive official, acting with the purpose specified in subsection (a), knowingly seeks, directs, pressures, threatens, authorizes, requests, or materially assists another person to—

1. add, manufacture, alter, destroy, suppress, exclude, count, or refuse to count a ballot or vote contrary to applicable law;
2. state, record, transmit, canvass, recount, or certify a vote total or election result the official knows to be materially false;
3. alter, withhold, falsify, delay, or refuse an election return, canvass, recount result, certification, or certificate of ascertainment contrary to applicable law;
4. depart from an applicable election statute, final judicial order, or lawfully completed administrative determination;
5. initiate, continue, expand, narrow, terminate, or publicly characterize a federal investigation, prosecution, audit, intelligence activity, regulatory action, funding action, or administrative process without a good-faith lawful basis;
6. surrender, seize, transfer, alter, destroy, disclose, or provide federal access to ballots, voting equipment, voter records, election data, or election materials without lawful authority;
7. make, procure, adopt, or transmit a materially false official representation concerning vote totals, election fraud, canvassing, recount, certification, or the lawful result of an election;
8. take or refrain from an election-related action because of the actual or threatened use of federal investigation, prosecution, funding, contracting, regulatory, intelligence, employment, or other governmental authority;
9. retaliate against a State or local officer or employee for refusing an unlawful or unauthorized election-related request; or
10. use another officer, employee, agency, campaign representative, personal attorney, or private intermediary to perform conduct prohibited by this section.

(c) No completed alteration required.—A violation does not require that the requested action occur or that an election result be changed.

(d) Lawful federal functions.—This section does not prohibit—

1. good-faith enforcement of the Constitution or a valid Act of Congress;
2. an investigation or prosecution supported by an articulable factual and legal basis;
3. enforcement of federal voting-rights, civil-rights, campaign-finance, cybersecurity, foreign-interference, or election-crime law;
4. compliance with federal judicial process;
5. performance of a duty expressly assigned to a federal official by law;

6. voluntary cybersecurity, technical, logistical, or emergency assistance requested by a lawful State or local authority;
7. protection of federal personnel or property;
8. a communication reasonably necessary to obtain information for a lawful federal purpose; or
9. political speech, advocacy, criticism, campaign activity, or lawful litigation unaccompanied by prohibited use or threatened use of federal governmental authority.

(e) Identifiable authority and factual basis.—A federal official relying on subsection (d) shall identify the constitutional or statutory authority and factual basis for the federal action when reasonably requested by the affected State or local election authority. Political preference, standing alone, neither establishes nor defeats a lawful federal function.

(f) Definitions.—In this section:

1. Covered federal executive official.—The term means—

- the President and Vice President, solely for purposes of this section and the related reporting, civil-enforcement, and record-preservation provisions of this Act;
- an officer or employee of the Executive Office of the President;
- an officer or employee of an executive department, military department, agency, Government corporation, or independent establishment in the executive branch;
- an individual exercising authority delegated by such an official; and
- an individual acting under color of federal executive authority.

2. Federal governmental authority.—The term includes actual or apparent authority arising from federal office and the use or threatened use of federal personnel, funds, investigations, prosecutions, subpoenas, audits, grants, contracts, appropriations, benefits, waivers, licenses, regulatory authority, intelligence, cybersecurity, national-security authority, classified or nonpublic information, law-enforcement or security personnel, official communications, governmental findings, reports, or any other federal power, process, resource, or influence.

3. Preferred electoral outcome.—The term means the election, defeat, qualification, disqualification, advancement, exclusion, certification, or noncertification of an identified candidate, political party, slate of electors, ballot position, or stated election result.

4. State or local election function.—The term includes voter registration; ballot preparation or distribution; voting-system administration; polling operations; receipt, custody, counting, tabulation, canvassing, auditing, or recounting of ballots; determination or reporting of vote totals; certification; preparation or transmission of certificates of ascertainment; selection or appointment of presidential electors; and preservation or disclosure of election records, equipment, or data.

(g) Rule concerning official influence.—A communication need not be expressed as a formal order. Official authority or influence is used when, under the circumstances, a reasonable recipient would understand that compliance or refusal could affect the exercise of federal governmental authority.

SEC. 102. LIMITED APPLICATION TO THE PRESIDENT AND VICE PRESIDENT.

Section 7322(1) of title 5, United States Code, is amended to provide that the exclusion of the President and Vice President from the term “employee” does not apply to section 7323A or to provisions expressly enforcing section 7323A.

Nothing in this Act subjects the President or Vice President to Hatch Act restrictions unrelated to federal executive interference with State or local election administration.

SEC. 103. RECORDS OF COVERED ELECTION CONTACTS.

Chapter 73 of title 5, United States Code, is further amended by adding:

§ 7323B. Records of covered election contacts

(a) Record required.—A covered federal executive official who communicates with a State or local election official concerning a specific pending election function shall create or cause the creation of a contemporaneous record identifying—

1. the participants;
2. the date, time, and means of communication;
3. the election and function discussed;
4. each material request, directive, warning, representation, or commitment;
5. the federal legal authority relied upon; and
6. any resulting or contemplated federal action.

(b) Preservation.—The record and all materially related federal records shall be preserved in accordance with applicable federal records law and may not be destroyed, altered, concealed, or removed.

(c) Recording by State participant.—A State or local officer or employee participating in an official communication covered by this section may record the communication. No federal officer may prohibit or retaliate against such recording. This authorization supersedes inconsistent law only with respect to a communication covered by this section.

(d) Emergency communication.—An oral communication made during an emergency may be documented promptly after the emergency, but not later than 24 hours after the communication unless extraordinary circumstances make compliance impossible.

(e) Separate violation.—Knowing concealment, destruction, alteration, falsification, or material omission of a record required by this section constitutes a separate violation.

SEC. 104. OFFICE OF SPECIAL COUNSEL AND INSPECTOR GENERAL ENFORCEMENT.

The Office of Special Counsel may investigate an alleged violation of sections 7323A and 7323B by any covered official within its constitutional and statutory jurisdiction and may prosecute an administrative complaint before the Merit Systems Protection Board.

An Inspector General may investigate conduct within the Inspector General's jurisdiction and shall report substantial interference with the investigation to Congress.

For a covered official other than the President or Vice President, available administrative consequences may include removal from the affected matter, suspension, reduction in grade, removal, reprimand, a civil penalty, debarment from federal employment, and disqualification from statutorily delegated election-related functions, consistent with constitutional requirements.

SEC. 105. ANTI-RETALIATION.

No covered federal executive official may take or threaten a personnel, funding, contracting, regulatory, investigative, prosecutorial, security-clearance, access, or other adverse action against a State or local officer or employee because that person—

1. refused a request reasonably believed to violate section 7323A;
2. created, preserved, or disclosed a record required or protected by this Act;
3. sought judicial or administrative relief under this Act; or
4. provided information to Congress, an Inspector General, the Office of Special Counsel, a court, or a lawful investigator.

TITLE II — EXPEDITED CIVIL ENFORCEMENT

SEC. 201. CIVIL ACTION BY AFFECTED GOVERNMENTAL AUTHORITIES.

A State, State attorney general, chief State election official, local election authority, or other governmental entity directly responsible for an affected election function may bring a civil action against a responsible federal officer, agency, or subordinate implementing official to prevent or remedy a violation of section 7323A or 7323B of title 5, United States Code.

SEC. 202. RELIEF.

A court may—

1. declare the rights and duties of the parties;
2. temporarily or permanently enjoin implementation or continuation of prohibited conduct;
3. prohibit further contact except through designated lawful channels;
4. order preservation and production of records;
5. restore the lawful administrative position existing before the interference;
6. prohibit expenditure of federal funds for the prohibited purpose;
7. order reimbursement of reasonable State or local expenses caused by the violation; and
8. award costs and reasonable attorney's fees.

Relief against an agency or subordinate implementing official shall remain available notwithstanding uncertainty concerning direct coercive relief against the President.

SEC. 203. EXPEDITED THREE-JUDGE REVIEW.

An action under this title shall be heard by a three-judge district court convened under section 2284 of title 28, United States Code, and shall receive priority over nonemergency civil matters.

A single judge may issue an emergency temporary restraining order upon specific findings of imminent and irreparable harm. Any appeal shall be expedited in the manner provided by law.

SEC. 204. LIMITS ON JUDICIAL AUTHORITY.

No court acting under this title may determine the winner of an election, substitute its policy judgment for that of a lawful State election authority, or order the counting or exclusion of a particular ballot except as necessary to restore compliance with governing law.

SEC. 205. CIVIL PENALTIES.

A covered official who knowingly violates section 7323A may be assessed a civil penalty not exceeding \$100,000 for each material course of conduct.

The United States may not reimburse a personal civil penalty imposed for a knowing violation.

This Act creates no general private damages action for individual voters.

TITLE III — CRIMINAL ENFORCEMENT

SEC. 301. FEDERAL EXECUTIVE INTERFERENCE WITH ELECTION ADMINISTRATION.

Chapter 29 of title 18, United States Code, is amended by inserting after section 595 the following:

§ 595A. Federal executive interference with State or local election administration

(a) Base offense.—Whoever, being a covered federal executive official or acting under color of federal executive authority, knowingly and for the purpose of effectuating, preventing, altering, or securing a preferred electoral outcome uses, directs, threatens, authorizes, requests, or causes the use of federal governmental authority to obtain conduct described in section 7323A(b) of title 5 shall be fined under this title, imprisoned not more than 3 years, or both.

(b) Aggravated offense.—The maximum term of imprisonment shall be 5 years if the violation involves the actual or threatened use of—

1. criminal investigation or prosecution;
2. intelligence, national-security, or classified-information authority;
3. federal funding, contracting, licensing, waiver, or regulatory authority;
4. armed, military, law-enforcement, or security personnel; or
5. retaliation against a State or local officer or employee.

(c) Resulting alteration or falsification.—The maximum term of imprisonment shall be 10 years if the violation results in the material falsification, alteration, destruction, suppression, manufacture, or unlawful certification of a ballot, vote, return, certificate, election record, or election result.

(d) Attempt, conspiracy, direction, and assistance.—Attempting, conspiring, directing, authorizing, or knowingly providing material assistance to a violation is punishable to the same extent as the completed base offense, except that an enhanced penalty requiring a resulting harm applies only if the required harm occurs.

(e) Definitions.—The definitions in section 7323A of title 5 apply to this section.

(f) Lawful-function defense.—No offense is committed where the conduct falls within section 7323A(d) of title 5 and rests on an identifiable constitutional or statutory authority and a good-faith factual basis.

SEC. 302. RECORD OBSTRUCTION.

Knowing destruction, alteration, concealment, falsification, or removal of a material record required by section 7323B of title 5, undertaken with intent to impede investigation, civil enforcement, congressional oversight, or adjudication, shall be punishable under applicable federal obstruction and records laws and may be charged as a separate offense.

SEC. 303. RELATION TO PRESIDENTIAL IMMUNITY.

Section 595A of title 18 creates substantive criminal liability to the maximum extent permitted by the Constitution. Nothing in this Act shall be construed to narrow any constitutional amendment or later-enacted law governing presidential criminal immunity.

Investigation, evidence preservation, prosecution of nonimmune participants, and reporting to Congress may continue to the extent permitted by law notwithstanding a temporary or substantive bar to prosecution of a President.

TITLE IV — INDEPENDENT REFERRAL AND CONGRESSIONAL REPORTING

SEC. 401. INDEPENDENT REFERRAL.

Substantial and credible information indicating a violation shall be referred promptly to—

1. the relevant Inspector General;
2. the Office of Special Counsel, where administrative jurisdiction exists;
3. the Department of Justice Public Integrity Section, absent a disabling conflict; and
4. any independent investigative-counsel mechanism established by law where a conflict involving the President, Vice President, Attorney General, or another senior executive official materially impairs ordinary investigation.

SEC. 402. CONGRESSIONAL REPORTING.

A substantiated violation involving the President, Vice President, a Cabinet officer, White House personnel, or a Senate-confirmed federal law-enforcement official shall be reported to the House and Senate Committees on the Judiciary, the congressional committees with jurisdiction over elections, and any other appropriate oversight committee.

The report shall distinguish established facts, disputed facts, the federal authority invoked, the State or local action requested, the preferred electoral outcome, possible statutory violations, applicable immunity or privilege, action taken against subordinate participants,

and recommended corrective measures.

SEC. 403. CONSTITUTIONAL SERIOUSNESS.

Congress finds that the knowing use of presidential or vice-presidential authority to procure an unlawful or materially false determination of an election result is a grave abuse of federal executive authority and conduct of the character historically understood as a high Crime or Misdemeanor.

Nothing in this section limits the sole constitutional authority of the House of Representatives to determine whether to impeach or of the Senate to determine whether to convict.

TITLE V — GENERAL PROVISIONS

SEC. 501. RELATION TO EXISTING LAW.

This Act supplements and does not narrow—

1. sections 7321 through 7326 of title 5, United States Code;
2. sections 241, 242, 595, and other applicable provisions of title 18;
3. federal voting-rights, civil-rights, campaign-finance, records, and obstruction laws;
4. Inspector General and Office of Special Counsel authority;
5. lawful State criminal or civil authority not preempted by federal law; or
6. any more protective federal restriction.

Conduct may be addressed under this Act and another applicable law, subject to constitutional protections against duplicative punishment.

SEC. 502. RULES OF CONSTRUCTION.

Nothing in this Act shall be construed—

1. to authorize federal supervision of State or local election administration beyond authority otherwise provided by the Constitution or an Act of Congress;
2. to authorize a federal official, court, or investigator to determine the winner of an election;
3. to prohibit good-faith federal voting-rights or election-law enforcement;
4. to prohibit political speech or advocacy unaccompanied by use or threatened use of federal governmental authority; or
5. to create a general private right of action for individual voters.

SEC. 503. SEVERABILITY.

If any provision of this Act, an amendment made by this Act, or the application thereof is held invalid, the remainder and its application to other persons and circumstances shall not be affected.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- The bill amends the Hatch Act only for the narrow official-authority prohibition and does not subject the President or Vice President to every restriction applicable to federal employees.
- The administrative standard is broader than the criminal offense; criminal liability requires knowing conduct, a specified electoral purpose, use of federal governmental authority, and an enumerated prohibited act.
- The three-year base penalty distinguishes attempted result-directed pressure from aggravated coercion and completed alteration or falsification.
- Civil enforcement is assigned principally to States and responsible election authorities rather than individual voters.
- Relief against agencies and implementing subordinates remains available even where direct relief against the President raises remedial concerns.
- Section 403 is a congressional declaration of constitutional seriousness, not a binding impeachment determination.

- Full criminal enforceability against presidential official acts may depend upon the Presidential Criminal Accountability Amendment developed under IMM-001.
- The independent-referral provision is designed to coordinate with DOJ-007 without making this bill dependent upon adoption of that proposal.

Source Notes

- Source review should include the Hatch Act subchapter, 5 U.S.C. §§ 7321-7326, OSC's Federal Employee Hatch Act information, 18 U.S.C. § 595, adjacent rights statutes 18 U.S.C. §§ 241-242, three-judge-court authority under 28 U.S.C. § 2284, the January 6th Committee Final Report, and Trump v. United States.

ELEC-003 — Election Personnel Protection Amendments to the Help America Vote Act of 2002

A BILL

To amend the Help America Vote Act of 2002 to establish voluntary formula payments to States that enact and maintain politically neutral election-personnel protection laws, to restrict Federal administration of those payments to ministerial and fiscal functions, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Election Personnel Protection Amendments to the Help America Vote Act of 2002.**”

SEC. 2. ELECTION PERSONNEL PROTECTION PAYMENTS.

The Help America Vote Act of 2002 is amended by adding at the end the following new title:

TITLE X—ELECTION PERSONNEL PROTECTION PAYMENTS

SEC. 1001. PURPOSES.

The purposes of this title are—

1. to support State protection of election personnel and qualifying family or household members from threats, violence, coercive intimidation, unlawful disclosure of personal information, retaliation, and operational disruption arising from election duties;
2. to preserve continuity of polling, counting, tabulation, canvassing, recount, certification, records administration, and related election functions;
3. to encourage enactment of politically neutral State protection regimes without directing the manner in which States administer elections;
4. to provide a voluntary and dedicated Federal financial backstop through automatic formula payments; and
5. to prohibit use of those payments as leverage over any other election law, policy, procedure, decision, outcome, or dispute.

SEC. 1002. DEFINITIONS.

In this title:

1. **Commission** means the Election Assistance Commission.
2. **Covered election personnel** means a current, former, prospective, permanent, or temporary State or local election official, employee, poll worker, canvasser, contractor, vendor employee, volunteer, or other person performing an authorized election function.
3. **Covered family or household member** means a spouse, domestic partner, child, parent, sibling, dependent, household member, or other person targeted because of the election duties of covered election personnel.
4. **Election function** includes voter registration, ballot preparation, polling-place operation, ballot custody, counting, tabulation, auditing, recounting, canvassing, certification, records administration, equipment support, election-security support, and adjudicative or ministerial duties assigned by State law.
5. **Protection-purpose expenditure** means an expenditure authorized under section 1006.
6. **Qualifying State law** means a State statute satisfying section 1004.
7. **Reserve threshold** means the amount determined under section 1006(d).
8. **State** has the meaning given that term under section 901 of the Help America Vote Act of 2002.
9. **Unobligated Federal balance** means the amount of payments received by a State under this title, including interest credited under section 1006(c), that has not been obligated for a protection-purpose expenditure as of the close of a fiscal year.

SEC. 1003. VOLUNTARY FORMULA PAYMENTS.

(a) Payments required.

For each fiscal year for which amounts are appropriated under section 1014, the Commission shall make a payment to each eligible State in the amount determined under section 1005 and adjusted, if applicable, under section 1006(e).

(b) Voluntary participation.

A State is not required to enact or maintain a qualifying State law. A State that does not do so is ineligible only for payments under this title.

(c) No effect on other assistance.

Eligibility or ineligibility under this title may not affect the eligibility of a State or political subdivision for any payment, grant, reimbursement, cooperative agreement, or other assistance under any other provision of this Act or any other Federal law.

(d) No matching requirement.

A State may not be required to provide matching funds as a condition of receiving a payment under this title.

(e) Voluntary State and local supplementation preserved.

Nothing in subsection (d) or any other provision of this title prohibits a State or political subdivision from voluntarily appropriating, matching, supplementing, or expending non-Federal funds for purposes consistent with this title and the qualifying State law.

SEC. 1004. SOLE SUBSTANTIVE ELIGIBILITY CONDITION; QUALIFYING STATE LAW.

(a) Sole condition.

The enactment and continued maintenance of a qualifying State law is the sole substantive condition of eligibility for a payment under this title.

(b) Required protections.

A State law qualifies under this section only if it—

1. protects covered election personnel when targeted because of an election function;
2. extends appropriate protection to covered family or household members targeted for the same reason;
3. requires politically neutral administration without regard to party, candidate, viewpoint, ideology, election outcome, or the perceived political effect of an official act;
4. establishes a statewide mechanism for prompt reporting, threat assessment, referral, and coordination using one or more existing State offices;
5. authorizes emergency protective assistance, which may include residential or workplace security, law-enforcement patrol or escort, temporary relocation, legal assistance, and counseling;
6. provides an expedited judicial process for protective relief consistent with due process and the First Amendment;
7. protects residential and other sensitive personal information through address confidentiality, redaction, access control, data minimization, or comparable measures, to the maximum extent permitted by law;
8. provides civil or criminal remedies for true threats, coercive intimidation, retaliation, targeted family harm, unlawful disclosure of protected personal information, false emergency reports, bomb threats, swatting, or comparable misconduct, while preserving constitutionally protected speech;
9. requires continuity-of-operations planning for polling places, election offices, ballot-storage facilities, counting and tabulation centers, canvassing and certification bodies, and other election facilities proportionate to State and local risk;
10. authorizes workforce support reasonably related to threat-driven attrition, including training, counseling, temporary staffing, security-related leave, accommodations, recruitment, retention, or reimbursement of necessary security costs;
11. provides for aggregate public reporting that protects personal, investigative, and security-sensitive information;
12. applies equally to State and local election personnel without regard to partisan affiliation or the identity of the alleged offender; and
13. remains legally operative regardless of whether the State receives Federal funds under this title.

(c) State control of methods.

Except for the minimum protections expressly stated in subsection (b), the form, institutional placement, procedures, enforcement mechanisms, offense grading, remedies, and methods of compliance shall be determined exclusively by the State.

(d) No prospective incorporation of Federal guidance.

A qualifying State law may not be required to incorporate, comply with, or remain consistent with a regulation, guidance document, policy statement, executive order, model practice, or other administrative material issued after enactment of this title.

SEC. 1005. ALLOTMENT FORMULA.

(a) Base allotment.

From the amount appropriated for a fiscal year, the Commission shall first allot to each eligible State a base amount equal to 0.5 percent of the total amount available.

(b) Population allotment.

The remainder shall be allotted among eligible States in proportion to each State's voting-age population, as determined by the most recent decennial census or annual Census Bureau estimate selected by Congress in appropriations law.

(c) Territories and minimum allotment adjustments.

Congress may specify by law a minimum allotment or territorial adjustment, provided that the formula is objective, uniform, and not dependent on discretionary scoring or policy review by the Commission.

(d) No discretionary adjustment.

Except for the automatic carryover adjustment required by section 1006(e), the Commission may not increase, decrease, withhold, accelerate, delay, or redirect an allotment based on—

1. the Commission's evaluation of the merits or effectiveness of a State election policy;
2. an election outcome;
3. a dispute concerning voter eligibility, registration, voting methods, ballot access, counting, canvassing, recounts, certification, elector appointment, or election litigation;
4. the political affiliation of any State or local official; or
5. any factor not expressly stated in this section.

SEC. 1006. PERMITTED USES; CARRYOVER; BALANCE ADJUSTMENT.

(a) Permitted uses.

A State may use payments under this title only for—

1. emergency protection, temporary relocation, residential or workplace security, law-enforcement support, legal assistance, counseling, and related aid for covered persons;
2. address-confidentiality systems, records redaction, data minimization, secure communications, and digital-privacy measures;
3. facility hardening and security for polling places, election offices, ballot-storage facilities, counting and tabulation centers, canvassing and certification locations, and related sites;
4. continuity planning, backup facilities, emergency staffing, secure relocation of operations, communications, equipment, ballot and record transfer, and public notification during disruption;
5. threat-reporting, assessment, triage, referral, and coordination systems;
6. training on threat recognition, reporting, de-escalation, digital privacy, records protection, and continuity procedures;
7. temporary staffing, security-related leave, accommodations, recruitment, retention, and reimbursement of necessary out-of-pocket security costs in jurisdictions experiencing documented threat-related disruption or attrition;
8. grants or reimbursements to local governments for the purposes stated in this section; and
9. reasonable administrative costs directly attributable to this title, subject to a percentage cap fixed by Congress.

(b) State election-personnel protection fund.

A State receiving a payment under this title shall hold such amounts in a State election-personnel protection fund or a separately accounted subaccount of an existing State election fund. Amounts in the fund, including interest credited under subsection (c), shall be used only for protection-purpose expenditures.

(c) Availability until expended; interest.

Amounts paid to a State under this title shall remain available until expended for protection-purpose expenditures, subject to this title. Interest earned on such amounts shall be credited to the fund described in subsection (b) and used only for protection-purpose expenditures.

(d) Reserve threshold.

For each eligible State and fiscal year, the reserve threshold shall equal the greater of—

1. 25 percent of the State's allotment for the fiscal year before application of subsection (e); or
2. 18 months of the State's average monthly protection-purpose expenditures under this title during the preceding 24 months.

For a State that has received payments under this title for fewer than 24 months, the reserve threshold shall equal 25 percent of the State's allotment for the fiscal year before application of subsection (e).

(e) Automatic carryover adjustment.

If, as of the close of a fiscal year, a State's unobligated Federal balance exceeds the reserve threshold, the State's next payment under section 1003 shall be reduced by the amount of the excess. The Commission shall apply this subsection ministerially and may not waive, increase, decrease, suspend, accelerate, delay, or otherwise modify the reserve threshold or adjustment for any State.

(f) No forfeiture while State remains eligible.

Except as provided in subsection (e) and sections 1007(d) and 1011, a State that continues to maintain a qualifying State law shall not be required to return an unobligated Federal balance solely because the balance remains unexpended at the close of a fiscal year.

SEC. 1007. STATE CERTIFICATION.

(a) Submission.

To receive a payment, the chief State election official and the attorney general of the State, or equivalent State legal officer, shall jointly submit to the Commission—

1. a certification that a qualifying State law is in force;
2. the full text and citation of that law;
3. a provision-by-provision crosswalk identifying the State provision corresponding to each requirement of section 1004(b); and
4. a certification that amounts received will be used only for protection-purpose expenditures.

(b) No State plan.

The Commission may not require a State plan, implementation narrative, needs assessment, public-comment process, performance benchmark, or substantive program approval as a condition of payment.

(c) Continuing certification.

A State shall notify the Commission of any repeal or material amendment of the qualifying State law. Eligibility for future payments ends when the law no longer satisfies section 1004.

(d) No retroactive recoupment for legal change.

Repeal or amendment of a qualifying State law does not authorize recovery of amounts lawfully obligated before the change, except in cases of fraud, false certification, or expenditure outside section 1006.

(e) Unobligated balances after loss of eligibility.

If a State ceases to maintain a qualifying State law, the State may liquidate amounts lawfully obligated before the date of ineligibility for a period of 180 days after that date. Any remaining unobligated Federal balance after that period shall be returned to the United States. This subsection does not authorize withholding or offset of unrelated Federal assistance.

SEC. 1008. MINISTERIAL REVIEW AND AUTOMATIC QUALIFICATION.

(a) Limited review.

The Commission may determine only whether the submission facially identifies a State statutory provision corresponding to each requirement of section 1004(b).

(b) Automatic qualification.

A State shall be deemed eligible 30 days after a complete submission unless, before that date, the Commission issues a written determination identifying each specific requirement of section 1004(b) for which no corresponding State statutory provision has been identified.

(c) No policy judgment.

The Commission may not deny eligibility because it would have selected a different institutional structure, remedy, procedure, penalty, enforcement priority, or method of compliance.

(d) Cure.

A State may cure an identified deficiency by submitting an amended citation, crosswalk, or State enactment. Eligibility shall attach upon cure without loss of eligibility for future fiscal years.

(e) No deference.

In any judicial proceeding under section 1012, no deference shall be afforded to the Commission's interpretation of this title.

SEC. 1009. PROHIBITION ON ADDITIONAL CONDITIONS, WAIVERS, AND DISCRETIONARY SCORING.

The Commission, the President, and every other Federal officer or entity are prohibited from—

1. imposing a condition of eligibility not expressly stated in this title;
2. establishing a competitive application process;
3. scoring or ranking States;
4. requiring adherence to Federal best practices, model policies, guidance, or recommendations;
5. waiving an express statutory requirement for a particular State;
6. conditioning payment on cooperation with an unrelated Federal election initiative;
7. conditioning payment on a State's position in litigation or an election dispute;
8. using payment timing or administration to reward, punish, pressure, or influence a State or political subdivision; or
9. delegating to another Federal entity authority prohibited by this section.

SEC. 1010. FEDERAL NONINTERFERENCE AND JURISDICTIONAL FIREWALL.

(a) Rule of construction.

Nothing in this title authorizes the Commission or any other Federal officer or entity to direct, supervise, regulate, approve, disapprove, investigate, or otherwise influence—

1. voter qualifications or eligibility;
2. voter registration;
3. ballot access or ballot design;
4. voting methods or voting equipment;
5. polling-place procedures;
6. ballot custody, counting, tabulation, or auditing;
7. canvassing, recounts, or certification;
8. appointment of presidential electors;
9. adjudication of an election contest or dispute;
10. a State or local enforcement priority unrelated to expenditure of funds under this title; or
11. an election outcome.

(b) No enlargement of Commission authority.

Authority provided by this title is limited to receipt of certifications, objective eligibility review, calculation and payment of formula allotments, fiscal reporting, audit, and recovery for fraud or unauthorized expenditure. This title may not be construed to enlarge the Commission's jurisdiction, regulatory authority, investigatory authority, or supervisory authority under any other law.

(c) No individual case files.

A State may not be required to disclose to the Commission the identity, address, threat file, security plan, protected personal information, or case-specific investigative information of any covered person, except to the minimum extent necessary to investigate suspected fraud in the expenditure of Federal funds and subject to appropriate confidentiality protections.

SEC. 1011. FISCAL REPORTING, AUDIT, AND RECOVERY.

(a) Limited reporting.

A State receiving a payment shall report annually only—

1. amounts received, obligated, expended, and unobligated;
2. the State's unobligated Federal balance and reserve threshold;

3. any automatic carryover adjustment applied or anticipated under section 1006(e);
4. amounts distributed to local governments;
5. expenditures by the categories listed in section 1006; and
6. material findings of fraud or misuse.

(b) Audit scope.

An audit under this title shall be limited to whether funds were expended for a purpose authorized by section 1006, whether a certification under section 1007 was materially false, and whether the unobligated Federal balance and reserve threshold were calculated according to section 1006.

(c) Recovery.

The United States may recover only amounts obtained by material fraud, expended outside section 1006, or required to be returned under section 1007(e). Recovery may not be based on disagreement with a State's election policy, protective judgment, enforcement priority, or method of compliance.

(d) No cross-program offset.

Amounts recoverable under this section may not be collected by withholding or offsetting unrelated Federal assistance.

SEC. 1012. EXPEDITED JUDICIAL REVIEW.

(a) Cause of action.

A State aggrieved by a denial, withholding, delay, reduction, or recovery action under this title may bring a civil action in the United States Court of Appeals for the District of Columbia Circuit or the circuit in which the State capital is located.

(b) Expedited consideration.

The court shall expedite the action to the greatest practicable extent.

(c) Standard of review.

The court shall review de novo all questions of law and statutory eligibility. The Commission bears the burden of identifying the specific unmet statutory requirement or unauthorized expenditure.

(d) Relief.

The court may order payment, prohibit an unlawful condition, set aside an unlawful withholding or recovery, and grant other appropriate declaratory or injunctive relief.

SEC. 1013. RELATION TO FEDERAL CRIMINAL LAW.

Nothing in this title expands or limits Federal criminal jurisdiction. Federal investigation and prosecution of independently defined Federal offenses shall remain separate from payment administration under this title and may not be used to supervise State election administration.

SEC. 1014. AUTHORIZATION OF APPROPRIATIONS.

There are authorized to be appropriated such sums as may be necessary for fiscal year 2027 and each succeeding fiscal year to carry out this title.

No amount appropriated under this section may be transferred to another Federal election program or used for a purpose other than this title.

SEC. 1015. SEVERABILITY.

If any provision of this title or its application is held invalid, the remainder of the title and its application to other persons or circumstances shall not be affected.

SEC. 3. CLERICAL AMENDMENTS.

The table of contents of the Help America Vote Act of 2002 is amended by adding at the end the following:

"TITLE X—ELECTION PERSONNEL PROTECTION PAYMENTS
"Sec. 1001. Purposes.
"Sec. 1002. Definitions.
"Sec. 1003. Voluntary formula payments.
"Sec. 1004. Sole substantive eligibility condition; qualifying State law.
"Sec. 1005. Allotment formula.

“Sec. 1006. Permitted uses; carryover; balance adjustment.
“Sec. 1007. State certification.
“Sec. 1008. Ministerial review and automatic qualification.
“Sec. 1009. Prohibition on additional conditions, waivers, and discretionary scoring.
“Sec. 1010. Federal noninterference and jurisdictional firewall.
“Sec. 1011. Fiscal reporting, audit, and recovery.
“Sec. 1012. Expedited judicial review.
“Sec. 1013. Relation to Federal criminal law.
“Sec. 1014. Authorization of appropriations.
“Sec. 1015. Severability.”

Budgetary Impact Statement

Budget authority is likely required; no dollar estimate is assigned pending source-backed cost data.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This is a first working draft. Final codification placement and section numbering should be conformed to the current structure of HAVA and the Office of the Law Revision Counsel’s classification practices.
- HAVA presently contains Titles I through IX; this draft therefore adds a new Title X rather than conflicting with the existing Title IV enforcement provisions.
- The title is intentionally self-contained and does not amend existing HAVA voting-system requirements, State-plan provisions, or complaint procedures.
- The draft creates a new dedicated funding stream; no existing HAVA, highway, justice, homeland-security, or other funds are placed at risk.
- The formula is objective and noncompetitive. The specific base percentage, population methodology, reserve threshold, and balance-adjustment mechanics remain provisional and require fiscal modeling.
- The draft prohibits a federally required State match while preserving voluntary State and local supplementation.
- Unobligated Federal balances remain available until expended while the State remains eligible, subject to a nondiscretionary soft cap that reduces future payments when balances exceed the statutory reserve threshold.
- The EAC’s role is ministerial and fiscal. The bill denies substantive rulemaking, discretionary scoring, waiver, plan-approval, and election-policy authority.
- Section 1004 is designed to correspond to the Model State Election Personnel Protection and Continuity Act. The federal minimums should be rechecked against every later revision of the model State act.
- The judicial-review provision should be reviewed for sovereign-standing, venue, timing, and Administrative Procedure Act interaction.
- The authorization level, administrative-cost cap, territorial formula, and treatment of the District of Columbia and Commonwealths require separate fiscal and statutory review.
- The bill should be reviewed for Appointments Clause, nondelegation, Spending Clause, anti-commandeering, First Amendment, due-process, and federalism concerns before being treated as final legislative text.

Source Notes

- Source review should include the Help America Vote Act of 2002, classified in 52 U.S.C. chapter 209, and the Election Assistance Commission’s HAVA overview.

ELEC-004 — Federal Election Proceedings Integrity Act

A BILL

To establish an Anti-SLAPP-style special screening mechanism, discovery control, sensitive-material protection, and later-discovered improper-purpose sanctions for certain election proceedings in federal court, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Federal Election Proceedings Integrity Act.**”

SEC. 2. PURPOSES.

(a) Anti-SLAPP-style adaptation.

This Act adapts the procedural logic of Anti-SLAPP laws to election proceedings in federal court. Anti-SLAPP laws recognize that litigation process can itself be used abusively to impose cost, delay, discovery burdens, reputational harm, or coercive pressure before a court reaches the merits. This Act applies that logic to election proceedings that seek election-disruptive relief or access to sensitive election material without an early particularized showing.

(b) Purposes.

The purposes of this Act are to—

1. preserve access to good-faith election challenges and lawful election review;
2. prevent federal courts from being used to delay certification, manufacture uncertainty, harass election personnel, or obtain unauthorized access to sensitive election materials without an early particularized showing;
3. protect statutory election deadlines, ballot secrecy, voter privacy, chain of custody, voting-system security, and election finality;
4. distinguish ordinary citizen reporting and authorized recount or contest procedures from election proceedings seeking coercive or disruptive relief; and
5. provide sanctions where later-discovered evidence shows that an election proceeding was materially connected to a coordinated improper scheme.

SEC. 3. DEFINITIONS.

In this Act:

1. **Covered election proceeding** means a civil action, motion, petition, application, subpoena, discovery demand, inspection demand, audit demand, or request for emergency relief filed in or issued by a federal court in relation to an election involving a federal office, if the proceeding seeks or would foreseeably cause election-disruptive relief.
2. **Election-disruptive relief** means relief that would delay, enjoin, alter, decertify, nullify, or otherwise disturb voter eligibility lists, ballot preparation, voting procedures, counting, tabulation, auditing, recounting, canvassing, certification, appointment of presidential electors, transmission of election returns, or another statutory election deadline.
3. **Sensitive election material** means ballots, ballot images, voter-identifiable data, election-management-system data, voting-system source code, tabulator or scanner data, security logs, chain-of-custody records, passwords, keys, security procedures, facility plans, or other election material whose disclosure, inspection, copying, or transfer may impair ballot secrecy, voter privacy, election security, or chain of custody.
4. **Special screening motion** means a motion under section 5 to dismiss, narrow, stay, condition, or otherwise control a covered election proceeding.
5. **Improper purpose** includes delay, harassment, knowingly false factual presentation, reckless disregard of contrary evidence, unauthorized access to sensitive election material, creation of a false predicate for disrupting certification or elector appointment, or other bad-faith use of federal judicial process.
6. **Good-faith report** means a report of suspected election irregularity made to an election official, law-enforcement agency, prosecutor, candidate, political party, court, or other body authorized by law to receive such information, where the report does not itself seek election-disruptive relief or access to sensitive election material.

SEC. 4. SCOPE; PRESERVED PROCEEDINGS.

(a) Scope.

This Act applies only to covered election proceedings in federal court.

(b) Preserved proceedings and activity.

Nothing in this Act limits—

1. a good-faith report;
2. a ballot-specific voter remedy;
3. a recount, audit, or contest conducted under state law without a request for federal election-disruptive relief;
4. ordinary public-records requests subject to applicable privacy, security, and election-material protections;
5. federal criminal investigation or prosecution; or
6. the authority of a court to provide relief for a proven constitutional or statutory violation.

(c) Relief-based trigger.

This Act applies according to the relief sought or reasonably foreseeable procedural effect of the proceeding, not solely according to the identity of the filer.

(d) Specific federal statutory procedure.

This Act is a specific federal statutory procedure governing covered election proceedings in federal court. It shall operate alongside the Federal Rules of Civil Procedure where possible and shall control only to the extent of any inconsistency within its defined scope.

SEC. 5. SPECIAL MOTION TO SCREEN COVERED ELECTION PROCEEDING.

(a) Motion authorized.

A party, election official, governmental entity, affected candidate, affected voter, or custodian of sensitive election material may file a special screening motion in a covered election proceeding.

(b) Pre-election timing limitation.

A special screening motion may not be filed with respect to a future election scheduled to occur more than 180 days after the date of the motion, unless the motion is directed to a request for immediate access to sensitive election material or another present risk to ballot secrecy, voter privacy, chain of custody, or election security.

(c) No post-election cutoff.

No fixed post-election time limit applies to a special screening motion. After the election occurs, a special screening motion may be filed in any covered election proceeding that seeks or materially relates to election-disruptive relief, counting, tabulation, auditing, recounting, canvassing, certification, elector appointment, election contest, validity of the election result, or access to sensitive election material.

(d) Time for filing.

Subject to subsections (b) and (c), a special screening motion shall be filed as soon as practicable. A court may permit later filing for good cause or where the election-disruptive character of the proceeding becomes apparent after filing.

(e) Required early showing.

Upon filing of a special screening motion, the party seeking election-disruptive relief or access to sensitive election material shall make a prima facie showing of legal authority, timeliness, particularized material facts, admissible evidence or a verified factual proffer, materiality, remedy fit, necessity of any intrusive process or sensitive-material access, and absence of improper purpose.

(f) Court action.

If the required showing is not made, the court shall dismiss, deny, narrow, stay, condition, or otherwise control the proceeding or request to the extent necessary to prevent election-disruptive relief, unauthorized access to sensitive election material, or abuse of judicial process.

SEC. 6. AUTOMATIC STAY OF INTRUSIVE PROCESS.

(a) Stay.

Upon filing of a special screening motion, discovery, subpoenas, inspections, audits, forensic access, equipment access, ballot access, source-code access, and access to sensitive election material shall be stayed until the court resolves the motion.

(b) Narrow exception.

The court may authorize limited discovery or inspection before resolving the motion only upon a finding that the discovery or inspection is narrowly tailored, necessary to test a specific colorable and material claim, and subject to adequate protection for ballot secrecy, voter privacy, chain of custody, and election security.

SEC. 7. EMERGENCY RELIEF FINDINGS.

A court may not issue a temporary restraining order, preliminary injunction, stay, impoundment order, certification delay, elector-appointment delay, extraordinary audit order, or other election-disruptive relief unless the court makes written findings that the movant is substantially likely to succeed on a legally authorized claim, the alleged defect is material, irreparable injury is not primarily caused by the movant's delay, no narrower lawful remedy is adequate, the relief is compatible with applicable federal election deadlines or necessary to remedy a proven violation of federal law, and the relief will not unnecessarily impair voters, election personnel, ballot secrecy, voter privacy, chain of custody, or election security.

SEC. 8. SENSITIVE ELECTION MATERIAL PROTECTION.

A court authorizing access to sensitive election material shall enter a protective order that limits access to persons with a demonstrated need, prohibits unauthorized disclosure, preserves ballot secrecy and chain of custody, prevents disclosure of source code, credentials, security logs, keys, facility plans, or exploitable security information except under secure conditions, requires secure storage and return or destruction of copies, and imposes sanctions for violation.

SEC. 9. FEES, COSTS, AND SANCTIONS AT SCREENING OR DISPOSITION.

(a) No automatic penalty for losing.

A party may not be sanctioned under this Act solely because an election claim, motion, petition, or request is denied.

(b) Sanctions authorized.

The court may award reasonable attorney's fees, costs, public costs, or other appropriate sanctions if it finds that a filing, request, subpoena, discovery demand, or emergency-relief request was frivolous, knowingly unsupported, presented for improper purpose, materially based on false factual allegations, legally foreclosed by binding authority, maintained after a defect was identified, or used to harass, delay, or obtain unauthorized access to sensitive election material.

(c) Additional authority preserved.

This Act supplements and does not limit Rule 11 of the Federal Rules of Civil Procedure, 28 U.S.C. § 1927, contempt authority, disciplinary referrals, inherent judicial power, or any other sanction authority.

SEC. 10. LATER-DISCOVERED IMPROPER-PURPOSE SANCTIONS.

(a) Independent post-disposition motion.

A motion under this section is an independent post-disposition motion for sanctions and ancillary relief. The motion may be filed whether or not a special screening motion under section 5 was previously filed, granted, denied, withdrawn, or resolved on other grounds.

(b) Ancillary jurisdiction after termination.

The court retains ancillary jurisdiction to resolve a motion under this section after dismissal, remand, voluntary dismissal, settlement, denial of emergency relief, final judgment, or other termination of the covered election proceeding.

(c) Time for motion.

Within one year after final disposition of a covered election proceeding, or within 180 days after discovery of material evidence of improper purpose, whichever is later, a party, governmental entity, election official, affected candidate, affected voter, or custodian of sensitive election material may move for sanctions under this section.

(d) Standard.

The court may impose sanctions if clear and convincing evidence shows that the proceeding, filing, subpoena, discovery request, inspection demand, audit demand, or request for emergency relief was materially presented, maintained, coordinated, or used for an improper purpose.

(e) Relevant evidence.

Relevant evidence may include communications, funding arrangements, concealed coordination, inconsistent public and court representations, knowingly false factual assertions, fundraising representations, links to certification delay, links to elector-appointment disruption, or efforts to create a false predicate for governmental action.

(f) Relief.

Sanctions may include attorney's fees, public costs, restitution for election-administration expenses, referral to disciplinary authorities, civil penalties where authorized by law, restrictions on future emergency election filings absent leave of court, protective orders, and referral to prosecuting authorities where criminal conduct may be implicated.

(g) Due process.

No sanctions may be imposed under this section without notice, an opportunity to respond, and an evidentiary hearing where material facts are disputed.

SEC. 11. EXPEDITED APPEAL.

An appeal from an order granting or denying election-disruptive relief, denying a special screening motion, authorizing access to sensitive election material, or imposing sanctions under this Act shall be expedited to the greatest practicable extent.

SEC. 12. RULES OF CONSTRUCTION.

Nothing in this Act shall be construed to prohibit a good-faith election challenge, alter the substantive elements of a federal claim, create federal jurisdiction where jurisdiction is otherwise absent, require a state court to adopt this Act, prevent a state from enacting a parallel or more protective state procedure, or limit lawful criminal investigation or prosecution. This Act shall not be construed to require dismissal or sanctions solely because a party loses an election claim, advances a nonfrivolous argument for changing law, or seeks relief for a proven constitutional or statutory violation.

SEC. 13. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This draft regulates federal-court procedure and relief in election proceedings; it does not attempt to commandeer state courts.
- The proposal is Anti-SLAPP-style: it adapts early screening, discovery stay, burden clarification, fee-shifting, and sanctions to election-disruptive proceedings.
- The special motion is motion-invoked, not automatic.
- A pre-election timing bar prevents the motion from being filed for elections more than 180 days away, except where immediate sensitive-material access or a present security/privacy risk is at issue.
- The draft imposes no fixed post-election cutoff; post-election availability depends on functional relation to the election result, election administration, or sensitive election material.
- Section 10 is expressly independent of the special screening motion and survives termination of the underlying proceeding.
- Section 4(d) responds to *Berk v. Choy*, 607 U.S. ____ (2026), by making clear that the screening mechanism is intended as a congressional federal-court procedure, not as a court-created pleading gloss or state-law affidavit screen displaced by Rules 8 and 12. A later legislative-counsel pass should decide whether to codify this Act in title 28.
- The July 3, 2026 ELEC-004 boundary cleanup did not expand this draft to regulate federal criminal search warrants, grand-jury process, law-enforcement interviews, or ordinary federal criminal investigations. Section 4(b)(5) remains intentional. Federal criminal investigative pressure on election-related civic organizations, election officials, ballots, voter data, or voting infrastructure is now treated as an ELEC-014 drafting question requiring Fourth Amendment, Rule 41, grand-jury, DOJ-politicization, voting-rights, and election-chilling review.

Source Notes

- The draft should be reviewed for Rules Enabling Act, Article III, First Amendment, Petition Clause, Elections Clause, Article II, Electoral Count Reform Act, federal jurisdiction, and separation-of-powers issues. Current procedure-authority sources include *Berk v. Choy*, 28 U.S.C. § 2072), 28 U.S.C. § 2074, and the official Federal Rules of Civil Procedure.
- Source review should include Rule 11 and Rule 26(c) in the official Federal Rules of Civil Procedure, 28 U.S.C. § 1927, and Petition Clause cases distinguishing baseless litigation from reasonably based but unsuccessful litigation, including *Bill Johnson's Restaurants, Inc. v. NLRB* and *BE&K Construction Co. v. NLRB*.
- The Ohio Organizing Collaborative FBI-search source leads should be treated as ELEC-014 source-development material, not as direct support for this bill's current federal-court screening mechanism.

ELEC-005 — Presidential Result Transmission Integrity Amendments

A BILL

To amend chapter 1 of title 3, United States Code, to protect the integrity of official presidential-election result-transmission documents submitted to federal recipients and used in the recognition, preservation, or counting of presidential-election results, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Presidential Result Transmission Integrity Amendments.**”

SEC. 2. FALSE OR UNAUTHORIZED PRESIDENTIAL RESULT-TRANSMISSION DOCUMENTS.

Chapter 1 of title 3, United States Code, is amended by inserting after section 12 the following:

§ 12A. False or unauthorized presidential result-transmission documents

(a) *Definitions.*

In this section:

1. **Federal recipient** means Congress, either House of Congress, the President of the Senate, the Vice President acting in the capacity of President of the Senate, the Archivist of the United States, the National Archives and Records Administration, a federal court, a federal officer, a federal employee, or any person officially receiving, preserving, opening, tabulating, adjudicating, counting, recognizing, or transmitting presidential-election result documents under federal law.
2. **Presidential result-transmission document** means a certificate of ascertainment, certificate of vote, elector appointment document, elector-vote document, presidential-election return, official presidential result certificate, transmittal document, or any paper, record, or electronic communication that purports to identify, appoint, certify, transmit, cast, record, authenticate, or report official presidential-election results, presidential-electors status, or presidential-electors votes for federal receipt, preservation, recognition, or counting.
3. **Presidential-electors document** means a presidential result-transmission document that purports to identify, appoint, certify, transmit, cast, record, or authenticate the votes or status of presidential electors under the Electoral College system.
4. **Unauthorized presidential result-transmission document** means a presidential result-transmission document that falsely purports to have been issued, authorized, certified, transmitted, or approved by a state official, state entity, court, elector, result-certifying authority, or federal recipient; falsely represents presidential-election results, presidential-electors appointment, or presidential-electors votes; bears or simulates a state seal, official attestation, certification, signature, authorization, or legal status without lawful authority; is transmitted or presented as operative when no lawful certificate, court order, or state or federal process has made it operative; or is materially misleading as to its legal effect, source, authority, or operative status.
5. **Contingent or disputed-result document** means a presidential result-transmission document prepared solely to preserve a claim in a pending recount, contest, litigation, or other lawful proceeding, and that conspicuously states that it is conditional, nonoperative, and without legal effect unless and until a court or lawful authority determines that the results, electors, or votes identified in the document are legally operative.
6. **Knowingly** means that the person is aware of the factual circumstances making the document unauthorized, false, fabricated, materially misleading, or nonoperative. Knowledge may be proved by circumstantial evidence.
7. **Material** means capable of influencing, obstructing, delaying, confusing, or impairing the receipt, preservation, authentication, opening, tabulation, adjudication, counting, recognition, or public understanding of presidential result-transmission documents in a federal channel.

(b) *Federal offense.*

It shall be unlawful for any person knowingly to transmit, submit, file, present, deliver, cause to be delivered, or use an unauthorized presidential result-transmission document—

1. to or before a federal recipient;
2. for inclusion in, consideration by, or preservation for a federal presidential-result recognition or electoral-count process;
3. for the purpose of influencing, obstructing, delaying, confusing, or impairing a proceeding under this chapter;
4. for the purpose of causing Congress, either House of Congress, the President of the Senate, the Archivist, a federal court, or any federal officer or employee to treat the document as legally operative; or

5. in a matter within the jurisdiction of the legislative, executive, or judicial branch of the Government of the United States.

(c) Aggravated offense.

A person commits an aggravated offense if the person violates subsection (b) and acts as an organizer, director, funder, legal architect, or principal coordinator; uses or causes use of a counterfeit, simulated, unauthorized, or materially misleading state seal, official signature, attestation, or certification; transmits the document to more than one federal recipient; coordinates the document's use with an effort to delay certification, obstruct recognition or counting of presidential-election results, pressure a federal official, or induce Congress to recognize or count results, electors, or votes not authorized by law; conceals material communications, funding, legal instructions, or coordination concerning the document; causes material public cost, security cost, delay, or administrative disruption; or acts after receiving notice from a state or federal official that the document is unauthorized or nonoperative.

(d) Attempt and conspiracy.

Any person who attempts or conspires to commit an offense under this section shall be punished in the same manner as a completed offense.

(e) Safe harbor for lawful contingent or disputed-result activity.

Subsection (b) does not prohibit preparation of a contingent or disputed-result document if a recount, election contest, judicial proceeding, or other lawful proceeding concerning presidential-election results, appointment of presidential electors, or presidential-electors votes is pending or reasonably imminent; the document is conspicuously labeled on each page as **“CONTINGENT — NOT OPERATIVE UNLESS AUTHORIZED BY FINAL COURT ORDER OR LAWFUL CERTIFICATION”** or substantially equivalent language; the document does not state or imply that the identified results, electors, or votes are presently operative; the document does not bear or simulate a state seal, official certification, official attestation, or public-office approval unless lawfully authorized; the document is not transmitted to a federal recipient as an operative certificate or result; and any transmission to a court, state official, federal recipient, party, candidate, or counsel includes a cover notice stating that the document is conditional, nonoperative, and submitted only to preserve a legal position pending final lawful determination.

(f) Loss of safe harbor.

The safe harbor under subsection (e) does not apply if a person knowingly transmits, uses, or describes the document as presently operative; conceals the contingent or disputed-result character of the document; submits the document to a federal recipient without the required cover notice; uses the document to induce delay, obstruction, or rejection of the lawful presidential result-recognition process; falsely represents that a court, state official, state entity, result-certifying authority, or federal authority has authorized the document; or continues to use or transmit the document after the relevant contest, recount, litigation, or proceeding has been finally resolved against the claimed result, slate, or vote.

(g) Federal recipient duties.

A federal recipient who receives a presidential result-transmission document that appears unauthorized, conflicting, nonoperative, or materially misleading shall, consistent with applicable law, preserve the document, mark or log the document as disputed or unauthorized pending verification, avoid treating the document as legally operative unless authorized under this chapter or other applicable federal law, refer apparent criminal conduct to the Department of Justice or other appropriate authority, and notify the Archivist and any other federal recipient reasonably likely to receive or rely upon the document.

(h) Civil enforcement by the United States.

The Attorney General may bring a civil action in the United States District Court for the District of Columbia, or in the federal district where the document was transmitted, received, created, or used, to obtain declaratory relief, injunctive relief, corrective notice to federal recipients, preservation of documents and communications, restitution or reimbursement of public costs, civil penalties authorized by this section, and other equitable relief necessary to protect the federal presidential result-transmission process.

(i) Expedited review.

Any action under subsection (h) shall be advanced on the docket and expedited to the greatest practicable extent, consistent with the deadlines established by this chapter or other applicable federal presidential-election law.

(j) Penalties.

A person who violates subsection (b) shall be fined under title 18, imprisoned for not more than five years, or both. A person who violates subsection (c) shall be fined under title 18, imprisoned for not more than ten years, or both.

(k) Civil penalties and disqualification.

In a civil action brought by the United States, a court may impose a civil penalty proportionate to the seriousness of the violation, the person's role, the degree of knowing falsity, the number of recipients, public costs caused, and risk posed to the federal presidential result-transmission process. Upon conviction under this section, or upon clear and convincing evidence in a civil action under subsection (h), a court may disqualify the person from serving in a federal presidential result-transmission role created by federal law, including service as a presidential elector while the Electoral College remains in force, for a period not exceeding ten years if such relief is necessary to protect the integrity of the federal presidential result-transmission process.

(l) Relation to existing law.

This section supplements and does not limit sections 371, 1001, or 1512 of title 18, or any other federal or state criminal, civil, disciplinary, or election-law remedy.

(m) No preemption of state process.

Nothing in this section shall be construed to regulate the manner in which a state appoints presidential electors, determines presidential-election results, conducts a recount or contest, canvasses returns, certifies results, or resolves state-law presidential-election disputes before transmission to a federal recipient; prohibit a state from imposing additional civil, criminal, administrative, or election-law remedies; limit a court-ordered revised certificate or result determination; prohibit lawful advocacy, litigation, petitioning, or political speech; or authorize any federal official to choose among competing results, slates, or votes except as provided by this chapter or other applicable federal law.

(n) First Amendment rule of construction.

This section shall not be construed to criminalize political advocacy, public argument, litigation positions, lobbying, petitioning, commentary, legal analysis, or reporting unless the conduct includes knowing transmission, submission, filing, presentation, delivery, or use of an unauthorized presidential result-transmission document in a federal channel as prohibited by subsection (b).

SEC. 3. CLERICAL AMENDMENT.

The table of sections for chapter 1 of title 3, United States Code, is amended by inserting after the item relating to section 12 the following:

“12A. False or unauthorized presidential result-transmission documents.”

SEC. 4. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This draft is a targeted amendment to Title 3 and is drafted broadly enough to preserve the document-integrity principle if the Electoral College is replaced by another federal presidential result-transmission mechanism.
- The statute attaches when a presidential result-transmission document enters, or is used for, a federal receipt, preservation, recognition, or counting channel.
- Presidential-electoral certificates remain covered as the current Electoral College implementation, but the statute is not limited to electoral certificates as a conceptual matter.
- The safe harbor is essential to distinguish lawful contingent legal-preservation activity from false present-tense certification.

Source Notes

- The statute should be reviewed against Article II, the Twelfth Amendment, the Necessary and Proper Clause, the First Amendment, due process vagueness limits, federalism limits, 18 U.S.C. § 371, 18 U.S.C. § 1001, 18 U.S.C. § 1512, 3 U.S.C. § 5, 3 U.S.C. § 11, 3 U.S.C. § 12, 3 U.S.C. § 15, the Electoral Count Reform Act, and any proposed Electoral College replacement mechanism.

ELEC-006 — Presidential Transition Continuity and Automaticity Act

A BILL

To amend the Presidential Transition Act of 1963 to preserve ordinary cooperative presidential-transition norms while establishing automatic continuity backstops, transition-agreement deadlines, agency-cooperation requirements, public delay notices, and expedited remedies for missed statutory transition duties, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Presidential Transition Continuity and Automaticity Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to—

1. preserve the historically successful norm-based model of cooperative presidential transition;
2. prevent transition readiness from depending solely on concession, discretionary recognition, congressional pressure, or political forbearance;
3. provide narrow statutory backstops for known transition failure points;
4. ensure timely nonclassified transition planning, agency coordination, ethics compliance, security-vetting arrangements, and continuity preparation;
5. distinguish administrative transition preparedness from legal recognition of election victory;
6. preserve the ability of multiple apparent successful candidates to receive appropriate transition support when the presidential election remains genuinely unresolved;
7. impose reciprocal duties on federal agencies and transition entities; and
8. provide expedited remedies for concrete missed statutory duties without judicializing ordinary cooperative transition practice.

SEC. 3. DEFINITIONS.

The Presidential Transition Act of 1963 is amended by adding the following definitions:

(a) Apparent successful candidate.

The term “**apparent successful candidate**” means a candidate for President or Vice President who is entitled to transition support under the Presidential Transition Act of 1963, as amended, including where transition support is provided to more than one candidate because the result remains genuinely unresolved.

(b) Covered transition entity.

The term “**covered transition entity**” means a presidential or vice-presidential transition organization, committee, nonprofit entity, campaign-related transition entity, or other entity authorized by a candidate to receive transition services, access, information, funding, or agency cooperation under federal transition law.

(c) Required transition agreement.

The term “**required transition agreement**” means a memorandum of understanding, ethics plan, information-security agreement, donor-disclosure agreement, funding agreement, agency-access agreement, background-check agreement, security-clearance agreement, or other agreement required by law, regulation, or written transition guidance as a condition of receiving a particular category of transition access, information, service, funding, or agency cooperation.

(d) Transition readiness access.

The term “**transition readiness access**” means nonclassified transition planning support, agency points of contact, public and nonpublic briefing materials that do not contain classified or restricted sensitive information, office and logistical support, ethics guidance, personnel-vetting coordination, security-clearance process coordination, and other support necessary to prepare for a lawful transfer of executive power.

(e) Sensitive transition access.

The term “**sensitive transition access**” means access to classified information, controlled unclassified information, law-enforcement-sensitive information, intelligence information, protected personnel information, cybersecurity-sensitive information, national-security operational information, or other material that by law or agency rule requires a security, ethics, confidentiality, or information-protection agreement.

(f) Missed statutory transition duty.

The term “**missed statutory transition duty**” means failure by the Administrator of General Services, a federal agency, an agency head, or a covered transition entity to perform a nondiscretionary duty imposed by this Act or by the Presidential Transition Act of 1963, as amended.

SEC. 4. NORM-PRESERVING RULE OF CONSTRUCTION.

Nothing in this Act shall be construed to prevent, delay, narrow, or discourage ordinary cooperative transition practices occurring earlier, more flexibly, or more smoothly than the minimum statutory requirements established by this Act.

The statutory defaults established by this Act are backstops. They apply where ordinary transition cooperation, timely agreement execution, or agency coordination fails.

SEC. 5. NO LEGAL RECOGNITION OF ELECTION VICTORY.

Provision of transition readiness access, preliminary transition support, multiple-candidate transition support, agency coordination, or briefing materials under this Act does not constitute—

1. legal recognition that a candidate has won the presidential election;
2. certification of election results;
3. concession by any candidate;
4. adjudication of any election contest;
5. resolution of any recount, certification, elector, or result-transmission dispute; or
6. authority to impair any lawful election contest, recount, certification process, or judicial proceeding.

SEC. 6. AUTOMATIC PRE-ELECTION PLANNING ACCESS.

(a) Access required.

Beginning not later than the first business day after the date on which a candidate becomes a major-party nominee for President, or otherwise satisfies objective eligibility criteria established by the Administrator by rule, the Administrator and each federal agency shall provide transition readiness access sufficient to permit basic continuity planning.

(b) Content.

Pre-election planning access shall include—

1. agency transition points of contact;
2. general organizational charts;
3. descriptions of statutory missions;
4. lists of Senate-confirmed positions and principal noncareer positions;
5. unclassified continuity and management materials;
6. ethics and financial-disclosure guidance;
7. security-clearance process guidance;
8. deadlines for required transition agreements; and
9. standard forms necessary to execute required transition agreements.

(c) No classified access absent compliance.

Nothing in this section requires access to classified or sensitive transition information before execution of required agreements and satisfaction of applicable law.

SEC. 7. AUTOMATIC POST-ELECTION INTERIM ACCESS.

(a) Interim access.

Beginning on the fifth day after the general election for President and Vice President, each apparent successful candidate, and each candidate who remains eligible for multiple-candidate support under existing transition law, shall receive transition readiness access.

(b) Multiple-candidate access.

Where the result remains genuinely unresolved, the Administrator shall provide appropriate transition readiness access to each qualifying candidate without requiring concession by another candidate and without treating such access as recognition of victory.

(c) No discretionary withholding.

The Administrator may not withhold transition readiness access because of political pressure, lack of concession, pending litigation, pending recounts, public controversy, or the Administrator's subjective view of election legitimacy, except as expressly provided by statute.

SEC. 8. EXPANDED ACCESS UPON OBJECTIVE TRIGGERS.

(a) Expanded access.

Expanded transition access shall attach automatically upon the earliest occurrence of any objective trigger specified in subsection (b), subject to required transition agreements and applicable security restrictions.

(b) Objective triggers.

Objective triggers include—

1. state certification or equivalent lawful result-transmission milestones sufficient to make the apparent outcome reasonably certain;
2. expiration of a statutory deadline materially relevant to the presidential result;
3. a final or controlling court order resolving a material dispute;
4. mathematical elimination of any realistic competing candidate based on certified or legally operative results;
5. a concession by all materially competing candidates; or
6. any other objective trigger established by statute or rule that does not require discretionary adjudication of election legitimacy by the Administrator.

(c) Written rule required.

The Administrator shall publish and maintain objective access-trigger rules not later than January 1 of each presidential election year.

SEC. 9. MINISTERIAL ROLE OF THE ADMINISTRATOR.

The Administrator shall administer transition resources, facilities, payments, services, communications, and agency coordination in a ministerial manner.

The Administrator may not adjudicate the legal validity of election claims, determine election legitimacy, resolve disputes over certification, decide contests between competing slates or result documents, or delay transition readiness access based on factors not expressly authorized by statute.

SEC. 10. REQUIRED TRANSITION AGREEMENTS.

(a) Standard agreements.

Not later than January 1 of each presidential election year, the Administrator, in coordination with the Office of Government Ethics, the Department of Justice, the Federal Bureau of Investigation, the Office of the Director of National Intelligence, the Office of Personnel Management, and the White House, shall publish standard required transition agreements.

(b) Deadline for execution.

A covered transition entity shall execute all required transition agreements necessary for the level of access sought not later than—

1. the date established by existing transition law or published transition guidance; or
2. if no date is otherwise specified, 10 days after becoming eligible for the corresponding category of access.

(c) No disabling consequence.

Failure to execute a required transition agreement may not prevent all transition readiness access, prevent ordinary nonclassified planning, or impair the lawful assumption of office by the successful candidate.

(d) Limited consequences.

Failure to execute a required transition agreement may result only in consequences tailored to the missing agreement, including—

1. temporary limitation of sensitive transition access;
2. limitation of classified briefings;
3. limitation of access to protected personnel, intelligence, cybersecurity, law-enforcement, or national-security information;
4. public notice under section 13;
5. notification to relevant congressional committees;

6. notation in agency transition records; and
7. default statutory confidentiality, ethics, and information-security conditions where legally sufficient.

SEC. 11. BACKGROUND CHECK AND SECURITY-CLEARANCE COORDINATION.

(a) Agreement required.

The Department of Justice and the Federal Bureau of Investigation shall make available a standard background-check and security-clearance transition agreement not later than January 1 of each presidential election year.

(b) Transition-entity duty.

A covered transition entity seeking access to classified information, sensitive national-security information, or agency landing-team access requiring vetting shall execute the agreement and submit necessary names and forms by the applicable statutory or published deadline.

(c) Agency duty.

Upon execution of the agreement and receipt of required submissions, the Department of Justice, Federal Bureau of Investigation, Office of Personnel Management, Office of the Director of National Intelligence, and affected agencies shall process transition-related background checks and clearance requests according to published expedited transition procedures.

(d) Consequence of delay.

If a covered transition entity does not timely execute the agreement or provide required submissions, the responsible federal office shall issue a written notice identifying the missing item, access category affected, cure procedure, and expected consequence.

SEC. 12. AGENCY COOPERATION DEADLINES.

(a) Transition points of contact.

Each agency shall designate a senior transition official and transition points of contact not later than September 1 of each presidential election year.

(b) Briefing materials.

Each agency shall prepare nonclassified briefing materials not later than October 1 of each presidential election year.

(c) Access after eligibility.

Once a candidate or covered transition entity becomes eligible for transition readiness access, each agency shall provide initial contact within two business days and schedule an initial transition briefing within five business days, unless a written delay notice is issued under section 13.

(d) Sensitive information.

Sensitive transition access shall be provided only after satisfaction of applicable law, clearance requirements, and required transition agreements.

SEC. 13. WRITTEN DELAY OR DENIAL NOTICES.

(a) Notice required.

Any federal official, agency, or covered transition entity that materially delays, denies, limits, or fails to perform a required transition duty shall issue a written notice.

(b) Contents.

The notice shall identify—

1. the duty at issue;
2. the responsible official or entity;
3. the factual basis for the delay or denial;
4. the legal basis for the delay or denial;
5. the access category affected;
6. the steps required to cure the delay or denial;
7. the deadline for cure; and
8. whether expedited judicial review is available.

(c) Public availability.

Notices under this section shall be publicly available, except that classified, law-enforcement-sensitive, personal-privacy, cybersecurity-sensitive, or national-security-sensitive information shall be redacted or summarized in unclassified form.

SEC. 14. EXPEDITED JUDICIAL REVIEW.

(a) Cause of action.

An apparent successful candidate, covered transition entity, affected agency, agency head, or other person or entity expressly authorized by statute may bring a civil action to compel performance of a missed statutory transition duty.

(b) Venue.

An action under this section may be brought in the United States District Court for the District of Columbia.

(c) Expedition.

The court shall expedite the action to the greatest practicable extent.

(d) Scope of review.

The court may determine whether a nondiscretionary transition duty exists, whether the duty was missed, and what ministerial or declaratory relief is necessary. The court may not adjudicate the ultimate winner of the presidential election except to the extent otherwise authorized by law.

(e) Relief.

The court may order performance of a nondiscretionary duty, require issuance of a written notice, require access consistent with statutory eligibility and security requirements, preserve records, or grant other narrow relief necessary to enforce this Act.

SEC. 15. CONGRESSIONAL OVERSIGHT PRESERVED BUT NOT REQUIRED.

Nothing in this Act limits congressional oversight, subpoenas, hearings, appropriations authority, reporting requirements, or other lawful congressional powers.

Transition access and continuity remedies under this Act do not depend on congressional oversight, committee action, subpoena issuance, appropriations pressure, or public objection by Congress.

SEC. 16. RECORDKEEPING AND REPORTING.

(a) Records.

The Administrator and each agency shall preserve records sufficient to document compliance with this Act, including access determinations, delay notices, executed agreements, agency contacts, briefing dates, and security-vetting submissions.

(b) Post-transition report.

Not later than 180 days after inauguration, the Administrator shall submit to Congress and publish a report describing compliance with this Act, including missed statutory duties, delay notices, cured deficiencies, and recommendations for technical improvements.

(c) Protection of sensitive information.

The report shall not disclose classified, law-enforcement-sensitive, personal-privacy, cybersecurity-sensitive, or national-security-sensitive information.

SEC. 17. RELATION TO OTHER LAW.

Nothing in this Act shall be construed to—

1. alter the date of inauguration;
2. alter presidential-election certification or counting procedures;
3. alter the Electoral Count Reform Act or title 3 procedures except as expressly provided;
4. authorize a federal official to adjudicate the winner of the presidential election;
5. require disclosure of classified information to a person not legally entitled to receive it;
6. waive ethics, financial-disclosure, donor-disclosure, background-check, clearance, or information-security requirements;
7. limit ordinary cooperative transition practices; or
8. impair lawful election contests, recounts, certifications, or judicial proceedings.

SEC. 18. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This draft is designed as a targeted amendment to the Presidential Transition Act of 1963.
- The proposal preserves ordinary cooperative transition norms and uses statutory defaults only as backstops.
- Transition access is framed as administrative preparedness, not legal recognition of election victory.
- The draft addresses both government-side obstruction and transition-entity noncompliance.
- The expedited-review provision is limited to concrete missed statutory transition duties and should not invite courts to adjudicate the election winner.
- A later drafting pass should place each amendment into the correct section or subsection of the Presidential Transition Act of 1963 and add conforming amendments to existing terminology where needed.
- The draft should be reviewed against the Presidential Transition Act of 1963, the 2022 transition amendments, appropriations law, classified-information rules, background-check authorities, ethics laws, and agency transition-practice guidance.

Source Notes

- Source review should include the Presidential Transition Act of 1963, as amended, in the GPO statutory compilation, including apparent-successful-candidate services, multiple-candidate support, transition memoranda of understanding, public ethics-plan requirements, background-investigation and security-clearance provisions, and public statement requirements.
- Source review should also include the Electoral Count Reform and Presidential Transition Improvement Act of 2022 provisions reflected in 3 U.S.C. § 5.

ELEC-007 — Election Administration Federal-Force Noninterference Act

A BILL

To prohibit federal personnel from participating in election administration, to preserve state and local civilian control over election operations, to permit narrowly limited non-election emergency response near election sites, to protect election materials from federal interference absent specific judicial safeguards, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Election Administration Federal-Force Noninterference Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to—

1. preserve civilian state and local control over election administration;
2. modernize the principle that federal troops, armed federal personnel, and federally directed forces should not be present in a manner that affects elections;
3. distinguish lawful non-election emergency response from prohibited election participation;
4. prevent federal emergency authority, law-enforcement authority, investigative authority, protective authority, or technical-assistance authority from being used as a pretext for federal election supervision;
5. protect voters, election workers, ballots, voting equipment, election records, and result-transmission materials from intimidation or unlawful interference;
6. permit narrowly limited federal assistance only in extraordinary non-election emergencies where state and local capacity is demonstrably inadequate; and
7. require notice, documentation, withdrawal, and judicial safeguards where federal presence or process intersects with election sites or election materials.

SEC. 3. DEFINITIONS.

In this Act:

1. **Covered election site** means a polling place, ballot drop site, voter-registration processing site during an election period, counting center, tabulation center, canvassing site, recount site, audit site, certification site, election office, ballot-storage facility, voting-equipment storage facility, result-transmission site, or any place where ballots, voting equipment, pollbooks, tabulators, memory devices, election records, or presidential result-transmission documents are located, processed, counted, stored, reviewed, certified, or transmitted.
2. **Covered election material** means ballots, ballot images, voting equipment, tabulators, scanners, pollbooks, voter check-in devices, memory devices, removable media, election-management systems, chain-of-custody records, canvass records, certification records, recount records, audit records, election returns, presidential result-transmission documents, and any other record or item necessary to vote, count, tabulate, canvass, recount, audit, certify, preserve, or transmit election results.
3. **Federal personnel** means any officer, employee, agent, contractor, task-force member, military member, National Guard member in federal status, deputized federal officer, or other person acting under federal command, control, direction, funding, or operational authority.
4. **Election-administration function** means any act of administering, supervising, directing, controlling, observing for election-integrity purposes, interrupting, delaying, counting, recounting, canvassing, auditing, certifying, decertifying, validating, invalidating, transporting, seizing, inspecting, accessing, imaging, copying, retaining, or taking custody of any voting process, election proceeding, election decision, or covered election material. The term does not include lawful federal civil-rights monitoring, federal observer activity, or Department of Justice election monitoring authorized by the Voting Rights Act or other federal voting-rights law, provided that the activity is conducted without force, intimidation, direction of election officials, custody of election materials, or participation in an election-administration decision.
5. **Non-election emergency function** means an otherwise lawful law-enforcement, emergency-response, protective, medical, fire, explosives, cybersecurity, disaster-response, or technical-assistance function directed at an extraordinary emergency and not directed at administering, supervising, influencing, or participating in the election.
6. **Extraordinary emergency** means a specific, imminent, and objectively documented non-election emergency involving an active threat to life, serious bodily harm, active violence, credible explosive threat, fire, flood, structural collapse, hazardous-material incident, catastrophic infrastructure failure, or comparable physical emergency that state and local authorities cannot timely and adequately address without narrowly limited federal assistance. The term does not include alleged election fraud, suspected election

irregularities, disputes over voter eligibility, disputes over ballot validity, delays in counting or reporting, certification disputes, poll-watcher or observer disputes, generalized public unrest, generalized concern about election integrity, or a request to inspect, verify, audit, secure, transport, preserve, or take custody of election materials.

7. **State consent** means a written request or written consent from the Governor or another statewide official expressly designated by state law to request federal emergency assistance for election-site safety or election-continuity purposes.

SEC. 4. GENERAL PROHIBITION ON FEDERAL ELECTION-ADMINISTRATION PARTICIPATION.

(a) Prohibition.

Except as expressly provided in this Act, federal personnel may not perform, direct, supervise, control, influence, or participate in any election-administration function.

(b) No emergency conversion.

The existence of an emergency, threat, investigation, protective mission, federal-facility concern, or technical-assistance request shall not convert federal personnel into election administrators and shall not authorize federal personnel to make, influence, delay, or control any election-administration decision.

(c) Appearance of supervision.

Federal personnel may not be deployed, positioned, identified, or used in a manner that reasonably creates the appearance that the federal government is supervising, validating, invalidating, policing, or controlling voting, counting, canvassing, recounting, auditing, certification, or custody of election materials.

SEC. 5. NON-ELECTION EMERGENCY ASSISTANCE EXCEPTION.

(a) Exception.

Federal personnel may perform a non-election emergency function at or near a covered election site only if all requirements of this section are satisfied.

(b) Required predicates.

Before federal personnel may be deployed under this section, there must be—

1. state consent;
2. an extraordinary emergency;
3. a written finding that state and local authorities cannot timely and adequately address the specific emergency without federal assistance;
4. identification of the specific state or local capacity inadequacy requiring federal assistance;
5. a written scope order limiting the location, duration, personnel, mission, permitted actions, prohibited actions, command structure, reporting requirements, and termination trigger; and
6. confirmation that federal personnel will not perform any election-administration function.

(c) Scope limitation.

Federal assistance under this section shall be limited to the least intrusive non-election emergency function necessary to address the specific state-capacity inadequacy identified under subsection (b).

(d) Supportive role only.

Federal personnel deployed under this section may protect life, stabilize the emergency, provide technical assistance, assist in neutral emergency response, or perform other non-election functions within the written scope order. They may not administer, supervise, direct, observe for election-integrity purposes, interrupt, delay, count, recount, canvass, certify, audit, transport, seize, inspect, access, image, copy, retain, or take custody of covered election material or any election process.

(e) Automatic withdrawal.

Federal personnel deployed under this section shall withdraw from the covered election site when the emergency ends, state or local capacity is restored, the written scope order expires, state consent is withdrawn, or a court orders withdrawal, whichever occurs first.

SEC. 6. EXIGENT LIFE-SAFETY FALLBACK.

(a) Limited immediate action.

If prior state consent is impossible because of an imminent threat to life or serious bodily harm, federal personnel may enter or act near a covered election site only to stabilize the emergency and protect life.

(b) No election participation.

Action under this section does not authorize any election-administration function.

(c) Notice and withdrawal.

Within six hours after action under this section begins, the responsible federal official shall provide written notice to the Governor, chief state election official, state attorney general, chief local election official, and United States district court for the district in which the action occurred. Federal personnel shall withdraw unless state consent, a judicial order, or another lawful non-election emergency predicate is obtained.

SEC. 7. ELECTION-MATERIAL ACCESS AND JUDICIAL SAFEGUARDS.

(a) Separate judicial process required.

Federal personnel may not access, inspect, image, copy, transport, seize, retain, or take custody of covered election material unless authorized by a lawful court-issued writ, warrant, subpoena-enforcement order, or other judicial order satisfying this section, except for incidental physical movement necessary to protect life during an exigent emergency under section 6.

(b) Required findings.

A court may authorize access to covered election material only upon specific findings that—

1. there is probable cause or other applicable legal basis for the process sought;
2. the covered election material is specifically identified;
3. the request is not a pretext for election supervision or interference;
4. the action is necessary and cannot be accomplished through a less intrusive alternative;
5. the action will not materially disrupt voting, counting, canvassing, recounting, auditing, certification, or statutory election deadlines unless no alternative is adequate;
6. chain of custody, ballot secrecy, voter privacy, voting-system security, and election-record integrity will be preserved;
7. copying, imaging, inspection, or supervised access is insufficient before physical seizure or removal; and
8. notice has been provided to the chief state election official and chief local election official unless delayed notice is specifically justified by exigent circumstances.

(c) Protective conditions.

Any order under this section shall include conditions governing chain of custody, sealing, copying, imaging, physical custody, access logs, storage, return, nondisclosure of sensitive election-security information, and expedited return or substitution where election administration requires continued use of the material.

(d) No supervisory authority.

A court order under this section authorizes only the specific evidence-preservation or law-enforcement action ordered. It does not authorize federal personnel to supervise, direct, pause, resume, validate, invalidate, count, recount, canvass, audit, certify, or decertify any election process.

(e) Court-process savings clause.

Nothing in this Act prohibits federal personnel from executing a lawful court-issued writ, warrant, subpoena-enforcement order, or other judicial order, provided that execution of the order does not authorize federal personnel to perform an election-administration function except to the limited extent expressly required by the order and consistent with any chain-of-custody, voter-privacy, ballot-secrecy, and election-security safeguards imposed by the issuing court or applicable law.

SEC. 8. PROHIBITED CONDUCT; INCIDENTAL-CONTACT SAFE HARBOR.

(a) Prohibited conduct.

It shall be unlawful for federal personnel or any person acting under color of federal authority to—

1. enter a covered election site for the purpose of supervising, monitoring, influencing, or controlling election administration;
2. visibly patrol, station, or deploy at a covered election site in a manner not authorized by this Act;

3. question voters, poll workers, election officials, observers, or canvassers about election choices, eligibility, vote counting, ballot handling, or certification decisions except pursuant to lawful process and outside active election administration where feasible;
4. direct any election official to stop, start, pause, resume, alter, certify, decertify, count, recount, reject, accept, transport, disclose, or withhold any vote, ballot, record, material, canvass, or certification;
5. use a non-election emergency or investigation as a pretext to observe election administration, access election materials, or influence election decisions;
6. take custody of covered election material except under section 7; or
7. represent, expressly or implicitly, that federal personnel are supervising, validating, invalidating, certifying, decertifying, or controlling the election.

(b) Incidental-contact safe harbor.

No person shall be liable under this Act solely because federal personnel, while acting in good faith and performing an otherwise lawful non-election function, inadvertently or unavoidably encounter, overhear, observe, or have incidental contact with an election process, election personnel, voters, observers, or covered election material, provided that the federal personnel—

1. did not intend to influence, supervise, control, delay, or participate in election administration;
2. did not invoke federal authority to affect an election-administration decision;
3. disengaged from any election-administration matter as soon as practicable;
4. did not access, inspect, image, copy, transport, seize, retain, or take custody of covered election material except as authorized by section 6 or 7;
5. did not disclose or use nonpublic election information obtained through the incidental contact except as required by lawful process or necessary to address the non-election emergency; and
6. documented and reported any material incidental contact to the responsible federal supervisor and, where feasible, the chief state or local election official.

(c) Safe harbor limitations.

The safe harbor in subsection (b) does not apply to intentional, reckless, repeated, pretextual, or avoidable conduct; conduct undertaken to observe or investigate election administration without lawful authority; or conduct that materially affects voting, counting, canvassing, auditing, certification, custody of election materials, or any other election-administration function.

SEC. 9. NOTICE, REPORTING, AND RECORDKEEPING.

(a) Public notice.

Whenever federal personnel are deployed under section 5 or act under section 6, the responsible federal official shall issue public notice as soon as doing so will not materially endanger life, safety, or a legitimate non-election law-enforcement operation.

(b) Contents.

The notice shall identify the covered election site or general location, nature of the emergency, state consent or exigent predicate, state-capacity inadequacy identified, mission scope, participating federal entities, start time, expected duration, and whether any covered election material was affected.

(c) After-action report.

Within 14 days after federal personnel withdraw, the responsible federal official shall provide an after-action report to the Governor, chief state election official, state attorney general, chief local election official, relevant congressional committees, and the public.

(d) Sensitive information.

Classified, law-enforcement-sensitive, cybersecurity-sensitive, personal-privacy, or election-security-sensitive information may be redacted or summarized in unclassified form.

(e) Records preserved.

Federal entities shall preserve deployment orders, scope orders, communications, access logs, body-camera footage where available, incident reports, chain-of-custody records, notices, and after-action reports.

SEC. 10. EXPEDITED JUDICIAL REVIEW.

(a) Cause of action.

A state, Governor, chief state election official, state attorney general, local election official, affected candidate, political party, affected voter, or custodian of covered election material may bring a civil action for declaratory or injunctive relief against violation of this Act.

(b) Venue.

An action under this section may be brought in the United States district court for the district where the covered election site or covered election material is located, or in the United States District Court for the District of Columbia.

(c) Expedition.

The court shall expedite the action to the greatest practicable extent.

(d) Relief.

The court may order withdrawal of federal personnel, prohibit election-administration participation, enforce chain-of-custody safeguards, require return or preservation of covered election material, require notice or reporting, or grant other narrow relief necessary to enforce this Act.

SEC. 11. RELATION TO OTHER LAW.

Nothing in this Act shall be construed to—

1. prohibit otherwise lawful non-election emergency response consistent with this Act;
2. prohibit ordinary state or local law-enforcement election-site safety functions;
3. authorize federal personnel to participate in election administration;
4. limit stricter protections under state law;
5. impair lawful civil-rights enforcement conducted without federal election-administration participation;
6. impair lawful criminal investigation conducted outside active election administration or under the safeguards of this Act;
7. prohibit execution of a lawful court-issued writ, warrant, subpoena-enforcement order, or other judicial order, subject to section 7;
8. prohibit federal personnel from registering to vote, voting, standing in line to vote, assisting family or household members as permitted by ordinary election law, appearing at a polling place in a personal capacity, or engaging in lawful civic activity in the same manner as other citizens, provided that they do not invoke federal authority, act under color of federal office, or perform official duties while doing so;
9. authorize any action prohibited by the Posse Comitatus Act or other federal law;
10. limit 18 U.S.C. § 592 except to provide additional protections; or
11. authorize federal personnel to direct, supervise, or control a state or local election official.

SEC. 12. PERSONAL-CAPACITY VOTING APPEARANCE.

(a) Civilian attire where reasonably practicable.

Federal personnel appearing at a polling place, ballot drop site, voter-registration site, or other voting location solely in a personal capacity shall, where reasonably practicable, appear in civilian attire.

(b) No indicia of federal authority.

Federal personnel appearing in a personal capacity shall not display official insignia, tactical gear, official credentials, marked federal vehicles, visible weapons, or other indicia of federal authority in a manner that would reasonably create the appearance of federal election supervision, intimidation, or official presence.

(c) No denial or invalidation of vote.

Nothing in this section shall be construed to deny, burden, condition, or abridge the right of federal personnel to vote. A violation of this section shall not invalidate the individual's ballot.

SEC. 13. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- The controlling rule is that federal agents may respond to a non-election emergency; they may not become part of the election.

- The emergency exception is not an election-participation exception.
- The extraordinary emergency definition is intentionally limited to concrete non-election emergencies and excludes election-administration disputes, generalized election-integrity concerns, and requests to inspect or secure election materials.
- The incidental-contact safe harbor protects good-faith inadvertent or unavoidable contact, but not intentional, reckless, pretextual, repeated, or election-affecting conduct.
- Federal personnel retain ordinary personal voting rights and lawful personal civic rights, subject to ordinary election law, ethics rules, agency rules, and the prohibition on invoking federal authority.
- Federal personnel should appear in civilian attire when voting in person where reasonably practicable and must not display official indicia in a manner suggesting federal election supervision or intimidation; this rule does not deny the right to vote or invalidate any ballot.
- Lawful court-issued writs, warrants, subpoena-enforcement orders, and other judicial orders remain executable, but they do not authorize election-administration participation beyond the order's express terms and required safeguards.
- State consent is necessary but not sufficient; there must also be a documented state-capacity inadequacy.
- Election-material access requires separate judicial safeguards.
- The civil-rights monitoring carveout is intended to preserve lawful Voting Rights Act observers and Department of Justice election monitoring while preventing federal-force presence or federal control over election administration.

Source Notes

- This draft should be reviewed against 18 U.S.C. § 592, the Posse Comitatus Act, National Guard authorities, federal civil-rights enforcement including Voting Rights Act observer and monitoring authorities, election-crime enforcement, emergency-response law, federalism principles, state emergency-management law, Hatch Act principles, and federal employee voting-rights protections.

ELEC-008 — Federal Election Subversion Accountability Act

A BILL

To amend title 18, United States Code, to establish a narrowly tailored chapter on coordinated federal election-subversion schemes using independently wrongful predicate acts, while preserving lawful litigation, recounts, contests, advocacy, reporting, legal advice, journalism, congressional activity, and good-faith official duties, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Federal Election Subversion Accountability Act.**”

SEC. 2. TITLE 18 AMENDMENT.

(a) **In General.**—Part I of title 18, United States Code, is amended by inserting after chapter 29 the following:

CHAPTER 29A—COORDINATED FEDERAL ELECTION SUBVERSION

§ 618. Purposes.

The purposes of this chapter are to—

1. protect the lawful determination, certification, transmission, counting, recognition, and practical legal effect of federal-election results;
2. create a narrow accountability framework for coordinated federal election-subversion schemes composed of independently wrongful predicate acts;
3. supplement, not replace, existing federal and state criminal, civil, election, professional-responsibility, contempt, and election-contest remedies;
4. preserve lawful litigation, recounts, election contests, congressional procedures, legal advocacy, good-faith official duties, public advocacy, journalism, reporting, whistleblowing, and ordinary campaign activity;
5. recognize that Congress has addressed certain presidential electoral-count and transition vulnerabilities through prior reforms, while preserving accountability for coordinated schemes that exploit multiple channels of federal-election administration;
6. protect federal elections without generally federalizing state and local elections;
7. avoid interference with each House of Congress's constitutional authority to judge the elections, returns, and qualifications of its own Members;
8. provide a limited state-attorney-general backstop where federal enforcement may be conflicted, delayed, or unavailable because the alleged scheme involves the President, White House, Department of Justice leadership, federal agencies, or persons politically aligned with federal executive actors; and
9. ensure that liability attaches only where the statute's coordination, corrupt-purpose, predicate-act, material-connection, safe-harbor, and limiting-instruction requirements are satisfied.

§ 619. Definitions.

In this chapter:

(a) Covered federal election.

The term “**covered federal election**” means an election for President, Vice President, United States Senator, or Representative in Congress, including any primary, general, runoff, special, recount, contest, canvass, certification, result-transmission, presidential-electoral, electoral-count, or transition process connected to such election.

(b) Covered federal-election process.

The term “**covered federal-election process**” means any process relating to a covered federal election, including voting, counting, tabulation, canvassing, recounts, audits, election contests, certification, result transmission, federal-election document transmission, congressional receipt or counting of electoral votes, and presidential-transition access.

(c) Presidential-election process.

For an election for President or Vice President, the term “**covered federal-election process**” includes presidential-electoral appointment, certificates of ascertainment, certificates of vote, presidential result-transmission documents, electoral-vote transmission, congressional electoral-count proceedings, and presidential-transition access and continuity.

(d) Congressional-election caution.

For an election for Senator or Representative in Congress, this chapter does not regulate, control, or displace either House's constitutional authority to judge the elections, returns, and qualifications of its Members. This chapter applies only to independently wrongful predicate conduct materially connected to a coordinated federal election-subversion scheme.

(e) Lawful federal-election result.

The term “**lawful federal-election result**” means a federal-election result, canvass, certification, appointment, certificate, return, recount determination, contest determination, result-transmission document, or related legal determination made, issued, recognized, or required under applicable federal or state law, subject to lawful recounts, contests, judicial proceedings, and statutory review.

(f) Coordinated federal election-subversion scheme.

The term “**coordinated federal election-subversion scheme**” means a course of conduct involving two or more persons who knowingly coordinate, agree, direct, finance, materially assist, or otherwise participate in conduct using independently wrongful predicate acts to corruptly nullify, reverse, obstruct, delay, alter, or procure official disregard of a lawful federal-election result or covered federal-election process.

(g) Predicate act.

The term “**predicate act**” means an act listed in section 621 and committed with the mental state required by this chapter and by the law, rule, order, or duty establishing the wrongful character of the act.

(h) Independently wrongful.

The term “**independently wrongful**” means unlawful, fraudulent, coercive, corrupt, knowingly false, contemptuous, sanctionable after judicial or tribunal finding, or specifically prohibited by federal law, state law, court order, professional rule, election law, or another legally binding duty.

(i) Corruptly.

The term “**corruptly**” means acting with a wrongful purpose to obtain an unlawful benefit, secure official action known to be unauthorized, impair a lawful governmental function, procure official disregard of a lawful federal-election result, or obstruct the lawful effect of a covered federal-election process.

The term does not include good-faith legal advocacy, good-faith factual error, public political advocacy, lawful lobbying, ordinary campaign activity, or pursuit of relief through lawful election procedures.

(j) Material connection.

The term “**material connection**” means a connection capable of furthering, enabling, concealing, financing, legitimizing, pressuring, delaying, obstructing, or giving practical effect to the coordinated federal election-subversion scheme.

(k) Federal channel.

The term “**federal channel**” means a federal proceeding, federal official function, federal agency, federal court, congressional proceeding, presidential result-transmission process, federal-election result-transmission process, federal transition process, or other federal mechanism for receiving, preserving, counting, recognizing, litigating, or giving effect to a covered federal-election result.

(l) Person.

The term “**person**” includes an individual, campaign committee, political committee, organization, corporation, partnership, association, legal entity, public official, former public official, officer, employee, agent, attorney, contractor, or other participant.

(m) Official.

The term “**official**” includes any federal, state, territorial, tribal, or local officer, employee, election official, canvassing official, certification official, law-enforcement official, legislative officer, elector, or person acting under color of law.

§ 620. Offense of coordinated federal election subversion.

(a) Offense.

It shall be unlawful for any person knowingly and corruptly to participate in a coordinated federal election-subversion scheme that—

1. has the specific objective of nullifying, reversing, obstructing, delaying, corruptly altering, or procuring official disregard of a lawful federal-election result or covered federal-election process;
2. involves at least two predicate acts;
3. includes at least one predicate act occurring in or affecting a federal channel, covered federal-election process, or official duty relating to a covered federal election; and
4. has a material connection between the predicate acts and the corrupt objective.

(b) Required mental state.

No person may be liable under this section unless the government proves beyond a reasonable doubt that the person—

1. knew of the coordinated scheme's corrupt objective;
2. knowingly joined, directed, financed, materially assisted, or participated in the scheme;
3. knew, or was willfully blind to the fact, that the predicate acts were independently wrongful; and
4. intended that the conduct materially further, conceal, legitimize, finance, or give practical effect to the corrupt objective.

(c) No liability for association alone.

Mere association with a candidate, campaign, political party, attorney, public official, organization, or participant is insufficient to establish liability.

(d) No liability for speech or belief alone.

No person may be liable under this chapter solely for political speech, public claims, election denial, criticism of election administration, support for a candidate, public advocacy, commentary, legal theory, opinion, lobbying, journalism, academic analysis, or other expressive activity.

§ 621. Predicate acts.

For purposes of this chapter, predicate acts are limited to the following independently wrongful acts:

(a) False federal-election result-transmission documents.

Knowingly creating, executing, transmitting, submitting, filing, presenting, delivering, or using a false or unauthorized federal-election result-transmission document, presidential-electoral document, certificate, return, or related official document in violation of federal or state law.

(b) Coercive intimidation of election personnel.

Knowingly threatening, intimidating, coercing, retaliating against, or attempting to coerce an election official, canvassing official, certification official, electoral, election worker, or covered family member for the purpose of altering, delaying, obstructing, refusing, or procuring official disregard of a lawful election duty.

(c) Corrupt pressure under color of office.

Knowingly using official authority, apparent official authority, governmental position, or access to governmental power to pressure, threaten, induce, or coerce another official to disregard, alter, delay, nullify, decertify, reverse, or refuse to give effect to a lawful federal-election result or duty.

(d) Bribery, extortion, or unlawful inducement.

Offering, soliciting, accepting, promising, or providing anything of value, official action, employment, pardon-related benefit, governmental favor, threat, or other unlawful inducement to affect a covered federal-election process.

(e) Evidence fabrication, alteration, concealment, or destruction.

Knowingly fabricating, altering, concealing, destroying, corruptly withholding, or falsifying evidence, records, ballots, election materials, electronic records, chain-of-custody materials, official returns, certifications, or official communications material to a covered federal-election process.

(f) Knowingly false sworn or official statements.

Knowingly making, causing, procuring, or using a materially false sworn statement, declaration, certification, affidavit, official statement, or submission to a court, legislative body, election official, federal agency, state agency, or other governmental body in furtherance of the coordinated scheme.

(g) Unauthorized access to election materials or systems.

Knowingly accessing, copying, imaging, transmitting, altering, taking custody of, disclosing, or using ballots, voting equipment, tabulators, pollbooks, memory devices, election-management systems, election records, returns, certifications, or result-transmission materials without lawful authority and in furtherance of the coordinated scheme.

(h) Obstruction of a federal electoral proceeding or function.

Knowingly obstructing, corruptly influencing, impeding, or attempting to obstruct or impede a federal proceeding, federal channel, or federal duty concerning a covered federal-election result, result-transmission process, presidential transition, or counting of electoral votes, where such obstruction is independently unlawful under federal law.

(i) Knowing violation of election-material custody safeguards.

Knowingly violating a federal court order, state court order, statutory custody rule, chain-of-custody rule, protective order, or lawful preservation requirement governing covered election material in furtherance of the coordinated scheme.

(j) Knowing violation of transition-obstruction safeguards.

Knowingly violating a statutory duty or court order governing presidential-transition access, agency cooperation, transition agreements, or transition continuity where the violation is materially connected to a coordinated effort to deny practical effect to a lawful presidential-election result.

(k) Abuse of judicial, subpoena, audit, or investigatory process after finding.

Using litigation, subpoena, audit, inspection, investigation, discovery, or administrative process as a predicate act only where a court, tribunal, disciplinary authority, or authorized adjudicative body has found bad faith, material falsity, improper purpose, frivolousness, abuse of process, contempt, sanctionable conduct, or knowing misuse materially connected to the coordinated scheme.

(l) Scheme financing through knowing material falsehood.

Knowingly raising, soliciting, transferring, spending, or retaining funds through materially false representations made in furtherance of the coordinated federal election-subversion scheme.

(m) Conspiracy, attempt, or aiding and abetting.

Attempting, conspiring, aiding, abetting, counseling, commanding, inducing, procuring, financing, or willfully causing any predicate act listed in this section.

§ 622. Safe harbors and protected activity.

(a) Protected activity.

Nothing in this chapter shall be construed to prohibit, punish, chill, or create liability for—

1. good-faith litigation;
2. lawful recounts;
3. lawful election contests;
4. good-faith requests for audits or investigations;
5. public advocacy;
6. lobbying;
7. lawful congressional objections, debate, or proceedings;
8. legal advice;
9. reporting suspected irregularities;
10. whistleblowing;
11. journalism;
12. academic analysis;
13. ordinary campaign activity;
14. contingent preservation of legal claims;
15. good-faith cooperation with investigations;
16. lawful official duties;
17. criticism of election administration;
18. filing a lawsuit that is ultimately unsuccessful;
19. making a legal argument that is rejected; or
20. advocating statutory or constitutional reform.

(b) Good-faith legal representation.

An attorney may not be liable under this chapter solely for representing a client, advancing a nonfrivolous legal claim, preserving a legal argument, advising on lawful options, filing a pleading, communicating with officials, or pursuing lawful recount, contest, appellate, administrative, or congressional procedures.

This subsection does not protect knowingly false evidence, fraudulent documents, bribery, threats, coercion, obstruction, contempt, or conduct found by a court or tribunal to be independently wrongful and materially connected to the coordinated scheme.

(c) Good-faith official duties.

A public official may not be liable under this chapter solely for performing lawful official duties, seeking legal advice, requesting lawful review, voting on an objection, participating in lawful legislative proceedings, or taking a legal position within the scope of lawful authority.

This subsection does not protect corrupt use of official authority, coercion, bribery, threats, fabrication, knowing falsehoods, or official acts undertaken with knowledge that they are unauthorized and materially connected to a coordinated federal election-subversion scheme.

(d) Congressional proceedings.

Nothing in this chapter shall be construed to impose liability solely for a Member of Congress's vote, debate, objection, legislative act, or participation in proceedings protected by the Constitution. This subsection does not protect independently wrongful conduct outside constitutionally protected legislative activity.

(e) Speech and advocacy.

No expressive activity may serve as a predicate act unless it is integral to independently wrongful conduct, including fraud, threat, bribery, coercion, obstruction, or knowing use of false official documents.

(f) Burden.

The government bears the burden of proving beyond a reasonable doubt that the safe harbor does not apply in a criminal prosecution.

§ 623. Required jury instructions and limiting principles.

(a) Required limiting instructions.

In any criminal prosecution under this chapter, the court shall instruct the jury that liability may not be based solely on—

1. political speech;
2. public advocacy;
3. election denial;
4. criticism of election administration;
5. legal theory;
6. lobbying;
7. journalism;
8. academic analysis;
9. association with a candidate, campaign, political party, attorney, public official, organization, or participant;
10. lawful legal representation;
11. official position or official status;
12. a lawsuit, recount request, contest, audit request, or investigation request that is unsuccessful or rejected;
13. a factual claim that is mistaken but made in good faith; or
14. a legal argument that is rejected by a court, election official, legislative body, or other decisionmaker.

(b) Required elements instruction.

The court shall instruct the jury that the government must prove beyond a reasonable doubt each of the following:

1. the existence of a coordinated federal election-subversion scheme;
2. the defendant's knowing and corrupt participation in that scheme;
3. the scheme's specific corrupt objective to nullify, reverse, obstruct, delay, corruptly alter, or procure official disregard of a lawful federal-election result or covered federal-election process;
4. at least two independently wrongful predicate acts;
5. the defendant's knowledge, or willful blindness, that the predicate acts were independently wrongful;
6. a material connection between the predicate acts and the corrupt objective; and
7. that no safe harbor under section 622 precludes liability.

(c) Pressure communications.

The court shall instruct the jury that a communication with an election official, public official, court, legislative body, agency, or other decisionmaker is not unlawful under this chapter merely because it is forceful, persistent, political, mistaken, adversarial, or requests investigation, review, recount, audit, litigation, legislative consideration, or other lawful process.

A pressure communication may support liability only if the government proves beyond a reasonable doubt that the communication was independently wrongful, knowingly and corruptly undertaken, and materially connected to a coordinated federal election-subversion scheme satisfying section 620.

(d) Safe-harbor sequencing.

The court shall instruct the jury that it must consider the safe harbors and protected-activity provisions of section 622 before finding criminal liability.

(e) Attorney and official limitations.

The court shall instruct the jury that attorney status, client representation, public office, campaign status, political affiliation, or access to official channels is insufficient by itself to establish liability.

§ 624. Criminal penalties.

(a) Basic offense.

A person who violates section 620 shall be fined under this title, imprisoned for not more than ten years, or both.

(b) Aggravated offense.

A person shall be fined under this title, imprisoned for not more than twenty years, or both, if the person violates section 620 and—

1. acts as an organizer, director, principal funder, legal architect, or principal coordinator of the coordinated scheme;
2. uses official authority or apparent official authority;
3. causes material disruption of a federal electoral-count proceeding, presidential transition, federal-election result-transmission process, or state certification process for a covered federal election;
4. uses threats, violence, bribery, extortion, or evidence fabrication;
5. causes substantial public expense, security expense, delay, or emergency governmental response;
6. knowingly targets election personnel or their family members;
7. knowingly causes unauthorized access to voting systems or election materials; or
8. continues the scheme after final judicial or statutory rejection of the asserted legal basis.

(c) No incarceration for protected activity.

No sentence may be imposed for conduct protected under section 622.

§ 625. Civil enforcement by the United States.

(a) Civil action.

The Attorney General may bring a civil action in the United States District Court for the District of Columbia or in any district where a substantial part of the coordinated scheme occurred.

(b) Relief.

The court may grant—

1. declaratory relief;
2. injunctive relief;
3. preservation orders;
4. corrective notice to federal or state recipients of false documents;
5. public-cost reimbursement;
6. disgorgement of funds knowingly raised through materially false representations in furtherance of the coordinated scheme;
7. civil penalties;
8. protective orders for election personnel and records; and

9. other equitable relief necessary to prevent or remedy the coordinated scheme.

(c) Standard.

Civil relief under this section requires clear and convincing evidence of a violation of section 620.

(d) No partisan private damages action.

This chapter does not create a general private right of action for candidates, campaigns, parties, political committees, or voters to obtain damages.

§ 626. State attorney general and election-official backstop actions.

(a) Independent backstop action.

A state attorney general, chief state election official, or state officer expressly authorized by state law may bring a civil action for declaratory, injunctive, preservation, corrective-notice, or other equitable relief to prevent or remedy an imminent, ongoing, or recently completed violation of this chapter that materially threatens, impairs, or corrupts that State's administration, canvassing, recount, certification, result transmission, custody of election materials, protection of election personnel, voters, or performance of lawful duties in a covered federal election.

(b) State nexus required.

A plaintiff under subsection (a) must plead and prove a material nexus between the alleged coordinated federal election-subversion scheme and that State's federal-election administration, certification, canvassing, recount, result-transmission process, election materials, election personnel, voters, or lawful duties.

(c) Relief available.

Relief under this section may include—

1. declaratory relief;
2. temporary, preliminary, or permanent injunctive relief;
3. preservation orders;
4. corrective notice to federal or state recipients of false or unauthorized election documents;
5. election-material custody safeguards;
6. orders preventing or remedying ongoing interference with certification, canvassing, recount, result transmission, or protected election personnel; and
7. other equitable relief narrowly necessary to prevent or remedy the violation.

(d) No damages or partisan relief.

A civil action under this section may not seek damages, punitive damages, candidate-specific damages, party-specific damages, or relief whose primary purpose is to benefit or burden a candidate, campaign, party, or political committee.

(e) Anti-weaponization pleading requirement.

A complaint under this section must plead with particularity—

1. the alleged coordinated federal election-subversion scheme;
2. the specific predicate acts alleged;
3. the corrupt objective;
4. the material connection between the predicate acts and the corrupt objective;
5. the State nexus required by subsection (b); and
6. why the safe harbors in section 622 do not bar the requested relief.

(f) Protected activity limitation.

Relief may not be granted under this section based solely on political disagreement, public advocacy, election denial, ordinary litigation, good-faith recounts, lawful election contests, protected congressional activity, legal advice, journalism, lobbying, or a rejected legal theory.

(g) Notice to the United States; intervention.

A plaintiff under this section shall provide contemporaneous notice of the action and all material filings to the Attorney General of the United States. The United States may intervene as of right, file statements of interest, seek consolidation or transfer, or seek dismissal of relief that conflicts with federal law, a federal prosecution, a federal civil action, or the safe harbors in section 622. The failure or refusal of the Attorney General to authorize, join, approve, or support the action shall not by itself bar the action.

(h) Consolidation and coordination.

If multiple actions under this section concern substantially overlapping alleged schemes or requested relief, a court may coordinate, consolidate, transfer, or otherwise manage the actions to reduce inconsistent obligations, duplicative litigation, or conflicting injunctions, consistent with due process and the need for expedited election-related review.

(i) Anti-abuse dismissal and sanctions.

The court shall dismiss an action, deny relief, or impose appropriate sanctions if the action is brought primarily to burden lawful election administration, chill protected activity, obtain partisan advantage, relitigate a lawful election result without independently wrongful predicate acts, or evade the limitations of this chapter.

(j) Expedition.

The court shall expedite an action under this section to the greatest practicable extent.

§ 627. Disgorgement and public-cost reimbursement.

(a) Disgorgement.

Where the United States proves by clear and convincing evidence that a person knowingly raised, solicited, transferred, spent, or retained funds through materially false representations made in furtherance of a coordinated federal election-subversion scheme, the court may order disgorgement of such funds.

(b) Public costs.

The court may order reimbursement of reasonable public costs directly caused by the coordinated scheme, including emergency security costs, election-administration costs, corrective notice costs, document-preservation costs, or litigation costs incurred by public entities.

§ 628. Disqualification.

(a) Disqualification authorized.

Upon conviction under section 620, or upon clear and convincing evidence in a civil action brought by the United States, a court may disqualify a person from serving for a period not exceeding ten years as—

1. a presidential elector;
2. a federal election administrator;
3. a federal transition official;
4. a federal officer or employee with authority over federal-election certification, result transmission, presidential-transition access, or electoral-count procedures; or
5. a person exercising federal statutory authority over covered federal-election materials or processes.

(b) Narrow tailoring.

Disqualification shall be imposed only if necessary to protect the integrity of covered federal-election processes and shall be no broader than necessary.

(c) Constitutional offices.

Nothing in this section shall be construed to add qualifications for President, Vice President, Senator, or Representative beyond those established by the Constitution.

§ 629. Record preservation.

(a) Preservation duty.

Upon notice of a civil or criminal investigation under this chapter, a person subject to the investigation shall preserve records materially related to the alleged coordinated federal election-subversion scheme.

(b) Scope.

Records include communications, funding records, legal memoranda, drafts of result-transmission documents, pressure communications, litigation materials, subpoena materials, audit materials, transition communications, communications with public officials, and records relating to covered election materials.

(c) Privilege.

Nothing in this section abrogates attorney-client privilege, work-product protection, constitutional privilege, Speech or Debate Clause protection, executive privilege, or other lawful privilege. Claims of privilege shall be resolved by the court.

§ 630. Relation to existing law.

Nothing in this chapter shall be construed to—

1. limit any federal or state criminal, civil, disciplinary, contempt, election, or professional-responsibility law;
2. limit the Electoral Count Reform and Presidential Transition Improvement Act of 2022;
3. limit lawful recounts, contests, litigation, audits, or investigations;
4. criminalize protected speech, advocacy, reporting, or political activity;
5. authorize federal supervision of state election administration;
6. displace state authority over election administration except as expressly provided by federal law;
7. create liability based solely on belief, viewpoint, association, political affiliation, or legal argument;
8. expand ordinary RICO by implication;
9. regulate either House of Congress's constitutional authority to judge the elections, returns, and qualifications of its Members; or
10. apply to state or local elections except where predicate conduct independently violates federal law.

§ 631. Presidential accountability and immunity.

(a) No immunity expansion.

Nothing in this chapter shall be construed to create, expand, recognize, or imply immunity from criminal, civil, evidentiary, or equitable accountability for any person.

(b) Relationship to official authority.

A person holding federal office, including the President or Vice President, is subject to this chapter to the maximum extent permitted by the Constitution and laws of the United States.

(c) No displacement of immunity reform.

This section does not displace any statute, constitutional amendment, or rule governing criminal immunity, civil immunity, official-act evidence, tolling, impeachment, removal, or prosecution of a President, former President, Vice President, or former Vice President.

(d) Severability of presidential applications.

If application of this chapter to a President, former President, Vice President, or former Vice President is held invalid in any circumstance, the remainder of this chapter and all valid applications shall remain in force.

§ 632. Expedited review.

A court hearing an action seeking emergency relief under this chapter shall expedite the action to the greatest practicable extent, consistent with due process, the First Amendment, the Petition Clause, the Speech or Debate Clause, constitutional separation of powers, and the lawful completion of covered federal-election processes.

§ 633. Severability.

If any provision or application of this chapter is held invalid, the remainder shall not be affected.

(b) Clerical Amendment.—The table of chapters for part I of title 18, United States Code, is amended by inserting after the item relating to chapter 29 the following:

Chapter	Description	Section
29A	Coordinated Federal Election Subversion	618

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This draft is intentionally ambitious and should be treated as a first-pass framework.
- It is drafted as a title 18 amendment adding a new chapter 29A adjacent to chapter 29, not as a new federal title or an amendment to ordinary RICO.
- It is RICO-like but not ordinary RICO.
- Liability requires a coordinated scheme, corrupt objective, at least two independently wrongful predicate acts, and material connection.
- Required jury instructions are included because overbreadth, speech, association, legal-representation, and official-duty risks are central design concerns.
- A pressure communication is not unlawful merely because it is forceful, political, mistaken, adversarial, or requests lawful review. It becomes relevant only if independently wrongful, knowingly and corruptly undertaken, and materially connected to a coordinated federal election-subversion scheme.
- The state-attorney-general backstop is included because exclusive federal enforcement may be inadequate where the alleged scheme involves the President, White House, DOJ leadership, federal agencies, or politically aligned federal executive actors.
- State backstop actions are limited to state-nexus equitable relief; they do not authorize damages, punitive damages, partisan proxy suits, or generalized election-dispute litigation.
- The statute should not punish election denial, political speech, litigation, recounts, contests, legal advice, journalism, lobbying, lawful congressional activity, or ordinary campaign activity.
- Safe harbors are central and should be strengthened during review.
- The bill applies to federal elections, with presidential-specific coverage where the federal result-transmission, electoral-count, and transition processes require it.
- It does not generally federalize state or local elections.
- It should be reviewed carefully for Article I, Section 5 and Speech or Debate Clause concerns in congressional-election applications.
- Obstruction-related predicates should be reviewed under *Fischer v. United States* and should remain tied to independently unlawful conduct rather than generalized disruption or political pressure.
- Section 631 is designed to complement ARRP's presidential-immunity reform, not to solve immunity by itself.
- follow-up internal review identified H.R. 8873, S. 4573/ECRA, S. 1840, and H.R. 5314 as direct or adjacent congressional comparators, but none appears to supply the full scheme-level framework drafted here.
- Further review should compare state anti-subversion proposals, election-crime statutes, obstruction statutes, RICO doctrine, First Amendment doctrine, Petition Clause doctrine, Speech or Debate Clause doctrine, ECRA, federalism limits, Article I Section 5 doctrine, presidential-immunity doctrine, and legislative-counsel feedback on the chapter 29A codification choice.

Source Notes

- Source review should include the existing title 18 election-and-political-activity chapter in 18 U.S.C. chapter 29, federal RICO definitions and remedies in 18 U.S.C. chapter 96, existing federal conspiracy and rights statutes including 18 U.S.C. § 371, 18 U.S.C. § 241, and 18 U.S.C. § 1512, Electoral Count Reform Act provisions including 3 U.S.C. § 15, the Constitution's Speech or Debate Clause, *Fischer v. United States*, and *Trump v. United States*.
- Prior-proposal review should include H.R. 8873, Presidential Election Reform Act, S. 4573, Electoral Count Reform and Presidential Transition Improvement Act, S. 1840, Deceptive Practices and Voter Intimidation Prevention Act of 2021, and H.R. 5314, Protecting Our Democracy Act.

ELEC-009 — Direct Election of the President and Vice President Amendment

JOINT RESOLUTION

Proposing an amendment to the Constitution of the United States to abolish presidential electors and provide for the direct election of the President and Vice President by the people of the United States.

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, two-thirds of each House concurring therein, that the following article is proposed as an amendment to the Constitution of the United States:

ARTICLE — DIRECT ELECTION OF THE PRESIDENT AND VICE PRESIDENT

Section 1. Direct election.

The President and Vice President shall be elected directly by the people of the United States. Presidential electors are abolished.

Section 2. Joint candidacy and voter choice.

Each candidate for President shall run jointly with a candidate for Vice President. Each voter shall cast a single vote for one joint ticket for President and Vice President.

Section 3. National popular vote winner.

The joint ticket receiving the greatest number of lawful votes cast nationwide shall be elected President and Vice President, except as Congress may by law provide for a national runoff, ranked-choice tabulation, or other uniform majority mechanism.

Section 4. Uniform national administration.

Congress shall by law provide uniform rules for ballot access, vote counting, national certification, recounts, contests, result transmission, vacancies in candidacy, and resolution of ties or unresolved contests. States shall administer elections for President and Vice President subject to this Constitution and laws enacted under this article.

Section 5. Existing terms and succession.

This article does not alter the commencement or duration of presidential or vice-presidential terms, the Twenty-Fifth Amendment, or the law of presidential succession, except to the extent necessary to implement direct election.

Section 6. Repeal of inconsistent provisions.

The provisions of Article II, Section 1; the Twelfth Amendment; the Twentieth Amendment; and the Twenty-Third Amendment that are inconsistent with this article are superseded to the extent of the inconsistency.

Section 7. Enforcement and implementation.

Congress shall have power to enforce and implement this article by appropriate legislation.

Section 8. Effective date.

This article shall take effect for the first presidential election occurring more than two years after ratification, unless Congress by law provides a later effective date.

Budgetary Impact Statement

No direct appropriation is anticipated for the amendment itself; implementing legislation may have costs.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This is a first working draft of a constitutional amendment.
- The draft abolishes presidential electors and creates direct national election of the President and Vice President.
- The default rule is national plurality, but Congress may provide a uniform majority mechanism such as a runoff or ranked-choice tabulation.
- Implementing legislation will be required for ballot access, national certification, recounts, contests, result transmission, candidate vacancy, tie, and transition procedures.
- The likely enabling legislation vehicle is a title 52 amendment to federal election-administration law, paired with conforming title 3 amendments for elector-based provisions made obsolete or inconsistent by ratification.
- A first working draft of that enabling legislation is maintained in ELEC-009 - Direct Presidential Election Implementation Act.

- Implementation legislation should specify national canvass and certification rules, recount thresholds, contest jurisdiction, expedited review, candidate replacement, unresolved-contest treatment, transition timing, and emergency contingencies before this amendment is treated as publication-ready.
- The draft preserves state administration subject to uniform federal rules enacted under the amendment.
- The draft supersedes inconsistent parts of Article II, the Twelfth Amendment, the Twentieth Amendment, and the Twenty-Third Amendment rather than attempting to rewrite each clause inline.

Source Notes

- Source review should include Article II, Section 1, the Twelfth Amendment, the Twentieth Amendment, and the Twenty-Third Amendment.
- Article V is the controlling amendment vehicle for proposal and ratification thresholds. Direct prior-proposal review should include congressional constitutional-amendment analogues such as H.J.Res. 7, S.J.Res. 16, and S.J.Res. 17 from the 116th Congress.
- Historical predicate review should include official FEC election-result compilations for the 2000 and 2016 modern popular-vote/electoral-vote divergence examples.
- Implementation review should compare existing presidential-election certification and expedited-review procedure in 3 U.S.C. § 5 and the federal election-administration infrastructure in 52 U.S.C. chapter 209, with title 52 as the likely affirmative codification home and title 3 as the conforming-amendment target.
- The accompanying first enabling draft should be reviewed against 3 U.S.C. chapter 1, 28 U.S.C. § 2284, and 28 U.S.C. § 1253 before external circulation.

ELEC-009 — Direct Presidential Election Implementation Act

This proposed enabling legislation depends on ratification of the Direct Election of the President and Vice President Amendment, or a substantially similar constitutional amendment abolishing presidential electors and authorizing Congress to implement direct national election of the President and Vice President.

A BILL

To amend title 52, United States Code, to implement direct national election of the President and Vice President after ratification of a constitutional amendment abolishing presidential electors, and to make conforming amendments to title 3, United States Code.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the "**Direct Presidential Election Implementation Act.**"

SEC. 2. PURPOSES.

The purposes of this Act are to--

1. implement the constitutional article providing for direct election of the President and Vice President;
2. preserve State administration of presidential voting subject to uniform Federal rules for a single national election;
3. establish national rules for joint tickets, State canvasses, State vote certificates, national aggregation, recounts, contests, ties, emergencies, and unresolved results;
4. provide a title 52 election-administration home for the new direct-election framework;
5. conform title 3 provisions that assume presidential electors, certificates of ascertainment, certificates of vote, electoral-vote transmission, or congressional counting; and
6. preserve the Twenty-Fifth Amendment, the law of presidential succession, voting-rights protections, and ordinary State election administration except where inconsistent with direct national election.

SEC. 3. CONSTITUTIONAL DEPENDENCY AND EFFECTIVE DATE.

(a) Constitutional dependency.

Except as provided in subsection (c), this Act shall take effect only upon certification of ratification of the Direct Election of the President and Vice President Amendment, or a substantially similar constitutional amendment abolishing presidential electors and authorizing Congress to implement direct national election of the President and Vice President.

(b) First covered presidential election.

This Act applies to the first presidential election to which the direct-election article applies and to each presidential election thereafter.

(c) Preparatory authority.

The Archivist of the United States, the Election Assistance Commission, the Attorney General, and State election officials may prepare model forms, secure-transmission standards, implementation guidance, State plans, grant materials, public notices, and technical assistance before the first covered presidential election. No presidential election occurring before the direct-election article takes effect may be invalidated under this Act.

(d) No alteration of current elector elections before effective date.

Until the first covered presidential election, title 3 and other laws governing presidential electors, certificates of ascertainment, certificates of vote, transmission of electoral votes, and congressional counting remain in force except to the extent otherwise amended by law.

SEC. 4. DIRECT PRESIDENTIAL ELECTION CHAPTER IN TITLE 52.

Subtitle II of title 52, United States Code, is amended by inserting after chapter 209 the following:

CHAPTER 211--DIRECT PRESIDENTIAL ELECTION

Sec.

21101. Definitions.
21102. State administration under uniform Federal rules.
21103. Joint tickets, ballot access, and voter choice.

- 21104. State canvass, certification, and transmission.
- 21105. National canvass and certificate of election.
- 21106. Recounts and corrected certificates.
- 21107. Contests and expedited judicial review.
- 21108. National plurality default and future majority mechanisms.
- 21109. Candidate vacancy, death, incapacity, withdrawal, and substitution.
- 21110. Emergencies, voting interruptions, and failure to certify.
- 21111. Ties and unresolved national results.
- 21112. Regulations, guidance, forms, and technical standards.
- 21113. Relationship to other laws; enforcement.

Section 21101. Definitions.

In this chapter:

1. **Archivist** means the Archivist of the United States.
2. **Chief State election officer** means the State officer, board, or commission responsible under State law for certifying the statewide result for a presidential election.
3. **Commission** means the Election Assistance Commission established under section 20921.
4. **Covered presidential election** means an election for President and Vice President governed by the direct-election article and this chapter.
5. **Direct-election article** means the constitutional article providing for direct election of the President and Vice President and abolishing presidential electors.
6. **Final State presidential vote certificate** means the certificate transmitted under section 21104 after completion of any recount, contest, correction, or judicial order applicable to that State's presidential vote total.
7. **Joint ticket** means a candidate for President and a candidate for Vice President running together as a single presidential ticket.
8. **Lawful vote** means a vote for a joint ticket that is validly cast and counted under the Constitution, this chapter, other applicable Federal law, and State law not inconsistent with Federal law.
9. **National canvass** means the ministerial aggregation of final State presidential vote certificates under section 21105.
10. **National margin** means the difference between the nationwide lawful-vote total of the joint ticket receiving the greatest number of lawful votes and the nationwide lawful-vote total of the joint ticket receiving the second greatest number of lawful votes.
11. **State** means each State and the District of Columbia for purposes of administering a covered presidential election, unless a provision expressly states otherwise.

Section 21102. State administration under uniform Federal rules.

(a) State administration preserved.

Each State shall administer voting for President and Vice President in a covered presidential election, subject to the Constitution, this chapter, other applicable Federal law, and State law not inconsistent with Federal law.

(b) Single national election.

Votes cast in every State for a joint ticket shall be aggregated into one national popular vote. No State may allocate, appoint, certify, transmit, or count presidential electors for a covered presidential election.

(c) Equal treatment of presidential votes.

A State shall apply uniform, public, neutral, and nondiscriminatory rules for casting, counting, canvassing, recounting, certifying, and correcting votes for joint tickets. A State may not give different legal weight to a lawful vote based on the State, county, municipality, precinct, method of lawful voting, or expected partisan effect of the vote.

(d) Late rule changes.

During the 180-day period before election day for a covered presidential election, a State may not materially change presidential ballot-access, vote-casting, vote-counting, recount, contest, certification, or emergency-voting rules unless the change is--

1. required by the Constitution or Federal law;

2. required by a final court order;
3. necessary to remedy a natural disaster, cyber incident, violence, equipment failure, or comparable emergency;
4. necessary to preserve or expand lawful access to the ballot without diluting or discarding lawful votes; or
5. approved under a State process that is public, written, nondiscriminatory, and not designed or likely to favor or disfavor a joint ticket.

(e) Public administration record.

Each State shall maintain a public presidential-election administration record that includes ballot forms, joint-ticket certifications, canvass schedules, recount standards, contest deadlines, emergency orders, vote-total files, audit records, and final certificates, subject to lawful protection for personal identifying information, ballot secrecy, cybersecurity, law-enforcement needs, and court orders.

Section 21103. Joint tickets, ballot access, and voter choice.

(a) One vote for one joint ticket.

Each voter in a covered presidential election shall cast one vote for one joint ticket for President and Vice President.

(b) Minimum Federal ballot-access floor.

A State shall place a joint ticket on the presidential ballot if the ticket--

1. qualifies under State law;
2. is nominated by a political party that qualified for the presidential ballot in that State in the preceding presidential election;
3. is nominated by a political party whose presidential candidate received not less than 1 percent of the lawful votes cast nationwide in the preceding presidential election; or
4. submits petitions, consents, and certifications satisfying a neutral State petition standard that does not require signatures exceeding the lesser of 1 percent of the lawful votes cast for President in that State in the preceding presidential election or 10,000 signatures.

(c) No discriminatory ballot-access design.

A State may not administer ballot access, party recognition, petition review, filing deadlines, candidate paperwork, ballot order, write-in eligibility, or substitution procedures in a manner that is designed to favor or disfavor a joint ticket in the national popular vote.

(d) Write-in votes.

A State may require advance filing for write-in recognition if the requirement is public, neutral, reasonable, and not inconsistent with this chapter. Lawful write-in votes for a joint ticket shall be included in State and national totals.

(e) Ballot presentation.

The name of each candidate for President and the name of the associated candidate for Vice President shall appear together as one joint ticket. A State may include party, independent, or other ballot labels permitted by State law if the labels are not false, misleading, discriminatory, or inconsistent with Federal law.

Section 21104. State canvass, certification, and transmission.

(a) Initial State canvass.

Not later than 28 days after election day, each chief State election officer shall complete the initial State canvass of lawful votes for joint tickets and publish the initial State presidential vote totals.

(b) State presidential vote certificate.

After completion of the canvass and any recount, correction, contest, or judicial order that must be reflected before the applicable deadline, the chief State election officer shall execute a State presidential vote certificate. The certificate shall state--

1. the total number of lawful votes cast in the State for each joint ticket;
2. the total number of recognized write-in votes for each joint ticket;
3. the total number of ballots cast for President and Vice President, including undervotes and overvotes if reported under State law;
4. whether a recount or contest is pending or completed;
5. whether any court order affects the totals;
6. the date and time of certification;
7. the name, title, signature, and official seal or electronic authentication of the certifying officer; and
8. any additional information required by regulation, guidance, or court order consistent with this chapter.

(c) Transmission.

The chief State election officer shall transmit the State presidential vote certificate to the Archivist and the Commission in secure human-readable and machine-readable form not later than 35 days after election day, except as modified by section 21106, section 21107, section 21110, or court order.

(d) Public posting.

The State, the Archivist, and the Commission shall make each State presidential vote certificate publicly available promptly upon receipt, subject to lawful protection for security features, personal identifying information, ballot secrecy, and court orders.

(e) Corrected certificate.

If a recount, contest, clerical correction, or court order changes the lawful vote total for a joint ticket, the chief State election officer shall execute and transmit a corrected certificate. A corrected certificate supersedes an earlier certificate to the extent of the correction.

Section 21105. National canvass and certificate of election.

(a) Ministerial aggregation.

The Archivist, in consultation with the Commission, shall conduct the national canvass by aggregating the lawful vote totals stated in final State presidential vote certificates.

(b) No discretionary exclusion.

The Archivist and the Commission may not exclude, alter, discount, or reweigh a State's lawful vote total except as required by this chapter, a corrected State certificate, or a final court order. A facial defect in form shall be resolved through prompt notice and correction if the lawful vote total can be reliably identified.

(c) Preliminary national canvass.

Not later than 48 hours after the deadline for State presidential vote certificates, the Archivist shall publish a preliminary national canvass identifying--

1. each State's certified vote totals by joint ticket;
2. the nationwide lawful-vote total for each joint ticket;
3. the national margin;
4. any pending recount, contest, emergency order, or corrected-certificate proceeding known to the Archivist or Commission; and
5. the date on which the final national certificate is expected to issue.

(d) Final national certificate.

After completion of required recounts, contests, corrections, and judicial review, the Archivist shall issue a final national certificate of election identifying the joint ticket elected President and Vice President under the direct-election article and this chapter.

(e) Public effect.

The final national certificate is conclusive evidence of election for purposes of Federal transition administration, executive-branch preparation, and public notice, subject only to a final judgment of a court with jurisdiction under section 21107 or the Constitution.

Section 21106. Recounts and corrected certificates.

(a) Automatic recount.

An automatic recount shall occur if the preliminary national canvass shows a national margin of not more than 0.25 percent of the total lawful votes cast nationwide for President and Vice President.

(b) Candidate-requested recount.

A joint ticket among the three highest nationwide vote recipients may request a recount in one or more States not later than 48 hours after publication of the preliminary national canvass if the request identifies specific grounds showing that a recount could alter the national result or materially affect the lawful national margin.

(c) State procedures; Federal floor.

A recount shall be conducted under State recount procedures to the extent those procedures are public, neutral, timely, auditable, and not inconsistent with this chapter. A State recount procedure may not be applied to prevent completion of a recount required by subsection (a), a recount ordered under subsection (b), or a recount ordered by a court with jurisdiction under section 21107.

(d) National recount scope.

An automatic recount under subsection (a) shall include every State unless a court with jurisdiction under section 21107 finds that recounting a particular State is impossible, unnecessary to resolve the national result, or inconsistent with the Constitution.

(e) Corrected certificate after recount.

After completing a recount, the chief State election officer shall issue a corrected State presidential vote certificate reflecting the recount result and transmit it to the Archivist and the Commission.

(f) Costs.

Congress may appropriate funds to reimburse States for recounts required by subsection (a) and for recounts ordered by a Federal court under section 21107. A State may require a requesting joint ticket to pay reasonable recount costs for a recount requested under subsection (b), subject to refund if the recount changes the State result, changes the national winner, or identifies material error.

Section 21107. Contests and expedited judicial review.

(a) State-certificate contest.

A joint ticket, a candidate on a joint ticket, a State, or the Attorney General may bring a civil action contesting a State presidential vote certificate if the alleged error, unlawful exclusion, unlawful inclusion, failure to count, failure to certify, emergency procedure, recount ruling, or correction could affect the national result or the lawful national margin.

(b) National-certificate contest.

A joint ticket, a candidate on a joint ticket, a State, or the Attorney General may bring a civil action contesting the preliminary national canvass or final national certificate if the alleged error could affect the national result or the lawful national margin.

(c) Venue.

An action under subsection (a) shall be filed in the United States district court for the district in which the State capital is located, or in the United States District Court for the District of Columbia if the action concerns the District of Columbia. An action under subsection (b) shall be filed in the United States District Court for the District of Columbia.

(d) Three-judge court and direct appeal.

An action under this section shall be heard and determined by a district court of three judges convened under section 2284 of title 28. An appeal shall lie directly to the Supreme Court under section 1253 of title 28.

(e) Expedited handling.

The court shall expedite proceedings to the greatest practicable extent. The court may enter orders governing evidence, discovery, recount supervision, ballot preservation, cybersecurity protection, public access, correction of certificates, and deadlines necessary to determine the national result before the presidential term begins.

(f) Relief.

Relief may include declaratory relief, injunctive relief, recount orders, counting orders, exclusion or inclusion of ballots where required by law, correction of a State certificate, correction of the national canvass, appointment of a special master, preservation orders, fee awards where otherwise authorized by law, and any other relief necessary to enforce the direct-election article and this chapter.

(g) No collateral congressional count.

No objection, debate, vote, certificate, paper, or proceeding in Congress may substitute for the judicial review provided by this section or for the national canvass required by section 21105 in a covered presidential election.

Section 21108. National plurality default and future majority mechanisms.

(a) Plurality default.

Unless Congress by law establishes a uniform national runoff, ranked-choice tabulation, or other uniform majority mechanism for a covered presidential election, the joint ticket receiving the greatest number of lawful votes cast nationwide is elected President and Vice President.

(b) Uniformity and timing.

A majority mechanism enacted after this chapter shall apply only if it is uniform nationwide and takes effect not later than 270 days before election day for the covered presidential election to which it applies, unless the law expressly provides an emergency effective date consistent with the Constitution.

(c) No State-specific presidential runoff.

A State may not conduct a separate presidential runoff, alternate presidential tabulation, or State-specific majority procedure for a covered presidential election unless required by a uniform Federal majority mechanism.

(d) Study and recommendations.

Not later than 18 months after ratification of the direct-election article, the Commission shall submit to Congress a public report evaluating national plurality, national runoff, ranked-choice tabulation, approval voting, and other uniform majority mechanisms for direct presidential election. The report shall address voter understanding, ballot design, recountability, disability access, language access, cybersecurity, election-administration burden, litigation risk, timing, transition effects, and effects on independent and minor-party candidacies.

Section 21109. Candidate vacancy, death, incapacity, withdrawal, and substitution.

(a) Joint-ticket continuity.

A joint ticket shall remain a single ticket for all ballot, canvass, recount, certification, and national-canvass purposes unless a lawful substitution is made under this section.

(b) Pre-election substitution.

Before election day, a political party, independent nominating body, or candidate committee may substitute a candidate for President or Vice President on a joint ticket if the substitution is made under public, neutral, and preexisting rules and is certified to each affected State, the Archivist, and the Commission.

(c) Ballot impracticability.

If a lawful substitution occurs after ballots have been printed or after voting has begun, votes cast for the original joint ticket shall be counted for the substituted joint ticket if public notice of the substitution is provided in the manner required by State law and guidance issued under section 21112.

(d) Post-election vacancy.

If a candidate on the apparent winning joint ticket dies, becomes incapacitated, withdraws, or becomes constitutionally ineligible after election day, votes lawfully cast for that joint ticket shall remain votes for that joint ticket unless the Constitution, the direct-election article, or a final court order requires otherwise. Presidential and vice-presidential vacancies after election shall be resolved under the Constitution and laws governing presidential succession and disability.

(e) No strategic cancellation.

A State may not cancel, discard, reassign, or refuse to count lawful votes for a joint ticket because of candidate death, incapacity, withdrawal, or substitution unless required by the Constitution, this chapter, or a final court order.

Section 21110. Emergencies, voting interruptions, and failure to certify.

(a) Emergency voting order.

If a natural disaster, public emergency, cyber incident, violence, equipment failure, court order, or comparable event prevents a substantial number of eligible voters from voting or prevents lawful votes from being counted in part of a State, the chief State election officer may issue a public emergency voting order that is narrowly tailored to the affected voters, places, ballots, systems, or time period.

(b) Limits.

An emergency voting order under subsection (a) may extend voting, authorize replacement ballots, change polling places, adjust ballot-return procedures, preserve ballots, secure systems, or order comparable relief, but only to the extent necessary to preserve lawful voting and counting. No emergency order may be designed or administered to favor or disfavor a joint ticket.

(c) Extension limit.

An emergency extension of voting may not exceed 7 days after the ordinary election day unless a Federal court with jurisdiction under section 21107 finds that a longer period is required by the Constitution.

(d) Failure to certify.

If a State fails to transmit a State presidential vote certificate by the applicable deadline, the Archivist shall notify the State, the Commission, the Attorney General, and the public. The Attorney General, a joint ticket, a candidate on a joint ticket, or the State may seek immediate relief under section 21107.

(e) Use of best lawful record.

If a State fails to certify after judicial relief, the court may order certification, appoint a special master to determine the lawful vote total from the best available lawful record, or order other relief necessary to include lawful votes in the national canvass.

Section 21111. Ties and unresolved national results.

(a) Exact tie.

If the final national canvass shows that two or more joint tickets are tied for the greatest number of lawful votes nationwide, a special national runoff election shall be held between the tied joint tickets not later than 35 days after the final national canvass, unless Congress by law has established a different uniform tie-resolution mechanism.

(b) Runoff administration.

A special national runoff under subsection (a) shall be administered by the States under this chapter, with deadlines adjusted by the Commission and the Archivist to the minimum extent necessary to conduct the runoff, certify State results, complete the national canvass, and identify the elected joint ticket.

(c) Unresolved result before commencement of term.

If no joint ticket has been finally certified as elected before the commencement of the presidential term, the Constitution and laws governing acting Presidents, presidential succession, and presidential disability shall govern until a joint ticket is finally certified.

(d) No contingent election by State delegation.

The House of Representatives shall not choose the President by State delegation, and the Senate shall not choose the Vice President, for a covered presidential election except to the extent a later constitutional amendment expressly authorizes that procedure.

Section 21112. Regulations, guidance, forms, and technical standards.

(a) Joint guidance.

The Archivist and the Commission, in consultation with the Attorney General and chief State election officers, shall publish model forms, certificate templates, secure-transmission standards, machine-readable data standards, public-posting guidance, recount guidance, emergency-order guidance, and substitution notice guidance necessary to implement this chapter.

(b) Commission technical standards.

The Commission shall publish voluntary voting-system, ballot-design, audit, accessibility, language-access, cybersecurity, and data-format guidance for covered presidential elections. Guidance under this subsection may not narrow any statutory right or duty.

(c) State implementation plans.

Each State shall publish a direct-presidential-election implementation plan not later than 18 months before the first covered presidential election. The plan shall identify ballot-access rules, ballot-design rules, canvass schedules, recount procedures, contest procedures, certificate officials, emergency-order procedures, public data formats, and voter-information procedures.

(d) Public comment.

Before publishing final guidance of general applicability under this section, the Archivist and the Commission shall provide notice and a reasonable opportunity for public comment, except for emergency guidance that must be issued more quickly to protect lawful voting, counting, certification, or judicial review.

Section 21113. Relationship to other laws; enforcement.

(a) Voting-rights and election-administration laws preserved.

Nothing in this chapter shall be construed to limit the Voting Rights Act of 1965, the National Voter Registration Act of 1993, the Uniformed and Overseas Citizens Absentee Voting Act, the Help America Vote Act of 2002, the Americans with Disabilities Act of 1990, or any other Federal voting-rights or election-administration protection, except to the extent a provision is inconsistent with the direct-election article.

(b) Stronger State protections preserved.

A State may provide greater ballot access, voter access, accessibility, language access, auditability, transparency, recount protection, or contest protection than the minimum required by this chapter if the State rule is consistent with the Constitution, this chapter, and equal treatment of lawful votes in a national election.

(c) Civil enforcement by Attorney General.

The Attorney General may bring a civil action for declaratory, injunctive, or other appropriate relief to enforce the direct-election article and this chapter.

(d) Private and candidate enforcement.

A joint ticket, candidate on a joint ticket, voter, political party, State, or organization directly injured by a violation of this chapter may bring a civil action for declaratory or injunctive relief if the violation could affect ballot access, vote casting, vote counting, certification, recounts, contests, the national canvass, or the national result.

(e) No authorization to discard lawful votes.

This chapter shall be construed to include every lawful vote in the national canvass and shall not be construed to authorize the rejection, dilution, or cancellation of lawful votes because of administrative delay, official misconduct, litigation strategy, or disagreement with the apparent national result.

SEC. 5. TITLE 3 CONFORMING AMENDMENTS.

(a) Elector provisions inapplicable to covered presidential elections.

Chapter 1 of title 3, United States Code, is amended by adding at the end the following:

Section 23. Application to direct presidential elections.

(a) Elector procedures superseded.

Sections 1 through 18 of this title apply only to presidential elections conducted through appointment of electors. Those sections do not apply to a covered presidential election governed by chapter 211 of title 52, except to the extent expressly incorporated by Act of Congress.

(b) Certificates of ascertainment and vote.

For a covered presidential election governed by chapter 211 of title 52, the State presidential vote certificates and final national certificate required by that chapter replace certificates of ascertainment, certificates of vote, transmission of electoral votes, and congressional counting procedures otherwise used for presidential electors.

(c) Succession and vacancy laws preserved.

Nothing in this section or chapter 211 of title 52 alters sections 19 or 20 of this title, the Twenty-Fifth Amendment, or any other law governing presidential succession, acting officers, resignation, or inability, except where a provision is expressly made applicable to a direct national presidential election.

(b) Clerical amendment.

The table of sections for chapter 1 of title 3, United States Code, is amended by adding at the end the following:

23. Application to direct presidential elections.

SEC. 6. AUTHORIZATION OF APPROPRIATIONS.

There are authorized to be appropriated such sums as may be necessary to carry out this Act, including secure certificate transmission, State implementation planning, recount reimbursement, public data publication, accessibility, language access, cybersecurity, and emergency election administration for covered presidential elections.

SEC. 7. SEVERABILITY.

If any provision of this Act, an amendment made by this Act, or the application of such provision or amendment to any person, State, election, or circumstance is held invalid, the remainder of this Act, the amendments made by this Act, and the application of such provisions to any other person, State, election, or circumstance shall not be affected.

Budgetary Impact Statement

This Act would require federal and state implementation spending for secure national vote-certificate transmission, state implementation planning, public data systems, recount administration, expedited litigation, emergency election administration, accessibility, language access, cybersecurity, and voter education. No CBO, OMB, EAC, GAO, or state fiscal estimate has been identified in this draft.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This is a first working draft of enabling legislation for ELEC-009, not final legislative-counsel language.
- The principal codification vehicle is title 52 because the proposal creates a federal election-administration framework. Title 3 is used only for conforming amendments to elector-based presidential-election machinery.
- The draft uses a proposed new chapter 211 after title 52 chapter 209. Legislative counsel should verify chapter and section numbering before circulation.
- The draft preserves state administration but creates uniform federal rules for the national canvass, certification, recounts, contests, emergency orders, ties, candidate substitution, and result finality.
- The draft keeps the constitutional amendment's plurality default. It does not select a runoff or ranked-choice mechanism, but it requires any future majority mechanism to be uniform nationally and timely enacted.

- The draft uses a three-judge district court and direct Supreme Court appeal model for contests that could affect the national result. Constitutional, procedural, workload, and timing concerns require expert review.
- The draft treats the Archivist's national canvass role as ministerial. Publication-ready review should test whether another federal officer, board, or court-supervised mechanism would be more durable.
- The draft includes a narrow special national runoff for exact ties. Publication-ready review should test whether this is administrable before January 20 and whether an alternate tie mechanism is preferable.
- The draft does not resolve whether citizens in territories should participate in a direct presidential election. That question should be handled expressly in the constitutional amendment or a separate implementation section after constitutional review.

Source Notes

- The title 52 vehicle is based on the current structure of Federal voting and election-administration law, including the Help America Vote Act framework in 52 U.S.C. chapter 209.
- Existing presidential-election timing, certification, expedited review, and elector machinery are currently housed in 3 U.S.C. chapter 1. This draft uses that chapter as a conforming-amendment target rather than the affirmative home for direct election.
- The contest procedure adapts the three-judge/direct-review model reflected in 3 U.S.C. section 5, 28 U.S.C. section 2284, and 28 U.S.C. section 1253.

ELEC-010 — Mail-In Voting Reliability and Election Mail Standards Act

A BILL

To amend the Help America Vote Act of 2002 to establish minimum reliability, notice, cure, tracking, transparency, and custody standards for mail and absentee ballots in elections for Federal office, to amend title 39, United States Code, to establish election-mail service standards, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the "**Mail-In Voting Reliability and Election Mail Standards Act.**"

SEC. 2. PURPOSES.

The purposes of this Act are—

1. to protect eligible voters from avoidable disenfranchisement caused by unreliable mail-ballot delivery, opaque rejection practices, curable technical defects, or late notice;
2. to strengthen public confidence in lawful mail and absentee voting by requiring transparent custody, tracking, rejection, cure, and canvass procedures;
3. to preserve State choice over whether and how broadly to offer mail or absentee voting, while establishing minimum standards when such voting is made available in elections for Federal office;
4. to ensure that postal operations support, and do not secretly condition or veto, lawful State-created mail-ballot channels, including any State-law receipt window for ballots cast by election day; and
5. to preserve election security, voter authentication, ballot custody, and timely finality through clear and auditable rules.

TITLE I — MAIL AND ABSENTEE BALLOT RELIABILITY STANDARDS

SEC. 101. HELP AMERICA VOTE ACT AMENDMENTS.

The Help America Vote Act of 2002 is amended by adding at the end the following new title:

TITLE XI — MAIL AND ABSENTEE BALLOT RELIABILITY

SEC. 1101. DEFINITIONS.

In this title:

1. **Commission** means the Election Assistance Commission.
2. **Covered mail ballot** means an absentee ballot, mail ballot, vote-by-mail ballot, or other ballot for an election for Federal office that is provided to a voter for return by mail or other authorized remote return method.
3. **Covered State** means a State that permits any voter to cast a covered mail ballot in an election for Federal office.
4. **Curable defect** means a missing signature, signature mismatch, missing or incomplete date, missing secrecy envelope, identification-number mismatch, witness or attestation defect, envelope defect, or comparable error that can be corrected without changing the voter's selections and without permitting a person who is not an eligible voter to cast a ballot.
5. **Election mail** has the meaning given by regulations or guidance of the Postal Service, except that the term shall include any covered mail ballot and any ballot application, ballot request, cure notice, election-official notice, or election-administration communication sent through the mails in connection with an election for Federal office.
6. **State** has the meaning given the term in section 901.

SEC. 1102. STATE MAIL-BALLOT RELIABILITY REQUIREMENTS.

(a) Minimum standards.

A covered State shall, for each election for Federal office in which covered mail ballots are available—

1. publish clear request, mailing, return, receipt, cure, preprocessing, canvass, and counting deadlines, including the treatment of ballots postmarked by election day but received afterward if such ballots are countable under State law;
2. set ballot-request and outbound-mailing deadlines that account for Postal Service delivery standards, jurisdiction-specific mailing advisories, and local processing needs;

3. provide a voter-facing method for tracking, at minimum, ballot request, outbound mailing, receipt, acceptance, rejection, and cure status;
4. apply uniform statewide standards for signature review, identification-number review, or other voter-authentication review used for covered mail ballots;
5. give prompt notice and a meaningful cure opportunity for each curable defect when voter eligibility and ballot timeliness can still be established;
6. prohibit rejection for an immaterial paperwork defect when voter eligibility, ballot timeliness, and ballot authenticity are otherwise established;
7. provide a reasonable nonpostal return option after the Postal Service's recommended mailing date when mail return is no longer reasonably reliable;
8. publish plain-language instructions, including accessibility and language-access information required by law;
9. publish aggregate post-election rejection data by category, including late receipt, signature or identity defect, envelope defect, missing documentation, and uncured defect;
10. maintain written chain-of-custody, reconciliation, and retention procedures for covered mail ballots; and
11. maintain a contingency plan for postal disruption, severe weather, disaster, cyber incident, printing or vendor failure, administrative backlog, or comparable emergency.

(b) Drop boxes and nonpostal return.

If a covered State authorizes ballot drop boxes or other nonpostal return locations for covered mail ballots, the State shall maintain uniform written rules for location, public notice, collection frequency, seal logs, chain of custody, reconciliation, and dual-control or comparable pickup safeguards.

(c) State flexibility preserved.

Nothing in this title requires a State to offer no-excuse mail voting, all-mail elections, permanent mail-voter status, automatic mail-ballot distribution, or ballot drop boxes.

(d) More protective State law.

Nothing in this title preempts a State law or procedure that provides greater access, longer cure periods, broader notice, more secure custody, stronger voter privacy, or more protective ballot-tracking procedures, unless the State law or procedure conflicts with a specific requirement of this title.

SEC. 1103. POSTAL ADVISORY ALIGNMENT.

(a) State use of advisory dates.

Each covered State shall consider Postal Service jurisdiction-specific mailing advisories when setting ballot-request, outbound-mailing, public-notice, and nonpostal-return procedures for covered mail ballots.

(b) Advisory dates not disqualification dates.

A Postal Service mailing advisory may not be treated as a legal deadline for voter eligibility, ballot validity, or ballot rejection unless a State law independently establishes such a deadline consistent with this title and other applicable law.

SEC. 1104. FEDERAL DATA-CONDITION LIMITATION.

A Federal agency, including the Postal Service, may not refuse, delay, condition, or degrade otherwise lawful election-mail service for covered mail ballots because a State or local election authority declines to submit a voter manifest, citizenship list, barcode file, ballot-envelope identifier, voter-registration database, or comparable voter-data file, unless Congress has expressly authorized that condition by statute and provided voter-protective procedures.

SEC. 1105. COMMISSION GUIDANCE; NO DISCRETIONARY APPROVAL.

(a) Guidance.

Not later than 180 days after enactment of this title, the Commission, in consultation with the Postal Service, State and local election officials, disability-rights organizations, language-access experts, and election-security experts, shall issue voluntary guidance and model forms for implementing this title.

(b) No discretionary approval.

The Commission may not approve, disapprove, delay, condition, or supervise a State's mail-ballot policy except as expressly provided by this title or another Act of Congress.

SEC. 1106. ENFORCEMENT.

(a) Civil action by Attorney General.

The Attorney General may bring a civil action for declaratory or injunctive relief to enforce this title.

(b) Civil action by aggrieved voter.

An aggrieved voter whose covered mail ballot is rejected without the notice or cure opportunity required by this title may bring a civil action for declaratory or injunctive relief.

(c) Timing.

A court hearing an action under this section shall expedite proceedings to the greatest extent practicable when relief is sought before an election, canvass, certification, or cure deadline.

(d) No damages.

This section does not create a damages remedy against a State, political subdivision, election official, postal official, or election worker.

TITLE II — ELECTION MAIL STANDARDS

SEC. 201. ELECTION MAIL SERVICE STANDARDS.

Chapter 36 of title 39, United States Code, is amended by adding at the end the following:

§ 3697. Election mail service standards

(a) Election mail standards.—The Postal Service shall maintain written operational standards for election mail, including standards for tracking, postmarking, processing, facility all-clear procedures, delivery-performance monitoring, escalation channels for election officials, and public communication during Federal election periods.

(b) Jurisdiction-specific mailing advisories.—For each regularly scheduled general election for Federal office, the Postal Service shall publish jurisdiction-specific recommended mailing dates for covered mail ballots, ballot applications, and cure materials not later than 60 days before the election.

(c) Election official escalation channel.—The Postal Service shall maintain a dedicated election-mail escalation channel for State and local election officials during each Federal election period.

(d) Operational-change notice.—During the 120-day period preceding a regularly scheduled general election for Federal office, the Postal Service may not implement an operational change that foreseeably degrades election-mail performance unless the Postal Service provides public notice, notice to affected State election officials, and a mitigation plan.

(e) No unauthorized voter-data condition.—The Postal Service may not refuse, delay, condition, or degrade otherwise lawful election-mail service because a State or local election authority declines to submit a voter manifest, citizenship list, barcode file, ballot-envelope identifier, voter-registration database, or comparable voter-data file, unless Congress has expressly authorized that condition by statute and provided voter-protective procedures.

(f) Annual report.—Not later than 180 days after each regularly scheduled general election for Federal office, the Postal Service shall submit to Congress and make public a report on election-mail performance, including delivery-performance data to the extent measurable, postmarking compliance, escalation requests, all-clear compliance, extraordinary measures, and material operational issues.

SEC. 202. CLERICAL AMENDMENT.

The table of sections for chapter 36 of title 39, United States Code, is amended by adding at the end the following:

3697. Election mail service standards.

TITLE III — AUTHORIZATION OF APPROPRIATIONS

SEC. 301. AUTHORIZATION OF APPROPRIATIONS.

There are authorized to be appropriated such sums as may be necessary to carry out this Act and the amendments made by this Act.

Budgetary Impact Statement

Budget authority may be required for EAC guidance, State implementation support, voter-facing tracking, cure notices, election-mail reporting, and Postal Service operational compliance; no dollar estimate is assigned pending source-backed cost data.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This draft amends existing law rather than creating a wholly freestanding regime.
- Title I places mail-ballot reliability standards in HAVA because the proposal concerns minimum administration standards for elections for Federal office.

- Title II places election-mail operational standards in title 39 because USPS delivery, postmarking, tracking, all-clear procedures, and election-official escalation belong in postal law.
- The draft does not require States to offer no-excuse mail voting or all-mail elections; it applies when a State chooses to make covered mail ballots available for elections for Federal office.
- The draft treats USPS mailing dates as advisories for planning and notice, not as independent ballot-disqualification deadlines.
- After *Watson v. Republican National Committee*, 609 U.S. ____ (2026), the draft does not need to create a federal rule making post-Election-Day receipt lawful; it instead requires clear publication, reliable postal handling, and uniform administration of any State-law receipt window.
- The data-condition rule is designed to prevent USPS or another Federal actor from making lawful ballot delivery depend on State submission of voter manifests, citizenship lists, barcode files, or comparable voter-data systems absent clear congressional authorization and voter-protective procedures.
- The enforcement section is limited to declaratory and injunctive relief and does not create damages liability.

Source Notes

- Source review should include the Help America Vote Act of 2002, classified in 52 U.S.C. chapter 209; the Uniformed and Overseas Citizens Absentee Voting Act, classified in 52 U.S.C. chapter 203; and postal-service provisions including 39 U.S.C. § 101, 39 U.S.C. § 401, 39 U.S.C. § 403, and 39 U.S.C. § 404.
- Source review should also include the USPS Office of Inspector General's election-mail performance report and the Election Assistance Commission's canvass guidance.
- Source review should include the USPS proposed rule, *Ballot Mail for Federal Elections*, 91 Fed. Reg. 32915 (June 2, 2026).
- Source review should include the Supreme Court's decision in *Watson v. Republican National Committee*, 609 U.S. ____ (2026), holding that the federal election-day statutes do not require absentee ballots to be received by election day.

ELEC-011-amendment — Neutral Redistricting Baseline Amendment

JOINT RESOLUTION

Proposing an amendment to the Constitution of the United States to require neutral baseline redistricting, prohibit partisan and incumbent-protective district manipulation, preserve lawful representation safeguards, and authorize Congress to enforce and implement those requirements.

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, two-thirds of each House concurring therein, that the following article is proposed as an amendment to the Constitution of the United States:

ARTICLE — NEUTRAL REDISTRICTING BASELINE

Section 1. Neutral baseline required.

Each State shall establish congressional and state legislative districts through a process that begins with a neutral, public, replicable baseline map generated from population, geography, contiguity, compactness, and other neutral districting criteria.

Section 2. Mandatory neutrality floor.

No congressional or state legislative district shall be drawn, adopted, revised, or maintained for the purpose of favoring or disfavoring a political party, candidate, incumbent, faction, donor, campaign, viewpoint, or class of voters because of their expected partisan or electoral effect.

No State, officer, body, court, or person acting under color of law shall use partisan, incumbent, candidate, donor, campaign, or election-performance data to generate the neutral baseline map.

Section 3. Public deviations.

A State may depart from the neutral baseline map only by a public process and only where the departure is supported by written findings showing that the departure is necessary to satisfy this Constitution, federal law, a State constitution, a State voting-rights law consistent with this article, equal population, contiguity, compactness, tribal integrity, political-subdivision integrity, compact communities of interest, geographic necessity, election-administration necessity, or correction of a material data or implementation error.

Each departure shall be narrowly tailored to the stated ground and shall be subject to judicial review.

No State law, including a State voting-rights law, may authorize a departure from the neutral baseline map that is broader than necessary to remedy the identified legal or representational injury, that permits use of prohibited political data in the neutral baseline map, or that has the purpose or effect of evading the neutrality requirements of this article.

Section 4. Representation safeguards.

This article does not prohibit districting measures necessary to comply with the Constitution, the Voting Rights Act of 1965, or other laws protecting equal political opportunity, minority voting opportunity, or lawful representation safeguards.

No such measure may be used as a pretext for partisan advantage, incumbent protection, voter retaliation, or dilution of a disfavored community.

Nothing in this article prevents a State from providing voting-rights protections more protective than federal law, but those protections must be applied through public, evidence-based, narrowly tailored findings and may not nullify the neutral-baseline process.

Section 5. Transparency and public participation.

Before a congressional or state legislative district plan takes effect, the State shall publish the neutral baseline map, the method used to generate it, the data used, any proposed departures, written findings supporting each departure, and a meaningful opportunity for public comment.

Section 6. Mid-decade redistricting.

After a State adopts a congressional or state legislative district plan following a federal decennial census, the State may not replace that plan before the next federal decennial census except as necessary to comply with a final court order, this Constitution, federal law, a State constitution, a material census or boundary correction, or another legal requirement.

Partisan advantage, incumbent protection, change in political control, or dissatisfaction with an existing lawful plan is not a valid basis for mid-decade redistricting.

Section 7. Judicial enforcement.

A voter residing in an affected district, a candidate for office in an affected district, a political subdivision or tribal government divided or affected by a district plan, a community organization representing members in an affected district, or another person authorized by Congress or State law may bring an action to enforce this article.

Courts shall have authority to grant declaratory relief, injunctive relief, remand, appointment of a special master, adoption of a lawful baseline or least-departing remedial plan, and other appropriate relief.

Section 8. Enforcement and implementation.

Congress shall have power to enforce and implement this article by appropriate legislation.

Congress may prescribe procedures, standards, remedies, disclosures, data rules, review mechanisms, timing rules, and fallback procedures necessary to enforce this article. Congress may not authorize partisan, incumbent-protective, candidate-protective, donor-protective, campaign-protective, or election-performance-based manipulation prohibited by this article.

Section 9. Relation to existing constitutional provisions.

This article supersedes any inconsistent authority of a State, State legislature, State court, State constitution, Congress, or federal court over congressional or State legislative redistricting, including authority otherwise exercised under article I, section 4, only to the extent of the inconsistency.

Nothing in this article alters the apportionment of Representatives among the several States, the qualifications of Representatives, the composition or equal suffrage of the Senate, the qualifications of electors except as necessary to enforce this article, or any other constitutional provision except to the extent expressly required to enforce the neutral-baseline requirements of this article.

Section 10. Existing districts and effective date.

This article shall apply to the first redistricting cycle beginning more than two years after ratification, unless Congress by law provides an earlier effective date for congressional districts.

If implementation would materially disrupt an election for which candidate filing, ballot preparation, early voting, absentee voting, or voting has already begun, Congress may provide a transition rule delaying application only for that election cycle and only to the extent necessary to avoid election-administration disruption.

No transition rule may delay application of this article beyond the next regularly scheduled redistricting cycle, authorize repeated or indefinite deferral, or authorize a district plan adopted for a purpose prohibited by this article to remain in effect unless a court finds that temporary use is necessary to prevent greater constitutional injury.

Budgetary Impact Statement

No direct appropriation is anticipated for the amendment itself; implementing legislation may have costs.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This is a reserve constitutional amendment draft. The least-complex adequate remedy for ELEC-011 remains model state legislation.
- The amendment embeds the mandatory neutrality floor directly in constitutional text so Congress may implement but not waive the core anti-partisan, anti-incumbent, and anti-election-performance manipulation rules.
- Section 1 requires a neutral baseline process but does not constitutionalize a specific algorithm such as shortest splitline.
- Section 3 allows departures for lawful representational, constitutional, state-law, geographic, tribal, political-subdivision, community-of-interest, and administrability reasons, but requires public findings and narrow tailoring.
- Section 3 now expressly prevents State voting-rights laws from functioning as an override or nullification device. A State may provide stronger voting-rights protections, but it may not use those protections to evade the neutral-baseline process or authorize broader-than-necessary departures.
- Section 4 preserves Voting Rights Act and lawful representation safeguards while barring pretextual use of those safeguards for partisan or incumbent advantage.
- Section 7 uses an affected-person standing model to reduce purely abstract litigation while preserving review for voters, candidates, subdivisions, tribal governments, affected communities, and persons authorized by Congress or State law.
- Section 8 gives Congress enforcement and implementation authority while expressly denying power to dilute the amendment's mandatory neutrality floor.
- Section 9 clarifies that the amendment supersedes inconsistent redistricting authority, including authority otherwise exercised under article I, section 4, only to the extent necessary to enforce the neutral-baseline requirements. It also preserves unrelated constitutional structures such as apportionment among States, Representative qualifications, and equal suffrage in the Senate.
- Section 10 limits transition delay to a single active election cycle when necessary to avoid election-administration disruption and bars repeated, indefinite, or next-cycle deferral.
- The internal project review examined official public sources for *Rucho v. Common Cause*, *Arizona State Legislature v. Arizona Independent Redistricting Commission*, *Allen v. Milligan*, *Louisiana v. Callais*, Iowa Code chapter 42, and state voting-rights-law

comparators. The internal project review examined official Constitution Annotated sources for Article I, Section 2, Article I, Section 4, the Fourteenth Amendment, and the Fifteenth Amendment, and reviewed California Constitution Article XXI as a state constitutional redistricting comparator. Article V, state legislative district doctrine, anti-commandeering concerns, justiciability, transition timing, and whether a constitutional amendment should reach both congressional and state legislative districting in this form still require external legal review.

- The internal project review added official implementation and adoption analogues from California's redistricting-commission experience. Those sources support the plausibility of state redistricting reform and the need for real implementation funding, but they do not make the reserve Federal constitutional path the least-complex vehicle.

Source Notes

- Source review should include Article I, Section 2; Article I, Section 4; Article V; the Fourteenth Amendment; the Fifteenth Amendment; *Rucho v. Common Cause*; *Arizona State Legislature v. Arizona Independent Redistricting Commission*; *Reynolds v. Sims*; *Allen v. Milligan*; *Louisiana v. Callais*; state independent-redistricting-commission precedents; state voting-rights acts; and algorithmic redistricting scholarship. The internal project review verified the listed Supreme Court opinions and selected state-law comparators. The internal project review verified official Constitution Annotated pages for Article I, Section 2, Article I, Section 4, the Fourteenth Amendment, and the Fifteenth Amendment, plus California Constitution Article XXI as a state constitutional comparator. The internal project review added California implementation/adoption analogues and technical source leads. External legal and legislative-counsel review remains pending.

ELEC-011 — Neutral Redistricting Baseline Enforcement Act

A BILL

To enforce and implement the Neutral Redistricting Baseline Amendment by establishing neutral baseline redistricting standards, public deviation procedures, representation safeguards, judicial review, and fallback remedies for congressional and state legislative districts.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Neutral Redistricting Baseline Enforcement Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to—

1. implement the Neutral Redistricting Baseline Amendment;
2. require each covered redistricting process to begin with a neutral, public, replicable baseline map;
3. prohibit partisan, incumbent-protective, candidate-protective, donor-protective, campaign-protective, and election-performance-based manipulation of district lines;
4. preserve lawful representation safeguards required by the Constitution, the Voting Rights Act of 1965, and other laws protecting equal political opportunity;
5. require every departure from the neutral baseline map to be public, written, criterion-specific, narrowly tailored, and reviewable;
6. prevent mid-decade redistricting for partisan, incumbent-protective, or factional advantage; and
7. provide enforceable remedies where a State fails to comply with the neutral-baseline requirement.

SEC. 3. DEFINITIONS.

In this Act:

1. **Affected district** means a district whose boundary, population, representation, political subdivision, tribal community, community of interest, candidate field, or voters would be materially affected by a covered district plan or proposed deviation.
2. **Algorithmic baseline map** means the first redistricting plan generated by applying the approved redistricting method to authorized input data before any discretionary human departure.
3. **Approved redistricting method** means the public, deterministic, replicable algorithm or technical method adopted or certified under this Act to generate an algorithmic baseline map.
4. **Authorized input data** means population data, census geography, precinct geography where needed for administrability, contiguity data, state boundary data, political-subdivision boundary data, tribal boundary data where lawfully available, water and geographic-feature data, and other neutral data expressly authorized by this Act or by regulation.
5. **Covered district plan** means a congressional or State legislative district plan.
6. **Departing plan** means any proposed covered district plan that differs materially from the algorithmic baseline map.
7. **Deviation** means any material change from the algorithmic baseline map, including alteration of a district boundary, exchange of population between districts, division or consolidation of a political subdivision or compact community, or change in district configuration.
8. **Neutral-baseline article** means the constitutional article proposed as the Neutral Redistricting Baseline Amendment and ratified as part of the Constitution.
9. **Prohibited political data** means data concerning political party affiliation, voter registration by party, prior election results, partisan performance, candidate residence, incumbent residence, campaign contributions, donor identity, campaign activity, candidate endorsements, demographic proxies selected for partisan effect, or comparable data whose principal use in redistricting is partisan, incumbent-protective, candidate-protective, donor-protective, campaign-protective, factional, or election-performance-based advantage.
10. **Redistricting authority** means the State officer, nonpartisan office, independent commission, redistricting commission, legislature, court, special master, or other body authorized by State law to prepare, review, recommend, approve, or adopt a covered district plan.

SEC. 4. APPLICABILITY AND EFFECTIVE DATE.

(a) Applicability.

This Act applies to congressional and State legislative redistricting to the full extent authorized by the neutral-baseline article.

(b) Amendment-dependent operation.

Except as provided in subsection (c), this Act shall take effect only upon ratification of the neutral-baseline article.

(c) Preparatory regulations and guidance.

Congress may authorize preparatory regulations, model technical standards, public data standards, and implementation guidance before ratification, but no covered district plan shall be invalidated under this Act before the neutral-baseline article takes effect.

(d) No waiver of constitutional floor.

No regulation, guidance, State law, court order, or redistricting procedure may waive the mandatory neutrality floor established by the neutral-baseline article.

(e) Relation to existing constitutional authority.

This Act shall be construed to implement the neutral-baseline article's rule that inconsistent redistricting authority, including authority otherwise exercised under article I, section 4, is superseded only to the extent necessary to enforce the neutral-baseline requirements of that article.

SEC. 5. NEUTRAL BASELINE MAP REQUIRED.

(a) Baseline-first rule.

Before any covered district plan may take effect, the State shall generate, publish, and preserve an algorithmic baseline map for that plan.

(b) Timing.

The algorithmic baseline map shall be generated and published before any redistricting authority considers, approves, recommends, or adopts a departing plan.

(c) Publication.

The State shall publish—

1. the algorithmic baseline map;
2. the approved redistricting method;
3. source code or a complete technical specification sufficient for independent replication;
4. authorized input data;
5. parameter settings;
6. population totals and deviations for each district;
7. compactness and boundary-respect measures;
8. a plain-language explanation of the method; and
9. instructions for public comment and proposed corrections.

(d) No final adoption by silence.

Publication of the algorithmic baseline map does not by itself enact that map unless State law separately authorizes automatic adoption after completion of the public process required by this Act and the neutral-baseline article.

SEC. 6. APPROVED REDISTRICTING METHOD.

(a) Minimum requirements.

The approved redistricting method shall—

1. be deterministic and replicable from public inputs;
2. prioritize equal population and contiguity;
3. use compactness and boundary-respect measures defined in advance;
4. avoid use of prohibited political data;

5. identify how ties or equivalent map outputs are resolved;
6. generate a complete baseline plan for each covered district plan;
7. produce machine-readable and human-readable outputs; and
8. be capable of independent replication by a court, expert, candidate, civic organization, local government, tribal government, or member of the public using public data.

(b) Method selection.

A State may use shortest splitline, modified shortest splitline, or another neutral deterministic method if the method satisfies subsection (a).

(c) Prohibited selection purpose.

A State may not select, tune, reject, or modify a redistricting method because it predictably favors or disfavors a political party, candidate, incumbent, faction, donor, campaign, viewpoint, racial group, language-minority group, region, or community.

SEC. 7. PROHIBITED DATA AND COMMUNICATIONS.

(a) Baseline-map prohibition.

A redistricting authority, staff member, contractor, consultant, or other person generating, tuning, selecting, rejecting, or modifying the algorithmic baseline map may not use prohibited political data.

(b) Departing-plan disclosure.

If a person submits, sponsors, or advocates a departing plan and has used any data described in the definition of prohibited political data, the person shall disclose each data category used and the reason each category was used. Disclosure under this subsection does not make the data use lawful if otherwise prohibited.

(c) Private map-design communications.

A communication concerning district configuration, baseline-map alteration, or a departing plan between a redistricting authority and a legislator, legislative staff member, party officer, candidate, incumbent, campaign, donor, lobbyist, consultant, or outside organization shall be placed in the public record unless protected by a court order or by a specific privilege recognized by law.

SEC. 8. PUBLIC DEVIATIONS FROM BASELINE.

(a) Written findings required.

A departing plan may be considered, approved, recommended, adopted, or defended only if each material deviation from the algorithmic baseline map is supported by written findings identifying the specific permissible deviation criterion, the facts supporting the deviation, the data used, the population affected, and why no narrower deviation is adequate.

(b) Permissible deviation criteria.

A deviation from the algorithmic baseline map may be justified only to—

1. comply with the Constitution;
2. comply with Federal law;
3. comply with a State constitution;
4. comply with a State voting-rights law consistent with the neutral-baseline article;
5. maintain contiguity;
6. reduce avoidable population deviation;
7. preserve a federally recognized tribal community or reservation where lawful and administratively feasible;
8. preserve a municipality, county, precinct, or other political subdivision where lawful and administratively feasible;
9. preserve a compact community of interest supported by public evidence;
10. address a significant geographic barrier or transportation discontinuity;
11. correct a data error, topology error, census-geography error, or implementation error;
12. improve election-administration feasibility without using prohibited political data; or
13. comply with a final court order.

(c) Narrow tailoring.

Each deviation shall be no broader than reasonably necessary to satisfy the identified permissible deviation criterion.

(d) State-law limitation.

A State voting-rights law may justify a deviation only if the law is consistent with the neutral-baseline article, protects equal political opportunity or lawful representation safeguards, and does not authorize a departure broader than necessary to remedy the identified legal or representational injury.

(e) Prohibited justifications.

A deviation may not be justified by partisan advantage, incumbent protection, candidate protection, donor preference, campaign strategy, retaliation against voters, dilution of a disfavored community, or a desire to avoid lawful electoral competition.

SEC. 9. REPRESENTATION-SAFEGUARD REVIEW.

(a) Required review.

Before final adoption of a covered district plan, the redistricting authority shall evaluate whether the algorithmic baseline map or a departing plan unlawfully dilutes voting strength, violates Federal or State voting-rights law, subordinates traditional districting principles without legal necessity, or creates a legally impermissible racial gerrymander.

(b) Limited use of sensitive representation data.

Race, ethnicity, language-minority, tribal, citizenship-age population, voting-age population, and comparable representation data may be used only for review and lawful correction under subsection (a), not for partisan, incumbent-protective, candidate-protective, donor-protective, campaign-protective, factional, or election-performance-based advantage.

(c) Public explanation.

Where a map uses representation data to support a deviation, the redistricting authority shall publish findings explaining the legal basis, factual basis, affected districts, alternative maps considered, and reasons the deviation is narrowly tailored.

(d) No quota or entitlement.

Nothing in this Act authorizes a quota, racial target, partisan target, or predetermined electoral outcome.

SEC. 10. PUBLIC COMMENT, RESPONSE, AND ARCHIVE.

(a) Comment periods.

The State shall provide a public comment period of not less than 30 days after publication of the algorithmic baseline map and not less than 14 days after publication of any materially departing plan, unless a court finds that an emergency election deadline requires a shorter period.

(b) Hearings.

The State shall hold public hearings accessible to residents in different regions of the State and shall provide remote participation to the greatest practicable extent.

(c) Response to material objections.

Before final adoption of a covered district plan, the State shall publish a response to material objections. The response shall state whether the objection is accepted, rejected, or resolved by modification and shall identify the supporting facts and legal criteria.

(d) Public archive.

The State shall maintain a public archive containing the approved redistricting method, data, baseline map, departing plans, written findings, public comments, responses to material objections, hearing materials, final enacted plan, and any judicial order relating to the plan.

SEC. 11. STATE PLAN SUBMISSION AND CERTIFICATION.

(a) Certification.

Before a covered district plan takes effect, the State shall certify that the plan complies with this Act and the neutral-baseline article.

(b) Certification contents.

The certification shall include—

1. the algorithmic baseline map;
2. each departing plan considered;

3. each written deviation finding;
4. the public-comment record;
5. the response to material objections;
6. any representation-safeguard findings;
7. any court order affecting the plan; and
8. a statement identifying the State official or body responsible for maintaining the public archive.

(c) Filing.

The State shall file the certification with the chief election officer of the State and with any Federal officer or repository designated by regulation.

SEC. 12. LEGISLATIVE CONSIDERATION AND JUDICIAL FALLBACK.

(a) Baseline-first legislative rule.

A State legislature may not consider or enact a covered district plan until the algorithmic baseline map and the required written findings have been published.

(b) Constrained amendments.

If legislative amendments are permitted, each amendment shall be accompanied by written findings satisfying section 8 and shall be published before final passage unless a court finds that an emergency election deadline requires shorter notice.

(c) No secret substitute map.

A State may not enact a covered district plan that has not been published, reviewed, and subjected to public comment under this Act, except pursuant to a final court order.

(d) Fallback trigger.

Judicial fallback is available if—

1. the State fails to enact a covered district plan by the applicable legal deadline;
2. the State rejects two plans found compliant by a redistricting authority;
3. the State enacts a plan without the findings, publication, comment, certification, or review required by this Act;
4. a court invalidates an enacted plan and no timely lawful replacement is enacted; or
5. a court finds that the redistricting process has been materially corrupted by prohibited data use, undisclosed map-design communications, or bad-faith evasion of this Act.

(e) Court authority.

Upon a fallback trigger, the court may adopt the algorithmic baseline map, adopt a redistricting-authority recommended plan, appoint a special master, order limited corrections, set an expedited schedule, or provide other relief necessary to implement a lawful district plan.

(f) Remedial preference.

In selecting a remedial plan, the court shall give preference to the algorithmic baseline map or the least-departing lawful plan unless the court finds that a greater departure is necessary to comply with the Constitution, Federal law, State constitutional law, or the neutral-baseline article.

SEC. 13. MID-DECADE REDISTRICTING LIMIT.

(a) General rule.

After a covered district plan is enacted following a Federal decennial census, the State may not enact a replacement plan before the next Federal decennial census except as provided in subsection (b).

(b) Exceptions.

Mid-decade redistricting is permitted only—

1. to comply with a final court order;
2. to correct a legally material census, boundary, or data error;
3. to comply with the Constitution, Federal law, the neutral-baseline article, or State constitutional law;
4. to implement a newly enacted State constitutional redistricting requirement consistent with the neutral-baseline article; or

5. to remedy a plan held invalid by a court of competent jurisdiction.

(c) No partisan-purpose exception.

Partisan advantage, incumbent protection, candidate protection, change in legislative control, change in executive control, or dissatisfaction with the prior plan is not a lawful basis for mid-decade redistricting.

SEC. 14. JUDICIAL REVIEW, STANDING, AND REMEDIES.

(a) Action authorized.

An action to enforce this Act or the neutral-baseline article may be brought by—

1. a voter residing in an affected district;
2. a candidate for office in an affected district;
3. a political subdivision divided or materially affected by a covered district plan;
4. a tribal government divided or materially affected by a covered district plan;
5. a community organization representing members in an affected district;
6. the Attorney General of the United States;
7. the attorney general or chief election officer of a State; or
8. another person authorized by Congress or State law.

(b) Jurisdiction.

The district courts of the United States shall have jurisdiction over an action under this Act.

(c) Expedited review.

A court shall expedite any action under this Act to the greatest practicable extent, especially where delay may affect candidate filing, ballot preparation, primary elections, general elections, or representation during an election cycle.

(d) Remedies.

A court may grant declaratory relief, injunctive relief, remand to a redistricting authority, invalidation of an unlawful departing plan, adoption of a lawful baseline or least-departing remedial plan, appointment of a special master, costs, reasonable attorney's fees where authorized by law, and other appropriate relief.

(e) Interim election relief.

Where an election deadline prevents final resolution before an election, the court may enter interim relief necessary to minimize constitutional and statutory injury while preserving orderly election administration.

SEC. 15. ENFORCEMENT BY THE ATTORNEY GENERAL.

(a) Civil action.

The Attorney General may bring a civil action for declaratory or injunctive relief to enforce this Act and the neutral-baseline article.

(b) Intervention.

The Attorney General may intervene in any action raising a substantial question under this Act or the neutral-baseline article.

(c) No exclusive enforcement.

The authority of the Attorney General under this section is not exclusive and does not limit any private, State, tribal, local-government, or community enforcement authority recognized by section 14.

SEC. 16. REGULATIONS AND TECHNICAL STANDARDS.

(a) Regulations.

The Attorney General, after consultation with the Election Assistance Commission, the Bureau of the Census, and the National Institute of Standards and Technology, may issue regulations necessary to implement this Act.

(b) Technical standards.

Regulations may address algorithm documentation, data publication, code preservation, public archive format, certification forms, conflict disclosures, emergency deadlines, and independent replication standards.

(c) Limitation.

No regulation may authorize use of prohibited political data in the algorithmic baseline map, expand permissible deviation criteria beyond those stated in section 8, or dilute the mandatory neutrality floor established by the neutral-baseline article.

SEC. 17. RELATION TO OTHER LAW.

(a) More protective law preserved.

This Act supplements and does not diminish any protection provided by the Constitution, the Voting Rights Act of 1965, another Federal voting-rights law, a State constitution, a State voting-rights law, State redistricting criteria, State open-meetings law, State public-records law, or another law governing districting.

(b) More protective rule controls.

Where another law requires greater transparency, broader public participation, stricter anti-gerrymandering protection, or stronger minority-vote protection, the more protective provision controls to the extent consistent with the neutral-baseline article and Federal law.

(c) No authorization of prohibited purpose.

No State law, Federal regulation, remedial order, or transition rule may authorize a covered district plan adopted for a purpose prohibited by the neutral-baseline article.

(d) No State-law nullification.

No State voting-rights law, State redistricting criterion, or State procedural rule may be construed to nullify the neutral-baseline process, permit prohibited political data in the algorithmic baseline map, or authorize a deviation broader than necessary to remedy the identified legal or representational injury.

SEC. 18. SEVERABILITY.

If any provision of this Act or its application to any person or circumstance is held invalid, the remainder of this Act and the application of the provision to other persons or circumstances shall not be affected.

SEC. 19. TRANSITION.

(a) First covered cycle.

This Act applies to the first redistricting cycle beginning more than two years after ratification of the neutral-baseline article, unless Congress provides an earlier effective date for congressional districts.

(b) Active-election transition rule.

If implementation would materially disrupt an election for which candidate filing, ballot preparation, early voting, absentee voting, or voting has already begun, Congress may provide a transition rule delaying application only for that election cycle and only to the extent necessary to avoid election-administration disruption.

(c) Written findings.

A transition rule under subsection (b) shall include written findings identifying the election-administration deadline, the specific disruption to be avoided, the offices affected, the affected election cycle, and why a narrower transition rule is inadequate.

(d) Existing districts.

Districts in effect on the date of ratification may remain in effect until the first covered redistricting cycle, unless a court finds that continued use would cause greater constitutional injury.

(e) No repeated or indefinite deferral.

No transition rule may delay application of this Act beyond the next regularly scheduled redistricting cycle or authorize repeated or indefinite deferral.

(f) No extended safe harbor for prohibited purpose.

No transition rule may authorize a district plan adopted for a purpose prohibited by the neutral-baseline article to remain in effect unless required by a court to prevent greater constitutional injury.

Budgetary Impact Statement

Budget authority may be required for Federal technical standards, State certification systems, public data repositories, litigation, special masters, and State implementation assistance; no dollar estimate is assigned pending source-backed cost data.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This is reserve Federal enabling legislation. It is designed to operate only if the Neutral Redistricting Baseline Amendment is ratified.
- The model State act remains ELEC-011's least-complex adequate remedy. This Act supplies the Federal enforcement vehicle for the constitutional reserve path.
- The Act tracks the State model's core architecture: neutral first draft, prohibition on prohibited political data, public deviations, representation-safeguard review, public comment, certification, judicial fallback, mid-decade redistricting limits, and judicial review.
- The Act uses an affected-person standing model aligned with the amendment draft while preserving Attorney General enforcement.
- The Act avoids giving Congress authority to dilute the amendment's mandatory neutrality floor.
- The Act treats State voting-rights laws as permissible protective floors, not as vehicles to override or weaken the neutral-baseline requirement.
- The Act limits active-election transition delay to one election cycle, requires written findings, and bars repeated or indefinite deferral.
- The Act construes the amendment as superseding inconsistent Elections Clause and redistricting authority only to the extent necessary, without altering apportionment among States, Representative qualifications, or unrelated constitutional structures.
- The internal project review examined official Constitution Annotated sources for Article I, Section 2, Article I, Section 4, the Fourteenth Amendment, and the Fifteenth Amendment, and reviewed California Constitution Article XXI as a state constitutional redistricting comparator.
- The internal project review added California implementation and adoption analogues and technical source leads, but this remains a reserve Federal vehicle. Before publication-ready use, qualified review should test jurisdiction, three-judge-court routing, remedies, certification repositories, agency rulemaking assignments, state implementation costs, and technical standards.

Source Notes

- Relation to constitutional amendment: This Act implements the Neutral Redistricting Baseline Amendment and should be read with the amendment's mandatory neutrality floor.
- Relation to State model: The Act parallels the Model State Algorithmic Redistricting Baseline and Public Deviation Act but relies on Federal enforcement power created by the proposed amendment.
- Relation to existing law: The internal project review examined official public sources for *Rucho v. Common Cause*, *Arizona State Legislature v. Arizona Independent Redistricting Commission*, *Allen v. Milligan*, *Louisiana v. Callais*, Iowa Code chapter 42, and California, New York, and Washington state voting-rights-law comparators. The internal project review examined official Constitution Annotated sources for Article I, Section 2, Article I, Section 4, the Fourteenth Amendment, and the Fifteenth Amendment, and California Constitution Article XXI as a state constitutional comparator. The internal project review added California implementation/adoption analogues and technical source leads. Article V, the Voting Rights Act of 1965, Federal three-judge-court redistricting jurisdiction, *Reynolds v. Sims*, state constitutional redistricting provisions, public-records and open-meetings laws, final algorithm selection, and state-specific cost modeling still need deeper review.
- Rule of construction: Nothing in this draft should be construed to authorize partisan, incumbent-protective, candidate-protective, donor-protective, campaign-protective, factional, or election-performance-based manipulation prohibited by the amendment.

ELEC-012 — Campaign Finance Democratic Authority Amendment

ARRP supports H.J.Res. 54, 119th Congress, as the primary constitutional-amendment vehicle for ELEC-012, with a recommended enforcement and federalism clarification described below. H.J.Res. 13, 118th Congress, is preserved as a narrower alternative vehicle if the broader natural-persons and artificial-entity approach in H.J.Res. 54 is not politically or legally viable.

The H.J.Res. 54 amendment text below is copied from a congressional proposal introduced by Members of Congress. It is not ARRP-original amendment text. H.J.Res. 13 is preserved as a linked alternative comparator. ARRP's contribution is the project framing, issue analysis, and linked post-ratification enabling legislation.

Primary Supported Vehicle: H.J.Res. 54, 119th Congress

Source: GovInfo, H.J.Res. 54, 119th Congress, Introduced in House, introduced February 12, 2025.

Article--

Section 1. The rights and privileges protected and extended by the Constitution of the United States are the rights and privileges of natural persons only. An artificial entity, such as a corporation, limited liability company, or other entity, established by the laws of any State, the United States, or any foreign state shall have no rights under the Constitution and are subject to regulation by the People, through Federal, State, or local law. The privileges of an artificial entity shall be determined by the People, through Federal, State, or local law, and shall not be construed to be inherent or inalienable.

Section 2. Federal, State, and local government shall regulate, limit, or prohibit contributions and expenditures, including a candidate's own contributions and expenditures, to ensure that all citizens, regardless of their economic status, have access to the political process, and that no person gains, as a result of that person's money, substantially more access or ability to influence in any way the election of any candidate for public office or any ballot measure. Federal, State, and local governments shall require that any permissible contributions and expenditures be publicly disclosed. The judiciary shall not construe the spending of money to influence elections to be speech under the First Amendment.

Section 3. This amendment shall not be construed to abridge the right secured by the Constitution of the United States of the freedom of the press.

Recommended ARRP Clarifying Section

ARRP recommends adding an express enforcement and federalism section to H.J.Res. 54 before ratification. The purpose is to make clear that Congress may establish minimum nationwide standards for campaign-finance regulation in elections for public office and ballot measures, including statewide elections and statewide ballot measures, without relying on ordinary pre-amendment federal election powers.

Section 4. Congress shall have power to enforce and implement this article by appropriate legislation, including by establishing minimum standards for contributions, expenditures, covered transfers, disclosures, public campaign-finance systems, and artificial-entity political activity in elections for public office and ballot measures.

This power is an affirmative constitutional grant and shall not be limited by any doctrine reserving ordinary election administration, campaign-finance regulation, corporate regulation, ballot-measure regulation, or state-office election regulation to the States. Nothing in this article shall require a State or State officer to administer or enforce federal law, prevent a State from adopting stronger protections consistent with this article, or abridge the freedom of the press.

Alternative Vehicle: H.J.Res. 13, 118th Congress

Source: GovInfo, H.J.Res. 13, 118th Congress, Introduced in House, introduced January 9, 2023.

H.J.Res. 13 remains the narrower Democracy for All-style alternative. Its official text should be reviewed directly if ARRP later shifts from H.J.Res. 54 to the alternative vehicle.

ARRP Position

H.J.Res. 54 is preferred because it directly addresses both sides of the institutional weakness: artificial-entity constitutional status and election-money-as-speech doctrine. ARRP should support H.J.Res. 54 with the recommended Section 4 clarification because statewide-election coverage is too important to leave vulnerable to reserved-to-the-States federalism objections. H.J.Res. 13 is retained as an alternative because it may be more narrowly tailored to campaign finance and easier to defend as a campaign-finance authority amendment rather than a broader corporate-personhood amendment.

The next conformity pass should test whether H.J.Res. 54's artificial-entity language should be narrowed, clarified, or supplemented before publication-ready reliance. Section 1 is not limited to election spending; it says artificial entities have no constitutional rights. That may be the intended Move to Amend / We the People theory, but ARRP should expressly review possible effects on press entities, nonprofit advocacy organizations, religious and civil-rights organizations, due-process and property claims, contract and takings questions, and non-election litigation before treating the text as ready for external circulation.

Historical Enforcement Models

The recommended Section 4 follows the structure of voting-rights amendments that pair a substantive constitutional rule with express congressional enforcement authority.

The Twenty-Sixth Amendment is the closest model. After *Oregon v. Mitchell* divided federal authority over the voting age between federal elections and state elections, the amendment supplied a national rule against age-based denial of the vote for citizens 18 or older and gave Congress enforcement power. That sequence shows why ELEC-012 should not rely on ordinary election federalism if the goal is to reach statewide elections.

The Fifteenth and Nineteenth Amendments supply the core formula: a right may not be denied by the United States or by any State, and Congress may enforce the article by appropriate legislation. The Fifteenth Amendment's enforcement history, including the Voting Rights Act cases, is especially important because it demonstrates that an amendment can alter the ordinary federalism baseline when it gives Congress enforcement authority.

The Fourteenth Amendment's Section 5 is useful but also cautions against ambiguity. *City of Boerne v. Flores* limits Congress when enforcement legislation redefines rather than enforces a constitutional rule. ELEC-012 should therefore make the substantive regulatory authority and the federal/state scope clear in the amendment itself.

The Twenty-Fourth Amendment is the cautionary contrast because it expressly applies only to federal offices. H.J.Res. 54 should avoid any comparable ambiguity if the intended coverage includes statewide elections and statewide ballot measures.

Budgetary Impact Statement

No direct appropriation is anticipated for the amendment itself. Implementing legislation may require funding for disclosure systems, enforcement, public databases, and agency capacity.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This page intentionally preserves the external H.J.Res. 54 text rather than presenting it as ARRP text.
- ARRP's recommended Section 4 is original project drafting and is not part of H.J.Res. 54 as introduced.
- The linked enabling legislation is an ARRP working draft designed to operate after ratification of H.J.Res. 54 with the recommended Section 4 or a substantially similar amendment.
- If a Democracy for All-style amendment resembling H.J.Res. 13 were ratified instead, the enabling legislation would need a narrower conformity review before introduction.
- The internal project review refreshed the external-vehicle posture. H.J.Res. 54 remains an introduced House Judiciary referral with 70 cosponsors on Congress.gov as of July 4, 2026. H.J.Res. 13 and S.J.Res. 45 remain narrower Democracy for All-style alternatives from the 118th Congress, each referred to the relevant Judiciary Committee and not enacted.
- The internal project review confirms that H.J.Res. 54 Section 1 is the main legal-tailoring issue because it reaches artificial-entity constitutional rights generally, not only election spending. The next drafting-conversion pass should draft either a narrower election-activity variant or an explicit rule-of-construction package before external circulation.
- The internal project review did not change ARRP's amendment preference. H.J.Res. 54 remains the strongest fit for ELEC-012's artificial-entity and money-as-speech theory, while H.J.Res. 13/S.J.Res. 45 remain important fallback comparators if the project chooses a narrower campaign-finance-only amendment.
- Before publication-ready reliance, qualified constitutional-law and election-law review should test whether H.J.Res. 54's broader artificial-entity rule should be limited to political activity, paired with additional rules of construction, or preserved as written with explicit discussion of its non-election implications.

Source Notes

- GovInfo, H.J.Res. 54, 119th Congress, Introduced in House.
- Congress.gov, H.J.Res. 54, 119th Congress, current status, cosponsors, and CRS summary.
- GovInfo, H.J.Res. 13, 118th Congress, Introduced in House.
- Congress.gov, H.J.Res. 13, 118th Congress, alternative Democracy for All-style amendment status and cosponsor record.
- Congress.gov, S.J.Res. 45, 118th Congress, Senate Democracy for All-style amendment status.
- Issue One / YouGov, *Campaign Finance - National Toplines* (Oct. 2025), current public-support source used only as limited adoption evidence.
- Congress.gov Constitution Annotated, Twenty-Sixth Amendment.
- Congress.gov Constitution Annotated, Fifteenth Amendment.
- Congress.gov Constitution Annotated, Nineteenth Amendment.
- Congress.gov Constitution Annotated, Twenty-Fourth Amendment.

- *Oregon v. Mitchell*, 400 U.S. 112 (1970).
- *South Carolina v. Katzenbach*, 383 U.S. 301 (1966).
- *City of Rome v. United States*, 446 U.S. 156 (1980).
- *City of Boerne v. Flores*, 521 U.S. 507 (1997).

ELEC-012 — Campaign Finance Democratic Authority FECA Conforming Amendments Act

This proposed enabling legislation depends on ratification of the Campaign Finance Democratic Authority Amendment, preferably through H.J.Res. 54, 119th Congress, with ARRP's recommended enforcement and federalism clarification, or a substantially similar amendment.

The draft is now structured as conforming amendments to the Federal Election Campaign Act of 1971 (FECA), rather than as a freestanding post-ratification statute. The conversion is intended to use existing election-law machinery where it fits, clean up existing law after ratification, and reserve only implementation-failure safeguards for contingency use.

A BILL

To amend the Federal Election Campaign Act of 1971 to implement constitutional authority to regulate campaign contributions, expenditures, artificial-entity political spending, true-source disclosure, public campaign-finance systems, federal elections, covered statewide elections, and covered statewide ballot measures after ratification of an authorizing constitutional amendment.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the "**Campaign Finance Democratic Authority Implementation Act.**"

SEC. 2. FINDINGS AND PURPOSES.

Congress finds that, after ratification of the authorizing constitutional amendment, FECA should be conformed to the restored democratic authority over election money rather than supplemented by an avoidably separate statutory code.

The purposes of this Act are to:

1. restore democratic authority over campaign contributions, expenditures, independent expenditures, electioneering communications, covered transfers, and artificial-entity political spending;
2. ensure that voters can identify the true sources of large election-related spending before voting;
3. regulate artificial-entity treasury spending in elections after ratification of the authorizing amendment;
4. apply baseline standards to federal elections, covered statewide elections, and covered statewide ballot measures;
5. reduce dependence on concentrated private wealth while preserving ordinary individual political speech;
6. preserve press freedom, associational privacy, and viewpoint neutrality;
7. conform post-ratification campaign-finance rules to existing FECA reporting, enforcement, and Commission administration wherever practicable; and
8. provide backup enforcement, filing, intervention, and funding safeguards only when ordinary FECA implementation fails.

SEC. 3. FECA DEFINITIONS FOR POST-RATIFICATION AUTHORITY.

Section 30101 of title 52, United States Code, is amended by adding at the end the following:

1. The term "**authorizing amendment**" means H.J.Res. 54 of the 119th Congress, with the enforcement and federalism clarification recommended by ARRP, or a substantially similar constitutional amendment that authorizes Congress and the States to regulate campaign contributions, expenditures, artificial-entity political spending, election-money disclosure, covered statewide elections, and covered statewide ballot measures.
2. The term "**artificial entity**" means a corporation, limited liability company, partnership, labor organization, nonprofit organization, association, trust, political committee, or other legal entity that is not a natural person.
3. The term "**covered election**" means an election for Federal office, a covered statewide election, or a covered statewide ballot measure.
4. The term "**covered election spending**" means a contribution, expenditure, independent expenditure, electioneering communication, coordinated communication, covered transfer, public communication, disbursement, or thing of value made, solicited, received, directed, or used to influence a covered election.
5. The term "**covered statewide ballot measure**" means a proposed constitutional amendment, statute, referendum, initiative, recall, retention question, bond question, statewide charter question, or other measure submitted to voters throughout a State.
6. The term "**covered statewide election**" means an election for Governor, Lieutenant Governor, Attorney General, Secretary of State, Treasurer, Auditor, Comptroller, State supreme court or court of last resort, statewide elected regulatory office, United States Senator, presidential electors, or any other office elected by voters throughout a State.

7. The term "**covered transfer**" means any transfer, payment, loan, advance, deposit, gift, subscription, or thing of value to another person or entity if the transferor knows, has reason to know, solicits, designates, restricts, or is informed that the funds or thing of value may be used for covered election spending.
8. The term "**foreign-influenced entity**" means an artificial entity in which a foreign national, foreign government, foreign political party, or entity organized under foreign law directly or indirectly:
- owns or controls 20 percent or more of equity, membership interest, beneficial interest, or voting power;
 - has authority to appoint, remove, direct, or veto any officer, director, general partner, trustee, manager, or comparable decisionmaker;
 - participates in any decision concerning covered election spending;
 - directs, finances, or controls the covered election spending; or
 - supplies funds used for a covered transfer.
9. The term "**true source**" means the natural person, artificial entity, account, fund, or other source that provided funds or a thing of value for covered election spending before any pass-through, conduit, intermediary, earmark, shell-entity transfer, or other arrangement that obscures origin.

Nothing in the amendments made by this section changes the meaning of "election" in section 30101(1) except for the post-ratification provisions that expressly use the term "covered election."

SEC. 4. TRUE-SOURCE DISCLOSURE AND COVERED-TRANSFER REPORTING.

Section 30104 of title 52, United States Code, is amended by adding at the end the following:

(j) Post-ratification true-source and covered-transfer reports.

1. A person or artificial entity that makes more than \$10,000 in aggregate covered election spending during an election cycle shall file a true-source report with the Commission.
2. A person or artificial entity that provides more than \$1,000 in aggregate funds or things of value that are designated for, restricted to, solicited for, transferred for, earmarked for, or knowingly provided for covered election spending shall be identified in the report required by this subsection.
3. Each report shall include:
 - the name, address, and, for an artificial entity, principal place of business of each true source;
 - the amount, date, and form of each covered transfer or other covered election spending;
 - each intermediary, conduit, account, shell entity, or transfer path through which the funds or thing of value passed;
 - the covered election, candidate, party, committee, question, or position supported or opposed;
 - the person or artificial entity exercising final spending authority; and
 - a certification that the filer used reasonable diligence to identify each true source.
4. A report under this subsection shall be filed electronically not later than 48 hours after a filer crosses a reporting threshold.
5. During the final 30 days before a covered election, a report under this subsection shall be filed not later than 24 hours after an additional covered transfer or covered election spending that is required to be reported.
6. The Commission shall make reports filed under this subsection publicly searchable upon receipt, except that the Commission or a court may permit confidential filing, redaction, or delayed public disclosure when necessary to protect against threats, harassment, reprisals, or comparable associational harms and when such protection can be provided without defeating the voter-information purpose of this subsection.
7. The Commission may publish ministerial inflation adjustments for the dollar thresholds in this subsection based on the Consumer Price Index. The Commission may not otherwise raise a threshold, delay a deadline, narrow true-source reporting, or create a categorical exemption unless Congress expressly authorizes the change.
8. A person shall not evade this subsection through straw donors, conduits, shell entities, layered transfers, mixed-purpose accounts, fiscal sponsorship, vendor prepayment, independent-expenditure-only committees, tax-exempt entities, or other arrangements that obscure the true source of covered election spending.

SEC. 5. ARTIFICIAL-ENTITY ELECTION SPENDING.

Section 30118 of title 52, United States Code, is amended by adding at the end the following:

(f) Post-ratification artificial-entity election spending.

1. After the effective date of the Campaign Finance Democratic Authority Implementation Act, an artificial entity may not make covered election spending from general treasury funds unless expressly authorized by this Act or by another Act of Congress enacted pursuant to the authorizing amendment.
2. An artificial entity may establish, administer, or solicit contributions to a separately segregated fund for covered election spending if the fund:
 - receives contributions only from natural persons who are United States citizens or lawful permanent residents;
 - complies with the true-source reporting requirements of section 30104(j);
 - does not accept funds from a foreign-influenced entity, federal contractor account, shell entity, conduit, general treasury account, or other prohibited source;
 - maintains separate accounting sufficient to identify each true source and covered transfer; and
 - complies with the contribution, covered-transfer, and coordination limits of section 30116.
3. This subsection does not prohibit:
 - bona fide press activity;
 - ordinary commercial activity not undertaken to influence a covered election;
 - nonpartisan voter-registration, voter-education, or get-out-the-vote activity that is not coordinated with a candidate, party, political committee, or covered ballot-measure committee and does not support or oppose a covered election outcome;
 - internal communications to members, shareholders, or employees, subject to ordinary FECA limits and reporting rules; or
 - administration of a political committee or separately segregated fund funded only by disclosed lawful natural-person contributions.
4. An artificial entity that makes, authorizes, solicits, administers, or facilitates covered election spending shall maintain records for not less than 6 years and certify compliance with this subsection.
5. Congress may by statute require board, shareholder, member, employee, union-member, beneficiary, or comparable governance approval before an artificial entity may authorize covered election spending, provided that the requirement is viewpoint-neutral and consistent with the authorizing amendment.

SEC. 6. CONTRIBUTION, COVERED-TRANSFER, AND COORDINATION LIMITS.

Section 30116 of title 52, United States Code, is amended by adding at the end the following:

(k) Post-ratification limits for covered elections.

1. After the effective date of the Campaign Finance Democratic Authority Implementation Act, Congress may limit contributions, covered transfers, and other funds provided to a political committee, independent-expenditure-only committee, ballot-measure committee, or other spender for covered election spending to the extent authorized by the authorizing amendment.
2. Unless Congress enacts a different limit after ratification, a person or artificial entity may not make contributions or covered transfers to an independent-expenditure-only political committee in an aggregate amount greater than \$5,000 in a calendar year. The Commission shall index that amount under the same ministerial inflation-adjustment method used for comparable limits under this section.
3. The limit in paragraph 2 applies to any covered transfer made directly, indirectly, through affiliated entities, through accounts under common control, through intermediaries or conduits, or through any arrangement that has the purpose or effect of evading the limit.
4. A communication, payment, covered transfer, vendor arrangement, fundraising solicitation, data exchange, targeting assistance, strategic discussion, republication, or other thing of value shall be treated as coordinated when it satisfies the coordination standards otherwise applicable under this Act or under Commission regulations that are consistent with the authorizing amendment.
5. A person shall not evade this subsection by routing funds through tax-exempt entities, fiscal sponsors, vendors, donor-advised funds, affiliated artificial entities, shell entities, consultants, pass-through accounts, or mixed-purpose committees.
6. This subsection does not limit the lawful spending of a natural person from that person's own funds except to the extent Congress expressly provides under the authorizing amendment and consistent with the rules of construction in this Act.

SEC. 7. FOREIGN-INFLUENCED ENTITIES AND ANTI-CONDUIT RULES.

Section 30121 of title 52, United States Code, is amended by adding at the end the following:

(d) Foreign-influenced artificial entities.

1. A foreign-influenced entity may not directly or indirectly make covered election spending, provide funds for covered election spending, provide a covered transfer, establish or fund a separately segregated fund for covered election spending, or use a domestic person, artificial entity, account, vendor, committee, or intermediary to evade this section.
2. A domestic artificial entity that makes covered election spending shall certify that it is not a foreign-influenced entity and that no foreign national, foreign government, foreign political party, or entity organized under foreign law directly or indirectly participated in any decision concerning the spending.
3. A domestic person or artificial entity shall not knowingly accept or use funds for covered election spending when the person or entity knows, has reason to know, or consciously avoids knowing that the funds originated with, were directed by, or were provided through a foreign-influenced entity.
4. Federal contractors and entities seeking or holding substantial federal contracts, grants, licenses, concessions, or regulatory approvals may be subject to heightened disclosure, anti-coercion, and anti-evasion rules under this Act to prevent public power from being converted into election leverage.
5. Nothing in this subsection limits any broader prohibition on foreign-national contributions, donations, expenditures, disbursements, or election activity under this section or any other provision of law.

SEC. 8. FEC ADMINISTRATION; FORMS; DATABASES; ADVISORY-OPINION LIMITS.

Section 30106 of title 52, United States Code, is amended by adding at the end the following:

(g) Post-ratification implementation duties.

1. Not later than 180 days after the effective date of the Campaign Finance Democratic Authority Implementation Act, the Commission shall publish forms, electronic filing specifications, database standards, advisory guidance, and ministerial inflation adjustments necessary to administer the amendments made by that Act.
2. The substantive duties created by the Campaign Finance Democratic Authority Implementation Act are self-executing. No person, artificial entity, political committee, candidate, covered spender, or federal officer may treat the absence, delay, deadlock, withdrawal, or narrowing of Commission regulations as suspending, limiting, or postponing a duty imposed by statute.
3. The Commission may issue gap-filling regulations only when consistent with the text, purposes, thresholds, deadlines, and anti-evasion rules enacted by Congress.
4. No Commission regulation, advisory opinion, enforcement manual, guidance document, safe harbor, or failure to act may create an exemption, delay a statutory deadline, narrow a statutory definition, raise a disclosure threshold, authorize artificial-entity treasury spending, or otherwise defeat a statutory purpose unless expressly authorized by Congress.
5. If the Commission fails to publish required forms, filing specifications, or electronic systems by the deadline, a filing may be made in any reasonable written or electronic form containing the information required by statute. A filer acting in good faith shall not be penalized solely for failure to use a Commission form or system that was not reasonably available.
6. Commission staff may receive, timestamp, publish, and process filings required under the amendments made by the Campaign Finance Democratic Authority Implementation Act without awaiting a vote of the Commission, except where a vote is required for adjudicatory enforcement under this Act.

SEC. 9. ENFORCEMENT; DIRECT CIVIL ACTIONS AFTER FAILURE TO ACT.

Section 30109 of title 52, United States Code, is amended by adding at the end the following:

(f) Post-ratification enforcement and failure-to-act remedies.

1. The Commission may investigate and impose civil penalties for violations of the amendments made by the Campaign Finance Democratic Authority Implementation Act under the procedures of this section, except as otherwise provided in this subsection.
2. The Attorney General may bring a civil action to enforce the amendments made by the Campaign Finance Democratic Authority Implementation Act and may pursue criminal penalties for knowing and willful violations where otherwise authorized by law.
3. A candidate, political committee, voter, donor, State attorney general, filer, complainant, or organization directly affected by a violation may file an administrative complaint with the Commission.
4. If the Commission fails to act within 90 days, dismisses a complaint because of deadlock, lacks a quorum, fails to publish required forms, fails to make required disclosure information public, or otherwise fails to enforce a self-executing duty, the complainant or another directly affected person may bring a civil action in the United States District Court for the District of Columbia or in the district where the violation, filing, or covered election activity occurred.
5. Exhaustion before the Commission is not required when delay would prevent voters from receiving required information before a covered election, when the Commission lacks a quorum, when the Commission has failed to publish required forms or filing systems,

or when a Commission deadlock prevents action.

6. The court shall expedite any action brought under this subsection when disclosure, filing access, ballot-measure information, or pre-election voter information is at issue.
7. Relief may include declaratory relief, temporary or permanent injunctive relief, disclosure orders, compliance schedules, appointment of a special master for disclosure administration, civil penalties payable to the Treasury, fee awards, and any other relief necessary to enforce the statute.
8. Any civil penalty imposed under this subsection shall consider the seriousness of the violation, whether the violation was knowing or willful, the amount of covered election spending, the timing of the violation, the degree of concealment, the extent of voter-information harm, corrective action, and prior compliance history.

SEC. 10. IMPLEMENTATION-FAILURE SAFEGUARDS.

Section 30109 of title 52, United States Code, as amended by section 9, is further amended by adding at the end the following:

(g) Covered implementation failures.

1. A covered implementation failure occurs when the Commission or another federal officer:
 - fails to publish required forms, electronic filing specifications, database standards, or ministerial guidance by a statutory deadline;
 - lacks a quorum, deadlocks, or otherwise fails to act on a complaint, filing, enforcement matter, advisory-opinion request, disclosure dispute, audit, or database duty within a statutory deadline or within 90 days if no shorter deadline applies;
 - issues, relies on, or refuses to withdraw an advisory opinion, enforcement policy, safe harbor, guidance document, or other agency position that narrows, delays, suspends, or contradicts a duty imposed by statute;
 - fails to make required disclosure information public within the time required by statute;
 - selectively enforces the statute in a manner not reasonably explained by statutory criteria, evidentiary differences, resource constraints, or ordinary enforcement priorities;
 - withholds, delays, conditions, impounds, or prevents the obligation or expenditure of funds appropriated to administer or enforce the statute;
 - removes, reassigns, disciplines, threatens, or materially burdens a commissioner, employee, contractor, filer, complainant, witness, or covered person because of lawful administration, compliance, disclosure, testimony, or enforcement; or
 - fails adequately to defend the statute, confesses error, enters a settlement, or takes a litigation position that would materially impair implementation without providing Congress and affected parties a reasonable opportunity to intervene.
2. Upon a covered implementation failure affecting filing or publication, a filer may satisfy the statute by filing the required information with the Commission in any reasonable written or electronic form and by contemporaneously filing the same information with the Clerk of the United States District Court for the District of Columbia, the Government Accountability Office, and the committees of Congress with jurisdiction over federal elections or campaign finance.
3. The Clerk, GAO, or a congressional committee receiving a backup filing under this subsection may make the filing publicly available. Publication through a backup channel satisfies the public-disclosure requirement until the Commission restores ordinary publication.
4. Upon a covered implementation failure, any candidate, political committee, voter, donor, State attorney general, filer, complainant, or organization directly affected by the failure may bring a civil action in the United States District Court for the District of Columbia or in the district where the violation, filing, or covered election activity occurred.
5. Either House of Congress, a committee of Congress with jurisdiction over federal elections or campaign finance, the Bipartisan Legal Advisory Group or comparable House authority, the Senate Legal Counsel, a State attorney general, and any directly affected candidate, voter, filer, complainant, or organization may intervene as of right in any action challenging, enforcing, limiting, settling, or declining to defend a provision amended or added by the Campaign Finance Democratic Authority Implementation Act.
6. No settlement, confession of error, consent judgment, advisory opinion, nonenforcement position, or litigation position by the Department of Justice, the Commission, or any other executive officer shall bind Congress, State attorneys general, intervenors, or a reviewing court on the meaning, validity, or enforcement of a provision amended or added by the Campaign Finance Democratic Authority Implementation Act.
7. Amounts appropriated to administer or enforce the amendments made by the Campaign Finance Democratic Authority Implementation Act shall be apportioned, allotted, obligated, and made available in the ordinary course and may not be withheld, delayed, conditioned, impounded, or used to prevent implementation.
8. GAO may audit compliance with paragraph 7 and report any withholding, delay, condition, impoundment, or implementation obstruction to Congress. A court may order funds made available, require filing-system or database performance, and enjoin an officer or employee from obstructing implementation.

9. An advisory opinion, enforcement policy, guidance document, safe harbor, or failure to act by the Commission may not excuse noncompliance with a clear statutory duty. During a covered implementation failure, a regulated person may rely only on a safe harbor expressly stated in statute or on a written judicial order.
10. A commissioner, employee, contractor, filer, complainant, witness, or covered person who has substantial reason to believe that a federal officer or employee has obstructed, delayed, narrowed, retaliated against, or otherwise interfered with implementation may submit a confidential notice to the Inspector General of the Commission, GAO, and the committees of Congress with jurisdiction over federal elections or campaign finance.

SEC. 11. PUBLIC CAMPAIGN-FINANCE SYSTEMS.

Chapter 301 of title 52, United States Code, is amended by adding at the end a new section, to be numbered and placed by the Office of Law Revision Counsel, as follows:

Public campaign-finance systems after ratification.

1. Congress may establish, fund, and administer public campaign-finance systems for covered elections, including small-donor matching, democracy vouchers, grants, tax credits, spending offsets, and other lawful systems designed to reduce dependence on concentrated private wealth.
2. Participation may be conditioned on reasonable contribution, expenditure, disclosure, debate, and accountability requirements consistent with the authorizing amendment.
3. A public campaign-finance system may not penalize a nonparticipating speaker, award public funds solely because of an opponent's spending, or otherwise burden protected political expression except to the extent expressly authorized by the authorizing amendment.
4. Congress may provide grants, technical assistance, filing-system support, database support, and audit support to States that establish or administer parallel public campaign-finance systems consistent with State law.

SEC. 12. COVERED STATEWIDE ELECTIONS; STATE AUTHORITY PRESERVED.

Chapter 301 of title 52, United States Code, is amended by adding at the end a new section, to be numbered and placed by the Office of Law Revision Counsel, as follows:

Covered statewide elections and covered statewide ballot measures.

1. The post-ratification standards added by the Campaign Finance Democratic Authority Implementation Act apply to covered statewide elections and covered statewide ballot measures to the same extent that they apply to elections for Federal office.
2. As applied solely to covered statewide elections and covered statewide ballot measures, sections 30104(j), 30116(k), 30118(f), 30121(d), 30109(f), 30109(g), and the public campaign-finance section added by this Act shall take effect on the date that is 18 months after the effective date of the Campaign Finance Democratic Authority Implementation Act.
3. A State may elect earlier application by statute, regulation, or written certification by the State's chief election officer or other officer designated by State law.
4. During the statewide-election transition period, each State may review its campaign-finance, corporate, ballot-measure, public-financing, disclosure, enforcement, and election-administration laws for consistency with the post-ratification FECA baseline.
5. The Commission, GAO, and the committees of Congress with jurisdiction over federal elections or campaign finance may publish nonbinding transition guidance, model crosswalks, and technical assistance materials for State review.
6. The transition period does not delay application to elections for Federal office, excuse evasion through mixed-purpose spending, authorize foreign-influenced covered election spending, or prevent a State from enforcing parallel or stronger State law.
7. Nothing in this section requires a State or State officer to administer, investigate, enforce, publish, or defend federal law. A State may administer parallel or stronger campaign-finance rules under State law, and a State attorney general or State election authority may enforce federal law only as authorized by Congress and by State law.
8. Nothing in this section preempts a State law governing campaign finance, corporate powers, disclosure, public financing, foreign-influenced spending, contractor-linked spending, ballot measures, or artificial-entity political activity unless compliance with both State law and federal law is impossible or the State law authorizes conduct prohibited by federal law.
9. For mixed-purpose communications, transfers, or spending that affect both a covered election and an election or ballot measure outside the scope of this Act, federal law applies to the portion, source, transfer, communication, or activity reasonably attributable to influencing the covered election. A covered person shall not evade this Act by combining covered election spending with noncovered election spending.

SEC. 13. RULES OF CONSTRUCTION.

Nothing in this Act or the amendments made by this Act shall be construed to:

1. abridge the freedom of the press;

2. authorize viewpoint discrimination;
3. suppress ordinary individual political speech;
4. prevent reasonable protection of associational privacy;
5. displace stronger State campaign-finance laws consistent with the Constitution;
6. require disclosure of small donors below statutory thresholds;
7. authorize public campaign-finance mechanisms that penalize nonparticipating speakers except to the extent expressly authorized by the authorizing amendment; or
8. take effect to the extent the provision depends on constitutional authority not supplied by ratification of the authorizing amendment.

Disclosure duties under this Act shall be administered and construed to preserve narrow tailoring, protect against threats, harassment, reprisals, and comparable associational harms, and permit confidential filing, redaction, or delayed public disclosure when a court finds that such relief is required by the Constitution and does not defeat the voter-information purpose of the statute.

SEC. 14. EFFECTIVE DATE.

This Act and the amendments made by this Act shall take effect on the date the Archivist of the United States certifies ratification of H.J.Res. 54, 119th Congress, with ARRP's recommended enforcement and federalism clarification, or a substantially similar constitutional amendment authorizing Congress to regulate campaign contributions, expenditures, artificial-entity political spending, election-money disclosure, statewide elections, and statewide ballot measures.

SEC. 15. SEVERABILITY.

If any provision of this Act, an amendment made by this Act, or the application of such provision or amendment to any person or circumstance is held invalid, the remainder of this Act, the amendments made by this Act, and the application of such provisions and amendments to any other person or circumstance shall not be affected.

Budgetary Impact Statement

Budget authority is likely required for FEC administration and enforcement, true-source disclosure systems, database modernization, audits, public campaign-finance programs, and federal-state implementation support. No federal dollar estimate is assigned pending source-backed cost data.

The Maine 2024 Citizen's Guide provides only a floor-level implementation analogue: a \$75,000 one-time database and filing-system programming estimate for a narrower state super PAC contribution-limit initiative. That figure is not a federal cost model.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This is an initial FECA conforming-amendment draft, not a final legislative-counsel product.
- The Act is drafted to operate only after ratification of H.J.Res. 54 with ARRP's recommended enforcement and federalism clarification, or a substantially similar constitutional amendment.
- The conversion removes the prior freestanding structure and maps the remedy into existing FECA provisions: definitions in 52 U.S.C. 30101; reporting in 52 U.S.C. 30104; FEC administration in 52 U.S.C. 30106; enforcement and implementation-failure safeguards in 52 U.S.C. 30109; contribution and covered-transfer limits in 52 U.S.C. 30116; artificial-entity treasury spending in 52 U.S.C. 30118; and foreign-influenced money in 52 U.S.C. 30121.
- The draft uses FECA's existing structure where possible but still requires legislative-counsel review for final subsection placement, cross-references, table-of-sections amendments, criminal-penalty placement, and effective-date mechanics.
- The super PAC contribution-limit default uses Maine's \$5,000 state experiment as a working post-ratification placeholder. It should be reviewed against the final amendment text, federal policy goals, inflation indexing, and the full *Dinner Table Action v. Schneider* merits record before publication-ready reliance.
- The statewide-election layer includes an 18-month transition period so States can review existing law against the new baseline; the next drafting pass should test whether that period should instead be keyed to election cycles, legislative sessions, or FEC/State system readiness.
- If Congress proceeds under a narrower Democracy for All-style amendment, the artificial-entity, money-as-speech, statewide-election, and public-financing provisions should receive a conformity review.
- Section 10 is intentionally contingent: it preserves ordinary FEC administration unless defined implementation failures trigger backup filing, direct enforcement, intervention, funding-protection, and interference-reporting safeguards.
- Official Hawai'i State Legislature status and text endpoints for SB2471 / Act 011 have been verified. Use Hawaii as a state corporate-powers comparator and legal-theory source, not as a federal implementation model, until the enacted CD2 text receives a

section-by-section comparison.

- Public CourtListener/RECAP docket metadata has been located for *Dinner Table Action v. Schneider*, including the District of Maine docket No. 1:24-cv-00430 and First Circuit appeal No. 25-1705. Full merits-document review and official court/PACER verification remain pending before publication-ready reliance.
- Current Issue One/YouGov polling supports public concern and adoption analysis, but it does not replace an Article V ratification strategy, neutral polling, stakeholder validation, or external review.
- Disclosure rules should be tested against *Buckley*, *McCutcheon*, and *Americans for Prosperity Foundation v. Bonta* for true-source transparency, tailoring, harassment risk, and associational privacy.
- Public-financing provisions should avoid opponent-triggered matching-fund structures or other burdens on nonparticipating speakers identified in *Arizona Free Enterprise Club's Freedom Club PAC v. Bennett*.
- FEC structure and deadlock repair may require a separate companion proposal if ELEC-012 remains focused on substantive campaign-finance authority.

Source Notes

- GovInfo, H.J.Res. 54, 119th Congress, Introduced in House.
- GovInfo, H.J.Res. 13, 118th Congress, Introduced in House.
- Congress.gov, H.R. 1118, 118th Congress, DISCLOSE Act of 2023.
- Congress.gov, H.R. 1, 117th Congress, For the People Act of 2021.
- Congress.gov, S. 1, 118th Congress, Freedom to Vote Act.
- U.S. Code, 52 U.S.C. 30101, FECA definitions.
- U.S. Code, 52 U.S.C. 30104, reporting requirements.
- U.S. Code, 52 U.S.C. 30106, Federal Election Commission structure and voting thresholds.
- U.S. Code, 52 U.S.C. 30109, enforcement.
- U.S. Code, 52 U.S.C. 30116, contribution and expenditure limits.
- U.S. Code, 52 U.S.C. 30118, corporate and labor-organization contributions or expenditures.
- U.S. Code, 52 U.S.C. 30121, foreign-national contributions and donations.
- U.S. Supreme Court, *Buckley v. Valeo* (1976).
- U.S. Supreme Court, *McCutcheon v. Federal Election Commission* (2014).
- U.S. Supreme Court, *Federal Election Commission v. Ted Cruz for Senate* (2022).
- U.S. Supreme Court, *Arizona Free Enterprise Club's Freedom Club PAC v. Bennett* (2011).
- U.S. Supreme Court, *Americans for Prosperity Foundation v. Bonta* (2021).
- Federal Election Commission, FEC approves two advisory opinions in wake of Citizens United and SpeechNow decisions (July 22, 2010).
- Federal Election Commission, Advisory Opinion 2010-11, Commonsense Ten.
- Federal Election Commission, Advisory Opinion 2010-09, Club for Growth.
- Maine Secretary of State, *Maine Citizen's Guide to the Referendum Election, November 5, 2024*, Question 1 text, segregated-funds design, fiscal impact, and constitutional-litigation caution.
- Maine Secretary of State, Election Results 2024, official referendum-result tabulation source page.
- Issue One / YouGov, *Campaign Finance - National Toplines* (Oct. 2025).
- Hawai'i State Legislature, SB2471 measure status page, official Act 011 status, description, and history.
- Hawai'i State Legislature, SB2471 CD2 text, official final bill-text endpoint for Act 011 comparison.
- CourtListener / RECAP, *Dinner Table Action v. Schneider*, First Circuit No. 25-1705, public docket metadata and available filings for Maine super PAC contribution-limit appeal.
- CourtListener / RECAP, *Dinner Table Action v. Schneider*, District of Maine No. 1:24-cv-00430, public docket metadata and available filings for district-court case.

- LegiScan, Hawaii SB2471, Relating to the Powers of Artificial Persons, retained as a non-official routing/status lead now superseded for official Hawaii verification by the Hawai'i State Legislature sources.

ELEC-013 — Federal Candidate Access and Debate Transparency Act

A BILL

To amend the Help America Vote Act of 2002 to establish a federal candidate-access filing interface, publication requirements, notice-and-cure floors, and certification-status reporting for elections for Federal office and presidential elector elections; to amend the Federal Election Campaign Act of 1971 to require transparency for candidate-debate criteria connected to Federal Election Commission debate treatment or Federal public benefits; and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the "**Federal Candidate Access and Debate Transparency Act.**"

SEC. 2. PURPOSES.

The purposes of this Act are:

1. to reduce unnecessary procedural barriers that make Federal candidate access depend on a preexisting party apparatus rather than voter support, lawful eligibility, and administrable filing rules;
2. to create a standardized Federal filing interface through which covered candidates may submit baseline candidate-access information for transmission to State election officials;
3. to preserve State authority over neutral substantive ballot-access requirements, including signature thresholds, party-recognition rules, elector-slate rules, anti-fraud safeguards, ballot-order rules, and final certification procedures;
4. to require timely public notice of State candidate-access requirements, prompt defect notice, meaningful cure opportunities for technical defects, and public certification-status reporting;
5. to improve voter information by requiring transparent candidate-selection criteria for covered debates that receive Federal public benefits or seek Federal Election Campaign Act debate treatment;
6. to prevent debate criteria from using major-party nomination as a functional proxy while avoiding compelled private press hosting or editorial control; and
7. to assign administration to the Election Assistance Commission, Federal Election Commission, Department of Justice, and courts according to their existing institutional roles.

TITLE I - FEDERAL CANDIDATE ACCESS FILING INTERFACE

SEC. 101. HELP AMERICA VOTE ACT AMENDMENTS.

The Help America Vote Act of 2002 is amended by adding at the end the following new title:

TITLE XII - FEDERAL CANDIDATE ACCESS INTERFACE

SEC. 1201. DEFINITIONS.

In this title:

1. **Commission** means the Election Assistance Commission.
2. **Covered candidate** means a candidate for Federal office, or a candidate for President or Vice President seeking access to the ballot for a presidential elector election, who submits or intends to submit candidate-access materials to a covered State.
3. **Covered election** means an election for Federal office or a presidential elector election.
4. **Covered State** means a State, the District of Columbia, or a territory to the extent the jurisdiction administers a covered election.
5. **Federal access form** means the standardized candidate-access filing form and electronic submission format established under section 1202.
6. **Federal candidate-access rule** means a requirement of this title governing the Federal access form, publication of State requirements, notice of defects, cure of technical defects, certification-status reporting, or public dashboard reporting, and does not include a State substantive ballot-access requirement preserved under section 1204.
7. **Material defect** means a defect that prevents a State election official from determining candidate identity, office sought, candidate consent, elector-slate consent, signature sufficiency, filing timeliness, fee payment, eligibility certification, or compliance with a substantive State ballot-access requirement.

8. **Presidential candidate packet** means the Federal access form, any required State supplement, elector-slate materials, candidate and vice-presidential candidate consents, petition materials if applicable, fee materials if applicable, and supporting documentation submitted by or for a presidential or vice-presidential candidate.
9. **State supplement** means a State-specific form, attestation, petition page, elector-slate document, fee schedule, or instruction that is required by State law and published under section 1203.
10. **Technical defect** means a missing field, formatting error, clerical error, incomplete attachment, signature-page irregularity, notarization defect, elector-contact defect, committee-identification defect, or comparable defect that can be corrected without changing the candidate, office sought, elector slate, signers, filing timeliness, signature sufficiency, candidate eligibility, or substantive basis for ballot access.

SEC. 1202. FEDERAL ACCESS FORM AND CLEARINGHOUSE.

(a) Establishment.

Not later than 1 year after the date of enactment of this title, the Commission shall establish a Federal access form and an electronic clearinghouse through which a covered candidate may submit baseline candidate-access information for transmission to covered States.

(b) Contents.

The Federal access form shall permit a covered candidate to provide:

1. the candidate's legal name, ballot name if different, office sought, party or independent designation if applicable, contact information, and authorized filing agent;
2. for a presidential candidate, the name, consent, and contact information of the vice-presidential candidate;
3. the candidate's principal campaign committee, Federal Election Commission identification number if available, treasurer, and campaign contact information;
4. the State or States for which the candidate seeks ballot access or certification status;
5. the ballot-access route claimed in each State, including party nomination, independent petition, minor-party petition, new-party filing, write-in registration, elector-slate filing, or other route provided by State law;
6. elector-slate information for presidential elector elections, including elector names, consents, substitutions if permitted, and certifications required by State law;
7. petition metadata, signature totals, circulator information, filing dates, and related attachments where State law requires petition materials;
8. fee-payment information or fee-waiver information where State law requires a filing fee;
9. candidate eligibility, consent, anti-fraud, and penalty-of-perjury certifications; and
10. any other baseline information reasonably necessary to transmit candidate-access materials to covered States.

(c) Transmission to States.

The Commission shall transmit a covered candidate's submitted Federal access form and associated materials to each covered State identified by the candidate not later than 1 business day after receipt, except that the Commission may adopt reasonable cybersecurity, authentication, and file-integrity procedures.

(d) No ballot entitlement.

Submission, receipt, or transmission of a Federal access form does not itself entitle a candidate to ballot placement, write-in recognition, elector certification, debate inclusion, public funds, or any other status under State or Federal law.

(e) Accessibility and languages.

The Commission shall design the Federal access form and clearinghouse to meet accessibility standards and shall provide plain-language instructions. The Commission may provide translations or language-access tools, but a covered State may require an English-language legal filing where State law so provides.

SEC. 1203. STATE SUPPLEMENTS AND PUBLICATION OF REQUIREMENTS.

(a) Publication.

For each regularly scheduled general election for Federal office and each presidential elector election, a covered State shall publish candidate-access requirements in a machine-readable and human-readable format not later than 360 days before the election, or as soon as practicable after a statutory, regulatory, judicial, or emergency change.

(b) Required contents.

The published requirements shall include:

1. each filing deadline, cure deadline, challenge deadline, withdrawal deadline, elector-substitution deadline, and certification deadline;
2. each candidate-access route available under State law;
3. signature thresholds, geographic-distribution rules, petition-page rules, circulator rules, notarization rules, witness rules, and signer-eligibility rules;
4. filing fees, fee waivers, oath requirements, elector-slate requirements, party-recognition requirements, independent-candidate requirements, write-in requirements, and substitution rules;
5. required State supplements and the information that each supplement requires beyond the Federal access form;
6. the State office or officer responsible for receiving, reviewing, challenging, curing, accepting, rejecting, and certifying filings;
7. defect-notice procedures and cure procedures;
8. challenge procedures, hearing procedures, judicial-review routes, and emergency contact information; and
9. the State's certification-status categories and public reporting method.

(c) Nonduplication.

A covered State may not reject a covered candidate's filing solely because the candidate used the Federal access form to provide information that is identical in substance to information requested on a State form, except to the extent a State supplement is required by State law and published under this section.

(d) Unpublished procedural conditions.

A covered State may not reject a covered candidate's filing for failure to satisfy an unpublished procedural condition unless the condition is expressly required by State statute, State constitution, binding court order, or Federal law and the State provides a prompt cure opportunity where cure is practicable.

(e) Emergency changes.

If a covered State changes a candidate-access requirement after the publication deadline under subsection (a), the State shall publish the change, notify affected candidates who have filed through the Federal access form or the State filing system, and provide a reasonable transition or cure period unless a court order or Federal law requires immediate effect.

SEC. 1204. BASELINE ACCEPTANCE AND STATE AUTHORITY.

(a) Baseline acceptance.

For a covered election, a covered State shall accept the Federal access form as satisfying baseline candidate-identity, office-sought, candidate-consent, campaign-contact, Federal committee-identification, and filing-agent information requirements to the extent the Federal access form contains the required information.

(b) State supplements preserved.

Nothing in this title prohibits a covered State from requiring a State supplement, petition page, fee, elector-slate document, oath, signature verification, party-recognition filing, independent-candidate filing, write-in filing, or other material required by State law, provided that the requirement is published under section 1203 and administered consistently with this title and other applicable law.

(c) Presidential elector elections.

For a presidential elector election, this title establishes a Federal filing interface, notice floor, cure floor, and reporting floor. It does not require a State to appoint electors in any particular manner, alter the number of electors, recognize a party, accept an elector slate, or place a candidate on the ballot unless the candidate satisfies applicable State and Federal law.

(d) Congressional elections.

For elections for Senator or Representative in, or Delegate or Resident Commissioner to, Congress, this title establishes Federal candidate-access administration rules under article I, section 4 of the Constitution. A Federal candidate-access rule may require publication, common filing information, notice, technical cure, and certification-status reporting, but may not create a ballot-placement entitlement independent of applicable State and Federal law.

(e) State substantive standards preserved.

Nothing in this title preempts a neutral, nondiscriminatory State substantive ballot-access requirement, signature threshold, elector-slate requirement, filing-fee requirement, party-recognition requirement, sore-loser rule, ballot-order rule, anti-fraud rule, or certification rule except to the extent the requirement conflicts with this title or another Federal law.

SEC. 1205. NOTICE AND CURE.

(a) Defect notice.

If a covered State determines that a covered candidate's filing contains a defect, the State shall provide written notice that identifies each defect, states whether the defect is technical or material, identifies the authority for the requirement, and states the available cure method and deadline.

(b) Cure period.

A covered State shall provide a reasonable cure period for a technical defect. The cure period shall be not less than 5 business days after notice unless an election, ballot-printing, certification, court-ordered, or statutory deadline makes a shorter period necessary.

(c) Material defects.

This title does not require a covered State to permit cure of a material defect that cannot be corrected without changing the candidate, office sought, elector slate, signers, filing timeliness, or substantive basis for ballot access, but the State shall identify the defect and the legal basis for rejection.

(d) Signature, deadline, eligibility, and fraud rules preserved.

Nothing in this section requires a covered State to treat a signature insufficiency, missed filing deadline, candidate ineligibility, elector ineligibility, fraudulent submission, forged signature, or failure to satisfy a published substantive ballot-access requirement as a technical defect.

(e) Immaterial defects.

A covered State may not reject a covered candidate's filing solely for an immaterial paperwork defect if candidate identity, office sought, consent, filing timeliness, and substantive ballot-access eligibility are otherwise established and the defect can be corrected without prejudice to orderly administration.

(f) Expedited notice.

During the 45-day period before a ballot-printing, certification, or judicial-review deadline, a covered State shall provide defect notice as soon as practicable and by the fastest reliable method designated by the candidate.

SEC. 1206. CERTIFICATION-STATUS REPORTING AND PUBLIC DASHBOARD.

(a) State reporting.

For each covered candidate who files through the Federal access form or requests Federal certification-status reporting, a covered State shall report to the Commission each material certification-status change not later than 1 business day after the change.

(b) Status categories.

The Commission shall establish standard certification-status categories, including:

1. not filed;
2. filed;
3. pending review;
4. deficiency notice issued;
5. cure pending;
6. challenged;
7. accepted for filing;
8. rejected;
9. certified for ballot placement;
10. certified for write-in recognition;
11. court-ordered;
12. withdrawn; and
13. final.

(c) Public dashboard.

The Commission shall maintain a public dashboard that displays certification-status information reported under this section, the date of the most recent State update, and links to State candidate-access requirements published under section 1203.

(d) Disclaimer.

The public dashboard shall state that the covered State's official certification decision controls and that the Commission's dashboard is a public reporting and transmission tool unless another Act of Congress provides otherwise.

(e) Data integrity.

The Commission may establish cybersecurity, authentication, audit-log, correction, and dispute-notation procedures for certification-status reporting.

SEC. 1207. GUIDANCE, GRANTS, AND TECHNICAL ASSISTANCE.

(a) Guidance.

Not later than 180 days after the date of enactment of this title, the Commission shall issue guidance, model State supplement templates, and technical standards for the Federal access form, State publication files, cure notices, and certification-status reporting.

(b) Consultation.

In issuing guidance, the Commission shall consult with State and local election officials, the Federal Election Commission, the Department of Justice, disability-rights organizations, language-access experts, election-security experts, candidate representatives from major-party, minor-party, and independent campaigns, and public-interest organizations.

(c) Grants.

The Commission may make grants to covered States to implement this title, including grants for portal integration, publication systems, cybersecurity, accessibility, language access, staff training, and public certification-status reporting.

(d) No discretionary approval.

The Commission may not approve, disapprove, delay, condition, or supervise a State's substantive ballot-access law except as expressly provided by this title or another Act of Congress.

SEC. 1208. ENFORCEMENT.

(a) Civil action by Attorney General.

The Attorney General may bring a civil action for declaratory or injunctive relief to enforce this title.

(b) Civil action by covered candidate.

A covered candidate aggrieved by a violation of this title may bring a civil action for declaratory or injunctive relief in the United States district court for the district in which the covered State's chief election officer is located or in the United States District Court for the District of Columbia.

(c) Expedited proceedings.

A court hearing an action under this section shall expedite proceedings to the greatest extent practicable when relief is sought before a filing, cure, challenge, ballot-printing, certification, or election deadline.

(d) Timing, laches, and anti-disruption rule.

A court may not grant relief that would delay ballot printing, alter a final certification, reopen an expired filing period, or require emergency ballot reprinting unless the covered candidate acted with reasonable diligence, the violation is clear, the requested relief is narrowly tailored to a Federal candidate-access rule, and the public interest in orderly election administration does not outweigh the injury. Nothing in this subsection limits a court's authority to grant prospective declaratory relief, require future compliance, or preserve evidence for post-election reporting.

(e) No automatic ballot placement.

Relief under this section shall be limited to enforcing Federal candidate-access rules and shall not include automatic ballot placement, elector recognition, write-in recognition, debate inclusion, or public funding unless expressly authorized by another provision of Federal law.

(f) No damages.

This section does not create a damages remedy against a State, political subdivision, election official, election worker, or Federal officer.

(g) Federal Election Commission jurisdiction preserved.

Nothing in this title gives the Federal Election Commission jurisdiction over State ballot-access administration except as provided in the Federal Election Campaign Act of 1971 or another Act of Congress.

TITLE II - DEBATE-CRITERIA TRANSPARENCY AND PUBLIC-BENEFIT CONDITIONS

SEC. 201. FEDERAL ELECTION CAMPAIGN ACT DEFINITIONS.

Section 30101 of title 52, United States Code, is amended by adding at the end the following:

1. The term "**covered debate**" means a candidate debate, candidate forum, or comparable public candidate event for an election for Federal office or for President or Vice President that seeks treatment as a candidate debate under regulations of the Commission or accepts a Federal public benefit.
2. The term "**debate access criterion**" means a rule, threshold, measurement, poll, ballot-access requirement, fundraising requirement, petition requirement, public-support measure, documentation requirement, deadline, or discretionary standard used to determine whether a candidate is invited to, excluded from, or placed in a tier within a covered debate.
3. The term "**Federal public benefit**" means Federal funds, a Federal grant, Federal property or facilities made available on preferential terms, federally authorized public-broadcasting support, or an official Federal institutional partnership. The term does not include generally available press access, ordinary news coverage, a privately negotiated broadcast, a university facility made available on ordinary market terms, or generally available tax-exempt status.
4. The term "**public-benefit debate sponsor**" means a person or organization that stages, finances, co-sponsors, or controls a covered debate.

SEC. 202. DEBATE-CRITERIA TRANSPARENCY.

Chapter 301 of title 52, United States Code, is amended by adding at the end a new section, to be numbered and placed by the Office of Law Revision Counsel, as follows:

Debate-criteria transparency and public-benefit conditions.

1. A public-benefit debate sponsor shall publish each debate access criterion not later than 60 days before the covered debate, or as soon as practicable if the covered debate is scheduled less than 60 days before the event.
2. The published criteria shall identify:
 - each ballot-access threshold, certification-status rule, electoral-vote calculation, polling threshold, fundraising threshold, donor threshold, petition threshold, or other public-support measure;
 - each poll, polling organization, polling field date, sample requirement, methodology requirement, averaging method, and margin-of-error treatment used for qualification;
 - each deadline for submitting evidence, curing deficiencies, requesting reconsideration, or challenging a sponsor decision;
 - whether submitted, pending, accepted, certified, court-ordered, or final ballot-access status will be counted for qualification;
 - each sponsor, co-sponsor, funder, broadcaster, institutional partner, and Federal public benefit connected to the covered debate; and
 - each alternative qualification path other than national polling, if any.
3. For a general-election covered debate for President or Vice President, a public-benefit debate sponsor may not use nomination by a particular political party as the sole criterion for participation or use a debate access criterion that is a functional proxy for nomination by a particular political party.
4. If a general-election covered debate for President or Vice President uses a polling threshold, the public-benefit debate sponsor shall provide at least one alternative qualification path that considers ballot access, certification status, petition support, small-donor support, prior electoral support, or another objective measure of demonstrated public support.
5. A public-benefit debate sponsor shall provide a candidate who submits timely qualification evidence with a written decision that identifies the evidence accepted, the evidence rejected, the criteria applied, the certification-status treatment used, and any reconsideration procedure.
6. A public-benefit debate sponsor shall retain qualification records, communications with candidates concerning qualification, and evidence submitted by candidates for not less than 3 years after the covered debate.
7. A public-benefit debate sponsor may structure a covered debate through tiers, multiple forums, preliminary forums, candidate-information formats, regional events, or other neutral formats if the structure and criteria are published in advance and are not designed to promote, advance, or exclude a candidate because of party identity.
8. Nothing in this section requires a private press entity, broadcaster, nonprofit organization, educational institution, or other private person to stage, host, broadcast, invite a candidate to, or carry a debate unless the person seeks Federal Election Campaign Act debate treatment or accepts a Federal public benefit conditioned on compliance with this section.

9. Nothing in this section authorizes the Commission or any other Federal officer to control debate questions, editorial content, broadcast format, news coverage, commentary, moderator selection, candidate speech, or journalistic judgment.
10. A candidate seeking pre-debate review of a sponsor's qualification decision shall submit a written request to the Commission not later than 5 business days after receiving the decision, except that the Commission may accept a later request for good cause when the sponsor issued the decision less than 15 days before the covered debate.

SEC. 203. FEDERAL ELECTION COMMISSION ADMINISTRATION AND ENFORCEMENT.

(a) Regulations.

Not later than 1 year after the date of enactment of this Act, the Federal Election Commission shall promulgate regulations to implement title II and the amendments made by title II.

(b) Existing debate rule.

The Commission shall conform regulations governing candidate debates, including section 110.13 of title 11, Code of Federal Regulations, to the requirements of this title.

(c) Enforcement.

The Commission may enforce title II and the amendments made by title II under section 30109 of title 52, United States Code, including through conciliation, civil penalties, and civil actions where authorized by that section.

(d) Expedited declaratory review.

For a written request submitted under section 202(10), the Commission shall, to the greatest extent practicable, issue an expedited advisory opinion, declaratory ruling, or written staff recommendation before the covered debate. If the Commission cannot act before the covered debate because of time, lack of a quorum, or failure to obtain the votes required by section 30109 of title 52, United States Code, the Commission shall publish the request, the sponsor's response if any, and a post-debate status notice.

(e) Debate treatment and Federal public-benefit consequence.

The Commission may deny, revoke, condition, or decline to recognize Federal Election Campaign Act debate treatment for a covered debate that materially violates the debate-criteria publication, recordkeeping, or neutrality requirements of this title.

The head of a Federal agency that provides a Federal public benefit for a covered debate may condition, suspend, deny, or recover the benefit for a material violation of title II if the condition is stated before the benefit is accepted, the sponsor receives notice and an opportunity to respond, and the remedy does not compel hosting, broadcasting, editorial content, or candidate inclusion.

(f) Department of Justice referrals.

The Commission may refer knowing and willful violations to the Attorney General under section 30109(a)(5)(C) of title 52, United States Code.

(f) Deadlock and delay.

Nothing in this section limits any statutory remedy available when the Commission dismisses a complaint, fails to act, lacks a quorum, or deadlocks under section 30109 of title 52, United States Code.

TITLE III - COORDINATION, REPORTS, EFFECTIVE DATES, AND RULES OF CONSTRUCTION

SEC. 301. REPORTS TO CONGRESS.

(a) Election Assistance Commission report.

Not later than 180 days after each regularly scheduled general election for Federal office, the Election Assistance Commission shall submit to Congress and make public a report on implementation of title I, including State publication compliance, Federal access form use, defect notices, cure outcomes, certification-status reporting, candidate and State feedback, accessibility, language access, cybersecurity, administrative burdens, and recommendations for technical improvements.

(b) Federal Election Commission report.

Not later than 180 days after each regularly scheduled general election for Federal office, the Federal Election Commission shall submit to Congress and make public a report on implementation of title II, including covered debate criteria, sponsor compliance, enforcement matters, advisory opinions, complaints, Commission deadlocks, public-benefit conditions, and recommendations for improving debate transparency while preserving press freedom.

(c) No recommendation for automatic ballot entitlement.

A report under this section may recommend technical improvements, but may not be construed to recommend automatic ballot access, automatic debate inclusion, or displacement of State substantive ballot-access law unless Congress expressly enacts such a rule.

SEC. 302. RULES OF CONSTRUCTION.

Nothing in this Act or the amendments made by this Act shall be construed to:

1. compel a private press entity, broadcaster, nonprofit organization, educational institution, or private person to host, broadcast, sponsor, or include a candidate in a debate;
2. authorize Federal control over debate questions, editorial content, news coverage, commentary, moderator selection, or journalistic judgment;
3. require a State to place a candidate on a ballot solely because the candidate submitted a Federal access form;
4. displace a neutral and nondiscriminatory State substantive ballot-access requirement except to the extent the requirement conflicts with this Act or another Federal law;
5. alter the constitutional method by which a State appoints presidential electors;
6. limit the Voting Rights Act of 1965, the National Voter Registration Act of 1993, the Uniformed and Overseas Citizens Absentee Voting Act, the Help America Vote Act of 2002, the Federal Election Campaign Act of 1971, or any more protective State law;
7. impair party associational rights, candidate constitutional rights, voter constitutional rights, or State interests in orderly administration, ballot integrity, voter clarity, and fraud prevention; or
8. prevent a State from providing broader candidate-access rights, longer cure periods, clearer publication, additional public dashboards, or more protective procedural safeguards.

SEC. 303. SEVERABILITY.

If any provision of this Act, an amendment made by this Act, or the application of such provision or amendment to any person or circumstance is held invalid, the remainder of this Act, the amendments made by this Act, and the application of such provision or amendment to any other person or circumstance shall not be affected.

SEC. 304. AUTHORIZATION OF APPROPRIATIONS.

There are authorized to be appropriated such sums as may be necessary to carry out this Act and the amendments made by this Act, including:

1. grants to covered States for publication systems, portal integration, certification-status reporting, accessibility, cybersecurity, language access, staff training, and technical support;
2. amounts for the Election Assistance Commission to develop and maintain the Federal access form, clearinghouse, public dashboard, technical standards, and guidance;
3. amounts for the Federal Election Commission to conduct rulemaking, maintain debate-criteria records, process expedited debate-criteria review requests, and report to Congress;
4. amounts for the Department of Justice to enforce title I and provide technical assistance concerning civil enforcement; and
5. amounts for independent evaluation of administrative burden, accessibility, cybersecurity, and implementation after the first covered general election.

SEC. 305. EFFECTIVE DATES.

(a) Title I.

Title I and the amendments made by title I shall apply to regularly scheduled general elections for Federal office and presidential elector elections beginning 18 months after the date of enactment of this Act.

(b) Title II.

Title II and the amendments made by title II shall apply to covered debates held 180 days or more after the date of enactment of this Act.

(c) Rulemaking and guidance.

Federal agencies may issue regulations, guidance, forms, technical standards, and grant notices before the effective dates in subsections (a) and (b).

Budgetary Impact Statement

Budget authority may be required for Election Assistance Commission form development, limited technical assistance, public certification-status reporting, Federal Election Commission rulemaking, expedited debate-criteria review, public-benefit compliance review, public reporting, independent evaluation, and Department of Justice enforcement. Preliminary ARRP assessment estimates modest discretionary costs, likely in the range of \$10,000,000 to \$35,000,000 over five fiscal years if State grants remain limited to voluntary technical assistance and implementation support. Larger State modernization grants would require separate congressional judgment and are not assumed in this estimate. This conservative range is benchmarked against low-end CBO administrative-process estimates for reporting, review, rulemaking, and database work, and against election-security grant tranches as an upper-scale comparator rather than a model for this bill.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This draft amends existing election-law frameworks rather than creating a detached code.
- Title I uses HAVA because the central administrative remedy is a Federal election-administration interface: common filing, publication, notice, cure, and status reporting.
- Title II uses FECA because debate transparency is tied to the existing FEC candidate-debate rule, FEC debate treatment, and campaign-finance enforcement machinery.
- The draft gives State-compliance enforcement to DOJ and candidate-initiated injunctive actions because the EAC is not designed as the primary civil-enforcement body.
- The draft gives debate-rule enforcement to the FEC because the FEC administers and enforces FECA, while recognizing existing Commission deadlock and referral limits.
- The constitutional strategy is to standardize the doorway rather than create a national ballot entitlement: the Federal form, status dashboard, notice, and cure floors reduce procedural gatekeeping while preserving State substantive ballot-access law.
- The presidential-election provisions require close Article II review. They are drafted as filing-interface, notice, reporting, and public-benefit conditions rather than a direct command changing elector appointment.
- The congressional-election provisions have a stronger Elections Clause foundation and now state that the Federal rule is an administrative publication, filing, notice, cure, and status-reporting rule rather than an independent ballot-placement entitlement.
- The debate provisions avoid compelled private hosting and editorial control. They condition FEC debate treatment and defined Federal public benefits on transparent criteria and alternative objective qualification paths.
- The debate-cycle remedy now includes an expedited review request and a public post-debate notice if FEC deadlock, quorum, or timing prevents pre-debate action; it still needs direct FEC matter-file and First Amendment review.
- The candidate-civil-action section now includes diligence, laches, anti-disruption, and no-automatic-ballot-placement limits to reduce late-election litigation risk.
- The next internal check should test the revised HAVA fit, FECA fit, EAC/FEC/DOJ role allocation, First Amendment and press-freedom limits, Article II and Elections Clause authority, Spending Clause support, state-administration burden, cost, and interaction with ELEC-012 and ELEC-015.

Source Notes

- The current FEC candidate-debate baseline is 11 C.F.R. § 110.13, which requires pre-established objective criteria, at least two candidates, and bars using nomination by a particular party as the sole general-election criterion.
- FEC candidate guidance includes Registering as a candidate and Gaining ballot access, the latter of which points candidates to State election offices for State-law ballot-access requirements.
- FEC's Combined Federal/State Disclosure and Election Directory is the source-route analogue for a national State-contact and status-reporting interface.
- The National Mail Voter Registration Form and FVAP's Federal Post Card Application and Federal Write-In Absentee Ballot forms are federal-form comparators that pair national forms with State-specific instructions.
- Direct prior-proposal comparators include H.R. 1503, 111th Congress, which would have amended FECA to attach presidential eligibility documentation to a principal campaign committee filing, and Title X of the For the People Act of 2019 committee print, which would have required presidential and vice-presidential tax-return disclosure through the FEC and treated redacted returns as FECA reports.
- California SB 27 is a cautionary State ballot-access disclosure comparator because it conditioned presidential primary ballot access on tax-return filing and public posting; this draft instead preserves State substantive ballot-access law and avoids creating a new substantive presidential qualification.

- Budget analogues include CBO estimates for administrative-process, reporting, review, rulemaking, and database/public-information work in H.R. 4228 and H.R. 9, plus election-security grant reporting used only as an upper-scale contrast for broad modernization grants.
- Constitutional source review should include Article I, section 4 and Article II, section 1 in the Constitution transcript, *Arizona v. Inter Tribal Council of Arizona* for the Federal Form / Elections Clause analogy, and *Burroughs v. United States* for Federal protection of presidential elections from corrupt influence.
- Ballot-access doctrine review should include *Williams v. Rhodes*, *Storer v. Brown*, *Anderson v. Celebrezze*, *Burdick v. Takushi*, and *Timmons v. Twin Cities Area New Party*.
- DOJ's Voting Section is the enforcement-role comparator for civil enforcement of voting statutes including the Voting Rights Act, UOCAVA, NVRA, HAVA, and related civil-rights provisions.
- FEC enforcement source review should include the FEC's complaints process guidance and 52 U.S.C. § 30109.
- Ross Perot's 1992 debate participation is sourced to the Commission on Presidential Debates 1992 Debates, and his 18.91 percent national popular-vote result is sourced to FEC's *Federal Elections 92*.
- CPD's official 2024 Nonpartisan Candidate Selection Criteria and June 24, 2024 debate statement are debate-sponsor comparators for ballot-access, polling-threshold, and public-benefit analysis.
- Modern debate and ballot-access comparators include Associated Press reporting on RFK Jr.'s failure to qualify for CNN's 2024 debate, AP reporting distinguishing claimed versus confirmed ballot access, Georgia's 20-state cross-recognition ballot-access bill described by Associated Press, and the Better for America ballot-access challenge described in TIME.

EMERG-003 — Emergency Economic Powers Specificity and Adjudicative Independence Act

A BILL

To amend the International Emergency Economic Powers Act and the Immigration and Nationality Act to require a direct and substantial nexus between emergency measures and a declared threat, to require specific congressional authorization for sanctions based substantially on adjudicative and related legal activity, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Emergency Economic Powers Specificity and Adjudicative Independence Act**”.

SEC. 2. PURPOSES.

The purposes of this Act are to—

- (1) preserve the International Emergency Economic Powers Act as a means of responding to unusual and extraordinary threats originating substantially outside the United States;
- (2) prevent a general emergency delegation from operating as a substitute for legislation establishing a new sanctions category;
- (3) require Congress to speak specifically before ordinary adjudicative, prosecutorial, investigative, defense, evidentiary, representational, or supporting activity becomes a substantial basis for property, transaction, entry, or visa sanctions;
- (4) preserve the authority of the United States to sanction independently wrongful conduct under otherwise applicable law; and
- (5) provide prompt and uniform judicial review of the limits enacted by this Act.

SEC. 3. SUBSTANTIVE LIMITS ON INTERNATIONAL EMERGENCY ECONOMIC POWERS.

Section 203 of the International Emergency Economic Powers Act (50 U.S.C. § 1702) is amended by adding at the end the following:

“(d) Specificity and adjudicative-activity limits.

“(1) **Direct-nexus requirement.**—The authority granted by this section may be exercised with respect to a person, property, transaction, or category of activity only if—

“(A) the action is reasonably tailored to address specific conduct or circumstances identified in a report submitted under section 204; and

“(B) a direct and substantial nexus exists between the person, property, transaction, or category of activity and the unusual and extraordinary threat for which the national emergency was declared.

“(2) **Covered adjudicative activity.**—

“(A) **Specific authorization required.**—Except as provided in subparagraph (B), the authority granted by this section may not be exercised against a person or with respect to property, a transaction, or a service if covered adjudicative activity is a substantial basis for the action, unless an Act of Congress specifically authorizes the sanction with respect to the court, tribunal, proceeding, or category of activity at issue.

“(B) **Independent sanctionable conduct.**—Subparagraph (A) does not prevent action based on independently sanctionable conduct if—

“(i) the conduct satisfies every element required by otherwise applicable statutory authority without treating covered adjudicative activity, institutional affiliation, a legal position, or the outcome of a proceeding as the wrongful act; and

“(ii) the action would be authorized on the same evidentiary record if the person had no relationship to the court, tribunal, or proceeding.

“(C) **No authorization by implication.**—Specific authorization under subparagraph (A) may not be inferred solely from—

“(i) this chapter or another generally applicable delegation of emergency authority;

“(ii) an appropriation, a limitation on cooperation or assistance, or a statement of congressional policy that does not expressly authorize the sanction;

“(iii) Congress’s consideration, passage by one House, failure to enact, or failure to consider a bill or resolution; or

“(iv) the President’s constitutional authority to conduct foreign relations.

“(3) **Anti-circumvention.**—The authority granted by this section may not be exercised against a person on the ground that the person provided material, financial, technological, professional, evidentiary, representational, administrative, or other support for covered adjudicative activity when that support is itself covered adjudicative activity and specific authorization described in paragraph (2)(A) has

not been enacted.

“(4) **Individualized determination.**—Before taking an action to which paragraph (2) may apply, the President or the officer exercising delegated authority shall make an individualized written determination identifying—

“(A) the specific conduct on which the action is based;

“(B) the direct and substantial nexus required by paragraph (1);

“(C) whether covered adjudicative activity is a substantial basis for the action;

“(D) any Act of Congress supplying the specific authorization required by paragraph (2)(A); and

“(E) if paragraph (2)(B) is invoked, the independently sanctionable conduct and statutory authority on which the action rests.

“(5) **Definitions.**—In this subsection:

“(A) **Covered adjudicative activity.**—The term ‘covered adjudicative activity’ means activity ordinarily incident to the operation of a foreign or international court, tribunal, commission, or other adjudicative body, including—

“(i) judging, adjudicating, issuing process, or administering a docket;

“(ii) investigating, prosecuting, defending, providing legal representation or advice, submitting an amicus presentation, or seeking review;

“(iii) testifying, supplying evidence, serving as an expert, assisting a victim or witness, preserving records, or conducting forensic or factual analysis; and

“(iv) providing financial, technological, professional, administrative, security, translation, travel, communications, or other services ordinarily incident to an activity described in clauses (i) through (iii).

“(B) **Independently sanctionable conduct.**—The term ‘independently sanctionable conduct’ includes conduct such as bribery, corruption, violence, a threat of violence, material support for terrorism, malicious cyber activity, theft, espionage, witness intimidation, evidence destruction, or obstruction, but only when the conduct independently satisfies otherwise applicable statutory criteria as required by paragraph (2)(B).

“(C) **Specific authorization.**—The term ‘specifically authorizes’ means that an Act of Congress identifies the court, tribunal, proceeding, or objectively defined category of adjudicative activity and expressly authorizes the property, transaction, entry, or visa sanction to be imposed.”.

SEC. 4. REPORTING AND PUBLIC EXPLANATION.

(a) Immediate report.

Section 204(b) of the International Emergency Economic Powers Act (50 U.S.C. § 1703(b)) is amended—

(1) in paragraph (5), by striking the period and inserting a semicolon; and

(2) by adding at the end the following:

“(6) the direct and substantial nexus required by section 203(d)(1); and

“(7) whether covered adjudicative activity, as defined in section 203(d)(5), is within the contemplated scope of the action and, if so, the Act of Congress supplying the specific authorization required by section 203(d)(2)(A).”.

(b) Public explanation of covered action.

Section 204 of the International Emergency Economic Powers Act (50 U.S.C. § 1703) is amended by adding at the end the following:

“(e) Public explanation of covered action.

“(1) Not later than 7 days after taking an action for which an individualized determination is required under section 203(d)(4), the President shall publish in the Federal Register an unclassified explanation containing the information required by subparagraphs (A) through (E) of that paragraph.

“(2) Information may be omitted from the public explanation only to the extent that the President specifically determines that disclosure would reveal properly classified information, an intelligence source or method, or information protected from disclosure by another Act of Congress.

“(3) Any omitted information shall be supplied to the appropriate congressional committees in a classified annex and preserved in the administrative record for judicial review.”.

SEC. 5. CONFORMING LIMITS ON ENTRY SUSPENSION AND VISA REVOCATION.

(a) Entry suspension.

Section 212(f) of the Immigration and Nationality Act (8 U.S.C. § 1182(f)) is amended by adding at the end the following: “The authority under this subsection may not be exercised against an alien if covered adjudicative activity, as defined in section 203(d)(5) of the International Emergency Economic Powers Act, is a substantial basis for the suspension or restriction unless an Act of Congress specifically authorizes the entry sanction within the meaning of that section.”.

(b) Visa revocation.

Section 221(i) of the Immigration and Nationality Act (8 U.S.C. § 1201(i)) is amended by adding at the end the following: “A visa or other documentation may not be revoked under this subsection if covered adjudicative activity, as defined in section 203(d)(5) of the International Emergency Economic Powers Act, is a substantial basis for the revocation unless an Act of Congress specifically authorizes the visa sanction within the meaning of that section.”.

(c) Independent grounds preserved.

Nothing in this section prevents an entry restriction, inadmissibility determination, or visa revocation based on a ground that is independent of covered adjudicative activity and is supported by the same evidentiary record without regard to the alien’s relationship to a court, tribunal, or proceeding.

SEC. 6. JUDICIAL REVIEW.

(a) Cause of action and waiver.

Notwithstanding any other provision of law limiting judicial review of an entry restriction or visa action, a person whose property or interests in property are blocked, whose transaction or service is prohibited, whose entry is suspended or restricted, or whose visa or other documentation is revoked in alleged violation of an amendment made by this Act may bring a civil action against the United States and the responsible officers in the United States District Court for the District of Columbia. The United States waives sovereign immunity for declaratory and equitable relief under this section.

(b) Review standards.

The court shall—

- (1) decide questions of statutory authority and statutory interpretation de novo;
- (2) determine whether an individualized factual finding is supported by substantial evidence in the administrative record considered as a whole;
- (3) require the Government to lodge the complete administrative record not later than 14 days after service, subject to section 203(c) of the International Emergency Economic Powers Act and any protective order entered by the court; and
- (4) set aside an action that exceeds statutory authority, lacks the required direct and substantial nexus, treats covered adjudicative activity as a substantial basis without specific authorization, or is unsupported by substantial evidence.

(c) Expedition.

An action under this section shall receive expedited consideration under section 1657 of title 28, United States Code. The court may establish accelerated briefing, record-production, and hearing schedules consistent with due process and protection of classified information.

(d) Relief.

The court may issue appropriate declaratory and equitable relief, including vacatur of a designation, entry restriction, or visa restriction; release of property from blocking subject to any unrelated lawful restraint; reconsideration of documentation consistent with this Act; and an order directing a responsible officer to perform a nondiscretionary duty. This Act does not authorize money damages.

(e) Appeal.

An appeal from a final judgment or otherwise appealable order under this section lies in the United States Court of Appeals for the District of Columbia Circuit under otherwise applicable law. The filing of an appeal does not automatically stay relief.

SEC. 7. EXISTING ACTIONS AND TRANSITION.

(a) Review.

Not later than 60 days after enactment, the President shall review each existing property, transaction, entry, or visa restriction for which covered adjudicative activity is a substantial basis and shall determine whether—

- (1) an Act of Congress supplies the specific authorization required by this Act; or

(2) the restriction rests on independently sanctionable conduct within the meaning of section 203(d)(2)(B) of the International Emergency Economic Powers Act, as added by this Act.

(b) Termination of unsupported restrictions.

At the end of the 60-day period, a covered restriction lacking the basis described in subsection (a) shall cease to have effect. The responsible agency shall promptly—

- (1) remove the affected person or entity from any list maintained solely under the unsupported authority;
- (2) release blocked property subject to any unrelated lawful restraint;
- (3) withdraw or conform any regulation, directive, license, guidance, or prohibition implementing the unsupported restriction; and
- (4) provide notice to affected persons and regulated parties.

(c) Pending enforcement.

No civil or criminal penalty may be imposed after the transition period for conduct that would have been lawful but for a restriction terminated under subsection (b). This subsection does not disturb a final judgment based on independently unlawful conduct or create a claim for money damages.

SEC. 8. RULES OF CONSTRUCTION.

Nothing in this Act shall be construed to—

- (1) require or authorize the United States to become a party to the Rome Statute, recognize the jurisdiction of the International Criminal Court or another tribunal, cooperate with or provide support to a tribunal, surrender or extradite a person, appropriate funds, or take a position on any investigation, prosecution, defense, judgment, or appeal;
- (2) alter the American Servicemembers' Protection Act of 2002, including 22 U.S.C. §§ 7423 and 7433;
- (3) limit sanctions, entry restrictions, visa action, prosecution, or other consequences specifically authorized by an Act of Congress or based on independently sanctionable conduct under otherwise applicable law;
- (4) create immunity from criminal, civil, professional, or institutional accountability imposed by a body possessing lawful jurisdiction; or
- (5) address any authority the President possesses independently under the Constitution; this Act limits only authority delegated by statute.

SEC. 9. IMPLEMENTATION.

(a) Regulations and guidance.

Not later than 60 days after enactment, the Secretary of the Treasury, the Secretary of State, and the Attorney General shall issue regulations or guidance necessary to implement this Act.

(b) Existing appropriations.

This Act shall be implemented using amounts otherwise available for sanctions administration, visa administration, litigation, and court operations. No new agency, office, tribunal, or judgeship is established by this Act.

SEC. 10. SEVERABILITY.

If any provision of this Act or an amendment made by this Act, or the application of that provision or amendment to any person or circumstance, is held invalid, the remainder of this Act and the application of its provisions and amendments to other persons or circumstances shall not be affected.

Budgetary Impact Statement

Preliminary classification: Low administrative and litigation impact. The draft adds transition review, individualized explanations, record production, and expedited judicial review within existing sanctions, visa, Justice Department, and court functions. It establishes no new program-delivery obligation or adjudicative institution and directs implementation from otherwise available appropriations. A reliable dollar estimate requires OFAC, State Department, DOJ, and Administrative Office workload data and an internal implementation review.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- The draft amends the substantive scope of delegated authority. It does not replace EMERG-001's general framework for congressional approval, termination, and renewal of emergencies.
- The "specific authorization" rule permits Congress to enact the same sanctions policy. It does not treat the failure of H.R. 23 or any other bill as a legal prohibition.

- The further internal review should test the subsection placements, INA cross-references, review standards, classified-record procedure, transition treatment, and whether further conforming amendments are needed in 31 C.F.R. part 528 or related statutory notes.

EMOL-015 — Executive Self-Litigation and Settlement Conflict Act

A BILL

To require automatic judicial screening and dismissal of constitutionally non-adverse executive self-litigation; to prevent covered executive officials from settling with or receiving payment or other personal benefit from executive agencies, officers, employees, funds, accounts, or payment authorities subject to their supervision while in office; to prohibit prospective or categorical immunity from Federal tax audits and investigations; to preserve valid claims after service; and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the "Executive Self-Litigation and Settlement Conflict Act".

SEC. 2. PURPOSES.

The purposes of this Act are to—

1. prevent personal financial or legal self-dealing by covered executive officials during service;
2. preserve genuine claims without allowing conflicted settlement, compromise, payment, or litigation control while the conflict exists;
3. protect the Judgment Fund, agency funds, settlement authority, and payment authority from use as substitutes for express congressional authorization of personal or politically defined compensation programs;
4. require an automatic, sua sponte judicial determination of genuine adverseness before merits adjudication, voluntary dismissal, settlement, or payment;
5. require dismissal without prejudice when genuine Article III adversity is absent while preserving any still-timely underlying claim through statutory tolling;
6. preserve genuine adverseness in litigation involving the United States;
7. prohibit any executive-branch settlement, release, assurance, order, or other instrument from conferring prospective or categorical immunity from Federal tax administration on any taxpayer;
8. preserve lawful finality for identified tax liabilities, taxable periods, and matters resolved under otherwise applicable law;
9. make clear that the President is covered by this Act and is not excluded by title, office, or implication; and
10. make clear that the Vice President is covered by this Act and is not excluded by the absence of ordinary agency-head supervision.

SEC. 3. DEFINITIONS.

In this Act:

(a) Covered executive official.

The term **covered executive official** means:

1. the President;
2. the Vice President;
3. the head of an executive department, military department, executive agency, or independent establishment;
4. an acting official performing the functions and duties of an office described in paragraph (3);
5. the Attorney General, Deputy Attorney General, Solicitor General, Assistant Attorney General, United States Attorney, or other senior Department of Justice official with authority over litigation, settlement, compromise, payment, defense, or representation involving the United States; and
6. any officer or employee designated by statute, regulation, or court order as exercising supervisory authority materially comparable to an official described in paragraphs (1) through (5).

The President and Vice President are covered executive officials under this Act. No provision of this Act shall be construed to exclude the President or Vice President unless a later Act of Congress expressly names the President or Vice President and expressly states that the identified office is excluded.

(b) Covered civil action.

The term **covered civil action** means a civil action, administrative claim, demand for payment, request for settlement, request for compromise, claim for offset, or other proceeding seeking personal legal, equitable, monetary, declaratory, or settlement relief, if:

1. the claimant is a covered executive official acting in a personal capacity;
2. the defendant, respondent, payer, settling entity, or materially affected entity is the United States, an executive agency, an executive office, a component thereof, an officer or employee subject to the covered executive official's supervision, or a fund, account, appropriation, or payment authority administered by an entity subject to the covered executive official's supervision; and
3. the relief sought would confer a material and particularized personal financial or legal benefit on the covered executive official or an affiliated person or entity.

For the President, paragraph (2) is satisfied if the defendant, respondent, payer, settling entity, materially affected entity, fund, account, appropriation, or payment authority is within the executive branch or subject to executive-branch litigation, settlement, payment, or defense authority. For the Vice President, paragraph (2) is satisfied only if the Vice President possesses formal authority over, has been delegated a function concerning, or has personally participated in or directed the defense, settlement, payment, records, privilege, classification, or litigation decision at issue. Political alignment, access to White House personnel, or the title of Vice President, standing alone, does not establish coverage.

A civil action, administrative claim, demand, request, or proceeding is not excluded from the definition of covered civil action merely because it is styled as an official-capacity action if its practical effect is to confer a material and particularized personal financial, legal, reimbursement, indemnification, settlement, or affiliated-entity benefit on the covered executive official. Reputational, political, precedential, or litigation-strategy effects incidental to bona fide official-capacity litigation do not establish coverage.

(c) Personal capacity.

The term **personal capacity** means a capacity other than an official capacity exercised solely on behalf of the United States or the office held by the covered executive official.

(d) Affiliated person or entity.

The term **affiliated person or entity** means a spouse, dependent, immediate family member, business entity, trust, campaign committee, legal-defense fund, nonprofit organization, political organization, or other person or entity that is owned or controlled by the covered executive official or through which the official would receive a material and particularized financial, legal, reimbursement, indemnification, settlement, or comparable personal benefit. Ideological affinity, political support, membership, or an incidental reputational effect alone does not establish affiliation.

(e) Public funds.

The term **public funds** means appropriated funds, agency funds, settlement funds, representational funds, reimbursement authority, indemnification authority, offset authority, compromise authority, insurance purchased or funded by the United States or an executive agency, the Judgment Fund established under section 1304 of title 31, United States Code, or any other money provided by the United States or an executive agency.

(f) Potentially covered civil action.

The term **potentially covered civil action** means a civil action in which facts alleged in the pleadings, disclosed by a party, or otherwise properly before the court provide a reasonable basis to believe that the action may satisfy the definition of a covered civil action.

SEC. 4. AUTOMATIC ADVERSENESS SCREENING AND CONTROLLED MAINTENANCE.

(a) Automatic sua sponte screening.

When a potentially covered civil action is filed in a federal court, or when an action becomes potentially covered while pending, the court shall, sua sponte and as its first substantive matter:

1. determine whether the action is a covered civil action; and
2. determine whether the action presents genuinely adverse legal interests sufficient to establish a case or controversy under article III of the Constitution.

The duty imposed by this subsection does not depend on a motion, objection, notice of appearance, answer, motion for summary judgment, contested litigation position, or request by the United States or any other party. The court may examine jurisdictional facts beyond the caption and pleadings and may require verified disclosures, limited briefing, testimony, documents, or appointment of an amicus curiae necessary to complete the screening.

(b) Automatic interim stay; Rule 41 ineffective pending screening.

From the filing of a potentially covered civil action until entry of the written screening order required by subsection (d):

1. no party may settle, compromise, confess liability, stipulate to liability, consent to judgment, obtain or authorize payment, create or implement a release or immunity, or otherwise resolve the action or any part of it for the personal or affiliated benefit of the covered executive official;

2. notwithstanding Rule 41 of the Federal Rules of Civil Procedure, a notice or stipulation of dismissal, whether with or without prejudice, is ineffective unless and until the court completes the screening required by this section and enters an order giving effect to the dismissal; and
3. no agreement, dismissal notice, stipulation, payment authorization, release, or other act taken during the interim stay may moot, terminate, or divest the court of authority to complete the screening.

The interim stay is a self-executing statutory prohibition. Before finding article III jurisdiction, the court may determine its jurisdiction, require the screening submissions, preserve its own records and proceedings, address privilege or protected-information handling, dismiss under subsection (d), and exercise otherwise lawful collateral authority. It may not adjudicate the merits or issue coercive merits relief merely because this Act applies.

(c) Screening submissions and timing.

The claimant shall file with the complaint, or not later than 7 days after facts establishing potential coverage become known, a statement identifying:

1. the office creating potential coverage;
2. the relationship between the claimant and each defendant, respondent, settling entity, payer, fund, account, appropriation, or payment authority;
3. any authority of the claimant to appoint, remove, supervise, direct, influence, or countermand a person responsible for defense, settlement, payment, agency cooperation, records, privilege, classification, or litigation strategy; and
4. any existing or proposed settlement, compromise, dismissal, release, immunity, payment, offset, indemnification, reimbursement, audit restriction, compensation fund, or materially equivalent benefit.

The Attorney General and the head of each affected agency shall respond not later than 7 days after service or actual notice. A failure to appear or respond does not delay screening and may be considered with the other jurisdictional facts. The court shall complete screening as soon as practicable and before merits adjudication, settlement approval, voluntary dismissal, or payment authorization.

(d) Adverseness determination and mandatory dismissal.

In determining genuine adverseness, the court shall consider formal and practical control over the parties and litigation, including appointment and removal authority; authority over executive-branch interpretations of law; control of defense, settlement, payment, records, privilege, or litigation strategy; identity or alignment of counsel and beneficiaries; failure to appear or assert ordinarily available defenses; and any agreement or coordinated conduct demonstrating a shared or unitary interest. Party labels, consent, or a representation that a dispute exists is not dispositive.

If the court determines that genuinely adverse legal interests sufficient for article III are absent, the court shall dismiss the action without prejudice. The dismissal order shall not approve, incorporate, enforce, or give legal effect to a settlement, compromise, release, immunity, payment, or other purported resolution. A court may not retain a constitutionally non-adverse action on its docket solely to preserve the claim or toll a time limit; preservation and tolling shall instead arise by operation of subsection (e).

(e) Post-dismissal and restricted-period tolling.

If an action is dismissed under subsection (d), or if a claim would be a covered civil action if filed during the covered executive official's service, any unexpired limitations period, exhaustion deadline, presentment deadline, or other time limit established by Federal law for commencing or preserving the claim against the United States, an executive agency, or an officer or employee thereof shall be tolled during the official's service in the office creating the conflict and until 1 year after that service ends.

For a covered action that remains pending under subsection (f), litigation and adjudicatory deadlines shall be tolled for the restricted period unless the court permits a particular deadline to run under subsection (h) or (i). This subsection does not revive a claim for which the applicable time limit expired before tolling began and does not determine the merits of a preserved claim.

(f) Controlled maintenance after genuine adversity is found.

If the court finds genuine article III adverseness and determines that the action is a covered civil action, the action may be received, docketed, preserved, investigated, and maintained during the covered executive official's service. Except as provided in subsection (h) or (i), it may not be adjudicated on the merits, settled, compromised, confessed, voluntarily dismissed in exchange for any benefit, paid, offset, or otherwise resolved for the personal or affiliated benefit of the covered executive official.

If an action becomes covered because the claimant assumes a covered office while the action is pending, the interim stay and screening requirements apply immediately upon assumption of office.

The court shall review a controlled-maintenance order not later than 180 days after entry and at least annually thereafter. At each review, the court shall determine whether coverage, adversity, preservation needs, and the statutory conflict continue; narrow or terminate unnecessary restrictions; and establish the least burdensome schedule consistent with this Act. On the claimant's request, the court shall dismiss the action without prejudice unless a short preservation period is necessary to protect another party's concrete rights. Tolling under subsection (e) continues after such a dismissal.

(g) Preservation orders.

After finding article III jurisdiction, a court may enter orders necessary to preserve evidence, prevent spoliation, maintain the status quo, protect privilege, protect classified information, or prevent irreparable loss of the claim, provided that such orders do not confer personal monetary relief, settlement benefit, or merits adjudication on the covered executive official except as provided in subsection (h) or (i). Before that finding, the court's authority is limited as provided in subsection (b). An agency may preserve records or take other nonadjudicatory preservation action required by otherwise applicable law.

(h) Court-permitted liability adjudication.

A court may permit a covered civil action to proceed to liability adjudication during the covered executive official's service only if the court finds, by clear and convincing evidence, that:

1. the alleged injury is concrete, personal, and not manufactured for political, financial, settlement, or litigation advantage;
2. the claim existed before the covered executive official assumed the conflicted office or arose from conduct by an adverse actor not subject to the covered executive official's supervision or control;
3. continued deferral would cause substantial injustice that tolling, preservation orders, neutral investigation, or post-tenure adjudication cannot adequately prevent;
4. the action continues to present genuinely adverse legal interests sufficient for article III throughout the proposed adjudication;
5. liability adjudication can proceed before an independent tribunal and the defense of the United States is controlled by counsel, appointed and removable consistently with article II of the Constitution and otherwise applicable law, who possesses authority independent of the covered executive official to investigate facts, assert defenses, conduct discovery, determine litigation strategy, reject settlement, and seek appellate review;
6. the covered executive official cannot control, direct, influence, or receive nonpublic strategic advantage from the defense, settlement, payment, records, privilege, classification, or litigation posture of the United States; and
7. any judgment, settlement, compromise, payment, offset, indemnification, reimbursement, or compensation fund remains subject to section 5 and section 6.

An order under this subsection shall state the findings with particularity and shall use protective procedures adequate to prevent the covered executive official from using official authority to influence defense, settlement, payment, discovery, access to records, classification, privilege, or litigation strategy.

Unless the court makes the separate findings required by section 5(c), an order under this subsection shall bifurcate liability from damages, settlement, compromise, payment, offset, indemnification, reimbursement, and compensation-fund issues. The damages, settlement, compromise, payment, offset, indemnification, reimbursement, and compensation-fund phase shall be deferred until the covered executive official no longer holds the conflicted office.

(i) Injunctive relief to prevent ongoing harm.

A court may enter or enforce narrowly tailored injunctive relief during the covered executive official's service if the court finds, by clear and convincing evidence, that:

1. the covered civil action alleges ongoing or imminent unlawful harm to a concrete legal interest;
2. preservation orders, tolling, neutral investigation, liability-only adjudication, or post-tenure relief would not adequately prevent the harm;
3. the injunction is limited to stopping or preventing the harm and does not award damages, settlement value, reimbursement, indemnification, offset, public funds, a compensation fund, or another personal monetary benefit;
4. the action continues to present genuinely adverse legal interests sufficient for article III and the United States is represented by counsel with authority independent of the covered executive official concerning the requested relief;
5. the covered executive official did not use official authority to control, direct, influence, or obtain nonpublic strategic advantage from the defense, settlement, payment, records, privilege, classification, or litigation posture of the United States; and
6. the injunction can be administered without requiring the court to supervise ordinary executive operations beyond what is necessary to prevent the identified harm.

An order under this subsection shall state the findings with particularity and shall preserve section 5's settlement, payment, offset, indemnification, reimbursement, and compensation-fund restrictions.

SEC. 5. SETTLEMENT, PAYMENT, AND FUNDING BAR.

(a) Prohibited actions.

During the covered executive official's service in the office creating the conflict, including during the automatic interim stay under section 4(b), after a dismissal under section 4(d), or while a covered civil action is subject to controlled maintenance under section 4(f), no officer, employee, agency, component, or representative of the United States may:

1. settle, compromise, confess liability, stipulate to liability, consent to judgment, or admit monetary responsibility in the covered civil action;
2. pay, reimburse, indemnify, offset, satisfy, or compromise any claim in the covered civil action using public funds;
3. authorize payment from the Judgment Fund or agency funds;
4. file, join, accept, implement, or give effect to a notice or stipulation of dismissal contrary to section 4(b), or dismiss an action in exchange for a personal legal or settlement benefit to the covered executive official;
5. approve, create, implement, or recognize a release, immunity, nonenforcement assurance, audit restriction, investigation restriction, or materially equivalent protection arising from the covered claim;
6. create, administer, or fund, as consideration for resolving the covered claim, a compensation program, class fund, claims facility, settlement fund, or comparable payment mechanism for the covered executive official, an affiliated person or entity, or a beneficiary class selected or controlled by the covered executive official; or
7. take any materially equivalent action that resolves the claim for the personal or affiliated benefit of the covered executive official.

(b) Express later authorization.

Subsection (a) may be displaced only by a later Act of Congress that:

1. expressly identifies the covered civil action or covered class of actions;
2. expressly authorizes the settlement, compromise, payment, fund, or other resolution notwithstanding this Act;
3. identifies the payment source; and
4. expressly states whether the authorization applies to the President, the Vice President, or another identified covered office.

General appropriations language, general settlement authority, general Judgment Fund authority, or general claims-processing authority is not sufficient to displace this Act.

(c) Heightened damages or payment authorization after permitted liability adjudication.

If a court permits liability adjudication under section 4(h), or injunctive relief under section 4(i), no damages phase, judgment amount, settlement, compromise, payment, offset, indemnification, reimbursement, or compensation fund may be determined, paid, or implemented during the covered executive official's service unless the court separately finds, by clear and convincing evidence, after notice under section 6, that:

1. the amount and form of relief are required by law and are not the product of collusion, manufactured adverseness, political favoritism, or executive self-dealing;
2. the payment source is expressly authorized by law for that claim;
3. the covered executive official did not control, direct, influence, or receive nonpublic strategic advantage from the defense, settlement, payment, or litigation posture of the United States; and
4. no reasonable post-tenure deferral, escrow, bond, declaratory judgment, preservation order, liability-only judgment, or other less conflicted remedy would prevent substantial injustice.

SEC. 6. NOTICE TO CONGRESS.

Not later than 7 days after a potentially covered civil action is filed, becomes covered, or is otherwise brought to the attention of an officer, employee, agency, component, or representative of the United States, the Attorney General shall provide notice to the Committees on the Judiciary and Appropriations of the House of Representatives and the Senate. The notice duty does not depend on completion of screening, an appearance by the United States, or agreement that the action is covered.

The notice shall identify the covered executive official, the defendant or responding entity, the nature of the claim, the payment authority implicated, the status of automatic screening, any adversity determination, dismissal, restriction, controlled-maintenance order, adjudication order, or preservation order entered or requested, and any attempted settlement, compromise, payment, offset, release, immunity, audit restriction, investigation restriction, or fund creation.

Not later than 3 business days after entry of an unsealed screening order under section 4(d), the clerk of the court shall transmit a copy to those committees. A sealed screening order shall be transmitted through a lawful protected channel with only those redactions necessary to comply with law and the court's particularized findings.

The notice may be classified, redacted, or submitted in camera where required by law, court order, privilege, grand-jury secrecy, tax-return confidentiality, privacy, or national-security protection, but the Attorney General shall provide an unclassified or publicly releasable summary to the maximum extent permitted by law. Return information may be disclosed only through a channel authorized by section 6103 of the Internal Revenue Code of 1986, including subsection (f) of that section where applicable; this Act does not independently authorize its disclosure.

SEC. 7. PROHIBITION ON CATEGORICAL AUDIT IMMUNITY.

(a) Amendment to the Internal Revenue Code.

Section 7217 of the Internal Revenue Code of 1986 is amended by adding at the end the following:

“(f) Categorical audit immunity prohibited.—

“(1) In general.—No Federal actor may, directly or indirectly, enter into, offer, negotiate, approve, create, implement, recognize, or give effect to a prohibited audit-immunity term for any taxpayer.

“(2) Covered instruments.—Paragraph (1) applies to any agreement, settlement, compromise, release, covenant, consent judgment, order, assurance, representation, memorandum, side letter, nonenforcement commitment, or other written or oral instrument or undertaking that purports to bind the United States, the Department of the Treasury, the Internal Revenue Service, the Department of Justice, or any officer, employee, agency, component, representative, counsel, or agent thereof.

“(3) Universal application.—This subsection applies without regard to the identity, office, status, political affiliation, relationship, wealth, organizational form, or asserted grievance of the taxpayer or any affiliated person or entity, and without regard to whether the Federal actor or taxpayer is an applicable person under subsection (e).

“(g) Legal effect.—

“(1) Void from inception.—A prohibited audit-immunity term is void ab initio, unenforceable, and without legal effect.

“(2) No consideration or reliance.—A prohibited audit-immunity term may not constitute consideration for a settlement, compromise, dismissal, payment, release, waiver, or other government action and creates no claim of estoppel, detrimental reliance, contract, property, immunity, privilege, or entitlement against the United States or any officer or agency thereof.

“(3) Mandatory disregard.—The Internal Revenue Service and every Federal actor shall disregard a prohibited audit-immunity term. No audit, examination, investigation, assessment, collection action, information request, summons, referral, or other lawful tax-administration action may be prevented, delayed, restricted, conditioned, terminated, or penalized because of such a term.

“(4) Remaining provisions.—No payment, dismissal, release, waiver, or other performance may be supported in whole or in part by a prohibited audit-immunity term. The validity of a remaining provision supported entirely by independent lawful consideration shall be determined under otherwise applicable law.

“(h) Exclusions and preservation of lawful finality.—A prohibited audit-immunity term does not include:

“(1) a provision expressly authorized by a later Act of Congress that specifically identifies the affected class of taxpayers, taxable periods, matters, and scope of the authorized limitation and expressly refers to this section;

“(2) a closing agreement under section 7121, but only to the extent the agreement finally resolves an identified taxpayer's liability for a specified tax, taxable period, transaction, item, or matter and does not restrict examination beyond the matters and taxable periods specifically and lawfully resolved;

“(3) a compromise under section 7122, but only to the extent the compromise resolves an identified liability or case and does not restrict examination beyond the liabilities, matters, and taxable periods specifically and lawfully resolved;

“(4) the preclusive effect of a final judgment or final administrative determination as to a claim, issue, liability, or taxable period actually adjudicated or resolved according to law;

“(5) expiration of a limitations period, satisfaction of a liability, or another generally applicable rule of finality established by Federal tax law; or

“(6) a narrowly tailored judicial order remedying unlawful conduct in a particular audit or investigation, if the order does not prohibit a lawful examination of another matter or taxable period.

“(i) Ordinary tax-administration discretion preserved.—Nothing in subsection (f) requires the Internal Revenue Service to audit or investigate any taxpayer or prevents authorized Internal Revenue Service personnel, applying otherwise lawful and generally applicable criteria, from selecting, prioritizing, scoping, resolving, closing, or declining an audit, examination, investigation, assessment, collection action, information request, summons, or referral. Such discretion may not be exercised pursuant to, or in consideration of, a prohibited audit-immunity term.

“(j) Reporting and congressional notice.—

“(1) Inspector General report.—Any Federal actor, and any officer or employee of the Internal Revenue Service, who receives a request to approve or implement, or obtains actual knowledge of, a prohibited audit-immunity term shall report the matter to the Treasury Inspector General for Tax Administration not later than 7 days thereafter.

“(2) Congressional notice.—Not later than 30 days after receiving a report under paragraph (1), the Treasury Inspector General for Tax Administration shall notify the Committee on Ways and Means and the Committee on the Judiciary of the House of Representatives and the Committee on Finance and the Committee on the Judiciary of the Senate. The notice shall protect return information and other information protected by law while describing the instrument, responsible offices, implementation status, and corrective action to the maximum lawful extent.

“(k) Definitions.—In this section:

“(1) Federal actor.—The term ‘Federal actor’ means the President, the Vice President, an officer or employee of the executive branch, an executive department or agency, or a contractor, representative, counsel, or agent acting within actual or apparent authority delegated by the executive branch, including the Attorney General and an authorized officer, employee, representative, counsel, or agent of the Department of Justice, the Department of the Treasury, or the Internal Revenue Service.

“(2) Prohibited audit-immunity term.—The term ‘prohibited audit-immunity term’ means a term, promise, commitment, or undertaking that, except as provided in subsection (h), has the material purpose or effect of directly or indirectly—

“(A) prohibiting, preventing, delaying, restricting, conditioning, terminating, or penalizing an audit, examination, investigation, assessment, collection action, information request, summons, referral, or other lawful tax-administration action concerning an identified taxpayer or affiliated person or entity;

“(B) promising that an identified taxpayer or affiliated person or entity will not be selected or considered for such an action concerning a matter or taxable period not specifically and lawfully resolved under subsection (h); or

“(C) conferring preferred, exempt, immune, or nonenforcement status in Federal tax administration based on identity, office, affiliation, relationship, political status, settlement, release, or an asserted grievance against the United States.

“(3) Affiliated person or entity.—The term ‘affiliated person or entity’ means a spouse, dependent, immediate family member, related taxpayer within the meaning of section 267(b) or 707(b)(1), entity under common ownership or control, trust, representative, agent, successor, assignee, or other person or entity through which the taxpayer would receive the benefit of a prohibited audit-immunity term.

“(l) Inspector General review and corrective referral.—The Treasury Inspector General for Tax Administration shall review each report received under subsection (j), determine whether a prohibited audit-immunity term was attempted or implemented, recommend corrective action, and refer apparent willful misconduct to the appropriate inspector general, ethics official, disciplinary authority, or law-enforcement authority under otherwise applicable law. Nothing in subsections (f) through (l) creates or expands criminal liability under subsection (d).”.

(b) Effective date and continuing instruments.

The amendments made by subsection (a) apply to:

1. an instrument or undertaking entered into, offered, negotiated, approved, created, renewed, extended, or modified on or after the date of enactment; and
2. any implementation, recognition, payment, dismissal, release, restraint on tax administration, or other prospective performance occurring on or after the date of enactment under an instrument or undertaking entered into before that date.

Nothing in this subsection reopens a final judgment, a completed closing agreement under section 7121 of the Internal Revenue Code of 1986, or a completed compromise under section 7122 of that Code. No inference shall be drawn from this section that any Federal actor possessed authority before enactment to confer categorical audit immunity.

SEC. 8. RELATIONSHIP TO OTHER LAW.

Nothing in this Act shall be construed to:

1. extinguish a covered executive official's underlying claim;
2. prevent a covered executive official from pursuing a covered claim after leaving the conflicted office;
3. authorize disclosure of tax-return information, classified information, grand-jury material, privileged material, or other protected information;
4. limit ordinary official-capacity litigation by the United States or an executive officer acting solely on behalf of the United States;
5. prohibit criminal investigation or prosecution authorized by law;
6. authorize payment from public funds otherwise prohibited by law; or
7. displace review otherwise available under chapter 7 of title 5, United States Code, or another Act of Congress, except to the extent this Act supplies a more specific rule.

SEC. 9. JUDICIAL REVIEW.

(a) Filing court.

The federal court in which a potentially covered civil action is filed shall determine its jurisdiction and has a mandatory duty, to the extent consistent with article III of the Constitution, to conduct the screening required by section 4 and dismiss a constitutionally non-adverse action. If jurisdiction exists, the court shall apply the controlled-maintenance, preservation, and payment-bar requirements of this Act. The automatic interim stay and tolling rules operate by statute. The court retains authority to determine its jurisdiction and to address sanctions, court records, fees, costs, contempt, protected-information handling, and other collateral matters within its lawful authority. A notice or stipulation of dismissal filed before completion of screening is ineffective under section 4(b) and Rule 41(a)(1)(A) of the Federal Rules of Civil Procedure.

(b) Civil enforcement action.

A civil action may be brought in the United States District Court for the District of Columbia to enforce section 5, section 6, or section 7 by:

1. a person suffering a concrete and particularized injury caused by a violation or imminent violation of the provision to be enforced;
2. the House of Representatives or the Senate, if the action is authorized by resolution of the chamber and alleges that an imminent or completed expenditure violates an express statutory condition on Federal funds or that denial of information expressly required to be provided to that chamber concretely impairs an identified appropriations or legislative function; or
3. the United States acting through an officer expressly authorized by law to bring the action.

This subsection creates no standing based solely on status as a taxpayer, voter, citizen, Member of Congress, or beneficiary of lawful tax administration. It does not deem an injury sufficient under article III, and it does not authorize one House, a committee, or a Member to sue without the chamber authorization required by paragraph (2).

(c) Cause of action, jurisdiction, and waiver.

An eligible plaintiff under subsection (b) has a cause of action for declaratory or prospective injunctive relief against the agency head, fund-certifying officer, payment official, or other subordinate officer responsible for the alleged violation. The district court has jurisdiction under section 1331 of title 28, United States Code. The United States waives sovereign immunity for relief authorized by this section. Final agency action and exhaustion are not required if the challenged agreement, payment, release, immunity, audit restriction, investigation restriction, fund creation, or notice failure is final, operative, or imminently enforceable and delay would defeat effective review.

Neither the President nor the Vice President may be named as a defendant or subjected to coercive relief under this section. Relief shall run against a subordinate officer responsible for implementation.

(d) Remedies and limits.

If article III jurisdiction and a violation are established, the court may declare coverage; enjoin an unlawful payment or prospective implementation; compel a notice or report; require preservation of relevant agency records; or grant other prospective relief no broader than necessary to enforce this Act. The court may order return of a payment only in an action brought by the United States, from a recipient named and served as a party, after notice and an opportunity to be heard, and only for a payment made on or after enactment that is recoverable under otherwise applicable Federal debt-collection or restitution law. The court may not award damages under this Act, supervise ordinary executive operations, direct the discretionary outcome of a lawful audit or investigation, or order relief against the President or Vice President.

(e) Expedition and protected information.

Review under this section shall be expedited. A court may consider sealed, privileged, classified, tax-return, protected, or in camera material under procedures adequate to prevent unauthorized disclosure. The court shall:

1. require use of a secure or otherwise lawful channel for protected material;
2. permit ex parte or in camera submission only to the extent necessary to protect an interest recognized by law;
3. use an unclassified summary, redacted filing, stipulation, substitute, or other less restrictive alternative when it can permit fair adjudication without unlawful disclosure;
4. make particularized findings before sealing or restricting access; and
5. refrain from ordering disclosure of return information except as authorized by section 6103 of the Internal Revenue Code of 1986 or of classified, privileged, grand-jury, or other protected information except as authorized by otherwise applicable law.

If protected information cannot lawfully be disclosed or adequately substituted, the court shall resolve the matter through a lawful burden allocation, narrower relief, or dismissal rather than direct an unauthorized disclosure.

(f) Appellate review.

1. **Final orders.** A final judgment or dismissal under section 4 or this section is appealable under section 1291 of title 28, United States Code.
2. **Interlocutory orders.** A court of appeals has jurisdiction over an interlocutory appeal from an order that determines coverage or genuine adversity under section 4, imposes or continues controlled maintenance, grants or denies relief under section 4(h) or 4(i), or grants or denies preliminary relief under this section. The notice of appeal shall be filed not later than 14 days after entry of the order.
3. **Proper court of appeals.** An appeal from a filing court lies in the court of appeals for the regional circuit. An appeal from the United States District Court for the District of Columbia lies in the United States Court of Appeals for the District of Columbia Circuit.
4. **Expedition and stay.** The court of appeals shall expedite the appeal. An appeal does not automatically stay the statutory prohibitions or the order under review, but either court may grant a tailored stay under otherwise applicable standards.
5. **Continuing collateral matters.** An attempted voluntary dismissal does not moot review of a screening determination, interim prohibition, sanction, or other collateral order that remains legally operative.

SEC. 10. AUTHORIZATION OF APPROPRIATIONS.

There are authorized to be appropriated for each of fiscal years 2027 through 2033 such sums as may be necessary for the Administrative Office of the United States Courts, the Department of Justice, the Department of the Treasury, the Internal Revenue Service, and the Treasury Inspector General for Tax Administration to carry out this Act. This section provides no budget authority and no authority to obligate or expend funds in advance of an appropriation.

SEC. 11. EFFECTIVE DATE; APPLICATION.

This Act shall apply to a covered civil action pending on the date of enactment and to a covered civil action initiated thereafter. It does not reopen a final judgment, a dismissal effective before enactment, or a settlement fully performed before enactment, and it does not revive a claim for which the applicable time limit expired before tolling began. A pending potentially covered action is subject to the statutory interim prohibition upon enactment, and the court shall complete section 4 screening not later than 30 days thereafter, except that the court may extend that period once for not more than 15 days upon particularized good-cause findings. No damages, penalty, or repayment liability arises under this Act solely from conduct completed before enactment; sections 5 and 7 apply to prospective implementation occurring after enactment as otherwise provided.

SEC. 12. SEVERABILITY.

If any provision of this Act, or the application of such provision to any person or circumstance, is held invalid, the remainder of this Act and the application of its provisions to any other person or circumstance shall not be affected. Congress intends the following rules to remain independently operative to the maximum constitutional extent:

1. the automatic screening and mandatory dismissal rules are severable from controlled maintenance and the adjudication exceptions;
2. the statutory settlement, payment, release, immunity, and funding prohibitions are severable from a court's authority to enforce them in a particular action;
3. each plaintiff category and remedy in section 9 is severable from every other category and remedy;
4. the section 7217 amendment is severable from the executive self-litigation provisions; and
5. the invalidity of the Rule 41 treatment in a particular application does not invalidate the statutory prohibitions, tolling, reporting, or prospective tax-administration rules.

Budgetary Impact Statement

The bill creates no new office, judgeship, direct spending authority, or mandatory appropriation. Incremental workload may fall on filing courts, the District Court for the District of Columbia, DOJ, affected agencies, Treasury, IRS, TIGTA, and congressional committees. The fiscal year 2027 Judiciary request totals \$9.7 billion in discretionary funding, and TIGTA's fiscal year 2027 justification identifies a \$137.661 million request for 508 FTE while reporting substantial mandatory-review and staffing pressure; those systemwide figures are capacity comparators, not estimates of this bill's cost. Because no reliable source establishes the number of covered actions, attempted instruments, staff hours, protected notices, or enforcement cases, section 10 authorizes such sums as may be necessary for fiscal years 2027 through 2033 but provides no budget authority. AOUSC, Treasury, TIGTA, IRS, DOJ, CBO, OMB, and appropriators should develop a workload estimate before enactment.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- The filing of a potentially covered action automatically triggers a sua sponte Article III adverseness screen and an interim anti-evasion stay. No government appearance, motion, answer, or objection is required.

- Rule 41 dismissal notices and stipulations are ineffective until the court completes screening, preventing the parties from eliminating merits jurisdiction before the court determines whether a genuine case or controversy exists.
- A constitutionally non-adverse action must be dismissed without prejudice rather than retained on the docket. Statutory tolling preserves any still-timely underlying claim through the conflicted service and for 1 year afterward without reviving a claim already time-barred when tolling began.
- Controlled maintenance applies only after the court finds genuine Article III adversity but determines that a separate statutory self-litigation conflict remains.
- The President and Vice President are expressly included as covered executive officials, and displacement of the rule requires a later Act of Congress that expressly states whether it applies to the identified office.
- Vice President coverage requires formal authority, delegated responsibility, or actual participation or direction concerning the defense, settlement, payment, records, privilege, classification, or litigation decision at issue; title, political alignment, or access alone is insufficient.
- The official-capacity savings clause is limited to litigation exercised solely on behalf of the United States or the office. It should not protect a claim that practically confers personal or affiliated benefit.
- The court-permitted adjudication exception is designed for legitimate injuries, including preexisting claims or adverse actions initiated by actors outside the official's control. It requires both an independent tribunal and genuinely independent authority to defend the United States; tribunal independence alone does not create adverse parties. Liability adjudication is separated from damages, settlement, and payment unless the court makes separate heightened findings.
- The injunctive-relief safety valve is designed to stop ongoing or imminent harm without allowing damages, settlement, reimbursement, indemnification, offset, public funds, or compensation funds during covered service.
- The payment bar is designed to prevent litigation from becoming a substitute for express congressional authorization of a compensation fund.
- Section 7 amends 26 U.S.C. § 7217 for every taxpayer and Federal actor, including the Attorney General and persons acting for the United States. A prohibited prospective or categorical audit-immunity term is void from inception, cannot support consideration or estoppel, and must be disregarded by the IRS. The amendment deliberately does not extend section 7217(d)'s five-year felony to the broader instrument and reporting provisions; TIGTA instead reviews attempted terms and makes corrective or misconduct referrals under otherwise applicable law.
- The § 7217 amendment preserves case-specific finality under sections 7121 and 7122, final judgments, limitations periods, and ordinary neutral IRS enforcement discretion. Those exceptions do not permit restrictions concerning unidentified matters or future taxable periods.
- The amendment reaches prospective implementation after enactment of a pre-enactment audit-immunity term without reopening completed closing agreements, completed compromises, or final judgments.
- The publication check verified the nonmonetary emergency-relief, controlled-maintenance, repayment-process, protected-information, appeal, prospective-application, authorization, and severability provisions and found no broken operative cross-reference.

Source Notes

- Existing-law review should include the Judgment Fund under 31 U.S.C. § 1304, DOJ judgment and compromise-payment mechanics under 28 U.S.C. § 2414, tax-return confidentiality remedies under 26 U.S.C. § 7431, executive audit-interference restrictions under 26 U.S.C. § 7217, closing agreements under 26 U.S.C. § 7121, and compromises under 26 U.S.C. § 7122.
- The June 24, 2026 amendment in the nature of a substitute to H.R. 7007 supplies the official text of the NO CARTE BLANCHE Act. It combines H.R. 8914 and H.R. 9210, restricts Judgment Fund payments, and proposes 28 U.S.C. § 2414a judicial review of presidential settlements. EMOL-015 adds automatic filing-stage screening, non-adversity dismissal, controlled maintenance, a broader covered-official conflict rule, and a universal categorical audit-immunity prohibition.
- Docket entry 106 issued on the internal project review date. No same-day public record can responsibly establish the outcome of an appeal, reconsideration, fee, or disciplinary process; those matters require refresh immediately before circulation.
- The publication check checked the operative text against Federal Rules of Civil Procedure 12 and 41; 5 U.S.C. chapter 7; 26 U.S.C. §§ 6103, 7121, 7122, 7217, and 7431; 28 U.S.C. §§ 1291, 1292, 1331, and 2414; and 31 U.S.C. § 1304. Legislative counsel must repeat the current-Code and rule check at introduction.
- Constitutional review should test Article II, due process, access to courts, sovereign immunity, justiciability, separation of powers, and Congress's appropriations authority.

FUND-001 — Ultra Vires Executive Directive Fiscal Review Act

A BILL

To amend the Impoundment Control Act of 1974 to establish appropriations safeguards when repeated unlawful executive directives demonstrate a pattern of directive-based nonexecution, to prohibit the use, withholding, delay, deferral, apportionment, reprogramming, or conditioning of funds to implement new or continuing covered directives during a review period unless lawful authority is certified, to provide expedited review, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the "**Ultra Vires Executive Directive Fiscal Review Act.**"

SEC. 2. PURPOSES.

The purposes of this Act are to—

1. protect Congress's constitutional power of the purse;
2. prevent executive orders, presidential memoranda, OMB directives, or comparable executive directives from being used to effectuate unlawful impoundment, nonexecution, program suspension, grant coercion, or statutory evasion;
3. preserve lawful executive supervision and administration while limiting the use of appropriated funds to implement covered directives after repeated unlawful conduct;
4. create an objective trigger based on final judicial judgments involving distinct directives rather than partisan accusation, while preserving the Comptroller General's investigative, reporting, and existing enforcement authorities;
5. ensure that new covered directives are fiscally inert as to their covered scope during a review period unless lawful authority is publicly certified or judicial review permits implementation;
6. require review of continuing implementation under earlier covered directives issued in the same presidential term;
7. provide expedited review before unlawful directive-based implementation creates facts on the ground; and
8. protect covered employees who decline to implement covered directives that do not satisfy this Act without restricting constitutionally protected presidential removal authority.

SEC. 3. EXECUTIVE DIRECTIVE IMPOUNDMENT REVIEW.

Title X of the Congressional Budget and Impoundment Control Act of 1974 (2 U.S.C. 681 et seq.) is amended by adding at the end the following:

"PART C—EXECUTIVE DIRECTIVE IMPOUNDMENT REVIEW

"SEC. 1021. DEFINITIONS.

"In this part:

"(1) **Covered executive directive.** The term 'covered executive directive' means any executive order, presidential memorandum, national security memorandum, homeland security directive, Office of Management and Budget directive, apportionment instruction, agency directive issued to implement a presidential directive, or comparable written or recorded instruction from the President, the Executive Office of the President, the Office of Management and Budget, or an officer acting under presidential direction that materially affects—

"(A) the obligation, expenditure, withholding, delay, deferral, apportionment, reapportionment, reprogramming, transfer, cancellation, or conditioning of budget authority;

"(B) implementation of a statutory program, benefit, formula, grant, contract, loan, cooperative agreement, or entitlement;

"(C) eligibility for, or conditions attached to, Federal funds;

"(D) agency staffing, closure, suspension, or operational capacity where the effect is to impair execution of a statutory program;

"(E) State, local, territorial, Tribal, or grantee administration of a federally funded program; or

"(F) any other action designated by Congress in an appropriations Act as subject to this part.

"(2) **Covered implementation action.** The term 'covered implementation action' means any action or inaction by an agency, officer, employee, contractor, grantee, or recipient taken to implement, enforce, carry out, give effect to, or comply with a covered executive directive.

"(3) **Trigger finding.** The term 'trigger finding' means a judgment of a court of the United States that—

"(A) finally holds that a covered executive directive or covered implementation action violates an appropriations Act or another express statutory command, effects a rescission or deferral not authorized by this title, or exceeds statutory or constitutional authority in a manner that materially impairs execution of a statutory program;

"(B) is a judgment of a court of appeals, a judgment of the Supreme Court, or a district-court judgment for which the time to appeal has expired or all appeals have been dismissed;

"(C) has not been vacated and is not stayed when used to commence or extend a review period; and

"(D) does not rest solely on a procedural defect under chapter 7 of title 5, United States Code, unless the judgment also makes a holding described in subparagraph (A).

"(4) **Review period.** The term 'review period' means the Executive Directive Impoundment Review Period established under section 1022.

"(5) **Lookback directive.** The term 'lookback directive' means a covered executive directive issued by the same President before the beginning of a review period and during the then-current presidential term, but only to the extent the directive has ongoing or future covered implementation actions on or after the date the review period begins.

"(6) **Fiscally inert.** The term 'fiscally inert' means that a covered executive directive may not be implemented, relied upon, or treated as authority to obligate, expend, withhold, delay, defer, apportion, reapportion, reprogram, transfer, cancel, or condition budget authority, or to alter statutory program execution, within the covered scope unless the requirements of this part are satisfied.

"(7) **Covered scope.** The term 'covered scope' means the portion of a covered executive directive that materially affects an item listed in paragraph (1).

"(8) **Emergency implementation certification.** The term 'emergency implementation certification' means a written certification under section 1025.

"(9) **Distinct directive.** The term 'distinct directive' means a covered executive directive that is not merely a republication, implementing instrument, or component of another directive involved in a trigger finding arising from the same nucleus of operative facts.

"SEC. 1022. EXECUTIVE DIRECTIVE IMPOUNDMENT REVIEW PERIOD.

"(a) Trigger.—An Executive Directive Impoundment Review Period shall begin when, during any 36-month period, there are two or more trigger findings involving two or more distinct directives issued during the then-current presidential term by the President then serving, if at least one finding concerns withholding, delaying, deferring, conditioning, redirecting, or refusing to obligate budget authority contrary to an appropriations Act.

"(b) Commencement.—The review period begins on the date of the final trigger finding necessary to satisfy subsection (a).

"(c) Duration.—The review period shall last for 180 days, except that—

"(1) the period shall be extended for an additional 180 days if a new trigger finding involving another distinct directive occurs during the review period; and

"(2) the period shall terminate early if a three-judge district court determines under section 1026 that the trigger requirements were not satisfied; and

"(3) the period shall terminate not later than the end of the presidential term in which it began.

"(d) Publication.—Not later than 3 days after a review period begins, the Director of the Office of Management and Budget shall publish in the Federal Register and transmit to Congress a notice identifying the trigger findings, the covered executive directives involved, the date the review period begins, the date the review period is scheduled to end, and the process for identifying lookback directives subject to continuing-implementation review.

"(e) Failure to publish.—The review period begins under subsection (b) regardless of whether the Director publishes the notice required by subsection (d).

"(f) Lookback inventory.—Not later than 30 days after a review period begins, the Director of the Office of Management and Budget shall publish in the Federal Register and transmit to Congress an inventory of known lookback directives and the affected appropriations, accounts, programs, grants, benefits, contracts, loans, apportionments, or agency operations. Failure to identify a directive in the inventory does not exempt the directive or any covered implementation action from this part.

"(g) Comptroller General notice.—A decision, report, or opinion of the Comptroller General may identify a potential trigger finding, support an action under section 1016 or 1026, or inform congressional oversight, but does not by itself commence or extend a review period or impose a binding duty on an executive-branch officer.

"SEC. 1023. FISCAL INERTNESS OF COVERED EXECUTIVE DIRECTIVES DURING REVIEW PERIOD.

"(a) New covered directives.—During a review period, any covered executive directive issued after the review period begins is fiscally inert as to its covered scope unless—

"(1) the Director of the Office of Management and Budget and the head of each implementing agency publish a certification under section 1024;

"(2) the waiting period under section 1024 has expired;

"(3) no temporary restraining order, preliminary injunction, or final judgment prohibits implementation; and

"(4) no other provision of law prohibits the covered implementation action.

"(b) Lookback directives.—Beginning 180 days after a review period begins, a lookback directive is fiscally inert as to any ongoing or future covered implementation action unless—

"(1) not later than 90 days after the review period begins, the Director of the Office of Management and Budget and the head of each implementing agency publish a certification under section 1024 for continued implementation;

"(2) the waiting period under section 1024 has expired;

"(3) no temporary restraining order, preliminary injunction, or final judgment prohibits continued implementation; and

"(4) no other provision of law prohibits the covered implementation action.

"(c) Immediate limitation on new implementation under lookback directives.—During a review period, an agency may not begin a new covered implementation action under a lookback directive unless the certification required by subsection (b)(1) has been published and the remaining requirements of subsection (b) are satisfied, except as provided in section 1025.

"(d) No automatic undoing of completed acts.—Subsection (b) does not automatically invalidate a completed obligation, expenditure, personnel action, grant award, contract, benefit payment, or other completed implementation action, and does not by itself disturb vested third-party rights. This subsection does not limit otherwise available relief for an unlawful covered implementation action, including release of budget authority, restoration of statutory program operation, correction of unlawful conditions, or other relief authorized by section 1026.

"(e) Prohibited actions.—During a review period, no officer, employee, agency, or component of the United States may, solely or materially because of a covered executive directive that has not satisfied subsection (a) or subsection (b), as applicable—

"(1) obligate or expend funds to implement the directive;

"(2) withhold, delay, defer, impound, cancel, condition, apportion, reapportion, reprogram, transfer, or refuse to obligate budget authority;

"(3) suspend, terminate, or impair a statutory program, benefit, grant, contract, loan, formula, or entitlement;

"(4) alter eligibility criteria, formula allocations, statutory deadlines, application procedures, grant conditions, or recipient duties;

"(5) close, suspend, or materially reduce agency operations necessary to execute a statutory program;

"(6) treat the directive as legal authority to override a statute, appropriations Act, judicial order, or regulation; or

"(7) direct a recipient of Federal funds to take an action that the agency could not take directly under this part.

"(f) No inference of validity.—Publication of a certification under section 1024 does not create a presumption that the covered executive directive is lawful.

"(g) Ordinary administration preserved.—This section does not apply to a directive that solely concerns ceremonial matters, internal scheduling, advisory committee administration, purely internal housekeeping, classification markings, diplomatic communications, military command within authority otherwise provided by law, or other matters that do not materially affect the covered scope described in section 1021(1).

"SEC. 1024. LEGAL-AUTHORITY CERTIFICATION.

"(a) Certification required.—Before implementation or continued implementation of a covered executive directive during a review period, the Director of the Office of Management and Budget and the head of each implementing agency shall publish a written legal-authority certification.

"(b) Contents.—The certification shall—

"(1) identify the covered executive directive and state whether it is a new covered directive or a lookback directive;

"(2) identify each statutory or constitutional authority relied upon;

"(3) identify each appropriation, account, program, grant, benefit, contract, loan, or activity affected;

"(4) state whether the directive will obligate, expend, withhold, delay, defer, apportion, reapportion, reprogram, transfer, condition, or refuse to obligate budget authority;

"(5) state whether the directive constitutes, requires, or effects a rescission, deferral, or other impoundment under this title;

"(6) explain why the directive does not conflict with any appropriations Act, authorizing statute, court order, or prior trigger finding;

"(7) identify any emergency implementation certification under section 1025;

"(8) identify the official responsible for compliance; and

"(9) certify that implementation is consistent with this title and other applicable law.

"(c) Waiting period.—Except as provided in section 1025, implementation of a new covered directive may not begin until 15 days after publication of the certification. Continued implementation of a lookback directive may continue during the 15-day waiting period, but may not continue after the 180-day period described in section 1023(b) unless the requirements of section 1023(b) are satisfied.

"(d) Congressional notice.—The certification shall be transmitted on the date of publication to the Speaker of the House of Representatives, the President pro tempore of the Senate, the Committees on Appropriations and the Budget of the House of Representatives and the Senate, each authorizing committee with jurisdiction over an affected program, and the Comptroller General.

"(e) Protected information.—

"(1) A certification under this section shall publicly identify each statutory or constitutional authority relied upon and provide an unclassified explanation sufficient to permit meaningful review.

"(2) A fact, operational detail, privileged communication, personally identifiable information, procurement-sensitive information, trade secret, or other information protected from public disclosure by law may be placed in a separate annex rather than published, but only to the minimum extent necessary to protect the information.

"(3) A protected annex shall be transmitted with the certification to the congressional committees identified in subsection (d) and to the Comptroller General, subject to applicable law, and shall be provided to a court reviewing the certification under procedures that preserve due process and protect the information.

"(4) The public certification shall identify the category and legal basis of each withholding to the extent that identification itself is lawful and shall include a reasonably segregable unclassified summary. A protected annex may not conceal the existence of a legal authority, a material effect on budget authority, or the identity by official title of the officer responsible for compliance.

"SEC. 1025. EMERGENCY IMPLEMENTATION.

"(a) Limited emergency exception.—A covered executive directive may be implemented before expiration of the waiting period under section 1024 only if the Director of the Office of Management and Budget and the head of each implementing agency jointly publish an emergency implementation certification. If the certification relies on authority vested by the Constitution directly in the President, it shall attach any written presidential determination on which the implementing officers rely, but this subsection does not create a judicially enforceable duty running directly against the President.

"(b) Contents.—The certification shall state with specificity—

"(1) the imminent and concrete harm that requires immediate implementation;

"(2) why no narrower lawful measure is adequate;

"(3) the statutory authority for immediate implementation;

"(4) the anticipated fiscal effect;

"(5) the duration of emergency implementation; and

"(6) the steps that will be taken to minimize interference with appropriations and statutory program execution.

"(c) Duration and extension.—Emergency implementation under this section expires after 14 days unless Congress expressly authorizes continued implementation by law or a three-judge district court extends the period under section 1026. The court may grant an extension only upon clear and convincing evidence that the imminent and concrete harm remains, the asserted implementation is likely authorized by law, no narrower lawful measure is adequate, and the extension is no longer than reasonably necessary. An extension may not exceed 30 days. A further extension requires a new evidentiary showing satisfying this subsection.

"(d) No use for convenience.—Administrative convenience, policy preference, ordinary budget review, generalized disagreement with a statute, or desire to preserve executive flexibility is not an emergency for purposes of this section.

"SEC. 1026. EXPEDITED JUDICIAL REVIEW.

"(a) Cause of action and exclusive jurisdiction.—A person described in subsection (b) has an express cause of action to enforce this part, to declare a covered executive directive fiscally inert as to its covered scope, to compel release or obligation of unlawfully withheld budget authority, or to enjoin a covered implementation action. Notwithstanding section 704 of title 5 and sections 1346(a)(2) and 1491(a) of title 28, the United States District Court for the District of Columbia shall have exclusive original jurisdiction of an action arising under this part. The proper defendants are the United States, an implementing agency, the Director of the Office of Management and Budget, or another officer responsible for implementation. This section does not authorize coercive relief directly against the President.

"(b) Plaintiffs.—An action under this section may be brought by—

"(1) a State, territory, Tribal government, or political subdivision that alleges a concrete injury caused by the covered implementation action;

"(2) a recipient, applicant, beneficiary, contractor, grantee, program administrator, or other person that alleges a concrete injury caused by the covered implementation action;

"(3) Congress, acting through counsel designated after each House adopts a resolution authorizing the same action, if Congress alleges a concrete institutional injury independently sufficient under article III of the Constitution; or

"(4) any other person authorized to sue under otherwise applicable law that independently satisfies article III of the Constitution.

"Statutory authorization under this subsection does not dispense with article III injury, causation, redressability, or other constitutional requirements. A plaintiff described in paragraph (1) or (2) is within the zone of interests protected by this part only to the extent the alleged injury arises from an effect within the covered scope. The Comptroller General retains the separate authority provided by section 1016 and other applicable law.

"(c) Three-judge district court.—An action under this section shall be heard by a three-judge court convened in the United States District Court for the District of Columbia under section 2284 of title 28, United States Code.

"(d) Panel formation and temporary relief.—The district judge to whom the action is initially assigned shall, unless that judge determines that the asserted claim is wholly insubstantial or frivolous, immediately notify the chief judge of the United States Court of Appeals for the District of Columbia Circuit, who shall designate the additional judges in accordance with section 2284(b)(1) of title 28, United States Code. Before the three-judge court is convened, the initially assigned judge may issue a temporary restraining order only as authorized by section 2284(b)(3) of title 28 and rule 65(b) of the Federal Rules of Civil Procedure. A single judge may not grant or deny a preliminary or permanent injunction.

"(e) Expedition.—The court shall expedite the action to the greatest possible extent and shall rule on any request for interim relief not later than 10 days after the request is fully briefed, unless the court finds that additional time is required to protect due process, classified or privileged information, indispensable fact development, or another extraordinary interest of justice. The court shall state the reason publicly to the extent lawful and set the shortest feasible revised deadline.

"(f) Appellate review.—Notwithstanding section 1253 of title 28, United States Code, review of a final judgment or an appealable interlocutory order shall lie in the United States Court of Appeals for the District of Columbia Circuit under sections 1291 and 1292 of title 28, United States Code, and shall be expedited. Supreme Court review remains available under section 1254 of title 28, United States Code.

"(g) Sovereign immunity and relief.—The United States waives sovereign immunity for an action under this section seeking relief other than money damages. The court may grant declaratory relief, injunctive relief, mandamus relief for a clear nondiscretionary duty, vacatur of a covered implementation action, release or prospective obligation of budget authority, compliance reporting, or other appropriate specific relief. An action shall not be dismissed or transferred solely because compliance with a prospective decree requires the payment of money from budget authority that Congress made available for the program or recipient at issue. Any mandatory or injunctive decree shall identify by name or official title the officer or officers responsible for compliance. This subsection does not authorize compensatory, punitive, retrospective monetary, contract-damages, or grant-termination damages.

"(h) Relationship to other review.—

"(1) This section does not preclude a cause of action arising under chapter 7 of title 5, this title, an appropriations Act, or another provision of law, but a plaintiff seeking relief created by this part shall proceed under this section.

"(2) A claim arising solely under a contract, grant agreement, procurement statute, civil-service statute, labor-management statute, or other law remains subject to the jurisdictional and administrative-review requirements otherwise applicable to that claim.

"(3) Nothing in this section authorizes retrospective damages or permits a plaintiff to evade a specialized statutory review scheme by relabeling a claim that does not independently allege a violation of this part.

"(i) Existing mandates and continuing conduct.—This part applies to covered implementation occurring after enactment and to a withholding, suspension, delay, or other covered implementation action that remains ongoing on the effective date, without regard to whether the underlying appropriation or statutory program was enacted before, on, or after this part.

"SEC. 1027. COVERED-EMPLOYEE SAFE HARBOR.

"(a) Covered employee.—In this section, the term 'covered employee' means an employee of the United States other than an officer appointed by the President, by and with the advice and consent of the Senate, or a noncareer appointee whose removal is constitutionally committed to the President or the head of an executive agency.

"(b) Safe harbor.—A covered employee may not be removed, demoted, suspended, reassigned, denied promotion, denied pay, disciplined, threatened, or otherwise retaliated against for refusing in good faith to implement a covered executive directive during a review period if the directive has not satisfied section 1023(a) or section 1023(b), as applicable.

"(c) Reporting.—An officer or employee may report a suspected violation of this part to the Comptroller General, an Inspector General, the Office of Special Counsel, Congress, or a court with jurisdiction.

"(d) Existing rights and removal authority preserved.—This section does not limit any right, remedy, or protection under whistleblower, civil-service, appropriations, Inspector General, or other law and does not restrict removal authority vested by the Constitution in the President.

"SEC. 1028. COMPTROLLER GENERAL REPORTING.

"(a) Review.—During a review period, the Comptroller General shall monitor covered executive directives and may issue decisions, reports, or opinions on whether a covered directive or implementation action complies with this title, appropriations Acts, and other statutes governing budget authority.

"(b) Agency cooperation.—Each agency shall provide the Comptroller General timely access to records, apportionments, legal memoranda, program instructions, grant conditions, and other materials necessary to review compliance, consistent with law governing classified, privileged, or protected information.

"(c) Reports to Congress.—The Comptroller General shall report significant findings under this part to the Committees on Appropriations and the Budget of the House of Representatives and the Senate, each authorizing committee with jurisdiction over an affected program, and any other committee of jurisdiction.

"(d) No executive power.—A decision, report, or opinion under this section is advisory to Congress and the courts and does not itself commence or extend a review period, prohibit implementation, or otherwise execute this part against an executive-branch officer.

"SEC. 1029. RULES OF CONSTRUCTION.

"Nothing in this part shall be construed to—

"(1) prohibit the President from issuing an executive order, presidential memorandum, or other directive;

"(2) authorize implementation of a directive that is otherwise unlawful;

"(3) limit any requirement of this title, an appropriations Act, the Administrative Procedure Act, or any other law;

"(4) authorize a rescission or deferral not otherwise permitted by this title;

"(5) permit an agency to use a covered executive directive to override statutory eligibility, formula, deadline, spending, or program requirements;

"(6) create a legislative veto;

"(7) impair lawful emergency action authorized by statute and consistent with section 1025;

"(8) alter constitutional impeachment powers;

"(9) limit any remedy available under other law; or

"(10) affect any executive directive outside its covered scope;

"(11) authorize a court to compel or enjoin the President in the performance of a discretionary constitutional or executive duty; or

"(12) displace article III standing, causation, redressability, mootness, ripeness, or other constitutional limits on judicial power."

SEC. 4. CONFORMING AMENDMENT.

The table of contents in section 1(b) of the Congressional Budget and Impoundment Control Act of 1974 is amended by adding after the item relating to section 1017 the following:

"PART C—EXECUTIVE DIRECTIVE IMPOUNDMENT REVIEW

"Sec. 1021. Definitions.

"Sec. 1022. Executive Directive Impoundment Review Period.

"Sec. 1023. Fiscal inertness of covered executive directives during review period.

"Sec. 1024. Legal-authority certification.

"Sec. 1025. Emergency implementation.

"Sec. 1026. Expedited judicial review.

"Sec. 1027. Covered-employee safe harbor.

"Sec. 1028. Comptroller General reporting.

"Sec. 1029. Rules of construction."

SEC. 5. EFFECTIVE DATE AND APPLICABILITY.

(a) Effective date.—This Act and the amendments made by this Act take effect on the date of enactment.

(b) Existing judgments and ongoing implementation.—A trigger finding entered during the 36-month period preceding enactment may count under section 1022 of the Impoundment Control Act of 1974, as added by this Act, only if—

- (1) the directive was issued during the then-current presidential term by the President serving on the date of enactment;
- (2) the directive has an ongoing or future covered implementation action on or after the date of enactment; and
- (3) the judgment otherwise satisfies sections 1021 and 1022 of that Act.

(c) Completed conduct.—Nothing in this section independently invalidates a completed obligation, expenditure, personnel action, grant award, contract, benefit payment, or other completed action or disturbs a vested third-party right.

SEC. 6. AUTHORIZATION OF APPROPRIATIONS.

(a) In general.—There are authorized to be appropriated to the Government Accountability Office, the Office of Management and Budget, the Administrative Office of the United States Courts, and affected executive agencies such sums as may be necessary for fiscal years 2027 through 2031 to carry out the amendments made by this Act.

(b) Availability.—Amounts appropriated pursuant to subsection (a) may remain available until expended and shall supplement, not supplant, amounts otherwise available for the same purposes.

(c) No direct appropriation.—This section is an authorization of appropriations and does not itself provide budget authority.

SEC. 7. SEVERABILITY.

If any provision of this Act, an amendment made by this Act, or the application of such provision or amendment to any person or circumstance is held invalid, the remainder of this Act, the amendments made by this Act, and the application of such provision or amendment to any other person or circumstance shall not be affected.

Budgetary Impact Statement

Administrative and litigation workload is likely for OMB, GAO, affected agencies, and the federal courts. Section 6 authorizes such sums as may be necessary for fiscal years 2027 through 2031 but does not directly appropriate funds. Implementation costs would depend on the frequency of qualifying final judgments, the number of covered directives requiring certification, protected-information handling, and resulting litigation. As scale comparators rather than estimates of this bill, GAO's fiscal year 2026 request sought \$933.9 million in appropriations for an agency-wide workload exceeding 550 legal decisions in fiscal year 2024; OMB's federal-program inventory covered more than 2,600 programs and \$7 trillion in spending; and the Judiciary's fiscal year 2026 request attributed \$17.2 million and 170 full-time-equivalent positions to projected court-support workload changes across the federal courts. H.R. 5220—the closest current congressional analogue—has no published CBO estimate. None of those government-wide figures isolates FUND-001's incremental cost, so a proposal-specific CBO score and GAO, OMB, and Judiciary workload estimates remain necessary before appropriators should select a fixed amount.

Note: Preliminary ARRPs assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This draft regulates agency implementation and appropriated funds rather than directly invalidating executive orders.
- The internal project review retains the new part in title X because H.R. 5314 and H.R. 5220 use the same Impoundment Control Act vehicle for prudent-obligation, apportionment-reporting, GAO-access, enforcement, and penalty reforms. Legislative counsel should still test whether selected GAO-access provisions belong in title 31.
- The internal project review limits trigger credit to qualifying final judicial judgments involving distinct directives; GAO findings remain advisory and retain existing statutory enforcement functions, reducing the separation-of-powers risk identified in *Bowsher v. Synar*. The trigger window is 36 months because the 2018 federal-workforce litigation and the 2025 foreign-assistance litigation show that jurisdictional and appellate disputes can consume many months before finality.
- The internal project review aligns panel formation and single-judge temporary relief with 28 U.S.C. § 2284, expressly routes appeals through 28 U.S.C. §§ 1291 and 1292 notwithstanding § 1253, and preserves Supreme Court certiorari under § 1254.
- The internal project review confines the express plaintiff route to concretely injured parties and Congress acting with both Houses' authorization and independent Article III standing; qualified review remains necessary because legislation can confer a cause of action but cannot eliminate constitutional standing requirements.
- The internal project review gives D.D.C. exclusive original jurisdiction over claims arising under this part notwithstanding the APA adequate-remedy rule and the Tucker Act grants in 28 U.S.C. §§ 1346(a)(2) and 1491(a). It distinguishes prospective release or obligation of identified budget authority from retrospective damages, preserves specialized review for claims arising solely under contracts, grants, procurement, civil-service, or labor statutes, and prevents relabeling of claims that do not independently violate this

part.

- The internal project review requires public identification of legal authority and a meaningful unclassified explanation while permitting only necessary protected annexes, committee and GAO transmission subject to law, court access under protective procedures, and reasonably segregable public summaries. The design follows the current congressional analogue's use of detailed unclassified summaries for protected legal material without copying its OLC-specific mechanism.
- The internal project review limits emergency judicial extensions to 30 days on clear and convincing evidence of continuing imminent harm, likely lawful authority, no narrower lawful measure, and necessity; each further extension requires a new showing.
- This bill is the independent FUND-001 alternative. It neither invokes nor depends on the Interbranch Review Framework Act (JUD-011) or another ARRP proposal.
- Qualified review should test the section 1026 jurisdictional override, title X codification, protected-information procedure, emergency-extension standard, and the 15-, 30-, 90-, and 180-day deadlines; refresh the current impoundment cases; and obtain proposal-specific workload estimates from GAO, OMB, and the Judiciary.

IMM-001 — Presidential Criminal Accountability Amendment

Proposed Constitutional Amendment

Section 1. Neither the President nor any former President shall possess absolute immunity for conduct within conclusive or preclusive presidential authority, presumptive immunity for other official acts, or any other criminal immunity arising solely from the official character of an act, the use of presidential power, or the separation of powers.

Section 2. The exercise or attempted exercise of a power vested in the President may constitute conduct, evidence, or an element of a valid federal criminal offense, whether the offense is generally applicable or specifically applicable to federal officers or the President, when the prosecution proves every element beyond a reasonable doubt. Lawful exercise of presidential authority, standing alone, shall not constitute a criminal offense.

Section 3. Separation-of-powers concerns may justify tailored rules concerning timing, process, privilege, venue, screening, disclosure, or remedy, but shall not create criminal immunity and shall not require the prosecution to prove the complete absence of danger, burden, or institutional intrusion before official conduct may be investigated, charged, adjudicated, or punished.

Section 4. In determining criminal intent, purpose, knowledge, or corrupt motive, a court and jury may consider otherwise admissible evidence of official conduct. Presidential immunity shall create no rule of evidentiary exclusion. Official communications, testimony, records, and surrounding circumstances may be admitted when otherwise relevant and admissible, subject to executive privilege, classification law, fair-trial protections, and other generally applicable evidentiary rules.

Section 5. Impeachment by the House of Representatives or conviction by the Senate shall not be a prerequisite to criminal investigation or prosecution. Nothing in this article shall alter the respective impeachment powers of the House and Senate.

Section 6. Congress may provide that a sitting President shall not be indicted or tried while holding office, provided that any otherwise applicable limitation period is suspended during presidential tenure and for a reasonable period thereafter. Investigation, preservation of evidence, judicial process consistent with official duties, and reporting to Congress may continue.

Section 7. Congress may establish independent screening, appointment, venue, disclosure, privilege, and expedited-review procedures to protect both the fair administration of criminal law and the lawful functioning of the Presidency.

Section 8. This article applies equally to every President and former President without regard to political party, administration, or the identity of the prosecuting authority.

Section 9. Congress shall have power to enforce and implement this article by appropriate legislation.

Budgetary Impact Statement

No direct appropriation is anticipated for the amendment itself; implementing legislation may have costs.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- Section 1 expressly supersedes both absolute immunity for conclusive or preclusive powers and presumptive immunity for other official acts.
- Section 3 eliminates the requirement that prosecution prove the complete absence of institutional intrusion while preserving tailored procedural accommodations.
- Section 2 reaches both generally applicable and President-specific criminal statutes.
- Section 4 rejects immunity-based evidentiary exclusion while preserving ordinary privilege, classification, and evidentiary protections.
- The amendment does not create new substantive crimes.
- Impeachment and criminal accountability remain distinct.
- A temporary sitting-President rule may coexist with investigation, evidence preservation, congressional reporting, and later prosecution.
- The amendment and DOJ-007 are modular: either may operate without the other, while adoption of both supplies independent investigation and meaningful criminal accountability.

Source Notes

- Source review should include *Trump v. United States*, Article II, and the Constitution's impeachment provisions in Article I, Section 2 and Article I, Section 3.
- Prior-proposal comparison should include H.J.Res. 193, which proposed no criminal immunity for federal officers including the President and Vice President on the sole ground that the alleged act was within constitutional authority or related to official duties.

JUD-001 — Executive Compliance and Civil Contempt Accountability Act

A BILL

To amend section 401 of title 18, United States Code, to strengthen civil contempt tools for willful executive-branch noncompliance with federal court orders; to amend section 1304 of title 31, United States Code, to prohibit payment of personally imposed contempt penalties from the Judgment Fund; and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Executive Compliance and Civil Contempt Accountability Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to—

1. strengthen enforcement of lawful federal court orders directed to the United States, federal agencies, federal officers, and persons acting under color of federal executive authority;
2. require identification of an executive-branch official with legal or practical authority over compliance where executive implementation is disputed;
3. provide courts with prompt, sworn compliance information before noncompliance becomes irreversible;
4. preserve ordinary appeal, stay, clarification, modification, privilege, due-process, and national-security safeguards;
5. authorize calibrated civil-contempt remedies for willful executive noncompliance; and
6. ensure that civil-contempt monetary penalties imposed personally for willful noncompliance are not shifted to taxpayers, agency funds, appropriated funds, reimbursement mechanisms, indemnification mechanisms, or the Judgment Fund.

SEC. 3. EXECUTIVE COMPLIANCE CIVIL CONTEMPT.

Section 401 of title 18, United States Code, is amended—

1. by striking “A court of the United States shall have power” and inserting “(a) In general.—A court of the United States shall have power”;
2. by adding at the end the following:

“(b) Executive compliance civil contempt.

“(1) Definitions.

“In this subsection:

“(A) **Covered executive order** means a lawful writ, process, order, rule, decree, injunction, stay, mandamus order, habeas-related order, discovery order, sanctions order, or other command issued by a court of the United States that requires or prohibits action by the United States, an executive agency, an officer or employee of the United States, or any person acting under color of federal executive authority.

“(B) **Executive agency** has the meaning given in section 105 of title 5.

“(C) **Responsible official** means an officer or employee of the United States who has legal authority, supervisory authority, operational control, custody of relevant records or persons, or practical ability to take materially necessary steps to comply with a covered executive order.

“(D) **Willful noncompliance** means intentional, knowing, reckless, or bad-faith disobedience of or resistance to a covered executive order by a responsible official who had notice of the order and legal or practical ability to comply, to cause compliance, or to take materially necessary compliance steps.

“(E) **Public funds** means appropriated funds, agency funds, settlement funds, representational funds, reimbursement authority, indemnification authority, insurance purchased or funded by the United States or an executive agency, the Judgment Fund established under section 1304 of title 31, or any other money provided by the United States or an executive agency.

“(2) Responsible-official designation.

“In a proceeding involving alleged, threatened, or reasonably foreseeable noncompliance with a covered executive order, the court may, on motion or on its own initiative, require the United States, the relevant executive agency, or the relevant federal officer to designate one or more responsible officials.

“A designation under this paragraph shall—

“(A) identify each responsible official by name, title, agency, component, and official contact information;

“(B) describe the official's authority and practical role in implementing the covered executive order;

“(C) identify any other agency, component, contractor, custodian, or officer whose cooperation is materially necessary for compliance;

“(D) be signed under penalty of perjury by the designated official and by counsel of record for the United States or relevant agency; and

“(E) be filed within the time set by the court.

“If the United States or relevant agency fails to make a timely and adequate designation, the court may identify a presumptive responsible official based on the record and may require that official, the official's supervisor, or agency counsel to show cause why the official should not be treated as a responsible official for purposes of this subsection.

“(3) *Compliance plan.*

“The court may require a responsible official to file a sworn compliance plan.

“A compliance plan shall state, to the extent applicable—

“(A) the steps taken to comply;

“(B) the steps remaining to achieve compliance;

“(C) the officials, agencies, components, contractors, custodians, or other persons whose action is necessary for compliance;

“(D) the timeline for each remaining compliance step;

“(E) any claimed legal, practical, privilege, security, foreign-affairs, custody, logistical, or impossibility obstacle to compliance;

“(F) the records, communications, notices, directives, holds, or instructions issued to preserve compliance capacity; and

“(G) whether the responsible official contends that clarification, modification, stay, mandamus, or appellate relief is necessary.

“(4) *Compliance reports.*

“The court may require periodic sworn compliance reports from a responsible official until the covered executive order is satisfied, stayed, modified, dissolved, or otherwise terminated.

“Each report shall identify material compliance steps, remaining obstacles, any change in responsible officials or implementation authority, and any material risk that compliance will not occur within the time required by the court.

“(5) *Expedited show-cause proceedings.*

“Upon a credible allegation of noncompliance with a covered executive order, the court may issue an expedited order to show cause.

“In a proceeding under this paragraph, the court may—

“(A) require testimony, declarations, records, privilege logs, custody information, agency directives, implementation notices, or other evidence relevant to compliance;

“(B) require the responsible official, agency counsel, or supervising officials to appear personally or remotely;

“(C) set an expedited evidentiary hearing;

“(D) make findings regarding notice, authority, practical ability to comply, good-faith efforts, impossibility, ambiguity, privilege, and willfulness; and

“(E) issue coercive, compensatory, remedial, or compliance-preserving orders consistent with law.

“(6) *Civil-contempt sanctions for willful noncompliance.*

“If the court finds by clear and convincing evidence that a responsible official engaged in willful noncompliance, the court may impose civil-contempt sanctions necessary to coerce compliance, compensate injured parties, remedy delay, preserve the court's authority, or prevent further evasion.

“Sanctions under this paragraph may include—

“(A) coercive monetary penalties;

“(B) compensatory monetary relief for costs, fees, and expenses caused by noncompliance;

“(C) remedial orders preserving records, persons, funds, custody, operational capacity, or agency action necessary for compliance;

“(D) adverse factual findings where permitted by law;

“(E) fee shifting and public-cost awards;

“(F) referral to an inspector general, disciplinary authority, or congressional committee with jurisdiction; and

“(G) any other civil-contempt remedy authorized by law.

“(7) *Personal payment of coercive monetary penalties.*

“A coercive monetary penalty imposed against a responsible official under paragraph (6) for willful noncompliance shall be payable personally by that responsible official.

“No public funds may be used, directly or indirectly, to pay, reimburse, indemnify, satisfy, compromise, offset, or insure against a monetary penalty described in this paragraph, unless a later Act of Congress specifically authorizes payment of the identified penalty or class of penalties.

“No officer or employee of the United States may authorize, approve, facilitate, or conceal payment prohibited by this paragraph.

“Nothing in this paragraph prohibits the United States from providing representation, ordinary litigation support, or indemnification for claims other than a personally payable monetary penalty imposed for willful noncompliance under this subsection, to the extent otherwise authorized by law.

“(8) *Due process and protected good-faith conduct.*

“No responsible official may be sanctioned under this subsection without notice and an opportunity to be heard.

“The court shall not impose a personally payable monetary penalty under paragraph (7) for—

“(A) timely seeking clarification, modification, stay, mandamus, or appellate relief;

“(B) making a nonfrivolous legal argument concerning the scope, validity, or application of a covered executive order;

“(C) asserting a privilege, classification, national-security, foreign-affairs, custody, or impossibility claim in good faith and with sufficient information for judicial review;

“(D) failing to perform an act outside the official's legal authority or practical ability; or

“(E) noncompliance caused by ambiguity, impossibility, lack of notice, good-faith mistake, or another circumstance inconsistent with willful noncompliance.

“(9) *Stays and appeals.*

“This subsection does not alter any right to seek a stay, appeal, mandamus, certification, or other review.

“The filing of an appeal, mandamus petition, stay motion, clarification motion, or modification motion does not by itself suspend a covered executive order unless a court so orders.

“An appeal from an order imposing a personally payable monetary penalty under paragraph (7) shall be expedited to the greatest practicable extent.

“(10) *Notice to oversight institutions.*

“If, after notice and an opportunity to be heard, the court expressly finds that an executive agency materially failed to comply with a covered executive order, or finds willful noncompliance by a responsible official under paragraph (6), the clerk shall transmit the order and findings to—

“(A) the inspector general of the relevant agency;

“(B) the Attorney General;

“(C) the head of the relevant agency;

“(D) the chair and ranking minority member of the Committee on the Judiciary of the House of Representatives;

“(E) the chair and ranking minority member of the Committee on the Judiciary of the Senate;

“(F) the Speaker, majority leader, and minority leader of the House of Representatives;

“(G) the majority leader and minority leader of the Senate;

“(H) the Clerk of the House of Representatives and the Secretary of the Senate, for distribution, in accordance with the rules and procedures of the respective House, to the chair and ranking minority member of any other congressional committee with jurisdiction over the agency, program, appropriation, or subject matter; and

“(I) the Director of the Administrative Office of the United States Courts.

“The clerk shall transmit the public versions of the order and findings, or a public docket statement entered by the court if protected information prevents public filing. Protected material may be transmitted only through a lawful secure procedure and only to an authorized recipient.

“The clerk shall transmit a prompt supplemental notice after an express written order, judgment, or docket entry stays, reverses, vacates, modifies, clarifies, or supersedes the finding or underlying order, or records satisfaction, purge, or compliance.

“Notice under this paragraph is informational and remedial. It does not limit the court's enforcement authority, establish criminal liability or entitlement to investigation, require criminal prosecution, or require Congress or any recipient to act.

“(11) Relationship to other authority.

“This subsection supplements and does not limit—

“(A) subsection (a);

“(B) section 1361 of title 28;

“(C) section 1651 of title 28;

“(D) section 566 of title 28;

“(E) the Federal Rules of Civil Procedure;

“(F) habeas corpus authority;

“(G) inherent judicial authority;

“(H) any other contempt, sanctions, fee-shifting, disciplinary, remedial, or enforcement authority; or

“(I) any lawful authority of Congress, inspectors general, or agency heads.

“Nothing in this subsection authorizes criminal prosecution by a person not otherwise authorized by law to conduct such prosecution.

“(12) Rules of construction.

“Nothing in this subsection shall be construed to—

“(A) authorize a court to direct policy discretion committed by law to the executive branch beyond the relief otherwise lawfully available;

“(B) require disclosure of privileged, classified, national-security, law-enforcement-sensitive, foreign-affairs, or protected information except under procedures authorized by law;

“(C) impair lawful emergency action where compliance is impossible and the responsible official promptly informs the court;

“(D) alter sovereign immunity except to the extent necessary to enforce a covered executive order otherwise within the court's jurisdiction;

“(E) limit substitution, official-capacity litigation, or representation rules otherwise provided by law; or

“(F) authorize payment from public funds of a personally payable monetary penalty imposed under paragraph (7).”.

SEC. 4. JUDGMENT FUND LIMITATION.

Section 1304(a) of title 31, United States Code, is amended by adding at the end the following:

“No amount may be paid under this section to pay, reimburse, indemnify, satisfy, compromise, offset, or insure against a personally payable monetary penalty imposed on a responsible official for willful noncompliance under section 401(b)(7) of title 18, unless a later Act of Congress specifically authorizes payment of the identified penalty or class of penalties.”.

SEC. 5. PUBLIC EXECUTIVE-NONCOMPLIANCE REGISTER.

Section 604(a) of title 28, United States Code, is amended—

(1) in paragraph (25), by striking the period and inserting “; and”; and

(2) by adding at the end the following:

“(26) establish and maintain a free, searchable, downloadable, and durable online register of the public materials transmitted under section 401(b)(10) of title 18, which shall identify the court, case, docket number, date, responsible official (if identified), agency, and current status; link to the public order, finding, and available docket information; publish each supplemental notice promptly and with prominence reasonably equal to the original finding; preserve an auditable correction history; and disclose no classified, sealed, grand-jury, personal, privileged, or other information lawfully protected from public disclosure.”.

SEC. 6. EFFECTIVE DATE; APPLICATION.

This Act shall take effect 30 days after the date of enactment.

This Act applies to covered executive orders issued on or after the effective date of this Act and to continuing noncompliance occurring on or after the effective date of this Act, regardless of when the underlying proceeding commenced.

SEC. 7. SEVERABILITY.

If any provision of this Act, any amendment made by this Act, or any application of such provision or amendment is held invalid, the remainder shall not be affected.

If the personal-payment rule in section 401(b)(7) of title 18, United States Code, or the Judgment Fund limitation in section 1304(a) of title 31, United States Code, is held invalid in any application, the remaining responsible-official designation, compliance-plan, reporting, show-cause, contempt, fee-shifting, remedial, notice, and oversight provisions shall remain enforceable to the maximum extent permitted by law.

Budgetary Impact Statement

The Act adds clerk transmission, protected-information handling, status updates, and an Administrative Office public register to existing compliance and contempt work. It creates no new court or investigative body. No reliable dollar estimate is assigned pending judiciary workload and systems data.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This draft amends existing contempt authority in 18 U.S.C. § 401 rather than creating a new freestanding Title 28 enforcement section.
- The draft preserves related existing authorities, including mandamus jurisdiction under 28 U.S.C. § 1361, the All Writs Act under 28 U.S.C. § 1651, and the Marshals Service duty to execute federal court orders under 28 U.S.C. § 566.
- The Judgment Fund amendment to 31 U.S.C. § 1304 is included to prevent public payment of personally imposed contempt penalties.
- The proposal intentionally leaves non-executive initiation of criminal contempt or related prosecution to separate congressional and prosecution-independence issues, including CONG-001.
- The notice and register provisions implement JUD-005's preferred coordinated remedy. The informational notice trigger covers an express finding of material agency noncompliance as well as a willfulness finding against a responsible official; only the latter activates JUD-001's personal civil-contempt sanctions. A JUD-001 finding may support an otherwise authorized DOJ-007 application, but it does not itself establish criminality, extraordinary executive conflict, or entitlement to independent counsel.
- Civil-contempt doctrine review should include *United Mine Workers v. Bagwell*, *Shillitani v. United States*, *Spallone v. United States*, and *Hutto v. Finney*, with special attention to purgeability, compensation, coercion, due process, individual-official caution, and fee or cost remedies.
- The personal-payment rule needs legislative-counsel or qualified legal review before publication-ready use, especially as to due process, federal indemnification, Judgment Fund practice, the Appropriations Clause, and federal-officer representation.
- The internal project source review indicates that appellate treatment of Judge Boasberg's Alien Enemies Act contempt inquiry increases the need for explicit statutory standards while also increasing legal-risk scrutiny. The draft should preserve a narrow fit to clear orders, notice, practical ability to comply, willfulness, and purgeability.
- The internal project review identified a hostile prior legislative comparator: a reported House-passed contempt-enforcement restriction in 2025 budget-reconciliation materials. The restriction was not verified as enacted in Public Law 119-21, so it should be treated as political-risk and prior-vehicle context rather than current law.

Source Notes

- The draft should be reviewed for Article II, Article III, due process, sovereign immunity, appropriations, indemnification practice, federal-officer representation, classified-information procedures, privilege, habeas practice, and appellate jurisdiction.
- Federal Rules of Civil Procedure 53 and 70 should be sourced, where practicable, from the official U.S. Courts Current Rules of Practice and Procedure materials rather than development-stage secondary rule references.
- Before public release, official court or docket sources should replace secondary or RECAP-only support where available for the Alien Enemies Act, Abrego Garcia, Melgar-Salmeron, and New Jersey U.S. Attorney's Office examples.

JUD-005 — Judicial Noncompliance Notice and Public Accountability Act

This is the independent JUD-005 alternative. It operates without JUD-001, DOJ-007, or JUD-011.

A BILL

To require prompt congressional notice and a public status record when a Federal court finds material or willful noncompliance by the United States or a Federal executive entity or officer with an operative judicial order, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Judicial Noncompliance Notice and Public Accountability Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to—

- (1) ensure that a qualifying judicial finding of executive noncompliance is transmitted automatically and simultaneously to politically accountable oversight recipients;
- (2) provide the public an accurate, searchable record of the finding and its later judicial or compliance status;
- (3) protect information that lawfully may not be made public; and
- (4) preserve judicial independence and congressional discretion by creating no new adjudication, sanction, investigation, or duty for Congress to act.

SEC. 3. NOTICE OF QUALIFYING EXECUTIVE-NONCOMPLIANCE FINDINGS.

(a) In general.

Chapter 41 of title 28, United States Code, is amended by adding at the end the following:

“§ 614. Notice of qualifying executive-noncompliance findings

“(a) Definitions.

“In this section:

“(1) **Covered executive party.**—The term ‘covered executive party’ means—

“(A) the United States;

“(B) the President or Vice President, when acting or sued in an official capacity;

“(C) an executive agency as defined in section 105 of title 5, a military department as defined in section 102 of title 5, the United States Postal Service, the Postal Regulatory Commission, the Executive Office of the President, or any other establishment in the executive branch; or

“(D) an officer or employee of an entity described in subparagraph (C), when acting or sued in an official capacity.

“(2) **Qualifying finding.**—The term ‘qualifying finding’ means an express written finding by a court of the United States, entered after notice and an opportunity to be heard, that—

“(A) a covered executive party materially or willfully failed to comply with a lawful writ, process, order, rule, decree, or command of that court or another court of the United States;

“(B) the writ, process, order, rule, decree, or command was operative with respect to that party when the conduct occurred; and

“(C) the finding is based on conduct occurring on or after the effective date of this section.

“(3) **Status event.**—The term ‘status event’ means an express written order, judgment, or docket entry by a court of the United States that—

“(A) stays, administratively stays, reverses, vacates, modifies, clarifies, or supersedes a qualifying finding or the underlying command; or

“(B) records satisfaction, purge, or compliance with the underlying command.

“(b) Transmission by clerk.

“Not later than 2 business days after entry of a qualifying finding, the clerk of the court shall transmit the finding, the underlying command, and the docket information necessary to identify the proceeding to—

“(1) the Speaker, majority leader, and minority leader of the House of Representatives;

“(2) the majority leader and minority leader of the Senate;

“(3) the chair and ranking minority member of the Committee on the Judiciary of each House;

“(4) the Clerk of the House of Representatives and the Secretary of the Senate, for distribution, in accordance with the rules and procedures of the respective House, to the chair and ranking minority member of each committee with jurisdiction over the covered executive party, program, appropriation, or subject matter;

“(5) the Attorney General, the head of the covered executive party, and the inspector general with jurisdiction, if any; and

“(6) the Director of the Administrative Office of the United States Courts.

“(c) Status updates.

“Not later than 2 business days after a status event is entered on the docket of the proceeding, or notice of the status event is transmitted to that docket by another court, the clerk shall transmit notice of that event to each recipient identified in subsection (b).

“(d) Public and protected versions.

“(1) If the qualifying finding and underlying command are publicly available, the clerk shall transmit the public versions and their permanent public docket links.

“(2) If any material is sealed, classified, subject to grand-jury secrecy, protected by statute or rule, or otherwise lawfully withheld from public disclosure, the clerk shall—

“(A) transmit protected material only through a lawful secure procedure and only to recipients legally authorized to receive it; and

“(B) transmit and provide to the Director the public version entered by the court or, if no public version may lawfully be entered, a public docket statement identifying that a qualifying finding occurred and describing its status without disclosing protected information.

“(3) Nothing in this section authorizes the clerk, the Director, or a recipient to alter a judicial record or disclose information otherwise protected from disclosure.

“(e) No adjudicative or political effect.

“Transmission under this section—

“(1) is ministerial and does not delay entry, enforcement, appeal, review, or compliance;

“(2) does not create or imply contempt, criminal liability, probable cause, corrupt intent, impeachability, or entitlement to any investigation or remedy beyond that established by otherwise applicable law;

“(3) does not require either House, a committee, a Member of Congress, the Department of Justice, an inspector general, or any other recipient to take action; and

“(4) does not affect any right to seek a stay, appeal, mandamus, clarification, modification, rehearing, or other review.”.

“(b) Table of sections.

The table of sections for chapter 41 of title 28, United States Code, is amended by adding at the end the following:

“614. Notice of qualifying executive-noncompliance findings.”.

SEC. 4. PUBLIC EXECUTIVE-NONCOMPLIANCE REGISTER.

Section 604(a) of title 28, United States Code, is amended—

(1) in paragraph (25), by striking the period and inserting “; and”; and

(2) by adding at the end the following:

“(26) establish and maintain a free, searchable, downloadable, and durable online register of the public materials transmitted under section 614, which shall—

“(A) identify the court, case name, docket number, date, covered executive party, and public finding;

“(B) link to the public finding, underlying command, and available docket information;

“(C) display each later status event promptly and with prominence reasonably equal to the original finding;

“(D) distinguish findings that remain operative from findings or commands that have been stayed, reversed, vacated, modified, superseded, satisfied, purged, or followed by an express determination of compliance;

“(E) publish only the public version or docket statement supplied by the clerk and disclose no information protected under section 614(d); and

“(F) permit searching, sorting, and bulk download by court, date, covered executive party, and status.”.

SEC. 5. IMPLEMENTATION.

(a) Procedures.

Not later than 180 days after enactment, the Director of the Administrative Office of the United States Courts, after consultation with court clerks, shall establish uniform ministerial procedures, secure-transmission standards, register data fields, correction procedures, and status-update practices necessary to carry out this Act.

(b) Accuracy and correction.

The procedures shall permit the issuing court to correct inaccurate identifying or status information without altering the substance of a judicial record. The register shall preserve an auditable history of material corrections.

(c) No new judicial determination.

Neither the Director nor a clerk may determine independently that noncompliance occurred or characterize conduct beyond the issuing court's written finding.

SEC. 6. AUTHORIZATION OF APPROPRIATIONS.

There are authorized to be appropriated such sums as may be necessary to the Director of the Administrative Office of the United States Courts for fiscal year 2027 and each fiscal year thereafter to carry out this Act.

SEC. 7. EFFECTIVE DATE; APPLICATION.

This Act and the amendments made by this Act take effect 180 days after enactment and apply to qualifying findings based on conduct occurring on or after that date, including conduct in a proceeding commenced before that date.

SEC. 8. RULES OF CONSTRUCTION.

Nothing in this Act shall be construed to—

- (1) enlarge or diminish the contempt authority of a court;
- (2) create a cause of action, defense, evidentiary presumption, investigative jurisdiction, criminal offense, civil penalty, or basis for impeachment;
- (3) alter classification authority, grand-jury secrecy, judicial sealing authority, privilege, privacy protection, or any other lawful restriction on disclosure;
- (4) authorize Congress or an executive officer to revise, delay, or suppress a judicial finding or status event; or
- (5) authorize a court to compel Congress or a Member, committee, officer, or employee of Congress to exercise a legislative, oversight, or impeachment power.

SEC. 9. SEVERABILITY.

If any provision of this Act or an amendment made by this Act, or its application to any person or circumstance, is held invalid, the remainder and its application to other persons or circumstances shall not be affected.

Budgetary Impact Statement

Independent alternative. The Act creates no new court, judgeship, investigative office, grant, or entitlement. It requires clerk transmission, protected-information handling, Administrative Office procedures, and a searchable public register. Necessary appropriations are authorized without a dollar amount pending Administrative Office workload and systems estimates.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- The draft places the ministerial notice duty in the Administrative Office chapter of title 28 rather than the criminal-code contempt chapter. It does not alter the contempt power in 18 U.S.C. § 401.
- The Administrative Office hook uses 28 U.S.C. § 604, which already assigns public-document, congressional-transmission, statistical-reporting, and public-compilation duties to the Director.
- 18 U.S.C. § 2519 supplies a direct functional analogue: judges report specified orders to the Administrative Office, which reports compiled information to Congress.
- 28 U.S.C. § 360(b) supplies a narrower analogue for public availability of specified judicial orders through a clerk's office.
- The further internal review should test whether the definition of a covered executive party and the term “court of the United States” fully cover the intended institutions, whether two business days is operationally workable, and whether congressional-distribution and

protected-transmission language needs legislative-counsel revision.

- The Act is independent. Congress may enact it even if it rejects JUD-001, DOJ-007, and JUD-011.

JUD-009 — Supreme Court Ethics, Recusal, and Transparency Act

A BILL

To amend title 28, United States Code, to provide for Supreme Court ethics, disclosure, complaint-review, and recusal procedures, to establish safeguards for proceedings involving an appointing President, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Supreme Court Ethics, Recusal, and Transparency Act.**”

SEC. 2. SUPREME COURT CODE OF CONDUCT AND PUBLIC ACCESS.

(a) **Code of conduct.**—Chapter 16 of title 28, United States Code, is amended by adding at the end the following:

§ 365. Code of conduct for Justices of the Supreme Court

(a) The Supreme Court of the United States shall maintain and publish a code of conduct governing the Justices of the Supreme Court.

(b) Not later than 180 days after enactment, the Court shall publish the code through notice and opportunity for public comment under section 2071. The Court may amend the code only after the same public process, except for a technical or emergency amendment that is published with a written explanation and submitted for public comment within 60 days.

(c) The code shall address, at minimum, integrity and independence; impropriety and its appearance; impartial and diligent performance of judicial duties; disqualification; gifts, reimbursements, outside income, and financial interests; extrajudicial activity; political activity; and compliance with applicable Federal law.

§ 366. Public access to ethics materials

The Supreme Court shall publish in a searchable and downloadable format the code of conduct, related rules and resolutions, complaint procedures, recusal procedures, public findings and reports required by this chapter, and annual aggregate compliance data.

(b) **Clerical amendment.**—The table of sections for chapter 16 of title 28, United States Code, is amended by adding items for sections 365 and 366.

SEC. 3. COMPLAINTS CONCERNING SUPREME COURT JUSTICES.

Chapter 16 of title 28, United States Code, as amended by section 2, is further amended by adding:

§ 367. Complaints concerning Justices

(a) **Receipt and screening.**—The Supreme Court shall establish procedures under which a person may submit, or the Court may identify, a complaint alleging that a Justice violated the code issued under section 365, section 455, or another applicable provision of Federal law.

(b) **Required showing.**—A complaint shall contain the complainant's signature and contact information, a concise statement of specific facts, identification of reasonably available supporting material, and a sworn affirmation that the allegations have a reasonable factual basis.

(c) **Abuse safeguards.**—The procedures shall provide for summary dismissal of facially insufficient complaints and proportionate restrictions on repetitive, harassing, knowingly false, or frivolous submissions. Disagreement with a judgment, vote, opinion, legal interpretation, or ordinary case-management decision is not by itself judicial misconduct.

(d) **Judicial investigation panel.**—A complaint not dismissed at screening shall be assigned to five judges selected at random from among the chief judges of the United States courts of appeals. A judge with a disqualifying conflict may not participate.

(e) **Authority and duties.**—The panel may investigate, receive evidence, take sworn testimony, issue subpoenas, protect privileged or sensitive material, and employ necessary staff. It shall provide the affected Justice notice and a reasonable opportunity to respond.

(f) **Disposition.**—The panel shall issue findings and recommendations to the Supreme Court. Recommendations may include dismissal, corrective disclosure, recusal, changes to Court rules or procedures, referral to a body possessing lawful authority, or another response within the Court's constitutional authority. The panel may not remove a Justice, reduce compensation, revise a judgment, or direct the result of a case.

(g) **Publication.**—A substantiated disposition shall be published within 30 days, subject to redaction of classified information, judicial deliberations, protected personal information, and material whose disclosure would materially prejudice a pending proceeding. Dismissals shall be reported in aggregate and may be published individually when necessary to explain an important rule or protect public confidence.

SEC. 4. GIFTS, DISCLOSURES, AND CONFLICT INFORMATION.

(a) **Minimum standards.**—The Counselor to the Chief Justice, with the approval of the Chief Justice, shall establish rules governing acceptance and disclosure of gifts, income, travel, lodging, hospitality, and reimbursements received by a Justice or a law clerk to a Justice. The rules may not be less protective than the generally applicable requirements of the Ethics in Government Act of 1978 and applicable Judicial Conference regulations.

(b) **Public availability.**—Required reports, corrections, and explanatory statements shall be made publicly available in a searchable and downloadable format, subject to lawful redaction for security and protected personal information.

(c) **Party and amicus disclosures.**—The Supreme Court shall prescribe rules requiring a party or amicus to identify material gifts, income, reimbursements, financial relationships, or nomination-related expenditures involving a participating Justice when the information is known after reasonable inquiry and is relevant to disqualification under section 455.

(d) **Amicus funding.**—The rules shall require an amicus curiae to identify persons that materially funded the preparation or submission of the brief and substantial noncommercial funders whose interests may reasonably bear on the proceeding, with thresholds and exceptions sufficient to protect ordinary membership organizations and routine commercial transactions.

SEC. 5. DISQUALIFICATION PROCEDURES.

(a) **Duty to disclose potential grounds.**—Section 455 of title 28, United States Code, is amended by adding at the end:

“(g) If a justice, judge, magistrate judge, or bankruptcy judge learns of a condition that could reasonably require disqualification under this section, that judicial officer shall promptly notify the parties, subject to lawful protection of classified, privileged, sealed, or sensitive information.”.

(b) **Written explanations.**—The rules of each court subject to section 455 shall require timely public notice of a disqualification or a ruling on a contested motion to disqualify and a written explanation sufficient to identify the controlling ground, subject to lawful redaction.

(c) **Review of Supreme Court motions.**—A timely and factually supported motion to disqualify a Justice that the Justice does not grant shall be referred to the remaining Justices. The challenged Justice may submit a written response but may not participate in deciding the motion. The reviewing Justices shall issue a written disposition.

(d) **Rule of necessity.**—Nothing in this section eliminates the rule of necessity. Any reliance on that rule shall be explained in writing.

SEC. 6. APPOINTER-PRESIDENT RECUSAL.

Section 455 of title 28, United States Code, as amended by section 5, is further amended by adding:

§ 455(h). Appointer-President recusal

(1) **Definitions.**—

(A) “Appointing President” means the President who nominated the judicial officer to the office in which the officer is serving.

(B) “Personal-interest proceeding” means a proceeding in which the appointing President is a criminal defendant, an individual-capacity party, a civil litigant asserting or defending personal rights, or a person with a direct and substantial personal, financial, electoral, civil, or criminal legal interest.

(C) “Core presidential-authority proceeding” means a proceeding materially concerning the appointing President's own immunity, privilege, personal records obligations, election-related status, or compliance with a legal command directed specifically to that President.

(D) “Broader official-capacity proceeding” means a proceeding in which the appointing President is named in an official capacity but that is not covered by subparagraph (B) or (C).

(2) **Personal-interest proceedings.**—A judicial officer shall disqualify himself or herself from a personal-interest proceeding involving the appointing President.

(3) **Core presidential-authority proceedings.**—A judicial officer shall disqualify himself or herself from a core presidential-authority proceeding involving the appointing President unless the rule of necessity applies.

(4) **Broader official-capacity proceedings.**—The appointing relationship alone does not require disqualification from a broader official-capacity proceeding. Upon timely motion, the judicial officer shall issue written findings addressing whether the proceeding materially adjudicates the appointing President's own legal interests and whether impartiality might reasonably be questioned.

(5) **Anti-gamesmanship.**—A party may not create disqualification by naming the President unnecessarily where complete relief is available against the United States, an agency, or a subordinate officer and the proceeding does not materially concern the President's own legal interests.

(6) **Reassignment.**—A proceeding subject to mandatory disqualification shall be reassigned through ordinary neutral procedures. The reassignment authority shall avoid assigning another judicial officer subject to the same mandatory ground when reasonably practicable.

(7) **No inference of bias.**—Disqualification under this subsection is not a finding of actual bias, misconduct, or lack of integrity.

(8) **Relationship to other law.**—This subsection supplements and does not limit another ground for disqualification.

SEC. 7. REPORTS, ADMINISTRATION, AND AUTHORIZATION OF APPROPRIATIONS.

(a) The Director of the Federal Judicial Center shall study compliance with sections 144 and 455 of title 28 and report to Congress not later than 18 months after enactment and every two years thereafter.

(b) The Supreme Court shall publish an annual report stating the number and general disposition of complaints, contested recusal motions, corrective disclosures, and rule changes under this Act without identifying complainants or disclosing protected information except as otherwise required.

(c) There are authorized to be appropriated such sums as may be necessary to administer this Act, including panel staff, secure records systems, disclosure administration, and Federal Judicial Center studies.

SEC. 8. CONSTRUCTION AND SEVERABILITY.

(a) Nothing in this Act shall be construed to—

1. authorize Congress or an executive officer to direct the outcome of a case, revise a judgment, or supervise judicial deliberations;
2. alter the number of Justices of the Supreme Court;
3. impose a term or age limit on a Justice or judge;
4. create a private cause of action for damages against a Justice or judge; or
5. treat disagreement with a judicial decision as evidence of misconduct.

(b) If any provision or application of this Act is held invalid, the remainder shall not be affected. Sections 2 through 7, and the paragraphs of section 455(h), are intended to operate independently to the maximum extent permitted by law.

Budgetary Impact Statement

The Act would require recurring administrative funding for complaint screening, panel investigations, disclosure systems, public reporting, and Federal Judicial Center studies. It authorizes such sums as may be necessary rather than supplying an unsupported project estimate.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- Sections 2 through 5 and 7 are adapted substantially from the structure of S. 1814 and H.R. 3513, introduced in the 119th Congress. Section 6 preserves ARRP's independently developed appointer-president recusal component.
- The draft uses a judicial investigation panel that makes findings and recommendations; it does not give Congress or the executive branch authority to discipline Justices or alter decisions.
- The targeted internal revision review should test whether review by the remaining Justices is sufficiently independent, whether another Article III panel is constitutionally preferable, and whether the revised appointer-president tiers are administrable.
- Legislative counsel should verify chapter and subsection numbering, conforming amendments, interaction with sections 351 through 364 and 677 of title 28, Ethics in Government Act definitions, subpoena enforcement, confidentiality, and appropriations language.

Source Notes

- Supreme Court Code of Conduct
- 28 U.S.C. § 455
- CRS, *Congressional Control over the Supreme Court*
- CRS, *The Supreme Court Adopts a Code of Conduct*
- CRS, *Financial Disclosure and the Supreme Court*

JUD-011 — Interbranch Review Framework Act

A BILL

To establish within the United States District Court for the District of Columbia a generally applicable Article III cause of action and review system for substantial executive suspension, redirection, evasion, or functional nullification of enacted congressional mandates, to provide judicial capacity, expedited review, and protected funding, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Interbranch Review Framework Act.**”

SEC. 2. FINDINGS AND PURPOSES.

(a) Findings.

Congress finds that—

1. Congress may create legal duties, institutions, appropriations, limitations, and enforcement mechanisms that remain binding unless altered through constitutionally prescribed lawmaking;
2. executive action or deliberate inaction may, in circumstances defined by law, allegedly displace, suspend, evade, or functionally nullify an enacted command before ordinary litigation can preserve meaningful relief;
3. enforcement dependent upon a later vote, authorization, appropriation, or discretionary referral may be weakest when the same political party controls Congress and the Presidency;
4. a prospective and neutral review pathway can preserve enacted law without making courts representatives of Congress or authorizing review of abstract political disagreement;
5. urgency, national uniformity, political inhibition, or specialized judicial administration alone does not justify assigning a dispute to an anti-nullification forum;
6. Congress has previously required three-judge district courts and established specialized judicial structures composed of designated Article III judges;
7. proposal-specific judicial structures may duplicate assignment, staffing, secure-record, emergency, and appropriations machinery; and
8. a general remedy should turn on the character of the alleged executive conduct and enacted mandate, not on whether the underlying Act anticipated the controversy or expressly opted into a later review statute; and
9. a later Act supported by independent constitutional authority may reduce duplicative judicial infrastructure by adding a separately firewalled specialized component that shares the Division's roster and nondecisional administration without expanding the civil anti-nullification cause of action.

(b) Purposes.

The purposes of this Act are to—

1. establish a specialized Interbranch Review Division within an existing Article III district court;
2. create a civil cause of action based directly on substantial executive nullification of an enacted statutory mandate, without requiring an opt-in or later designating statute;
3. apply that remedy across subject matters and to continuing or threatened violations of mandates enacted before, on, or after this Act;
4. identify eligible plaintiffs while preserving Article III injury, causation, redressability, ripeness, and other constitutional requirements;
5. provide neutral judicial assignment, emergency preservation, expedited fact development, consistent administration, and appellate review;
6. prevent later partisan or institutional inaction from silently disabling a previously enacted enforcement pathway;
7. preserve due process, lawful executive discretion, criminal-process protections, habeas corpus, final judgments, and issuing-court authority;
8. create shared judicial capacity for the general anti-nullification remedy; and
9. permit Congress by later Act to reuse that capacity for a separately authorized specialized function while preserving decisional, records, jurisdictional, and due-process boundaries.

SEC. 3. INTERBRANCH REVIEW PROCEEDINGS.

Part VI of title 28, United States Code, is amended by inserting after chapter 155 the following:

“CHAPTER 156—INTERBRANCH REVIEW PROCEEDINGS

“Sec.

“2301. Definitions.

“2302. Interbranch Review Division.

“2303. General anti-nullification cause of action.

“2304. Civil Compliance panels and judicial roster.

“2305. Filing, assignment, and emergency preservation.

“2306. Expedition and fact development.

“2307. Related claims and proceedings.

“2308. Relief and compliance.

“2309. Appellate review.

“2310. Administration, rules, and public reporting.

“§ 2301. Definitions

“In this chapter:

“(1) **Civil Compliance Division.**—The term ‘Civil Compliance Division’ means the initial civil adjudicatory component of the Interbranch Review Division established under section 2302.

“(2) **Covered executive conduct.**—The term ‘covered executive conduct’ means action or deliberate inaction by the President, the Executive Office of the President, an executive department or agency, or an officer or employee acting under presidential or senior executive authority that allegedly suspends, redirects, evades, abolishes, or functionally nullifies a statutory mandate.

“(3) **Interbranch Review Division.**—The term ‘Interbranch Review Division’ means the division established within the United States District Court for the District of Columbia under section 2302.

“(4) **Statutory mandate.**—The term ‘statutory mandate’ means a duty, institution, office, appropriation, program, limitation, prohibition, condition, procedure, right, or other legal command enacted by Congress, without regard to its subject matter or date of enactment.

“§ 2302. Interbranch Review Division

“(a) Establishment.—There is established within the United States District Court for the District of Columbia an Interbranch Review Division.

“(b) Article III status.—The Interbranch Review Division is a component of the United States District Court for the District of Columbia and is not a legislative court, executive agency, independent establishment, or court created under article I of the Constitution.

“(c) Initial component.—The Civil Compliance Division is the initial adjudicatory component of the Interbranch Review Division.

“(d) Later specialized components.—A later Act of Congress supported by constitutional authority independent of section 2303 may expressly add a specialized component that uses the judicial roster or nondecisional administration of the Interbranch Review Division. The later Act shall separately define the component's authority, proceedings, decisional personnel, records, review, and funding and shall provide safeguards appropriate to the function conferred.

“(e) Limited authority.—The Interbranch Review Division may exercise only the jurisdiction and authority conferred by the Constitution and this chapter or expressly added by a later Act of Congress.

“(f) No inherent expansion.—The Interbranch Review Division, the Judicial Conference of the United States, and the United States District Court for the District of Columbia may not expand the cause of action, eligible-plaintiff categories, subject-matter threshold, available relief, or authority of a later specialized component by rule, order, certification, or administrative action.

“(g) Jurisdiction.—The United States District Court for the District of Columbia shall have original and exclusive jurisdiction of an action under section 2303, subject to appellate review under section 2309.

“§ 2303. General anti-nullification cause of action

“(a) Cause of action.—A plaintiff described in subsection (c) who suffers an actual or imminently threatened concrete injury caused by covered executive conduct may bring a civil action against the responsible United States, agency, officer, or employee for declaratory, injunctive, mandamus, vacatur, preservation, compliance, release-of-funds, or other equitable relief authorized by section 2308.

“(b) Subject-matter threshold.—An action lies under this section only if the plaintiff plausibly alleges and ultimately proves that—

“(1) an Act of Congress creates or preserves a statutory mandate;

“(2) covered executive conduct suspends, redirects, evades, abolishes, or functionally nullifies that mandate;

“(3) the effect is substantial and sustained or otherwise comparable to practical repeal, rather than an isolated statutory violation, ordinary policy disagreement, or routine exercise of discretion lawfully committed to the executive branch; and

“(4) the requested relief is likely to restore or preserve compliance with the statutory mandate.

“Urgency, national uniformity, political inhibition, or potential benefit from specialized judicial administration does not independently satisfy this subsection.

“(c) Eligible plaintiffs.—Subject to subsection (d), an action may be brought by—

“(1) a State, Indian Tribe, territory, possession, or political subdivision whose administration, funds, legal obligations, statutory role, or sovereign or quasi-sovereign interests are concretely impaired;

“(2) a recipient, beneficiary, regulated person, applicant, contractor, grantee, institution, association, or other person whose statutory right, payment, proceeding, legal obligation, or protected interest is concretely impaired;

“(3) a federal board, commission, entity, member, or officer suffering a concrete institutional or legal injury, to the extent suit is consistent with the Constitution and Congress may lawfully confer litigating capacity;

“(4) either House of Congress, a committee, or another congressional plaintiff when authorized by resolution or statute and when the plaintiff alleges a concrete institutional injury judicially cognizable under article III; or

“(5) the Comptroller General or an Inspector General when another provision of law authorizes enforcement of a concrete access, reporting, preservation, or compliance duty and article III is satisfied.

“(d) Article III and justiciability preserved.—This section does not eliminate injury in fact, causation, redressability, ripeness, mootness, political-question, reviewability, or another constitutional or jurisdictional requirement. It does not convert disagreement about unenacted congressional preferences into a case or controversy.

“(e) Waiver of sovereign immunity.—An action under this section seeking relief other than money damages shall not be dismissed or relief denied on the ground that it is against the United States or that the United States is an indispensable party. The United States may be named as a defendant, and a judgment or decree may be entered against the United States. A mandatory or injunctive decree shall identify by name or official title each Federal officer responsible for compliance and shall bind the officer's successors in office to the extent permitted by law. Nothing in this subsection creates a claim for money damages or waives immunity from damages.

“(f) Defendants and presidential relief.—The plaintiff may name the United States, an agency, and each officer or employee responsible for ordering, implementing, or maintaining the covered executive conduct. Relief against the President personally may be granted only when the Constitution permits and equivalent effective relief against subordinate officials is unavailable.

“(g) No opt-in or subject-matter designation required.—This section applies without regard to the subject matter or enactment date of the statutory mandate. The underlying Act need not cite this chapter, designate a proceeding, create a special cause of action, or otherwise opt into the Interbranch Review Division.

“(h) Relationship to other laws.—

“(1) An Act enacted before, on, or after the effective date of this chapter may supplement this chapter with additional rights, plaintiffs, standards, remedies, procedures, or a more specific forum.

“(2) An Act enacted before the effective date of this chapter does not displace the cause of action or procedure under this chapter merely because that Act supplies a specific enforcement or review scheme. Such an earlier Act displaces this chapter only to the extent that it expressly makes a remedy or forum exclusive for the relevant claim or subject matter.

“(3) An Act enacted after the effective date of this chapter may displace this chapter by expressly making another remedy or forum exclusive for the relevant claim or subject matter or by expressly superseding an identified provision of this chapter.

“(i) Existing mandates and continuing violations.—This section authorizes prospective and compliance-preserving relief concerning covered executive conduct occurring after its effective date and conduct begun earlier that continues or produces an ongoing nullifying effect on that date. It applies to a statutory mandate enacted before, on, or after this chapter, but does not reopen a final judgment or create retroactive civil or criminal liability for completed conduct.

“(j) Trigger notices.—An officer, Inspector General, the Comptroller General, a State, a covered institution, or another person may file a notice or certification identifying an alleged anti-nullification condition. The notice may support preservation and expedition but does not itself create standing, commence an action, or authorize judicial relief without a plaintiff and a case or controversy under this section.

§ 2304. Civil Compliance panels and judicial roster

“(a) Three-judge court.—A civil action under section 2303 shall be heard and determined by a district court of three judges convened under section 2284, except as modified by this chapter.

“(b) Composition.—Each panel shall consist of—

“(1) one judge of the United States District Court for the District of Columbia, initially assigned at random under section 2305 and not disqualified in the proceeding;

“(2) one circuit judge in regular active service, or one senior circuit judge willing and able to serve, from a circuit other than the District of Columbia Circuit; and

“(3) one district judge in regular active service, or one senior district judge willing and able to serve, from a district outside the District of Columbia and from a circuit different from the circuit of the judge selected under paragraph (2).

“(c) National roster.—

“(1) Not later than 180 days after enactment of the Interbranch Review Framework Act, the Judicial Conference shall establish a public, neutral, and random procedure for selection of a national roster containing not fewer than 6 circuit judges and 12 district judges eligible for designation under subsection (b).

“(2) Judges shall be drawn from geographically diverse circuits for staggered 5-year terms. A judge may serve one additional term. A senior judge may be selected only if the judge is willing and able to undertake the duties.

“(3) Selection may not consider political affiliation, the identity or political party of the appointing President, anticipated outcomes, or views concerning a pending or expected proceeding.

“(4) A judge may be placed on the roster only after obtaining any consent required by section 295 or, for a senior judge, after satisfying the willingness-and-ability requirement of section 294. The Chief Justice shall designate each judge selected under the random procedure to the roster for the applicable term and shall assign each selected senior judge to perform duties under this chapter. A designation or assignment under this paragraph is authorized directly by this section, does not depend on a request or certificate under section 291, 292, or 294, and is subject to sections 294 through 296 except to the extent that a provision of those sections is inconsistent with this section.

“(d) Random panel assignment.—Notwithstanding sections 137 and 2284(b)(1), the clerk shall assign the two roster judges to each panel through the public random procedure prescribed under section 2310. A case-specific assignment under this subsection is authorized directly by this section and does not require a further designation, request, or certificate by the Chief Justice, a circuit justice, a chief circuit judge, or a chief district judge. No officer may select a judge for a particular proceeding based on anticipated outcome, appointing authority, political affiliation, or views concerning the controversy.

“(e) Recusal and replacement.—Sections 144 and 455 apply. A disqualified judge shall be replaced promptly through the same random procedure.

“(f) No appellate participation.—A judge who serves on a Civil Compliance panel may not participate in appellate review of that proceeding.

“(g) Ordinary judicial office preserved.—Service under this section does not create a new judicial office, diminish tenure or compensation, or prevent a designated judge from performing other judicial duties.

“§ 2305. Filing, assignment, and emergency preservation

“(a) Filing and initial assignment.—A civil action under section 2303 shall be filed with the clerk of the United States District Court for the District of Columbia and initially assigned at random to a judge of that court under section 137 and applicable local rules.

“(b) Assignment deadline.—The clerk shall initiate panel assignment—

“(1) as soon as practicable and not later than 24 hours after a filing requesting emergency relief; or

“(2) not later than 3 business days after any other action under section 2303 is filed.

“(c) Single-judge authority.—Before the panel is constituted, the D.D.C. judge initially assigned may—

“(1) determine whether the complaint invokes section 2303 and, if so, whether the claim is so wholly insubstantial or frivolous that it fails to present a federal question; if the complaint does not invoke section 2303, the judge shall direct reassignment under ordinary procedures, and if the asserted section 2303 claim is wholly insubstantial or frivolous, the judge may dismiss it for lack of subject-matter jurisdiction; but the judge may not dismiss for ordinary failure to state a claim, resolve the merits of section 2303(b), or enter judgment on the merits;

“(2) issue a temporary restraining or preservation order not exceeding 7 days, upon specific facts shown by affidavit or verified complaint and the findings required by section 2284(b)(3), when necessary to prevent imminent and irreparable loss of records, funds, property, personnel status, adjudicatory capacity, program capacity, or effective judicial relief;

“(3) rule on routine, nondispositive administrative matters; and

“(4) take any action permitted to a single judge under section 2284.

“(d) Extension.—The three-judge panel may extend, modify, or dissolve a temporary preservation order after notice and an opportunity to be heard. An extension requires written findings concerning likelihood of success, irreparable harm, equities, and the public interest.

“(e) Public process.—Filings, hearings, assignments, and orders shall be public except to the extent sealing or closure is required by law and supported by particularized findings. The court shall use the least restrictive lawful means of protecting classified, privileged, grand-jury, law-enforcement-sensitive, personal, proprietary, or otherwise protected information.

“§ 2306. Expedition and fact development

“(a) Priority.—An action under section 2303 shall receive priority under section 1657 over nonemergency civil matters to the maximum extent consistent with due process and the needs of criminal, habeas, election, and other statutorily prioritized proceedings.

“(b) Interim relief.—The panel shall—

“(1) establish an expedited briefing schedule for a request for temporary or preliminary relief;

“(2) complete any necessary hearing not later than 10 days after the request is fully briefed; and

“(3) issue a decision not later than 10 days after the hearing or completion of briefing if no hearing is required.

“(c) Limited extension of interim deadlines.—The panel may extend a deadline under subsection (b)(2) or (b)(3) only to protect due process or lawfully protected information, complete indispensable fact development, or address another extraordinary circumstance. The panel shall state the reason and the shortest feasible revised date in a public order, subject to lawful sealing.

“(d) Merits target.—The panel should issue a final merits decision not later than 90 days after the record is ready for decision. If the panel cannot meet that target, it shall issue a public order stating the reason and a revised schedule, subject to lawful sealing.

“(e) Fact development.—Consistent with the Federal Rules of Civil Procedure, the panel may—

“(1) require verified factual submissions, administrative records, privilege logs, continuity assessments, compliance plans, or status reports;

“(2) permit targeted expedited discovery;

“(3) refer matters to a magistrate judge as authorized by law or appoint a master only as permitted by rule 53 of the Federal Rules of Civil Procedure and section 2284;

“(4) take testimony and resolve disputed jurisdictional or remedial facts; and

“(5) preserve evidence, records, funds, systems, offices, property, or legally required operational capacity pending decision.

“(f) Protected information.—The panel shall use established statutory and rule-based procedures for protected information. This chapter does not create access to information otherwise protected from the parties or the court by the Constitution or federal law.

“(g) Due process.—Expedition may not eliminate reasonable notice, an opportunity to be heard, impartial adjudication, or another process constitutionally required in the proceeding.

“§ 2307. Related claims and proceedings

“(a) Related anti-nullification actions.—The Civil Compliance Division may consolidate or coordinate actions under section 2303 presenting common questions of law or fact when doing so promotes consistent and efficient adjudication without prejudicing a party or defeating an emergency deadline.

“(b) Other claims.—A panel may exercise supplemental jurisdiction under section 1367 only when independently available and appropriate. It shall sever or remand a claim when centralized adjudication would improperly displace habeas venue, criminal procedure, state-court responsibility, local fact development, or a specialized review route.

“(c) No automatic removal or transfer.—This chapter does not automatically remove or transfer an action pending in another court. Transfer requires statutory authority, constitutional jurisdiction, and a determination that transfer will not prejudice a party or defeat timely relief.

“(d) Pending actions.—A proceeding pending when this chapter takes effect shall remain in its original forum unless transfer is independently authorized, all parties consent, and the receiving panel determines that transfer is lawful and just.

“(e) Later specialized proceedings.—A civil action under section 2303 may not be consolidated with an appointment, investigative, removal, access, or completion proceeding created by a later Act. Common background facts do not authorize cross-assignment of judges or decisional employees, disclosure of protected records, transfer of jurisdiction, or use of a finding for a purpose not authorized by law.

“§ 2308. Relief and compliance

“(a) Authorized relief.—Subject to subsection (c), a panel may grant declaratory or injunctive relief; mandamus for a clear nondiscretionary duty; vacatur of covered executive conduct; preservation or release of budget authority when an enacted appropriation or program command requires it; restoration of lawful access to records, systems, property, offices, or pending proceedings; use of an existing lawful succession or continuity mechanism; compliance reporting; and other equitable relief necessary to restore or preserve compliance with the statutory mandate. Fees and costs remain governed by otherwise applicable law.

“(b) Interim relief.—A panel may preserve meaningful judicial review and prevent irreparable statutory injury, including loss of records, systems, funds, property, adjudicatory capacity, program capacity, or a legally protected proceeding. Interim relief may not award money damages or compel a remedy beyond the authority supplied by this chapter and the underlying statutory mandate.

“(c) Relief limits.—Final relief shall be no broader than necessary to restore or preserve compliance with the enacted mandate. A panel may not select among policy choices, enforcement priorities, appointments, or implementation methods lawfully committed to executive discretion; compel nomination or appointment of a particular person; recreate removal protection forbidden by the Constitution; require an historical staffing level without a statutory basis; assume continuing management of an agency; or award money damages.

“(d) Compliance administration.—The panel may require identification of responsible officials, sworn compliance plans, periodic reports, and preservation measures and may appoint a master only when permitted by rule 53 of the Federal Rules of Civil Procedure and other applicable law.

“(e) Presidential relief.—This chapter does not expand the authority of a court to enter coercive relief directly against the President. Equivalent effective relief against subordinate officers, agencies, recipients of federal authority, or other proper defendants shall be preferred when available.

“(f) Scope of injunctive relief.—Injunctive relief shall be no broader than necessary to provide complete relief to each plaintiff with standing. This chapter does not authorize relief for a nonparty solely to obtain universal compliance, but this subsection does not prohibit relief properly entered for a certified class under rule 23 of the Federal Rules of Civil Procedure or relief whose effect on nonparties is necessary to remedy an indivisible injury of a plaintiff with standing.

“§ 2309. Appellate review

“(a) Final decisions.—The United States Court of Appeals for the District of Columbia Circuit shall have exclusive jurisdiction under section 1291 of an appeal from a final decision of a Civil Compliance panel.

“(b) Section 1253.—Section 1253 does not apply to an action under this chapter.

“(c) Interlocutory review.—An order granting, denying, modifying, or dissolving temporary or preliminary relief may be appealed to the District of Columbia Circuit under section 1292(a)(1). The appellate court may permit other interlocutory review under section 1292 or another applicable law. The time for filing a notice of appeal is governed by section 2107 and rule 4 of the Federal Rules of Appellate Procedure.

“(d) Expedition and stays.—The District of Columbia Circuit shall expedite an appeal under this chapter and any motion for stay. The filing of an appeal does not automatically stay the order under review. Except when moving first in the district court would be impracticable, a party seeking a stay or other relief pending appeal shall first move before the Civil Compliance panel.

“(e) Record and decision.—The district-court clerk shall transmit the record promptly. If decision is not issued within 60 days after completion of appellate briefing and argument, the appellate court shall issue a public order stating the reason and a revised schedule, subject to lawful sealing.

“(f) Supreme Court review.—Review by writ of certiorari remains available.

“§ 2310. Administration, rules, and public reporting

“(a) Clerk.—The clerk of the United States District Court for the District of Columbia shall serve as clerk of the Interbranch Review Division and may appoint an administrator and necessary deputies, staff attorneys, technical personnel, records personnel, and support staff, subject to appropriations and judiciary personnel law.

“(b) Administrative office.—The Director of the Administrative Office of the United States Courts shall provide facilities, technology, cybersecurity, secure-information capability, procurement, financial administration, and other support reasonably necessary to operate the Division.

“(c) Implementing rules and procedures.—

“(1) Not later than 180 days after enactment of the Interbranch Review Framework Act, the United States District Court for the District of Columbia and the United States Court of Appeals for the District of Columbia Circuit, after consultation with the Judicial Conference and the Director of the Administrative Office, shall prescribe any conforming local rules necessary to implement this chapter under section 2071, including rules governing emergency filing, related-case identification, consolidation, intervention, recusal procedure, filing and service, appellate expedition, stays, public access, sealing, and redaction. A court may prescribe an interim rule for immediate need under section 2071(e) but shall promptly provide public notice and an opportunity for comment.

“(2) Within the same period, the Judicial Conference shall prescribe public administrative procedures, within its lawful authority, governing—

“(A) neutral roster and panel assignment;

“(B) after-hours administrative access;

“(C) random replacement assignments following recusal;

“(D) secure records and access controls;

“(E) electronic-filing and service support;

“(F) expenditure controls and audits;

“(G) separate decisional staffing, records, access controls, and assignment safeguards for a specialized component added by a later Act; and

“(H) other nondispositive administration consistent with this chapter.

“(d) Limits on rules and procedures.—A rule or administrative procedure under this section may not expand jurisdiction, eligible-plaintiff categories, the subject-matter threshold, or available relief; direct a case outcome; or impair a constitutional or statutory right.

“(e) Public information.—The clerk shall maintain a public page containing filing instructions, public rules and administrative orders, panel assignments, docket links, aggregate disposition data by statutory subject matter, and information concerning emergency and protected-record procedures. Administrative classification or omission does not create or eliminate jurisdiction; section 2303 controls.”.

SEC. 4. CONFORMING TABLE AMENDMENT.

The table of chapters for part VI of title 28, United States Code, is amended by inserting after the item relating to chapter 155 the following:

“156. Interbranch Review Proceedings 2301”.

SEC. 5. ADDITIONAL DISTRICT JUDGESHIPS.

(a) First judgeship.

Effective 180 days after the date of enactment, the item relating to the District of Columbia in the table in section 133(a) of title 28, United States Code, is amended by striking “15” and inserting “16”.

(b) Contingent second judgeship.

1. Not earlier than 18 months and not later than 30 months after the effective date of chapter 156 of title 28, United States Code, the Judicial Conference shall publish a determination whether a second additional district judgeship for the District of Columbia is reasonably necessary to administer that chapter without materially impairing the court's ordinary civil, criminal, habeas, election, and other prioritized work.
2. The determination shall consider actual and projected filings under chapter 156; weighted and unweighted ordinary caseload; use of the national roster; clerk, security, technology, facilities, and staff capacity; interlocutory and final appellate workload; vacancies; and whether nonjudgeship resources can adequately address the demonstrated burden.
3. If the Judicial Conference certifies that the additional judgeship is reasonably necessary, then, effective 90 days after publication of the certification, the item relating to the District of Columbia in the table in section 133(a) of title 28, United States Code, as amended by subsection (a), is amended by striking “16” and inserting “17”. If the Judicial Conference does not make that certification, the second judgeship is not authorized.

(c) Ordinary appointment and duties.

Judgeships authorized by this section shall be filled in the manner prescribed by article II of the Constitution and chapter 5 of title 28, United States Code. A judge appointed to a judgeship authorized by this section is a judge of the United States District Court for the District of Columbia and is not appointed exclusively to the Interbranch Review Division.

(d) No case-specific selection.

Nothing in this section authorizes the President, Senate, Judicial Conference, chief judge, or any other officer to select a judge for a particular action under section 2303.

SEC. 6. APPROPRIATIONS.

(a) Startup appropriation.

Out of any money in the Treasury not otherwise appropriated, there is appropriated to the Judiciary \$10,000,000 for planning, facilities, technology, cybersecurity, secure records, personnel recruitment, rules implementation, and other startup costs of the Interbranch Review Division, to remain available until expended.

(b) Operating appropriations.

Out of any money in the Treasury not otherwise appropriated, there is appropriated to the Judiciary \$15,000,000 for each of the first 7 fiscal years beginning after the date of enactment to carry out this Act and chapter 156 of title 28, United States Code.

(c) Administration and protection.

Amounts appropriated under this section—

1. shall be administered by the Director of the Administrative Office of the United States Courts;
2. shall be in addition to other amounts available to the Judiciary;
3. may not be transferred to an executive agency;
4. may not be withheld, conditioned, deferred, or impounded by an executive officer except as expressly authorized by a later Act of Congress; and
5. shall remain available for obligation for 2 fiscal years after the fiscal year for which appropriated, except that subsection (a) remains available until expended.

(d) Nonjudicial implementation costs excluded.

Amounts under this section may support judicial and administrative operations under this Act but may not be used for agency restoration, grant or benefit payments, program administration, independent investigations, or another nonjudicial implementation cost unless a later Act expressly authorizes that use.

(e) Audit.

The Comptroller General shall audit expenditures under this section. An audit may examine legality, internal controls, procurement, security compliance, and financial administration but may not examine judicial deliberations or direct the merits of a proceeding.

(f) Later years.

For fiscal years after the period described in subsection (b), there are authorized to be appropriated such sums as may be necessary to continue the Interbranch Review Division. Not later than 18 months before that period ends, the Judicial Conference shall submit to Congress a public funding recommendation based on actual workload and expenditures.

SEC. 7. CAPACITY AND IMPLEMENTATION REVIEW.

(a) Annual report.

The Director of the Administrative Office of the United States Courts shall submit an annual public report to the Committees on the Judiciary and Appropriations of the House of Representatives and the Senate describing—

1. filings by statutory subject matter and asserted form of covered executive conduct;
2. dispositions, median decision times, and pending matters;
3. aggregate roster participation, recusals, and replacement assignments without disclosing protected deliberative information;
4. staffing, facilities, technology, security, and special-master use;
5. obligations and expenditures by category;
6. use of emergency-preservation and compliance procedures; and
7. recommendations for administrative or legislative improvement.

(b) Three-year capacity review.

Not later than 3 years after the effective date of chapter 156 of title 28, United States Code, the Judicial Conference shall evaluate whether the additional D.D.C. judgeship or judgeships, national roster, D.C. Circuit appellate capacity, clerk staffing, secure-information systems, and appropriations are adequate. The report may recommend additional capacity but may not itself create judgeships, expand jurisdiction, or redirect appropriations.

(c) Protected information.

Reports under this section shall protect sealed records, classified information, grand-jury material, judicial deliberations, personal information, and information whose disclosure would impair an active investigation or fair trial.

SEC. 8. RELATIONSHIP TO OTHER LAW; RULES OF CONSTRUCTION.

(a) General subject-matter application and procedural supersession.

Chapter 156 of title 28, United States Code, applies to every action satisfying section 2303 without an opt-in designation. It supersedes a conflicting generally applicable venue, panel-assignment, timing, consolidation, or appellate provision for such an action to the extent necessary to apply this Act.

(b) Other statutes.

Another Act may supplement this Act. An earlier Act does not displace the cause of action or procedure under chapter 156 merely because it provides a specific enforcement or review scheme; it displaces chapter 156 only to the extent that it expressly makes a remedy or forum exclusive for the relevant claim or subject matter. A later Act may displace chapter 156 by expressly making another remedy or forum exclusive for the relevant claim or subject matter or by expressly superseding an identified provision of chapter 156.

(c) Rights and remedies preserved.

Nothing in this Act limits—

1. review otherwise available under chapter 7 of title 5, United States Code;
2. mandamus, declaratory, injunctive, habeas, contempt, sanctions, or other judicial authority otherwise available;
3. the authority of a court to enforce its own orders;
4. a criminal defendant's constitutional or statutory rights;
5. a final judgment;
6. lawful congressional oversight, appropriations, impeachment, or legislative authority; or
7. a substantive right or remedy established by other law.

(d) No legislative veto or abstract review.

Nothing in this Act creates a legislative veto, authorizes an advisory opinion, makes a court an agent of Congress, or permits adjudication of abstract congressional will apart from enacted law.

(e) No executive expansion or control.

No executive officer may narrow the subject-matter coverage of section 2303, select a judge, direct a decision, condition judicial funding, or prevent a filing authorized by this Act.

(f) Constitutional requirements preserved.

Nothing in this Act alters the requirements of articles I, II, or III of the Constitution, the Appointments Clause, due process, sovereign immunity, the separation of powers, or another constitutional limitation.

SEC. 9. EFFECTIVE DATE AND TRANSITION.

(a) Planning and rulemaking.

Sections 1, 2, 5, 6, 7, 8, and this section take effect on enactment. The Judicial Conference, Administrative Office, D.D.C., D.C. Circuit, and D.D.C. clerk may begin planning, recruitment, procurement, roster selection, and rulemaking immediately.

(b) Judicial operations.

Chapter 156 of title 28, United States Code, takes effect 180 days after enactment.

(c) General cause of action.

The cause of action under section 2303 and the Interbranch Review Division's authority to hear it take effect when chapter 156 takes effect. No other Act or designation is required.

(d) Ongoing conduct and older mandates.

Section 2303 applies to covered executive conduct occurring after its effective date and to a continuing disablement, withholding, suspension, redirection, evasion, or failure to perform that remains ongoing on that date, without regard to when the statutory mandate was enacted.

(e) Pending proceedings.

An action filed before chapter 156 takes effect shall remain in its original forum unless transfer is independently authorized, all parties consent, and the receiving court determines that transfer is lawful and just. A plaintiff may file a new action under section 2303 concerning conduct or a nullifying effect that remains ongoing after the effective date, subject to preclusion and other applicable law.

(f) No reopening of final judgments.

This Act does not reopen a final judgment or create retroactive substantive liability for completed conduct.

SEC. 10. SEVERABILITY.

If any provision of this Act, an amendment made by this Act, or the application of such provision or amendment to any person, statute, proceeding, or circumstance is held invalid, the remainder of this Act and its application to other persons, statutes, proceedings, and circumstances shall not be affected.

If the specialized three-judge structure or Interbranch Review Division is held invalid or legally unavailable, the cause of action under section 2303 shall remain operative in the United States District Court for the District of Columbia before a single district judge under ordinary civil procedure, with ordinary appellate review, to the maximum extent permitted by law.

Budgetary Impact Statement

The working draft directly appropriates \$10 million for startup and \$15 million annually for 7 fiscal years, for \$115 million in scheduled budget authority, and it authorizes one additional D.D.C. district judgeship at launch plus a second only upon Judicial Conference workload certification. Judicial compensation would add mandatory direct spending beyond the stated appropriation; administration, facilities, staffing, security, and technology would use the direct appropriation rather than await annual discretionary funding. Those base amounts support JUD-011's civil framework and shared nondecisional capacity. They do not by themselves fund independent investigative counsel or another later specialized function; a later Act must expressly authorize use and provide any necessary incremental appropriation. All figures are provisional planning amounts requiring CBO, AOUSC, appropriations, PAYGO, and legislative-counsel review.

Note: Preliminary ARRPP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- The draft uses a new chapter 156 in part VI of title 28 because the number and section range between existing chapters 155 and 157 appear available. Legislative counsel must confirm codification and conforming-table mechanics against the enacted Code at introduction.
- The legal institution is an Article III division within D.D.C., not a freestanding Article I tribunal. “Tribunal” may remain descriptive project language, but the bill uses “Division” to preserve the legal form.
- Section 2303 creates a generally applicable but narrow anti-nullification cause of action. Coverage turns on the enacted mandate, covered executive conduct, substantial-and-sustained practical-repeal threshold, concrete injury, and restorative relief—not on statutory subject matter or an opt-in designation.
- The cause of action reaches prospective or continuing violations of older statutory mandates. It does not make every statutory violation actionable; isolated noncompliance, ordinary policy disagreement, lawful discretion, abstract congressional preferences, and claims lacking Article III standing remain outside.
- REG-001, FUND-001, and other issue-specific bills are separate legislative alternatives, not designating statutes or prerequisites to JUD-011. Congress may enact JUD-011 as the general remedy or enact an independently operative alternative without JUD-011.
- The Civil Compliance panel adapts the three-judge-court model in 28 U.S.C. § 2284 and the cross-circuit designation authorities in 28 U.S.C. §§ 291–296. The Chief Justice designates randomly selected judges to the term roster; the clerk then performs the mechanical random case assignment expressly authorized by the Act. Active-judge consent, senior-judge willingness and ability, public assignment safeguards, and assigned-judge powers remain preserved where consistent. Legislative counsel and the Judiciary must still test the departures from sections 137, 2284(b)(1), and 291–296.
- The default appeal goes to the D.C. Circuit. Because 28 U.S.C. § 1253 otherwise supplies direct Supreme Court review of certain three-judge-court injunction decisions, section 2309 expressly displaces that route while preserving certiorari review under section 1254.
- DOJ-007 depends on distinct constitutional-amendment authority and does not arise under section 2303. After ratification, its preferred implementing Act may nevertheless add a separately firewalled Investigative Counsel component that reuses this Division's roster and nondecisional infrastructure. The standalone DOJ-007 Act remains an independent alternative if Congress rejects JUD-011.
- The bill deliberately does not place JUD-001 contempt proceedings in the Division. The court that issued an order should ordinarily retain enforcement authority.
- The first judgeship increases general D.D.C. capacity rather than creating a proposal-specific office. A second seat becomes effective only after a public Judicial Conference certification based on actual and projected workload, nonjudgeship alternatives, and ordinary court responsibilities. The national panel roster and contingent second seat reduce, but do not eliminate, court-packing and appointing-cohort concerns.
- The direct multi-year appropriation is designed to prevent annual executive or partisan starvation of the framework. The scheduled appropriation totals \$115 million; judicial compensation adds mandatory direct spending. The structure creates PAYGO and adoption friction that should be reviewed against an authorization-only or hybrid alternative.
- The initial D.D.C. judge is assigned at random under section 137 and applicable local rules. That judge may reassign a complaint that does not invoke section 2303 and may reject only an asserted section 2303 claim so wholly insubstantial or frivolous that it does not present a federal question; ordinary failure-to-state-a-claim and merits questions belong to the three-judge panel. Emergency preservation tracks section 2284(b)(3), and masters remain governed by rule 53 and section 2284.
- Final appeals proceed under section 1291, injunction appeals under section 1292(a)(1), and ordinary section 2107 and appellate-rule filing periods. Expedition begins when an appeal is filed, and a stay request ordinarily begins before the panel.
- D.D.C. and the D.C. Circuit own conforming court rules under section 2071; the Judicial Conference owns only the national administrative procedures within its lawful authority. Interim emergency rules remain subject to prompt notice and comment.
- CBO's H.R. 1702 estimate supplies a judgeship-cost comparator: approximately \$280,000 in 2025 compensation per new district judge, approximately \$760,000 in typical first-year administrative costs, and approximately \$700,000 in average annual operating costs once

established. It does not score JUD-011's broader staff and systems.

Source Notes

- The publication check checked the operative text against 28 U.S.C. §§ 133, 137, 144, 291, 292, 294–296, 455, 1253, 1254, 1291, 1292, 1361, 1367, 1404, 1406, 1631, 1651, 1657, 2071, 2072, 2107, and 2284; the Federal Rules of Civil Procedure; D.D.C. and D.C. Circuit rules; and Judicial Conference assignment materials. Legislative counsel must repeat the current-Code and rules check at introduction and test each express departure.
- Structural comparators should include the Judicial Panel on Multidistrict Litigation and 50 U.S.C. § 1803, while clearly distinguishing their jurisdiction, secrecy, transfer, and application models.
- Constitutional review should address Article III case-or-controversy requirements, congressional standing, statutory standing, sovereign immunity, judicial assignments, nonadjudicatory judicial functions, appointments, due process, direct review, and the presidential-relief limits reflected in *Mississippi v. Johnson*, *Franklin v. Massachusetts*, and *Severino v. Biden*.
- The internal current-source review found no later public merits disposition in *National Treasury Employees Union v. Vought* or *Department of State v. AIDS Vaccine Advocacy Coalition* that supersedes the cited June 2026 limited-remand order or September 2025 stay. Both matters, and any later Supreme Court or D.C. Circuit decision affecting reviewability, statutory preclusion, removal, agency dismantling, appropriations enforcement, or remedial scope, must be refreshed again immediately before circulation.
- Fiscal review should obtain AOUSC estimates for judges, chambers, clerk staff, facilities, cybersecurity, secure records, special masters, appellate workload, and after-hours emergency operations, followed by CBO review of direct spending and PAYGO effects.
- Future issue pages may identify JUD-011 as the preferred remedy only after an internal remedy-fit review concludes that the issue satisfies section 2303(b). Any issue-specific alternative must be independently operable and must not rely on JUD-011 or another proposal.

REG-001 — Congressional Institutional Continuity and Anti-Nullification Act

A BILL

To preserve the lawful continuity of congressionally established institutions and mandatory statutory functions, prevent practical repeal by executive disablement, and provide timely judicial review while preserving constitutional presidential supervision.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Congressional Institutional Continuity and Anti-Nullification Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to—

1. distinguish lawful presidential supervision from practical suspension or repeal of Acts of Congress;
2. preserve stronger continuity safeguards where Congress has created an institution with structural indicators of independence;
3. preserve a narrower operational floor for mandatory functions assigned to ordinary executive agencies;
4. require transparent legal and operational analysis before covered disablement becomes irreversible;
5. aggregate coordinated personnel, funding, transfer, systems, records, and operational measures when their combined effect defeats a statutory command;
6. provide timely relief for concrete statutory injuries without authorizing generalized institutional or ideological suits;
7. provide a complete independent judicial route requiring no other ARRP proposal; and
8. preserve existing agency-specific, appropriations, civil-service, records, administrative-law, and judicial remedies.

SEC. 3. DEFINITIONS.

In this Act:

Appropriate congressional committees means the committees of the House of Representatives and the Senate having legislative or oversight jurisdiction over the covered entity or mandatory statutory function and the Committees on Appropriations of each House.

Covered entity means an executive agency as defined in section 105 of title 5, or another department, agency, commission, board, bureau, office, government corporation, establishment, or instrumentality within the executive branch that an Act of Congress creates or continues. The term does not include the President personally, Congress or an instrumentality of Congress, a court of the United States, the government of the District of Columbia, or a territorial government.

Mandatory statutory function means a duty that an Act of Congress requires a covered entity or federal officer to perform and that is not committed by law to unreviewable discretion. The term does not include a preferred policy outcome, historical staffing level, discretionary enforcement choice, or function that Congress has lawfully suspended, transferred, or repealed.

Structural-independence indicators include fixed or staggered terms, multimember or bipartisan composition, quorum or holdover provisions, adjudicatory responsibilities, direct reporting to Congress, separate litigation or funding authority, express independence language, or another statutory feature demonstrating intended insulation from immediate partisan or presidential direction. No single indicator is dispositive.

Covered disablement means an action or deliberate course of inaction that, individually or in combination with related measures, creates a substantial and sustained inability of a covered entity to perform a mandatory statutory function, without express statutory authority for the resulting suspension, termination, transfer, or practical abolition.

Covered measure includes a removal; failure to use a lawful succession or continuity mechanism; vacancy practice; reduction in force; funding hold or restriction; transfer or delegation; stop-work instruction; systems or facility shutdown; destruction, concealment, transfer, or denial of records; termination of contracts, grants, or technical support; or other operational action.

Major covered measure means a covered measure reasonably expected, alone or together with related measures, to—

1. eliminate or materially impair a mandatory statutory function for 30 days or more;
2. prevent a multimember entity from satisfying a statutory quorum or completing a pending adjudication;
3. affect a nationwide program, a material class of beneficiaries or regulated persons, or obligations exceeding \$100,000,000 in a fiscal year; or
4. cause an imminent and materially irreversible loss of records, systems, funds, jurisdiction, deadlines, or institutional capacity.

An official may not avoid the term by dividing related measures or understating reasonably foreseeable effects.

Responsible official means the head of a covered entity and any subordinate officer who orders, approves, or knowingly maintains a covered measure. The term does not include the President.

SEC. 4. TWO-TIER CONTINUITY STANDARD.

(a) Tier One institutions.

Where an organic statute, read as a whole, contains structural-independence indicators, each responsible official shall preserve the lawful operation of statutory quorum, holdover, succession, records, pending-adjudication, and continuity provisions.

Nothing in this subsection creates a removal restriction that the Constitution does not permit; compels the President to nominate a particular person; prevents removal authorized by the Constitution; or treats a statutory label as dispositive. If removal protection is unavailable, responsible officials shall use other lawful continuity mechanisms and may not combine removal, vacancy, funding, records, or operational measures to defeat functions Congress continues to require.

(b) Tier Two entities and functions.

For a covered entity subject to ordinary presidential supervision, no responsible official may create or maintain a covered disablement of a mandatory statutory function unless an Act of Congress expressly authorizes the resulting suspension, termination, transfer, or practical abolition.

The President and responsible officials retain authority to select officers consistent with law, remove officers where constitutionally permitted, establish lawful policy priorities, choose among legally available methods of execution, reorganize under delegated authority, decline discretionary enforcement, and make temporary good-faith adjustments that preserve reasonable capacity to perform mandatory statutory functions.

(c) Substantial and sustained inability.

A court shall determine substantial and sustained inability from the statutory duty, deadlines, affected persons, duration, available continuity mechanisms, agency records, cumulative effects, and likelihood that delay will make performance impossible or materially incomplete. A reduction from prior staffing or activity is not by itself a covered disablement.

(d) Anti-evasion.

Related covered measures shall be considered in the aggregate. A responsible official may not evade this Act by dividing a course of conduct among agencies, officers, appropriations accounts, contractors, delegations, time periods, legal forms, or nominally temporary actions.

SEC. 5. CONTINUITY INVENTORIES AND PLANS.

(a) Inventory.

Within 270 days after enactment, the head of each covered entity shall publish, subject to lawful redaction, an inventory identifying—

1. mandatory statutory functions;
2. structural-independence indicators;
3. statutory quorum, holdover, succession, records, and continuity mechanisms;
4. functions whose interruption would cause imminent loss of rights, funds, jurisdiction, records, deadlines, or adjudicatory capacity; and
5. legal authorities for any planned transfer, suspension, or discontinuance.

(b) Continuity plan.

Each head shall maintain a plan for preserving mandatory statutory functions during vacancies, reorganizations, funding interruptions, emergencies, facility closures, systems failures, and major personnel transitions.

(c) Review.

Within 90 days after enactment, the Director of the Office of Management and Budget, in consultation with the Comptroller General and the Council of the Inspectors General on Integrity and Efficiency, shall publish a common inventory and continuity-plan format. The format may prioritize functions by interruption risk and may permit a covered entity to incorporate a current legally sufficient inventory by reference, but may not narrow a statutory duty or the definitions in this Act.

The appropriate inspector general may review an inventory or plan. Subject to sections 716 and 719 of title 31 and other applicable law, the Comptroller General may review compliance, inspect relevant records, and report findings to Congress. An inventory classification is relevant but not conclusive in an action under section 9.

(d) Protection of sensitive information.

Nothing in this section requires public disclosure of classified information, personally identifiable information, grand-jury material, law-enforcement-sensitive information, privileged material, or security vulnerabilities. A lawful redaction shall identify the legal basis and may be reviewed in camera.

(e) Effect of administrative noncompliance.

Failure to complete an inventory, plan, or common format does not suspend a mandatory statutory function and does not alone create a private cause of action under section 9. A court may consider the failure as evidence when adjudicating an independently actionable violation of section 4, 6, or 8.

SEC. 6. CONTINUITY IMPACT ASSESSMENT AND NOTICE.

(a) Assessment.

Except as provided in subsection (d), at least 30 days before a covered entity implements a major covered measure reasonably likely to impair a mandatory statutory function, the responsible official shall transmit to the appropriate congressional committees, the Comptroller General, and the appropriate inspector general, and publish subject to lawful redaction, a continuity impact assessment stating—

1. the statutory authority for the measure;
2. the mandatory functions affected;
3. the expected operational effect and duration;
4. the continuity mechanisms that will preserve lawful performance;
5. the effect on pending adjudications, grants, contracts, benefits, records, deadlines, and reliance interests; and
6. available alternatives and the reason the selected measure does not create a covered disablement.

(b) Updating duty.

If actual effects materially depart from the assessment, the responsible official shall update it within 7 days and take reasonable corrective measures.

(c) No inference from notice alone.

Failure to provide notice may support preservation relief but does not establish that the underlying measure is unlawful. Compliance with notice does not legalize a covered disablement.

(d) Emergency action.

A responsible official may act without advance notice when immediately necessary to protect life, physical safety, national security, cybersecurity, evidence, or essential government property. The responsible official shall provide the assessment within 72 hours, limit the measure to the emergency, and identify a termination date not more than 14 days after action unless another statute authorizes a longer period.

In an action under section 9, a three-judge court may extend the period for not more than 30 days upon clear and convincing evidence that the emergency remains imminent and concrete, the measure is likely within lawful authority, no narrower lawful measure will reasonably address the emergency, and the extension is necessary. Each further extension requires a new showing and particularized written findings.

(e) Protected assessment information.

An assessment shall identify each legal authority relied upon and provide a meaningful unclassified explanation of the expected operational effect. Material protected by law may be placed in a minimum-necessary annex transmitted to the appropriate congressional committees, the Comptroller General, and the appropriate inspector general subject to applicable safeguards. Any public redaction shall identify the withholding category and legal basis where lawful and provide a reasonably segregable summary. Protection may not conceal the existence of a relied-upon legal authority, the general nature of a material effect, or the title of the responsible official.

SEC. 7. FAILURE CERTIFICATIONS.

(a) Authorized certifiers.

The Comptroller General or the appropriate inspector general may issue a written certification that specific covered measures appear to create or threaten a covered disablement. A certification shall identify the statutory function, evidence, responsible officials, expected duration, and available continuity mechanisms.

(b) Response.

Within 7 days after certification, the head of the covered entity shall state the corrective measures to be taken or the legal and factual basis for disagreement.

(c) Evidentiary effect.

A certification is admissible and may support expedition or preservation relief, but it is not binding on a court and does not itself create standing or commence an action.

(d) No private enforcement of response duty alone.

Failure to respond under subsection (b) does not alone create a private cause of action under section 9. A court may consider the failure as evidence when adjudicating an independently actionable violation of section 4, 6, or 8.

SEC. 8. PRESERVATION DUTIES.

Upon service of a complaint under section 9 or receipt of a certification under section 7 identifying the materials at issue, each responsible official shall preserve records, data, systems access, pending matters, property, and other materials reasonably necessary for judicial review and lawful continuity. The duty extends only to materials within the official's possession, custody, or control that are described with reasonable particularity or are reasonably identifiable from the alleged violation. Nothing in this section authorizes disclosure contrary to law, overrides a lawful privilege, or prevents ordinary records disposition under an approved schedule unrelated to the dispute.

SEC. 9. CIVIL ACTION AND JUDICIAL REVIEW.

(a) Cause of action.

A person or entity described in subsection (b) suffering an actual or imminently threatened injury caused by an alleged violation of sections 4, 6, or 8 may bring a civil action for declaratory, injunctive, or other equitable relief authorized by this section.

The United States District Court for the District of Columbia shall have exclusive original jurisdiction under section 1331 of title 28 over a claim arising under this section. The United States waives sovereign immunity for such a claim seeking relief other than money damages. A mandatory or injunctive decree shall specify the responsible Federal officer or officers who must comply. This subsection does not authorize retrospective money damages, create jurisdiction over a claim arising solely under another law, or waive another law's exhaustion, channeling, or exclusive-review requirement.

(b) Eligible plaintiffs.

Subject to Article III, an action may be brought by—

1. a State, Indian Tribe, territory, or local government whose administration, funds, legal obligations, or sovereign interests are materially impaired;
2. a recipient, beneficiary, regulated person, applicant, contractor, grantee, or other person whose concrete statutory right, payment, proceeding, or legal obligation is materially impaired;
3. a covered entity, board, commission, member, or officer only to the extent another law gives the entity or officer capacity to sue or independent litigating authority;
4. the Comptroller General to enforce access to information or another duty Congress has lawfully authorized the Comptroller General to enforce;
5. Congress, acting through an officer designated after each House adopts a resolution authorizing the same civil action, only when Congress independently satisfies Article III requirements; or
6. another person expressly authorized by an applicable organic statute.

An employee's employment injury alone shall be resolved through otherwise applicable civil-service, labor, or personnel law unless the employee also has an independently cognizable statutory injury under this subsection.

(c) Exclusive forum and three-judge court.

An action under this section shall be filed in the United States District Court for the District of Columbia and heard by a three-judge court convened under section 2284 of title 28 and this section. This Act supplies the complete statutory cause of action, jurisdictional route, eligible plaintiffs, standards, burdens, defenses, remedies, administration, appeal, and reporting necessary for independent operation; actual operations remain subject to appropriations. A claim filed elsewhere shall be transferred under section 1631 of title 28 if transfer is in the interest of justice and otherwise dismissed without prejudice.

(d) Formation of three-judge court.

1. **Initial assignment and threshold.** The clerk shall randomly assign the action to a judge of the United States District Court for the District of Columbia. Unless the assigned judge determines that the claim requiring a three-judge court is wholly insubstantial or frivolous, that judge shall immediately notify the chief judge of the United States Court of Appeals for the District of Columbia Circuit in accordance with section 2284(b)(1) of title 28. A threshold dismissal is reviewable through the ordinary appellate route.
2. **Designation.** Upon notice, the chief judge of the circuit shall designate two additional judges in accordance with section 2284(b)(1) of title 28. Assignment and designation may not consider political affiliation, appointing President, anticipated outcome, or a judge's views concerning the controversy.

3. **Deadline.** The clerk, assigned judge, and chief judge shall complete the required steps as soon as practicable and, absent extraordinary circumstances, not later than 24 hours after a filing requesting emergency relief or 3 business days after another filing. Failure to meet the deadline does not divest the court of jurisdiction, and the assignment shall be completed promptly thereafter.
4. **Recusal and replacement.** Sections 144 and 455 of title 28 apply. A disqualified judge shall be replaced through the same assignment or designation process.

(e) Authority before panel formation.

Before the three-judge court is constituted, the initially assigned district judge may—

1. make the threshold determination authorized by subsection (d)(1);
2. issue a temporary restraining order under rule 65(b) of the Federal Rules of Civil Procedure when necessary to prevent imminent and irreparable loss of statutory capacity, rights, funds, records, jurisdiction, or meaningful relief;
3. decide routine nondispositive administrative matters; and
4. exercise authority otherwise permitted to a single judge under section 2284(b)(3) of title 28.

Except for a threshold dismissal under subsection (d)(1), the single judge may not dismiss the action, enter judgment on the merits, or grant or deny a preliminary or permanent injunction. A temporary restraining order expires within the period prescribed by rule 65(b) unless the three-judge court acts sooner.

(f) Interim relief and preservation.

The three-judge court may extend, modify, or dissolve a temporary restraining order and may consider preliminary relief after notice and an opportunity to be heard. Interim relief requires written findings concerning likelihood of success, irreparable harm, the equities, and the public interest.

An order may preserve records, systems, funds, pending matters, facilities, contracts, staffing authority, or a lawful continuity mechanism. It may not require the nomination or appointment of a particular person, dictate a discretionary policy outcome, or preserve a function Congress has lawfully suspended, transferred, or repealed.

(g) Expedition, fact development, and public process.

1. **Priority.** An action under this section shall receive priority under section 1657 of title 28 over nonemergency civil matters to the maximum extent consistent with due process and the needs of criminal, habeas, election, and other statutorily prioritized proceedings.
2. **Interim-relief schedule.** The court shall establish an expedited briefing schedule, complete any necessary hearing not later than 10 days after a request for interim relief is fully briefed, and issue a decision not later than 10 days after the hearing or completion of briefing if no hearing is required. The court may extend a deadline only through a written finding of extraordinary circumstances.
3. **Merits target.** The court should issue a final merits decision not later than 90 days after the record is ready for decision. If it cannot meet that target, it shall issue a public order stating the reason and a revised schedule, subject to lawful sealing.
4. **Record development.** Consistent with the Federal Rules of Civil Procedure, the court may require verified factual submissions, continuity assessments, agency records, privilege logs, compliance plans, and status reports; permit targeted expedited discovery; appoint a magistrate judge or special master as permitted by law; and take testimony concerning disputed jurisdictional or remedial facts.
5. **Protected information.** Filings, hearings, assignments, and orders shall be public unless sealing or closure is required by law and supported by particularized findings. The court shall use the least restrictive lawful means to protect classified, privileged, grand-jury, law-enforcement-sensitive, personal, proprietary, or otherwise protected information; require a privilege log or comparable identification where lawful; and require a reasonably segregable public summary when one can be provided without disclosing protected matter. Classified or other protected material may be reviewed in camera or ex parte only as authorized by law and necessary to resolve the issue. Protection may not conceal the existence of a relied-upon legal authority, the general nature of a material operational effect, the title of a responsible official, or a public order's operative command.
6. **Due process.** Expedition may not eliminate reasonable notice, an opportunity to be heard, impartial adjudication, or another process constitutionally required in the action.

(h) Merits standard.

The plaintiff shall establish a covered disablement or violation by a preponderance of the evidence. The Government may show that the function is discretionary, Congress authorized the effect, lawful continuity remains reasonably adequate, or the action is a temporary good-faith measure permitted by this Act.

(i) Relief.

Final relief shall be no broader than necessary to restore lawful capacity to perform the mandatory statutory function or to cure a notice or preservation violation. The court may order use of an existing lawful succession or continuity mechanism, restoration of access to records or systems, reconsideration under the correct statutory standard, release or preservation of funds when independently authorized by appropriations law, compliance reporting, or other equitable relief. A decree shall identify responsible officers and bind successors in office and other persons only to the extent permitted by the Federal Rules of Civil Procedure.

The court may not award money damages, direct a discretionary enforcement outcome, dictate policy within statutory bounds, compel a particular nomination or appointment, recreate removal protection forbidden by the Constitution, require maintenance of an historical staffing level, or assume management of an agency. Relief shall ordinarily run against responsible subordinate officers. Nothing in this Act authorizes coercive relief against the President, and the availability of effective relief against subordinate officers shall be considered in redressability and remedy.

(j) Related actions and other review.

The independent three-judge court may consolidate or coordinate actions under this Act presenting common questions of law or fact when doing so promotes consistent and efficient adjudication without prejudicing a party or defeating an emergency deadline.

This Act does not displace review otherwise available under the Administrative Procedure Act, an organic statute, appropriations law, civil-service law, records law, habeas corpus, or another Act of Congress. A claim arising solely under another law remains subject to that law's exhaustion, channeling, jurisdiction, limitations, and exclusive-review provisions. A party may not evade such a provision by relabeling the claim under this Act, but an independently sufficient claim under sections 4, 6, or 8 is not barred merely because the same conduct is reviewable under another law. The court shall coordinate overlapping relief to prevent duplication or conflicting commands and shall not transfer habeas, criminal, individual personnel, or other claims into this procedure merely because they share background facts.

Except to the extent this Act expressly provides otherwise, the Federal Rules of Civil Procedure govern class treatment, intervention, consolidation, special masters, injunctions, stays, enforcement, and other procedure. Expedition does not alter the requirements of rules 23, 24, 53, 62, 65, or 71.

(k) Appellate review.

In an action under this section—

1. notwithstanding section 1253 of title 28, an appeal from a final decision shall be taken under section 1291 of title 28 to the United States Court of Appeals for the District of Columbia Circuit, which shall have exclusive appellate jurisdiction;
2. an order granting, denying, modifying, or dissolving a temporary restraining order or preliminary injunction shall be appealable under section 1292(a)(1) of title 28 as an order concerning an injunction, and an appeal shall be filed not later than 10 days after entry;
3. the court of appeals shall expedite the appeal and any motion for stay, and the filing of an appeal does not automatically stay the order under review;
4. review by writ of certiorari remains available under section 1254 of title 28 in the Supreme Court of the United States; and
5. a circuit judge who served on the independent three-judge court may not participate in appellate review of that proceeding.

SEC. 10. RELATIONSHIP TO APPROPRIATIONS AND PERSONNEL LAW.

Nothing in this Act authorizes an obligation or expenditure exceeding available appropriations, limits the Impoundment Control Act, or excuses compliance with civil-service, collective-bargaining, reduction-in-force, procurement, grants, records, or appropriations law. A claim principally involving impoundment or fiscal withholding should proceed under the more specific appropriations remedy, including the Ultra Vires Executive Directive Fiscal Review Act, when applicable.

SEC. 11. APPLICATION TO EXISTING MANDATES AND ONGOING DISABLEMENT.

This Act applies to a mandatory statutory function created before, on, or after enactment. It applies to covered measures taken after enactment and to a covered disablement that remains ongoing on the effective date. It does not create damages liability for completed historical conduct, reopen a final judgment, or automatically unwind a completed transaction or vested third-party right.

SEC. 12. REPORTS AND RULES.

(a) Judicial rules.

The Judicial Conference may prescribe public rules for independent-panel assignment, emergency filing, related-action identification, recusal replacement, intervention, class treatment, consolidation, stays, enforcement, sealing, protected information, electronic filing, and expenditure administration consistent with this Act. The Director of the Administrative Office of the United States Courts, in consultation with the chief judges and clerks of the District Court and Court of Appeals for the District of Columbia Circuit, shall publish interim public filing and clerk guidance not later than 60 days after enactment and may revise that guidance to conform to later rules. A rule or guidance may not expand jurisdiction, create standing or a cause of action, alter a substantive standard or remedy, or direct a case outcome.

(b) Judicial administration report.

Not later than 180 days after the end of each of fiscal years 2027 through 2033, the Director of the Administrative Office of the United States Courts shall report publicly to the congressional Judiciary and Appropriations Committees on the number and disposition of independent proceedings, median assignment and decision times, aggregate recusals, staffing and special-master use, protected-information needs, obligations and expenditures, and any recommended capacity adjustment. The report shall not disclose sealed material or judicial deliberations.

(c) Institutional-continuity report.

Not later than 180 days after the end of each of fiscal years 2027 through 2033, the Comptroller General shall report on certifications, compliance patterns, recurring continuity risks, and recommendations for agency-specific legislation, without opining on pending merits.

SEC. 13. APPROPRIATIONS.

(a) Proposal-specific implementation.

There are authorized to be appropriated for each of fiscal years 2027 through 2033 such sums as may be necessary for inventories, continuity planning, Office of Management and Budget and Council of the Inspectors General on Integrity and Efficiency coordination, inspector-general and Comptroller General review, and proposal-specific implementation.

(b) Independent-review startup and operations.

There are authorized to be appropriated to the Judiciary such sums as may be necessary for each of fiscal years 2027 through 2033 for rules, clerk readiness, secure filing and records capability, personnel preparation, three-judge proceedings under section 9, and other costs necessary to make and keep the independent route operational.

(c) Administration and protection.

Amounts appropriated under subsection (a) shall be administered by the Federal entity to which Congress appropriates them and used only for the authorized implementation purpose. Amounts appropriated under subsection (b) shall be administered by the Director of the Administrative Office of the United States Courts, shall be in addition to other amounts available to the Judiciary, may remain available until expended, and may not be transferred to an executive agency. No amount appropriated under this section may be withheld, conditioned, deferred, or impounded by an executive officer except as expressly authorized by a later Act of Congress.

(d) Audit and later years.

The Comptroller General shall audit legality, internal controls, procurement, security compliance, and financial administration without examining judicial deliberations or directing the merits of a proceeding. For later fiscal years, there are authorized to be appropriated such sums as may be necessary, based on the reports under section 12.

(e) No direct appropriation.

This section authorizes appropriations and does not itself provide budget authority.

SEC. 14. RULES OF CONSTRUCTION.

Nothing in this Act—

1. enlarges or diminishes constitutional presidential appointment, removal, pardon, foreign-affairs, military, or supervisory authority;
2. authorizes a court to adjudicate generalized policy disagreement or an abstract interbranch dispute;
3. creates independent litigating authority where no statute supplies it;
4. makes a Comptroller General or inspector-general certification conclusive;
5. alters criminal defendants' rights, habeas corpus, or a court's authority to enforce its own orders; or
6. permits administrative rulemaking to expand federal jurisdiction.

SEC. 15. SEVERABILITY.

If any provision of this Act or its application is held invalid, the remainder and its application to other persons and circumstances shall not be affected.

SEC. 16. EFFECTIVE DATE.

Except as otherwise provided in this section, this Act takes effect on enactment. Sections 4, 6, 8, and 9 take effect 90 days after enactment. The absence or incompleteness of an inventory, continuity plan, rule, or guidance does not suspend a mandatory statutory function or delay the effective date of an operative provision.

Budgetary Impact Statement

The bill authorizes such sums as may be necessary for fiscal years 2027 through 2033 for standalone judicial readiness and three-judge-panel administration, without creating new judgeships or directly providing budget authority. It separately authorizes necessary agency, OMB, CIGIE, inspector-general, GAO, and implementation appropriations and assigns each appropriation to its proper administering entity. CBO, GAO, AOUSC, appropriations, inspector-general, and agency workload review remains necessary before Congress selects a fixed amount.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- The bill regulates practical statutory disablement, not the President's expression of policy or every change in agency staffing and enforcement priority.
- Tier One preserves lawful continuity safeguards without assuming that Congress may recreate for-cause removal protection invalid under current doctrine.
- Tier Two requires substantial and sustained inability to perform a mandatory function; it does not preserve historical staffing or outcomes.
- The cause of action supplies exclusive D.D.C. jurisdiction and a non-damages sovereign-immunity waiver, identifies concrete plaintiff categories, and remains expressly subject to Article III.
- This bill is the independent REG-001 alternative. It neither invokes nor depends on the Interbranch Review Framework Act (JUD-011) or another ARRP proposal.
- The standalone route uses existing section 2284 designation machinery and adds assignment deadlines, Rule 65(b) temporary preservation, fact development, D.C. Circuit review under sections 1291 and 1292, certiorari under section 1254, reporting, and protected funding.
- The internal project review removed the unsupported fixed startup and annual direct-appropriation placeholders. The internal project review identified agency-inventory, GAO, inspector-general, Judiciary, protected-record, discovery, and compliance workload categories, but no source supports a fixed incremental amount. Fixed amounts should be considered only after AOUSC, representative-agency, GAO, inspector-general, and CBO review.
- Existing mandates may be protected against ongoing and future disablement even if enacted before REG-001.
- The internal project review confines the covered universe to executive-branch entities, excludes the President as a responsible official, anchors GAO access in title 31, phases inventories through a common OMB-GAO-CIGIE format, bounds emergency extensions, and preserves ordinary Federal Rules for class, intervention, stay, and enforcement mechanics.
- The internal project review corrected fund administration so only Judiciary appropriations are administered by AOUSC, assigned implementation funds to their congressional recipients, added 60-day filing guidance and dated reports, clarified emergency actors and effective dates, and confirmed that actual operation remains subject to appropriations.

Source Notes

- Constitutional and statutory review should include the Take Care Clause overview, *Trump v. Slaughter*, *Trump v. Cook*, the Administrative Procedure Act cause-of-action provisions, and the Impoundment Control Act.
- Legislative-counsel review should test the definitions of covered entity, mandatory function, major covered measure, and responsible official; interaction with organic statutes and sovereign-immunity waivers; congressional and institutional standing; officer-suit capacity; relief against subordinate officers; D.D.C. jurisdiction; three-judge assignment; single-judge authority under 28 U.S.C. § 2284(b)(3); express TRO appeal under 28 U.S.C. § 1292(a)(1); appellate disqualification under 28 U.S.C. § 47; priority under 28 U.S.C. § 1657; and displacement of 28 U.S.C. § 1253.

RIGHTS-005 — Law-Enforcement Constitutional Accountability Act

A BILL

To establish civil and criminal accountability for constitutional violations by law-enforcement officers, to preserve lawful Federal and State enforcement authority, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “Law-Enforcement Constitutional Accountability Act”.

SEC. 2. PURPOSES.

The purposes of this Act are—

1. to provide an express and uniform civil remedy for constitutional violations committed under color of Federal, State, Tribal, territorial, or local law-enforcement authority;
2. to preserve reasonable law-enforcement judgment while ensuring personal accountability for knowing or reckless violations;
3. to strengthen the existing Federal criminal prohibition on deprivation of rights under color of law;
4. to preserve valid Federal duties, Federal-officer removal, and impartial adjudication of Supremacy Clause defenses while preventing Federal employment from becoming a categorical exemption from generally applicable criminal law; and
5. to ensure that evidence and charging-review procedures do not make otherwise available civil or criminal remedies functionally unavailable.

TITLE I—CIVIL ACCOUNTABILITY

SEC. 101. EXPRESS CIVIL ACTION FOR LAW-ENFORCEMENT CONSTITUTIONAL VIOLATIONS.

(a) **In general.**—Chapter 21 of title 42, United States Code, is amended by inserting after section 1983 the following:

“§ 1983A. Law-enforcement constitutional accountability

“(a) **Cause of action.**—A covered officer who, under color of law or by use or misuse of actual or apparent law-enforcement authority, subjects or causes to be subjected any person within the jurisdiction of the United States to the deprivation of a right secured by the Constitution shall be liable to the injured person in an action at law, suit in equity, or other proper proceeding for redress.

“(b) **Covered public-employer responsibility.**—A covered public employer shall be jointly and severally liable for compensatory relief arising from conduct described in subsection (a) by an officer acting within the scope of employment. Liability under this subsection shall not depend on proof that the violation resulted from an official policy, custom, or practice.

“(c) **No qualified-immunity bar.**—In an action under this section—

“(1) it shall not be a defense that the defendant acted in good faith or reasonably believed the conduct was lawful;

“(2) it shall not be a defense that the right was not clearly established or that no prior decision involved materially similar facts; and

“(3) paragraphs (1) and (2) do not limit a defense that no constitutional violation occurred, that the defendant did not cause the violation, that the force or seizure was constitutionally reasonable, or that another element of the claim has not been proved.

“(d) **Relief.**—A prevailing plaintiff may obtain compensatory damages, declaratory relief, equitable relief, reasonable attorney’s fees and costs, and, against an individual covered officer, punitive damages upon proof that the officer knowingly or recklessly violated the right.

“(e) **Limitation.**—An action under this section may be commenced not later than 4 years after the claim accrues. Federal law governs accrual and tolling for concealment, incapacity, and exhaustion required by law.

“(f) **Definitions.**—In this section—

“(1) the term ‘covered officer’ means an employee, officer, agent, contractor, task-force member, or other person who is authorized by a governmental entity to investigate, detain, arrest, search, seize, use force, transport a detained person, execute process, or perform a comparable law-enforcement function;

“(2) the term ‘covered public employer’ means the United States, a State, an Indian Tribe, a territory or possession, the District of Columbia, a political subdivision, or an agency or instrumentality thereof that employs, authorizes, directs, or controls a covered officer; and

“(3) the term ‘recklessly’ means acting in conscious disregard of a substantial and unjustifiable risk that the conduct will deprive a person of a right secured by the Constitution.

“(g) **Sovereign immunity.**—The United States waives sovereign immunity for an action under this section. Pursuant to section 5 of the Fourteenth Amendment, a State shall not be immune under the Eleventh Amendment or any other doctrine of sovereign immunity from an action authorized by this section for conduct within the enforcement authority of Congress.

“(h) **Relationship to other law.**—This section does not preempt a State remedy that provides equal or greater protection, but a plaintiff may not obtain duplicative recovery for the same injury.”.

(b) **Clerical amendment.**—The table of sections for chapter 21 of title 42, United States Code, is amended by inserting after the item relating to section 1983 the following:

“1983A. Law-enforcement constitutional accountability.”.

SEC. 102. PERSONAL ACCOUNTABILITY AND INDEMNIFICATION.

(a) A covered public employer may indemnify an officer for compensatory damages and ordinary litigation costs awarded under section 1983A of title 42, United States Code.

(b) A covered public employer may not pay, reimburse, insure, forgive, or otherwise indemnify—

1. punitive damages assessed against an officer; or
2. the personal accountability contribution required by subsection (c).

(c) If a final judgment or accepted verdict expressly finds that an officer knowingly or recklessly violated a constitutional right, the court shall assess a personal accountability contribution equal to the lesser of—

1. 5 percent of the compensatory damages attributable to the officer's conduct; or
2. 10 percent of the officer's annual base salary at the time of judgment.

(d) On a particularized finding of severe financial hardship, the court may reduce the contribution, but not below 1 percent of the officer's annual base salary. The court shall consider culpability, causation, injury, ability to pay, dependents, and any punitive damages personally payable by the officer.

(e) No contribution is required absent the express finding described in subsection (c). No employer may retaliate against an officer for successfully contesting whether the statutory standard was met.

SEC. 103. PROCEDURAL SAFEGUARDS.

(a) A court may award reasonable attorney's fees to a prevailing defendant only upon finding that the action was frivolous, unreasonable, or without foundation.

(b) A public employer shall provide a defense to an officer for conduct within the scope of employment unless an actual conflict requires separate representation.

(c) Nothing in this title alters the burden of proving the underlying constitutional violation or permits liability based solely on respondeat superior against an individual officer.

TITLE II—FEDERAL CRIMINAL ACCOUNTABILITY

SEC. 201. KNOWING OR RECKLESS DEPRIVATION OF RIGHTS UNDER COLOR OF LAW.

(a) Section 242 of title 18, United States Code, is amended—

1. by striking “willfully subjects” and inserting “knowingly or recklessly subjects”; and
2. by adding at the end the following: “For purposes of this section, a person acts recklessly when the person consciously disregards a substantial and unjustifiable risk that the conduct is unlawful and will deprive another person of a right protected by the Constitution or laws of the United States. The risk must be of such a nature and degree that disregarding it constitutes a gross deviation from the standard of conduct that a law-enforcement officer or other person acting under color of law would observe in the circumstances.”.

(b) The amendment made by this section applies only to conduct occurring on or after enactment.

SEC. 202. COVERED SERIOUS-INCIDENT CHARGING REVIEW.

(a) When conduct by a Federal law-enforcement officer causes death or serious bodily injury, the complete available record shall receive an automatic civil-rights screening by the Civil Rights Division and an investigative component outside the employing agency. The employing agency may conduct an operational, administrative, or criminal inquiry but may not exclusively determine whether the conduct warrants investigation under section 242 of title 18, United States Code.

(b) If the screening identifies a reasonable factual basis for further investigation, the Attorney General shall assign the matter to a United States attorney's office or Criminal Division component with no supervisory responsibility for the involved operation. The FBI may conduct or assist the investigation, but an internal Executive-branch reassignment may not eliminate the independent screening required by subsection (a).

(c) If no prosecution is commenced within 180 days after the screening, the reviewing component shall provide to the Inspector General of the employing department and the congressional judiciary committees a written statement identifying—

1. the offenses reviewed;

2. whether the evidence was sufficient to establish each material element;
3. any unresolved evidence-access or conflict issue; and
4. whether further review remains open.

(d) The statement required by subsection (c) shall protect grand-jury matter, classified information, witness safety, privacy, and ongoing investigative needs. The Inspector General shall publish an aggregate annual summary that does not identify uncharged persons.

(e) Nothing in this section requires prosecution or alters the constitutional authority of the President or the Attorney General. Failure to comply with the screening, assignment, or reporting duty may be remedied by declaratory or mandamus relief, but no court may direct the filing of a criminal charge.

TITLE III—STATE CRIMINAL JURISDICTION AND FEDERAL DEFENSES

SEC. 301. RULE OF CONSTRUCTION REGARDING FEDERAL AUTHORITY.

(a) No law-enforcement authority conferred by an Act of Congress shall be construed to authorize a Federal officer knowingly or recklessly to deprive a person of a constitutional right.

(b) A generally applicable State criminal law is not preempted as applied to conduct by a Federal law-enforcement officer that was outside the officer's lawful Federal authority or was not necessary and proper to perform a valid Federal duty.

(c) Nothing in this title—

1. authorizes a State to regulate, obstruct, or punish the lawful performance of a Federal duty;
2. eliminates or diminishes a defense arising under the Constitution or laws of the United States;
3. changes the elements or burden of proof under State criminal law; or
4. authorizes a criminal law that discriminates against the United States, its officers, or persons assisting them.

SEC. 302. REMOVAL AND PROMPT IMMUNITY DETERMINATION.

(a) Nothing in this Act limits removal under section 1442 of title 28, United States Code.

(b) When a removed State criminal prosecution presents a motion to dismiss based on Supremacy Clause immunity, the district court shall—

1. establish an expedited schedule;
2. permit focused discovery necessary to decide disputed jurisdictional or immunity facts, subject to appropriate protective orders;
3. decide the motion as soon as practicable and ordinarily within 60 days after the evidentiary record closes; and
4. issue written findings sufficient for appellate review.

(c) The court may extend a deadline only through written findings that identify the exceptional need and preserve the defendant's speedy-trial rights.

TITLE IV—EVIDENCE PRESERVATION AND ACCESS

SEC. 401. MINIMUM EVIDENCE SAFEGUARDS.

(a) When a covered law-enforcement operation causes death or serious bodily injury, each involved public employer shall immediately preserve relevant recordings, communications, reports, location data, vehicle data, weapons records, forensic material, dispatch information, and chain-of-custody records.

(b) If a State attorney general or prosecutor with territorial jurisdiction certifies that the State has opened a criminal investigation, a Federal agency controlling relevant evidence shall provide timely secure access, subject to judicially reviewable protections for classified information, grand-jury matter, confidential sources, unrelated active operations, compelled statements, attorney work product, and personal privacy.

(c) The agency may not withhold or delay evidence because the evidence may disfavor the United States, a covered officer, an immunity defense, or a potential civil claim.

(d) The United States waives sovereign immunity for an action by the authorized State official seeking preservation, secure access, or compliance under this section. The action shall be brought in the Federal district court for the district in which the incident occurred and shall receive expedited consideration.

(e) This section does not create a public-disclosure right, authorize a prosecution, alter criminal jurisdiction, or require creation of a recording that does not otherwise exist.

TITLE V—IMPLEMENTATION, REPORTING, AND SEVERABILITY

SEC. 501. DATA COLLECTION AND REPORTING.

The Attorney General shall publish annual aggregate data on actions under section 1983A of title 42, United States Code; indemnification and personal contributions; referrals and charging decisions under section 242 of title 18; State prosecutions removed under section 1442 of title 28; and compliance with title IV. The report shall protect sealed information, privacy, uncharged persons, and ongoing proceedings.

SEC. 502. GRANTS AND TECHNICAL ASSISTANCE.

The Attorney General may use amounts otherwise appropriated for civil-rights enforcement, law-enforcement training, evidence systems, and State and local assistance to support implementation. No additional amount is authorized by this section.

SEC. 503. EFFECTIVE DATES.

- (a) Title I applies to conduct occurring 180 days after enactment.
- (b) Titles II and III apply only to conduct occurring on or after enactment.
- (c) Title IV applies to a covered incident occurring 90 days after enactment.

SEC. 504. SEVERABILITY.

If any provision of this Act or an amendment made by this Act, or the application thereof, is held invalid, the remainder of this Act and the application of its provisions to other persons or circumstances shall not be affected.

Budgetary Impact Statement

No reliable estimate is available before case-volume, indemnification, insurance, evidence-system, staffing, and intergovernmental implementation review. Material costs may include additional Federal civil litigation, public-employer representation and compensatory liability, Department of Justice and inspector-general screening, evidence preservation and secure production, reporting, and expedited Federal-court proceedings. The draft presently authorizes use of otherwise appropriated implementation funds but does not authorize a new sum.

The first budget pass should distinguish Federal employer liability from State and local compliance costs and should test the fiscal and workforce effects of the personal-contribution rule separately from compensatory indemnification.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

This is an initial discussion draft, not final legislative counsel text. The civil and criminal titles are intentionally severable. Before scoring, the project should review Congress's section 5 enforcement basis, State sovereign immunity, municipal and Federal employer liability, the personal-contribution percentages, collective bargaining and insurance, the section 242 mens rea under *Screws*, State criminal jurisdiction and Supremacy Clause immunity, charging-review independence, evidence overlap with DOM-005, appropriations, and implementation costs.

WAR-001 — War Powers and Use-of-Force Authorization Reform Act

A BILL

To amend and strengthen the War Powers Resolution, the framework governing authorizations for use of military force, and related appropriations and reporting rules by clarifying when congressional authorization is required before the introduction of United States Armed Forces into hostilities, defining covered hostilities, offensive hostilities, and emergency defensive action, requiring legal-basis certification and reporting, preventing appropriations from being treated as implied authorization, establishing funding consequences for unauthorized hostilities, requiring specificity and sunset rules for authorizations for use of military force, requiring information and legal-interpretation access for Congress, preventing mission expansion beyond authorization, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**War Powers and Use-of-Force Authorization Reform Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to—

1. preserve Congress's constitutional role in authorizing war and significant military hostilities;
2. preserve the President's ability to repel sudden attacks, protect United States persons from imminent harm, and respond to genuine exigencies;
3. prohibit the President from initiating offensive hostilities without specific statutory authorization;
4. require prior statutory authorization for non-emergency offensive or discretionary hostilities;
5. clarify the meaning of hostilities, offensive hostilities, emergency defensive action, and covered military operations;
6. strengthen the standards governing authorizations for use of military force;
7. prevent stale, overbroad, indefinite, or mission-shifted authorizations from serving as open-ended authority for new hostilities;
8. ensure rapid reporting and legal-basis certification when emergency defensive action is taken;
9. ensure that Congress receives sufficient information before voting on, renewing, expanding, or funding significant uses of force;
10. require disclosure or controlled congressional access to material executive-branch legal interpretations supporting hostilities;
11. prevent mission expansion beyond the enemy, geography, mission, duration, and operational scope authorized by Congress;
12. prevent appropriations, procurement, logistics support, or general defense funding from being treated as implied authorization for hostilities unless Congress expressly so provides;
13. create clear termination, withdrawal, and funding consequences for unauthorized hostilities;
14. provide Congress with expedited procedures for authorizing, disapproving, limiting, or terminating covered operations; and
15. create statutory consequences capable of operating even where judicial enforcement is uncertain.

SEC. 3. DEFINITIONS.

In this Act:

(a) Armed Forces.

The term “**United States Armed Forces**” includes any member, unit, component, command, contractor-operated military force under operational military control, or other armed force acting under the command, operational control, or direction of the United States.

(b) Hostilities.

The term “**hostilities**” means any situation in which United States Armed Forces are engaged in, authorized to engage in, or exposed to a substantial risk of armed conflict, including kinetic strikes, exchange of fire, targeting operations, combat patrols, offensive cyber operations with reasonably foreseeable destructive effects, detention or capture operations, deployment into an active combat zone, or mission support integral to ongoing combat.

(c) Offensive hostilities.

The term “**offensive hostilities**” means any use of United States Armed Forces to initiate, escalate, punish, retaliate, deter, coerce, degrade, disrupt, destroy, occupy, seize, capture, compel, prevent a speculative future threat, alter another state or non-state actor's conduct, or achieve strategic, political, or military objectives beyond emergency defensive action.

Offensive hostilities include punitive retaliation, reprisal strikes, deterrent strikes, coercive diplomacy, preventive war, regime-change operations, degradation campaigns, extended interdiction campaigns, occupation, seizure of territory, sustained targeting campaigns, and operations primarily intended to alter the conduct or capacity of a foreign state, organization, or armed group.

(d) Emergency defensive action.

The term “**emergency defensive action**” means a use of force that is necessary and limited to—

1. repel an actual armed attack against the United States, United States Armed Forces, or United States persons;
2. prevent an imminent armed attack where the threat is specific, concrete, and temporally urgent;
3. rescue or protect United States persons from imminent serious bodily harm or hostage-taking; or
4. evacuate United States persons from an imminent threat environment where the use of force is limited to protection of the evacuation.

Emergency defensive action does not include punitive retaliation, reprisal, deterrence, coercion, preventive war, degradation of an adversary's general capabilities, regime change, occupation, seizure of territory, extended interdiction, or any broader military campaign unless Congress has enacted specific statutory authorization.

(e) Anti-relabeling rule.

A use of force is not emergency defensive action merely because the executive branch describes it as limited, targeted, defensive, preemptive, deterrent, counterterrorism, force protection, national security, stability, humanitarian, or necessary to preserve credibility.

The classification of an operation depends on the operation's objective, factual predicate, scope, duration, and reasonably foreseeable effects, not on the label assigned by the executive branch.

(f) Introduction into hostilities.

The term “**introduction into hostilities**” includes the deployment, assignment, authorization, operational control, or use of United States Armed Forces in hostilities, imminent hostilities, offensive hostilities, emergency defensive action, or a covered military operation.

(g) Imminent hostilities.

The term “**imminent hostilities**” means circumstances in which armed conflict involving United States Armed Forces is clearly likely within a short and identifiable time period based on specific operational facts, not merely generalized geopolitical risk, speculative threat assessment, long-term strategic risk, deterrence rationale, or desire to preserve future military advantage.

(h) Covered military operation.

The term “**covered military operation**” means any use of United States Armed Forces that involves hostilities, imminent hostilities, offensive hostilities, emergency defensive action, combat support integral to hostilities, or introduction into a foreign state's territory, airspace, waters, or cyber infrastructure in a manner reasonably likely to produce armed conflict.

(i) Specific statutory authorization.

The term “**specific statutory authorization**” means an Act of Congress, joint resolution, or other law enacted through bicameralism and presentment that expressly authorizes the covered military operation and satisfies the specificity requirements of section 10.

(j) Unauthorized hostilities.

The term “**unauthorized hostilities**” means hostilities, offensive hostilities, or a covered military operation not authorized by specific statutory authorization and not justified as emergency defensive action within the period permitted by this Act.

(k) Material mission expansion.

The term “**material mission expansion**” means any material change in the enemy, target, associated force, geography, mission objective, duration, operational method, level of force, or legal theory for a covered military operation beyond the scope expressly authorized by Congress.

(l) Material legal interpretation.

The term “**material legal interpretation**” means any executive-branch legal opinion, memorandum, directive, finding, or formal legal analysis that substantially supports, expands, narrows, or reclassifies the asserted legal authority for hostilities, emergency defensive action, an authorization for use of military force, mission expansion, or continued operations.

SEC. 4. PRIOR AUTHORIZATION REQUIREMENT.

(a) Rule.

Except for emergency defensive action under section 5, the President may not introduce United States Armed Forces into hostilities, imminent hostilities, offensive hostilities, or a covered military operation unless Congress has enacted specific statutory authorization.

(b) Express prohibition on unilateral offensive hostilities.

The President may not initiate offensive hostilities without specific statutory authorization.

(c) No authorization by implication.

No treaty, appropriations measure, procurement authorization, intelligence authorization, logistical support authorization, general defense authorization, or statement of policy shall constitute specific statutory authorization unless Congress expressly states that the provision authorizes hostilities for purposes of the War Powers Resolution and this Act.

(d) Existing constitutional authority preserved only for emergency defense.

Nothing in this section prevents the President from taking emergency defensive action under section 5.

SEC. 5. EMERGENCY DEFENSIVE ACTION.

(a) Authority.

The President may undertake emergency defensive action without prior specific statutory authorization only where the action satisfies the definition in section 3(d) and is limited in scope, duration, and geography to the exigency requiring immediate action.

(b) No offensive conversion.

Emergency defensive action may not be converted into offensive hostilities, punitive retaliation, coercive diplomacy, preventive war, prolonged detention operations, occupation, degradation of general adversary capability, regime change, or a broader military campaign without specific statutory authorization.

(c) Burden of classification.

In any report, certification, or request under this Act, the President shall identify whether an operation is emergency defensive action, offensive hostilities, or specifically authorized hostilities, and shall state the facts supporting that classification.

(d) Duration.

Emergency defensive action may continue without specific statutory authorization for no more than 7 days unless Congress authorizes continuation by law.

(e) Withdrawal and limitation.

If Congress does not enact specific statutory authorization within the period specified in subsection (d), the President shall terminate offensive activity and withdraw or limit forces to the minimum defensive posture necessary to protect United States personnel during withdrawal.

SEC. 6. LEGAL-BASIS CERTIFICATION AND REPORTING.

(a) Certification before action where practicable.

Before introducing United States Armed Forces into hostilities, imminent hostilities, offensive hostilities, or a covered military operation, the President shall transmit to Congress a written legal-basis certification.

(b) Emergency certification.

If prior certification is not practicable because of emergency defensive action, the President shall transmit the certification not later than 24 hours after initiation of the action.

(c) Contents.

The certification shall include—

1. the factual basis for the operation;
2. the legal basis asserted;
3. whether the action is based on specific statutory authorization, emergency defensive action, or another asserted authority;
4. whether the operation involves offensive hostilities;
5. the enemy, target, or threat addressed;
6. the geographic scope;
7. the mission objective;
8. the expected duration;
9. the expected scope of hostilities;

10. the anticipated risk to United States Armed Forces and civilians;
11. the appropriations account or funding source to be used;
12. whether Congress has been asked to enact specific statutory authorization; and
13. the planned termination or withdrawal schedule absent authorization.

(d) Public and classified versions.

The President shall transmit a classified version where necessary and shall also make public an unclassified version containing as much information as can be disclosed consistent with national security.

SEC. 7. REPORTING DURING HOSTILITIES.

For any hostilities, imminent hostilities, offensive hostilities, covered military operation, or emergency defensive action, the President shall provide updated reports to Congress at least every 7 days until the operation is terminated or specifically authorized by Congress.

Each report shall state whether the operation remains within its original legal basis, whether mission scope has changed, whether additional authorization is requested, whether the operation involves offensive hostilities, and whether termination or withdrawal is planned.

SEC. 8. AUTOMATIC TERMINATION AND WITHDRAWAL.

(a) Termination rule.

Hostilities, emergency defensive action, or a covered military operation not supported by specific statutory authorization shall terminate upon the earliest of—

1. expiration of the emergency defensive action period under section 5(d);
2. expiration of any time limitation contained in a specific statutory authorization;
3. enactment of a law terminating, prohibiting, or limiting the operation;
4. a determination by the President that the operation no longer falls within its certified legal basis; or
5. a material mission expansion not authorized under section 13.

(b) Meaning of termination.

Termination requires cessation of offensive activity, targeting, combat patrols, strikes, detention or capture operations, and combat support integral to hostilities, except as necessary for safe and orderly withdrawal, emergency rescue, medical evacuation, or force protection during withdrawal.

(c) Withdrawal plan.

Upon a termination trigger, the President shall transmit to Congress, not later than 24 hours after the trigger, a withdrawal or limitation plan stating the steps, timeline, force-protection measures, and legal basis for any continued presence.

(d) No slow-walking.

The withdrawal or limitation plan shall be executed as expeditiously as safely practicable. Force protection may not be used as a pretext to continue offensive hostilities or sustain the unauthorized mission.

SEC. 9. FUNDING LIMITATION FOR UNAUTHORIZED HOSTILITIES.

(a) Prohibition.

No funds appropriated or otherwise made available by any Act of Congress may be obligated or expended for unauthorized hostilities after the applicable authorization period expires or a termination trigger occurs.

(b) Permitted uses.

After the authorization period expires or a termination trigger occurs, funds may be used only for—

1. safe and orderly withdrawal;
2. protection of United States personnel during withdrawal;
3. rescue of United States persons;
4. medical evacuation;
5. force protection necessary to end the unauthorized operation; and
6. activities expressly authorized by subsequent law.

(c) No waiver.

The funding limitation in this section may not be waived by the President.

(d) Agency compliance.

No officer or employee of the United States may knowingly obligate or expend funds in violation of this section.

SEC. 10. SPECIFICITY AND SUNSET REQUIREMENTS FOR AUTHORIZATIONS FOR USE OF MILITARY FORCE.

(a) Required elements.

No authorization for use of military force enacted after the date of enactment of this Act shall constitute specific statutory authorization unless it expressly states—

1. the enemy, target, or covered opposing force;
2. any associated force covered by the authorization;
3. the geographic scope;
4. the authorized mission objective;
5. the forms of force authorized;
6. the reporting obligations applicable to the operation;
7. the sunset date;
8. the conditions for renewal; and
9. that the authorization constitutes specific statutory authorization for purposes of the War Powers Resolution and this Act.

(b) Sunset.

An authorization for use of military force enacted after the date of enactment of this Act shall expire not later than 2 years after enactment unless Congress expressly provides for an earlier expiration or renews the authorization by law.

(c) Renewal.

Renewal requires an Act of Congress enacted through bicameralism and presentment and shall not occur by implication, appropriation, or continuing resolution unless the renewal language expressly satisfies subsection (a).

(d) Associated forces.

No associated force, successor force, splinter force, or affiliated organization may be treated as covered unless Congress expressly identifies the force or establishes a specific process for identifying such force and receives notice and an opportunity for expedited disapproval.

(e) No geographic or mission drift.

An authorization may not be construed to cover operations in a country, theater, mission, or method of force not within the express geographic and mission scope of the authorization.

SEC. 11. PRE-AUTHORIZATION INFORMATION REQUIREMENTS.

(a) Information required before authorization vote.

Before either House votes on a bill or joint resolution providing, renewing, or materially expanding specific statutory authorization, the President shall transmit to Congress, to the extent practicable and consistent with national security, a report containing—

1. the legal basis for the proposed authorization;
2. the factual and intelligence basis for the proposed use of force;
3. the identified enemy, target, or associated force;
4. the proposed geographic scope;
5. the proposed mission objective;
6. the expected duration;
7. the expected forms and intensity of force;
8. the anticipated escalation risks;

9. the anticipated civilian-harm risks;
10. the anticipated cost and funding source;
11. alternatives to force considered;
12. allied or coalition participation;
13. expected criteria for success;
14. expected exit or transition criteria; and
15. material legal interpretations supporting the proposed authorization.

(b) Classified annex.

Information that cannot be publicly disclosed shall be provided in a classified annex to the appropriate committees and congressional leadership, with procedures sufficient to permit meaningful review before a vote.

(c) Emergency exception.

This section does not prevent emergency defensive action under section 5, but any subsequent request for authorization shall comply with this section.

SEC. 12. EXECUTIVE LEGAL INTERPRETATION ACCESS.

(a) Submission of material legal interpretations.

The President shall transmit to the congressional intelligence, armed services, foreign affairs, and appropriations committees, and to the congressional leadership, any material legal interpretation supporting—

1. the introduction of United States Armed Forces into hostilities;
2. classification of an operation as emergency defensive action;
3. continued hostilities after an emergency period;
4. reliance on an authorization for use of military force;
5. identification of an associated or successor force;
6. material mission expansion; or
7. the conclusion that appropriations or related legislation authorizes hostilities.

(b) Timing.

Material legal interpretations shall be transmitted before action where practicable and, in any event, not later than 7 days after the relevant operation, classification, or legal determination.

(c) Classified or privileged material.

The President may provide classified or appropriately protected versions where necessary, but shall provide sufficient detail to permit Congress to understand the operative legal theory.

(d) No secret expansion.

No undisclosed material legal interpretation may be relied on to expand the enemy, geography, mission, duration, or scope of a covered military operation beyond the public or classified authorization provided to Congress.

SEC. 13. MISSION EXPANSION AND MATERIAL CHANGE.

(a) Reauthorization required.

The President may not undertake a material mission expansion without specific statutory authorization for that expansion.

(b) Notice.

If the President determines that a material mission expansion may be necessary, the President shall notify Congress not later than 48 hours after the determination and shall state the factual, legal, operational, and funding basis for the proposed expansion.

(c) No expansion by operational necessity.

Operational convenience, strategic advantage, deterrence, coalition preference, or force protection may not by itself authorize a material mission expansion.

(d) Emergency defense preserved.

Nothing in this section prevents emergency defensive action under section 5, provided that such action does not become a broader unauthorized mission.

SEC. 14. EXPRESS AUTHORIZATION REQUIREMENT FOR APPROPRIATIONS.

An appropriation, authorization of appropriations, procurement law, logistical support law, intelligence authorization, continuing resolution, supplemental appropriation, or defense authorization shall not constitute authorization for hostilities unless it expressly states:

“Congress specifically authorizes hostilities for purposes of the War Powers Resolution and the War Powers and Use-of-Force Authorization Reform Act.”

General support for members of the Armed Forces, equipment, logistics, pay, benefits, evacuation, medical care, force protection, intelligence, or withdrawal shall not be construed as authorization for hostilities.

SEC. 15. EXPEDITED CONGRESSIONAL PROCEDURES.

(a) Authorization request.

If the President requests specific statutory authorization for a covered military operation, each House shall have procedures for expedited consideration, debate, and vote.

(b) Disapproval or limitation measure.

A bill or joint resolution to prohibit, limit, terminate, or condition a covered military operation shall receive expedited consideration under procedures established by each House.

(c) Minority-triggered review.

Each House may establish procedures allowing a qualifying minority of members, or a qualifying minority of members of a relevant committee, to require a hearing, report, or privileged motion concerning hostilities, emergency defensive action, authorization renewal, termination, mission expansion, or funding limits under this Act.

(d) Presentment.

Any bill or joint resolution creating binding legal consequences under this Act shall be presented to the President under Article I, Section 7 of the Constitution.

(e) Veto override preserved.

If the President vetoes a bill or joint resolution under this section, Congress may enact the measure by overriding the veto with a two-thirds vote of both Houses.

SEC. 16. RULE AGAINST CONCURRENT-RESOLUTION TERMINATION.

No concurrent resolution or simple resolution shall be treated as creating binding legal consequences under this Act. Congress may express its judgment by concurrent or simple resolution, but binding authorization, prohibition, limitation, or termination of hostilities shall proceed through constitutionally required legislative procedures.

SEC. 17. RELATION TO EXISTING AUTHORIZATIONS.

Nothing in this Act repeals an existing authorization for use of military force. However, no existing authorization may be construed to authorize a covered military operation unless the operation falls within the enemy, target, mission, geography, and temporal scope of that authorization.

Not later than 180 days after enactment, the President shall transmit to Congress a report identifying each existing authorization for use of military force on which the executive branch relies, the operations conducted under each authorization, the enemy or associated force covered, the geographic scope, the mission objective, and any material legal interpretation supporting the scope of reliance.

SEC. 18. RULE OF CONSTRUCTION.

Nothing in this Act shall be construed to—

1. authorize hostilities not otherwise authorized by law;
2. limit Congress's constitutional power to declare war or authorize force;
3. limit Congress's power of the purse;
4. prevent emergency defensive action satisfying section 5;
5. authorize unilateral offensive hostilities;
6. permit hostilities based solely on appropriations by implication;

7. impair laws governing covert action, intelligence oversight, or classified reporting, except that such laws shall not be treated as implied authorization for hostilities; or
8. affect the authority of Congress to enact more restrictive limits on the use of military force.

SEC. 19. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This is the first working draft for the collapsed A-03 issue.
- WAR-002 through WAR-008 have been collapsed into WAR-001 as component defects rather than standalone legislative vehicles.
- The draft now contains operative provisions addressing initiation, emergency defense, anti-relabeling, automatic termination and withdrawal, funding consequences, AUMF specificity and sunsets, pre-authorization information, executive legal-interpretation access, mission expansion, appropriations-as-implied-authorization, expedited procedures, presentment, and concurrent-resolution limits.
- The emergency defensive window is set at 7 days as a provisional drafting choice and requires policy review.
- The two-year default AUMF sunset is provisional and requires policy review.
- The definitions of hostilities, offensive hostilities, emergency defensive action, and covered military operation require comparison against prior reform bills, OLC opinions, and operational categories.
- Binding legal consequences require bicameralism and presentment. Veto override remains constitutionally available.
- The central principle is that the President may act alone to defend against immediate harm but may not act alone to initiate, punish, deter, coerce, degrade, or reshape foreign actors through offensive military force.
- This draft is designed to create legal, political, appropriations, reporting, and internal executive-branch consequences even where courts decline to adjudicate war-powers disputes.

Source Notes

- Source review should include the War Powers Resolution, classified in 50 U.S.C. chapter 33 and enacted as Public Law 93-148, Article I and Article II war-powers allocations, prior authorizations for use of military force such as Public Law 107-40 and Public Law 107-243, and prior reform models such as the National Security Powers Act of 2021 and National Security Reforms and Accountability Act.

Appendix B - Model State Legislation

ELEC-002 — Model State Election Certification and Automatic Substitution Act

A MODEL STATE BILL

To define election certification as a ministerial duty, provide automatic substitution and expedited judicial enforcement when a certifying official refuses or fails to act, preserve lawful investigation and contest procedures, and establish consequences for knowing nonperformance or falsification.

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Election Certification and Automatic Substitution Act.**”

SEC. 2. DEFINITIONS.

In this Act:

1. **Certification** means the final official act by which a canvassing or certification authority confirms and transmits the result produced by the tabulation, canvass, recount, audit, and adjudicative procedures prescribed by law.
2. **Certification authority** means any state, county, municipal, district, or other officer, board, commission, or body assigned by law to canvass, certify, attest, approve, or transmit an election result.
3. **Specific certification defect** means an identifiable arithmetic, documentary, procedural, or statutory defect that—
 - appears in the official canvass or certification record;
 - falls within the express authority of the certification authority to correct; and
 - is capable of correction without adjudicating an election contest, investigating generalized allegations, or revisiting a matter assigned by law to another official or tribunal.
4. **Substitute certifier** means the officer, court, or body designated by section 6 to perform a certification duty upon refusal, deadlock, incapacity, disqualification, or failure to act.

SEC. 3. CERTIFICATION AS A MINISTERIAL DUTY.

After completion of the counting, tabulation, reconciliation, audit, recount, and adjudicative procedures required by law, a certification authority shall certify the resulting lawful totals by the statutory deadline.

Certification is ministerial and does not confer authority to—

1. investigate generalized allegations of fraud or misconduct;
2. reconsider ballot-validity questions assigned to another official or tribunal;
3. impose conditions not authorized by statute;
4. withhold certification because of disagreement with election law, policy, procedure, or result;
5. demand an audit, recount, investigation, or prosecution not otherwise authorized by law; or
6. alter or delay a result for the purpose of favoring or disadvantaging a candidate, party, ballot measure, or electoral outcome.

SEC. 4. LIMITED IDENTIFICATION OF DEFECTS.

A certification authority may temporarily defer certification only upon a written finding identifying a specific certification defect.

The written finding shall state—

1. the precise defect;
2. the statutory authority permitting the certification authority to address it;
3. the records supporting the finding;
4. the corrective action required; and
5. the time by which correction must occur.

A deferral under this section may not exceed 48 hours or the remaining time before the statutory deadline, whichever is shorter, unless a court orders otherwise.

Generalized suspicion, personal belief, unsupported allegation, or a matter committed to an election contest, recount, law-enforcement investigation, or other separate process is not a specific certification defect.

SEC. 5. DUTY TO REFER WITHOUT WITHHOLDING CERTIFICATION.

A certification authority that possesses substantial and credible information concerning fraud, crime, or material irregularity outside its certification authority shall refer the information promptly to the appropriate election official, prosecutor, law-enforcement agency, or court.

Unless a specific certification defect exists under section 4, such a referral does not suspend or excuse certification.

SEC. 6. AUTOMATIC SUBSTITUTION.

If a certification authority—

1. refuses to certify;
2. fails to obtain the vote required for certification;
3. does not act by the statutory deadline;
4. is unable to act because of incapacity, vacancy, disqualification, or loss of quorum; or
5. exceeds the maximum deferral period under section 4,

the certification duty transfers automatically and by operation of law to the substitute certifier.

Each state adopting this Act shall designate by statute a substitute sequence appropriate to its governmental structure. The sequence should ordinarily include—

1. the chief state election official or a deputy not involved in the underlying dispute;
2. a designated state canvassing authority; and
3. a court of competent jurisdiction authorized to enter the certification directly if no executive substitute acts promptly.

The transfer of authority does not require removal of the original official from office and does not depend upon a prior finding of misconduct.

SEC. 7. EXPEDITED JUDICIAL ENFORCEMENT.

The chief state election official, attorney general, affected local election authority, candidate, or voter residing in the affected jurisdiction may seek mandamus, declaratory relief, or an injunction to enforce this Act.

The court shall—

1. exercise original or specially assigned expedited jurisdiction;
2. hold a hearing as soon as practicable and ordinarily within 24 hours;
3. decide the matter before any downstream statutory deadline where reasonably possible;
4. compel performance of a ministerial duty;
5. authorize or confirm automatic substitution; and
6. preserve all downstream certification, recount, contest, elector, ballot-access, and transition deadlines.

A court may enter the certification directly where necessary to prevent disenfranchisement or failure of the election process.

SEC. 8. NO EFFECT ON LAWFUL RECOUNTS OR ELECTION CONTESTS.

Certification does not extinguish a recount, election contest, judicial challenge, criminal investigation, or other post-certification remedy authorized by law.

A later lawful determination may amend or supersede the certification as provided by state law.

SEC. 9. REMOVAL FROM THE CERTIFICATION MATTER.

A person who refuses or fails to perform a certification duty without lawful basis may be removed immediately from further participation in that certification matter by the substitute certifier or a court.

Removal from the matter does not itself constitute removal from office and does not preclude separate disciplinary, civil, or criminal proceedings.

SEC. 10. CIVIL AND ADMINISTRATIVE CONSEQUENCES.

A certification official who knowingly refuses, delays, conditions, or obstructs certification without lawful basis may be subject to—

1. a civil penalty;

2. reimbursement of reasonable public costs caused by the refusal or delay;
3. disqualification from serving on a canvassing or certification authority for a defined period;
4. removal, suspension, censure, or other discipline authorized by state law; and
5. attorney's fees and costs awarded to a prevailing governmental plaintiff.

No public funds shall reimburse a personal civil penalty imposed for a knowing violation.

SEC. 11. CRIMINAL OFFENSES.

A person commits a misdemeanor if, while serving as a certification official, the person knowingly and without lawful basis refuses or fails to perform a mandatory certification duty after written notice of the duty and a reasonable opportunity to comply.

A person commits a felony if the person knowingly—

1. falsifies, alters, destroys, conceals, or manufactures a certification record;
2. certifies a result known to be materially false;
3. accepts or solicits a benefit in exchange for certification or noncertification;
4. obstructs certification for the purpose of changing or preventing a lawful electoral outcome; or
5. conspires with another person to commit conduct described in this section.

Penalty levels shall be calibrated by each adopting state consistently with comparable public-corruption, records, and election offenses.

SEC. 12. ANTI-COERCION AND ANTI-RETALIATION.

No person may threaten, intimidate, coerce, bribe, or retaliate against a certification official for performing, attempting to perform, or refusing to violate a duty under this Act.

Nothing in this section narrows any more protective state or federal law.

SEC. 13. PUBLIC RECORD AND TRANSPARENCY.

All votes, written defect findings, referrals, substitution notices, judicial filings, and final certification documents under this Act are public records, subject only to lawful protections for ballots, voter information, investigative material, privilege, and security-sensitive information.

SEC. 14. UNIFORM APPLICATION.

This Act applies without regard to the identity, party, affiliation, office, candidate, ballot measure, or anticipated outcome involved.

SEC. 15. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- The model separates certification from investigation and election-contest adjudication.
- Automatic substitution prevents a single official, board minority, or deadlocked body from becoming an electoral veto point.
- The proposal preserves lawful correction of specific defects while rejecting generalized suspicion as a basis for noncertification.
- The standing provision should be conformed to each state's constitutional rules governing taxpayer, voter, candidate, and governmental standing.
- States should adapt the substitute sequence, deadlines, and penalties to existing offices and court structures.
- A federal minimum rule may separately be considered for elections containing a federal office, but this model is designed for state adoption.

Source Notes

- Source review for federal-election interactions should include the Electoral Count Reform Act amendments to 3 U.S.C. § 5, 3 U.S.C. § 12, and 3 U.S.C. § 15, plus each adopting state's election-certification statutes.

- The further internal review should prioritize primary court orders or official state records for Wayne County, Otero County, Cochise County, and Fulton County before publication-ready reliance.

ELEC-003-state — Model State Election Personnel Protection and Continuity Act

A MODEL STATE BILL

To protect election personnel and their families from threats, violence, coercive intimidation, unlawful disclosure of personal information, retaliation, and operational disruption; to provide rapid protective and continuity measures; to preserve constitutionally protected speech; and to establish a politically neutral state protection regime eligible for federal support under a corresponding amendment to the Help America Vote Act of 2002.

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Election Personnel Protection and Continuity Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to—

1. reduce the likelihood that election personnel or their families will be threatened, attacked, displaced, harassed, doxxed, or retaliated against because of election duties;
2. provide protection before harm occurs rather than relying exclusively on punishment afterward;
3. preserve continuity of polling, tabulation, canvassing, recount, certification, records, and related election operations during a threat or disruption;
4. retain experienced election personnel and reduce threat-driven resignation and recruitment loss;
5. apply protection without regard to political affiliation, candidate preference, viewpoint, election outcome, or the perceived political effect of an official act; and
6. preserve lawful criticism, protest, advocacy, reporting, and other speech protected by the United States and State Constitutions.

SEC. 3. DEFINITIONS.

In this Act:

1. **Covered election personnel** means a current, former, prospective, or temporary state or local election official, employee, poll worker, canvasser, contractor, vendor employee, volunteer, or other person performing an authorized election function.
2. **Covered family or household member** means a spouse, domestic partner, child, parent, sibling, dependent, household member, or other person targeted because of the election duties of covered election personnel.
3. **Election function** includes voter registration, ballot preparation, polling-place operation, ballot custody, counting, tabulation, auditing, recounting, canvassing, certification, records administration, equipment support, election-security support, and adjudicative or ministerial duties assigned by law.
4. **Protected personal information** means a residential address, personal telephone number, personal email address, Social Security number, financial-account information, precise geolocation, school or childcare location, family-member identity, vehicle information, or other information designated by rule because disclosure creates a material safety risk.
5. **Targeted harassment** means a course of conduct directed at a covered person because of an election function that would cause a reasonable person substantial fear, substantial emotional distress, or material interference with employment or public service, and that is not constitutionally protected speech or petitioning activity.
6. **Coercive intimidation** means conduct undertaken with the purpose of causing a covered person, through fear of injury, unlawful exposure, economic retaliation, or harm to another, to perform, refrain from performing, alter, delay, or abandon a lawful election duty.
7. **Credible threat** means information that, under the totality of circumstances, provides a reasonable basis to believe that violence, unlawful entry, stalking, targeted harassment, doxxing, retaliation, or material operational disruption may occur.
8. **Protection coordinator** means the existing state officer or office designated under section 5. No new agency is created by this Act.

SEC. 4. POLITICALLY NEUTRAL AND UNIFORM PROTECTION.

Protection, assessment, assistance, enforcement, and remedies under this Act shall be provided without regard to—

1. political party or affiliation;
2. candidate preference or ideological viewpoint;
3. the identity of the person making an allegation;

4. the identity of the person allegedly responsible;
5. whether the protected person's lawful conduct benefited or burdened a candidate, party, ballot measure, or electoral outcome; or
6. whether the protected person certified, declined to certify pending lawful review, referred a matter for investigation, testified, or otherwise performed a lawful election duty.

Risk-based distinctions may be made only on neutral factors including credibility, imminence, severity, capability, vulnerability, prior conduct, location, and likely operational impact.

SEC. 5. DESIGNATION OF EXISTING STATE RESPONSIBILITY.

The Governor shall designate an existing state office, which may include the office of the attorney general, chief state election official, state police, or emergency-management agency, to serve as protection coordinator.

The protection coordinator shall—

1. maintain a single statewide reporting channel available at all times during designated election periods;
2. coordinate election officials, law enforcement, prosecutors, courts, emergency management, and local government;
3. establish written triage and referral protocols;
4. arrange emergency protection and continuity support authorized by this Act;
5. maintain aggregate records sufficient for oversight while protecting personal and security-sensitive information; and
6. distribute state and federal funds to local jurisdictions according to objective need and risk criteria.

The protection coordinator has no authority under this Act to direct or alter voter eligibility, registration, voting methods, ballot access, counting, canvassing, recounts, certification, elector appointment, or adjudication of an election dispute.

SEC. 6. RAPID REPORTING, ASSESSMENT, AND RESPONSE.

A covered person, election office, law-enforcement agency, or household member may report a threat or covered incident through the statewide channel.

Upon receipt of a report indicating a credible threat, the protection coordinator shall ensure that—

1. an initial safety assessment begins promptly and, when practicable, within two hours;
2. an imminent threat is referred immediately to emergency law enforcement;
3. protected personal information is reviewed for exposure and removal or suppression options;
4. affected family or household members are included in the assessment;
5. the relevant election office receives continuity guidance without disclosure of unnecessary personal information; and
6. the reporting person receives a case identifier and a point of contact.

A report may not be rejected solely because the communication does not yet satisfy every element of a criminal offense.

SEC. 7. EMERGENCY PROTECTIVE ASSISTANCE.

Upon a finding of a credible threat, the protection coordinator may authorize, directly or through an existing state or local agency—

1. temporary residential or workplace security;
2. law-enforcement patrol or escort;
3. security-system installation or reimbursement;
4. temporary relocation, lodging, transportation, or dependent-care assistance;
5. replacement of compromised communication devices or accounts;
6. safety planning for family or household members;
7. emergency legal assistance for protective orders, records suppression, or related proceedings;
8. trauma-informed counseling and employee assistance; and
9. other narrowly tailored measures reasonably necessary to reduce an identified risk.

Assistance shall be based on risk and need, not rank, publicity, party affiliation, or election outcome.

SEC. 8. EXPEDITED PROTECTIVE ORDERS.

A covered person, covered family or household member, protection coordinator, attorney general, or prosecutor may petition a court for an election-personnel protective order upon a showing of a credible threat, stalking, unlawful disclosure of protected personal information, coercive intimidation, targeted harassment, or retaliation connected to an election function.

The court may—

1. issue temporary ex parte relief when immediate and irreparable injury is likely;
2. prohibit contact, surveillance, stalking, unlawful disclosure, or approach to a residence, workplace, polling place, tabulation center, or other protected location;
3. order removal of unlawfully posted protected personal information where consistent with constitutional requirements;
4. protect family or household members exposed through the same conduct; and
5. order other narrowly tailored relief necessary to prevent recurrence.

A prompt adversarial hearing and all procedural protections required by state and federal law shall be provided.

SEC. 9. ADDRESS CONFIDENTIALITY AND DATA MINIMIZATION.

A covered person facing a credible threat may enroll in an existing address-confidentiality program or, if none applies, in a program administered by an existing state office.

State and local agencies shall, to the maximum extent permitted by law—

1. substitute a designated service address for a residential address in public records;
2. redact protected personal information before public release;
3. restrict internal access to personnel with a demonstrated operational need;
4. avoid collecting or retaining protected personal information not necessary to an election function; and
5. establish an expedited process for correcting or suppressing accidental disclosure.

This section does not authorize concealment of information that is constitutionally required to be public, but requires use of the least personally exposing lawful alternative.

SEC. 10. UNLAWFUL DISCLOSURE OF PROTECTED PERSONAL INFORMATION.

A person is civilly liable if the person knowingly and without lawful purpose publicly discloses protected personal information of covered election personnel or a covered family or household member—

1. because of the person's election function;
2. with intent to threaten, intimidate, facilitate unlawful contact, or cause material fear or disruption; or
3. with reckless disregard of a substantial and unjustifiable risk that the disclosure will facilitate violence, stalking, unlawful entry, or targeted harassment.

Available relief may include actual damages, statutory damages, injunctive relief, reasonable attorney's fees, costs of security or relocation, and other appropriate relief.

This section does not apply to protected newsgathering, reporting on a matter of public concern, lawful service of process, good-faith disclosure to law enforcement, or other constitutionally protected activity.

SEC. 11. THREATS, COERCIVE INTIMIDATION, AND RETALIATION.

A person commits an offense if the person, because of a covered person's election function—

1. communicates a true threat of violence while consciously disregarding a substantial risk that the communication will be understood as threatening violence;
2. uses force, threatened force, stalking, or coercive intimidation to influence, punish, delay, or prevent performance of a lawful election duty;
3. threatens or harms a covered family or household member for that purpose;
4. knowingly retaliates through unlawful employment, contracting, licensing, property, or economic action; or
5. conspires with another person to commit conduct described in this section.

Penalty levels shall be calibrated to comparable state offenses and enhanced where conduct involves a weapon, explosive device, repeated targeting, family targeting, substantial bodily injury, or material disruption of an election function.

This section shall be construed consistently with *Counterman v. Colorado*, 600 U.S. 66 (2023), and shall not criminalize protected criticism, advocacy, protest, parody, rhetorical hyperbole, or other speech protected by the First Amendment.

SEC. 12. FALSE REPORTS, BOMB THREATS, SWATting, AND FACILITY DISRUPTION.

A person commits an aggravated offense if the person knowingly makes or causes a false report of a bomb, hazardous substance, armed attack, hostage event, or other emergency concerning—

1. a polling place;
2. an election office;
3. a ballot-storage, counting, tabulation, audit, recount, canvassing, or certification facility;
4. the residence or workplace of covered election personnel; or
5. another location with intent to disrupt an election function or cause an armed emergency response against a covered person.

In addition to other penalties, a court may order restitution for emergency response, evacuation, replacement polling operations, extended operating hours, security measures, and other direct public costs.

SEC. 13. CONTINUITY OF ELECTION OPERATIONS.

Each state and local election authority shall maintain a continuity plan proportionate to its size and risk. The plan shall address—

1. evacuation and relocation of polling, counting, tabulation, canvassing, recount, and certification functions;
2. backup facilities, communications, equipment, records, and staffing;
3. emergency succession and delegation of duties;
4. preservation and secure transfer of ballots and election records;
5. rapid public notice of a temporary closure or relocation;
6. lawful extension of hours or other remedial action when authorized by state law or court order;
7. protection of workers and voters during a threat; and
8. after-action review without public disclosure of exploitable security vulnerabilities.

The chief state election official shall establish model continuity templates but may not use this section to control local election policy beyond the requirements stated here.

SEC. 14. WORKFORCE RETENTION AND SUPPORT.

The state shall permit protection funds to be used for—

1. training on threat recognition, reporting, de-escalation, digital privacy, and records protection;
2. counseling and trauma support;
3. temporary staffing and replacement personnel following a threat or evacuation;
4. reasonable security-related leave and accommodations;
5. recruitment and retention measures in jurisdictions experiencing documented threat-related attrition; and
6. reimbursement of necessary out-of-pocket security costs.

An election worker may not be disciplined, demoted, or dismissed for making a good-faith report, seeking protection, participating in an investigation, or refusing an unlawful directive.

SEC. 15. CIVIL ACTION AND EQUITABLE RELIEF.

A covered person or covered family or household member injured by a violation of sections 10, 11, 12, or 14 may bring a civil action for appropriate relief, including damages, injunctive relief, security and relocation costs, attorney's fees, and costs.

A court shall prioritize a request for emergency relief where delay would materially increase personal danger or threaten continuity of an election function.

This section does not create liability for a government employee's good-faith exercise of protected prosecutorial, judicial, or emergency-response discretion.

SEC. 16. AGGREGATE REPORTING AND OVERSIGHT.

The protection coordinator shall publish an annual aggregate report stating—

1. the number and general category of reports received;
2. response times and dispositions;
3. forms of assistance provided;
4. funds distributed and expended;
5. operational disruptions and continuity measures used;
6. workforce effects reasonably attributable to threats or harassment;
7. federal amounts received, obligated, expended, unobligated, and carried forward; and
8. any automatic federal payment reduction resulting from an unobligated-balance threshold.

The report may not identify a protected person, disclose a residential address, reveal an active investigative fact, expose a security vulnerability, or disclose information reasonably likely to facilitate further targeting.

SEC. 17. FUNDING, MATCHING, CARRYOVER, AND LOCAL DISTRIBUTION.

The legislature shall appropriate funds sufficient to administer this Act. Federal funds received for election-personnel protection may be used only for purposes authorized by this Act and the governing federal statute.

The State and any political subdivision may voluntarily appropriate, match, supplement, or expend non-Federal funds for purposes consistent with this Act. No State or local matching contribution is required as a condition of eligibility for federal funds unless separately enacted by the State.

Federal funds received under the corresponding federal election-personnel protection program shall be held in a State election-personnel protection fund or separately accounted subaccount of an existing State election fund. Interest earned on federal amounts shall be credited to that fund or subaccount and used only for purposes authorized by this Act and the governing federal statute.

Unobligated federal balances may be carried forward into succeeding fiscal years while this Act, or substitute provisions satisfying the federal minimum requirements, remains in force. Future federal payments may be reduced pursuant to the nondiscretionary balance-adjustment formula established by federal law if the State's unobligated federal balance exceeds the federal reserve threshold.

Funds distributed to local jurisdictions shall be allocated under objective criteria that consider population, number of election facilities, documented risk, resource capacity, and demonstrated security need. Political affiliation, election outcome, and disagreement with state or local election policy may not be considered.

Acceptance of federal funds does not authorize a federal officer or entity to supervise or influence any election law, policy, procedure, decision, or dispute beyond verifying eligibility and lawful expenditure under the governing federal statute.

SEC. 18. FEDERAL ELIGIBILITY CERTIFICATION AND CONTINUING MAINTENANCE.

This Act is intended to constitute a qualifying State law for purposes of the Election Personnel Protection Payments title of the Help America Vote Act of 2002, as amended.

The chief state election official and the attorney general, or equivalent state legal officer, shall jointly prepare and submit any certification, citation table, statutory crosswalk, expenditure certification, unobligated-balance report, reserve-threshold calculation, or related fiscal report required to establish or maintain eligibility for federal election-personnel protection payments.

The State shall maintain the protections required by this Act as a condition of future eligibility for such payments. Repeal or material narrowing of this Act terminates eligibility for future federal payments unless the State enacts substitute provisions satisfying the federal minimum requirements.

Nothing in this section incorporates future federal guidance, regulation, policy statement, executive order, model practice, or administrative condition into state law. Eligibility shall be determined only by the federal statute enacted by Congress and the state statutory provisions in force.

SEC. 19. RELATION TO OTHER LAW.

This Act supplements and does not narrow any other criminal offense, civil remedy, public-employment protection, address-confidentiality provision, victims' right, emergency authority, or election-continuity procedure.

Where another law provides greater protection consistent with constitutional requirements, the greater protection controls.

SEC. 20. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

Budgetary Impact Statement

Budget authority is likely required; no dollar estimate is assigned pending source-backed cost data.

Note: Preliminary ARRPP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- The Act intentionally uses existing state institutions rather than creating a new election-security agency.
- Criminal threat provisions must require at least recklessness as to the threatening character of the communication under *Counterterm v. Colorado*, 600 U.S. 66 (2023).
- Doxxing provisions are limited by intent, recklessness, causation, exceptions, and tailored remedies to reduce First Amendment and overbreadth risk.
- The model distinguishes personal protection from election administration: the protection coordinator may secure people and operations but may not direct election outcomes or procedures beyond continuity requirements stated by law.
- States should conform protective-order procedure, offense grading, public-record exemptions, labor protections, standing, and appropriations to their constitutions and existing codes.
- The federal eligibility crosswalk is mandatory for future revision: no federal minimum condition should be added or revised without identifying the corresponding state-law provision.
- The manifestation-to-remedy crosswalk is mandatory for future revision: no documented manifestation should remain without a corresponding preventive, protective, continuity, remedial, or workforce mechanism.

Source Notes

- Threat-offense review should include *Counterterm v. Colorado*.

ELEC-004-state — Model State Election Proceedings Integrity Act

A MODEL STATE BILL

To establish an Anti-SLAPP-style special screening mechanism for election proceedings, civil subpoenas, noncriminal audits, noncriminal investigation demands, and inspection demands; to preserve good-faith election challenges; to prevent legal process from being used to delay certification, manufacture uncertainty, harass election personnel, obtain unauthorized access to sensitive election materials, or create a false predicate for extra-legal pressure; and for other purposes.

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Election Proceedings Integrity Act.**”

SEC. 2. PURPOSES.

(a) Anti-SLAPP-style adaptation.

This Act adapts the procedural logic of Anti-SLAPP laws to state election proceedings. Anti-SLAPP laws recognize that legal process can itself be used abusively to impose cost, delay, discovery burdens, reputational harm, or coercive pressure before a court or tribunal reaches the merits. This Act applies that logic to election litigation, civil subpoenas, noncriminal audits, noncriminal investigation demands, and inspection demands that seek election-disruptive relief or access to sensitive election material without an early particularized showing.

(b) Purposes.

The purposes of this Act are to preserve access to lawful recounts, contests, noncriminal audits, noncriminal investigation demands, and judicial review; distinguish ordinary citizen reporting from coercive or disruptive election proceedings; require early particularized showings before a proceeding may delay certification, alter results, compel nonstatutory audits, burden election personnel, or access sensitive election materials; protect ballots, voter privacy, voting systems, chain of custody, and election-security information; reduce abuse of civil subpoenas, discovery, noncriminal audits, noncriminal investigation demands, and public-law proceedings; and provide sanctions where later-discovered evidence proves that a proceeding was materially connected to a coordinated improper scheme.

SEC. 3. DEFINITIONS.

In this Act:

1. **Covered election proceeding** means a civil action, election contest, petition, motion, civil subpoena, discovery demand, inspection demand, audit demand, noncriminal investigation demand, legislative demand, administrative demand, or request for emergency relief filed, issued, or pursued in relation to an election if the proceeding seeks or would foreseeably cause election-disruptive relief.
2. **Election-disruptive relief** means relief or action that would delay, enjoin, alter, decertify, nullify, or otherwise disturb voter eligibility lists, ballot preparation, voting procedures, counting, tabulation, auditing, recounting, canvassing, certification, appointment of presidential electors, transmission of election returns, or another statutory election deadline.
3. **Sensitive election material** means ballots, ballot images, voter-identifiable data, election-management-system data, voting-system source code, tabulator or scanner data, security logs, chain-of-custody records, passwords, keys, security procedures, facility plans, or other election material whose disclosure, inspection, copying, or transfer may impair ballot secrecy, voter privacy, election security, or chain of custody.
4. **Special screening motion** means a motion under section 5 to dismiss, narrow, stay, condition, or otherwise control a covered election proceeding.
5. **Improper purpose** includes delay, harassment, knowingly false factual presentation, reckless disregard of contrary evidence, unauthorized access to sensitive election material, creation of a false predicate for disrupting certification or elector appointment, or other bad-faith use of legal, noncriminal investigative, administrative, legislative, or judicial process.
6. **Good-faith report** means a report of suspected election irregularity made to an election official, law-enforcement agency, prosecutor, candidate, political party, court, or other body authorized by law to receive such information, where the report does not itself seek election-disruptive relief or access to sensitive election material.

SEC. 4. SCOPE; PRESERVED ACTIVITY.

(a) Scope.

This Act applies to covered election proceedings under state law, including proceedings in state courts, before state or local election bodies, and before state or local entities authorized to issue civil subpoenas, audit demands, inspection demands, or noncriminal investigative requests relating to an election.

(b) Preserved activity.

Nothing in this Act limits a good-faith report, ballot-specific voter remedy, recount, audit, contest, public-records request, criminal investigation or prosecution, or the authority of a court or election tribunal to provide relief for a proven violation of law.

(c) Relief-based trigger.

This Act applies according to the relief sought or reasonably foreseeable procedural effect of the proceeding, not solely according to the identity of the filer.

SEC. 5. SPECIAL MOTION TO SCREEN COVERED ELECTION PROCEEDING.

(a) Motion authorized.

A party, election official, governmental entity, affected candidate, affected voter, or custodian of sensitive election material may file a special screening motion in a covered election proceeding.

(b) Pre-election timing limitation.

A special screening motion may not be filed with respect to a future election scheduled to occur more than 180 days after the date of the motion, unless the motion is directed to a request for immediate access to sensitive election material or another present risk to ballot secrecy, voter privacy, chain of custody, or election security.

(c) No post-election cutoff.

No fixed post-election time limit applies to a special screening motion. After the election occurs, a special screening motion may be filed in any covered election proceeding that seeks or materially relates to election-disruptive relief, counting, tabulation, auditing, recounting, canvassing, certification, elector appointment, election contest, validity of the election result, or access to sensitive election material.

(d) Time for filing.

Subject to subsections (b) and (c), a special screening motion shall be filed as soon as practicable. A court or tribunal may permit later filing for good cause or where the election-disruptive character of the proceeding becomes apparent after filing.

(e) Required early showing.

Upon filing of a special screening motion, the person seeking election-disruptive relief or access to sensitive election material shall make a prima facie showing of legal authority, timeliness, particularized material facts, admissible evidence or a verified factual proffer, materiality, remedy fit, necessity of any intrusive process or sensitive-material access, and absence of improper purpose.

(f) Court or tribunal action.

If the required showing is not made, the court or tribunal shall dismiss, deny, narrow, stay, condition, quash, modify, or otherwise control the proceeding, demand, subpoena, inspection, audit, or request to the extent necessary to prevent election-disruptive relief, unauthorized access to sensitive election material, or abuse of process.

SEC. 6. AUTOMATIC STAY OF INTRUSIVE PROCESS.

(a) Stay.

Upon filing of a special screening motion, discovery, subpoenas, inspections, audits, forensic access, equipment access, ballot access, source-code access, and access to sensitive election material shall be stayed until the court or tribunal resolves the motion.

(b) Narrow exception.

The court or tribunal may authorize limited discovery or inspection before resolving the motion only upon a finding that the discovery or inspection is narrowly tailored, necessary to test a specific colorable and material claim, and subject to adequate protection for ballot secrecy, voter privacy, chain of custody, and election security.

SEC. 7. EMERGENCY RELIEF FINDINGS.

A court or tribunal may not issue a temporary restraining order, preliminary injunction, stay, impoundment order, certification delay, elector-appointment delay, extraordinary audit order, or other election-disruptive relief unless it makes written findings that the movant is substantially likely to succeed on a legally authorized claim, the alleged defect is material, irreparable injury is not primarily caused by the movant's delay, no narrower lawful remedy is adequate, the relief is compatible with applicable election deadlines or necessary to remedy a proven violation of law, and the relief will not unnecessarily impair voters, election personnel, ballot secrecy, voter privacy, chain of custody, or election security.

SEC. 8. SENSITIVE ELECTION MATERIAL PROTECTION.

A court or tribunal authorizing access to sensitive election material shall enter a protective order or equivalent directive that limits access to persons with a demonstrated need, prohibits unauthorized disclosure, preserves ballot secrecy and chain of custody, prevents disclosure of source code, credentials, security logs, keys, facility plans, or exploitable security information except under secure conditions, requires secure storage and return or destruction of copies, and imposes sanctions for violation.

SEC. 9. FEES, COSTS, AND SANCTIONS AT SCREENING OR DISPOSITION.

(a) No automatic penalty for losing.

A person may not be sanctioned under this Act solely because an election claim, motion, petition, demand, or request is denied.

(b) Sanctions authorized.

The court or tribunal may award reasonable attorney's fees, costs, public costs, or other appropriate sanctions if it finds that a filing, request, subpoena, audit demand, discovery demand, or emergency-relief request was frivolous, knowingly unsupported, presented for improper purpose, materially based on false factual allegations, legally foreclosed by binding authority, maintained after a defect was identified, or used to harass, delay, or obtain unauthorized access to sensitive election material.

(c) Additional authority preserved.

This Act supplements and does not limit state rules of civil procedure, attorney-discipline rules, contempt authority, public-records protections, election-code remedies, or inherent judicial or tribunal authority.

SEC. 10. LATER-DISCOVERED IMPROPER-PURPOSE SANCTIONS.

(a) Independent post-disposition motion.

A motion under this section is an independent post-disposition motion for sanctions and ancillary relief. The motion may be filed whether or not a special screening motion under section 5 was previously filed, granted, denied, withdrawn, or resolved on other grounds.

(b) Ancillary jurisdiction after termination.

The court or tribunal retains ancillary jurisdiction to resolve a motion under this section after dismissal, remand, voluntary dismissal, settlement, denial of emergency relief, final judgment, or other termination of the covered election proceeding.

(c) Time for motion.

Within one year after final disposition of a covered election proceeding, or within 180 days after discovery of material evidence of improper purpose, whichever is later, a party, governmental entity, election official, affected candidate, affected voter, or custodian of sensitive election material may move for sanctions under this section.

(d) Standard.

The court or tribunal may impose sanctions if clear and convincing evidence shows that the proceeding, filing, civil subpoena, discovery request, inspection demand, audit demand, noncriminal investigation demand, or request for emergency relief was materially presented, maintained, coordinated, or used for an improper purpose.

(e) Relevant evidence.

Relevant evidence may include communications, funding arrangements, concealed coordination, inconsistent public and tribunal representations, knowingly false factual assertions, fundraising representations, links to certification delay, links to elector-appointment disruption, or efforts to create a false predicate for governmental action.

(f) Relief.

Sanctions may include attorney's fees, public costs, restitution for election-administration expenses, referral to disciplinary authorities, civil penalties where authorized by law, restrictions on future emergency election filings absent leave of court, protective orders, and referral to prosecuting authorities where criminal conduct may be implicated.

(g) Due process.

No sanctions may be imposed under this section without notice, an opportunity to respond, and an evidentiary hearing where material facts are disputed.

SEC. 11. EXPEDITED REVIEW.

A court or appellate court shall expedite to the greatest practicable extent any proceeding involving election-disruptive relief, access to sensitive election material, a special screening motion, or sanctions under this Act.

SEC. 12. UNIFORM APPLICATION.

This Act applies without regard to the party, candidate, office, ballot measure, viewpoint, ideology, or anticipated electoral outcome involved.

SEC. 13. RELATION TO OTHER LAW.

This Act supplements and does not narrow any lawful recount, contest, noncriminal audit, noncriminal investigation, public-records, voter-remedy, criminal, disciplinary, or judicial procedure. Where a more specific election statute provides greater protection against abuse, delay, unauthorized access, or improper disclosure, the more protective provision controls.

SEC. 14. SEVERABILITY.

If any provision or application of this Act is held invalid, the remainder shall not be affected.

Budgetary Impact Statement

Administrative workload is possible; no new appropriation is specified.

Note: Preliminary ARRPP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- The proposal is Anti-SLAPP-style: it adapts early screening, discovery stay, burden clarification, fee-shifting, and sanctions to election-disruptive proceedings.
- The special motion is motion-invoked, not automatic.
- A pre-election timing bar prevents the motion from being filed for elections more than 180 days away, except where immediate sensitive-material access or a present security/privacy risk is at issue.
- The Act imposes no fixed post-election cutoff; post-election availability depends on functional relation to the election result, election administration, or sensitive election material.
- Section 10 is expressly independent of the special screening motion and survives termination of the underlying proceeding.
- State versions should be checked against state Anti-SLAPP provisions, court-rule authority, separation of powers, open-records clauses, ballot-secrecy provisions, and election-contest statutes.
- State versions govern state courts, state tribunals, and state-law process. If a state-law election dispute is removed to or otherwise proceeds in federal court, the federal counterpart should control the federal-court procedure. After *Berk v. Choy*, states should not assume that a state-created election-screening rule will apply in federal court unless Congress has supplied the federal procedure.
- The July 3, 2026 ELEC-004 boundary cleanup preserved the distinction between civil, administrative, legislative, audit, subpoena, and inspection-process safeguards on the one hand and criminal-investigative process on the other. Any adopting state should separately review whether and how the model interacts with state criminal subpoenas, search warrants, grand-jury process, prosecutor authority, and law-enforcement investigations. Federal criminal-process guardrails are now tracked separately in ELEC-014.

Source Notes

- Source review should compare each adopting state's election-contest, court-rule, public-records, ballot-secrecy, and Anti-SLAPP statutes; the federal counterpart is ELEC-004. For state Anti-SLAPP variation, review jurisdiction-specific statutes and secondary surveys such as the Reporters Committee for Freedom of the Press Anti-SLAPP guide.
- The Ohio Organizing Collaborative FBI-search reporting is ELEC-014 source-development material, not a model for automatic state-law regulation of criminal-investigative process without separate state constitutional and criminal-procedure review.

ELEC-011-state — Model State Algorithmic Redistricting Baseline and Public Deviation Act

A MODEL STATE BILL

To require a neutral algorithmic baseline map at the beginning of each redistricting cycle; to prohibit partisan, incumbent, candidate, donor, and election-performance data from the baseline process; to require public findings for any departure from the baseline; to preserve lawful representation safeguards; to provide legislative approval and judicial fallback procedures; and for other purposes.

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Algorithmic Redistricting Baseline and Public Deviation Act.**”

SEC. 2. PURPOSES.

The purposes of this Act are to—

1. reduce partisan, incumbent-protection, and factional manipulation of district lines;
2. require a neutral first-draft map before discretionary map changes are considered;
3. preserve lawful protections for equal population, contiguity, compactness, minority voting opportunity, tribal integrity, municipal integrity, and compact communities of interest;
4. make every departure from the neutral baseline public, written, criterion-specific, and reviewable;
5. preserve legislative responsibility for adopting district plans while preventing unexplained substitute maps;
6. prohibit use of partisan, incumbent, candidate, donor, campaign, or election-performance data in the baseline map;
7. deter mid-decade redistricting for political advantage; and
8. improve public confidence that districts are drawn from neutral rules rather than private political bargaining.

SEC. 3. DEFINITIONS.

In this Act:

1. **Algorithmic baseline map** means the first redistricting plan generated under section 5 by applying the approved redistricting algorithm to authorized input data before any discretionary human departure.
2. **Approved redistricting algorithm** means the public, deterministic, replicable method adopted under section 4 to generate an algorithmic baseline map.
3. **Authorized input data** means population data, census geography, precinct geography where needed for administrability, contiguity data, state boundary data, political-subdivision boundary data, tribal boundary data where lawfully available, water and geographic-feature data, and other nonpartisan data expressly authorized by this Act or by rule adopted under this Act.
4. **Prohibited political data** means data concerning political party affiliation, voter registration by party, prior election results, partisan performance, candidate residence, incumbent residence, campaign contributions, donor identity, campaign activity, candidate endorsements, demographic proxies selected for partisan effect, or any comparable data whose principal use in redistricting is partisan, incumbent-protective, or factional advantage.
5. **Covered district plan** means a congressional, state legislative, or other district plan required to be redrawn after a federal decennial census or other lawful redistricting trigger.
6. **Departing plan** means any proposed district plan that differs from the algorithmic baseline map.
7. **Deviation** means any material change from the algorithmic baseline map, including alteration of a district boundary, exchange of population between districts, division or consolidation of a political subdivision or compact community, or change in district configuration.
8. **Permissible deviation criterion** means a criterion listed in section 7.
9. **Review body** means the nonpartisan office, independent commission, redistricting commission, or other state body designated under section 4 to review the algorithmic baseline map and any departing plan.
10. **Material objection** means a public comment, expert submission, local-government submission, tribal-government submission, community submission, or party submission that identifies a specific legal, factual, representational, geographic, or administrability issue with the algorithmic baseline map or a departing plan.

SEC. 4. DESIGNATION OF REDISTRICTING AUTHORITY AND ALGORITHM.

(a) Designation.

The State shall designate by law a review body to administer the baseline process required by this Act. The review body may be an existing nonpartisan legislative service office, an independent redistricting commission, a state election office, a court-appointed special master, or another body that satisfies subsection (b).

(b) Required independence safeguards.

The review body shall operate under written safeguards that—

1. prohibit the use of prohibited political data except as expressly permitted in section 8;
2. require public disclosure of algorithm specifications, input data, code, parameter settings, and map outputs;
3. prohibit private communications concerning map design except as disclosed in the public record;
4. require staff and contractors to certify compliance with this Act;
5. require preservation of all draft maps, code versions, data files, comments, findings, and communications required to be public under this Act; and
6. require recusal from baseline generation or deviation review for a person with a current campaign, candidate, party, lobbying, paid map-consulting, or incumbent-protection conflict defined by rule.

(c) Algorithm adoption.

Not later than one year before the next ordinary redistricting cycle, the review body shall adopt an approved redistricting algorithm by public rule or public order.

The approved redistricting algorithm shall—

1. be deterministic and replicable from public inputs;
2. prioritize equal population and contiguity;
3. use compactness and boundary-respect measures defined in advance;
4. avoid use of prohibited political data;
5. identify how ties or equivalent map outputs are resolved;
6. generate a complete baseline plan for each covered district plan;
7. produce machine-readable and human-readable outputs; and
8. be capable of independent replication by a court, expert, candidate, civic organization, local government, tribal government, or member of the public using public data.

(d) Algorithm selection standards.

The State may use shortest splitline, modified shortest splitline, or another neutral deterministic method if the method satisfies subsection (c). The State shall not select an algorithm because it predictably advantages or disadvantages a party, candidate, incumbent, faction, racial group, language-minority group, region, or community.

SEC. 5. ALGORITHMIC BASELINE MAP.

(a) Baseline required.

For each redistricting cycle and each covered district plan, the review body shall generate and publish an algorithmic baseline map before the legislature, commission, court, or other adopting authority considers any departing plan.

(b) Publication.

The review body shall publish—

1. the algorithmic baseline map;
2. the approved redistricting algorithm;
3. source code or a complete technical specification sufficient for independent replication;
4. authorized input data;
5. parameter settings;
6. population totals and deviations for each district;

7. compactness and boundary-respect measures;
8. a plain-language explanation of the algorithm; and
9. instructions for submitting public comments and proposed corrections.

(c) Baseline legal review.

The review body shall conduct an initial legal and administrability review of the algorithmic baseline map and identify any apparent issue concerning equal population, contiguity, federal law, state constitutional law, Voting Rights Act compliance, tribal integrity, political-subdivision integrity, compact communities of interest, geographic barriers, election administration, or other permissible deviation criterion.

(d) No final adoption by silence.

The algorithmic baseline map shall not become the enacted district plan by mere publication unless state law separately provides for automatic adoption after completion of the public process required by this Act.

SEC. 6. PROHIBITED DATA AND COMMUNICATIONS.

(a) Baseline map prohibition.

The review body, staff, contractors, consultants, and any person generating the algorithmic baseline map may not use prohibited political data to generate, tune, select, reject, or modify the algorithmic baseline map.

(b) Departing plan disclosure.

If a person submits or sponsors a departing plan and has used any data described in the definition of prohibited political data, the person shall disclose the data categories used and the reason each category was used. Disclosure under this subsection does not make the data use lawful if otherwise prohibited.

(c) Private map design communications.

A communication concerning district configuration, baseline-map alteration, or a departing plan between the review body and a legislator, legislative staff member, party officer, candidate, incumbent, campaign, donor, lobbyist, consultant, or outside organization shall be placed in the public record unless protected by a court order or by a specific privilege recognized by state law.

SEC. 7. PERMISSIBLE DEVIATIONS FROM BASELINE.

(a) Written findings required.

A departing plan may be considered only if each material deviation from the algorithmic baseline map is supported by written findings identifying the specific permissible deviation criterion, the facts supporting the deviation, the data used, the population affected, and why no narrower deviation is adequate.

(b) Permissible deviation criteria.

A deviation from the algorithmic baseline map may be justified only to—

1. comply with the United States Constitution;
2. comply with the State Constitution;
3. comply with the Voting Rights Act of 1965 or another applicable federal voting-rights law;
4. comply with a state voting-rights act consistent with this Act and other controlling law;
5. maintain contiguity;
6. reduce avoidable population deviation;
7. preserve a federally recognized tribal community or reservation where lawful and administratively feasible;
8. preserve a municipality, county, precinct, or other political subdivision where lawful and administratively feasible;
9. preserve a compact community of interest supported by public evidence;
10. address a significant geographic barrier or transportation discontinuity;
11. correct a data error, topology error, census-geography error, or algorithmic implementation error;
12. improve election-administration feasibility without using prohibited political data; or
13. comply with a final court order.

(c) Narrow tailoring.

Each deviation shall be no broader than reasonably necessary to satisfy the identified permissible deviation criterion.

(d) State-law limitation.

A state voting-rights act may justify a deviation only if the law protects equal political opportunity or lawful representation safeguards and does not authorize a departure broader than necessary to remedy the identified legal or representational injury.

(e) Prohibited justifications.

A deviation may not be justified by incumbent protection, candidate protection, partisan advantage, donor preference, campaign strategy, retaliation against voters, dilution of a disfavored community, or a desire to avoid lawful electoral competition.

(f) Burden of explanation.

The sponsor of a departing plan bears the burden of producing the written findings required by this section. The review body shall determine whether the findings are complete before the departing plan may proceed to legislative consideration.

SEC. 8. REPRESENTATION-SAFEGUARD REVIEW.

(a) Required review.

Before final adoption of a covered district plan, the review body shall evaluate whether the algorithmic baseline map or a departing plan unlawfully dilutes voting strength, violates federal or state voting-rights law, subordinates traditional districting principles without legal necessity, or creates a legally impermissible racial gerrymander.

(b) Limited use of sensitive representation data.

Race, ethnicity, language-minority, tribal, citizenship-age population, voting-age population, and comparable representation data may be used only for the review and lawful correction of issues identified in subsection (a), not for partisan, incumbent-protection, or factional advantage.

(c) Public explanation.

Where a map uses representation data to support a deviation, the review body shall publish findings explaining the legal basis, factual basis, affected districts, alternative maps considered, and reasons the deviation is narrowly tailored.

(d) No quota or entitlement.

Nothing in this Act authorizes a quota, racial target, partisan target, or predetermined electoral outcome. The Act preserves lawful representation safeguards while requiring neutral, public, and reviewable justification.

SEC. 9. PUBLIC COMMENT AND RESPONSE.

(a) Comment period.

The review body shall provide a public comment period of not less than 30 days after publication of the algorithmic baseline map and not less than 14 days after publication of any materially departing plan, unless a court finds that an emergency deadline requires a shorter period.

(b) Hearings.

The review body shall hold public hearings accessible to residents in different regions of the State and shall provide remote participation to the greatest practicable extent.

(c) Response to material objections.

Before final legislative consideration, the review body shall publish a response to material objections. The response shall state whether the objection is accepted, rejected, or resolved by modification and shall identify the supporting facts and legal criteria.

(d) Public archive.

The State shall maintain a public archive containing the algorithm, data, baseline map, departing plans, written findings, public comments, responses to material objections, hearing materials, final enacted plan, and any judicial order relating to the plan.

SEC. 10. LEGISLATIVE CONSIDERATION.

(a) Baseline-first rule.

The legislature may not consider or enact a covered district plan until the algorithmic baseline map and the review body's written findings have been published as required by this Act.

(b) Up-or-down procedure authorized.

The State may provide by law that the legislature shall vote first on the algorithmic baseline map or on a review-body recommended plan without amendment.

(c) Constrained amendments.

If legislative amendments are permitted, each amendment shall be accompanied by written findings satisfying section 7 and shall be published before final passage unless a court finds that an emergency deadline requires shorter notice.

(d) Explanation of rejection.

If the legislature rejects the algorithmic baseline map or a review-body recommended plan, the rejecting chamber shall publish a written statement identifying the statutory criteria or legal defects that justify rejection.

(e) No secret substitute map.

The legislature may not enact a covered district plan that has not been published, reviewed, and subjected to public comment under this Act, except pursuant to a final court order.

SEC. 11. JUDICIAL FALLBACK.

(a) Trigger.

Judicial fallback is available if—

1. the legislature fails to enact a covered district plan by the statutory deadline;
2. the legislature rejects two plans that the review body has found compliant;
3. the legislature enacts a plan without the findings, publication, comment, or review required by this Act;
4. a court invalidates an enacted plan and no timely lawful replacement is enacted; or
5. a court finds that the redistricting process has been materially corrupted by prohibited data use, undisclosed map design communications, or bad-faith evasion of this Act.

(b) Court authority.

Upon a fallback trigger, the court may adopt the algorithmic baseline map, adopt a review-body recommended plan, appoint a special master, order limited corrections, set an expedited schedule, or provide other relief necessary to implement a lawful district plan.

(c) Preference.

In selecting a remedial plan, the court shall give preference to the algorithmic baseline map or the least-departing lawful plan unless the court finds that a greater departure is necessary to comply with federal or state law.

SEC. 12. MID-DECADE REDISTRICTING LIMIT.

(a) General rule.

After a covered district plan is enacted following a federal decennial census, the State may not enact a replacement plan before the next federal decennial census except as provided in subsection (b).

(b) Exceptions.

Mid-decade redistricting is permitted only—

1. to comply with a final court order;
2. to correct a legally material census, boundary, or data error;
3. to comply with federal law or state constitutional law;
4. to implement a newly enacted state constitutional redistricting requirement; or
5. to remedy a plan held invalid by a court of competent jurisdiction.

(c) No partisan-purpose exception.

Partisan advantage, incumbent protection, change in legislative control, change in executive control, or dissatisfaction with the prior plan is not a lawful basis for mid-decade redistricting.

SEC. 13. PRIVATE RIGHT OF ACTION AND EXPEDITED REVIEW.

(a) Action authorized.

A voter, candidate, political subdivision, tribal government, community organization, or other person authorized by state law may bring an action to enforce this Act.

(b) Relief.

A court may grant declaratory relief, injunctive relief, remand to the review body, invalidation of an unlawful departing plan, adoption of a fallback plan, costs, reasonable attorney's fees where authorized by state law, and other appropriate relief.

(c) Expedited review.

A court shall expedite any action under this Act to the greatest practicable extent, especially where delay may affect candidate filing, ballot preparation, primary elections, general elections, or representation during an election cycle.

SEC. 14. RELATION TO OTHER LAW.

This Act supplements and does not diminish any protection provided by the United States Constitution, the State Constitution, the Voting Rights Act of 1965, a state voting-rights act, state redistricting criteria, state open-meetings law, state public-records law, or another law governing districting.

Where another law requires greater transparency, broader public participation, stricter anti-gerrymandering protection, or stronger minority-vote protection, the more protective provision controls to the extent consistent with federal law.

SEC. 15. RULEMAKING.

The review body may adopt rules necessary to implement this Act, including rules governing algorithm selection, technical standards, data publication, conflict certification, public-comment procedure, hearing access, archive format, written findings, emergency deadlines, and preservation of records.

Rules adopted under this section may not authorize use of prohibited political data in the algorithmic baseline map or expand permissible deviation criteria beyond those stated in section 7.

Rules adopted under this section may not construe a state voting-rights act, state redistricting criterion, or state procedural rule to nullify the algorithmic baseline process or authorize a deviation broader than necessary to remedy the identified legal or representational injury.

SEC. 16. SEVERABILITY.

If any provision of this Act or its application to any person or circumstance is held invalid, the remainder of this Act and the application of the provision to other persons or circumstances shall not be affected.

SEC. 17. EFFECTIVE DATE.

This Act takes effect on [date] and applies to the first redistricting cycle beginning after that date. If enacted during an active redistricting cycle, the court or review body may adjust deadlines to preserve compliance with federal and state election deadlines while implementing the purposes of this Act to the greatest practicable extent.

Budgetary Impact Statement

Budget authority may be required for algorithm development, public data publication, hearings, review-body staffing, technical contractors, archival systems, and litigation; no dollar estimate is assigned pending source-backed cost data.

Note: Preliminary ARRP assessment only; not a CBO, OMB, agency, or legislative-counsel score.

Drafting Notes

- This is a model state act and should be adapted to each State's constitution, redistricting commission structure, legislative procedure, public-records law, open-meetings law, judicial-review rules, and election calendar.
- A State-specific draft should identify the redistricting authority or review body, algorithm-certification method, state court jurisdiction and standing, public-records and open-meetings cross-references, election-calendar deadlines, funding source, and whether a statute alone is durable or a state constitutional amendment is needed to prevent later bypass.
- The Act makes the algorithmic map the required first draft rather than the final enacted map.
- The Act prohibits partisan, incumbent, candidate, donor, campaign, and election-performance data in the baseline-generation process.
- The Act permits public and reviewable departures where needed for federal law, state constitutional law, Voting Rights Act compliance, state voting-rights acts, tribal integrity, political-subdivision integrity, compact communities of interest, geography, contiguity, equal population, or administrability.

- State voting-rights acts are treated as protective safeguards, not as authority to bypass the neutral baseline or justify broader-than-necessary departures.
- The Act includes judicial fallback to prevent repeated rejection of compliant maps or enactment of undisclosed substitute maps.
- The Act does not draft the reserve constitutional amendment referenced on the issue page.
- California Constitution Article XXI is a useful state constitutional analogue for an independent commission, open process, ordered criteria, Voting Rights Act compliance, community-of-interest protection, incumbent/candidate/party neutrality limits, final-map reporting, state supreme court review, special-master fallback, and funding/defense provisions.
- The current California Article XXI text is also a durability caution because it includes a 2025 temporary congressional-map override. A State-specific ELEC-011 package should decide whether anti-mid-cycle safeguards belong in ordinary statute, a state constitutional amendment, or both.
- The California Citizens Redistricting Commission's 2020 lessons-learned report supplies a workload and fiscal analogue for State-specific drafting. A State package should budget for outreach, data management, mapping software or specifications, technical contractors, legal counsel, public-input processing, financial reporting, and post-map litigation capacity.
- The internal project review added technical source leads for simulation workflows, public code/data, and adversarial community-of-interest input, but those sources do not select the statutory algorithm. A State-specific draft still needs an algorithm-certification appendix or rulemaking package before publication-ready use.

Source Notes

- Iowa Code chapter 42 is the closest verified state-law analogue for nonpartisan plan preparation, up-or-down legislative consideration, compactness/contiguity/political-subdivision standards, political-data limits, and public map disclosures.
- California Elections Code sections 14025-14032, New York Election Law section 17-206, and Washington chapter 29A.92 RCW are state voting-rights-law comparators for protective-floor and remedy language; they do not eliminate the need for State-specific constitutional and statutory adaptation.
- *Rucho v. Common Cause* supports state-law and congressional reform pathways after federal partisan-gerrymandering nonjusticiability.
- *Arizona State Legislature v. Arizona Independent Redistricting Commission* supports state-law use of independent redistricting institutions for congressional redistricting.
- *Allen v. Milligan* and *Louisiana v. Callais* are caution sources for Voting Rights Act and racial-gerrymandering tailoring.
- Algorithmic redistricting sources remain technical leads rather than final legal validation for a particular algorithm.
- The issue-page source record now includes Iowa statutory mechanics and Constitution Annotated sources verified during internal project review, state voting-rights-law comparators, core Supreme Court doctrine sources, algorithmic source leads, and California Constitution Article XXI as a state constitutional comparator.
- The internal project review added the California Citizens Redistricting Commission's 2020 lessons-learned report as a workload, public-input, finance, data-management, and litigation-budget analogue, and California's 2008 Statement of Vote as an adoption analogue for state redistricting reform.
- State constitutional redistricting provisions, commission structures, public-records/open-meetings fit, state-specific costs, and final algorithm-selection standards still need qualified external review before treating this model act as publication-ready.

ARRP Subject and Institution Index

This is a living lookup index for finding the ARRP proposal that addresses a subject, government body, or other institution. Readers starting with a broad public subject may instead Explore by Topic. Both routes supplement the ordered Project Areas index; neither creates issue boundaries or replaces issue pages, area pages, the ARRP GitHub Project, or the GitHub issue registry.

Entities, topics, acronyms, and common aliases appear together in one alphabetical sequence so readers do not need to decide which kind of term they are searching. Canonical entries provide one or more linked ARRP identifiers; **See** entries redirect especially common alternate terms to the canonical listing rather than duplicating its destinations. In a canonical entry, the **bold first identifier** is the preferred route. Additional identifiers appear only when they provide a useful alternate route; they do not imply shared issue ownership. An A-## identifier routes to an area page when the term is broader than a single issue or no standalone issue page exists.

In a compiled print edition, these stable identifiers and links become edition-specific page locators. Page numbers are generated during export rather than maintained here because they change with content and layout.

This first edition emphasizes developed proposals and high-value candidate routing. It is not yet exhaustive.

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Law-enforcement accountability; civil remedies; criminal liability; qualified immunity; section 1983; section 242	RIGHTS-005 ; JUD-012; DOM-005
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OPM (Office of Personnel Management)	See <i>Merit Systems Protection Board (MSPB), Office of Personnel Management (OPM), and Office of Special Counsel (OSC)</i> .
OPR (Office of Professional Responsibility)	See <i>Justice Department Office of Professional Responsibility (OPR)</i> .
OSC (Office of Special Counsel)	See <i>Merit Systems Protection Board (MSPB), Office of Personnel Management (OPM), and Office of Special Counsel (OSC)</i> .
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Indexing and Contents Synchronization Standard

Update this index when work creates or materially changes a useful reader lookup term or its preferred destination. Classify nothing as an entity or topic; add the term where a reader would alphabetically expect to find it.

Treat the index as a primary reader-entry route rather than only back matter. The repository homepage, the Project Areas page, and any future public website or comparable digital edition should link it prominently in their opening navigation. A compiled print edition should retain the full index at the back while providing an opening front-matter pointer whose page number is resolved during export.

Treat the ordinary contents and this index as one navigation bundle:

- **README .md** is the public repository front door and should expose topic-guide, subject-index, and area-first discovery;
- canonical pages under **topics/** provide selective explanatory synthesis for major public subjects and should be the preferred index route when they materially improve navigation;
- **areas/README .md** is the project-area table of contents;
- each **areas/AREA/README .md** is that area's issue-level table of contents; and
- this file is the cross-area lookup by subject, institution, acronym, and alias.

Update the affected contents page or pages and this index in the same change whenever an area or issue is created, renamed, moved, merged, retired, or promoted, or whenever its primary ownership or useful reader search terms change. An ordinary source, analysis, or drafting edit does not require navigation changes unless it changes one of those routing facts. Formal issue review must verify this navigation bundle as part of project integration. Preliminary review should flag obvious drift for an existing stable record but should not index an unadmitted Horizon candidate.

Keep entries short and navigational:

1. combine closely overlapping entities, subjects, acronyms, and aliases when one entry can serve them without impairing alphabetical discovery;
2. alphabetize departments, agencies, offices, and services by the familiar functional name or acronym rather than a generic opening such as **Department of, United States, or Office of**, while retaining the formal name and acronym in the entry;
3. do not list rejected, retired, or outside-scope candidates individually; route them collectively to the Horizon disposition log, while retaining general scope doctrines when they independently aid reader navigation;
4. add a **See** entry only for a common term or phrase that readers are genuinely likely to seek under a different letter or wording;
5. point each **See** entry to one existing canonical index term instead of repeating its ARRP identifiers; use **See also** sparingly when a common term necessarily spans two canonical entries;
6. label canonical destinations only with stable record identifiers or a stable project-record label;
7. place the preferred route first and bold it;

8. add alternate identifiers only when they materially improve discovery; and
9. leave relationship analysis, scope explanations, lifecycle status, scores, priorities, and review metadata to the linked project records.